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House of Representatives

The House met at 10 a.m. and was called to order by the Speaker pro tempore (Mr. AUSTRIA).

DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
September 13, 2012.

I hereby appoint the Honorable STEVE AUSTRIA to act as Speaker pro tempore on this day.

JOHN A. BOEHNER,
Speaker of the House of Representatives.

MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 17, 2012, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with each party limited to 1 hour and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes each, but in no event shall debate continue beyond 11:50 a.m.

AFGHANISTAN

The SPEAKER pro tempore. The Chair recognizes the gentleman from North Carolina (Mr. JONES) for 5 minutes.

Mr. JONES. First, I join the American people and the Members of Congress in extending my deepest sympathy to the families of the four Americans killed yesterday in Libya. It was such a tragedy.

Mr. Speaker, there's another tragedy. It's called Afghanistan. Like most of my colleagues, last month, I was home. I've been here in Washington 3 days. Back home, as well as the last 3 days here, more and more people are coming in concerned about budget cuts, worried about sequestration. We all are hearing it. Yet there's no debate about Afghanistan. It just keeps going on and on and on.

I'm pleased to say that next Thursday, a group of Democrats and Republicans have joined me for a press conference. The author of this book, called ''Funding the Enemy,'' subtitled, ''How U.S. Taxpayers Bankroll the Taliban,'' Douglas Wissing, is coming to Washington next Thursday, and we will hold a news conference at 10 o'clock. The reason for this is to continue to remind Congress the American people have been speaking out about pulling our troops out of Afghanistan sooner rather than later. I hope that this news conference with Mr. Wissing will continue to beat the drum of bringing our troops home in 2013, not 2014. That's the President's plan. That's the plan that most Republicans in leadership have agreed to. But that's the end of 2014. How many more young men and women have to give their life, their legs, their arms for a failed policy?

In this book, ''Funding the Enemy,'' and also at the news conference, we will have the former Inspector General of Afghanistan, who is a marine general. General Fields will join Douglas Wissing and a group of Republicans and Democrats to talk about the failed policy and how many times we send millions and millions and millions of dollars to Afghanistan and it never gets to the villages it's supposed to help; how many times we send millions and millions of dollars to Afghanistan and it's not accounted for. Somebody has taken the money. It's America's money. It's the money that we could be using here to save programs and to save jobs. But, again, Congress is not talking about Afghanistan.

I will continue to come to the floor, Mr. Speaker, and talk about the waste of life, the waste of money, and how it's unfair to the American taxpayer. And more importantly, it's unfair to the military families. Many of the marines in my district—and I'm sure in the United States Army—have been to Afghanistan three and four times. Truthfully, nothing has changed. If I could have been an adviser to the President, I would have said: Mr. Obama, you got bin Laden. You have dispersed al Qaeda. Let's bring our troops home. That has not happened—and it will not happen until 2014. I think 2014 will slip into 2015.

So it's my hope that after this election that those of us who I hope win come back here and let's take a new approach and look at Afghanistan. Whether it's Mr. Obama or Mr. Romney, let's try to prevail upon them as a Congress to start bringing the troops out in the spring of 2014. It's not fair to the families. It's not fair to broken bodies of those who return with lost legs.

Mr. Speaker, before I close, as I do many, many times, I ask God to please bless our men and women in uniform, to please bless the families of our men and women in uniform, to please hold in His arms the families who have given a child dying for freedom in Afghanistan and Iraq. I ask God to bless my colleagues in the House and the Senate. And I will ask God three times, Mr. Speaker, please God, please God, please God, continue to bless America.

UNFINISHED BUSINESS IN THIS CONGRESS

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Texas (Ms. JACKSON LEE) for 5 minutes.

Ms. JACKSON LEE of Texas. I would like to join my colleague in asking for the blessings on this Nation and to remind America that we gathered on Tuesday, together, in commemoration and recognition of 9/11. But America also needs us to do better. And I speak

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in the backdrop of a horrific tragedy that we are all reminded of in the loss of Americans in what continues to be an attack on our values. That's why it's important for us to shed all that partisanship leads to and the lack of bringing forth bills that would help all of America.

So I am here this morning to remind us of work yet undone, that we just had 61 bills that have been signed into law this year, the fewest in more than 60 years. In all of 2011, only 90 bills were signed into law. And so we know in the last session, the 111th Congress, 258 bills were signed into law. We have got to do better. And the most difficult thing that I rise and speak about is the lack of presenting on the floor of the House the President's jobs bill, the American Jobs Act, that would invest in small business, that would create an opportunity for those who have lost their unemployment to be extended, to create summer jobs and part-time jobs, to be able to ensure that there is job training, and to make sure that we say to America: we are your partner in job creation. Why haven't we been able to overcome those who would stand in the way on the other side of the aisle for putting forth the American Jobs Act? It is to help the American people.

We have not been able to tackle, if you will, postal reform. Those are jobs. Those are people who work to make America's commerce travel from place to place. I have spoken to small businesses, and they say the U.S. Postal Service is their lifeline for their small business. They can actually make a profit by using the U.S. Postal Service. Senior citizens who receive their Social Security checks, sometimes in the mail, many times we know online, but are connected to the post office. They're connected to the letter carriers. They're connected to the local post office in their neighborhood. How do I know? Because of the outpouring of concern for the closing of a post office on Mesa Road in the 18th Congressional District, my congressional district.

□ 1010

So I am interested in this Congress not being known by the do-nothing Congress, do-nothing Republican Congress. I want us to work together and be able to say that these items need to be put forward for the American people. What do we have to say, now looking toward sequestration? We realize that you cannot cut discretionary funding. We realize that 50 million Americans are suffering from food insecurity, and we have a $13 to $16 billion cut in the supplemental nutritional program. That simply cannot be. That cannot be the record of this Congress. No jobs, no postal reform, cutting food that people need, and, of course, staring down at our men and women in the United States military where resources that they need may be cut.

So I am asking that we may be reminded that there are those who have written, Norm Ornstein and Thomas Mann, that in studying Washington politics in Congress for more than 4 years, this is their quote, they have never seen such a dysfunctional place. We can do better. We must do better.

Democrats are ready to work to pass the American jobs bill, to pass postal reform, to pass bills dealing with helping to improve the lives of Americans, to ensuring that no American goes to bed hungry, and that we welcome our troops home and provide for their families. That's the Congress that we should be known for. That's what America is all about.

I ask that God blesses this Nation, but this Congress recognize that we have to be busy until He comes. Let's get busy for the American people. Democrats are busy and want to work to succeed to do what is right for America.

VOICE OF TEXAS, JEFFREY FROM LEAGUE CITY, TEXAS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Texas (Mr. POE) for 5 minutes.

Mr. POE of Texas. Mr. Speaker, Texans have been sharing with me their stories and lives about their businesses that they have built without the help of an out-of-control government. The responses were a testament to the tenacity of the American people.

Jeffrey, from League City, Texas, wrote me this:

I am the son of a single mother. I grew up watching my mom work two and sometimes three jobs to support us. She never took one penny of government assistance.

When I was 8 years old, I lied about my age and took three paper routes that had morning/evening and Sunday delivery.

At the age of 11, I took a job as a short-order cook at a 24-hour diner working from 11 p.m. to 7 a.m., went to school, played sports, went home, grabbed a quick dinner, slept for a few hours, and went back to work.

I did my homework while standing over a grill in the kitchen.

In the summer months, I would squeeze in a second job working in a service station.

I went into the Marine Corps upon high school graduation at the age of 17. I spent 6½ years in the military.

Upon being honorably discharged, I entered the Houston Police Academy. I have been an officer in Houston, Texas, for the past 27½ years. I worked 17 years undercover in the narcotics division, the rest has been in patrol.

My wife is an educator. We have two sons, a 19-year-old Lance Corporal in the Marine Corps on his way to Afghanistan and a 7-year-old. We live day to day, paycheck to paycheck, and are on the verge of losing everything if our taxes go up along with the cost of living.

Meanwhile, I see folks on government (giveaway programs) with Smart phones, flat screen TVs and newer cars than I can afford, cable TV, and Internet, and living in nicer apartments than I could afford while I was trying to save 17 years for my first house.

Sir, my family and I have built this life. Don't tell me that government built this life for me. That is a lie.

Mr. Speaker, Jeffrey is not alone. Contrary to the misinformed views of some, the American people are the backbone of this Nation, not government. Government is not the solution. It's the problem. Government encourages some Americans to live off the hard work of others. Government promotes a social philosophy that it will give away more free stuff to some while it takes and punishes people who work.

People, not government, take business risks. People work and make sacrifices in an effort to pursue the American Dream, and people, not government, suffer the loss if the business is not a success. But Big Government wants to take credit for what American workers have done.

Government doesn't make America, Mr. Speaker. People make America.

And that's just the way it is.

TRANS-PACIFIC PARTNERSHIP

The SPEAKER pro tempore. The Chair recognizes the gentleman from Oregon (Mr. DEFAZIO) for 5 minutes.

Mr. DEFAZIO. I thank the Speaker.

About 27 miles away from here, secret negotiations are ongoing. A number of us have asked to be allowed to observe the negotiations because it will have a dramatic impact on the future of the United States of America and our economy, but no Member of Congress has been allowed into these negotiations. This is over something called the Trans-Pacific Partnership. It's essentially NAFTA for the whole Pacific Rim.

Now, imagine how well that's going to work. NAFTA, of course, has cost the U.S. hundreds of thousands of jobs in many industries.

Now, this is a new agreement, a new forum, the President has put his stamp on it, it is called a living agreement, meaning it's being negotiated among a small number of relatively small countries, but the U.S. is running the show. But later on, other countries, like Japan and China, can plug in.

We know very little about what's being negotiated because, again, the documents are all kept secret from Members of Congress. They have been shared, however, with 600 corporations who, at the click of a mouse, can access them through a secure site online. But yet no Member of Congress is allowed to see these documents, no one representing the American people.

Now, the problem is that we have had some leaks, and the analysis is if Japan is allowed to join, and the U.S. is trying to get Japan to join, we'll lose 90,000 automotive jobs immediately. This is yet another example of failed trade policy of the United States of America.

It is also rumored—again remember, no elected representative of the American people is allowed to view these documents which 600 U.S. corporations are allowed to review and annotate and make suggestions on—that it would have intellectual property restrictions that would far exceed those that were

already rejected by the elected representatives of the American people, the House and the Senate, so-called SOPA and PIPA.

These intellectual property restrictions in this agreement, it is rumored, will far exceed those already rejected, yet they would be binding on the United States of America, again going around our elected representatives.

It is also rumored that the U.S. pharmaceutical industry is seeking to roll back previous reforms that even George Bush negotiated in the U.S.-Peru FTA that enhanced access to affordable medicines. The pharmaceutical industry doesn't like inexpensive, affordable, life-saving medicines. That would be rolled back.

Further, it would allow drug companies to challenge the price formularies in Canada. Remember, U.S. citizens can buy drugs made by U.S. companies in the U.S. much more cheaply in Canada than here because the Canadian government negotiates on their behalf. It's rumored that this agreement would force Canada to raise their drug prices.

It is also rumored that it might actually prohibit the United States Government from negotiating or allowing under part D Medicare—pharmaceutical companies and insurance companies are involved but the insurance companies can negotiate under authority of law lower drug prices. It may also prohibit the drug formulary for Medicaid which saves hundreds of millions and billions of dollars a year, and the VA, which provides our veterans with low-cost pharmaceuticals.

All of those things may be preempted by this Trans-Pacific Partnership.

□ 1020

Now, this is really an extraordinary thing that this is being done in secret and no Member of Congress is allowed to review it.

It has one chapter we know about, which is so egregious that Australia has said they have to have a total exemption. And the U.S. has said, sure, okay. We understand you want to protect your people. We'll let you do that, but we don't want to protect ours.

This is a little provision, similar to NAFTA, which gives corporations the power to challenge in foreign tribunals—not U.S. courts—our domestic laws that protect consumers and the environment. We would now give this authority to corporations, if China accesses to this, that are run by the Communist Government of China because they own many of the corporations in their country. The People's Liberation Army owns those corporations.

This is extraordinary. Six hundred corporations have access to this document, but no Member of Congress has access to this document, and yet this is the trade future. This is the 21st century trade agreement, we're told by this administration.

Further, the chief negotiator for the United States has said it's his greater desire that China become part of this because then China would be bound by these rules. Oh, yeah, I heard that before. We used to vote annually on China's trade performance and we had a stick called ''most-favored-nation status.'' When we gave up that stick—I voted against it—we gave them permanent most-favored-nation status, then they could join the World Trade Organization. But they said, don't worry, now they'll have to follow the rules. Guess what? They don't. And if they get in this agreement, they won't follow the rules either.

Kiss our economy good-bye if this secret agreement goes through.

FARM BILL

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from South Dakota (Mrs. NOEM) for 5 minutes.

Mrs. NOEM. Mr. Speaker, as we approach the end of this week, we come even closer to the date on which our farm bill will expire, which is on September 30, in just a short period of time.

Yesterday, we had a rally here on the Capitol grounds that hundreds of farmers from across the Nation came together and talked about the importance of doing a farm bill now. That was the driving theme because we recognize the responsibility that farmers across this Nation have to feed our families and to make sure that they have food that they can put on the tables across this world.

Recently, I received a letter from some producers in South Dakota. Myron and Mary are real people, and they live near Wall, South Dakota. I wanted to read this letter for you today. They have a farming and ranching operation that they have had since 1969 near the Badlands of South Dakota. They farm around 750 acres of corn and wheat in South Dakota, and like many producers, they're struggling through this drought that has afflicted our country. I want to read a portion of that letter to you:

> Our area was designated extreme drought early July. The corn usually yields 60 bushels per acre; wheat, 50 bushels per acre; safflower, 1,200 pounds per acre; alfalfa, 1 ton per acre. This year, the corn was cut for hay and silage, the safflower yielded half, and the alfalfa was next to nothing. We usually raise enough hay to meet our needs. To date, we have spent $120,000 to buy hay, and we still need more.
>
> The farm bill is important to our operation in two areas in particular: Number one, crop insurance that is all inclusive (hail, fire, drought); and, number two, disaster assistance as provided in the last farm bill but expired last year. Disaster assistance is desperately needed now due to the drought.
>
> It is the time of year to plant wheat and to wean calves, which we will do. We don't know if it will rain, but if we knew that a farm bill was in place, we could make the decisions whether to maintain our cowherd numbers and if we plant crop. Please pass a farm bill before the end of the year.

I want you to take a look at this picture that's next to me that is a cornfield in South Dakota. It was taken a while ago. If you would look at this field, traditionally, when this picture was taken, that corn should be lush and green; it would be setting ears, it would be building test weight, and it would be ready for harvest. Instead, these stalks are falling over due to the drought. They weren't able to provide much in growth and are struggling. This corn, more than likely, will be cut for silage—for feed for cattle—instead of returning on the investment for the producers that planted it hoping to get a crop.

We need to give Myron and Mary and producers such as those that own this corn and their families that depend on the food grown in this country the certainty of a farm bill. We cannot wait for the next disaster. We need to do our job. We need to continue to provide for our families across this country that need affordable food policies and depend upon this country and the security that a strong food program can bring them through doing a farm bill now.

POVERTY

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from California (Ms. LEE) for 5 minutes.

Ms. LEE of California. Mr. Speaker, as cofounder of the Congressional Out of Poverty Caucus, I rise today to call for an immediate response to the ongoing crisis of poverty in our Nation.

The census numbers released yesterday underscore the urgent need to act boldly and to create jobs in this country, to protect our safety net, and to target resources where they are needed—basically, to communities of color, low-income communities, those communities, rural areas, who were hit hardest by the economic downturn.

It's really beyond shameful that over 45 million Americans, including over 16 million children, are living in poverty in the wealthiest nation in the world. The data also shows a wide racial disparity, with the poverty rates for whites standing at 9.8 percent, while the rates for African Americans and Hispanics remain unacceptably high at 27.6 percent and 25.3 percent, respectively.

In 2005, I founded the Congressional Out of Poverty Caucus because of the rising tide of poverty. Some of us saw this unfortunate day coming. That was beginning under the failed policies of the previous administration.

Of course, we also know the terrible economic impact of the massive financial crisis that they left us on their way out of office. With the swift efforts of President Obama and congressional Democrats, we are finally beginning to dig ourselves out of the hole that was left by the Bush administration and slowly moving the poverty rate in the right direction.

Mr. Speaker, we must do more and we can do more.

One of the most critical responsibilities we have as a government is to

promote and enact policies that keep our middle class strong and provide opportunities and a safety net for those striving and fighting to become middle class and to get into the ranks of the middle class, to enhance their quality of life. But far too many Americans are continuing to suffer joblessness and have dropped out of the middle class and into poverty because of this Republican do-nothing Congress.

Republicans in Congress have continually blocked efforts to extend and expand vital safety net programs which safeguard millions of American families and children who face stark realities of unemployment, hunger, and homelessness. Further, their continued blocking of critical Federal support to our States and localities has caused widespread layoffs of dedicated public servants like teachers, police officers, and firefighters in communities all across the country.

This attack on our country's public servants has had a particularly hard impact on communities of color and on women across the country. I just have to tell you, African Americans and women have long found job opportunities in the public sector, in public employment. African Americans, in particular, often found work with the city or the State because of racial bias and barriers and obstacles in the private sector.

Mr. Speaker, the American people know that you can't have it both ways. Government spending cannot kill jobs on one hand, when spent on hiring teachers and police officers, and create jobs on the other hand. And those services are desperately needed throughout our country. We need more police officers on the street.

My colleagues on the other side of the aisle must begin to accept the reality of history. Federal investments in our Nation's infrastructure, in our schools, and in programs that help struggling families are critical to boosting our economy and spurring our economic recovery.

Tax cuts for millionaires don't pay for themselves; they create massive deficits and weaken our country.

Markets don't regulate themselves. Deregulation allows rampant fraud and creates massive bubbles that inevitably burst and threaten our entire economy.

We need a balanced approach that ensures that every American pays their fair share and is invested in a united and prosperous future for all Americans of every background. We need a balanced approach that ensures that millionaires and billionaires pay their fair share so that we can reignite the American Dream for all.

How this Nation treats the least of these is not just a measure of our Nation's moral priorities, but it will directly impact whether the American Dream survives and thrives for all. Let us not forget that our greatest strength is the freedom and opportunity that our democracy created to allow us to work together to build the largest and most prosperous middle class the world has ever known.

□ 1030

But this means that we must reduce and we must eliminate poverty. And I hope in the few days that we're left that this Congress will come together and figure out a way to pass the President's American Jobs Act, because in that legislation we have critical investment to rehire our police officers, teachers and firefighters who desperately need their jobs, but also the services are desperately needed in our communities.

COMMEMORATING NEIL ARMSTRONG

The SPEAKER pro tempore. The Chair recognizes the gentleman from Alabama (Mr. BROOKS) for 5 minutes.

Mr. BROOKS. Mr. Speaker, I represent Alabama's Fifth Congressional District, home to NASA's Marshall Space Flight Center, home to the Saturn V rocket that carried American astronauts to the Moon.

Today, the Fifth District's talented scientists, engineers, and others work tirelessly to develop the Space Launch System for manned space flight both to and beyond low Earth orbit.

In the early 1960s, President John F. Kennedy challenged America to do the impossible, send an astronaut to the Moon and safely return him. As a young boy in the 1960s, I vividly remember the Earth tremble, dishes rattle, and windows pulsate as America tested our Saturn V rocket on nearby Redstone Arsenal. In 1969, America's hard work paid off.

I will never forget watching the grainy, black-and-white footage on TV as American astronaut Neil Armstrong stepped on to the lunar dust. The thrill of that moment, our pride in America, our awe of what Americans could do have belonged to all Americans ever since. Armstrong's walk on the Moon helped define America and changed world history as we left Earth behind and ventured into the mysteries of space.

Neil Armstrong was an accomplished aerospace engineer, Navy pilot, astronaut, and the first man to walk on the Moon. Neil Armstrong will be forever immortalized as a brave and great explorer.

Toward the end of his life, Neil Armstrong spoke frequently and passionately about the future of manned space flight. Neil Armstrong understood that American exceptionalism is in jeopardy and may be lost to future generations.

As a member of the House Science, Space, and Technology Committee, I recently had the privilege to meet Neil Armstrong during a public hearing on NASA's Space Launch System, the Orion Multipurpose Crew Vehicle, and America's role in space. During that hearing, Neil Armstrong expressed concerns about the direction of America's space program.

Neil Armstrong testified, and I quote:

> The past year has been frustrating to NASA observers as they tried to understand NASA's plans and progress. NASA leadership enthusiastically assured the American people that the agency was embarking on an exciting new age of discovery in the cosmos. But the realities of the termination of the shuttle program, the cancellation of existing rocket launcher and spacecraft programs, the layoffs of thousands of aerospace workers, and the outlook for American space activity throughout the next decade were difficult to reconcile with the agency assertions.

Neil Armstrong continued, and again I quote:

> So, much has been accomplished. But NASA, hobbled by cumbrous limitations, has been unable to articulate a master plan that excites the imagination and provides a semblance of predictability to the aerospace industry.

Neil Armstrong concluded by testifying, and again I quote:

> Predicting the future is inherently risky, but the proposed Space Launch System includes many proven and reliable components which suggest that its development could be relatively trouble free. If that proves to be so, it would bode well for exploration.

In the midst of America's current economic malaise and deficit-ridden Federal spending on programs that do nothing or little to advance technology or humanity's condition, I share Neil Armstrong's concern for the future of NASA and whether Washington has the inspirational leadership exhibited by President Kennedy in the 1960s, or ''the right stuff'' that is essential for space exploration.

Today, American astronauts hitch a ride from Russia. Oh, how far we have fallen. Quite frankly, America and the human condition beg for the White House leadership once shown by President Kennedy, but which now is sorely lacking.

Mr. Speaker, there is a whole universe out there waiting for us to explore. Just as America did in the 1960s, today's Americans can accomplish what is seemingly impossible. All America lacks is the vision needed to help us understand where we should go and the leadership needed to get us there.

Mr. Speaker, America will best honor the memory of Neil Armstrong and his achievements by striving for the American exceptionalism exemplified by Neil Armstrong in continuing his dream of manned space flight and exploration.

TAKE POLITICS OUT OF THE POST OFFICE

The SPEAKER pro tempore. The Chair recognizes the gentleman from Georgia (Mr. JOHNSON) for 5 minutes.

Mr. JOHNSON of Georgia. Mr. Speaker, I rise today to urge my colleagues in this do-nothing Congress to take politics out of the post office.

The post office was explicitly authorized in article I, section 8, clause 7 of the United States Constitution. It

began its operations on July 26, 1775, and Ben Franklin was appointed the first Postmaster General. That's a long time ago.

It has a legal obligation to serve everyone, regardless of geography, and at a uniform cost with uniform services. And it has exclusive access to boxes that are marked ''U.S. Postal'' or ''U.S. Post Office.'' And it also competes with private package delivery services.

In 2006, Congress forced the United States Postal Service to pre-fund 100 percent of retiree insurance premiums. No other company, public or private, is forced to comply with such an unnecessary and destructive policy.

Mr. Speaker, House Republicans cited declining mail volumes and a growing labor force as the primary reasons why the 2006 legislation was necessary. Yet 2005, 2006, and 2007 were the highest volume years in U.S. Postal Service history. In fact, 2006 was the highest volume year ever.

Mr. Speaker, the real motivation behind the 2006 legislation was to break the back of a public sector union and privatize the mailing industry. Why else would Congress alter an entity that hasn't taken a dime of United States taxpayers' money in 30 years?

According to the Congressional Research Service, the U.S. Postal Service was self-supporting since 1971, using postage sales to fund operations. The Postal Service was so profitable that it returned money to the Treasury every single year, while providing free services to the visually impaired and persons overseas.

If the Postal Service was a private corporation, or if it had been a private corporation at that time, my colleagues across the aisle would have hailed it as the model of economic success and sung its praises from sea to shining sea.

Since the pre-funding mandate of 2006, however, the Postal Service has nearly crumbled under the weight of its pension costs. How does an organization that had robust profits for 30 years, leading up to the 2006 legislation, suddenly start running deficits and lose $25 billion between 2007 and 2011?

How did the U.S. Postal Service go from no debt in 2006 to over $13 billion in debt today?

Many of my colleagues on the other side have well-connected friends who advocate for Postal Service privatization. I'm here to connect the dots for the American people.

Instead of wasting time today, this do-nothing Congress should vote to stop the damage inflicted upon the United States Postal Service by passing H.R. 1351. This bipartisan postal reform bill protects the hardworking employees of the Postal Service.

The U.S. Postal Service was not in danger of becoming insolvent until Congress decided to meddle in its affairs. It's hypocritically inconsistent for my friends on the other side of the aisle to talk about government being the problem, while they don't acknowledge that they created a big problem for the post office. It is hypocritical.

Mr. Speaker, the Postal Service already missed a $5.5 billion payment in August. Congress must act before the post office defaults on another payment later this month. Instead of scheduling political votes that highlight our differences, let's stop the madness and do what is in the best interest of the American people, the economy, and communities across the Nation.

The Postal Service employs 700,000 of our fellow citizens, over 17,000 of whom are from my State of Georgia.

□ 1040

One-third are military veterans who deliver 212 billion pieces of mail to over 144 million locations. This is the middle class that's doing this. If privatization advocates like the Koch brothers get their wish, the Postal Service will slowly be destroyed, causing good jobs to be lost and allowing companies to raise prices of delivery. Taking action to strengthen the Postal Service's finances is not just good for the letter carriers and postmasters; it's also good for business. There is $1.3 trillion in mailing industry proceeds out there that support 7 million private sector jobs. The time to act, ladies and gentlemen, is now.

HUNGER STRIKE UNDERWAY BY PRO-DEMOCRACY ACTIVISTS IN CUBA

The SPEAKER pro tempore. The Chair recognizes the gentleman from Florida (Mr. DIAZ-BALART) for 5 minutes.

Mr. DIAZ-BALART. Mr. Speaker, just 90 miles away from the coast of the United States there exists a murderous, terrorist regime on the island of Cuba. It is a regime that harbors terrorists, that funds terrorism, that has even held an American hostage since the summer of '09, and that denies all basic human rights to its people.

Currently, 26 pro-democracy activists, it has been reported, have initiated a hunger strike. It started with Jorge Luis Garcia Perez Antunez on September 7 of 2012 in order to protest the brutal oppression by the Castro thugs against the Cuban people and against the political prisoners, and it has now been joined, as I said, by another 25.

You're not going to see that on the front pages of the newspapers. These are individuals who, for some reason, the press will not cover. The only thing you'll see about the Castro regime is, frankly, the beauty of the beaches and the island and the fact that they have old cars—such a quaint thing. It's not quaint when your human rights are violated and when you are forced to drive 50-year-old automobiles—if you're lucky to even get one of those.

Since these individuals, these heroes, are for some reason being denied the coverage that they deserve, I come to the floor to mention who they are—these heroes that we have to support, that we have to defend, and that we can never forget. So I am going to read their names.

I mentioned Jorge Luis Garcia Perez Antunez. Jorge Vazquez Chaviano, Arturo Conde Zamora, Yerandi Martinez Rodriguez, Orlando Almenares Reyes, Luis Enrique Ponce Sanchez, Roberley Villalobos Torres, Israel Robert Isaac, Yuniel Alvarez Garcia, Luis Enrique Santos Caballero, Yosmel Martinez Corcho, Alberto Reyes Morales, Marta Beatriz Roque Cabello—by the way, who is a very well-known pro-democracy leader of Cuba and whose health is, frankly, in poor shape—Omar Pedroso Suarez, Yadira Rodriguez Bombino, Ibis Maria Rodriguez Gonzalez, Fermin Zamora Vazquez, Yasmani Nicle Abad, Leonardo Cancio Santana, Pedro Fernandez Vega Cortes, Arcelio Lopez Rojas, Misahel Valdes Diaz, and Jorge Luis Recio Arias.

These heroes, these pro-democracy activists and heroes, have stood up and are standing up to the Castro dictatorship with whatever they have, including their health and their bodies. They need our prayers. They need our support. They need our solidarity at this pivotal time in their struggle for Cuba's freedom.

Mr. Speaker, may God protect these brave heroes. May the international community demonstrate the solidarity that they deserve—and yes, we here in the United States Congress and in this country must continue to work to do what we can to help them and others achieve their final day of freedom.

THE FUTURE LEADERSHIP OF CONGRESS AND THE COUNTRY

The SPEAKER pro tempore. The Chair recognizes the gentleman from Vermont (Mr. WELCH) for 5 minutes.

Mr. WELCH. Mr. Speaker, the American people are going to make a decision on November 6 about the future leadership of this Congress and this country, and they face, as they do every 4 years, two fundamental questions. The first: Who can be in charge of the cash register? Who will best manage the economy? The second: Who will be a firm hand in protecting America's foreign policy interests? If we look at the past 2 years with this Republican-led Congress, which has accomplished nothing and, in fact, has done damage, the question on who is best in charge of the cash register is quite clear.

The Ryan budget that was passed by this House and that stalled in the Senate would actually increase the debt. The whole point, supposedly, of the Republican agenda coming into Congress was to lower the debt. The budget they passed would increase it by $6 trillion. Why is that? Well, first of all, many of the proponents of this budget are the folks who voted for policies that actually exploded the debt: the war in Iraq

on the credit card; nation-building in Afghanistan on the credit card; the prescription drug program unpaid for on the credit card. Those policies played a very big role in getting us into the debt that we have.

Then the Ryan budget, which is supposedly the blueprint to reduce the debt, increases it by $6 trillion in 10 years. Why? Because it increases those Bush tax cuts that were never paid for and would lower their Republican Presidential candidate's effective tax rate to 1 percent. Secondly, it vastly increases Pentagon spending beyond what even the Pentagon is asking for. Even though it then imposes savage cuts on domestic discretionary spending—making it really difficult to do scientific research, to help our kids go to college—the net result is a $6 trillion increase in the debt.

On foreign policy, no responsibility is so vested in one person—the President of the United States—when guiding American foreign policy. It needs a firm hand, a calm voice, a person who thinks before he speaks, who aims before he fires. The recent tragedy of losing our ambassador and three other brave civil servants from the State Department is an indication that the Republican Presidential candidate lacks the temperament to do that job.

Why is it that in the first statement that he made after the loss of four American lives he descended into what essentially was tactical politics—arguing about the wording of a communique from the American Embassy in Egypt? Is it really the case that we in America cannot defend the right of free speech and promote religious tolerance?

We need a President—and have a President—who is thoughtful, who is firm, who can act with conviction and clarity, and does it in a sober way that is going to defend and promote American political and foreign policy interests.

NO MORE SOLYNDRAS ACT

The SPEAKER pro tempore. The Chair recognizes the gentleman from Florida (Mr. STEARNS) for 5 minutes.

Mr. STEARNS. Mr. Speaker and my colleagues, later today, we will begin debate on the rule for H.R. 6213, the No More Solyndras Act, which, along with my chairman, FRED UPTON of Michigan, I am proud to sponsor. This legislation is a culmination of an intensive and thorough 18-month investigation by the Subcommittee on Oversight and Investigations, which I chair, and will fix the problems we have uncovered.

Specifically, the No More Solyndras Act will phase out the Department of Energy's grossly mismanaged loan guarantee program by prohibiting DOE from issuing any loan guarantees for applications submitted after December 31, 2011, and it will provide taxpayers strong, new protection for any pending participants in this program.

□ 1050

The bill provides greater loan guarantee transparency by requiring the DOE to report to Congress on the decisionmaking process, and, of course, the details of the loan. The bill also prohibits DOE from restructuring the terms of any guarantee and forbids the subordination of United States taxpayers' dollars at any time to private investors and holds the Department of Energy officials accountable for their actions by imposing penalties by failing to follow this law.

As many of you know, Solyndra was the first recipient of a DOE loan guarantee from title XVII of the Energy Policy Act of 2005 and, frankly, was the poster child for President Obama's stimulus-driven green economy. It was also the first stimulus-backed recipient of a DOE loan guarantee to file for bankruptcy just 2 years after the loan closed, and 6 months after DOE restructured the loan and subordinated taxpayers' interest to two wealthy and well-connected investors, all but ensuring taxpayers won't see a dime.

Other DOE loan recipients have also struggled. Three of the first five companies which received loan guarantees issued by the DOE Loan Guarantee program—Solyndra, Beacon, and Abound Solar—have all filed for bankruptcy, losing hundreds of millions of dollars of taxpayers' money that will never, ever be recovered. The other two companies are struggling, also. Nevada Geothermal has substantial debts and no positive cash flow, and First Wind had to withdraw their planned IPO and also has substantial debt to boot.

On behalf of the American taxpayers, we had a duty to figure out what went wrong with Solyndra, the loan guarantee, and whether the loan guarantee program was properly managed. The Solyndra investigation has been thorough and methodical. The Energy and Commerce Committee requested and received and reviewed documents from every executive branch agency connected to Solyndra, and interviewed more than a dozen administration officials who played key roles in the loan guarantee program. The committee has also reviewed documents produced by the Solyndra investors, as well as DOE's independent consultant and their legal advisers.

As the committee's investigation revealed, the Obama administration put Solyndra's loan on the fast track for political reasons, despite repeated red flags and warnings in 2009 from the Office of Management and Budget and DOE officials about the company's financial condition in the market for Solyndra's product. Were they viable? It is clear that DOE failed to adequately monitor the loan guarantee, blindly writing checks to Solyndra as the company hemorrhaged cash throughout the year 2010.

When the warnings came to fruition and Solyndra was out of cash in the autumn of 2010, the Obama administration doubled down on its bad debt and bad bet, restructuring Solyndra's loan in early 2011 and putting wealthy investors at the front of the line in front of taxpayers, which is a clear violation of the Energy Policy Act of 2005. Right up to the bankruptcy filing, the administration was willing to take extraordinary measures to keep Solyndra afloat for political reasons and ensure that the first loan guarantee was not going to be a failure.

The investigation also showed that the DOE failed to consult with the Treasury Department as simply required by the Energy Policy Act prior to issuing a conditional commitment to Solyndra and that Treasury didn't even play a role in simply reviewing the restructuring. The No More Solyndras Act will correct this by ensuring that Treasury is actively involved in the loan process to protect our taxpayers.

Mr. Speaker, the Solyndra investigation and the No More Solyndras Act are a great example of how congressional oversight should work. We asked the tough questions, collected all the facts, identified the problem, and now we're offering good legislation.

I encourage all my colleagues to support H.R. 6213, the No More Solyndras Act, to ensure that the mistakes and misguided decisions that occurred never, ever happen again.

IN CELEBRATION OF BILL KLING

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Florida (Ms. WASSERMAN SCHULTZ) for 5 minutes.

Ms. WASSERMAN SCHULTZ. Mr. Speaker, I rise to celebrate the life of a beloved member of our south Florida veterans community, William ''Bill'' Kling, who passed away on August 6 at the age of 84.

Bill was a devoted husband and father; and he is survived by his two children, Marsha Mittentag and Steven Kling. My thoughts and prayers go out to them, to Bill's extended family, and to all of his friends and colleagues who share in mourning this loss.

Bill was a member of our Greatest Generation of Americans who served our Nation as a radar technician for the Navy during World War II. But Bill's service to our Nation was far from over when he returned from war. In fact, it was just beginning.

Bill Kling became a national leader and one of the strongest advocates for our Nation's veterans. He was dedicated to helping generations of veterans as they returned to civilian life. He worked tirelessly to make sure our veterans were getting the benefits they deserved—from education under the GI Bill to quality health care through our VA system.

I'm sure my Florida colleagues will agree that Bill was a force to be reckoned with, ever brightening our congressional doorways, pushing the urgency of the issue at hand. I know we are grateful for the remarkable legacy

he leaves behind, and he will be sorely missed.

I had the distinct pleasure of working with Bill for the last 23 years and have witnessed firsthand the many ways he helped thousands of veterans in Florida. I'm also proud to have called Bill my friend. For the past 7 years, Bill served as the chairman of my Military Academy Nominations Board where he helped the next generation of military leaders realize the dream of serving the country they love.

For 8 years, he served on the Florida Commission on Veterans' Affairs, and for the past 27 years he was the president of the Broward County Veterans Council. He also led the Jewish War Veterans and was a member of the American Legion, Veterans of Foreign Wars, and the Disabled American Veterans.

The list of superlatives for Bill shows him as the great American that he was. Bill was inducted into the Broward Senior Hall of Fame, received the Humanitarian of the Year award from the Dolphin Democrats, and changed the shape of veterans services in south Florida. In particular, he helped bring the Alexander ''Sandy'' Nininger Veterans' Nursing Home to Pembroke Pines in 2001 and worked with other veterans to create the South Florida National Cemetery in Palm Beach in 2007.

One of Bill's greatest accomplishments and lasting legacies was ensuring that veterans would have easy access to quality medical care. Bill noticed that too often veterans in Broward County had to travel too far to go to a VA facility to get the care that they needed. With that in mind, he helped open the Oakland Park VA Outpatient Clinic more than two decades ago.

When the building the clinic occupied began deteriorating, Bill worked to open a brand-new facility. Even though this effort took years, Bill kept a smile on his face and kept working to overcome every obstacle, because that's just how Bill operated.

So in 2008, a new 98,000-square-foot clinic opened in Sunrise, and fittingly on Bill's birthday. I think it's fair to say that without Bill Kling, this wonderful center that serves thousands of our veterans each year might not ever exist.

With that in mind, I'm honored to announce that next week my good friend, Congressman TED DEUTCH, also of Florida, and I will file legislation, along with many other members of the Florida delegation, that will rename the Broward Outpatient Clinic as the William ''Bill'' Kling VA Clinic.

This is such a fitting way to memorialize and thank Bill Kling. With passage of this bill, every veteran who walks through the doors of the Broward VA Clinic will know the name of the man who did so much for so many.

Mr. Speaker, I look forward to the passage of this legislation so we may pay fitting tribute to a great American, William ''Bill'' Kling.

MESSAGE FROM THE SENATE

A message from the Senate by Ms. Curtis, one of its clerks, announced that the Senate has passed without amendment a bill of the House of the following title:

H.R. 6336. An act to direct the Joint Committee on the Library to accept a statue depicting Frederick Douglass from the District of Columbia and to provide for the permanent display of the statue in Emancipation Hall of the United States Capitol.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until noon today.

Accordingly (at 10 o'clock and 59 minutes a.m.), the House stood in recess.

□ 1200

AFTER RECESS

The recess having expired, the House was called to order by the Speaker at noon.

PRAYER

Reverend Kris Holzmeyer, Second Baptist Church, Clinton, Tennessee, offered the following prayer:

Heavenly Father, we come to You this day with praise upon our lips. You are worthy of all glory and honor. You are faithful, and You hear us when we call.

We come to You this day to say thank you. You have given to us a free and prosperous Nation in which to live. We know that You and You alone are the provider of that freedom and prosperity.

We also come before You acknowledging our great sins as a Nation. We ask Your forgiveness as we seek Your will for the future of our country.

As our leaders gather in this room to discuss the business of this day, bless them with wisdom and knowledge to make the best possible decisions for our citizens. And may their actions, their words, and their motives bring You honor and glory.

We ask these things in the name of Jesus Christ, our Lord.

Amen.

THE JOURNAL

The SPEAKER. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

PLEDGE OF ALLEGIANCE

The SPEAKER. Will the gentleman from Illinois (Mr. SCHILLING) come forward and lead the House in the Pledge of Allegiance.

Mr. SCHILLING led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

WELCOMING REVEREND KRIS HOLZMEYER

The SPEAKER. Without objection, the gentleman from Tennessee (Mr. FLEISCHMANN) is recognized for 1 minute.

There was no objection.

Mr. FLEISCHMANN. It is my pleasure to welcome Kris Holzmeyer in joining me here on the House floor to give the opening prayer.

Pastor Holzmeyer recently served as an associate pastor at the Second Baptist Church in Clinton, Tennessee, a town in my district. With a desire to serve the Lord in both word and deed, Kris has authored two devotionals: ''The First Responder Field Manual'' and ''Lessons from the Locker Room.'' A passionate advocate for international adoption, Kris advocated for adoption awareness and established the Kyle Reagan Foundation, which raises money to help adopt children from abroad.

In Tennessee, Kris has been active as well in coordinating the 2012 Anderson County National Day of Prayer, in running the Summer Skills Basketball Camp at Second Baptist Church, and in ministering to local officials.

In addition to his strong ties to Tennessee, Kris also has a Washington connection. He served as assistant communications director for the D. James Kennedy Center for Christian Statesmanship on Capitol Hill from 2004 to 2006. While on Capitol Hill, he performed outreach to Members and staff.

A native of Indiana, Kris received his BA from the University of Southern Indiana and his master's degree from Liberty Baptist Theological Seminary. Along with his wife, Missy, and his children, Kyle and Sammi, I would like to thank Kris, and I am pleased that he could join us in prayer.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (Mr. CHAFFETZ). The Chair will entertain 15 further requests for 1-minute speeches on each side of the aisle.

WE NEED A FARM BILL NOW

(Mr. CRAWFORD asked and was given permission to address the House for 1 minute.)

Mr. CRAWFORD. During the month of August, I traveled throughout my Arkansas district, listening to the challenges family farmers are facing with record drought conditions. Even though the House did pass an important drought relief package, we need to

pass a farm bill. We must acknowledge the role that farm families play in our Nation's economy.

The success story of Arkansas and American agriculture can continue if Congress acts to pass sound policies. The message from my constituents and rural America is clear: We need a farm bill now. The farm bill needs to be a priority of the House, as it is critically important not only to my home State of Arkansas but to all of rural America.

At a time when many Americans have lost faith in the ability of Congress to accomplish great things, a comprehensive farm bill has the potential to be an example of what can be done when we put aside partisan politics and pass sound policy. We need a farm bill now.

FARM BILL

(Ms. HOCHUL asked and was given permission to address the House for 1 minute.)

Ms. HOCHUL. Imagine if our farmers did their jobs the way Congress has been doing its job. I know what you're thinking. We'd all starve, wouldn't we? We've got a job to do, folks, and you just heard it from my colleague on the other side of the aisle.

There is no reason that our pleas for help on behalf of our farmers should go unheeded. We've been asking since early this summer to give the farmers the certainty they need to be able to do their jobs on our behalf in order to protect our food security, which is linked to our national security. It expires in a couple of weeks.

I don't want to go home and my colleagues don't want to go home—we don't want to leave this body—until we do our jobs on behalf of the farmers. If anyone thinks that a 6-month extension—kicking the can down the road—is sufficient, well, I encourage you to go visit my farmers, particularly my dairy farmers—the McCormacks, the Berwangers, the Nobles, the Zittels, the Kerners—who are the people I've met over our 5-week break who thought for sure we'd be able to pull together in a bipartisan way and do it.

There is still time, Mr. Speaker. I don't want to go home. Let's not go home until we take care of our farmers and get the job done right.

HONORING THE LIFE OF GLENN ''SKIDS'' SMITH

(Mr. SCHILLING asked and was given permission to address the House for 1 minute.)

Mr. SCHILLING. Mr. Speaker, on September 1 of 2012, a tragedy occurred at the Quad City Air Show when a 30-year-old L–39 fighter jet fell from the sky, claiming the life of a veteran pilot.

Glenn Smith, or ''Skids,'' as he is remembered by his fellow Hoppers of Frisco, Texas, never shied away from adventure. He lived life to the fullest as a certified scuba diver, as a licensed sailor, and as a self-proclaimed ''struggling'' golfer. Nearly three decades ago, he took one of the greatest risks and started what would eventually become a successful business. In 2006, Skids retired to pursue his true passion—flying. Restoring and flying fighter jets wasn't just a hobby to him; it was a way to share a piece of our Nation's history with people across the country.

Skids will always be remembered by those he motivated through his mission to educate the general public and to inspire kids to work hard in school, aim high in life, and have fun. Skids' enthusiasm for life will truly be missed. My thoughts and prayers are with the family and friends and teammates he leaves behind.

WE WILL STAND AGAINST TERRORISM

(Ms. JACKSON LEE of Texas asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. JACKSON LEE of Texas. Mr. Speaker, I join in asking for calm, along with Secretary Clinton, in this violent and tumultuous world, and particularly with regard to the actions that are going on in Yemen, Cairo, and certainly Libya. I offer my deepest sympathy to those who lost their lives.

I stand again to say, as the Secretary indicated this morning, that the American people and the American Government had absolutely nothing to do with this heinous film, but we reject the horrible and horrific violence.

I am also saddened to hear that resources probably prevented some of the reinforcing of some of our Embassies. We cannot shortchange the securing of the homeland, and as we go forward in dealing with sequestration, I beg that we understand that we must protect those who serve us overseas, including the United States military.

But I call for peace. I know the American people realize that no religion should be denigrated, but we cannot accept and will not accept and will stand against any violence against the American people or those who serve us in a civilian manner with honor and dignity.

To their families, I offer my deepest sympathy and a commitment that we will stand against terrorism.

A LONG-TERM DEBT SOLUTION TO THE COUNTRY'S FISCAL CLIFF

(Ms. JENKINS asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. JENKINS. This week, Moody's threatened to downgrade the U.S.' credit rating if Washington fails yet again to deal with the long-term debt problem. This is not news. We were downgraded last year, but instead of acting to fix the problem, this administration racked up a $1 trillion deficit for the fourth year in a row, and now we face a fiscal cliff that could cause another recession.

Enough with the short-term fixes, patches, gimmicks, and tricks. They only make the problem worse. This country needs a comprehensive budget and tax reform. This means a simpler Tax Code that is more fair and efficient, and it means fundamental spending reform that will save Medicare.

We have a rare opportunity to put this country back on the right track to ensure a more prosperous future for our children. Let's take it. It's time to put the American people first.

□ 1210

THE 60TH ANNIVERSARY OF MOUNT CARMEL SCHOOL

(Mr. SABLAN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. SABLAN. Mr. Speaker, I ask you to join me in celebrating the 60th anniversary of Mount Carmel School and its proud record serving students in the Northern Mariana Islands from their elementary through high school years.

Since opening its doors, the school has constantly expanded, adding new facilities, state-of-the-art information technology, and the standards-based curriculum, with accreditation from the Western Association of Schools and Colleges.

Mount Carmel School has cultivated some of our islands' most notable business, government, and community leaders. As elected officials, doctors, attorneys, car mechanics, cooks, carpenters, teachers, and business executives, the school's alumni stand as inspiring pillars in our community. From humble beginnings in 1952, the school has evolved into an institution whose name is synonymous with educational excellence in our community.

I offer my congratulations to all of those who have been affiliated with Mount Carmel School over these past 60 years: teachers, staff, students, alumni, and parents. I have every confidence that the next 60 years will be marked by the same level of accomplishment.

Go, Knights.

NO MORE SOLYNDRAS ACT

(Mr. BOUSTANY asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. BOUSTANY. Mr. Speaker, I rise today in support of the No More Solyndras Act. It ensures that taxpayers are never left on the hook for hundreds of millions of dollars for any future President's risky bets. This legislation phases out the Department of Energy's flawed loan guarantee program. It seeks to stop future debacles like the recent $535 million loan guarantee for the California solar panel manufacturer called Solyndra.

This administration refuses to promote legitimate and safe domestic energy resources by issuing moratoriums in the Gulf of Mexico and needlessly delaying very important projects like the Keystone pipeline. Instead, it chooses to roll the dice on unproven technologies that result in bankruptcies with hundreds of millions of wasted taxpayer dollars. That's not a way to move forward.

In south Louisiana, we know when it comes to energy production, domestic resources are waiting to be tapped safely, environmentally sound. Whether it's oil or natural gas or any other source, we must harness the resources of our land to create jobs here at home and to make sure that hardworking families aren't forced to feel the pain at the pump.

LET'S GET BACK TO WORK

(Mr. CICILLINE asked and was given permission to address the House for 1 minute.)

Mr. CICILLINE. Mr. Speaker, I rise today to speak about the responsibility that this institution has to the American people to finish the work they sent us here to do.

Partisan gridlock may make 2012 one of the Congress' least productive years in decades. That's why this institution has seen some of the lowest public approval ratings in history.

The American people expect better from their elected officials. They know that Members of Congress should be acting like adults and working with Members on the other side of the aisle to get things done. Each of us should remember the people we serve: the seniors who worked for years to secure a successful retirement, the students who took out loans to help pay for college, the middle class families who are concerned about their long-term economic security.

Rather than meeting for only 8 days this month, as Republicans propose, let's remain here, pass the American Jobs Act that the President proposed over a year ago, put aside partisanship, roll up our sleeves, and get back to work for the people we serve.

IN TRIBUTE TO AMBASSADOR CHRIS STEVENS

(Mr. DANIEL E. LUNGREN of California asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. DANIEL E. LUNGREN of California. Mr. Speaker, it is with a heavy heart that all Americans reflect upon the tragic loss of life in the American consulate in Benghazi. When one of our own pays the ultimate sacrifice in the service of our Nation, we're all touched by the loss. All four of these brave Americans will forever be remembered in the annals of American history as heroes.

In particular, I would like to take the time to pay tribute to Ambassador Chris Stevens, a native of northern California. Although I did not know the Ambassador personally, his father, Senior Assistant Attorney General Jan Stevens, ably served our State in the California Department of Justice while I served as attorney general of my home State.

This tragedy hits close to home with all of the employees of the California Department of Justice who work with Jan Stevens. I wish to join with them, with friends and family members of the Stevens, and with all Americans in offering our thoughts and prayers as we mourn the loss of Ambassador Chris Stevens.

COACH JIM CALHOUN

(Mr. COURTNEY asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. COURTNEY. Mr. Speaker, in a few short hours, a giant in the State of Connecticut, Coach Jim Calhoun, is going to announce his retirement after 26 years of leading the men's basketball program.

When he arrived 26 years ago, it was an also-ran program. Today, he has secured three national championships, he was inducted into the Hall of Fame, and the NBA is populated with graduates like Ray Allen, Emeka Okafor, and Kemba Walker, who are all-stars and really make the State of Connecticut so proud.

He also has performed hundreds of acts of personal kindness, small and large, Coaches vs. Cancer, the Yukon Cardiology Health Center program, and his latest passion, which is to help families with the scourge of autism.

Coach Calhoun is not just a great coach, he's a really good person. To him and his wife, Pat, on behalf of the people of the Second Congressional District, I want to extend my congratulations for his great leadership and career, and wish them all the success in the world as they begin a new chapter in their wonderful lives.

NATIONAL CHILDHOOD OBESITY AWARENESS MONTH

(Ms. FUDGE asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. FUDGE. Mr. Speaker, I rise today on behalf of America's 12½ million obese youth. I stand on behalf of America's 3.7 million low-income children between the ages of 2 and 4 who are either overweight or obese. Millions of our children depend on school meals and the generosity of food pantries for most of their nutrients. These are the children I've come to speak to you about today.

September is National Childhood Obesity Awareness Month, the month when Americans are reminded of the plight facing our children if we don't ensure they receive better meals and build an environment that promotes physical activity.

It is time to get involved in the well-being of every child in America. So join me. Make a difference in a child's life during National Childhood Obesity Awareness Month and all year long.

MEDICARE CLASS WARFARE

(Mr. AL GREEN of Texas asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. AL GREEN of Texas. Mr. Speaker, I refuse to participate in what I call ''Medicare class warfare.'' I refuse to pit those who are 55 and above against those who are under 55.

Mr. Speaker, I believe that those of us who are above 55 ought to want the same health care for those who are under 55 that we're going to receive.

I refuse to participate in Medicare class warfare. I believe that those who are at the dawn of life should know that they will have the same health care benefits that we will have at the twilight of life.

Again, I refuse to participate in Medicare class warfare.

WATERBURY, VERMONT, THE BEST BEER TOWN IN NEW ENGLAND

(Mr. WELCH asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WELCH. Mr. Speaker, today I rise to bring attention to the town of Waterbury, Vermont.

There was an article in The Boston Globe identifying it as the best beer town in New England. In this small town, beer pilgrims from across the country flock to appreciate and enjoy the finest beer in America. It's the quality of the beer that's brewed that's really revered. Let me just tell you about a few.

It's the home to the Alchemist cannery, which makes an IPA called Heady Topper. I can tell you personally that it's really good. The Beer Advocate, the bible of the beer community, rates it as the third best in the world. The beer is sold in cans, but it sells out early, so get there early.

It's not hard to see why it's so popular when it's the third best in the world, but there are others there. Waterbury is the home to a number of restaurants: the Prohibition Pig, the Blackback Pub, and Arvad's, to name a few with great beers.

Vermont is coming back from Hurricane Irene. In Waterbury, it's one beer at a time.

□ 1220

CONGRESS IS DYSFUNCTIONAL

(Mr. MILLER of North Carolina asked and was given permission to address the House for 1 minute.)

Mr. MILLER of North Carolina. Mr. Speaker, many of my Democratic colleagues today have criticized Republicans in Congress as do-nothings, but my own view is a little different.

It is certainly true that the Nation has real needs. Economists tell us that legislation held hostage here would create millions of jobs and put many Americans back to work. Instead of addressing those needs, Congress is just dysfunctional.

But considering what Republicans in Congress want to do, it is a great blessing that Congress has done next to nothing. They have repeatedly voted to repeal health care reform—33 times according to one count—as if denying health insurance for preexisting conditions would put Americans back to work.

They have voted to gut or eliminate the funding for Wall Street reform—putting us right back where we were 5 years ago with the Bush administration policies that created the painful downturn that we are now in—and at least 55 times voted to restrict women's reproductive rights and access to affordable health care, which included repeated attempts to eliminate funding for Planned Parenthood. It is hard to see that as a job creation agenda.

Mr. Speaker, better to do nothing than what they want to do.

CUT TAXES FOR AVERAGE AMERICANS AND REBUILD OUR INFRASTRUCTURE

(Mr. JOHNSON of Georgia asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. JOHNSON of Georgia. Mr. Speaker, I am ready to cut taxes for Americans, average Americans, the middle class and rebuild our infrastructure.

Unfortunately, after wasting the last 2 years and after spending the entire month of August at home without making even the slightest effort to fix the Nation's economy, the Tea Party Republicans plan to adjourn next week for another 6 weeks after being here for 8 days. Instead of going on vacation, why don't we fix the Nation's business? Why don't we handle the business that we have to take care of?

We act like petulant children around here. These Tea Party Republicans stick to their obstinate demand to cut taxes for millionaires and turn Medicare into a voucher program. We can't afford to continue to handle our business like this.

Ladies and gentlemen, it's time for Congress to get to work. I think we should stay here and not leave for another 6 weeks, leaving the Nation's business hanging.

PROVIDING FOR CONSIDERATION OF H.R. 6213, NO MORE SOLYNDRAS ACT, AND PROVIDING FOR CONSIDERATION OF MOTIONS TO SUSPEND THE RULES

Mr. SESSIONS. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 779 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 779

Resolved, That at any time after the adoption of this resolution the Speaker may, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 6213) to limit further taxpayer exposure from the loan guarantee program established under title XVII of the Energy Policy Act of 2005. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed 90 minutes equally divided and controlled by the chair and ranking minority member of the Committee on Energy and Commerce. After general debate the bill shall be considered for amendment under the five-minute rule. In lieu of the amendment in the nature of a substitute recommended by the Committee on Energy and Commerce now printed in the bill, it shall be in order to consider as an original bill for the purpose of amendment under the five-minute rule an amendment in the nature of a substitute consisting of the text of Rules Committee Print 112-31. That amendment in the nature of a substitute shall be considered as read. All points of order against that amendment in the nature of a substitute are waived. No amendment to that amendment in the nature of a substitute shall be in order except those printed in the report of the Committee on Rules accompanying this resolution. Each such amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question in the House or in the Committee of the Whole. All points of order against such amendments are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. Any Member may demand a separate vote in the House on any amendment adopted in the Committee of the Whole to the bill or to the amendment in the nature of a substitute made in order as original text. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions.

SEC. 2. It shall be in order at any time on the legislative day of September 20, 2012, or September 21, 2012, for the Speaker to entertain motions that the House suspend the rules, as though under clause 1 of rule XV.

The SPEAKER pro tempore. The gentleman from Texas is recognized for 1 hour.

Mr. SESSIONS. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentleman, my friend from Massachusetts (Mr. MCGOVERN), pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. SESSIONS. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. SESSIONS. Mr. Speaker, House Resolution 779 provides for a structured rule for consideration of H.R. 6213. This rule provides for the discussion and opportunities for Members of the minority and the majority to participate in this debate.

I rise today in support of this rule and the underlying bill. The underlying legislation ensures that all American taxpayers will never again be forced to pay hundreds of millions of dollars because of this administration's politically motivated risky bets.

H.R. 6213 draws on the lessons learned from the failed Department of Energy Loan Guarantee Program, which invested $535 million into a solar energy company named Solyndra. Unfortunately, Solyndra went bankrupt, leaving hardworking Americans with a check for over half a billion dollars.

Solyndra has become synonymous with the Obama administration's reckless spending programs that have done nothing to create the jobs our country so desperately needs, nor those that had been promised by the President of the United States and the Democratic Party. Despite warnings that the company was unsustainable and would surely fail, the administration was blinded by their political agenda and committed over half a billion dollars in taxpayer dollars to a privately held company.

In fact, during a 2011 restructuring of the loan, the administration placed private investors ahead of taxpayers when it came to reimbursement in the event of bankruptcy. Given these practices, it's no wonder that our current President has created budget deficits in excess of $1 trillion each year he has served as President.

In addition to ensuring that the Federal Government does not throw taxpayer dollars after the investments, H.R. 6213 also highlights the need of the Federal Government to stop propping up failed companies which cannot support themselves in the open market. The Federal Government should not guarantee hundreds of millions of dollars in taxpayer-backed loans to companies that do not have a business model that supports sufficient private investment. The administration should not pretend to be a venture capitalist with taxpayers' money.

In testimony before the Rules Committee yesterday, Congressman ED WHITFIELD, chairman of the Energy and Commerce Subcommittee on Energy

and Power, testified that the DOE loan guarantee programs spent $15 billion, but only created 1,175 jobs.

□ 1230

That means that each job created cost taxpayers $12.8 million. These statistics demonstrate what House Republicans have been saying for years—this country cannot tax and spend its way to prosperity. Instead, we must encourage the free enterprise system by preventing over-regulation and promoting pro-growth policies, including tax policies that do not push jobs overseas, that create a better free enterprise system, that create not just jobs but also careers for Americans. And they should be designed to incentivize private investment, which is known, Mr. Speaker, as the free enterprise system.

Ultimately, the No More Solyndras Act puts an end to an ineffective government program, protects taxpayers from financing the administration's wish list of projects, and establishes necessary oversight to hold executive branch officials accountable for their actions.

I encourage my colleagues to vote ''yes'' on the rule and ''yes'' on the underlying bill, and I reserve the balance of my time.

Mr. MCGOVERN. I want to thank the gentleman from Texas, my friend Mr. SESSIONS, for yielding me the customary 30 minutes, and I yield myself such time as I may consume.

(Mr. MCGOVERN asked and was given permission to revise and extend his remarks.)

Mr. MCGOVERN. Mr. Speaker, I rise in opposition to this structured rule. Yes, Mr. Speaker, the Republicans have brought up yet another closed process in what was supposed to be a more open and democratic House. After 2 years of broken promises, we shouldn't be surprised by this action. And we shouldn't be surprised that the Republicans are bringing up this overtly political bill just 55 days before election. H.R. 6213, the No More Solyndras Act, is just political theater. It's a bill that's going nowhere. We know the Senate won't consider it. The only thing it does is give the Republicans another talking point to use on the campaign trail.

My friends on the other side of the aisle are trying to make it seem like there was a big conspiracy to inappropriately give money to Solyndra, a company that was trying to manufacture solar panels here in the United States. They claim that there was a political effort to award Solyndra funds in an improper, and possibly illegal, way. And in doing so, they are attacking a Department of Energy loan guarantee program that allows private investors to invest billions of dollars in order to create thousands of jobs here in America.

The Republican response to a company that went bankrupt after receiving Federal loans—a company that was manufacturing alternative-energy products here in the United States—was to begin investigations that turned into political witch hunts. And those investigations appear to have led us to this point by consideration of this bill that purports to end the loan guarantee program altogether. Of course, the reality is that those investigations have really been used as ammunition on the campaign trail.

But what the Republicans claim they're doing today and what they're really doing are two different things. They say that they're eliminating the loan guarantee program, getting rid of it completely. But what this bill really does is bar the Department of Energy from considering new applications submitted after December 31, 2011. That leaves $34 billion in the pipeline for applications for the Department of Energy loan guarantee program that were submitted before December 31, 2011. And there's no deadline on when these applications must be approved.

Not only that, but most of the available loan guarantee funding is for fossil fuel and nuclear projects. That's right, Republicans are claiming to end this loan guarantee program but are still allowing it to spend tens of billions of dollars. And they are still picking and choosing the winners and losers by putting an artificial end date on the application submissions. The result will be billions more in loan guarantees for projects dealing with nuclear and fossil fuels like coal and oil and much less for wind, solar, and hydro projects.

America should be about innovation, about creating new things. We're the country that put a man on the Moon. We're the country that created the car, airplane, and iPad. We should be fostering, not stifling, innovation, especially in energy like wind, solar, and hydro. Yet the Republican leadership is showing, once again, that political victory is more important than American success; that winning this election is more important than fostering American manufacturing and leadership in areas like alternative energy.

Mr. Speaker, this is just another example of how this Republican leadership likes to talk the talk but not walk the walk. In this case, they say they don't like the loan guarantee program, but they want their own pet industries to be able to use it. It's another example of how their rhetoric doesn't match up with their actions.

But we've seen this hypocrisy for years now. This is the same Republican Party that opposed the stimulus plan, but requested and touted funding from that same stimulus plan. In fact, Republican Members in this House have requested loan guarantees for businesses they support, including those in the nuclear industry; but they oppose this program for alternative-energy businesses that want to manufacture in America. And this is the flip-flopping that kind of makes my head spin.

It's clear that my Republican friends don't let the facts get in the way of their political argument. It's a fact that this loan guarantee program is a success. For example, this loan program has ultimately supported 40 projects that help keep 60,000 people employed during this economic downturn alone. It's also a fact that the Solyndra bankruptcy represented a fraction of the entire loan guarantee program. In fact, loans and loan guarantee programs only cost taxpayers 94 cents for every $100 invested. That's a pretty good return on investment.

Mr. Speaker, I agree with the Republicans that Congress needs a robust oversight program that examines the executive branch and ensures that they are not overstepping their bounds. It's ironic that these Republicans are conducting a vigorous oversight plan of President Obama, but simply looked the other way when it came to the oversight of the Bush administration.

But there's oversight and then there's overreach. Republicans looked into this issue, they held hearings, and conducted an investigation. And despite their claims of political manipulation, there is simply no evidence of such manipulation. Don't take my word for it. Bloomberg Business Week reported that there was ''no evidence of wrongdoing.'' And The Washington Post reported: ''The records do not establish that anyone pressured the Energy Department to approve the Solyndra loan to benefit political contractors.''

Mr. Speaker, we all know what this is. This is an election year stunt, political theater that is more appropriate for the campaign trail rather than the House of Representatives. It's a bill that supporters claim will do something that it simply will not do. And this closed process is, once again, breaking Speaker BOEHNER's promise of a more open House.

This is a bad bill, it's a bad rule, and I urge my colleagues to vote ''no'' on the bill and the underlying bill.

Mr. Speaker, I just would like to close with one observation. We have just returned from a recess. If the rumor mill is true, we will only be in session for 8 days before the election. I'm hearing that we're going to probably give away the first week in October. And given the fact that we're here such a short time, one would think that this would be an opportunity to come together and to pass legislation that both sides can agree on—legislation that might, in fact, help stimulate economic growth; might, in fact, help put people back to work; might address some of the real challenges that the American people are facing. We don't have to agree on everything to agree on something. And that something we agree on, we ought to able to come together and pass it.

Yet what we're doing during these 8 days is debating hot-button issues and bills that are going nowhere. This is a hot-button issue. They will be debating another hot-button issue later. Hot button, hot button, hot button. Never any legislation that has any real meaning in the lives of the American people.

Bring the President's jobs bill to the floor. Let us have that debate. Let us be able to have a vote on whether or not we ought to invest in our economy and invest in our people. My Republican friends are squandering this opportunity. I think one thing is clear, and I think it's evident by the low esteem that the Congress is now held in by the American people: the American people want us to work on their behalf. And I understand the lust in this place for political power and winning elections and winning elections. I used to think that good government was good politics.

But what we are doing here for these 8 days, with the exception of passing a continuing resolution, which is kicking the can down the road on a whole bunch of other budgetary issues, what we're doing these 8 days is nothing meaningful, nothing that matters to anybody. And I just think that that's a sad commentary on the leadership of this House.

With that, I reserve the balance of my time.

□ 1240

Mr. SESSIONS. Mr. Speaker, I yield myself such time as I may consume.

I know that our Democrat friends think it's absolutely nothing to lose half a billion dollars that a government made a decision on. But what they really don't like is when we bring that up, when we say part of the job of being a Member of Congress as a policy body is to look at the mistakes that were made. We certainly have looked at mistakes that Republicans and Democrats, administrations and others, have made. But to ignore an issue would be a mistake.

This is not just Solyndra. It was the process of a political agenda that did not, could not pass the smell test and even make it out in the real world. It was a political agenda that was so wanted by an administration that they gave lots of money, not just half a billion here, but to other companies.

You know, today's legislation certainly highlights Solyndra as a failure in the DOE, Department of Energy's loan program, but it should be mentioned that there were other companies, not just Solyndra.

It's really a political process that said, Let's go do this thing whether it makes sense or not, whether it makes money. The companies went bankrupt.

Part of this comes from you've got a lot of people in the administration that wouldn't even recognize a business plan if they saw one. They do recognize taxpayer dollars, plenty of those that were made available by this excessive spending. But accountability is now what Democrats don't like when we're saying let's look at what happened, what materialized.

So Solyndra is not just a one-time or one-company failure of an otherwise what would be called a successful program. It's not. This simply became the poster child, and we believe that we shouldn't repeat this failure. We believe we should effectively talk about it on the floor of the House of Representatives. We should take some bit of time. We're not here beating anybody up. You never even heard me mention names behind the administration or who made these decisions or who pushed it. We're not trying to do that.

We're simply trying to say that we believe half a billion dollars, and a review of that, should become available in the light of day, to not just Members of Congress; but we should vote on it and say we drew a conclusion with some issues.

So we believe any objective evaluation of the facts reveals some issues of Federal dollars of a plan that should be stopped, has stopped, but that we should at least tell what the results were. That's what we're doing here today.

I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, you know what, one of the things that Speaker BOEHNER promised was a more open House and this would be a place where we could actually deliberate and various points of view would be heard.

I want to now yield 3 minutes to the gentleman from Texas (Mr. GREEN), the ranking member of the Energy and Commerce Subcommittee on Environment and Economy whose amendment was not made in order, so he will not have an opportunity to debate it here on the floor.

Mr. GENE GREEN of Texas. Thank you for the time.

Mr. Speaker, Members, the original law that this bill amends today was actually created, the loan program, was in the Energy Policy Act of 2005, passed by a Republican Congress and signed by a Republican President. The law does need to have minor reforms, but this bill goes way too far.

The majority had the opportunity in our committee of Energy and Commerce to work in a bipartisan fashion to actually fix the problems with the loan guarantee program. I offered an amendment to the Rules Committee that had been supported by Republicans in our committee, but not a majority of the Republicans, to fix the problems with the program and find middle ground that would be suitable to both Democrats and Republicans alike.

But the majority chose a different path. They decided to forge ahead with a partisan messaging bill that stands no chance of becoming law even when it passes the House today. So despite the name, this bill will not prevent another Solyndra. It's the worst of election-year politics.

We had a chance to work together, something the American people want to see; and one of the things we were sent here to do was fix a broken program. Instead, we're playing more politics one more time.

The bill is bad policy. It doesn't do what conservatives want to do, so the Heritage Foundation opposes it. It doesn't do what the liberals want to do. It eliminates a well-balanced, bipartisan agreement struck years ago, so it isn't what moderates want to do. It's legislating without accountability.

The majority doesn't care that it's bad policy because it will never become law.

Instead, I urge my colleagues to find the bipartisanship. Let's take this opportunity to fix the problem that we see and craft a bipartisan bill. This is a chance to show our country that Congress can do things.

One of the reasons Congress has a 10 percent approval rating is we're not legislating. We're messaging. This is probably the worst example of it. We're talking past each other. This is a chance to show our country that Congress can do things. Instead, this partisan circus helps confirm the belief that Congress is broken, and it's working against the interest of the American people.

I urge a ''no'' vote on the rule and support a bipartisan effort to really make sure there are no more Solyndras.

Mr. SESSIONS. Mr. Speaker, I yield myself such time as I may consume.

I would like to go to the report. Let's see what the report out of the Energy and Commerce Committee said. I am quoting what would be on page 5:

> However, the Bush administration did not approve any loan guarantees under the program. This was due partly to the fact that the DOE office implementing the program was slow in being set up, and that program funding only became available in 2007. But even after the Bush DOE had the program up and running, it ran into difficulties finding applicants whose energy projects are meritorious.

In other words, they could not find somebody who is asking for the loan who could present a good business plan of not just profit and loss, but where it would fit in the marketplace to even be considered successful. This is the reason why the Bush administration and Republicans did not do that because they could see failure in the marketplace written all over it even as early as 2007.

I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, let me again repeat for my colleagues what Bloomberg Business Week reported, and I quote again: ''There was no evidence of any wrongdoing.'' The Washington Post reported: ''The records do not establish that anyone pressured the Energy Department to approve the Solyndra loan to benefit political contributors.

I mean, you know, it's clear what's going on here.

Again, bringing this bill, a bill that's going nowhere—we heard about the bridges to nowhere; this is the legislation to nowhere—I think is bad enough, but then bringing it up under a closed process.

The gentleman from Massachusetts, the distinguished ranking member on the Committee on Natural Resources,

had three amendments. All three of them were denied by the Rules Committee, including a Buy America provision. What a radical idea that we should make it in America and we should buy it in America. That radical amendment was denied by the Rules Committee. It's hard to believe.

With that, I yield 4 minutes to the gentleman from Massachusetts (Mr. MARKEY).

Mr. MARKEY. Mr. Speaker, in the history of this whole program, it was started for the nuclear industry. Pete Domenici, 2005. Why? Because there hadn't been a new nuclear power plant built in 30 years out in the free market so they needed the Federal Government to come in and prop it up on crutches. That's the only way it would work.

So when President Obama took over, he said, Well, maybe we should do something for solar as well. Of course, the coal industry, the oil industry, the nuclear industry, they recoiled in fear that there would actually be competition in the marketplace. When one solar company got in trouble, the Republicans pounced on solar. They pounced on wind. They pounced. That's why, by the way, the Republicans are going to allow the wind tax breaks to expire this year, but they're going to keep all of the oil tax breaks on the books.

So here we are today and they have something called the No More Solyndras Act. Ah. Except for the $88 billion that they're going to grandfather in in terms of the application date that they have selected.

□ 1250

So, who qualifies for that? Well, $76.5 billion would be the nuclear industry, $11.9 billion would be the coal industry. Ah, I get it now. It's not the No More Solyndras Act; it's the ''Only $88.4 Billion More for Nuclear and Coal No More Solyndras Act of 2012.'' It's just the same kind of tilted playing field that the Republicans have always had. Nuclear, oil, coal, great. Wind and solar finally getting going—12,000 new megawatts of wind installed in the United States this year; 3,200 megawatts of solar installed in the United States this year—that puts the fear of the marketplace in the coal and the nuclear and the oil industry brain. So that's why we're out here with this ''kill solar and save nuclear and coal'' with this incredible amount of money.

Now, as the gentleman from Massachusetts said, I had an amendment that I requested the Rules Committee put in place, and that is that if your company last year lost $540 million or more, you could not qualify for a loan guarantee. Remember, Solyndra lost $538 million, so I picked $540 million. And if your company is on the verge of being delisted by the New York Stock Exchange and has already reached junk bond status with S&P's and Moody's, come on, you cannot qualify. I mean, come on. We're not having Federal taxpayer money go to companies on the verge of being delisted and that have already reached junk bond status.

They all voted ''no'' in the committee. When I had my amendment put up before the Rules Committee, they rejected it. Now, why did they reject it? Because the United States Enrichment Corporation lost $540 million last year; it's on the verge of being delisted on the stock exchange; it's reached junk bond status; but yet nuclear will qualify. So I said, well, we can't invest in that kind of a company.

As the gentleman from Massachusetts said, the same thing is true for buying American. If we're going to have these loan guarantees, let's at least make sure that they are American jobs. They wouldn't put that amendment in order as well.

This whole issue here is basically one of this favored oil-above-all agenda, not all of the above—not when you say tax breaks for oil companies continue and wind companies die; not when you have loan guarantees that continue on for nuclear and coal, but not for wind, not for solar. It's just so transparent. It's just arithmetic, ladies and gentlemen. Solyndra loses 538, the Enrichment Corporation—nuclear—loses 540. The arithmetic is pretty simple: They both should not qualify. But not these guys, no, no.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. MCGOVERN. I yield the gentleman an additional 1 minute.

Mr. MARKEY. Not these guys, oh, no—no, no, no, because it's not marketplace. There's no rhyme or reason to it until you start to think about what has always been their agenda. That has always been the fossil fuel industry agenda.

I would abolish the entire program. You want to abolish this program? Abolish it. Put the vote out here, I'll vote for it. Get rid of the loan guarantee program, then let solar and wind and nuclear and coal and oil all compete in the free marketplace for private capital investment. You want to know what that would do? It would put the fear of Adam Smith in the heart of the nuclear industry because they would receive no private investment, none. It takes the Federal Government providing a crutch. So it then requires the Republican Party to take away the loan guarantees for the competition. Well, they're giving the loan guarantees, Federal taxpayer loan guarantees, to industries that otherwise could not get any money in the private sector. The United States Enrichment Corporation can't get any private sector investment. Nuclear power industry, this loan guarantee program—two for $8 billion for a program that is already $1 billion over the two Vogtle plants in Georgia. The whole thing is bad arithmetic for the American taxpayer.

Mr. SESSIONS. Mr. Speaker, we're now well into the political extremism that we see many times that exhibits itself not just here on the floor of the House of Representatives but really all across this country—those people that want gasoline to rise substantially because they really don't like gasoline. They really don't like the underpinning of how this country uses the energy that we have. Whether it's natural gas, they attack natural gas. If it's nuclear—which is a non-emitting source of pollution—they attack that. This crowd that really doesn't like free enterprise and what I believe is the heartland of this country, manufacturing, which has really taken off as a result of effective use of natural resources in this country through natural gas and the availability of nuclear power and the availability of oil, which fuels our cars to where we can use the resources that were given us effectively.

What they want to do is they want to tax these industries higher so that prices go up, so that consumers have to pay a lot more money. What they forget is that the cars that we fuel, the electricity that we need is the cleanest and the best here in America. The way these are produced are American jobs. The way they're consumed is about American jobs. The way that consumers pay for them and pay for these advantages is American jobs. And here we're looking at how half a billion dollars worth of taxpayer money was put into an effort that not only not ever got off the ground, it quickly went into bankruptcy because it did not meet the marketplace challenges.

I'm not opposed to competition; I think we stand for competition. But don't push a narrow environmentalist policy, go to the White House, go to the Department of Energy and try and fund these on taxpayer dollars only to see that, whoops, we made a mistake, and then act like, whoops, we don't want anybody to know.

All we're trying to suggest today is that Republicans do believe in American jobs. We do believe in American industry. We do believe in the energy industry. We believe in effective use of resources because we're trying to keep jobs here. Their narrow, political, environmentalist policy is what will diminish American jobs, it will diminish our ability to effectively use the resources that we have in this country, and it will put us in a circumstance—for instance, with the Keystone pipeline—where we could use energy from a friendly neighbor to fuel American needs at a good price and avoid what may happen if we get into a circumstance overseas in the Middle East where we would be held hostage, held hostage by those that have the energy that we need, when we could be having it not only close to home, but in our own home, energy made in America.

So, Republicans, look, all we're trying to say is a half a billion dollars that was wasted, somebody ought to recognize that we shouldn't be doing that. That's what Republicans are doing here today.

I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, let me just respond by saying when the Republicans talk about jobs, I don't know whether to laugh or cry. Let me go back to what we were talking about earlier with Mr. MARKEY.

Mr. MARKEY had an amendment—let me read it. It would prevent guarantees from being granted unless the applicant certifies that at least 75 percent of materials and components required for construction, manufacturing, or operations are produced in the United States of America. Any facility at which construction, manufacturing, or operations are to be carried out must also be located in the United States of America. This amendment is not even allowed to be debated on this House floor. The Republicans in the Rules Committee said: Absolutely not. Absolutely not.

So, if we're going to be talking about jobs, I mean, maybe we're here about different jobs. I'm talking about jobs in America; maybe my friends are talking about creating more jobs overseas. We need more jobs here. And if you're serious about that, why wouldn't you allow that amendment to be brought up and debated on the House floor?

With that, Mr. Speaker, I yield 3 minutes to the gentleman from Ohio (Mr. KUCINICH).

Mr. KUCINICH. This bill ought to be renamed the ''No More Solyndras, But More Money for Nuclear White Elephants Loan Program.''

My friends on the other side of the aisle like to talk about the free enterprise system, but I'm sure that you're aware that Wall Street won't invest in nuclear power. The nukes can't get money from the free enterprise system, so they want government to bail them out.

This bill claims to reduce wasteful spending on energy projects, but it's actually an attack on renewable energy. The real effect is laid bare by the effective date of the bill, which grandfathers the worst of the worst of the worst energy boondoggles.

□ 1300

Specifically, it allows nuclear power loan guarantee projects to proceed, even though some create exposure for the Federal Government of about 15 times the exposure created by Solyndra—and these programs, these nuclear loan programs, are more likely to fail.

One of the biggest loan guarantees for nuclear, not even necessary. This is not my assessment. It's the assessment of Kevin Marsh, the President of South Carolina Electric & Gas Company, which is attempting to build a new nuclear power plant. He said, on a call to analysts and investors:

We're confident in our ability to finance this project without a loan guarantee. It could be in the $8 to $10 billion range.

So the conflict here is, generally, Wall Street isn't investing. But you get a group of investors that think they can, but are they leveraging against the hope of government involvement? I don't know.

Truth is nuclear power plants are simply not viable without massive government subsidies, which eclipse subsidies for renewable energies by orders of magnitude.

The Congressional Budget Office has had this to say about nuclear loan guarantees:

The CBO considers the risk of default on such loan guarantees to be very high—well above 50 percent.

Dale Klein, former Chairman of the Nuclear Regulatory Commission, cautioned that nuclear plants will not move off the blackboard and into construction, not as long as natural gas remains as cheap and plentiful as it is today.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. MCGOVERN. I yield the gentleman an additional 1 minute.

Mr. KUCINICH. An article opposing the bill, by Autumn Hanna and Henry Sokolski in the National Review Online, states:

The total number of projects this bill grandfathers isn't publicly available. Par for the course with this highly secretive program. We know it's a lot. Our research points to nearly 100 projects that claim to have applied.

If this was really about being fiscally responsible with taxpayers' money, we'd be targeting the projects that have the highest probability of failing and carry the highest price tag and preclude them. But the bill does the opposite.

What we should be doing is continuing our efforts to invest in renewables, understanding some of them may not work, but that's the future. It's cleaner. It's safety. It protects the globe. That's where the jobs of tomorrow are.

We have to stop China from eating our lunch on these alternative energy projects. We have to reclaim this for America. Bring the jobs here. Create the jobs here.

The money's there. Don't go giving it to nuclear. Nuclear is dead in the water unless government tries to resurrect it by giving away billions of dollars in taxpayers' money that will never be recovered.

Mr. SESSIONS. Mr. Speaker, I think it's very obvious that what Republicans are trying to do is to keep American jobs. We're trying to utilize the free enterprise system, the natural resources that we have in America—clean natural gas, the abundance of other power that we have, including coal, including nuclear—opportunities to keep America strong and keep jobs here, and that's why we're really opposed to the loan guarantees and the things which might take on additional debt and risk by the government. But, more importantly, if it can't be funded within the free enterprise system, then it can't stand on its own.

Mr. Speaker, at this time I'd like to yield 1 minute to the gentleman from California (Mr. MCCLINTOCK), one of my colleagues.

Mr. MCCLINTOCK. I thank the gentleman for yielding.

Mr. Speaker, this bill ends the title XVII loan guarantees that produced Solyndra and so many other alternate energy scams that cost Americans hundreds of millions of dollars while the politically connected perpetrators of these scams walked away wealthy men and women. But this measure does still put taxpayers on the hook to loan out billions of dollars more to at least 50 additional shady, alternate energy schemes that had been submitted under the same title prior to January 1. So there will be more Solyndras under this bill.

I'd offered an amendment to pull the plug on the applications, but I was told, Don't bother; the Rules Committee won't allow the amendment to be brought to the floor.

So I support the bill, but I do agree with my friend from Ohio that the title, ''No More Solyndras Act,'' is a bit misleading. I would suggest an alternative, the ''50 More Solyndras and Then We'll Stop Wasting Your Money, Really, We Promise, Act.''

Mr. MCGOVERN. Mr. Speaker, I want to thank the gentleman who just spoke for pointing out how bad this rule is. He's on the other side of the aisle, and even though I disagree with the amendment he had, he ought to have been able to offer it to the floor. I hope that he will join with us in opposing this rule because I don't think his leadership will get the message if he rewards bad behavior by giving them a vote.

At this point, I would like to yield 3 minutes to the gentleman from Pennsylvania (Mr. FATTAH).

Mr. FATTAH. I thank the gentleman.

I'm opposed to the rule, I'm opposed to the bill, but I'm really opposed to the thinking behind this.

This is like a Back to the Future or the Flat Earth Society or something. I don't know how we would have a space program if one failure stopped the whole show. I don't know how—we would never. I mean, Michael Jordan was kicked off his high school basketball team, but he eventually learned how to put the ball in the basket.

The notion that, as the greatest Nation on Earth, we're going to cede to others alternative energy programs, that somehow we're unwilling to go through what is necessary to be successful in this field, doesn't make any sense.

Now, President Bush signed this into law. It's a great program. In fact, James Rogers, who's the CEO of Duke Energy, said just a few days ago that, in terms of energy, America is so much better off because of this administration's all-of-the-above strategy. For the first time in 30 years, we've got nuclear plants that have been licensed. We have natural gas. We've got oil. We have renewables.

I've supported these loan guarantee programs. And like any loan program,

you might have some loans that perform and some loans that don't perform. The vast majority of these loans perform very, very well, and America is better off for it.

I was at the Israeli Embassy last night speaking to a group of scientists. They've been so far ahead of us on renewable energy it's a shame. We have seen what Germany's done on wind.

This party that is in the majority here, that wants to do away with the wind energy credit, I don't know what the notion here is that somehow we, as a country, are not prepared to pay the price for progress. We have not won every battle in wars that we've been in, but we've won the war.

And so this a company in which things, the numbers didn't add up for us. It's like one of our rockets or satellites not performing properly. But the head of NASA says that we're not in a business in which we cannot take risks. We have to take risks. And when it comes to energy, our country has to be prepared to take risks.

Now, it was Albert Einstein who said we cannot use the same level of thinking to solve problems that we used to create these problems.

This country and our status as the leading Nation in the world requires us to take risks. And if this majority is so unimpressed with the ability of Americans and Americans to innovate and to compete in the renewable sector like others around the world who are also getting help from their governments, that is unfortunate. But, for me, I believe that America has to take risks. We're going to lose, we're going to win, but at the end of the day, as we learn and go forward, it will allow us to continue to be number one.

Mr. SESSIONS. Mr. Speaker, at this time, I have no additional speakers and reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, I yield myself the balance of my time.

We ought to have a debate in this Chamber on energy, on an energy policy, whether or not we should invest in innovation, whether or not we should invest in renewable, green, clean energy. I believe we should.

My friends on the other side believe not just in the status quo, they believe in going backwards. They believe in investing, not in new technologies, but in the old technologies.

□ 1310

But we should have that debate here.

This bill really is not that debate, because this bill is a political stunt. It is not anything real. It is not anything that is going anywhere. This is just politics as usual, and that's what makes this so frustrating.

Mr. Speaker, I'm going to end where I began in my opening, which is to say we're only here for a few days. I mean, I've never been part of a Congress that has worked less than this Congress and that has produced less than this Congress. Today's Roll Call has a great piece: ''Congress on Pace to be the Least Productive.'' Is that what my friends on the other side of the aisle are aspiring to—to be known as the least productive Congress?

We're back for these few days. We ought to do something meaningful for the American people. We ought to be debating a jobs bill. We ought to bring the President's jobs bill to the floor. If you don't want to vote for it, vote against it, but at least we'd be doing something of substance. We ought to be extending tax breaks for middle-income Americans. Why would you leave town without making sure that middle-income Americans continue to get their tax breaks?

We ought to have a responsible farm bill passed and signed into law. As we're running out of time, we're told that's probably not going to happen at all. We ought to be talking about legislation that will actually strengthen this country, that will help improve the quality of education and give more access to education for our young people.

We are doing none of those things. We are squandering this opportunity. With the exception of passing a continuing resolution, which is tantamount to kicking the can down the road, these 8 days that we have been back in session have been useless. They have just been about politics. That is why the American people are so sick and tired of this Congress. That is why the approval rating is so low. They want us to come to Washington to legislate and deliberate on issues that will make a positive difference in their lives. Instead, what we have is the same old, same old—politics as usual. There has to be some common ground between Republicans and Democrats on energy. Let's find that common ground and move forward. Enough with the political stunts. It is time to start doing the people's business, and this is not it.

So I urge my colleagues, Mr. Speaker, to vote against this, again, restrictive rule that denies a multitude of amendments, including an amendment that would make sure the jobs that we are talking about are in America. Buy American. What is so wrong with even debating that? We're not even given that opportunity. So vote against this restrictive rule, and vote against the underlying bill.

I yield back the balance of my time.

Mr. SESSIONS. I yield myself the balance of my time.

Mr. Speaker, obviously, we can see that today's legislation answers the question. It ends the debate about Solyndra. Taxpayers know the committee did its work. It held a Rules Committee hearing. Half a billion dollars was lost by Solyndra. We're not down here jumping up and down. We haven't even raised our voices. We simply said that we think that a better process could have taken place, and they're arguing we never should have even had this on the floor—that we don't need any feedback, that everybody already knows. Here is what they know.

We lost half a billion dollars by one company. At least two others had the same outcome where they did not produce anything. They went belly up—bankrupt. We just think that the administration—government—is really not in the business and shouldn't be in the business—despite what we've heard—of pushing the envelope. Let's go out and invest whether it makes sense or not.

Losing money is still a bad proposition. Republicans think it's a bad proposition. There have been lots of arguments today that the government did the right thing, that this administration did the right thing. I think that the facts of the case say that half a billion dollars in a process that didn't work—we need to hear the feedback, and we need to close the books on it. The rule is here to do exactly that—to place on the floor the opportunity for us to debate now the facts of the case, which is exactly what will happen.

I yield back the balance of my time, and I move the previous question on the resolution.

The previous question was ordered.

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. MCGOVERN. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

PROVIDING FOR CONSIDERATION OF HOUSE JOINT RESOLUTION 117, CONTINUING APPROPRIATIONS RESOLUTION, 2013; AND PROVIDING FOR CONSIDERATION OF H.R. 6365, NATIONAL SECURITY AND JOB PROTECTION ACT

Mr. WOODALL. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 778 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 778

Resolved, That upon the adoption of this resolution it shall be in order to consider in the House the joint resolution (H.J. Res. 117) making continuing appropriations for fiscal year 2013, and for other purposes. All points of order against consideration of the joint resolution are waived. The joint resolution shall be considered as read. All points of order against provisions in the joint resolution are waived. The previous question shall be considered as ordered on the joint resolution and on any amendment thereto to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations; and (2) one motion to recommit.

SEC. 2. Upon the adoption of this resolution it shall be in order to consider in the House the bill (H.R. 6365) to amend the Balanced Budget and Emergency Deficit Control Act of 1985 to replace the sequester established by the Budget Control Act of 2011. All points

of order against consideration of the bill are waived. The bill shall be considered as read. All points of order against provisions in the bill are waived. The previous question shall be considered as ordered on the bill and on any amendment thereto to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on the Budget; and (2) one motion to recommit.

The SPEAKER pro tempore. The gentleman from Georgia is recognized for 1 hour.

Mr. WOODALL. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to my good friend from Florida (Mr. HASTINGS), pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. WOODALL. I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Georgia?

There was no objection.

Mr. WOODALL. House Resolution 778 is a closed rule for the consideration of two bills, H.R. 6365, which is the National Security and Job Protection Act, and H.J. Res. 117, which is the Continuing Appropriations Resolution for FY13.

Mr. Speaker, I'm a freshman on the Rules Committee. It's a good committee to be on. I enjoy it. I get to work with learned Members like my friend from Florida, who is across the aisle, but it falls to me to handle continuing resolution bills. As you'll remember, when we showed up at the beginning of 2011, there was a lot of unfinished business from 2010, and we went right into continuing resolution act to continuing resolution act to continuing resolution act—sometimes 2 and 3 weeks at a time. That's no way to run a government. It's no way to have a Congress.

My friend from Florida and I disagree on a great deal of policy, but we believe that a deliberative process yields better results than the ''right here, right now, hurry up and wait'' kind of mentality that this body so often adopts. So what we've done here today with this bill, with this H.J. Res. 117, is to say we understand that the appropriations responsibilities of this Congress have not yet been completed. The Constitution gives this Congress—not just this body, but this Congress—the responsibility of providing appropriations for this Nation.

Now, as the Speaker knows full well, this House has set about getting its business done. We divided those appropriations bills up across a number of bills. The Commerce-Justice-Science bill passed this House with a bipartisan majority. It went to the Senate, and the Senate had no floor action whatsoever. Mr. Speaker, you know that the Energy and Water bill passed this House with a bipartisan majority. It went to the Senate, and the Senate did nothing with it whatsoever. You know that the Homeland Security bill passed this body—again, with a bipartisan majority. It went to the Senate, and the Senate took no action. I can go on and on and on. There is the leg branch bill, the military construction bill, the defense bill, on and on and on.

So here we are. We don't have control over the Senate. We only have control over what goes on here in this body, and I've got to tell you that I'm proud as a freshman that we've set about getting our business done. With one deliberative bill at a time and one open rule on appropriations bills at a time, we allowed every Member of this body to come to the floor to offer their amendments and to have their voices heard in order to produce the very best work product that we could produce. I might add, Mr. Speaker, that we did that at a funding level even lower than what the American taxpayer asked of us in the Budget Control Act. I'm very proud of that work.

□ 1320

But in the absence of the Senate taking action, Mr. Speaker, we have to move on. The American people are going to have a referendum in this country. They're going to have a referendum on what fiscal responsibility means.

We're going to have an election in November, and new House Members are going to come and new Senate Members are going to come. The administration may change. We're going to have that opportunity for all of us as citizens to speak out in November and choose a path for 2013. But our business today, Mr. Speaker, is making sure the doors stay open moving into 2013.

As my colleagues know, in the absence of action, Mr. Speaker, government offices begin to close on October 1 of this year, one by one—national parks, veterans services, Social Security services, Medicare services. That's not the kind of governing responsibility that we all swore an oath to uphold.

So I'm pleased to be here today, Mr. Speaker, to bring this rule to the floor to say, yes, we have gotten our work done in this House, but we've been stymied by the leadership in the Senate that has not scheduled votes on these bills, but we will not allow the American taxpayer and American citizens to pay the price of inaction by the United States Senate. We will make sure that government services continue with this great referendum that this great Republic will have in November. It's a 6-month continuing resolution, Mr. Speaker, and it will solve that need.

This rule also, Mr. Speaker, provides for consideration of H.R. 6365. It's called the National Security and Job Protection Act, but what it is is a sequester replacement bill. Mr. Speaker, I don't know that I've ever been more disgusted in my 18 months in this body.

We came together here in this House in a bipartisan fashion. We passed the Budget Control Act, which gave six House Members and six Senate Members—six Republicans, six Democrats—12 Members of this Congress, esteemed Members of this Congress, talented, bright, conscientious, American-loving Members of this Congress, an opportunity to look at our entire budget. They didn't just look at the $3.8 trillion that we'd spend this year, Mr. Speaker, not just that $3.8 trillion, but next year, and the year after that, and the year after that, well into the three-generational window. It was hundreds of trillions of dollars these 12 men and women had an opportunity to look at to find bipartisan agreement.

About 4 months they worked on that project, Mr. Speaker, and you know how that story turns out. After 4 months of labor by 12 of the brightest, most conscientious Members of this body—six Republicans, six Democrats, six House Members, six Senate Members—looking at hundreds of trillions of dollars in tax expenditures in social programs, in taxes and tax cuts, they agreed on absolutely nothing. Not one dollar out of hundreds of trillions did they come together on. That was a tremendous disappointment.

As you know, Mr. Speaker, in order to try to bring agreement to that body, we passed legislation that implemented what they called the sequester, to say, if against all odds this joint select committee were to fail—candidly, it was not on my radar screen that they would. This was a solemn responsibility. These were talented Members who were assigned to it. But if they were to fail, we would implement automatic spending cuts that would achieve the kind of budget reductions that every American knows that we need. The problem in this town is spending, and the sequester said we will not fail on this opportunity to address it.

Well, that sequester goes into effect in January of next year, and hardest hit will be the United States military. Again, this was a device that was put into place not because folks thought it was the best policy in the room, but to be there as the hammer to say surely this 12-member committee, this joint select committee will come to the agreement that will bring us back from this fiscal cliff. They didn't. Now this sequester hangs over the head of not just the United States military, but over Medicare, over social programs.

Again, Mr. Speaker, I'm just so proud to be a freshman Member of this House. This House said back in the spring that is an unacceptable outcome. It was never intended to be the outcome. No one ever desired that it be the outcome, and we can change that outcome.

So we passed a sequester replacement right here in this House that went into mandatory spending programs, which is where the real problem is in the budget, as we all know, and said let's replace the sequester that may harm

defense—cuts that are going to deal with our military, that are going to put our national security at risk, and let's replace those with spending reductions that make sense.

Again, we passed that in the House. The Senate has taken no action whatsoever.

I don't mean to suggest, Mr. Speaker, that they've taken no action on our bill. They most certainly have not. They're under no obligation to. It's the right thing to do, but they're under no obligation. They are under an obligation to do something about it. They are under an obligation to stand up and listen to the same constituents that my colleague from Florida and I listen to to say there must be action. We must prevent this tremendous threat to our readiness, to our troops, and to our troops' families.

This bill, introduced in this body by Colonel ALLEN WEST of Florida, gives us an opportunity to do just that in the bipartisan, open-minded way that I think has characterized the 18 months that I've served in this House because of the leadership of folks like you, Mr. Speaker. It doesn't say you have to use the House-passed bill already.

Was it a good bill? Absolutely. Was it the right answer? I believe that it is.

But what it says is use the House-passed bill or use something like it. If you can find a better plan, if the Senate, in its wisdom, can find a better plan, that's going to work, too. It's not our way or the highway. It's that we know that there's a right way and a wrong way to deal with our budget challenges, and we want to do it the right way.

Mr. Speaker, I rise in strong support of this rule. I rise in strong support of the two underlying provisions, as well. I look forward to the debate on that this afternoon. We're going to be able to debate these individually, which I believe is the right way to handle questions of this magnitude and this importance.

With that, I reserve the balance of my time.

Mr. HASTINGS of Florida. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I thank my good friend from my neighboring State of Georgia, whom I consider to be one of the most conscientious, hardworking individuals in the Congress, and I appreciate the fact that he's 18 months here in the Congress. He and I know that he understands this institution considerably, having worked here for a number of years, and I'm grateful the process allows and he has allowed that I receive the traditional 30 minutes.

Mr. Speaker, this rule provides, as has been said, for consideration of two bills. To identify them again, H.J. Res. 117 is the Continuing Appropriations Resolution, and H. Res. 6365 is the National Security and Job Protection Act.

When my colleague began his remarks, he said the magic words, ''This is a closed rule.'' When I was, as he, 18 months in the House in 1992 and I would be on radio, people were talking about how awful it was that the Democrats had so many closed rules. The Democrats lost the election that following year in 1994, and one of the leading reasons was closed rules. Yet we find ourselves on something as important as the financial circumstances of this country coming to the floor at the 11th hour with a closed rule, and, in fact, not having many more days that we are scheduled to be here, but having absolutely no reason why we could not be here at any point in time between now and the time that our financial circumstances would begin to be, as they are, much worse. Maybe the Republicans should have added a third entitled resolution. I would call it the ''No More Getting Anything Done in This Congress Act,'' because that is the message of this particular package.

This continuing resolution is merely a reminder that my friends in the majority were unable to complete work on the regular appropriations bills.

□ 1330

Instead of devoting congressional time to tackling the needs of essential government programs, Republicans have spent the summer trying to repeal the health care law, giving away benefits to the oil and gas industry, and chipping away repeatedly at women's rights.

Now, my colleague is correct in many respects to point out that the other body presents us with challenges, but it is not as if the other body has not done something. Let me tell you one of the measures that I have a continuing interest in because of my constituency, and that is that the Senate has passed a farm bill for a 5-year extension.

What my colleagues or leadership on the Republican side will not do is put that farm bill here on the floor even though we are faced in this country with a residual from one of the worst droughts that America has ever experienced. Even though food prices for all of the people in this country are continuously rising, here we are with this time that the chair of the Agriculture Committee and the ranking member begging the leadership, cannot find time for it to be on this floor. Instead of devoting our time to tackling the needs of essential government programs, we decide that we're going to attack women's rights.

Now, suddenly, you seem to have awakened to the looming, described, fiscal cliff. It's kind of good that you've noticed; but rather than address this challenge head on, the Republicans are pushing a bill that doesn't do anything. The sequester replacement does not actually prevent the sequester with a prudent mix, and every panel that has looked at this says that we have to have a prudent mix of spending cuts and revenue increases. What the Republicans simply do is kick the can down the road, which is no surprise.

I said in an earlier Rules meeting, and it was during the Olympics, that if kicking the can down the road were an Olympic sport, then Congress and the Republican majority would win gold, bronze, silver, and tin. This poor can doesn't have much more space to be kicked on, and I can tell you it places the burden on someone else to deal with this in the future. And this is what my Republican colleagues would call fiscal responsibility?

We got into this mess because of the massive deficits the Republicans piled on this country. Two wars in the Middle East not paid for, huge tax cuts for the wealthiest Americans—for those among us that are in a high-paying position—and huge, unpaid prescription drug benefits are all things that Republican Members in this House voted for despite the huge costs that would be imposed.

In fact, just 61 bills have been signed into law this year, the fewest in more than 60 years. In all of 2011, only 90 bills were signed into law. When Democrats controlled both Chambers in 2010, 258 bills were signed into law.

Now, I don't want to sound like I'm the only person who is making this observation that is being made. Let me cite two people, especially here inside the Beltway, that have made this observation, and that are generally respected as nonpartisan and accepted as experts by Republicans and Democrats.

We on this side are not the only ones who have noticed the lack of productivity that I just identified with the 61 bills. Norman Ornstein and Thomas Mann wrote in a Washington Post column, the two gentlemen, and I am quoting them:

> We have been studying Washington politics and Congress for more than 40 years, and never have we seen them this dysfunctional. In our past writings, we have criticized both parties when we believed it was warranted. Today, however, we have no choice but to acknowledge that the core of the problem lies with the Republican Party.

That's from two particularly nonpartisan observers that everybody around here recognizes as experts. Now we are asked to support the Romney-Ryan vision of America, which ignores any responsibility for today's economic difficulties and instead demands that those who have the least in this great country should sacrifice the most. While Republicans last year were fighting tooth and nail to default on our debt obligations and crash the economy, millions of Americans were fighting to keep their jobs and millions lost them.

Millions of Americans were fighting to pay off their mortgages, and millions could not pay them. Millions of Americans were seeking access to quality health care, and they could not afford it. Millions of children of parents who wanted them to go to college are finding themselves without the capacity to get a decent education largely for the reasons that I have suggested.

But under the Romney-Ryan vision those priorities should take a back seat

to increase defense spending, and yet give more tax cuts for the wealthiest among us in our society. When it comes to Medicare and Medicaid, student loans and public safety, the Republicans are quick to dismiss billions of dollars in essential funding with a wave of their hand and the crocodile tears of deficit reduction. But when the defense contractors stand to lose just $1, Republicans suddenly find their fighting spirit and cry about a weakening America.

It's a shame, Mr. Speaker, that Republicans can't shake off their do-nothing indolence to fight as hard for all Americans as they do for the richest.

We have a long list of programs, tax cuts, and activities set to expire at the end of this year; but rather than confront those challenges head on, Republicans are wasting our time with do-nothing bills. I suppose that when you have absolutely no ideas to offer besides tax cuts for those that are better off among our society, you may as well campaign on a platform of ''we have no ideas or even a plan to offer.'' But the American people need and deserve much more.

Mr. Speaker, I reject the Republican notion that a do-nothing Congress can help grow our economy, create more jobs, and address the many challenges facing this Nation from crumbling infrastructure to the impossibly high cost of education; and I also reject the Romney-Ryan vision that the only solution, at least that they have offered to these challenges, is tax cuts that help the rich and increase military spending.

My Republican colleagues paint a very pessimistic vision, Mr. Speaker, of a country where it appears to them that we have given up on trying to better everyone's lives and instead use the public's resources to enrich those who have already made it.

But I believe differently. We can afford to invest in our future. We can afford to create jobs. We can afford to make the choices now that will reap benefits for future generations—right now.

I reserve the balance of my time.

□ 1340

Mr. WOODALL. Mr. Speaker, I yield myself such time as I may consume, before I yield to my freshman colleague from Pennsylvania, to say to my friend from Florida, I don't think you heard the word ''Democrat'' come out of my mouth during my presentation except to talk about those things on which we cooperated together. There are absolutely challenges in this Chamber, but the challenges I'm talking about are challenges with the United States Senate.

Democrats and Republicans in this body came together to pass 7 of the 12 appropriations bills this cycle. We began back in April. Far from being an 11th-hour solution, we began, as the Constitution requires us to begin, one piece of legislation at a time in the most open process this body can implement, Mr. Speaker, where every Member of this body gets to offer any amendment that they desire. Seven appropriations bills we've moved through this body, Mr. Speaker. And then it became apparent, as the Senate has moved not one of 12 bills, that that process was going to be fruitless—fruitless.

Again, is that what the American people want from us? Absolutely not. Are we doing what the American people deserve in this body? Absolutely we are. In my 18 months, I have not found it to be a Republican-Democratic problem. I've found it to be a problem of ideas.

I said to my friend from Florida, I know that he believes in his heart every single word that he has just enunciated. He speaks for inspiration, Mr. Speaker. I have the great pleasure of sitting behind him on the dais in the Rules Committee, so it's always his words that inspire me before it's my turn to take the microphone.

My constituents back home, they say, ROB, what have you learned in 18 months with a voting card? I said, What I have learned is it's not theater on the other side of the aisle. Folks aren't taking to the microphone for their 15 seconds of fame on television. They're taking to the microphone with heartfelt beliefs that they know in their heart to be a reflection of their constituents back home.

And so as we hear two different presentations about what it is we're doing today—a presentation that suggests it's an 11th-hour, last-minute process versus that presentation that says we've done it all right in the openness of day, and here, 4 weeks before the deadline approaches us, we are going to take action to make sure that uncertainty does not further slow this economy.

I'm told, Mr. Speaker, that the fewer days Congress is in session, the higher the stock market goes because at least nothing bad happens here. We're the problem, Mr. Speaker. Government is not the solution. Government is too often the problem.

The last Congress that passed as few bills as this Congress has passed, it was the 104th Congress, when Republicans took control of this House for the first time in over 60 years, because they were elected then not to expand the size and scope of government but to improve the size and scope of government, to reform those processes.

What my friend from Florida says about 2005, 2006, unfunded priority after unfunded priority, I'd love to tell him he's wrong, but he's absolutely right. He's absolutely right. The American taxpayer knew it, and Republicans in this Chamber paid the price for it in the very next election. That's the ace in the hole for America, Mr. Speaker, the American taxpayer. They're paying attention to what happens here.

My colleague may believe that we're on the wrong track. I'll tell you, in 18 months, I've never been more proud for what this institution has done. We're going to find out when the American taxpayer speaks out in that referendum November 6.

With that, Mr. Speaker, there are 87 new freshmen in this freshman class and two more added. I yield 2 minutes to a freshman colleague from Pennsylvania (Mr. MARINO).

Mr. MARINO. Mr. Speaker, I rise today regarding the Continuing Appropriations Resolution.

This week's violent ambush at the United States Embassy in Cairo and the brutal attacks against U.S. diplomats in Benghazi serve as a blunt reminder that countries in the Middle East have been increasingly unstable and anti-American. The brutal attacks also emphasize the fact that the United States cannot continue to use taxpayer dollars to bankroll countries, with no conditions. We should immediately suspend all funding for those countries that refuse to meet strict conditions and fail to take adequate measures to prevent the loss of American lives.

Egypt has been one of the five top countries receiving the most U.S. aid over the past decade, and President Obama said he doesn't think we would consider Egypt an ally. Certain countries continue to serve as a safe haven for those who wish to cause harm to Americans and tear down our fundamental principles of freedom and liberty. Such actions merit repercussions, not a continued free flow of American tax dollars.

When our Nation has a debt of more than $16 trillion and people in my district in Pennsylvania are struggling to find jobs to support their families, it is past time that we reconsider funding to people that wish harm on the United States. It is time to end the practice of appeasement and take a staunch position regarding Libya, Egypt, and others in order to ensure a more calculated, tactful approach.

Mr. HASTINGS of Florida. Mr. Speaker, before yielding to my good friend and colleague, Mr. MCGOVERN, I would just urge my colleague from Pennsylvania to know that all of us are mindful, and rightfully should be concerned, about what's transpired in the Middle East. But he cites to one set of finances, and I would urge that he look at how and why the United States is involved in a compact with the Egypt military for the moneys that are distributed there, and not base it on what is happening today but look at what has happened throughout the years to assist in stabilizing that area. It didn't just happen overnight. It happened as a result of a serious compact in peace negotiations.

I am very pleased to yield 3 minutes to my good friend, the gentleman from Massachusetts (Mr. MCGOVERN).

Mr. MCGOVERN. I want to thank my colleague for the time, and I rise in very strong opposition to this rule and to the underlying legislation.

Mr. Speaker, if I could create a rule that would best sum up the Republican

leadership of this House over the past 2 years, this would be it, because this rule represents everything we have seen over the length of this Congress. It's a closed rule that stifles debate, and it's a rule that makes in order partisan, meaningless legislation that will do nothing—absolutely nothing—to address the real issues facing the American people.

I voted against the sequester because it was a lousy idea and a terrible way to run a government.

But let's be clear: This bill does not stop the sequester. It simply kicks the can down the road once again and prohibits any effort to address our fiscal situation that raises a single dime of revenue. The Republican approach is not fair, it is not balanced, and it stands no chance of becoming law.

Meanwhile, back in the real world, the American people are wondering why Congress isn't focused on their concerns. Where is the comprehensive jobs legislation, like the Make it In America plan? Nowhere to be found. Where is the middle class tax cut bill that passed the Senate? Not on this House floor. Where is the bipartisan farm bill and drought relief bill that passed the Senate, or the Violence Against Women Act or postal reform? Not here on this floor. Where is the big, bipartisan, balanced plan to reduce the deficit? Not here. And where—and this one really bugs me, Mr. Speaker—where in the world is a full and fair debate on the war in Afghanistan?

It's absolutely stunning to me that Governor Romney accepted the nomination of his party and asked the American people for their votes to be Commander in Chief without even mentioning the longest war in U.S. history, a war that continues to do this and continues to claim the lives of American servicemen and -women, a war for which we are borrowing tens of billions of dollars every month.

Apparently, the Republican leadership of this House would like to ignore these big issues and instead focus on meaningless sound bites for their 30-second political commercials. It is no wonder that the public has the lowest regard for Congress in history. I guess the Republican plan is to do next to nothing and to get out of town as quickly as possible—even though we just got back from a 5-week recess—and hope that the American people don't notice we were even here.

It's a sad day for the people's House, Mr. Speaker. And let me remind my colleagues, Mr. Speaker, this is the people's House. It is not the House of Big Oil, it is not the House of Big Banks, Big Business, or special interest super PACs. This is the people's House, and I hope the people take it back.

I urge my colleagues to reject this rule.

□ 1350

Mr. WOODALL. Mr. Speaker, I yield myself such time as I may consume.

I'd just like to remind my colleague from Massachusetts how we ended up here; and, again, we ended up in a way I think that we can all be proud of.

Take ourselves back to April of this year. Again, this is the 2013 funding bill we're talking about. We sit here in September of 2012, we're talking about funding 2013 spending. We began this process back in April on the floor of this House, bill after bill after bill passing in a bipartisan way.

The Military Construction, Veterans' Affairs bill, Mr. Speaker. What could be more important and what could be more bipartisan? Passed this House 407–12. We went through that bill, Mr. Speaker. We went to every single Member of this Chamber. Not just 435, Mr. Speaker. We went to every delegate as well and said do you have a voice that needs to be heard on this floor on this issue and gave every Member that opportunity.

At the end of that, Mr. Speaker, which was just a free-for-all of democracy right here—it was our Republic at its best—this House came together, 407–12, to pass that bill. Mr. Speaker, 226 Republicans, most of our number, 181 Democrats, most of their number, passed that bill—407–12 for our military and our veterans. That bill didn't see the light of day on the Senate side, Mr. Speaker.

Our failure to pass this continuing resolution today sees those dollars go to zero. Far from being an abdication of responsibility, this is the height of taking responsibility. Abdication of responsibility has already happened. I can't fix it. I can't change it. We did our business here in this House. But we are being held hostage. And by ''we,'' I mean we, the citizens of this country. I mean ''we,'' the voters of this country. Those with the priorities of this land, we are being held hostage by a Senate that is finding other priorities, priorities other than military construction and our veterans.

Mr. Speaker, it doesn't end there with Military Construction. It goes on. It goes through Leg Branch appropriations, Homeland Security appropriations, Energy and Water appropriations, Transportation and Housing and Urban Development appropriations.

How about Transportation and Housing and Urban Development, Mr. Speaker? I mean, when you listen to some of the voices on this floor, there's a reason, there's a benefit to being a Southerner and talking slow. It gives your blood pressure time to come down just a little bit before the words begin to come out of your mouth, because Transportation, including mass transit, Housing and Urban Development, those programs for the neediest among us, passed this House 261–163 in a huge bipartisan majority; 182 Republicans, 79 Democrats came together to say let's focus on the priorities of our constituents back home.

Transportation and Housing and Urban Development. Let's move that bill through this body. Again, Mr. Speaker, in the most open process this institution can imagine where every single Member has a chance to be heard, where every single Member can offer their amendments right here in the well.

There are no voices that are being quieted here. We all represent American citizens back home. It's their voices that get shut out.

Do we have a closed rule today on this continuing resolution? We do.

I think back, Mr. Speaker, I know you do, too, to H.R. 1, back in the spring of 2011. It's the only continuing resolution I've ever known of that came under an open rule, and boy did we have a show of democracy here.

It began on a Tuesday, Mr. Speaker. Congress was supposed to adjourn by Thursday afternoon; but by early in the morning on Thursday, it was clear we were nowhere near done. As a freshman, I was a little cynical about this process. I had a suspicion the leadership was going to close that process down because Members had planes to catch and events to go to, and after all, all it was was a continuing appropriations bill.

You know what this leadership said, Mr. Speaker? They said not on our watch. We're going to go into Thursday night. And I don't mean Thursday night at 9. I mean Thursday night past midnight. We're going to go all night long. We're going to go all night long into Friday. We're going to go Friday to noon and Friday through dinner and all night long on Friday night. We finished at 5 a.m. on Saturday morning.

Mr. Speaker, I jumped on the first flight out of National. Flew home. Did a town hall meeting no later than 3 hours after we adjourned that Saturday morning. I was on fire because this House gave every single Member a chance to offer every single amendment that their constituents would have them do. That was extraordinary.

We can't do that every day. We can't go marathon sessions 5 days, day and night. I'm young and vigorous, Mr. Speaker, but I've got to tell you, some folks may not be able to handle it. I'm with you, Mr. HASTINGS, if you're ready to go those days and nights. I'll do them with you.

But we did that, those 12 appropriations bills. We did that in this body. Not all in one package, but one at the time, at the time, and the Senate said no.

Our choice here today is do we close the doors at these agencies? Do we close the doors on these social services? Do we go through another one of those government shutdown scenarios that benefit absolutely no one, or do we do the right thing which is observe our budget caps, continue to reduce spending? That's right, Mr. Speaker, you know as well as I do on these appropriations bills, on this discretionary spending we spent less in 2011 than they spent in 2010. We spent less in 2012 than we spent in 2011. And if we pass this bill, we'll spend less in 2013 than we spent in 2012.

It hasn't happened since before World War II. Three years in a row, Mr.

Speaker, of this body coming together and telling the American people we can do better with less. That's what this bill is about today, Mr. Speaker.

Again, strong supporter of this rule. Strong supporter of the two underlying measures.

I reserve the balance of my time.

Mr. HASTINGS of Florida. Mr. Speaker, I yield myself such time as I may consume.

My good friend from Georgia speaks out of both sides of his mouth. On the one hand, you're saying that we began this process open and this democracy flourished, and you were so passionate about it until when we left at 5 a.m. in the morning you rushed home and you were on fire.

I'm curious to know when we finish up here, ostensibly tomorrow afternoon, what is it that would cause us not to be able to be here and allow, as you put it, every Member to have his or her say for their constituents on this measure?

But, no, we're here on a closed rule.

I understand that the government has to continue and that's why we are doing a continuing resolution, but I also know we could have done an omnibus bill, and I also know that my colleague and others were the ones that caused this country to come to the brink and our credit rating to be assaulted; and you are going to tell me that we can't stay here tomorrow, that we can't come back here after the holidays or tomorrow and stay here if need be to get this done?

But, no, we're doing it now before April so that when we come back, we will be faced with the same crisis, and the only thing that's going to change is the faces and the places that the people come from, and all I'm saying is let's do it now. Let's do those things that you were talking about. And if it requires 5 a.m. in the morning, let's do it at 5 a.m. in the morning. I'm 76 and I'm still staying up. I don't know about you.

Mr. WOODALL. Will the gentleman yield?

Mr. HASTINGS of Florida. I yield to my colleague from Georgia.

Mr. WOODALL. I'm grateful to my friend for yielding.

I'd say to the gentleman, I think we would be here until 5 a.m. yet again. But our experience, as was our experience on H.R. 1, is time and time again we do the people's work here and the Senate says, no. I have had no indication from the Senate that they will accept anything in that body except this continuing resolution.

Mr. HASTINGS of Florida. Reclaiming my time, first I ask my colleague. You know and I know you have farm interests in Georgia the same as I do, not necessarily the same, but we have farm interests in Georgia and farm interests in Florida. The Senate did pass the farm bill.

Can my colleague tell me why we don't have the farm bill on the floor during all of this period of time? We could at least do that in light of the disaster relief that took place.

Mr. WOODALL. If the gentleman will yield?

Mr. HASTINGS of Florida. I yield to my friend.

Mr. WOODALL. I'd say that I regret I'm not high enough up the chain to know all the strategic decisions, but I will tell you that the bill that came out of the Senate is a sad 2-year bill that provides absolutely no certainty to any of the farmers in my district. It spends more and provides less certainty.

□ 1400

The farmers in my district say, ROB, we need a farm bill, but why can't you do it right? And I know my colleague would agree with me.

Mr. HASTINGS of Florida. Where did you get the number 2-year rather than 5-year bill from? Because the 5-year proposal is what the chair of the Agriculture Committee, your and my colleague, Mr. LUCAS, is seeking to offer. But I don't want to get us caught in the weeds.

Let me go ahead and yield 2 minutes to my friend, the distinguished gentleman from Ohio (Mr. KUCINICH).

Mr. KUCINICH. Could I inquire of the Chair how much time remains?

The SPEAKER pro tempore. There are 10 minutes remaining for the gentleman from Florida.

Mr. KUCINICH. I thank Mr. HASTINGS for the opportunity to rise in opposition to the rule for the CR.

The continuing resolution contains $99.9 billion in the Overseas Contingency Operation funds to continue the war in Afghanistan and to fund other operations in the so-called ''war on terror.'' This is on top of over $1.3 trillion we've already spent in waging war abroad.

This is a war that costs U.S. taxpayers $2 billion a week. It's a war that, according to the Congressional Research Service, has cost the lives of nearly 2,000 U.S. servicemembers and has resulted in another 17,519 being injured, yet the war seems to have fallen from headlines and our national conscience, and this is wrong.

We cannot afford another $100 billion on a war that will never result in stability in Afghanistan or the region. This war against Afghanistan boomeranged against the Soviet Union; it's boomeranging against our country.

When you look at the amount of money that is being spent—not just for the war, but for the United States Pentagon, we're looking at a fiscal '13 budget of $613 billion, spending more money than every other country in the world almost combined for so-called ''defense.''

Now, we have an obligation to defend our country, but we also have an obligation for housing, for health care, for education, for retirement security. If you're concerned about Congress regaining authority under article I, section 8, then we should be voting to end this war right now by striking the money for it. If you're concerned about the debt, then we should be voting to end this war by taking money away from funding and then you could contribute that to resolving the debt. If you're concerned about emboldening radicals in other countries who are following in on the wake of our invasions, then we should be taking the money out of this for more war. If you're concerned about the budget, that it doesn't have enough for jobs and housing and health care and education and energy and the environment, then end the war now, vote against it. If you're concerned about America taking steps to create peace, then we should get this money out of this budget which creates more war.

This is time for us to reclaim our country, which we're losing not just to war, but to a national security state like yesterday when we voted as a House—I voted against it—to empower security agencies to be able to intercept the phone calls of anybody in the United States who makes calls internationally.

We have got to reclaim our Nation. This CR doesn't do it. This is the same old, same old, same old war, national security state, forget the real needs of the American people. I'm going to vote against this rule and I'm going to vote against the underlying bill.

Mr. WOODALL. Mr. Speaker, I'd say to my friend from Florida that I have no further speakers remaining.

Mr. HASTINGS of Florida. I also have no further speakers and I'm prepared to close, and I thank the distinguished gentleman.

I also would like to offer an apology to my colleague. I committed a parliamentary faux pas when I said you speak out of both sides of your mouth. In the heat of the moment, I guess what I was trying to say is you said one thing one way than you said at another point in time, so I offer you my deepest my apologies.

Mr. Speaker, we will soon start another long district work period even though we haven't given the middle class an extension of tax cuts for the next year. If we defeat the previous question, I'm going to offer an amendment to the rule to ensure that the House won't leave town until middle class tax cuts are signed into law. The first step is to give this House a vote on the middle class tax cut, introduced by Mr. LEVIN, which is the same proposal the Senate has already passed and the President is eager to sign.

So, Mr. Speaker, I ask unanimous consent to insert the text of the amendment in the RECORD, along with extraneous material, immediately prior to the vote on the previous question.

The SPEAKER pro tempore (Mr. GARDNER). Is there objection to the request of the gentleman from Florida?

There was no objection.

Mr. HASTINGS of Florida. Mr. Speaker, there is an upside to the Republicans' ''do-nothing'' Congress.

First, it creates a clear contrast between the Republicans and Democrats.

Democrats want to press forward with meaningful ideas to create jobs, improve access to affordable health and education, and invest in the kinds of programs that bring about progress and prosperity for all Americans. I believe that my friends in the majority want to push legislation that either cuts taxes for the wealthiest among us, or increases spending on the military, or does nothing more than pay the bills today—play politics while accomplishing nothing.

This is not about the deficit. The United States doesn't lack the money to prioritize our future. What we do lack is the political willpower and leadership necessary to set gainful priorities.

The Romney-Ryan vision for America is nothing more than a reckless sellout to the ideological extremes of the Republican Party, a party that is utterly dominated at this point in our history by a Tea Party dogma which cares more to preserve tax cuts for the rich than to be about the business of ensuring the well-being of our entire society.

The so-called ''sacrifices'' continually demanded by the Republican majority in order to provide ever more money for foreign wars and tax cuts for the wealthy are shortchanging the future of this Nation. Continuing to move further to the right—or to the left—does not constitute progress. Furthermore, the closed-door negotiations and closed process is truly disheartening and does not reflect the democracy that is supposed to be the hallmark of this institution.

I urge my colleagues to vote ''no'' and defeat the previous question, and I urge a ''no'' vote on the rule.

I yield back the balance of my time.

Mr. WOODALL. Mr. Speaker, I yield myself such time as I may consume.

I appreciate my colleague for his words. A lot of folks, Mr. Speaker, have the burden of working with folks whose motives they question. I have the great benefit of working on the Rules Committee with a team of folks whose motives I absolutely never question because I know folks are operating from their heart and from their constituents' best interest.

Let me say, because we talk so much about productivity down here on this floor, Mr. Speaker, The Washington Times did an article earlier this year on productivity in the House and the Senate. They called it ''the futility index''—the futility of all the efforts in the body. They said the Senate ranked number one of all the years that they've been keeping records; less activity going on in the Senate by a large margin than ever before. Then they came to the House and they said, you know what, it's true the House hasn't passed a lot of bills. As you know, Mr. Speaker, we outlawed all of those silly commemorative bills that were not about the people's business but were about folks and their campaigns. Those no longer come to the floor. We eliminated a whole portion of that that was not about the people's business. What The Washington Times said was this: that we had more time in this House in session than all but 10 Congresses since they began keeping records and that we had more debate in this House, Mr. Speaker, than all but two Congresses on record; more debate, more discussion about those ideas and those priorities that are important to the American people.

Now, I have to tell you, Mr. Speaker, there's not a man or woman in my district that defines success by how many bills the President of the United States will sign; or if they do, they find those things to be inversely proportional. They don't want us to take over any new industries; they don't want us to regulate any new industries; they don't want us to pick any more winners and losers. They want us to stop. And even better than stopping, they want us to roll those things back.

We're having that debate in America, Mr. Speaker: Who are we? Who are we as Americans? Who are we as a people? And what is so wonderful about this country, despite all of our differences there has always been more that unites Americans than that divides us, always. You can't pick up a newspaper today, Mr. Speaker, without them talking about the ideological divide in this country being as stark as it has ever been, but there is still more that unites us than divides us.

I believe, when we come into this election in November, Mr. Speaker, we're going to have the largest voter turnout in American history. I have no idea what they're going to conclude. But I believe in this country, and I believe that if more of us are at the ballot box participating in this Republic—as we are required, duty bound to do—we're going to end up with a better result.

□ 1410

I look at the young faces in this Chamber, Mr. Speaker. I like to think of myself as young, but I'm in my forties. The gentleman from Florida expressed his age, despite his youthful vigor. It's about the young people, Mr. Speaker.

And when the gentleman says America is strong enough that we can handle all of these growing debt challenges, I say to the gentleman, I admire his optimism but I disagree with his conclusion. The numbers I look at tell me, if I take everything from everybody, if I take everyone's house, everyone's car, everyone's bank account, if I nationalize every single company in this country, if I take it at all and put it in a bank account today, I still can't pay the hundreds of trillions of dollars in promises that this Federal Government has made to generations to come.

We don't have a problem in this country, Mr. Speaker, that we're not taxing people enough. Our problem is that we're spending too much.

I serve on the Budget Committee as well as the Rules Committee, and we took that challenge on head-on, head-on, Mr. Speaker. They call some things the third rail of politics. We said, in this House, in a bipartisan way, the third rail of politics is failing to deal with these challenges. Failing to deal with these challenges is the problem; dealing with them is the solution.

This wasn't a solution that everyone agreed with. It was a solution that got the only bipartisan majority in this entire town. And we did it not once, but twice, Mr. Speaker.

This is not a happy day. I usually come to the floor; I talk about how excited I am to be here because we're going to do an open rule and we're going to have the Republic at its best. That's not today.

That day was May 10 on the Commerce-Justice-State appropriations bill, where we had every voice heard. That day was July 19 on the Defense Department bill, where we had every voice heard passing those bills in huge bipartisan fashion. That day was June 6, when we did it with the Energy and Water bill, huge bipartisan majority; and again on June 7 with the Homeland Security bill, and the Legislative Branch bill on June 8; May 31 on Military Construction, on and on and on, Transportation, HUD, June 29.

We've done those things, and the silence on the Senate side is deafening. We could do all those bills again, but this House has already spoken. The people have already spoken. And this continuing resolution gives this body and the American people 6 months for that referendum in November, for every voting-age man and woman in this country to come out and have their voice heard.

We've done all we can do in this body, Mr. Speaker.

Mr. HASTINGS of Florida. Will my colleague yield?

Mr. WOODALL. I would be happy to yield to my friend.

Mr. HASTINGS of Florida. I just want to ask, 6 months from now, when we come back, if you and I are here, will you commit that we would have that debate 6 months from now under an open rule?

Mr. WOODALL. Reclaiming my time, I have had no prouder moment than our debate on H.R. 1—no prouder moment.

Though I will say to the gentleman, as the gentleman knows quite well, it is frustrating that we can't do the business today. We tried.

As the gentleman from Florida knows, we tried all of these appropriation bills. They weren't 6-month bills. They weren't 2-week bills. They were entire FY13 bills, and we did them right. We did them the way they were supposed to be done. Some people won, some people lost, but, in the end, a bipartisan majority came together and passed every single one. That's what

we should be doing here, Mr. Speaker, and we have.

The American people are going to decide in November: Is the problem the House? Is the problem the Senate? Is the problem the executive branch? I have my own suspicions, but I trust the American people more than I trust any other vote that we make in this House, Mr. Speaker.

Again, I rise in strong support of this rule. I rise in strong support of the two underlying bills, the continuing resolution bill and our opportunity job protection sequester replacement bill.

I urge my colleagues to support the rule. I urge my colleagues to support the two underlying bills.

Ms. JACKSON LEE of Texas. Mr. Speaker, I rise in support of H. Res. 778, the Rule providing for consideration of H.J. Res. 117, making further continuing appropriations for the beginning of the 2013 Fiscal Year. This measure will continue to assure funding for all federal government agencies and allow the government to continue its day to day operations through March of 2013.

I am quick to note Mr. Speaker the attempt by the Rules Committee Ranking Member, Ms. SLAUGHTER to amend the rule for H.R. 6365 to make in order and provide the appropriate waivers for amendment #1 offered by the Budget Committee Ranking Member Mr. VAN HOLLEN, which would have replaced the entire sequester for 2013 with savings from specific policies that reflect a much-needed balanced approach to deficit reduction. The entire House should have been allowed to debate Mr. VAN HOLLEN's measure even though I had serious concerns about the substance. Nevertheless, the debate is one that we should have.

I rise in support of making further continuing appropriations for the beginning of the 2013 Fiscal Year. This measure will continue to assure funding for all federal government agencies and allow the government to continue its day to day operations through March 27 of 2013.

I am also rising in support of helping families in Houston cope.

I am rising in support of Texans who need critical Federal Government goods and services.

I rise in support of people who are clinging to their jobs—the working poor.

I rise in support of those on Medicaid who are beholden to the governor of Texas who is in the business of rejecting federal funds and then using them to prop up his budget numbers.

I rise in support of the elderly.

I rise in support of military veterans.

I rise in support of children.

Today, the House will consider H.J. Res. 117, Six-Month Continuing Resolution. This Continuing Resolution will fund the government through March 27, 2013. The Senate is expected to consider the House-passed Continuing Resolution next week.

The Continuing Resolution reflects a bipartisan agreement between Congressional Republicans, Congressional Democrats, and the White House—and will prevent a government shutdown and maintain the programs and services critical to the American people.

The Continuing Resolution (''CR'') ensures a total rate of operations for FY 2013 at $1.047 trillion—the level for FY 2013 discretionary spending that was agreed to as part of the Budget Control Act of 2011 (PL 112–25).

As a starting point, the CR continues funding at the current rate of operations for federal agencies, programs and services. To meet the agreement to ensure the rate of operations at $1.047 trillion, a government-wide, across-the-board increase of 0.6 percent over the base rate is also included.

The CR caps funding for Overseas Contingency Operations (OCO) for FY 2013 at the President's FY 2013 request of $88.5 billion—which is $26.6 billion below the FY 2012 OCO funding level. OCO is not included under the $1.047 trillion cap.

The CR continues funding for the FEMA Disaster Relief Fund at last year's level, with this disaster relief funding also not included under the $1.047 trillion cap.

The CR includes a clean, six-month extension of TANF (Temporary Assistance for Needy Families). Without this extension, cash assistance and work support for working families would stop in FY 2013.

The CR extends the current pay freeze for federal employees, which includes Members of the House of Representatives and Senators, as requested by the President.

The CR also includes various provisions, often needed in a longterm CR, to ensure adequate funding of certain key government operations and services through the six-month period, including provisions allowing additional funding for such things as:

The Veterans Administration to meet an increase in the disability claims workload.

The Interior Department and the Forest Service for wildfire suppression efforts.

The FCC to conduct spectrum auctions.

Nuclear weapons modernization efforts, to ensure the security of our nuclear stockpile.

Sustaining Homeland Security cybersecurity efforts.

I urge my colleagues to pass this Rule and the underlying Continuing Resolution.

The material previously referred to by Mr. HASTINGS of Florida is as follows:

AN AMENDMENT TO H. RES. 778 OFFERED BY MR. HASTINGS OF FLORIDA

At the end of the resolution, add the following new sections:

SEC. 3. Upon completion of consideration of House Resolution 746 the Speaker shall, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 15) to amend the Internal Revenue Code of 1986 to provide tax relief to middle-class families. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Ways and Means. After general debate the bill shall be considered for amendment under the five-minute rule. All points of order against provisions in the bill are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions. If the Committee of the Whole rises and reports that it has come to no resolution on the bill, then on the next legislative day the House shall, immediately after the third daily order of business under clause 1 of rule XIV, resolve into the Committee of the Whole for further consideration of the bill.

SEC. 4. Clause 1(c) of rule XIX shall not apply to the consideration of the bill specified in section 3 of this resolution.

SEC. 5. Immediately upon adoption of this resolution, the House shall proceed to the consideration in the House of the resolution (H. Res. 746) prohibiting the consideration of a concurrent resolution providing for adjournment or adjournment sine die unless a law is enacted to provide for the extension of certain expired or expiring tax provisions that apply to middle-income taxpayers if called up by Representative Slaughter of New York or her designee. All points of order against the resolution and against its consideration are waived.

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(The information contained herein was provided by the Republican Minority on multiple occasions throughout the 110th and 111th Congresses.)

THE VOTE ON THE PREVIOUS QUESTION: WHAT IT REALLY MEANS

This vote, the vote on whether to order the previous question on a special rule, is not merely a procedural vote. A vote against ordering the previous question is a vote against the Republican majority agenda and a vote to allow the opposition, at least for the moment, to offer an alternative plan. It is a vote about what the House should be debating.

Mr. Clarence Cannon's Precedents of the House of Representatives (VI, 308–311), describes the vote on the previous question on the rule as ''a motion to direct or control the consideration of the subject before the House being made by the Member in charge.'' To defeat the previous question is to give the opposition a chance to decide the subject before the House. Cannon cites the Speaker's ruling of January 13, 1920, to the effect that ''the refusal of the House to sustain the demand for the previous question passes the control of the resolution to the opposition'' in order to offer an amendment. On March 15, 1909, a member of the majority party offered a rule resolution. The House defeated the previous question and a member of the opposition rose to a parliamentary inquiry, asking who was entitled to recognition. Speaker Joseph G. Cannon (R–Illinois) said: ''The previous question having been refused, the gentleman from New York, Mr. Fitzgerald, who had asked the gentleman to yield to him for an amendment, is entitled to the first recognition.''

Because the vote today may look bad for the Republican majority they will say ''the vote on the previous question is simply a vote on whether to proceed to an immediate vote on adopting the resolution . . . [and] has no substantive legislative or policy implications whatsoever.'' But that is not what they have always said. Listen to the Republican Leadership Manual on the Legislative Process in the United States House of Representatives, (6th edition, page 135). Here's how the Republicans describe the previous question vote in their own manual: ''Although it is generally not possible to amend the rule because the majority Member controlling the time will not yield for the purpose of offering an amendment, the same result may be achieved by voting down the previous question on the rule . . . When the motion for the previous question is defeated, control of the time passes to the Member who led the opposition to ordering the previous question. That Member, because he then controls the time, may offer an amendment to the rule, or yield for the purpose of amendment.''

In Deschler's Procedure in the U.S. House of Representatives, the subchapter titled ''Amending Special Rules'' states: ''a refusal to order the previous question on such a rule [a special rule reported from the Committee on Rules] opens the resolution to amendment and further debate.'' (Chapter 21, section 21.2) Section 21.3 continues: ''Upon rejection of the motion for the previous question on a resolution reported from the Committee on Rules, control shifts to the Member leading the opposition to the previous question, who may offer a proper amendment or motion and who controls the time for debate thereon.''

Clearly, the vote on the previous question on a rule does have substantive policy implications. It is one of the only available tools for those who oppose the Republican majority's agenda and allows those with alternative views the opportunity to offer an alternative plan.

Mr. WOODALL. I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. HASTINGS of Florida. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 and clause 9 of rule XX, this 15-minute vote on ordering the previous question on House Resolution 778 will be followed by 5-minute votes on adoption of House Resolution 778, if ordered; adoption of House Resolution 779, by the yeas and nays; and the motion to suspend the rules on H.R. 1775.

The vote was taken by electronic device, and there were—yeas 235, nays 178, not voting 16, as follows:

[Roll No. 572]

YEAS—235

Adams
Aderholt
Alexander
Amash
Amodei
Austria
Bachmann
Bachus
Barletta
Bartlett
Barton (TX)
Bass (NH)
Benishek
Biggert
Bilbray
Bilirakis
Bishop (UT)
Black
Blackburn
Bonner
Bono Mack
Boren
Boustany
Brady (TX)
Brooks
Buchanan
Bucshon
Buerkle
Burgess
Burton (IN)
Calvert
Camp
Campbell
Canseco
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman (CO)
Cole
Conaway
Costa
Cravaack
Crawford
Crenshaw
Culberson
Denham
Dent
DesJarlais
Dold
Donnelly (IN)
Dreier
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Emerson
Farenthold
Fincher
Fitzpatrick
Flake
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gallegly
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guinta
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Hayworth
Heck
Hensarling
Herrera Beutler
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (IL)
Johnson (OH)
Johnson, Sam
Jordan
Kelly
King (IA)
Kingston
Kinzinger (IL)
Kline
Labrador
Lamborn
Lance
Landry
Lankford
Latham
LaTourette
Latta
Lewis (CA)
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Lungren, Daniel E.
Mack
Manzullo
Marchant
Marino
Matheson
McCarthy (CA)
McCaul
McClintock
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
Meehan
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mulvaney
Murphy (PA)
Myrick
Neugebauer
Noem
Nugent
Nunes
Nunnelee
Olson
Palazzo
Paul
Paulsen
Pearce
Pence
Petri
Pitts
Platts
Poe (TX)
Pompeo
Posey
Price (GA)
Quayle
Reed
Rehberg
Reichert
Renacci
Ribble
Rigell
Rivera
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross (FL)
Royce
Runyan
Scalise
Schilling
Schmidt
Schock
Scott (SC)
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuler
Shuster
Simpson
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stearns
Stivers
Stutzman
Sullivan
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner (NY)
Turner (OH)
Upton
Walberg
Walden
Walsh (IL)
Webster
West
Westmoreland
Whitfield
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Young (AK)
Young (FL)
Young (IN)

NAYS—178

Ackerman
Altmire
Andrews
Baca
Baldwin
Barber
Barrow
Bass (CA)
Becerra
Berkley
Berman
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Boswell
Brady (PA)
Braley (IA)
Brown (FL)
Butterfield
Capps
Capuano
Carnahan
Carney
Carson (IN)
Castor (FL)
Chandler
Chu
Cicilline
Clarke (MI)
Clarke (NY)
Clay
Clyburn
Cohen
Connolly (VA)
Conyers
Cooper
Costello
Courtney
Critz
Crowley
Cuellar
Cummings
Davis (CA)
Davis (IL)
DeFazio
DeGette
DeLauro
Deutch
Dicks
Dingell
Doggett
Doyle
Edwards
Ellison
Engel
Eshoo
Farr
Fattah
Filner
Frank (MA)
Fudge
Garamendi
Gohmert
Gonzalez
Green, Al
Green, Gene
Grijalva
Gutierrez
Hahn
Hanabusa
Hastings (FL)
Heinrich
Higgins
Himes
Hinchey
Hinojosa
Hirono
Hochul
Holden
Holt
Honda
Hoyer
Israel
Jackson Lee (TX)
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kildee
Kind
Kissell
Kucinich
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis (GA)
Lipinski
Loebsack
Lofgren, Zoe
Lowey
Luján
Lynch
Maloney
Markey
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McNerney
Meeks
Miller (NC)
Miller, George
Moore
Moran
Murphy (CT)
Napolitano
Neal
Olver
Owens
Pallone
Pascrell
Pastor (AZ)
Pelosi
Perlmutter
Peters
Peterson
Pingree (ME)
Polis
Price (NC)
Quigley
Rahall
Rangel
Reyes
Richardson
Richmond
Rothman (NJ)
Roybal-Allard
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell
Sherman
Slaughter
Smith (WA)
Speier
Stark
Sutton
Thompson (MS)
Tierney
Tonko
Tsongas
Van Hollen
Velázquez
Visclosky
Walz (MN)
Wasserman Schultz
Waters
Watt
Waxman
Welch
Wilson (FL)
Woolsey
Yarmuth

NOT VOTING—16

Akin
Berg
Broun (GA)
Cleaver
Diaz-Balart
Herger
Jackson (IL)
King (NY)
Michaud
Nadler
Ross (AR)
Ryan (WI)
Schweikert
Sires
Thompson (CA)
Towns

□ 1436

Messrs. CAPUANO, FARR, Mrs. McCARTHY of New York, and Mr. WELCH changed their vote from ''yea'' to ''nay.''

Mrs. HARTZLER changed her vote from ''nay'' to ''yea.''

So the previous question was ordered.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Mr. HASTINGS of Florida. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This is a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 232, noes 182, not voting 15, as follows:

[Roll No. 573]

AYES—232

Adams
Aderholt
Alexander
Amash
Amodei
Austria
Bachmann
Bachus
Barletta
Bartlett
Barton (TX)
Bass (NH)
Benishek
Biggert
Bilbray
Bilirakis
Bishop (UT)
Black
Blackburn
Bonner
Bono Mack
Boustany
Brady (TX)
Brooks
Buchanan
Bucshon
Buerkle
Burgess
Burton (IN)
Calvert
Camp
Campbell
Canseco
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman (CO)
Cole
Conaway
Cravaack
Crawford
Crenshaw
Culberson
Denham
Dent
DesJarlais
Dold
Dreier
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Emerson
Farenthold
Fincher
Fitzpatrick
Flake
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gallegly
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guinta
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Hayworth
Heck
Hensarling
Herrera Beutler
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (IL)
Johnson (OH)
Johnson, Sam
Jordan
Kelly
King (IA)
Kingston
Kinzinger (IL)
Kissell
Kline
Labrador
Lamborn
Lance
Landry
Lankford
Latham
LaTourette
Latta
Lewis (CA)
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Lungren, Daniel E.
Mack
Manzullo
Marchant
Marino
McCarthy (CA)
McCaul
McClintock
McHenry
McKeon
McKinley
McMorris Rodgers
Meehan
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mulvaney
Murphy (PA)
Myrick
Neugebauer
Noem
Nugent

Nunes
Nunnelee
Olson
Palazzo
Paul
Paulsen
Pearce
Pence
Petri
Pitts
Platts
Poe (TX)
Pompeo
Posey
Price (GA)
Quayle
Reed
Rehberg
Reichert
Renacci
Ribble
Rigell
Rivera
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross (FL)
Royce
Runyan
Scalise
Schilling
Schmidt
Schock
Schweikert
Scott (SC)
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuler
Shuster
Simpson
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stearns
Stivers
Stutzman
Sullivan
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner (NY)
Turner (OH)
Upton
Walberg
Walden
Walsh (IL)
Webster
West
Westmoreland
Whitfield
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Young (AK)
Young (FL)
Young (IN)

NOES—182

Ackerman
Altmire
Andrews
Baca
Baldwin
Barber
Barrow
Bass (CA)
Becerra
Berkley
Berman
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Boren
Boswell
Brady (PA)
Braley (IA)
Brown (FL)
Butterfield
Capps
Capuano
Carnahan
Carney
Carson (IN)
Castor (FL)
Chandler
Chu
Cicilline
Clarke (MI)
Clarke (NY)
Clay
Clyburn
Cohen
Connolly (VA)
Conyers
Cooper
Costa
Costello
Courtney
Critz
Crowley
Cuellar
Cummings
Davis (CA)
Davis (IL)
DeFazio
DeGette
DeLauro
Deutch
Dicks
Dingell
Doggett
Donnelly (IN)
Doyle
Edwards
Ellison
Engel
Eshoo
Farr
Fattah
Filner
Frank (MA)
Fudge
Garamendi
Gohmert
Gonzalez
Green, Al
Green, Gene
Grijalva
Gutierrez
Hahn
Hanabusa
Hastings (FL)
Heinrich
Higgins
Himes
Hinchey
Hinojosa
Hirono
Hochul
Holden
Holt
Honda
Hoyer
Israel
Jackson Lee (TX)
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kildee
Kind
Kucinich
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis (GA)
Lipinski
Loebsack
Lofgren, Zoe
Lowey
Luján
Lynch
Maloney
Markey
Matheson
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McIntyre
McNerney
Meeks
Miller (NC)
Moore
Moran
Murphy (CT)
Napolitano
Neal
Olver
Owens
Pallone
Pascrell
Pastor (AZ)
Pelosi
Perlmutter
Peters
Peterson
Pingree (ME)
Polis
Price (NC)
Quigley
Rahall
Rangel
Reyes
Richardson
Richmond
Rothman (NJ)
Roybal-Allard
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell
Sherman
Sires
Slaughter
Smith (WA)
Speier
Stark
Sutton
Thompson (CA)
Thompson (MS)
Tierney
Tonko
Tsongas
Van Hollen
Velázquez
Visclosky
Walz (MN)
Wasserman Schultz
Waters
Watt
Waxman
Wilson (FL)
Woolsey
Yarmuth

NOT VOTING—15

Akin
Berg
Broun (GA)
Cleaver
Diaz-Balart
Herger
Jackson (IL)
King (NY)
Michaud
Miller, George
Nadler
Ross (AR)
Ryan (WI)
Towns
Welch

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1443

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

PROVIDING FOR CONSIDERATION OF H.R. 6213, NO MORE SOLYNDRAS ACT, AND PROVIDING FOR CONSIDERATION OF MOTIONS TO SUSPEND THE RULES

The SPEAKER pro tempore. The unfinished business is the vote on adoption of the resolution (H. Res. 779) providing for consideration of the bill (H.R. 6213) to limit further taxpayer exposure from the loan guarantee program established under title XVII of the Energy Policy Act of 2005, and providing for consideration of motions to suspend the rules, on which the yeas and nays were ordered.

The Clerk read the title of the resolution.

The SPEAKER pro tempore. The question is on the resolution.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 232, nays 182, not voting 15, as follows:

[Roll No. 574]

YEAS—232

Adams
Aderholt
Alexander
Amash
Amodei
Austria
Bachmann
Bachus
Barletta
Bartlett
Barton (TX)
Bass (NH)
Benishek
Biggert
Bilbray
Bilirakis
Bishop (UT)
Black
Blackburn
Bonner
Bono Mack
Boustany
Brady (TX)
Brooks
Bucshon
Buerkle
Burgess
Burton (IN)
Calvert
Camp
Campbell
Canseco
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman (CO)
Cole
Conaway
Costa
Cravaack
Crawford
Crenshaw
Culberson
Denham
Dent
DesJarlais
Diaz-Balart
Dold
Dreier
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Farenthold
Fincher
Fitzpatrick
Flake
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gallegly
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guinta
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Hayworth
Heck
Hensarling
Herrera Beutler
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (IL)
Johnson (OH)
Johnson, Sam
Jordan
Kelly
King (IA)
Kingston
Kinzinger (IL)
Kissell
Kline
Labrador
Lamborn
Lance
Landry
Lankford
Latham
LaTourette
Latta
Lewis (CA)
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Lungren, Daniel E.
Mack
Manzullo
Marchant
Marino
McCarthy (CA)
McCaul
McClintock
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
Meehan
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mulvaney
Murphy (PA)
Myrick
Neugebauer
Noem
Nugent
Nunes
Nunnelee
Olson
Palazzo
Paul
Paulsen
Pence
Petri
Pitts
Platts
Poe (TX)
Pompeo
Posey
Price (GA)
Quayle
Reed
Rehberg
Reichert
Renacci
Ribble
Rigell
Rivera
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross (FL)
Royce
Runyan
Scalise
Schilling
Schmidt
Schock
Schweikert
Scott (SC)
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuler
Shuster
Simpson
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stearns
Stivers
Stutzman
Sullivan
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner (NY)
Turner (OH)
Upton
Walberg
Walden
Walsh (IL)
Webster
West
Westmoreland
Whitfield
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Young (FL)
Young (IN)

NAYS—182

Ackerman
Altmire
Andrews
Baca
Baldwin
Barber
Barrow
Bass (CA)
Becerra
Berkley
Berman
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Boren
Boswell
Brady (PA)
Braley (IA)
Brown (FL)
Butterfield
Capps
Capuano
Carnahan
Carney
Carson (IN)
Castor (FL)
Chandler
Chu
Cicilline
Clarke (MI)
Clarke (NY)
Clay
Clyburn
Cohen
Connolly (VA)
Conyers
Cooper
Costello
Courtney
Critz
Crowley
Cuellar
Cummings
Davis (CA)
Davis (IL)
DeFazio
DeGette
DeLauro
Deutch
Dicks
Dingell
Doggett
Donnelly (IN)
Doyle
Edwards
Ellison
Engel
Eshoo
Farr
Fattah
Filner
Frank (MA)
Fudge
Garamendi
Gonzalez
Green, Al
Green, Gene
Grijalva
Gutierrez
Hahn
Hanabusa
Hastings (FL)
Heinrich
Higgins
Himes
Hinchey
Hinojosa
Hirono
Hochul
Holden
Holt
Honda
Hoyer
Israel
Jackson Lee (TX)
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kildee
Kind
Kucinich
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis (GA)
Lipinski
Loebsack
Lofgren, Zoe
Lowey
Luján
Lynch
Maloney
Markey
Matheson
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McNerney
Meeks
Miller (NC)
Miller, George
Moore
Moran
Murphy (CT)
Napolitano
Neal
Olver
Owens
Pallone
Pascrell
Pastor (AZ)
Pearce
Pelosi
Perlmutter
Peters
Peterson
Pingree (ME)
Polis
Price (NC)
Quigley
Rahall
Rangel
Reyes
Richardson
Richmond
Rothman (NJ)
Roybal-Allard
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell
Sherman
Sires
Slaughter
Smith (WA)
Speier
Stark
Sutton
Thompson (CA)
Thompson (MS)
Tierney
Tonko
Tsongas
Van Hollen
Velázquez
Visclosky
Walz (MN)
Wasserman Schultz
Waters
Watt
Waxman
Welch
Wilson (FL)
Woolsey
Yarmuth

NOT VOTING—15

Akin
Berg
Broun (GA)
Buchanan
Cleaver
Emerson

Herger
Jackson (IL)
King (NY)
Michaud
Nadler
Ross (AR)
Ryan (WI)
Towns
Young (AK)

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1451

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

STOLEN VALOR ACT OF 2012

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 1775) to amend title 18, United States Code, to establish a criminal offense relating to fraudulent claims about military service, as amended, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Texas (Mr. SMITH) that the House suspend the rules and pass the bill, as amended.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 410, nays 3, not voting 16, as follows:

[Roll No. 575]

YEAS—410

Ackerman
Adams
Aderholt
Alexander
Altmire
Amodei
Andrews
Austria
Baca
Bachmann
Bachus
Baldwin
Barber
Barletta
Barrow
Bartlett
Barton (TX)
Bass (CA)
Bass (NH)
Becerra
Benishek
Berkley
Berman
Biggert
Bilbray
Bilirakis
Bishop (GA)
Bishop (NY)
Bishop (UT)
Black
Blackburn
Blumenauer
Bonamici
Bonner
Bono Mack
Boren
Boswell
Boustany
Brady (PA)
Brady (TX)
Braley (IA)
Brooks
Brown (FL)
Buchanan
Bucshon
Buerkle
Burgess
Burton (IN)
Butterfield
Calvert
Camp
Campbell
Canseco
Cantor
Capito
Capps
Capuano
Carnahan
Carney
Carson (IN)
Carter
Cassidy
Castor (FL)
Chabot
Chaffetz
Chandler
Chu
Cicilline
Clarke (MI)
Clarke (NY)
Clay
Clyburn
Coble
Coffman (CO)
Cohen
Cole
Conaway
Connolly (VA)
Conyers
Cooper
Costa
Costello
Courtney
Cravaack
Crawford
Crenshaw
Critz
Crowley
Cuellar
Culberson
Cummings
Davis (CA)
Davis (IL)
DeFazio
DeGette
DeLauro
Denham
Dent
DesJarlais
Deutch
Diaz-Balart
Dicks
Dingell
Doggett
Dold
Donnelly (IN)
Doyle
Dreier
Duffy
Duncan (SC)
Duncan (TN)
Edwards
Ellison
Ellmers
Emerson
Engel
Eshoo
Farenthold
Farr
Fattah
Filner
Fincher
Fitzpatrick
Flake
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Frank (MA)
Franks (AZ)
Frelinghuysen
Fudge
Gallegly
Garamendi
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Gonzalez
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Green, Al
Green, Gene
Griffin (AR)
Griffith (VA)
Grijalva
Grimm
Guinta
Guthrie
Gutierrez
Hahn
Hall
Hanabusa
Hanna
Harper
Harris
Hartzler
Hastings (FL)
Hastings (WA)
Hayworth
Heck
Heinrich
Hensarling
Herrera Beutler
Higgins
Himes
Hinchey
Hinojosa
Hirono
Hochul
Holden
Holt
Honda
Hoyer
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Israel
Issa
Jackson Lee (TX)
Jenkins
Johnson (GA)
Johnson (IL)
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Jones
Jordan
Kaptur
Keating
Kelly
Kildee
Kind
King (IA)
Kingston
Kinzinger (IL)
Kissell
Kline
Kucinich
Labrador
Lamborn
Lance
Landry
Langevin
Lankford
Larsen (WA)
Larson (CT)
Latham
LaTourette
Latta
Lee (CA)
Levin
Lewis (CA)
Lewis (GA)
Lipinski
LoBiondo
Loebsack
Lofgren, Zoe
Long
Lowey
Lucas
Luetkemeyer
Luján
Lummis
Lungren, Daniel E.
Lynch
Mack
Maloney
Manzullo
Marchant
Marino
Markey
Matheson
Matsui
McCarthy (CA)
McCarthy (NY)
McCaul
McClintock
McCollum
McDermott
McGovern
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
McNerney
Meehan
Meeks
Mica
Miller (FL)
Miller (MI)
Miller (NC)
Miller, Gary
Moran
Mulvaney
Murphy (CT)
Murphy (PA)
Nadler
Napolitano
Neugebauer
Noem
Nugent
Nunes
Nunnelee
Olson
Olver
Owens
Palazzo
Pallone
Pascrell
Pastor (AZ)
Paulsen
Pearce
Pence
Perlmutter
Peters
Peterson
Petri
Pingree (ME)
Pitts
Platts
Poe (TX)
Polis
Pompeo
Posey
Price (GA)
Price (NC)
Quayle
Quigley
Rahall
Rangel
Reed
Rehberg
Reichert
Renacci
Reyes
Ribble
Richardson
Richmond
Rigell
Rivera
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross (FL)
Rothman (NJ)
Roybal-Allard
Royce
Runyan
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Scalise
Schakowsky
Schiff
Schilling
Schmidt
Schock
Schrader
Schwartz
Schweikert
Scott (SC)
Scott (VA)
Scott, Austin
Scott, David
Sensenbrenner
Serrano
Sessions
Sewell
Sherman
Shimkus
Shuler
Shuster
Simpson
Sires
Slaughter
Smith (NJ)
Smith (TX)
Smith (WA)
Southerland
Speier
Stark
Stearns
Stivers
Stutzman
Sullivan
Sutton
Terry
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tierney
Tipton
Tonko
Tsongas
Turner (NY)
Turner (OH)
Upton
Van Hollen
Velázquez
Visclosky
Walberg
Walden
Walsh (IL)
Walz (MN)
Wasserman Schultz
Waters
Watt
Waxman
Webster
Welch
West
Westmoreland
Whitfield
Wilson (FL)
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Woolsey
Yarmuth
Yoder
Young (AK)
Young (FL)
Young (IN)

NAYS—3

Amash
Miller, George
Paul

NOT VOTING—16

Akin
Berg
Broun (GA)
Cleaver
Herger
Jackson (IL)
King (NY)
Michaud
Moore
Myrick
Neal
Pelosi
Ross (AR)
Ryan (WI)
Smith (NE)
Towns

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1459

So (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The result of the vote was announced as above recorded.

The title was amended so as to read: ''A bill to amend title 18, United States Code, with respect to fraudulent representations about having received military decorations or medals.''.

A motion to reconsider was laid on the table.

Stated for:

Mr. GEORGE MILLER of California. Mr. Speaker, on September 13, 2012, I inadvertently voted "nay" on Roll No. 575. I ask that the record reflect that I intended to vote "yea," to approve H.R. 1775.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF HOUSE RESOLUTION 177

Mr. HULTGREN. Mr. Speaker, I ask unanimous consent to remove my name as a cosponsor of House Resolution 177.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Illinois?

There was no objection.

CONTINUING APPROPRIATIONS RESOLUTION, 2013

Mr. ROGERS of Kentucky. Mr. Speaker, pursuant to the rule adopted earlier today, I call up the joint resolution (H.J. Res. 117) making continuing appropriations for fiscal year 2013, and for other purposes, and ask for its immediate consideration.

The Clerk read the title of the joint resolution.

The SPEAKER pro tempore. Pursuant to House Resolution 778, the joint resolution is considered read.

The text of the joint resolution is as follows:

H.J. RES. 117

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, That the following sums are hereby appropriated, out of any money in the Treasury not otherwise appropriated, and out of applicable corporate or other revenues, receipts, and funds, for the several departments, agencies, corporations, and other organizational units of Government for fiscal year 2013, and for other purposes, namely:

SEC. 101. (a) Such amounts as may be necessary, at a rate for operations as provided in the applicable appropriations Acts for fiscal year 2012 and under the authority and conditions provided in such Acts, for continuing projects or activities (including the costs of direct loans and loan guarantees) that are not otherwise specifically provided for in this joint resolution, that were conducted in fiscal year 2012, and for which appropriations, funds, or other authority were made available in the following appropriations Acts:

(1) The Agriculture, Rural Development, Food and Drug Administration, and Related Agencies Appropriations Act, 2012 (division A of Public Law 112–55), except for the appropriations designated by the Congress as being for disaster relief in section 735 of such Act.

(2) The Commerce, Justice, Science, and Related Agencies Appropriations Act, 2012 (division B of Public Law 112–55), except for the appropriation designated by the Congress as being for disaster relief in the second paragraph under the heading ''Department of Commerce—Economic Development Administration—Economic Development Assistance Programs'' in such Act.

(3) The Department of Defense Appropriations Act, 2012 (division A of Public Law 112–74).

(4) The Energy and Water Development Appropriations Act, 2012 (division B of Public Law 112–74).

(5) The Financial Services and General Government Appropriations Act, 2012 (division C of Public Law 112–74).

(6) The Department of Homeland Security Appropriations Act, 2012 (division D of Public Law 112–74).

(7) The Department of the Interior, Environment, and Related Agencies Appropriations Act, 2012 (division E of Public Law 112–74).

(8) The Departments of Labor, Health and Human Services, and Education, and Related Agencies Appropriations Act, 2012 (division F of Public Law 112–74).

(9) The Legislative Branch Appropriations Act, 2012 (division G of Public Law 112–74).

(10) The Military Construction and Veterans Affairs and Related Agencies Appropriations Act, 2012 (division H of Public Law 112–74).

(11) The Department of State, Foreign Operations, and Related Programs Appropriations Act, 2012 (division I of Public Law 112–74).

(12) The Transportation, Housing and Urban Development, and Related Agencies Appropriations Act, 2012 (division C of Public Law 112–55), except for the appropriations designated by the Congress as being for disaster relief under the heading ''Department of Transportation—Federal Highway Administration—Emergency Relief'' and in the last proviso of section 239 of such Act.

(13) The Disaster Relief Appropriations Act, 2012 (Public Law 112–77), except for appropriations under the heading ''Corps of Engineers-Civil''.

(b) Whenever an amount designated for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985 (in this section referred to as an ''OCO/GWOT amount'') in an Act described in paragraph (3) or (10) of subsection (a) that would be made available for a project or activity is different from the amount requested in the President's fiscal year 2013 budget request, the project or activity shall be continued at a rate for operations that would be permitted by, and such designation shall be applied to, the amount in the President's fiscal year 2013 budget request.

(c) The rate for operations provided by subsection (a) is hereby increased by 0.612 percent. Such increase shall not apply to OCO/GWOT amounts or to amounts incorporated in this joint resolution by reference to the Disaster Relief Appropriations Act, 2012 (Public Law 112–77).

SEC. 102. (a) No appropriation or funds made available or authority granted pursuant to section 101 for the Department of Defense shall be used for (1) the new production of items not funded for production in fiscal year 2012 or prior years; (2) the increase in production rates above those sustained with fiscal year 2012 funds; or (3) the initiation, resumption, or continuation of any project, activity, operation, or organization (defined as any project, subproject, activity, budget activity, program element, and subprogram within a program element, and for any investment items defined as a P–1 line item in a budget activity within an appropriation account and an R–1 line item that includes a program element and subprogram element within an appropriation account) for which appropriations, funds, or other authority were not available during fiscal year 2012.

(b) No appropriation or funds made available or authority granted pursuant to section 101 for the Department of Defense shall be used to initiate multi-year procurements utilizing advance procurement funding for economic order quantity procurement unless specifically appropriated later.

SEC. 103. Appropriations made by section 101 shall be available to the extent and in the manner that would be provided by the pertinent appropriations Act.

SEC. 104. Except as otherwise provided in section 102, no appropriation or funds made available or authority granted pursuant to section 101 shall be used to initiate or resume any project or activity for which appropriations, funds, or other authority were not available during fiscal year 2012.

SEC. 105. Appropriations made and authority granted pursuant to this joint resolution shall cover all obligations or expenditures incurred for any project or activity during the period for which funds or authority for such project or activity are available under this joint resolution.

SEC. 106. Unless otherwise provided for in this joint resolution or in the applicable appropriations Act for fiscal year 2013, appropriations and funds made available and authority granted pursuant to this joint resolution shall be available until whichever of the following first occurs: (1) the enactment into law of an appropriation for any project or activity provided for in this joint resolution; (2) the enactment into law of the applicable appropriations Act for fiscal year 2013 without any provision for such project or activity; or (3) March 27, 2013.

SEC. 107. Expenditures made pursuant to this joint resolution shall be charged to the applicable appropriation, fund, or authorization whenever a bill in which such applicable appropriation, fund, or authorization is contained is enacted into law.

SEC. 108. Appropriations made and funds made available by or authority granted pursuant to this joint resolution may be used without regard to the time limitations for submission and approval of apportionments set forth in section 1513 of title 31, United States Code, but nothing in this joint resolution may be construed to waive any other provision of law governing the apportionment of funds.

SEC. 109. Notwithstanding any other provision of this joint resolution, except section 106, for those programs that would otherwise have high initial rates of operation or complete distribution of appropriations at the beginning of fiscal year 2013 because of distributions of funding to States, foreign countries, grantees, or others, such high initial rates of operation or complete distribution shall not be made, and no grants shall be awarded for such programs funded by this joint resolution that would impinge on final funding prerogatives.

SEC. 110. This joint resolution shall be implemented so that only the most limited funding action of that permitted in the joint resolution shall be taken in order to provide for continuation of projects and activities.

SEC. 111. (a) For entitlements and other mandatory payments whose budget authority was provided in appropriations Acts for fiscal year 2012, and for activities under the Food and Nutrition Act of 2008, activities shall be continued at the rate to maintain program levels under current law, under the authority and conditions provided in the applicable appropriations Act for fiscal year 2012, to be continued through the date specified in section 106(3).

(b) Notwithstanding section 106, obligations for mandatory payments due on or about the first day of any month that begins after October 2012 but not later than 30 days after the date specified in section 106(3) may continue to be made, and funds shall be available for such payments.

SEC. 112. Amounts made available under section 101 for civilian personnel compensation and benefits in each department and agency may be apportioned up to the rate for operations necessary to avoid furloughs within such department or agency, consistent with the applicable appropriations Act for fiscal year 2012, except that such authority provided under this section shall not be used until after the department or agency has taken all necessary actions to reduce or defer non-personnel-related administrative expenses.

SEC. 113. Funds appropriated by this joint resolution may be obligated and expended notwithstanding section 10 of Public Law 91–672 (22 U.S.C. 2412), section 15 of the State Department Basic Authorities Act of 1956 (22 U.S.C. 2680), section 313 of the Foreign Relations Authorization Act, Fiscal Years 1994 and 1995 (22 U.S.C. 6212), and section 504(a)(1) of the National Security Act of 1947 (50 U.S.C. 414(a)(1)).

SEC. 114. (a) Section 147 of Public Law 111–242, as added by Public Law 111–322, shall be applied by substituting the date specified in section 106(3) of this joint resolution for ''December 31, 2012'' each place it appears.

(b) Notwithstanding any other provision of law, any statutory pay adjustment (as defined in section 147(b)(2) of the Continuing Appropriations Act, 2011 (Public Law 111–242)) otherwise scheduled to take effect during fiscal year 2013 but prior to the date specified in section 106(3) of this joint resolution may take effect on the first day of the first applicable pay period beginning after the date specified in section 106(3).

SEC. 115. (a) Each amount incorporated by reference in this joint resolution that was previously designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985 or as being for disaster relief pursuant to section 251(b)(2)(D) of such Act is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A) of such Act or as being for disaster relief pursuant to section 251(b)(2)(D) of such Act, respectively.

(b) Of the amount made available by section 101 for ''Social Security Administration—Limitation on Administrative Expenses'', $483,484,000 is additional new budget authority specified for purposes of subsection 251(b)(2)(B) of the Balanced Budget and Emergency Deficit Control Act of 1985.

(c) Section 5 of Public Law 112–74 shall apply to amounts designated in subsection (a) for Overseas Contingency Operations/Global War on Terrorism.

SEC. 116. (a) Not later than 30 days after the date of the enactment of this joint resolution, each department and agency in subsection (c) shall submit to the Committees on Appropriations of the House of Representatives and the Senate, for the period through the date specified in section 106(3) of this joint resolution, a spending, expenditure, or operating plan—

(1) at the program, project, or activity level (or, for national intelligence programs funded in the Department of Defense Appropriations Act, at the expenditure center and project level); or

(2) as applicable, at any greater level of detail required for funds covered by such a plan in an appropriations Act referred to in section 101, in the joint explanatory statement accompanying such Act, or in committee report language incorporated by reference in such joint explanatory statement.

(b) Not later than 30 days after the date on which any sequestration is ordered by the President under section 251A of the Balanced Budget and Emergency Deficit Control Act of 1985, each department and agency in subsection (c) shall submit to the Committees on Appropriations of the House of Representatives and the Senate the spending, expenditure, or operating plan required under subsection (a), updated to reflect any adjustments to funding as a result of the sequestration and any extension of the date specified in section 106(3) of this joint resolution.

(c) The departments and agencies to which this section applies are as follows:

(1) The Department of Agriculture.

(2) The Department of Commerce.

(3) The Department of Defense.

(4) The Department of Education.

(5) The Department of Energy.

(6) The Department of Health and Human Services.

(7) The Department of Homeland Security.

(8) The Department of Housing and Urban Development.

(9) The Department of the Interior.

(10) The Department of Justice.

(11) The Department of Labor.

(12) The Department of State and United States Agency for International Development.

(13) The Department of Transportation.

(14) The Department of the Treasury.

(15) The Department of Veterans Affairs.

(16) The National Aeronautics and Space Administration.

(17) The National Science Foundation.

(18) The Judiciary.

(19) With respect to amounts made available under the heading ''Executive Office of the President and Funds Appropriated to the President'', agencies funded under such heading.

(20) The Federal Communications Commission.

(21) The General Services Administration.

(22) The Office of Personnel Management.

(23) The National Archives and Records Administration.

(24) The Securities and Exchange Commission.

(25) The Small Business Administration.

(26) The Environmental Protection Agency.

(27) The Indian Health Service.

(28) The Smithsonian Institution.

(29) The Social Security Administration.

(30) The Corporation for National and Community Service.

(31) The Corporation for Public Broadcasting.

(32) The Food and Drug Administration.

(33) The Commodity Futures Trading Commission.

(34) The Central Intelligence Agency.

(35) The National Security Agency.

(36) The National Reconnaissance Office.

(37) The Defense Intelligence Agency.

(38) The National Geospatial Intelligence Agency.

(39) The Office of the Director of National Intelligence.

SEC. 117. Not later than November 1, 2012, and each month thereafter through the month following the period covered by this joint resolution, the Director of the Office of Management and Budget shall submit to the Committees on Appropriations of the House of Representatives and the Senate a report on all obligations incurred by each department and agency in the period covered by this joint resolution. Such report shall—

(1) set forth obligations by account;

(2) compare the obligations incurred in the period covered by the report to the obligations incurred in the same period in fiscal year 2012; and

(3) specify each executive branch account for which funds made available by this joint resolution are apportioned at a different rate for operations than the rate otherwise provided in section 101, with an estimate of the different rate otherwise provided in such section and the total obligations estimated to be incurred under this joint resolution for such account.

SEC. 118. Section 726(15) of division A of Public Law 112–55 shall be applied to amounts made available by this joint resolution without regard to the first proviso of such section.

SEC. 119. Notwithstanding section 101, amounts are provided for ''Department of Agriculture—Domestic Food Programs—Food and Nutrition Service—Commodity Assistance Program'', at a rate for operations of $253,952,000, of which $186,935,000 shall be for the Commodity Supplemental Food Program.

SEC. 120. (a) Amounts made available under section 101 for ''Department of Commerce—National Oceanic and Atmospheric Administration—Procurement, Acquisition and Construction'' may be apportioned up to the rate for operations necessary to maintain the planned launch schedules for the Joint Polar Satellite System and the Geostationary Operational Environmental Satellite system.

(b) Not later than 30 days after the date of enactment of this joint resolution, the Director of the Office of Management and Budget shall submit to the Committees on Appropriations of the House of Representatives and the Senate a plan to maintain the launch schedules and life cycle cost estimates established in fiscal year 2012 for the satellite systems described in subsection (a) and options for reducing costs, including management costs.

SEC. 121. Through the earlier of the date specified in section 106(3) of this joint resolution or the date of the enactment of an Act authorizing appropriations for fiscal year 2013 for military activities of the Department of Defense, no appropriation or funds made available or authority granted pursuant to section 101 for the Department of Defense shall be used to—

(1) retire, divest, realign, or transfer aircraft of the Air Force;

(2) disestablish or convert any unit associated with aircraft described in paragraph (1) or any unit of the Air National Guard or Air Force Reserve; or

(3) retire C–23 Sherpa aircraft.

SEC. 122. The authority provided by section 801 of the National Defense Authorization Act for Fiscal Year 2010 (Public Law 111–84; 123 Stat. 2399) shall continue in effect, notwithstanding subsection (f) of such section, through the earlier of the date specified in section 106(3) of this joint resolution or the date of the enactment of an Act authorizing appropriations for fiscal year 2013 for military activities of the Department of Defense.

SEC. 123. The authority provided by section 572(b)(4) of the National Defense Authorization Act for Fiscal Year 2006 (20 U.S.C. 7703b(b)(4)) shall continue in effect through the earlier of the date specified in section 106(3) of this joint resolution or the date of the enactment of an Act authorizing appropriations for fiscal year 2013 for military activities of the Department of Defense.

SEC. 124. In addition to any other transfer authority available to the Department of Defense, the Secretary of Defense may transfer an amount designated for Overseas Contingency Operations/Global War on Terrorism pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985 made available by this joint resolution for the Department of Defense between such appropriations, to be merged with and to be available for the same purposes, and the same time period, as the appropriation or fund to which transferred. The Secretary of Defense shall notify the congressional defense committees not fewer than 15 days prior to any transfer made pursuant to this section.

SEC. 125. (a) Notwithstanding section 101, amounts are provided for ''Department of Energy—National Nuclear Security Administration—Weapons Activities'' at a rate for operations of $7,577,341,000.

(b) Section 301(c) of title III of division B of Public Law 112–74 shall not apply to amounts made available by this section.

SEC. 126. In addition to the amounts otherwise made available by section 101 for ''Department of Energy—National Nuclear Security Administration—Defense Nuclear Nonproliferation'', an additional amount is made available for domestic uranium enrichment research, development, and demonstration at a rate for operations of $100,000,000.

SEC. 127. Section 14704 of title 40, United States Code, shall be applied to amounts made available by this joint resolution by substituting the date specified in section 106(3) of this joint resolution for ''October 1, 2012''.

SEC. 128. Notwithstanding any other provision of this joint resolution, except section 106, the District of Columbia may expend local funds under the heading ''District of Columbia Funds'' for such programs and activities under title IV of H.R. 6020 (112th Congress), as reported by the Committee on Appropriations of the House of Representatives, at the rate set forth under ''District of Columbia Funds—Summary of Expenses'' as included in the Fiscal Year 2013 Budget Request Act of 2012 (D.C. Act 19–381), as modified as of the date of the enactment of this joint resolution.

SEC. 129. Notwithstanding section 101, amounts are provided for ''District of Columbia—Federal Funds—Federal Payment for Emergency Planning and Security Costs in the District of Columbia'' at a rate for operations of $24,700,000, of which not less than $9,800,000 shall be used for costs associated with the Presidential Inauguration.

SEC. 130. Notwithstanding section 101, amounts are provided for ''General Services Administration—Expenses, Presidential Transition'' for necessary expenses to carry out the Presidential Transition Act of 1963 (3 U.S.C. 102 note), at a rate for operations of $8,947,000, of which not to exceed $1,000,000 is for activities authorized by sections 3(a)(8) and (9) of such Act.

SEC. 131. (a) Notwithstanding section 101, amounts are provided for ''Executive Office of the President—Office of Administration—Presidential Transition Administrative Support'' to carry out the Presidential Transition Act of 1963 (3 U.S.C. 102 note) at a rate for operations of $8,000,000.

(b) Such funds may be transferred to other accounts in this joint resolution or any other Act that provide funding for offices within the Executive Office of the President and the Office of the Vice President to carry out the Presidential Transition Act of 1963 (3 U.S.C. 102 note).

SEC. 132. Notwithstanding section 101, the fifth proviso under the heading ''Federal Communications Commission—Salaries and Expenses'' in division C of Public Law 112–74

shall be applied by substituting ''$98,739,000'' for ''$85,000,000''.

SEC. 133. Notwithstanding any other provision of this joint resolution, amounts made available by section 101 for ''Department of the Treasury—Departmental Offices—Salaries and Expenses'' and ''Department of the Treasury—Office of Inspector General—Salaries and Expenses'' may be used for activities in connection with section 1602(e) of the Resources and Ecosystems Sustainability, Tourist Opportunities, and Revived Economies of the Gulf Coast States Act of 2012 (subtitle F of title I of division A of Public Law 112–141).

SEC. 134. Notwithstanding section 101, amounts are provided for ''Office of Government Ethics—Salaries and Expenses'' at a rate for operations of $18,664,000, of which $5,000,000 shall be for development and deployment of the centralized, publicly accessible database required in section 11(b) of the STOCK Act (Public Law 112–105).

SEC. 135. Notwithstanding section 101, amounts are provided for ''Small Business Administration—Business Loans Program Account'' for the cost of guaranteed loans as authorized by section 7(a) of the Small Business Act and section 503 of the Small Business Investment Act of 1958 at a rate for operations of $333,600,000.

SEC. 136. (a) Amounts made available by this joint resolution for ''Department of Homeland Security—U.S. Customs and Border Protection—Salaries and Expenses'' shall be obligated at the rate for operations necessary to maintain the staffing levels (including by backfilling vacant positions) of Border Patrol agents, Customs and Border Protection officers, and Air and Marine interdiction agents in effect at the end of the fourth quarter of fiscal year 2012, or, with respect to Border Patrol agents, at such greater levels as may otherwise be required in the second proviso under the heading ''U.S. Customs and Border Protection—Salaries and Expenses'' in division D of Public Law 112–74. Any increase of the rate for operations for such purpose under this subsection shall be derived by adjusting amounts otherwise made available within such account by this joint resolution, without regard to the restrictions on reprogramming in section 503 of division D of Public Law 112–74.

(b) Not later than 15 days after the date of the enactment of this joint resolution, the Commissioner of U.S. Customs and Border Protection shall submit to the Committees on Appropriations of the House of Representatives and the Senate a detailed expenditure plan for ''Department of Homeland Security—U.S. Customs and Border Protection—Salaries and Expenses'' at the program, project, and activity level that specifies how the Commissioner will maintain staffing levels as required under subsection (a) through the date specified in section 106(3) of this joint resolution.

SEC. 137. (a) Notwithstanding section 101, amounts are provided for ''Department of Homeland Security—National Protection and Programs Directorate—Infrastructure Protection and Information Security'' at a rate for operations of $1,170,243,000, of which $328,000,000 is for Network Security Deployment, and $218,000,000 is for Federal Network Security that may be obligated at a rate for operations necessary to establish and sustain essential cybersecurity activities, including procurement and operations of continuous monitoring and diagnostics systems and intrusion detection systems for civilian Federal computer networks.

(b) Not later than 15 days after the date of the enactment of this joint resolution, the Secretary of Homeland Security shall submit to the Committees on Appropriations of the House of Representatives and the Senate an expenditure plan for essential cybersecurity activities described in subsection (a) of this section for the period through the date specified in section 106(3) of this joint resolution.

SEC. 138. The authority provided by section 532 of Public Law 109–295 shall continue in effect through the date specified in section 106(3) of this joint resolution.

SEC. 139. Section 550(b) of Public Law 109–295 (6 U.S.C. 121 note) shall be applied by substituting the date specified in section 106(3) of this joint resolution for ''October 4, 2012''.

SEC. 140. (a) Notwithstanding section 101, amounts are provided for ''Department of the Interior—Department-wide Programs—Wildland Fire Management'' at a rate for operations of $726,473,000.

(b) In addition to the amounts provided under subsection (a), there is appropriated $23,000,000 for an additional amount for fiscal year 2013 for ''Department of the Interior—Department-wide Programs—Wildland Fire Management'', to remain available until expended, for repayment to other appropriations accounts from which funds were transferred in fiscal year 2012 for wildfire suppression.

SEC. 141. (a) Notwithstanding section 101, amounts are provided for ''Department of Agriculture—Forest Service—Wildland Fire Management'' at a rate for operations of $1,971,390,000.

(b) In addition to the amounts provided under subsection (a), there is appropriated $400,000,000 for an additional amount for fiscal year 2013 for ''Department of Agriculture—Forest Service—Wildland Fire Management'', to remain available until expended, for repayment to other appropriations accounts from which funds were transferred in fiscal year 2012 for wildfire suppression.

SEC. 142. Section 411(h)(4)(A) of the Surface Mining Control and Reclamation Act of 1977 (30 U.S.C. 1240a(h)(4)(A)) is amended to read as follows:

''(A) IN GENERAL.—The annual amount allocated under subparagraph (A) or (B) of section 402(g)(1) to any State or Indian tribe that makes a certification under subsection (a) of this section in which the Secretary concurs shall be reallocated and available for grants under section 402(g)(5).''.

SEC. 143. The authority provided by section 331 of the Department of the Interior and Related Agencies Appropriations Act, 2000 (enacted by reference in section 1000(a)(3) of Public Law 106–113; 16 U.S.C. 497 note) shall continue in effect through the date specified in section 106(3) of this joint resolution.

SEC. 144. (a) The following sections of the Federal Insecticide, Fungicide, and Rodenticide Act shall continue in effect through the date specified in section 106(3) of this joint resolution:

(1) Subparagraphs (C) through (E) of section 4(i)(5) (7 U.S.C. 136a–1(i)(5)(C)-(E));

(2) Section 4(k)(3) (7 U.S.C. 136a–1(k)(3)); and

(3) Section 33(c)(3)(B) (7 U.S.C. 136w–8(c)(3)(B)).

(b)(1) Section 4(i)(5)(H) of the Federal Insecticide, Fungicide, and Rodenticide Act (7 U.S.C. 136a–1(i)(5)(H)) shall be applied by substituting the date specified in section 106(3) of this joint resolution for ''September 30, 2012''.

(2) Notwithstanding section 33(m)(2) of the Federal Insecticide, Fungicide, and Rodenticide Act (7 U.S.C. 136w–8(m)(2)), section 33(m)(1) of such Act (7 U.S.C. 136w–8(m)(1)) shall be applied by substituting the date specified in section 106(3) of this joint resolution for ''September 30, 2012''.

(c) Section 408(m)(3) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 346a(m)(3)) shall be applied by substituting the date specified in section 106(3) of this joint resolution for ''September 30, 2012''.

SEC. 145. Section 163 of Public Law 111–242, as amended by Public Law 111–322, is further amended—

(a) in subsection (b), by striking ''2012–2013'' and inserting ''2013–2014''; and

(b) by inserting at the end the following:

''(c) Not later than December 31, 2013, the Secretary of Education shall submit a report to the Committees on Appropriations and Health, Education, Labor, and Pensions of the Senate and the Committees on Appropriations and Education and the Workforce of the House of Representatives, using data required under existing law (section 1111(h)(6)(A) of Public Law 107–110) by State and each local educational agency, regarding the extent to which students in the following categories are taught by teachers who are deemed highly qualified pursuant to 34 C.F.R. 200.56(a)(2)(ii) as published in the Federal Register on December 2, 2002:

''(1) Students with disabilities.

''(2) English Learners.

''(3) Students in rural areas.

''(4) Students from low-income families.''.

SEC. 146. The first proviso under the heading ''Department of Health and Human Services—Administration for Children and Families—Low Income Home Energy Assistance'' in division F of Public Law 112–74 shall be applied to amounts made available by this joint resolution by substituting ''2013'' for ''2012''.

SEC. 147. Notwithstanding section 101, amounts are provided for ''Department of Health and Human Services—Administration for Children and Families—Refugee and Entrant Assistance'' at a rate for operations of $900,000,000. Amounts made available by this section may be obligated up to a rate for operations necessary to maintain program operations at the level provided in fiscal year 2012, as necessary to accommodate increased demand.

SEC. 148. Activities authorized by part A of title IV and section 1108(b) of the Social Security Act shall continue through the date specified in section 106(3) of this joint resolution, in the manner authorized for fiscal year 2012, and out of any money in the Treasury of the United States not otherwise appropriated, there are hereby appropriated such sums as may be necessary for such purpose. Grants and payments may be made pursuant to this authority on a quarterly basis through the second quarter of fiscal year 2013 at the level provided for such activities for the corresponding quarter of fiscal year 2012.

SEC. 149. Notwithstanding any other provision of this joint resolution, there is appropriated for payment to the heirs at law of Donald M. Payne, late a Representative from the State of New Jersey, $174,000.

SEC. 150. Notwithstanding section 101, amounts are provided for ''Department of Veterans Affairs—Departmental Administration—General Operating Expenses, Veterans Benefits Administration'' at a rate for operations of $2,164,074,000.

SEC. 151. The authority provided by section 315(b) of title 38, United States Code, shall continue in effect through the date specified in section 106(3) of this joint resolution.

SEC. 152. (a) Section 120 of division C of Public Law 112–55 shall not apply to amounts made available by this joint resolution.

(b) During the period covered by this joint resolution, section 1102 of Public Law 112–141 shall be applied—

(1) in subsection (a)(1), by substituting ''$39,143,582,670'' for ''$39,699,000,000'';

(2) in subsection (b)(10), as if the limitation applicable through fiscal year 2011 applied through fiscal year 2012; and

(3) in subsection (c)(5), by treating the reference to section 204 of title 23, United

States Code, as a reference to sections 202 and 204 of such title.

SEC. 153. The matter under the heading ''Department of Transportation—National Highway Traffic Safety Administration—Highway Traffic Safety Grants'' in division C of Public Law 112–55 shall be applied to amounts made available by this joint resolution by treating each reference to section 2001(a)(11) of Public Law 109–59 under such heading as a reference to section 31101(a)(6) of Public Law 112–141.

SEC. 154. The matter under the heading ''Department of Transportation—Federal Transit Administration—Formula and Bus Grants'' in division C of Public Law 112–55 shall be applied to amounts made available by this joint resolution by substituting ''49 U.S.C. 5305, 5307, 5310, 5311, 5318, 5322(d), 5335, 5337, 5339, and 5340'' for ''49 U.S.C. 5305, 5307, 5308, 5309, 5310, 5311, 5316, 5317, 5320, 5335, 5339, and 5340 and section 3038 of Public Law 105–178, as amended'' each place it appears.

SEC. 155. Section 601(e)(1)(B) of division B of Public Law 110–432 shall be applied by substituting the date specified in section 106(3) of this joint resolution for ''4 years after such date''.

This joint resolution may be cited as the ''Continuing Appropriations Resolution, 2013''.

The SPEAKER pro tempore. The gentleman from Kentucky (Mr. ROGERS) and the gentleman from Washington (Mr. DICKS) each will control 30 minutes.

The Chair recognizes the gentleman from Kentucky.

GENERAL LEAVE

Mr. ROGERS of Kentucky. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on H.J. Res. 117.

The SPEAKER pro tempore (Mr. THORNBERRY). Is there objection to the request of the gentleman from Kentucky?

There was no objection.

Mr. ROGERS of Kentucky. Mr. Speaker, I yield myself such time as I may consume.

This 6-month continuing resolution, Mr. Speaker, will keep the government's doors open and its wheels turning until March 27, 2013. It's a necessary bill that ensures that the Congress is doing its job, even if this is not our preferred way of going about doing it.

Funding for the government in short increments is not the right way to govern and not something that should be common practice.

It's essential to our Nation's financial future that the Congress complete these important appropriations bills in regular order.

However, the Senate failed to act on any of the 12 appropriations bills this year, instead choosing to default on their most basic fiscal duty in the name of election-year politics.

Over the past few months, the House did its very best to support the core functions of the government and provide responsible levels for critical programs and services. In fact, the Appropriations Committee considered all 12 bills, fulfilling our duty as shepherds of Federal tax dollars and our responsibility as representatives of the people in this country.

I'm deeply disappointed that this work is now on hold and that Congress will not complete this work before the end of the fiscal year this September 30.

Though we have found ourselves in this undesirable position, it does not mean we can't yet act responsibly.

This CR is a good-faith effort to provide limited, but fair, funding for government programs. It sticks with the agreement the House leadership made with the Senate and the White House to continue government operations at the Budget Control Act-approved level of $1.047 trillion, thereby avoiding the perils of a threatened government shutdown.

This legislation is very limited in scope. Funding levels have been held at rates essentially consistent with the current fiscal year. It makes minor changes to prevent detrimental or catastrophic or irreversible changes to Federal programs and to ensure good government.

This includes provisions to allow additional funding for things like nuclear weapons modernization efforts, wildfire suppression, maintaining current border security staffing levels, more help to process veterans' disability claims, and things of that sort. Essential.

We've also made sure that we will take care of these individuals, businesses, and communities affected by the recent natural disasters like Hurricane Isaac. We provide $6.4 billion in additional disaster funding. This funding will prevent any lapse in critical assistance to those already working to recover from these catastrophes, as well as adequate financial resources, should any need arise in the future.

□ 1510

The bill also protects critical funding for our national defense, maintaining last year's levels for Department of Defense programs which the Senate and the White House have sought to significantly cut.

Mr. Speaker, my committee will stand ready and will stand at the ready to continue the appropriations process. We intend to use the lame-duck session to the fullest extent. Just because this CR will last until March 27 of next year, we will not rest on our laurels until that time. We will do as much as we can to allow ample time to complete that essential work.

Mr. Speaker, we have to pass this important bill to maintain the continuity of our government and to prevent its shutdown and to continue the vital programs and services for our people, for our Nation, and for the stability of our economy.

I ask for support, Mr. Speaker, of this critical legislation.

I reserve the balance of my time.

Mr. DICKS. Mr. Speaker, I yield myself such time as I may consume.

While I would prefer to be doing our regular appropriation bills, I support this continuing resolution. H.J. Res. 117 avoids a government shutdown by continuing the full range of Federal activities at last year's rate of operations, plus six-tenths of 1 percent. The CR also preserves the agreement on spending levels and the reforms in budgeting for disaster relief as set out in the Budget Control Act.

On defense, the CR caps overseas contingency operations at the President's request for FY 2013 at $88.5 billion instead of continuing last year's level of $115.1 billion, a reduction of $26.6 billion.

The CR grants some flexibility for transferring funds within OCO since last year's priorities do not meet this year's defense needs in the region. Beyond that, however, the CR is stringent on defense. DOD requested limited authority for new starts and changes in production and procurement rates. Those requests were all denied.

The CR includes only a handful of spending anomalies, providing additional funding only where absolutely necessary.

Wildland fire suppression receives more funds than last year's level. The Interior Department and the Forest Service have already spent all of their FY12 fire suppression funding, in addition to $400 million that was reprogrammed to respond to a harsh fire season.

VA operating expenses are also increased because disability claims are expected to increase significantly in FY 2013 as more vets return.

Without an increase above last year's level, the launch schedule for the weather satellites would be delayed, causing significant gaps in data collection essential for severe weather forecasting.

Increases are provided for the Supplemental Nutrition Assistance Program, or SNAP, child nutrition, and Commodity Supplemental Food program, which all need additional funds to meet current caseloads.

There are even fewer extensions of expiring authorizations. Only those affecting spending are addressed.

The CR includes a 6-month clean extension of TANF. Without the extension, cash assistance and work support for working families would stop at the start of FY 2013.

The CR also specifies the LIHEAP State allocation formula to ensure that States receive adequate funding for the winter heating season.

I must mention two concerns.

First, I am very disappointed that we have yet to enact a single FY13 bill in the Congress even though we passed seven bills in the House of Representatives. I know Chairman ROGERS shares my disappointment. A CR is not a replacement for the appropriations process. Federal agencies need much more direction than what is provided in a CR, and I believe this measure serves to underscore the need for timely, regular appropriation bills.

Lastly, I am deeply concerned that the threat of a sequester inhibits current economic growth and slows job

creation. The sooner we deal with all the fiscal cliff issues, the sooner our economic recovery will be strengthened. Just yesterday, Moody's threatened a potential downgrade of the U.S. Government's credit rating in 2013 unless Congress averts the fiscal cliff. I wish we could turn off sequestration in this CR and enact a balanced package of deficit reduction to replace it. Unfortunately, any serious discussion seems impossible until after the election.

As Chairman ROGERS said, this is a streamlined CR, free of any new riders and negotiated in a bipartisan fashion. I urge my colleagues to support this legislation.

I want to commend the chairman for working so hard and being so diligent in his efforts to restore regular order in the appropriation process, and I concur in his judgment that we should try to put together an omnibus between now and the holidays in order to get our work done this year. That would be the best course of action, rather than waiting until March.

Again, let's vote for this CR and do our work and get it done.

I reserve the balance of my time.

Mr. ROGERS of Kentucky. Mr. Speaker, the gentleman I will introduce next has served on the Defense Appropriations Subcommittee for over 30 years, as has the previous speaker, Mr. DICKS, served over 30 years as well. These two gentlemen, the previous speaker and the upcoming speaker, are the House's experts, in my judgment, on military matters. So I yield such time as he may consume to the former chairman of the full committee, and also now the chairman of the Defense Subcommittee, the gentleman from Florida (Mr. YOUNG).

Mr. YOUNG of Florida. Thank you, Mr. Chairman.

Mr. Speaker, I use this time to rise to present the Defense appropriations bill for fiscal year 2013, and that's what I had planned to do. But then, all of a sudden, I realized I already did that 2 months ago; and the House, in a strong, bipartisan vote of more than 330 votes passed this good bill that Mr. DICKS and I had worked so long and hard to prepare and to present. We were really excited about getting to the Senate and having the Senate make their mark and then go to conference and get this bill on the law books.

It's important that our national defense and the members of our military have some certainty in what they're going to be able to do in the next fiscal year. But that was not to be. We were rolling along with that bill, and we had passed seven other appropriations bills, thanks to Mr. ROGERS getting us back to regular order. His committee had already voted out all but one of the appropriations bills. We had passed seven in the House before we got the message. The Senate leader said the Senate will pass no appropriations bills this year. There's something wrong with that.

I'd like to read the Constitution, and I recommend it. It's good reading.

Article I, section 9, says, ''No money shall be drawn from the Treasury, but in consequence of appropriations made by law.'' That's what it means to pass these appropriations bills.

The end of the fiscal year is only a few weeks away. This Constitution would come into play. The government would have no money to function. Portions of the government would have to be closed down. You've heard it referred to, a government shutdown. We're going to have to pass this CR because we don't want a government shutdown.

The Defense appropriations bill was a very good bill. It was a bipartisan bill. There were some great initiatives that we had included and the House supported in that bill. We got to keep two of those initiatives as anomalies, and that's all.

So it's important that as soon as the Congress reconvenes, when it does, we get back to this Defense appropriations bill and pass it for sure.

One of the anomalies had to do with prohibiting the Air Force from undertaking any of the new aircraft retirements or relocations of aircraft and associated missions that were identified in their fiscal year 2013 budget request. That needs to be in here. This affects all of our States. All of our Governors, all of our adjutant generals weighed in on this issue. We did get that, as an anomaly, in the bill.

But we need to get to work on this Defense appropriations bill as soon as we possibly can and get it into law so that our military, the members of our military, the men and women who wear the uniform, those at the Pentagon who do the management, who do the planning, they have to know what it is they're going to be able to do, what money will they have available. And then they're facing sequestration, which also has to be avoided somehow, one way or another.

But when the Constitution is ignored—which is happening with our brothers and sisters in the other body—things don't work right, and we've got to get them right. In the lame-duck session, we have got to take care of these problems and get to work on this Defense appropriations bill. We've got to find some way to persuade those who serve in the other body. If their leadership doesn't want to do it, there are ways to apply pressure to the leadership to get the job done that the Constitution requires.

□ 1520

Mr. Speaker, I thank Chairman ROGERS for the good job he's done, and I thank him for the time that he has given to me today.

Mr. DICKS. I yield 2½ minutes to the gentlewoman from Ohio (Ms. KAPTUR).

Ms. KAPTUR. I thank Ranking Member DICKS for yielding.

Mr. Speaker, I rise, reluctantly, to support this 6-month fiscal 2013 continuing resolution. It is unfortunate we have before us a continuing resolution that only kicks the can down the road a bit, again, but does not represent the regular order to which our institution must return for sound governance of our Republic.

House Republicans have left the House with no choice but to support this measure or we will face another government shutdown. I'm sure we will hear from our Republican colleagues that the Senate didn't pass any appropriation bills, and that's why we're here considering a temporary bill.

The reality is that the unwillingness of the House Republicans to keep their word is why we have a short-term continuing resolution before us toward. The bipartisan agreement in the Budget Control Act provided for $2.2 trillion in balanced deficit reduction and included strict spending caps for future appropriations.

But rather than keeping to the bipartisan agreement, the Republican leadership rammed through the House a radical Ryan budgetary agenda that seeks to burden the middle class and seniors with the entire burden of reducing our debt while giving millionaires and billionaires more tax cuts. That is totally irresponsible.

House leadership wasted precious floor time with fiscal 13 appropriation bills that everyone knew were destined to languish. We should have spent our time debating comprehensive jobs legislation, a farm bill, and legislation to save the U.S. Postal Service.

Nevertheless, under the circumstances of hyperpartisanship, I commend Chairman ROGERS and Ranking Member DICKS for crafting a clean continuing resolution that also addresses other important issues such as wildlife management, veterans benefits, Small Business Administration loan guarantees, and nutrition assistance.

In particular, I want to commend the chairman and ranking member for providing sufficient funding for the Commodity Supplemental Food Program so food assistance is not taken away from low-income senior citizens across our country, whose calls at food banks have gone up 20 percent.

The Commodity Supplemental Food Program is a vital weapon in our fight against the real hunger that millions of our fellow citizens confront daily. Ninety-seven percent of these individuals are low-income seniors.

The program needed a slight increase to keep up with real food inflation, and rather than provide the resources to keep up with inflation, the House Republican FY 13 appropriation bill proposed to slash funding.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Mr. DICKS. I yield an additional 15 seconds.

Ms. KAPTUR. I thank the gentleman.

The appropriation bill would have resulted in 55,000 participants, predominantly seniors, being cut off vital nutrition assistance per month. So I'm

pleased that this CR provides their necessary support.

And while I regret that House Republicans leaders favor kicking the can down the road instead of addressing the important budgetary issues America faces, I urge my colleagues to adopt this resolution so we can prevent the Republicans from forcing another potential government shutdown.

Mr. ROGERS of Kentucky. I reserve the balance of my time.

Mr. DICKS. I yield 2 minutes to the distinguished gentleman from Indiana (Mr. VISCLOSKY).

Mr. VISCLOSKY. I thank the gentleman for yielding.

I rise today to express my great appreciation for the tireless efforts Chairman ROGERS and Ranking Member DICKS have expended in this Congress and this fiscal year. They, the other committee Members, and the committee staff have applied their expertise and a tremendous amount of energy and effort in their attempt to return the appropriations process to the regular order. To their credit, Chairman ROGERS and Mr. DICKS have allowed this body to pass more than a majority of our bills.

While I support the continuing resolution, I am abjectly disappointed that the Congress is, once again, going to fail at one of its most fundamental responsibilities. We are all elected to make discrete decisions about Federal programs. By being unable or unwilling to pass individually negotiated appropriation bills, we are doing a great disservice to our constituents and to our country by not providing the guidance necessary for Federal programs to operate effectively.

As the ranking member of the Energy and Water Subcommittee, I would like to highlight the National Nuclear Security Administration as an example of where this CR does not provide the necessary oversight for good government. The agency is plagued by dramatic cost increases on nearly every major task under its jurisdiction. The poster child of this inability to accurately estimate cost is the Life Extension Program for the B–61 bomb, the pricetag of which has gone from $4 to $10 billion.

And I would also be remiss if I did not mention my disappointment that an anomaly for the United States Enrichment Cooperation is included in the CR. The government has subsidized this company for far too long, and we shouldn't continue to throw good money after bad. I believe that the national security arguments for this program are inconsistent and unpersuasive, and while USEC may have a pressing need for a bailout, there is no immediate defense requirement.

In closing, I do support the CR because it is timely and bipartisan, but we need to break the habit of perpetually kicking every hard decision and deadline down the road.

Mr. ROGERS of Kentucky. I reserve the balance of my time.

Mr. DICKS. I yield 2 minutes to the distinguished gentlewoman from New York (Mrs. LOWEY), the ranking member of the Foreign Operations Subcommittee.

Mrs. LOWEY. Mr. Speaker, I rise in support of the continuing resolution. Two of Congress' primary responsibilities are setting Federal spending levels and being a good steward of taxpayer dollars. We should all agree that is best accomplished when we comb through the budget, line by line, to enact responsible spending bills.

That became impossible when the majority walked away from the agreement in last year's Budget Control Act. As a result, the House engaged in a futile attempt to adopt bills that simply don't add up to the spending levels already agreed upon.

A temporary blanket extension of funding doesn't allow us to prioritize increased investments in STEM education, biomedical research, clean energy, infrastructure, advanced manufacturing, and job training initiatives that will grow our economy and create jobs. And a CR also inhibits our efforts to root out wasteful spending.

I will support this bill. We must keep the government operating. However, next year, we must work across the aisle to ensure adequate investments in activities that will facilitate economic growth and best serve our national interest.

I would also like to take a moment to thank my good friend, NORM DICKS. It has been a privilege to serve on the committee with you, and your expertise, steady hand, and leadership will be greatly missed.

Mr. DICKS. I yield 2 minutes to the distinguished gentleman from North Carolina (Mr. PRICE), who's the ranking member on the Homeland Security Subcommittee.

Mr. PRICE of North Carolina. Mr. Chairman, a continuing resolution is a sign that a budget has failed. And this appropriations process was destined to fail from the start as Republicans unilaterally abandoned the Budget Control Act statutory spending caps in favor of the unworkable caps of the Ryan budget.

This 6-month stopgap spending bill proves that the Ryan budget is a lemon. A lemon's a car that won't start, and the Ryan budget is still a nonstarter because it's out of step with the Budget Control Act, with our priorities, and with our values.

While the CR avoids the worst of the Ryan budget's cuts to education, infrastructure, and research, this isn't the way Congress should be budgeting. We should be considering final appropriations bills for Homeland Security and other agencies, or an omnibus bill, that would provide certainty about funding levels for fiscal 2013.

The whole notion of a 6-month CR begs the question: If we can pass a 6-month bill, why not return to the regular order and pass a 12-month bill?

I'm pleased that the CR incorporates a number of ''anomalies'' which accommodate the Department of Homeland Security's need for flexibility in both cybersecurity and Customs and Border Protection personnel. By providing funds for both the EINSTEIN 3 system and for Federal network security, we're ensuring the Federal Government is prepared to tackle the next generation of cyberattacks before they disrupt the Federal network.

□ 1530

On the other hand, I remain concerned that, by not enacting the committee product, we are providing inadequate funding for FEMA first responder grants and for the science and technology directorate. These accounts were badly underfunded in 2012, and passing a CR rather than our 2013 bill continues the shortfall.

Now, the CR, some say, at least lets us keep the government open. Well, we're really in bad shape if the best we can say for ourselves is that we're keeping the government open! Any such claim of success simply underscores how low the bar was set earlier in the current Congress as House Republicans forced the country to lurch from one manufactured crisis to the other. We must do better.

Mr. ROGERS of Kentucky. Mr. Speaker, I yield myself such time as I may consume to engage with the ranking member and clarify some apparent confusion on this CR's provision regarding cybersecurity, if the gentleman would engage.

The language in section 137 of the CR, regarding cybersecurity, is explicit and clear. The phrase that's apparently in question refers solely to the Federal Network Security program. The Federal Network Security is a limited program that provides security systems on government networks, not private. So no funds are for any new executive order. No funds or language expands any DHS authorities, and none of the funds or language in this section has anything to do with the regulation of private sector infrastructure, and we have confirmed that in writing with the Department of Homeland Security.

Without this anomaly, the program will be suspended due to the lack of available funding, and the monitoring of Federal civilian networks will be further delayed, leaving them vulnerable to infiltration and subsequent breach. That's all we are trying to prevent with this provision.

Let me also add that this provision is an abbreviated version of what is contained in both the House-passed and Senate-reported fiscal year 2013 appropriations bills—something our committees have been working on all year.

With all of that said, I now yield to the committee's distinguished ranking member, the gentleman from Washington (Mr. DICKS), who I believe agrees with this clarification.

Mr. DICKS. I thank the distinguished chairman for yielding on this vital matter, and I completely concur with his stated clarification on this CR's

funding and language regarding cybersecurity.

I strongly supported the inclusion of this anomaly, and see it as essential but also limited in scope to only the securing of our vulnerable Federal civilian networks. This provision does not intrude upon the authorizers' jurisdiction or enable a new executive order in any way.

Mr. ROGERS of Kentucky. I reserve the balance of my time.

Mr. DICKS. I yield back the balance of my time.

Mr. ROGERS of Kentucky. Before I yield back, Mr. Speaker, let me take a moment to talk about the ranking member.

Mr. DICKS, as I said before, has served on this committee for 30-plus years. I'm not exactly sure how many. How many is it? It is 36 years. He has been a very, very dedicated member of the committee, including—and most especially—of the Defense Subcommittee on which he has served for, I think, 34 years. Before that, he was an aide to a Member of Congress, so he has wide, deep experience in this body.

Maybe just as importantly, perhaps even more so, is the dedication that he has given to the country through his service in the Congress. I, personally, have found him to be a close friend. He has also been a great partner in this appropriations process since I have become the chairman of the committee. He has been helpful in a thousand instances. His heart is in the right place. His mind is on the business of serving the public, especially the military part of that service.

We're going to miss NORM DICKS around here. He is going to leave a large hole in our hearts but also in the business of this body and this Congress, so we wish him well as he embarks upon a new career, perhaps, and a new way of life, perhaps. I've got an idea there are going to be a few fish involved in that future, but we are going to miss NORM DICKS for all that he has meant to us.

This may be the last bill that he has a part in. I hope, perhaps, there will be something in the lame duck; but in case there is not, I wanted to be sure that we said some words of deep, profound thanks to a patriot who has served his country as few others have. I wish NORM DICKS the very, very best as he embarks on the next phase of his life.

I will be happy to yield to the gentleman.

Mr. DICKS. I want to thank the chairman for his very kind remarks. It has been a deep pleasure working with you and your very able staff. I think one of the reasons for the success of trying to restore regular order is that we've had good staff cooperation at all levels. I want to thank our staff, both the majority and minority, for their excellent work.

It has been a great pleasure working with you. Again, let's hope we can convince people that we should get our work done so when we come back in the lame duck session we can finally put the omnibus bill together for 2013 and get this accomplished. I know that's what the chairman wants and that that's what I want, but I appreciate his kind remarks. I appreciate his courtesy and his leadership of our committee. Thank you.

Mr. ROGERS of Kentucky. Finally, Mr. Speaker, I want to mention staff. As the ranking member has said, none of this would be here but for this wonderful staff that we are blessed with.

Bill Inglee on the majority side, the clerk; Will Smith, his deputy; and all of the staff on the subcommittees and the full committee have worked day and night—weekends included—on this bill. For that we are deeply appreciative. Then David Pomerantz on the minority side and all of the staff on the minority side, both full committee and subcommittees, have equally worked as hard and, most of the time, together on the same thing. So we want to thank them for the deep service that they've given to us.

With that, Mr. Speaker, I yield back the balance of my time.

Ms. CHU. Mr. Speaker, we know that in too many states and districts across the country, students with the greatest needs are being taught by teachers with little or no training, including those enrolled in alternative route teacher preparation programs. That's why I am so glad this legislation requires the Department of Education to provide Congress—and the nation—with comprehensive information on the extent to which our highest-need students, including students with disabilities, English learners, students from rural communities, and low-income students, are being taught by teachers-in-training who are enrolled in alternative route programs, disaggregated by state and district, as well as by student subgroups. The data that will be included in this report should be made public and disseminated to parents and other interested parties so that is understandable and actionable. Specifically, the provision requires:

The Secretary of Education must submit a report to Congress by 12/31/13 that provides a comprehensive picture, with state-level and LEA data, on the extent to which the following categories of students are taught by alternative route teachers-in-training who are deemed "highly qualified" pursuant to 34 CFR 200.56(a)(2)(ii): students with disabilities, English learners, students in rural areas, and students from low-income families. 34 CFR 200.56(a)(2)(ii) is the regulation that allows individuals participating in alternative route programs but who have not yet completed their full state certification to be labeled "highly qualified." This regulation was struck down by the Ninth Circuit in the Renee v. Duncan lawsuit, but written into statute in the December 2010 CR.

To produce the report required by this amendment, states and LEAs will be required to compile the data that they are already required to have under Section 1111(h)(6)(A) of NCLB regarding the professional qualifications of all their teachers, including: "Whether the teacher has met State qualification and licensing criteria for the grade levels and subject areas in which the teacher provides instruction.

Whether the teacher is teaching under emergency or other provisional status through which State qualification or licensing criteria have been waived.

The baccalaureate degree major of the teacher and any other graduate certification or degree held by the teacher, and the field of discipline of the certification or degree.

This data will provide essential information to parents, to educators and to policy makers so that informed decisions can be made so that we can strengthen one of our nation's most valuable assets, our public schools. We will be in a much better position to look at our neediest students and our neediest rural and urban school districts and determine the extent to which well prepared teachers are or are not equitably distributed. Mr. Speaker, I look forward to receiving this important report from the Secretary on December 31, 2013.

Mr. HONDA. Mr. Speaker, I am pleased to rise in support of an important provision that is included in this Continuing Resolution. This provision will enable the collection of essential information that we have long sought to make determinations about whether teachers are equitably distributed among our high needs schools. It will also help us understand which teachers are working with underserved students.

In many places, teachers-in-training are serving as teachers of record. While we know this, we do not know exactly where they are concentrated around the country or which subgroups of students they are primarily teaching. Data points are available for some locales, but not nationally. This provision will require the Department of Education to gather information about the extent to which students with high needs are being taught by teachers with the least amount of preparation, including students with disabilities, English language learners, low-income students and students in rural areas and report this information to Congress by December 31, 2013.

It is my hope that this report will require States and LEAs to compile the data that districts are already required to have under the Parents' Right to Know Section of NCLB regarding the professional qualifications of all their teachers.

I look forward to receiving this important report. The information presented will assist Congress, the public, parents and educators in making informed decisions about policy and practice.

The SPEAKER pro tempore. All time for debate has expired.

Pursuant to House Resolution 778, the previous question is ordered.

The question is on the engrossment and third reading of the joint resolution.

The joint resolution was ordered to be engrossed and read a third time, and was read the third time.

The SPEAKER pro tempore. Pursuant to clause 1(c) of rule XIX, further consideration of House Joint Resolution 117 is postponed.

□ 1540

NATIONAL SECURITY AND JOB PROTECTION ACT

Mr. GARRETT. Mr. Speaker, pursuant to House Resolution 778, I call up

the bill (H.R. 6365) to amend the Balanced Budget and Emergency Deficit Control Act of 1985 to replace the sequester established by the Budget Control Act of 2011, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Pursuant to House Resolution 778, the bill is considered read.

The text of the bill is as follows:

H.R. 6365

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''National Security and Job Protection Act''.

SEC. 2. FINDINGS.

Congress finds the following:

(1) Current law requires that there be across-the-board cuts, known as a ''sequester'', imposed on January 2, 2013. The sequester will result in a 10 percent reduction in non-military personnel programs of the Department of Defense and an 8 percent reduction in certain domestic programs, such as the National Institutes of Health (NIH) and border security.

(2) Intended as a mechanism to force action, there is bipartisan agreement that the sequester going into place would undercut key responsibilities of the Federal Government.

(3) As the Administration stated in its fiscal year 2013 budget request, ''[Sequestration] would lead to significant cuts to critical domestic programs such as education and research and cuts to defense programs that could undermine our national security. . . . [C]uts of this magnitude done in an across-the-board fashion would be devastating both to defense and non-defense programs.'' (The Budget of the United States Government, Fiscal Year 2013, p. 24, February 13, 2012).

(4) On March 29, 2012, The House of Representatives passed H. Con. Res. 112, the budget resolution for fiscal year 2013, which includes reconciliation instructions directing House Committees to craft legislation that would achieve the savings required to replace the sequestration called for in fiscal year 2013, as established by the Budget Control Act of 2011.

(5) On May 10, 2012, the House of Representatives passed H.R. 5652, the Sequestration Replacement Reconciliation Act of 2012, which would replace the $98 billion sequestration of discretionary spending called for in 2013, as established by the Budget Control Act of 2011, by making changes in law to reduce direct spending by $310 billion through fiscal year 2022.

(6) An analysis of the impact of the sequestration prepared for the Chairman of the House Armed Services Committee found that if left in place, sequestration would cut the military to its smallest size since before the Second World War, all while we are still a nation at war in Afghanistan, facing increased threats from Iran and North Korea, unrest in the Middle East, and a rising China.

(7) Major consequences identified by the House Armed Services Committee include the following:

(A) 200,000 soldiers and Marines separated from service, bringing our force well below our pre-9/11 levels.

(B) Ability to respond to contingencies in North Korea or Iran at jeopardy.

(C) The smallest ground force since 1940.

(D) A fleet of fewer than 230 ships, the smallest level since 1915.

(E) The smallest tactical fighter force in the history of the Air Force.

(F) Our nuclear triad that has kept the U.S. and 30 of our allies safe for decades will be in jeopardy.

(G) Reductions of 20 percent in defense civilian personnel.

(H) Two BRAC rounds of base closings. (House Armed Services Committee memo entitled ''Assessment of Impacts of Budget Cuts'', September 22, 2011).

(8) Secretary Panetta and the professional military leadership have also looked at the impact of sequestration and reached similar conclusions.

(9) Secretary Panetta stated, ''If the maximum sequestration is triggered, the total cut will rise to about $1 trillion compared with the FY 2012 plan. The impacts of these cuts would be devastating for the Department. . . Facing such large reductions, we would have to reduce the size of the military sharply. Rough estimates suggest after ten years of these cuts, we would have the smallest ground force since 1940, the smallest number of ships since 1915, and the smallest Air Force in its history.'' (Secretary Panetta, Letter to Senator John McCain, November 14, 2011).

(10) General Dempsey, Chairman of the Joint Chiefs of Staff, stated, ''[S]equestration leaves me three places to go to find the additional money: operations, maintenance, and training. That's the definition of a hollow force.''.

(11) The individual branch service chiefs echoed General Dempsey:

(A) ''Cuts of this magnitude would be catastrophic to the military. . .My assessment is that the nation would incur an unacceptable level of strategic and operational risk.'' –General Ray T. Odierno, Chief Of Staff, United States Army.

(B) ''A severe and irreversible impact on the Navy's future'' –Admiral Jonathan W. Greenert, Chief of Naval Operations.

(C) ''A Marine Corps below the end strength that's necessary to support even one major contingency,'' –General James F. Amos, Commandant of the Marine Corps.

(D) ''Even the most thoroughly deliberated strategy may not be able to overcome dire consequences,'' –General Norton A. Schwartz, Chief of Staff, United States Air Force (Testimony of Service Chief before House Armed Services Committee, November 2, 2011).

(12) According to an analysis by the House Appropriations Committee, the sequester will also have a significant impact on non-defense discretionary programs, including the following:

(A) Automatically reducing Head Start by $650 million, resulting in 75,000 fewer slots for children in the program.

(B) Automatically reducing the National Institutes of Health (NIH) by $2.4 billion, an amount equal to nearly half of total NIH spending on cancer this year.

(C) A reduction of approximately 1,870 Border Patrol Agents (a reduction of nearly 9 percent of the total number of agents).

(13) Beyond the negative impacts sequestration will have on defense readiness, it will also undermine the industrial base needed to equip our armed forces with the weapons and technology they need to complete their mission. A study released by the National Association of Manufacturers suggests that 1.1 million workers in the supply chain could be adversely affected, including 3.4 percent of workers in the aerospace industry, 3.3 percent of the workforce in the shipbuilding industry and 10 percent of the workers in the search and navigation equipment industry.

SEC. 3. CONDITIONAL REPLACEMENT FOR FY 2013 SEQUESTER.

(a) CONTINGENT EFFECTIVE DATE.—This section and the amendments made by it shall take effect upon the enactment of—

(1) the Act contemplated in section 201 of H. Con. Res. 112 (112th Congress) that achieves at least the deficit reduction called for in such section for such periods; or

(2) similar legislation that achieves outlay reductions within five years after the date of enactment that equal or exceed the outlay reductions flowing from the budget authority reductions mandated by sections 251A(7)(A) and 251A(8) of the Balanced Budget and Emergency Deficit Control Act of 1985, as in force immediately before the date of enactment of this Act, as it applies to direct spending in the defense function for fiscal year 2013 combined with the outlay reductions flowing from the amendment to section 251A(7)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985 made by subsection (c) of this section.

(b) REVISED 2013 DISCRETIONARY SPENDING LIMIT.—Paragraph (2) of section 251(c) of the Balanced Budget and Emergency Deficit Control Act of 1985 is amended to read as follows:

''(2) with respect to fiscal year 2013, for the discretionary category, $1,047,000,000,000 in new budget authority;''.

(c) DISCRETIONARY SAVINGS.—Section 251A(7)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985 is amended to read as follows:

''(A) FISCAL YEAR 2013.—

''(i) FISCAL YEAR 2013 ADJUSTMENT.—On January 2, 2013, the discretionary category set forth in section 251(c)(2) shall be decreased by $19,104,000,000 in budget authority.

''(ii) ENFORCEMENT OF DISCRETIONARY SPENDING CAPS.—OMB shall issue a supplemental report consistent with the requirements set forth in section 254(f)(2) for fiscal year 2013 using the procedures set forth in section 253(f) on April 15, 2013, to eliminate any discretionary spending breach of the spending limit set forth in section 251(c)(2) as adjusted by clause (i), and the President shall issue an order to eliminate the breach, if any, identified in such report.''.

(d) ELIMINATION AND CONDITIONAL REPLACEMENT OF THE FISCAL YEAR 2013 SEQUESTRATION FOR DIRECT SPENDING.—

(1) ELIMINATION.—Any sequestration order issued by the President under the Balanced Budget and Emergency Deficit Control Act of 1985 to carry out reductions to direct spending for the defense function (050) for fiscal year 2013 pursuant to section 251A of such Act shall have no force or effect.

(2) CONDITIONAL REPLACEMENT.—To the extent that legislation enacted pursuant to section 3(a)(2) achieves outlay reductions that exceed the outlay reductions flowing from the budget authority reductions required in section 251A(8) of the Balanced Budget and Emergency Deficit Control Act of 1985, as in force immediately before the date of enactment of this Act, the direct spending reductions for the nonsecurity category for fiscal year 2013 otherwise required to be ordered pursuant to such section shall be reduced by that amount, and Congress so designates for such purpose.

SEC. 4. PRESIDENTIAL SUBMISSION.

Not later than October 15, 2012, the President shall transmit to Congress a legislative proposal that meets the requirements of section 3(a)(2) of this Act.

The SPEAKER pro tempore. The gentleman from New Jersey (Mr. GARRETT) and the gentleman from Maryland (Mr. VAN HOLLEN) each will control 30 minutes.

The Chair recognizes the gentleman from New Jersey.

GENERAL LEAVE

Mr. GARRETT. I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and include extraneous material on H.R. 6365.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from New Jersey?

There was no objection.

Mr. GARRETT. At this time, Mr. Speaker, I yield 3½ minutes to myself.

Mr. Speaker, under current law, there will be a $110 billion across-the-board cut known as sequester. It will be imposed in this country on January 2, 2013, resulting in a 10 percent reduction in the Department of Defense programs and an 8 percent reduction in certain domestic programs as well.

In May of this year, the House passed a bill to deal with this. That was H.R. 5652, the Sequester Replacement Reconciliation Act. What this legislation would do is it would replace that sequester of 2013 with commonsense spending cuts and reforms. Unfortunately, we have seen a lack of leadership both over in the Senate and in the White House. The Senate has failed to act on this legislation—the Senate, where all good bills go to die, so too with this, or any sequester replacement bill. Today the House will once again try to responsibly fix the sequester.

The National Security and Job Protection Act would ensure our national security, but at the same time we do that, we'll cut spending. The National Security and Job Protection Act would do two things quickly. First, it would turn off the sequester of Congress, enacting the House-passed reconciliation bill or similar legislation that achieves equal levels of deficit reduction. Secondly, the National Security and Job Protection Act would require the President of the United States to submit to Congress a legislative proposal to replace the sequester with an alternative no later than October 15 of this year.

Up until this point, we have seen absolutely no leadership, we have seen no plan from the President to fix this sequester problem, but yet there is strong bipartisan agreement that the sequester, as it is right now, is bad policy and should be re-prioritized. Once again, the President has failed to lead in this area, failed to put forward a credible response, failed to put forward a legislative proposal, and the Senate has failed as well. The result is that in less than 100 days we will see reductions that our own Secretary Panetta says will hollow out our Armed Forces and make totally arbitrary reductions in other spending programs.

Not only has the President failed to lead in this area, he has failed to put forward a plan. The President has also failed—and this is important—to submit to Congress a report, as law requires him to do so, detailing specifically how this administration would implement the sequester.

Mr. Speaker, after months, literally months, of stonewalling Congress on how this administration would implement the sequester, Congress now comes to the floor because we are forced to pass legislation requiring the President to submit a detailed sequester implementation program. When that legislation became law, as we said, the President's response has been no response. Rather than him doing his homework, the President has simply taken a pass on this matter and instead has provided Congress with nothing, and he is not even meeting the requirements of the law. It is an example, I think, to use the President's own word, of an ''incomplete'' by this President on his report card.

That the President lacks leadership is simply stunning to this Member and to the American people as well. As I say, the Senate is no better for failing to respond in this matter. The Senate refuses to take up any bill or to replace the sequester whatsoever.

Today, Mr. Speaker, we again come here passing legislation to try to solve this problem, to fix the sequester, to make sure that these draconian cuts do not go in place now. We're not saying that it has to be the House-passed bill that passed. We're also asking the President to put forward his own legislative proposal, for the Senate to act before the legislation takes effect.

Americans are looking for leadership, and they're getting it from the House of Representatives today.

With that, I reserve the balance of my time.

Mr. VAN HOLLEN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, this is really quite a charade we're engaged in here today on the floor of the House of Representatives. Let's just flash back a year ago to how we got to this spot.

At that time, our Republican colleagues threatened that the United States would default on its full faith and credit, that we wouldn't pay the bills that we already incurred, that this Congress had already voted for, and threatened to tank the economy unless we passed their version of the budget, the Ryan budget, the budget that came out of the House Budget Committee. In order to prevent the United States from defaulting, everybody got together—the House, the Senate, and the President—and they passed the Budget Control Act. To hear our Republican colleagues today, you'd think they had nothing to do with the Budget Control Act. We heard the chairman of the Budget Committee, Mr. RYAN, on television the other day not wanting to associate himself with that.

□ 1550

The reality is he voted for it. The Speaker of the House said he got 98 percent of what he wanted. Here's the Speaker of the House after we passed the Budget Control Act:

I got 98 percent of what I wanted. I'm pretty happy.

Now we are faced with the consequences of the Budget Control Act. What did it do? Two things: It cut spending, discretionary spending over 10 years by a trillion dollars by putting in spending caps, and it created a sequester process.

There's agreement in this House that allowing the meat-ax sequester agreements to take place would really be a stupid thing to do. There's agreement on that.

The issue is: How do we replace that? How do we achieve a similar amount of deficit reduction to replace that sequester?

We hear our Republican colleagues say there is no leadership from the President; they haven't heard any alternatives. That's just not true.

There are lots of alternatives that have been put on the table. They just don't like the alternatives. And do you know why? Because the Democratic alternatives to the sequester, and the one put forward by the President, takes the same balanced approach that's been recommended by bipartisan commissions.

They say that in order to tackle our deficit we should make additional cuts. But we should also eliminate a lot of special interest tax breaks for Big Oil companies. We should ask the very wealthy to go back to paying a little bit more in taxes, about what they were paying when President Clinton was President, the last time we balanced our budget.

The President has submitted that. In fact, a year ago the President sent down a plan right here on how we could take a balanced approach to deficit reduction.

Just yesterday in the Rules Committee, on behalf of my Democratic colleagues, we proposed a substitute that would totally have replaced the sequester, again through a mix of cuts, cutting some of the excessive agriculture subsidies, but also raising revenue by cutting some of the big breaks for Big Oil companies and asking the wealthiest to chip in a little bit more.

Our Republican colleagues who say they want a big open debate on the floor here, they denied us even a vote on that amendment. We're not going to get to vote today on that amendment. Instead, we're voting on this resolution that, even if we pass it and the Senate passes it and the President would sign it, it would do nothing about the sequester—nothing. That's why I said this is a charade.

We had an option to bring to the floor of this House a real substitute proposal that, if we passed it, it would have removed the sequester, made sure that there are no cuts to defense and nondefense under the sequester. We don't get to vote on that today. Instead, we're voting on something that is totally meaningless.

They say they're going to ask the President to submit a report to the

Congress. He's already done it. He did it a year ago. They just don't like it because it takes a balanced approach, because it does ask Big Oil companies to give up some of their big taxpayer subsidies.

So, Mr. Speaker, let's end the charade. The moment our Republican colleagues come to the conclusion that it's more important to protect defense spending than it is to protect special interest tax breaks for Big Oil companies, we can move on and deal with this in a balanced way, the same way bipartisan commissions have recommended.

I reserve the balance of my time.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair would remind all Members that it is inappropriate to traffic the well while a Member is speaking.

Mr. GARRETT. Mr. Speaker, I yield 5 minutes to the sponsor of the legislation before us, the gentleman from Florida (Mr. WEST), who recognizes that while the President may have presented a plan to this Congress, that bill went down 414–0, and to the Senate 97–0.

Mr. WEST. I want to thank my colleague for allowing me to come here.

This is not a charade. I served 22 years in the United States military, and I was part of a reduction in force coming out of Desert Shield/Desert Storm, and I know what these types of cuts will do to the military. Also, this is what these types of cuts will do to non-defense discretionary.

The sequestration will put at risk all that we have accomplished in education and weaken programs that help children, serve young families, send young people and adults to college and make the middle class American Dream possible.

Secretary of Education, Arne Duncan.

Secretary of Defense:

This mechanism of sequestration will force defense cuts that, in my view, would do catastrophic damage to our military and the ability to be able to be protect our country.

I think right now, Mr. Speaker, it's very simple. George Santayana had a quote back in the 1920s and said:

Those who fail to learn from history are doomed to repeat it.

At the end of World War I, we cut our military, then came World War II. At the end of World War II, we cut our military, then came the Korean War. At the end of the Korean War, we, of course, did the exact same thing, and, of course, we had to chase communism all over the world, Vietnam.

As I spoke about earlier, I participated in the RIF after Desert Shield/Desert Storm. This sequestration does one simple thing: It takes the Army and Marine Corps down to 1940s levels.

It puts 200,000 of our men and women in uniform on the streets.

It makes our United States Navy go to 1915 levels. Currently, we have a naval force of 283 warships. It goes down to 230.

It takes our Air Force down to the smallest Air Force we have had in modern history, when we created the United States Air Force. It cuts nontactical fighter squadrons.

If you talk to any of our service chiefs, if you listen to the Chairman of the Joint Chiefs who talks about hollowing out this force, we should not be doing this at a time when we all see what is happening in the world right now, when the United States of America has had a sovereign piece of its territory attacked. We have had an Ambassador that has lost his life. The message that we are going to send is that we are going to do nothing?

This legislation says, very simply, we have passed a plan out of the House. The Senate, if you don't like our plan, come up with your own plan. Mr. President, you are the Commander in Chief. Come up with a plan.

One of the things that you learn as a young officer, that if you ever get into a firefight, you are ever in an ambush, to do nothing means that people lose their lives. I will not stand here and do nothing at this time because those are my friends still in uniform; those are my relatives that are still in uniform.

Now, I did not have the ability to be selected to be on the supercommittee—maybe because I have only been here as a freshman—but that does not mean that I will not be an adult and present a solution that says, very simply, If you don't like what we passed in the House, then do something. Come up with a plan.

We just heard the debate about the continuing resolution, a continuing resolution we have been forced into because we have a Senate that has not passed a budget in close to 3 years. We have a Senate that has not taken up any appropriations bills.

Well, I will tell you—and I will reach out to my colleagues from the other side—at least here in the House we have done something. But we have been forced into a position with this sequestration to say we have got to come up with a solution. The supercommittee did not meet its enacted mandate.

Does that mean we're going to stop? Does that mean that we're going to look at the men and women in uniform and say we will allow this to happen? Did that mean that we're going to look at other people that are affected by these non-defense discretionary cuts?

All I'm saying is, with this piece of legislation, those who have come up with a plan, tell us what you want so that we do not have this occur. Think about the second- and third-order effects that will come to this.

We are talking about the people that will be lost in uniform.

Mr. VAN HOLLEN. Will the gentleman yield?

Mr. WEST. No, I will not yield, so please—thank you.

We're talking about the Department of Defense civilian positions that would be lost. We're talking about the defense industrial base, the technology that is going to develop the next generation of weapons systems for our men and women that will be lost. We're talking about a critical decision for the way ahead for the United States of America.

And I understand what has been said about this balanced approach that the President sent over in his fiscal year 2013 budget. They had $1.9 trillion of new taxes, but yet it never balances at any time. If it was such a good plan, such a good budget, no one here took it up. That's my concern.

This is a last chance for us to be the adults, to do something, to stave off this sequestration. The House voted. The House sent a piece of legislation out in May. The House voted on the Sequestration Transparency Act. We still have not gotten anything.

The Director of the OMB, Mr. Jeffrey Zients, testified before the Armed Services Committee he has no plan. All he did was sit there and say that, if you guys would stop with these tax cuts not being brought up on the rich, then this would not happen.

What is a fair share when the top 1 percent pays close to 37 percent of taxes? That's not the debate, Mr. Speaker. The debate is what we're going to do about this sequestration.

□ 1600

Mr. VAN HOLLEN. Mr. Speaker, I yield myself such time as I may consume.

We've heard before that there was this vote on the President's plan and that it got no votes. We had a vote on a fake President's plan. When we actually had to vote on the Democratic alternative, which the White House made clear was closer to their plan than the one that was put up for a fake vote, it got a huge vote from our Democratic colleagues.

I would just ask Mr. WEST to read his own amendment. Because if you read the bill, it's pretty clear if we were to pass it and the Senate was to pass it and the President would sign it, it doesn't make the sequester go away. No, it doesn't make the sequester go away. It calls for action. In fact, it says the President should submit a plan within a certain period of time. It's right here in your bill: Presidential submission not later than October 15, 2012. The President shall transmit to the Congress a legislative proposal.

Mr. WEST. If the gentleman will yield, it says that it would be replaced. If you come up with a plan, it will be replaced.

Mr. VAN HOLLEN. Exactly. And reclaiming my time, that's exactly right. That's exactly what it says. But you tell the President what his plan has to do. You tell the President that his plan cannot include one penny of revenue for the purpose of reducing the deficit. In other words, you say the President's plan has got to look like your plan.

So, Mr. Speaker, the issue here is not whether the President has a plan or not. He does have a plan. Our Republican colleagues don't like it because it says that it's more important to protect defense spending and protect domestic spending like NIH than it is to

protect special interest tax loopholes. And I see the chairman of the Armed Services Committee on the floor, and I respect him greatly. That's the position he took last October. Here's what he said when he was asked:

''If it came that I had only two choices, one was a tax increase and one was a cut in defense over and above where we already are, I would go to strengthen defense.''

That is the President's position. That's the President's position, Mr. WEST. He said we need to take a balanced approach to reducing the deficit. We need to combine cuts. But we also should end special interest tax breaks for the big oil companies. George Bush himself said when you've got oil above $50 a barrel, you don't need these ridiculous incentives to keep them drilling. And we should ask very wealthy individuals, frankly, to pay the same tax rate that the people who work for them do; the same effective tax rate. And we should eliminate some of these ag subsidies.

Now you asked about other proposals. I have a proposal in my hand. I took it to the House Rules Committee yesterday. It would have totally replaced the sequester. If we actually voted on this, it would replace the sequester for defense and nondefense. You know how we do it? We do it through cuts to big ag subsidies, we do it by eliminating subsidies for the big oil companies, and yes, we ask people making more than a million dollars a year to pay a little bit more because we think it's more important to do that than allow these cuts to defense to take place and all the consequences you talk about, and we think it's important to protect investments in places like NIH, people who are fighting to try and find cures for diseases.

So, Madam Speaker, the issue is not whether we replace the sequester. The President's got a proposal. I've got a proposal. It's how we do it. And, again, our Republican colleagues have doubled down on this idea that you're going to protect every tax break that's out there before you protect spending on our national defense.

I reserve the balance of my time.

Mr. GARRETT. Before we hear from our leader, I yield 15 seconds to the gentleman from Florida (Mr. WEST).

Mr. WEST. We voted to cut defense spending by $487 billion. We're talking about additional. And when you talk about raising these taxes, Ernst & Young had an independent report that talked about the adverse ramifications that will come from raising taxes.

Obviously, one thing we fail to understand, small business operators, subchapter S corps, LLCs, you're going to ruin this economy and more job losses by raising those taxes.

Mr. VAN HOLLEN. Madam Speaker. I yield myself such time as I may consume.

I just would ask the gentleman, and I would yield to him for an answer, whether he means Bain Capital is a small business.

Mr. WEST. I'm not talking about Bain Capital. You said raise taxes on individuals. I'm talking about personal income.

Mr. VAN HOLLEN. Madam Speaker, reclaiming my time. Mr. WEST, when Mr. Romney and Mr. RYAN and all our Republican colleagues cite those figures about passthroughs, that includes companies like Bain Capital. It also includes some Fortune 100 companies. The President has put forward a proposal that says let's act right now to extend tax relief to 98 percent of the American people and 97 percent of all passthrough businesses.

It's true we don't think that Bain Capital needs a big additional tax break when we've got a big deficit that we should deal with in what we think should be a balanced way.

I reserve the balance of my time.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (Mrs. MILLER of Michigan). Members are reminded to direct their remarks to the Chair.

Mr. GARRETT. I yield 1 minute to our leader, the gentleman from Virginia (Mr. CANTOR).

Mr. CANTOR. I want to thank the gentleman from New Jersey and commend the gentleman from Florida on bringing this bill forward.

Madam Speaker, the bill before us is not about tax rates. Because I think that that issue will be resolved one way or another here shortly in this election. We know that there's a difference between the two sides. Unfortunately, our counterparts on the other side of the aisle think it's very important in this tough economy to raise taxes. We don't believe that, Madam Speaker. The bill before us simply asks the President to give us his plan for replacing the first year of cuts in the sequester.

It has been 126 days since we passed our plan to responsibly replace the sequester with cuts that maintain our fiscal discipline. Our plan controls unchecked government spending and reduces wasteful and duplicative programs. But still there has been no action and no proposal coming from the other side of the Capitol, coming from the other side of the aisle.

It has been 126 days since the President said he would veto our plan. But he has failed to put forward an alternative. And the letter that some of us Republican leaders wrote on July 14 asking the President to engage with us to come and find a bipartisan solution to the sequestration, that letter has gone unanswered.

Madam Speaker, inaction carries a very high risk. Instability and unprecedented political transformation throughout the Middle East, a civil war in Syria, Iran's dogged pursuit of nuclear weapons in support for terrorism, as well as challenges posed by a rising China and geostrategic shifts in the Asia Pacific make maintaining American military preeminence as important as ever. And the deadly and tragic attacks on Ambassador Chris Stevens, Foreign Service Information Management Office Sean Smith, and two other Americans at our consulate in Benghazi, Libya, make clear that Islamic extremist terrorism remains a tremendous threat to the Middle East, the United States, and the international community.

If the cuts in the sequester go forward, they will fundamentally weaken our current and long-term security and our ability to meet challenges we're facing. Implementing these cuts will mean reductions in shipbuilding, aircraft and missiles, shrinking our current force to levels not seen since before World War II. And that means fewer defense-related jobs. According to a study conducted by the Aerospace Industries Association, the job losses will reach 2 million. Let me put that in perspective. The economy added less than 100,000 jobs last month. Worse, more people dropped out of the labor force than were added to it. Under the sequester, unemployment would soar from its current level up to 9 percent, setting back any progress the economy has made. According to the same study, the jobs of more than 200,000 Virginians, my own State, are on the line. A small business in my district called Produce Source Partners, which provides fresh food to military bases, says the sequester threatens the jobs of their 200 employees. Another small company in Virginia, HI-TEST Laboratories, could be forced to reduce their staff by as much as 30 percent. Removing these jobs from the community will shrink the local economy and set back an already underutilized business zone. That same predicament faces hundreds of hardworking men and women in towns from here to California.

Madam Speaker, we are here today asking the President simply to come forward with a plan. We are here today because the minority has failed to work with us to find a solution to prevent these cuts that would hollow out our military and result in massive layoffs.

Madam Speaker, the House has acted. Now we need leadership, Mr. President.

□ 1610

Mr. VAN HOLLEN. Madam Speaker, I yield myself such time as I may consume.

It's hard to know where to begin because—I hope everyone was listening very carefully. If we allow these spending cuts to take place, we will lose hundreds of thousands of jobs in Virginia alone. Thousands of jobs around the country.

You know, I've heard a lot of complaints from our Republican colleagues about the recovery bill and the fact that we had to do some emergency spending to prevent the loss of millions of jobs. You know what? That worked. And here our Republican colleagues here today are saying that we've got to make sure the spending cuts don't take

place because if we do, it will result in a lot of lost jobs.

Well, you know what? It takes jobs to build an aircraft carrier, absolutely. It also creates jobs when you invest in trying to repair and modernize our roads and our bridges, our infrastructure.

The President submitted a jobs bill more than a year ago to this House to do exactly that. Let's invest more in modernizing our infrastructure. We haven't had a single vote on the President's jobs bill.

So I'm really glad to hear our Republican colleagues say that if we make these kinds of cuts, it's going to result in lost jobs because you know what? You are right about that.

The debate today is not about whether we should prevent the sequester from taking place. As I said, we should. It's how we do that.

I heard again from the Republican leader the President doesn't have a plan. He has a plan. They just don't like his plan. They don't like his plan because it takes a balanced approach. It says, you know what? In addition to cuts, we should also ask people who make more than a million dollars a year to contribute a little more to reducing our national deficit and preventing the sequester. We should ask big oil companies to give up their taxpayer subsidies.

So, the question, Madam Speaker, is not whether we replace the sequester. There are lots of plans that I've already talked about. The one in my hand, I offered it yesterday. I can't get a vote on it today.

The issue is not whether; it's how. We should take a balanced approach.

I yield now 3 minutes to the gentlelady from Pennsylvania (Ms. SCHWARTZ).

Ms. SCHWARTZ. Madam Speaker, I'm pleased to participate in this debate in some ways, although I do have to say that this is not really the kind of honest debate that we need to be having. We should be having a conversation. We should have been having a conversation well before now about how we would avoid sequester and do it in a bipartisan way and do it in a balanced way. That is not what is happening. Right now what we're seeing is a Republican plan without that kind of conversation, without that kind of willingness to find common ground or balanced approach.

The Federal budget is about choices. The choices we make matter. Do we choose to protect our seniors, to grow the middle class, to make smart investments in our economy, to be able to reach agreement on deficit reduction in a way that is fair to the American people or not?

Republicans have made their choices, their priorities, and their values very clear. Once again, they are wasting America's time playing politics instead of working to find that common ground.

Sequestration was put in place to push us, to force us in Congress to work together on a bipartisan, balanced approach to deficit reduction. We knew it would be tough. We all knew we would not want to implement sequester, that that would be difficult. But we put on the table what needed to get done if we couldn't have that kind of conversation, and we have not yet seen the Republican leadership in the House be willing to engage in that kind of serious deficit reduction conversation that takes a balanced approach, respects our obligation to Americans and our future.

Today's legislation does not move us any closer to achieving the goal of deficit reduction done in a balanced way, in a fair way, in a real way. We know we must reduce the Nation's deficit in a balanced and fiscally responsible manner. We've seen every bipartisan independent commission tell us that.

It means, and they've told us and we know, that we have to take some hard hits in spending cuts, that we have to require greater efficiency and greater effectiveness from all sectors of government, that we must do this with a balance, with increased revenue. It cannot be done without it.

In order to build economic growth in our Nation, we need to do all of this. Deficit reduction means spending cuts, it means increased revenue, it means a balanced approach if we're going to grow the economy for now and the future.

The Republicans in Congress have rejected this balanced approach, and in doing so they have made it clear that they are not serious about deficit reduction. They are, in fact, willing to add $800 billion to our deficit with tax breaks to the wealthiest. That's what this legislation does today. They are adding $2 trillion more in defense spending, more than the Pentagon has said it needs to keep us safe and defend our Nation. They're willing to do this at the expense of our middle class, our seniors, and our economic recovery.

The Republican approach to replacing the sequester means that we will be less prepared to compete in the 21st century economy. Now is not the time to make drastic cuts in transportation and infrastructure, in innovation and clean energy, or in education and health care. And that's what this would do.

The Republican plan creates false and unfair choices for the American people.

Let's get serious. Let's have some real solutions. Let's move forward on deficit reduction and economic growth for the American people.

Mr. GARRETT. Madam Speaker, I would now like to yield 5 minutes to the gentleman from California (Mr. MCKEON) who recognizes that it is really not a balanced plan to say that we want to raise $3 on every American in taxes and only $1 in spending reductions, and it is not a balanced plan to say that we want to pick and choose winners and losers when it comes to the Tax Code reform.

Mr. MCKEON. Madam Speaker, I rise in strong support of the National Security and Jobs Protection Act offered by Mr. WEST from Florida. I have the privilege of serving on the Armed Services Committee with him, and I thank him for his leadership in bringing this important bill forward at this time.

It boggles my mind, Madam Speaker, that we are standing here ready to wipe out our national defense at a time when we turn on the TV in the morning and see the Middle East erupting, when we see Iran moving forward on their plans to achieve a nuclear weapon, when we see China increasing their defense spending while we're cutting ours.

People need to understand that we have cut $487 billion starting October 1 over the next 10 years out of our defense. And on top of that, we have added this problem of sequestration, which adds another 500, $600 billion over the next 10 years starting January 2.

The first $487 billion, some thought was put into, and plans. Even though we had to adjust our strategy that we've had since World War II, we've had to cut back. We know that we won't be able to carry out the missions that we've been called on to do in the future, but we will be able to survive, according to our military leaders.

But the sequestration—we held five hearings last September with all of our former military leaders, our current military leaders, former chairmen and Secretaries of these committees, and to a man, every single one said that the sequestration would hollow out and wipe out our national defense.

We would take the Navy back to the size it was in World War I, the Armed Forces, the ground forces back to the size they were in 1940, and the Air Force back to the smallest it's been since it was created. How does anybody think that given these times that is not a stupid thing to be doing?

The way the sequestration would take effect is you just pull out the budget and take a percentage—the administration hasn't told us yet what percentage; it's probably going to be about 15, 20 percent—off of every single line item. So mowing the lawn at Fort Dix will have the same priority as ammunition for the troops in Afghanistan. How can anybody think that that is a smart idea?

You know, we have a Constitution of the United States, and it tells us how we should operate here in this Congress. It says one body passes a bill, the other body passes a bill, a conference is formed, you work out your differences, you take it back for final passage, and send it to the President to be signed into law.

The House has acted. We took tough votes. We accomplished our objective of paying for the first year of sequestration, not just the defense cuts, but all of the cuts across the board, to move it back, pay for the first year, move it back into a time where we're

less stressed with the election upon us, where we could do it in a less political environment, and the Senate hasn't acted. In 126 days, the Senate hasn't acted. Excuse me. The other body hasn't acted.

□ 1620

Madam Speaker, they don't like our bill; I understand that. All they have to do is pass another bill, get it to conference, and then we'll work out the differences. We accomplished ours through cuts, they can accomplish theirs through increasing taxes, and then we can work out a difference. All the gentleman on the other side says is, They've presented a plan and we don't like their plan.

Well, a plan is nothing. What they have to do is pass a bill. Show us. Get the votes, pass a bill, and then go to the conference. It's in the Constitution. That's how we operate. And it's important enough that we should all act like adults and follow the Constitution and get it done. Our Nation, our security depends on it, and we don't have much time left to do it.

Madam Speaker, I think it's very important that we pass this bill. I encourage my colleagues to vote for it. Let's act like adults. Let's earn our salaries here. Let's get this job done.

Madam Speaker, I rise in strong support of the National Security and Jobs Protection Act offered by Mr. WEST, whom I have the pleasure of serving with on the Armed Services Committee. We all know that in less than 4 months, the automatic across-the-board cuts known as sequestration will go into full effect, significantly reducing funding for our national defense and vital domestic programs.

Mr. WEST and members of our committee understand just how much these draconian cuts will undermine our constitutional obligation to provide for the common defense. They will result in the United States having the smallest Army since World War II, the smallest Navy since World War I and the smallest Air Force in U.S. history. That is why President Obama's own Secretary of Defense, Leon Panetta, has said the pending sequester is devastating and akin to shooting ourselves in the head.

So the natural question is—what is our government doing to stop sequestration? On May 10, 2012, the United States House of Representatives passed a measured and responsible proposal to deal with this impending threat, H.R. 5652, the Sequester Replacement Reconciliation Act of 2012. Yet, 126 days later the Senate has not acted. The President has not acted.

Madam Speaker, the House is prepared to work with the President and the Senate on alternatives to sequestration. We urge them to come to the table. That's what Mr. WEST'S legislation does. Our colleagues in the Senate tell the press that they are negotiating a deal. Well they have been talking about that for a year now. It is time to put something down on paper and get it passed. We must not allow the well being of our troops and our national security to be used as a bargaining chip in this debate.

Just this week we were reminded at how unstable and dangerous our world is. The killing of Americans in Benghazi on the anniversary of Sep 11th is a reminder and a challenge to every member of this body that we must put our national security and our national interests first.

As one senior military official recently told me, America's inability to govern ourselves past sequestration plays directly into the hands of those who spread a narrative of American decline and will ultimately thrust us into a more dangerous world.

This legislation will require President Obama to live up to his obligation as Commander-in-Chief and submit his alternative plan to replace sequestration, while encouraging the United States Senate to do the same. Let us also not forget that it was the President who put defense "squarely on the table" last summer in the negotiations for the Budget Control Act.

Madam Speaker, we are running out of time before the draconian cuts in sequestration take effect. There are 111 days remaining. We need to work together to find a solution. I urge members to vote "yes" on this legislation.

Mr. VAN HOLLEN. Madam Speaker, I yield myself such time as I may consume.

I agree with the chairman of the Armed Services Committee; we should act like adults.

We agree that the sequester cuts are done in a stupid, meat-ax way. We also agree with what the chairman of the Armed Services Committee said last October when, if it came to choosing between allowing all of the terrible consequences that he rightly spoke about and taking a balanced approach to deficit reduction which included some additional revenue, he would accept the balanced approach.

Mr. MCKEON. Will the gentleman yield?

Mr. VAN HOLLEN. I will yield for a very quick question.

Mr. MCKEON. You presented something that I said when I was asked after a speech what I would do, given two bad choices. But you don't have anything on the floor yet. You haven't passed a bill, so I don't even have the opportunity to vote for increased taxes because you haven't passed a bill yet.

Thank you.

Mr. VAN HOLLEN. Thank you, Mr. Chairman.

We wanted to give you that opportunity yesterday, which is why I went to the House Rules Committee with this substitute—which is in my hand, Mr. Chairman—that said you can replace the sequester right away if you're willing to cut some big ag subsidies, which I thought we were all agreed that we could do, but also get rid of some of the subsidies for the Big Oil companies, not some of the smaller producers, the big five, and you ask folks over $1 million to pay the same effective rate that people who work for them pay.

I agree with what you said last October, which is that it's more important to prevent the kind of cuts that we're talking about here today to defense and non-defense than it is to protect tax breaks for Big Oil companies.

Mr. Chairman, I wanted to vote. We wanted to vote. If the Rules Committee will allow us a vote, you can do it right now. In fact, the thing I have in my hand, the substitute, if we passed it, would actually replace the sequester. The resolution on the floor doesn't replace the sequester, even if it goes to the White House.

I now yield 3 minutes to the gentleman from Michigan, the distinguished ranking member of the Ways and Means Committee, Mr. LEVIN.

(Mr. LEVIN asked and was given permission to revise and extend his remarks.)

Mr. LEVIN. Well, I have now been here 30 years, with 26 on the Ways and Means Committee. So why are we at this point of serious impasse? I think a major reason is that the radical right has taken over House Republicans. Balance is considered surrender; compromise is considered retreat.

Indeed, since the passage of the Budget Control Act in August of 2011, the Republicans have made sequestration even more likely. Before August of last year, the Republican position was no new revenues. The Bush tax cuts for the very wealthy were untouchable. But in their budget passed this March, the Republicans not only said that the Bush tax cuts for the wealthy must continue, but also they should be expanded. They are doubling down on a policy of tax cuts for the wealthiest while annual income stagnation continues for the middle class, and we have the worst income inequality in generations. So, in a word, they went from bad to worse, furthering the likelihood of sequestration.

Under the Ryan budget and the so-called tax reform fast-track bill they passed last month, a recent analysis concluded that the average millionaire would lock in an average tax cut of $330,000, while the average person making less than $200,000 would see their taxes rise by $4,500.

I support tax reform, but so far Republicans have refused to say which policies they would eliminate to pay for it. It's been dodge and deception.

Half of the money in individual income tax expenditures is in the lower rates for capital gains and dividends, and they propose to cut those rates even further, Mr. RYAN down to zero on capital gains. Most of those benefits go to those making over $1 million. Most of the other major tax expenditures—mortgage interest, health insurance, education benefits that would have to be decimated—are mainly middle class benefits.

This bill ignores the fact that the President put forward a balanced deficit reduction package over a year ago that would have cut the deficit by $4 trillion over 10 years.

I close by emphasizing the word, ''balanced.'' Essentially, the Republican Party that I've known over the years has become very deeply imbalanced in terms of the mainstream of America.

Mr. GARRETT. Madam Speaker, at this time I'd like to yield 2 minutes to another gentleman from California (Mr. CAMPBELL), who understands that we are in fact presenting a balanced approach inasmuch as we present the options to either pass this legislation that the House already did or an alternative.

Mr. CAMPELL. I thank the gentleman for yielding.

Madam Speaker, I had made some notes I was going to say, but I'm now going to go off script as the gentleman from Maryland, who I genuinely like and respect, made some comments to which I feel I must respond.

The gentleman referred to, as the President does often, additional taxes on domestic energy, for which they use the pejorative ''Big Oil,'' and taxes on job creators, for which they are creating a pejorative, ''the rich,'' and that these two things will solve all ills.

Well, by my count, when we did the budget this year in the Budget Committee, the Democrats used those two taxes to pay for seven, by my count, different items of spending.

Now, let me explain what that's like. It's like this:

Here is a dollar. This is one dollar, a single dollar. If I go into a store and spend it and buy these breath mints, the dollar will be gone and I will have the breath mints. I cannot now take this dollar into six more stores and buy six more bits of breath mints because the dollar is gone. I spent it. So you cannot use the same tax increases to pay for everything that are multiple times what those tax increases will ever raise.

Now, I understand this is a political talking point. I get it. Look, we all do those. I get it. But this is not a game. We saw this week, with the reprehensible assassination of Ambassador Stevens, that our national defense is not a game—it is definitely not a game now—and our economy is not a game, as millions of people who are out of work can attest. This is a real proposal. We're asking the President for a real proposal and not a political talking point, and we need to solve this problem.

Mr. VAN HOLLEN. Madam Speaker, I want to thank my friend from California for those comments, and I would just say this:

I have in my hand a proposal, a substitute amendment. If we passed it, it would prevent the sequester from taking place on defense and non- defense in a balanced way. You spend these things one time to get rid of the sequester.

The chairman of the Armed Services Committee said he wished he had an opportunity to vote on something like this, and I say to him, I wish the Rules Committee had given him that opportunity.

With that, I yield 3 minutes to the gentleman from Maryland, the distinguished Democratic whip, Mr. HOYER.

Mr. HOYER. I thank the gentleman for yielding.

I tell my friend from California whose dollar was at issue here, the gentleman from California, I will tell you with all due respect and affection, your party, over the last 10 years, took that dollar and they bought those mints; and they went to the six subsequent stores and they gave them a credit card for the next mints they bought. It's time to pay the bill.

Mr. CAMPELL. Will the gentleman yield?

Mr. HOYER. I have a very short time, but I wanted to make that point that you kept buying mints; you just didn't keep paying.

Madam Speaker, this bill is another instance of this Republican caucus walking away from its responsibility. The budget sequester was never intended to be a solution in and of itself. It was meant to be the blunt instrument to force compromise. Unfortunately, ''compromise'' is a dirty word around here in some quarters.

To lay out conditions, as this bill does, requiring one side to concede before negotiations even begin—and while solving only part of the problem—disregards sequestration's fundamental purpose: to be equally unacceptable to both sides that it forces compromise.

□ 1630

This bill, which I strongly oppose, essentially says, let's pretend. Let's pretend we don't have a deficit challenge. It says, let's pretend that we can solve our problems by cutting domestic spending alone.

No rational human being believes that's the case. No cuts to Republicans' favored programs, no elimination of tax loopholes for oil companies or anybody else, no increases in revenue by asking the wealthiest to contribute a little more to setting our country on a sound path.

We're collecting the lowest amount of revenues we've collected in 70 years in this country, and we haven't cut spending, and we increased spending in the last administration very substantially. By the way, a greater percentage than this administration has increased the deficits: 86 percent versus 41 percent. Check the figures.

What we need, Madam Speaker, is pragmatism, principle, and serious governing. We need to be honest with the American people. Both bipartisan commissions that explored that issue concluded that the best solution is a balanced approach that addresses revenues, entitlements, and targeted cuts to domestic and defense spending. To achieve such a balanced solution, we need something that is sorely lacking in this House: courage, and a willingness to compromise, to come together, to reason together, and to make tough decisions together.

Sequester is the direct result of Republican policies and is a part of the Republican strategy to cut spending.

You keep saying, well, it's the Democrats. This is not a Democratic policy. It's an irrational policy, but it's in your bills and in your rules.

Now, instead of working with Democrats to turn off the sequester, Republicans are trying to paint the sequester as a Democratic initiative. That is false, untrue.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. VAN HOLLEN. I yield the gentleman another minute.

Mr. HOYER. The Republican cut, cap and balance bill enforces its cuts and its caps. How? Through sequestration. That's what you voted for.

After the agreement was reached on the Budget Control Act that put the sequester in place, Speaker BOEHNER said, ''I got 98 percent of what I wanted.'' Now our Republican colleagues are attempting to undo the sequester in a way that let's them off the hook politically but puts America at risk financially.

Democrats have an alternative—Mr. VAN HOLLEN just spoke of it—that would repeal the sequester for a year by asking that the wealthiest in our country, why, because they can help a little more, not because they're bad. God bless them. And by the way, we're most of those as well, folks.

I hope my friends on the other side of the aisle, who I know are as deeply concerned about our deficits and debt as I am, will join Democrats in defeating this bill and sending a message that only by working together can we find the solutions we need. America expects that of us.

Mr. GARRETT. Madam Speaker, at this time I yield 3 minutes to the gentleman from Oklahoma (Mr. LANKFORD).

Mr. LANKFORD. Madam Speaker, let's review. We have $16 trillion in debt, and it's climbing every single day. We have no budget from the Senate for the last 3 years. The President's budget got exactly zero votes in the House and in the Senate. And the Federal Government has dramatically increased spending, which has led to this spending-driven crisis.

Let me show you what I mean by that. Five years ago, in 2007, the Federal Treasury received in $2.5 trillion in revenue, the same amount that's estimated to come in this year in revenue, $2.5 trillion 5 years ago, $2.5 trillion now.

Five years ago, total spent by the Federal Government, $2.7 trillion, now $3.7 trillion. That almost looks like a $1 trillion difference in spending, which equals the same amount as our deficit.

It's amazing to me. When we process through this, the problem is crystal clear. It's just the solution that seems to evade us in this process.

Now, some would say, tell you what we need to do. We've increased spending $1 trillion, let's just increase taxes as well and that will solve the issue.

I would say, why are we spending money we don't have?

Last summer, we agreed that we would cut some spending and put a

group of people together in a room and let them work out a plan to find $1 trillion in cuts. The back-up, the emergency back-up plan was that we would cut across the board if a solution wasn't found, 10 percent for security, 8 percent for everything else.

Now, no one wants across-the-board cuts that are that huge. A 1 percent cut in agencies would be no big deal. I can't imagine any agency couldn't handle 1 percent. Two percent, no big deal. Maybe even 3 percent. But you start to climb up, and it really begins to cut into some agencies that are actually very efficient. Other agencies, you could do a 50 percent cut and it would be fine.

The problem is an across-the-board cut becomes a very big issue for us. Treating every line item the same is a mistake. Every part is not the same in our budget.

Let me give you an example. At my house, on a Saturday afternoon, I'll open up a Dr. Pepper can at my house and my very cute, red-headed 12-year-old daughter will walk up and say, Daddy, can we split that? I will almost always smile at her and say, sure, I'll take the liquid, you take the can and we'll split it even. To which she says to me, that's not really fair.

But it again comes back to the same point: not all parts are the same. If we do across-the-board cuts in every area, that is not the best way to do it.

Now, I guarantee you, you allow this House to go item by item through this budget, we will find $100 billion in cuts next year. I guarantee you. But doing across-the-board cuts into FBI, it cuts into our defense, it cuts into Border Patrol, it cuts into the basics and the heart of what we're doing; and we cannot do that.

The House passed a very specific plan for dealing with this last May. It is complete for us. Now it's time for the Senate to actually do their job, and it's time for the President to send that over to us.

Mr. VAN HOLLEN. I reserve the balance of my time.

Mr. GARRETT. Madam Speaker, I yield 4 minutes to the gentleman from California (Mr. CALVERT).

Mr. CALVERT. Mr. Speaker, I rise in support, obviously, of H.R. 6365, the National Security and Job Protection Act.

Do we need any more evidence than recent events in Egypt and Libya to oppose these devastating cuts and what it would do to our Nation security? I don't think so.

If sequestration occurs, it would cut the military to its smallest size since before World War II. All the while, we're still a Nation at war in Afghanistan, facing unrest and aggression in the Middle East, increased threats from Iran, China, and North Korea.

In addition to the 10 percent cut to defense, our domestic programs would have, such as health, science, research, education, border security, an additional 8 percent cut.

In May, this House passed the only plan that's been presented thus far to prevent and replace sequestration, last May, by providing and making commonsense reforms to our fast-growing government that's on auto pilot spending programs and to avert the spending-driven economic crisis that's before us.

Well, we've seen no signs of leadership from the White House or the Senate. But the House will act again today with H.R. 6365, the National Security and Job Protection Act. The House will lead, where others have not.

This legislation sends a clear statement that the House is ready to carry out our budgetary responsibilities. We just need willing partners. The President, the Senate, House Republicans and Democrats, we all agree on a common goal: replace the sequester to protect important domestic programs, our fragile economy, our national security and our troops.

This bill is a path to that solution. Make no mistake, if sequestration goes into effect, America will compromise a legacy of superiority on the land, on the sea, and in the air and potentially send our economy spiraling back into a recession.

I urge my colleagues to vote in favor of this bill, and I would hope that we could pass this with a large number and get on with it.

□ 1640

Mr. VAN HOLLEN. I now yield 1 minute to the distinguished Democratic leader, the gentlelady from California (Ms. PELOSI).

Ms. PELOSI. As we come to the floor this afternoon to talk about this sequester issue, the clock is ticking. Every moment we delay in dealing with the budget issue is a moment of time that does not increase confidence in our economy, that does not bring more certainty to our economic situation, and that does not reduce the deficit.

I heard the previous speaker say that this legislation that is on the floor would end sequestration. It does not. That is one of the major differences between it and the Democratic proposal put forth by Mr. VAN HOLLEN. Unfortunately, afraid of debate on the floor, the Republicans on the Rules Committee did not allow Mr. VAN HOLLEN's proposal to come to the floor today so that we could have a vote on it; but even with that, we can have a debate on it.

The debate is about fairness. It's about balance. It's about living up to our responsibilities. It's about saying, yes, we all have to compromise—there will be cuts; we need revenue; we want growth. That's what Mr. VAN HOLLEN's proposal does. It does, indeed, replace the sequestration. It is a better plan. It actually does end sequestration, as I mentioned, through a mix of cuts and revenues.

The reason we have a problem here is that our Republican colleagues have refused to have one red cent from the wealthiest people in our country contribute to resolving this fiscal crisis, this budget crisis—not one red cent. If they cared as much about defense as they say, 1 year ago they would have agreed to a plan with fairness and balance, where we would have had growth on the table, making decisions about revenue and about cuts to produce growth and not getting into a situation that called for across-the-board cuts in defense and in our domestic budget.

This is really silly. It's really silly. It's not serious. It's a charade, this bill that they have on the floor today. It just keeps making matters worse as the clock keeps ticking. So I urge my colleagues to reject this mirage of a bill that poses as a suggestion and to support, instead, ideas that are being advanced by Mr. VAN HOLLEN. I don't like everything about it. We've cut over $1 trillion. That's how we got through last year—all cuts, no revenue.

You need only see how we differ by just looking at the Ryan-Romney Republican budget. Their blueprint says we're going to end Medicare; we're going to make seniors pay $6,000 more as we end Medicare; and we're going to give tax cuts to the wealthiest people in our country. That's not fair and that's not balanced, but that is what would happen if the Republican bill were to become law. It would enact the Ryan bill. So I urge my colleagues to think very seriously about this, because people sent us here to find solutions. We must resolve this.

When the Speaker of the House says, I'm not confident we can do this, we are confident we can do anything we set our minds to, and we certainly have to be confident that we can honor our responsibilities to the American people. We all have to go to the table and be willing to yield, willing to compromise. We had to do it with President Bush, Senior, and with President Bush on his recovery package for our country. Democrats cooperated with both of those Presidents when we were in the majority.

Why is it that the Republicans in the House see no reason to compromise even at the risk of the full faith and credit of the United States of America? even at the expense of the health of our economy? even at the expense of jobs for the American people?

Vote ''no'' on this mirage. Support what Mr. VAN HOLLEN is putting forth. Let's get moving because the clock is ticking.

Mr. GARRETT. I yield 4 minutes to the gentleman from South Carolina (Mr. MULVANEY).

Mr. MULVANEY. I thank the gentleman from New Jersey.

I saw the gentleman from Maryland this morning on television. It was the first time I had heard, Madam Speaker, of his proposal. So I had a chance to take a look at it today, and I also had a chance to look at the CBO report that was performed on it. I saw some interesting things that I don't know if we've discussed fully here today.

It raises taxes by $85 billion over the 10-year window. According to the CBO, it raises spending by almost $80 billion. This is a refrain that I used to hear a lot when I was younger—taxes and spending, taxes and spending, raise taxes and increase spending. I thought it was gone from today's party across the aisle, but evidently, here it is—alive and well—in Mr. VAN HOLLEN's substitute offering, raising taxes by $85 billion and raising spending by $80 billion, which is a net reduction of the deficit of $5 billion over 10 years. According to the CBO, it actually increases the deficit by $55 billion in the first year.

It does that, by the way, in part and parcel by offering what they call the Buffett rule. The last time I came to this well, I believe the gentleman from Maryland and I had a nice exchange about whether or not my amendment was a gimmick. It was the amendment regarding the President's budget. I seem to remember someone else calling the Buffett rule a gimmick. In my research in coming over here today, I found out that it was, in fact, the President of the United States who called the Buffett rule a gimmick. So I'm wondering now if the President believes that part of the gentleman from Maryland's offering is, in fact, a gimmick because it encompasses the Buffett rule in its entirety.

I compare all of this, Madam Speaker, to the offering that we have before you with our bill. That bill reduces the deficit by at least $237 billion over the same 10 years. Theirs reduces it by $5 billion—raising taxes. According to the CBO, ours reduces the deficit by at least $237 billion. That's the smallest number the CBO gives us. It also gives us four times as much in deficit reduction in the first year as does the BCA that it seeks to replace. Again, theirs increases the deficit by $55 billion in the first year. Ours decreases it by more than the BCA it seeks to replace. Our offering does that without asking anybody to pay more money to the government. People pay enough money to the government. We spend their money improperly. It's not that we don't take enough from them. We take enough money from our citizens. We spend it improperly.

So, when I finished looking at this, I thought to myself, I think it would be great to have this come up for a vote. I'm disappointed that the Rules Committee did not give Mr. VAN HOLLEN the chance to bring it to the floor. It has happened to me before, and for that, I am sympathetic. At the same time, I know that he has a chance to do that still. We are going to finish this debate here in a few minutes; and before we vote, there is going to be a motion to recommit. The gentleman from Maryland could easily offer his amendment as the motion to recommit. In fact, I would welcome the opportunity to see that debate. I would welcome the opportunity here, 60 days before an election, to have my colleagues across the aisle come over and say, We want to raise your taxes. Would you please reelect us. I want that on the floor. I'm disappointed the Rules Committee did not bring it. I would love to see if that's really what our colleagues across the aisle stand for.

I heard it described by the gentlelady from California a few minutes ago as a better plan. I think we are doing a disservice by not allowing a vote on this particular bill, because it is not a better plan, and I think the vote here would bear that out, not just on our side of the aisle. I would be curious to see if that's what our colleagues stand for—more taxes, more spending here 60 days before an election.

I encourage folks to support our bill. Our bill cuts spending, lets people keep their money, and still allows us to end the sequester.

□ 1650

Mr. VAN HOLLEN. Madam Speaker, I wish Mr. MULVANEY were more persuasive with his colleagues because we agree. I wish we had a vote on this. We're happy to have that debate. In fact, that's what we've been having on the floor today.

We heard a lot from our colleagues about the devastating impact of these cuts on defense and other things, and we agree, which is why we think it's appropriate to ask people who earn more than a $1 million a year to help contribute a little bit more to our deficit so that we don't have to see these consequences.

I now yield 1½ minutes to the gentleman from New York (Mr. NADLER).

Mr. NADLER. Madam Speaker, addressing our debt is a critical long-term goal, but it's not our immediate problem. Right now, our immediate problem is high unemployment, and our economy needs efforts to spur job growth. The expiration of the Bush-era tax cuts, particularly those targeted toward the middle class, and the start of unparalleled across-the-board $1.2 trillion spending cuts mandated by the Budget Control Act sequestration provision, threatened further job growth.

Looking just at sequestration, there is rare agreement. Not the President, not the Congress, not anyone ever wanted or expected the sequestration measures to take effect. Why? Because we have a jobs problem, and the spending cuts demanded by sequestration are a huge jobs killer.

Republicans argue that this steep cut would risk defense-related jobs, and they're right. According to the Economic Policy Institute, these cuts would kill 1.3 million defense jobs in the first 3 years. But the Republicans completely ignore that the domestic spending cuts will also kill an estimated 1.3 million jobs in the same timeframe. Put another way, sequestration will kill 2.6 million American jobs in just 3 years. We simply must stop the sequestration-mandated spending cuts disaster, but this bill won't do that.

This bill mandates draining tens of billions of dollars of Federal spending next year, reducing the already draconian domestic spending caps, and doing all of this without adding a single dollar of additional revenue. The outcome is virtually the same. This Republican bill will still kill a couple of million American jobs. Talk about driving off a cliff.

Basic economics tells us that during good times, with low unemployment, government should reduce the national debt, but that to support job growth, government must not reduce spending during recessions. Now when we suffer from high unemployment, the proposed spending cuts, particularly those of the magnitude Republicans are proposing, would be disastrous. When we get to 5 percent unemployment, then we should start worrying about spending cuts. Right now, jobs are the issue.

Madam Speaker, I urge a ''no'' vote on H.R. 6365.

Madam Speaker, I rise in strong opposition to H.R. 6365.

While there is wide bipartisan agreement that getting control of our debt is a critical long-term goal, there is also agreement that unemployment is unacceptably high and that our economy remains in need of major efforts to spur job growth.

As we grapple with these issues, there are two significant events approaching at the end of the year that many have argued could send our economy careening off the so-called fiscal cliff: (1) expiration of the Bush-era tax cuts, particularly those targeted toward the middle class, and (2) the start of unparalleled, across-the-board $1.2 trillion spending cuts mandated by last summer's Budget Control Act sequestration provision.

On the tax question, we are where we've remained for years now—the President and Democrats agree that we can't afford to foot the bill for tax breaks for the wealthiest among us, while the Republicans continue to be beholden to the don't-tax-even-millionaires-and-billionaires plan.

But on sequestration, there is rare agreement. The simple truth is that no one—not the president, not the Congress, not anyone—ever wanted or expected the sequestration to take affect. Why? Because we have a jobs problem, and the spending cuts demanded by mandatory sequestration are a huge jobs killer.

In 2013 alone, sequestration would require that defense and discretionary domestic programs each incur an across-the-board $54.7 billion cut. Republicans have been spending a lot of time talking about the effects this steep cut would have on defense-related jobs. And they are right. According to the Economic Policy Institute, these cuts would result in the loss of 1.3 million defense jobs in just the first three years.

But, Madam Speaker, that is not the end of the story. The Republicans completely ignore the almost identical job loss from the mandated domestic spending cuts—also about 1.3 million jobs lost in three years, according to EPI.

Put another way, if we don't stop it, sequestration will be responsible for killing 2.6 million American jobs.

So we simply must stop the sequestration mandated spending cuts.

But this bill won't do that—at least, not really. H.R. 6365 still mandates (1) draining tens of billions of dollars of federal spending next year, (2) reducing the already draconian spending caps as outlined in the BCA, and (3) doing all this without adding one single dollar of additional revenue. So the outcome is the same—the Republicans would still kill a couple of million American jobs.

Talk about driving off a cliff.

But we won't hear about that from the Republicans, as they are too busy dancing as fast as they can to rewrite their role in setting up this self-made disaster in the first place.

During last summer's debt ceiling debate—another game of chicken where Republicans held our economy hostage—Republicans demanded a dollar-for-dollar spending cut in order to raise the debt limit so our nation wouldn't, for the first time ever, default on our debts. Sure, there was the charade of reaching compromise through the so-called super committee. But it should come as no surprise to anyone in this Chamber that we are where we are today. Republicans wanted deep cuts that would kill millions of jobs, and we now stand on the brink of implementing them.

Basic economics tells us that, if you want to support jobs and build the economy, government must not reduce spending during recessions. In good times, when unemployment is low, government should build surpluses to pay down the debt. In bad times, when unemployment is high, government should run deficits to make up for slowed private sector spending and to spur job growth. That is why what President Clinton did in the 90s—balancing the budget and beginning to pay down the national debt during a good economic time—was so good, and why what President Bush did—enacting huge tax cuts and running large deficits during a time of low unemployment, when he should have been paying down the national debt—was so devastating. Now, when we suffer from high unemployment, proposed spending cuts—particularly those of the magnitude Republicans are proposing—would be disastrous. When unemployment is down to five percent, then we can think about spending cuts. Now we must spur employment, and not enact these job-killing spending cuts.

Madam Speaker, it is imperative that we stop the misguided and self-made disaster that sequestration, or equivalent spending cuts, will bring. But H.R. 6365 won't do it. I urge a no vote.

Mr. GARRETT. Madam Speaker, I advise my colleague from Maryland that I have no further speakers at this time, and I reserve the balance of my time.

Mr. VAN HOLLEN. May I ask how much time remains on each side.

The SPEAKER pro tempore. The gentleman from Maryland has 3 minutes remaining, and the gentleman from New Jersey has 5 minutes remaining.

Mr. VAN HOLLEN. I yield 1½ minutes to the distinguished lady from Texas, Ms. SHEILA JACKSON LEE.

Ms. JACKSON LEE of Texas. Thank you very much to the ranking member of the Budget Committee.

Madam Speaker, we rise today to try to bring some logic and sense, because as Americans debate sequestration, they throw their hands up and say, What is that? What is that in the minds of children and the elderly? What does that mean in a real rational way of coming together and saying there are some cuts and there are some revenue increases to be able to invest in the American public?

In order to create jobs, you expend dollars, you invest in research and development, you help to create opportunities for small businesses, you help to promote manufacturing. That's how you create jobs.

But let me tell you what the underlying bill says. This bill will only take effect one year later. It has no opportunity, no desire, and no rationale to raise revenue. Every thinking economist says that we must raise revenue in order to reduce the deficit and continue to spend dollars to invest in the American public.

Do you want your military families to be on food stamps? Do you want 50 million Americans to suffer food insecurity? Do you want these Americans to suffer? That would include seniors on Meals on Wheels, home care, adult protective services. Millions of children, one-third of them, depend on these social service block grants, child protective services, foster care and child care. This also includes 1 million disabled, respite care or transportation. Do you want to, as I said, continue the food insecurity for 60 million children?

All I can say is that this bill not only kicks the can down the road; it kicks the mountain down the road. Let's vote against this bill. Let's sit down at the table, boost revenue, and invest in the American people.

Mr. VAN HOLLEN. Madam Speaker, I yield 45 seconds to the gentleman from Vermont (Mr. WELCH).

Mr. WELCH. Madam Speaker, we have a very serious debt problem in this country. We have a very serious jobs problem in this country. Both of those serious problems are solvable. The impediment is political.

This is exhibit A of a dysfunctional Congress. The supercommittee failed this Congress when the leadership on the Republican side implemented these sequester cuts. We all know they make no sense from an economic standpoint, but it puts the burden back on us to come up with the balanced approach that every American knows is the only way forward, a balance of revenues, a balance with entitlement reform, and the Pentagon making a contribution to solve our problems. That is what is going to create jobs, and that is what is going to create fiscal stability.

Mr. VAN HOLLEN. Madam Speaker, I yield myself the remainder of my time.

Madam Speaker, the issue all afternoon has not been whether we should replace the sequester. Yes, we should. The issue has been how we do that.

We've heard our Republican colleagues talk about the devastating impact of the sequester on defense and nondefense. We agree. That's why we put forward a plan to replace the sequester in the balanced way that has been recommended by bipartisan groups through a combination of cuts, but also revenues generated by things like closing the tax loopholes for big oil companies. Our Republican colleagues have just doubled down on the position that it's more important to protect tax breaks for big oil companies and very wealthy individuals than it is to protect our investment in spending in defense or other important national priorities. That's what this debate is all about.

I hope we will reject this proposal and adopt a more balanced one.

With that, Madam Speaker, I yield back the balance of my time.

Mr. GARRETT. Madam Speaker, I yield myself the balance of my time.

Madam Speaker, I began this day being interviewed by a group of southern college students, and the primary question that they asked was why can't Congress seem to work in a more bipartisan manner, work across the aisle, work with the other Chamber. I had to explain to them what was about to occur here on the floor; that one of the most seminal issues that we have to deal with in this country is fiscal matters and also our defense matters that this House, led by Republicans, have done everything we possibly could to make sure that this country stands strong fiscally and stands strong in a defense posture, as well. We've reached across the aisle, and we've reached across to the Senate in a bipartisan manner to effectuate that.

We have passed a budget out of this House only to find that bill go to the Senate where as they say ''all good bills go to die,'' and not have anything come back. We've communicated to the President of the United States that we want to work with him on a budget, only to see his own budget come to the Senate and fail 97–0, and come to this House and fail 414–0, not getting any Democrat or Republican support for that bill, as well.

We have reached across the aisle. We have tried to work on the fiscal matters and the defense matters when it comes to the sequester. We recognize the devastating impact that this will have on our defense posture in this country. As other Members have already come to the floor, in light of all the past circumstances that have come across this country in the last decade, in light of the memorial services that we just held, all of us, in a bipartisan manner out on those steps just days ago on September 11, in light of what has just been in the newspaper in the last several days of our embassies being attacked and Americans killed on American soil, we realize the important significance of making sure that we have a strong defense at this point in time.

I ask anyone who considers this legislation to vote ''yes'' in favor of this legislation, and anyone who would stand and vote ''no'' against trying to make sure that we're strong fiscally

and trying to make sure that we are strong in the defense posture as well, anyone who would vote ''no,'' I would ask them how do they when they go through the airport leaving here or coming to Washington, look anyone in uniform in the eye and say that they voted against a bill to make sure that there would not be the defense cuts here.

□ 1700

The other side of the aisle has no answer for that. Their only answer today, and as it's been ever since I've been here in Congress, is to say the solution to all problems is what? Raising taxes. As I said before, they want to raise $3 in taxes for every $1 in spending cuts.

We do not have a revenue problem in this country; we have a spending problem in this country. You know, there is an old saying that goes, if there is a dime left on the table in Washington, someone, primarily from the other side of the aisle I would suggest, will find a dollar's worth of use for spending it, and I think that's the case here. If they raise the taxes 3 to 1, they will find $30 worth of spending to increase.

As the gentleman from California pointed out, that was the example every single time in the Budget Committee. Every single time it was suggested for spending cuts, they were opposed. They would always use the same spending cuts to further increase spending elsewhere.

The gentleman from California makes the reference to spending a dollar every time for—what was it?—for breath mints, I think it was. Well, quite candidly, after listening to this debate, and after listening to the debate continuously in Budget Committee over years, I always leave there, as I will leave here tonight, with a sour taste in my mouth if the other side of the aisle does not agree to begin to work with us in a bipartisan manner to make sure that this country is strong fiscally, to make sure that this country is strong in a defense posture as well.

I would urge all of my colleagues from both sides of this aisle to vote ''yea'' on this legislation.

With that, I yield back the balance of my time.

The SPEAKER pro tempore. All time for debate has expired.

Pursuant to House Resolution 778, the previous question is ordered.

The question is on the engrossment and third reading of the bill.

The bill was ordered to be engrossed and read a third time, and was read the third time.

MOTION TO RECOMMIT

Mr. VAN HOLLEN. Madam Speaker, I have a motion to recommit at the desk.

The SPEAKER pro tempore. Is the gentleman opposed to the bill?

Mr. VAN HOLLEN. Madam Speaker, I am opposed.

The SPEAKER pro tempore. The Clerk will report the motion to recommit.

The Clerk read as follows:

Mr. Van Hollen moves to recommit the bill H.R. 6365 to the Committee on the Budget with instructions to report the same back to the House forthwith, with the following amendment:

Strike sections 3 and 4 and insert the following:

SEC. 3. BALANCED DEFICIT REDUCTION THAT PROTECTS MIDDLE CLASS TAX CUTS AND REQUIRES EVERYONE TO PAY THEIR FAIR SHARE.

(a) CONDITIONAL ELIMINATION OF SEQUESTRATION.—Sections 251A(7) through 251A(11) of the Balanced Budget and Emergency Deficit Control Act of 1985 shall have no force or effect upon enactment of subsequent deficit reduction legislation containing savings over 10 years that meet or exceed the outlay changes that would have resulted from those provisions.

(b) REQUIREMENTS OF DEFICIT REDUCTION LEGISLATION.—Deficit reduction legislation enacted pursuant to subsection (a) shall—

(1) require upper income taxpayers to pay their fair share by instituting a ''Buffett rule'';

(2) extend middle class tax cuts while allowing components of the tax extensions that benefit upper income beneficiaries to expire as scheduled under current law; and

(3) include targeted spending cuts.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Maryland is recognized for 5 minutes in support of his motion.

Mr. VAN HOLLEN. Madam Chair, let's just flash back to a year ago when we were working on the Budget Control Act, and it's, I think, worth reminding everybody what the Speaker of the House, Mr. BOEHNER, said at that time:

I got 98 percent of what I wanted. I'm pretty happy.

That's what the Speaker of the House said about the Budget Control Act.

We now find ourselves here trying to find a way to prevent these across-the-board meat-ax cuts from taking place in the defense budget and the non-defense budget. There is agreement that that would be a stupid way to deal with our deficit, so there's no dispute there.

The issue is: What do we do to replace the sequester, to achieve deficit reduction, but do it in a reasonable and credible way?

That's where the rub is.

What Democrats have said is we need to do it in the way that bipartisan groups have proposed that we do it, through a combination of additional cuts in a targeted way, not in a meat-ax, across-the-board way.

But, yes, we also have to ask the very wealthiest Americans to contribute more to reducing the deficit, because the math is pretty simple. If you don't ask very wealthy people to contribute one more penny to reducing the deficit, then you have to hit everybody else much harder. You have to hit seniors on Medicare harder. You have to reduce dramatically our investment in our kids' education. You have to cut investments in infrastructure, our roads and bridges. Those are the consequences of not taking a balanced approach.

So we say, when it comes to the sequester, we should avoid all the terrible things our colleagues have said and which we agree with. Let's take a balanced approach to do doing it.

You know what? The President submitted a plan to do just that, more than a year ago. It's not that he doesn't have a plan; it's our Republican colleagues don't like the plan. Why? Because he says we don't need to provide these big taxpayer giveaways to the Big Oil companies anymore. We don't need to cut dramatically into things like Medicaid and Medicare when we should be asking seniors to pay a little bit more. Let's ask them to pay what they were paying when President Clinton was President. That's the last time we balanced our budget.

The question is: How do we do it?

The President submitted a proposal. As I said earlier, I took a proposal yesterday to the Rules Committee that would have done this in a balanced approach. Our colleagues say they want an open, democratic process. We haven't had a vote on that.

Instead, we're going to have a vote on something that actually, even if it passes the House and the Senate and is signed by the President, doesn't do anything to eliminate the sequester, doesn't do a thing. It just says that the President has to come up with a plan. But they tell him what it has to do. They say it cannot be balanced. It cannot include any revenue. It has to be across the board in cuts.

Now let's talk a minute about taxes.

The President has called upon this Congress to immediately enact tax relief to 98 percent of the American people, let's do it now before they expire at the end of this year, and our Republican colleagues say, No, no. Nobody gets tax relief unless very wealthy people get a bonus tax break, because everybody on the President's proposal gets tax relief on the first $250,000 of their income. Our Republican colleagues say, No; unless people like Mitt Romney get an extra tax break, nobody gets tax relief.

You know what? The President's proposal provides tax relief to 97 percent of all pass-through businesses. The Republican colleagues say, No; unless you're going to give businesses like Bain Capital a bonus tax break, we can't ask them to contribute one more penny to reducing the deficit.

Let's talk about jobs. It was really interesting to hear our Republican colleagues talk today about the fact that, if you allow these budget cuts to take place, it will have devastating impacts on the jobs in this country.

You know what? A year ago this month, the President submitted a proposal to this Congress, a jobs initiative. It called for investing more in our infrastructure, in our roads and in our bridges, to help put more persons back to work. We have 14 percent unemployment in the construction industry.

So here are our Republican colleagues saying, Well, we can't allow any of these cuts to take place because people who were building tanks will

lose their jobs. And we agree; spending that money on defense has consequences. But how is it that spending money on roads and bridges and infrastructure doesn't also put people back to work? That's what the President proposed a year ago. Not a single vote on the President's jobs bill. There were 37 votes to repeal ObamaCare, but not one vote on the President's jobs bill.

So, Madam Speaker, whether it's acting on the jobs bill, which has been sitting here for more than a year, or acting on the President's proposal to immediately extend tax relief to 97 percent of the American people, or whether it's taking a responsible balanced approach to replacing the sequester, let's do what bipartisan groups have recommended and take that balanced way to build our economy and reduce our deficit.

I yield back the balance of my time.

Mr. GARRETT. Madam Speaker, I rise in opposition to the motion.

The SPEAKER pro tempore. The gentleman from New Jersey is recognized for 5 minutes.

Mr. GARRETT. The seminal question, I think, to those who are watching deliberations here on the floor tonight, they are asking themselves the question: Are you better off today than you were 4 years ago?

When you look at the economy, you have to answer that question with a resounding, ''No.'' Poverty is continuously up year after year after year, at the highest levels in this country we have seen since back in 1995, when one out of seven people in this country now find themselves, unfortunately, on food stamps.

□ 1710

Forty-seven million of our friends and neighbors find themselves in that situation. One out of six Americans will be on Medicaid. Are you better off today than you were in the past? Absolutely not. And that's why it's astonishing as I stand here to listen to the other side of the aisle and the proposals that they presented so far and that they have over the years.

For the last hour of the debate, the gentleman from Maryland has been saying one or two basic things, but one primary thing is that he went to Rules last night, that he had a plan. He pulled out his plan and he said, This is what the solution is. This is how we solve the problem. But the problem was that that mean old Rules Committee just wouldn't allow him to have it come down to the floor tonight.

Well, my friend and colleague from South Carolina made the recommendation to him: Take that proposal. If that is truly the answer in your heart, it's the right answer, that is truly the way to go, and lay it out. If you really do believe that the solution to the problem is by raising taxes to the tune of $85 billion and cutting spending to the extent that there's only a net reduction of $5 billion; if you truly do believe, as you said for the last hour, that the way to resolve the issue of sequester is by raising taxes by $3 for every $1 in cuts; if you truly believe, and for the last hour, as he has said, that is the solution to the problem, then he could have come here and presented an alternative in this format. But he has not done so.

Mr. VAN HOLLEN. Will the gentleman yield?

That's just not true. We asked the Parliamentarian, and they said we couldn't bring it in that format because of the rule.

Mr. GARRETT. Reclaiming my time, what we have here before us is a lack of direction, a lack of leadership that America is so looking for out of Washington. The American public is looking for leadership from Washington. They're not seeing it from the President, who has failed to present a budget that would get any single vote in either the House or the Senate—97–0, 414–0. They're looking for the Senate to demonstrate some degree of vision, some degree of leadership by taking any of the bills that we send over to them, whether it's the budget or the sequester legislation, and showing that they can pass that legislation. They're looking for some degree of vision from the other side of the aisle in the House as well on these matters to make sure that we can stand up fiscally and a strong defense, and they're seeing a lack of vision here by the other side of the House as well.

We know what writings tell us: A Nation without vision leads to a people that will perish. Well, Madam Speaker, I can tell you this: that the route these last 2 years, this Republican-controlled Congress has shown vision with our strong budget, with our sequester bill, and now with this bill as well to present the option to the other side, to the Senate, and to the President to make sure that we can defend this Nation strong militarily and fiscally as well.

I would encourage all my colleagues to vote ''no'' on this motion to recommit, and I yield back the balance of my time.

The SPEAKER pro tempore. Without objection, the previous question is ordered on the motion to recommit.

There was no objection.

The SPEAKER pro tempore. The question is on the motion to recommit.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Mr. VAN HOLLEN. Madam Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

THE SPEAKER pro tempore. Pursuant to clause 9 of rule XX, the Chair will reduce to 5 minutes the minimum time for any electronic vote on the question of passage.

The vote was taken by electronic device, and there were—yeas 170, nays 247, not voting 12, as follows:

[Roll No. 576]

YEAS—170

Ackerman
Andrews
Baca
Baldwin
Barber
Bass (CA)
Becerra
Berkley
Berman
Bishop (GA)
Bishop (NY)
Bonamici
Boswell
Brady (PA)
Braley (IA)
Brown (FL)
Butterfield
Capps
Capuano
Carnahan
Carney
Carson (IN)
Castor (FL)
Chu
Cicilline
Clarke (MI)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly (VA)
Conyers
Cooper
Costa
Costello
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis (IL)
DeFazio
DeGette
DeLauro
Deutch
Dicks
Dingell
Doggett
Doyle
Edwards
Ellison
Engel
Eshoo
Farr
Fattah
Filner
Frank (MA)
Fudge
Gonzalez
Green, Al
Green, Gene
Grijalva
Gutierrez
Hahn
Hanabusa
Hastings (FL)
Heinrich
Higgins
Himes
Hinchey
Hinojosa
Hirono
Hochul
Holden
Holt
Honda
Hoyer
Israel
Jackson Lee (TX)
Johnson, E. B.
Kaptur
Keating
Kildee
Kind
Kucinich
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis (GA)
Loebsack
Lofgren, Zoe
Lowey
LujaµAE1n
Lynch
Maloney
Markey
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McNerney
Meeks
Michaud
Miller (NC)
Miller, George
Moore
Moran
Murphy (CT)
Nadler
Napolitano
Neal
Olver
Owens
Pallone
Pascrell
Pastor (AZ)
Pelosi
Perlmutter
Polis
Price (NC)
Quigley
Rahall
Rangel
Reyes
Richardson
Richmond
Rothman (NJ)
Roybal-Allard
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell
Sherman
Sires
Slaughter
Smith (WA)
Speier
Stark
Sutton
Thompson (CA)
Thompson (MS)
Tierney
Tonko
Tsongas
Van Hollen
Velázquez
Visclosky
Walz (MN)
Wasserman Schultz
Waters
Watt
Waxman
Welch
Wilson (FL)
Woolsey
Yarmuth

NAYS—247

Adams
Aderholt
Alexander
Altmire
Amash
Amodei
Austria
Bachmann
Barletta
Barrow
Bartlett
Barton (TX)
Bass (NH)
Benishek
Berg
Biggert
Bilbray
Bilirakis
Bishop (UT)
Black
Blackburn
Bonner
Bono Mack
Boren
Boustany
Brady (TX)
Brooks
Buchanan
Bucshon
Buerkle
Burgess
Burton (IN)
Calvert
Camp
Campbell
Canseco
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Chandler
Coble
Coffman (CO)
Cole
Conaway
Cravaack
Crawford
Crenshaw
Culberson
Denham
Dent
DesJarlais
Diaz-Balart
Dold
Donnelly (IN)
Dreier
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Emerson
Farenthold
Fincher
Fitzpatrick
Flake
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gallegly
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guinta
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Hayworth
Heck
Hensarling
Herrera Beutler
Huelskamp
Huizenga (MI)
Hultgren
Hunter

Hurt
Issa
Jenkins
Johnson (IL)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Kelly
King (IA)
Kingston
Kinzinger (IL)
Kissell
Kline
Labrador
Lamborn
Lance
Landry
Lankford
Latham
LaTourette
Latta
Lewis (CA)
Lipinski
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Lungren, Daniel E.
Mack
Manzullo
Marchant
Marino
Matheson
McCarthy (CA)
McCaul
McClintock
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
Meehan
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mulvaney
Murphy (PA)
Myrick
Neugebauer
Noem
Nugent
Nunes
Nunnelee
Olson
Palazzo
Paul
Paulsen
Pearce
Pence
Peters
Peterson
Petri
Pingree (ME)
Pitts
Platts
Poe (TX)
Pompeo
Posey
Price (GA)
Quayle
Reed
Rehberg
Reichert
Renacci
Ribble
Rigell
Rivera
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross (FL)
Royce
Runyan
Ryan (WI)
Scalise
Schilling
Schmidt
Schock
Schweikert
Scott (SC)
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuler
Shuster
Simpson
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stearns
Stivers
Stutzman
Sullivan
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner (NY)
Turner (OH)
Upton
Walberg
Walden
Walsh (IL)
Webster
West
Westmoreland
Whitfield
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Young (AK)
Young (FL)
Young (IN)

NOT VOTING—12

Akin
Bachus
Blumenauer
Broun (GA)
Critz
Garamendi
Herger
Jackson (IL)
Johnson (GA)
King (NY)
Ross (AR)
Towns

□ 1733

Messrs. KISSELL, FORTENBERRY and LIPINSKI changed their vote from ''yea'' to ''nay.''

Mr. BERMAN changed his vote from ''nay'' to ''yea.''

So the motion to recommit was rejected.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore. The question is on the passage of the bill.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

RECORDED VOTE

Mr. VAN HOLLEN. Madam Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This will be a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 223, noes 196, not voting 10, as follows:

[Roll No. 577]

AYES—223

Adams
Aderholt
Alexander
Amodei
Austria
Bachmann
Bachus
Barletta
Bartlett
Benishek
Berg
Biggert
Bilbray
Bilirakis
Bishop (UT)
Black
Blackburn
Bonner
Bono Mack
Boustany
Brady (TX)
Brooks
Buchanan
Bucshon
Buerkle
Burgess
Calvert
Camp
Campbell
Canseco
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman (CO)
Cole
Conaway
Cravaack
Crawford
Crenshaw
Culberson
Denham
Dent
DesJarlais
Diaz-Balart
Dold
Donnelly (IN)
Dreier
Duffy
Duncan (SC)
Ellmers
Emerson
Farenthold
Fincher
Fitzpatrick
Flake
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gallegly
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guinta
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Hayworth
Heck
Hensarling
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jordan
Kelly
King (IA)
Kingston
Kinzinger (IL)
Kline
Lamborn
Lance
Landry
Lankford
Latham
Latta
Lewis (CA)
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Lungren, Daniel E.
Mack
Manzullo
Marchant
Marino
McCarthy (CA)
McCaul
McHenry
McKeon
McKinley
McMorris Rodgers
Meehan
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mulvaney
Murphy (PA)
Myrick
Neugebauer
Noem
Nugent
Nunes
Nunnelee
Olson
Palazzo
Paulsen
Pearce
Pence
Petri
Pitts
Platts
Poe (TX)
Pompeo
Posey
Price (GA)
Quayle
Reed
Rehberg
Reichert
Renacci
Ribble
Rigell
Rivera
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross (FL)
Royce
Runyan
Ryan (WI)
Scalise
Schilling
Schmidt
Schock
Schweikert
Scott (SC)
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stearns
Stivers
Stutzman
Sullivan
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner (NY)
Turner (OH)
Upton
Walberg
Walden
Walsh (IL)
Webster
West
Westmoreland
Whitfield
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Young (AK)
Young (FL)
Young (IN)

NOES—196

Ackerman
Altmire
Amash
Andrews
Baca
Baldwin
Barber
Barrow
Barton (TX)
Bass (CA)
Bass (NH)
Becerra
Berkley
Berman
Bishop (GA)
Bishop (NY)
Bonamici
Boren
Boswell
Brady (PA)
Braley (IA)
Brown (FL)
Butterfield
Capps
Capuano
Carnahan
Carney
Carson (IN)
Castor (FL)
Chandler
Chu
Cicilline
Clarke (MI)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly (VA)
Conyers
Cooper
Costa
Costello
Courtney
Critz
Crowley
Cuellar
Cummings
Davis (CA)
Davis (IL)
DeFazio
DeGette
DeLauro
Deutch
Dicks
Dingell
Doggett
Doyle
Duncan (TN)
Edwards
Ellison
Engel
Eshoo
Farr
Fattah
Filner
Frank (MA)
Fudge
Gonzalez
Green, Al
Green, Gene
Grijalva
Gutierrez
Hahn
Hanabusa
Hastings (FL)
Heinrich
Herrera Beutler
Higgins
Himes
Hinchey
Hinojosa
Hirono
Hochul
Holden
Holt
Honda
Hoyer
Israel
Jackson Lee (TX)
Johnson (GA)
Johnson (IL)
Johnson, E. B.
Jones
Kaptur
Keating
Kildee
Kind
Kissell
Kucinich
Labrador
Langevin
Larsen (WA)
Larson (CT)
LaTourette
Lee (CA)
Levin
Lewis (GA)
Lipinski
Loebsack
Lofgren, Zoe
Lowey
Luján
Lynch
Maloney
Markey
Matheson
Matsui
McCarthy (NY)
McClintock
McCollum
McDermott
McGovern
McIntyre
McNerney
Meeks
Michaud
Miller (NC)
Miller, George
Moore
Moran
Murphy (CT)
Nadler
Napolitano
Neal
Olver
Owens
Pallone
Pascrell
Pastor (AZ)
Paul
Pelosi
Perlmutter
Peters
Peterson
Pingree (ME)
Polis
Price (NC)
Quigley
Rahall
Rangel
Reyes
Richardson
Richmond
Rothman (NJ)
Roybal-Allard
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell
Sherman
Shuler
Sires
Slaughter
Smith (WA)
Speier
Stark
Sutton
Thompson (CA)
Thompson (MS)
Tierney
Tonko
Tsongas
Van Hollen
Velázquez
Visclosky
Walz (MN)
Wasserman Schultz
Waters
Watt
Waxman
Welch
Wilson (FL)
Wolf
Woolsey
Yarmuth

NOT VOTING—10

Akin
Blumenauer
Broun (GA)
Burton (IN)
Garamendi
Herger
Jackson (IL)
King (NY)
Ross (AR)
Towns

□ 1742

Mrs. SCHMIDT and Mr. GOWDY changed their vote from ''no'' to ''aye.''

So the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

CONTINUING APPROPRIATIONS RESOLUTION, 2013

The SPEAKER pro tempore. Pursuant to clause 1(c) of rule XIX, further consideration of the joint resolution (H.J. Res. 117) making continuing appropriations for fiscal year 2013, and for other purposes, will now resume.

The Clerk read the title of the joint resolution.

MOTION TO RECOMMIT

Mr. BARBER. Madam Speaker, I have a motion to recommit at the desk.

The SPEAKER pro tempore. Is the gentleman opposed to the joint resolution?

Mr. BARBER. I am opposed in its current form.

The SPEAKER pro tempore. The Clerk will report the motion to recommit.

The Clerk read as follows:

Mr. Barber moves to recommit the joint resolution H.J. Res. 117 to the Committee on Appropriations with instructions to report the same back to the House forthwith with the following amendment:

At the end of the joint resolution (before the short title), insert the following:

SEC. 156. (a) FULL YEAR FUNDING FOR MILITARY PERSONNEL ACCOUNTS.—Notwithstanding section 106, appropriations and funds made available and authority granted pursuant to this joint resolution (including section 101(c)) for the following accounts of the Department of Defense shall remain available until September 30, 2013:

(1) ''Military Personnel, Army''.
(2) ''Military Personnel, Navy''.
(3) ''Military Personnel, Marine Corps''.
(4) ''Military Personnel, Air Force''.
(5) ''Reserve Personnel, Army''.
(6) ''Reserve Personnel, Navy''.
(7) ''Reserve Personnel, Marine Corps''.
(8) ''Reserve Personnel, Air Force''.
(9) ''National Guard Personnel, Army''.
(10) ''National Guard Personnel, Air Force''.

(b) PERFORMANCE OF MEDICAL DISABILITY EXAMINATIONS BY CONTRACT PHYSICIANS.—The authority provided by section 704 of the Veterans Benefits Act of 2003 (38 U.S.C. 5101 note) shall continue in effect through the date specified in section 106(3) of this joint resolution.

(c) TREATMENT OF HOMELESS AND SERIOUSLY MENTALLY ILL VETERANS.—The authority provided by section 2031 of title 38, United States Code, shall continue in effect through the date specified in section 106(3) of this joint resolution.

(d) ADDITIONAL SERVICES FOR HOMELESS AND SERIOUSLY MENTALLY ILL VETERANS.—The authority provided by section 2033 of title 38, United States Code, shall continue in effect through the date specified in section 106(3) of this joint resolution.

Mr. ROGERS of Kentucky (during the reading). Madam Speaker, I ask unanimous consent that the reading be dispensed with.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Kentucky?

There was no objection.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Arizona is recognized for 5 minutes in support of his motion.

□ 1750

Mr. BARBER. Madam Speaker, I am offering this amendment to improve this legislation and truly show this Chamber's support for our veterans and men and women in uniform by preventing their pay and services from being impacted by a potential government shutdown next year. The underlying bill we are voting on today lacks key provisions that are needed to protect our veterans in Active Duty military. My amendment will add these provisions.

My amendment will ensure that our patriotic military men and women are not victims of partisan gridlock. My amendment ensures that basic military pay will not be interrupted in a potential shutdown. My amendment guarantees that our Armed Forces will be paid for the entire year, not just for the 6-month duration authorized by this continuing resolution.

Unfortunately, Congress has failed to do its job, and we cannot allow a government shutdown to impact the basic pay of our men and women in uniform. This is a guarantee and an assurance that they have a right to expect we will uphold no matter what.

My amendment also addresses the fact that three critical Veterans Administration authorizations are set to expire at the end of the year.

The first is for Contract Medical Disability Authority. Without this extension which my amendment provides, the VA would not be able to pay for contract medical exams from discretionary funds. This could significantly delay veterans' receipt of benefits.

The second authorization which my amendment extends would give the VA the authority to establish sites to treat homeless veterans and those with mental illness. Without this extension, the VA would not be able to provide these essential services at these sites.

The third VA authorization set to expire helps the VA provide housing and treatment to homeless veterans with a serious mental illness. Again, without this extension, the VA would no longer be able to provide for therapeutic transitional housing assistance for veterans who are homeless or who have a serious mental illness.

Our veterans stepped forward when we asked them to serve this great Nation. In return, it is our undeniable responsibility to help them find employment when they are able to work and to care for them when they are not. Tonight, there are about 70,000 homeless veterans who will sleep on the streets of our country. This is a situation that is absolutely deplorable, and we must act to provide them with the assistance they deserve.

None of what I've proposed here should be a partisan issue. This is about keeping our sacred promise to those who have defended our freedoms. There are nearly 100,000 veterans in my southern Arizona district and two military installations—Davis-Monthan Air Force Base in Tucson, where I grew up and where my father was deployed, and Fort Huachuca in Sierra Vista and the 162nd Fighter Wing of the Air National Guard just across the district line.

I am offering this amendment in thinking of the men and women who are stationed there and across this Nation and across the world. During our recent work period, I went to the airport in Tucson to honor the men and women of our Army National Guard as they left for deployment in Afghanistan. I told them and their families, on behalf of all of us, how grateful we are for their service. Today, I ask you to join with me in putting action behind those words. This is not a partisan issue. We can and must find common ground in this Chamber on this very issue.

This morning, my colleague Congressman PLATTS and I introduced a bipartisan bill, the Veterans Health Care Access Act. Our bill will make it easier for veterans to get access to the health care they need. What other issue we face is more important than this to both sides of the aisle than supporting our Armed Forces and our veterans?

At a time when we need to get services to our veterans who are newly returning home from Iraq and Afghanistan, we cannot be creating uncertainty and allowing a lapse of service or pay. This is about the Army sergeant I met on the flight going home who is now diagnosed with post-traumatic stress disorder and traumatic brain injury and who will soon be medically discharged. He deserves to know that we will stand up for him and others like him.

Let me say again that the passage of this amendment will not prevent the passage of the underlying bill. I urge my Republican and Democratic colleagues alike to vote ''yes'' on this final amendment and to support our military and to support our veterans.

I yield back the balance of my time.

PARLIAMENTARY INQUIRY

Mr. BURTON of Indiana. Madam Speaker, I have a parliamentary inquiry.

The SPEAKER pro tempore. The gentleman will state his parliamentary inquiry.

Mr. BURTON of Indiana. As I understand it, Madam Speaker, there is foreign aid money in this bill, and I want to know if any of it is going to Libya or Egypt. Our Embassies have been attacked. An ambassador has been killed. The Muslim Brotherhood runs Egypt—and we're going to give them money? I would like to have an answer.

The SPEAKER pro tempore. The Chair cannot respond to that inquiry. That is a matter for debate.

Mr. ROGERS of Kentucky. I rise in opposition to the motion to recommit.

The SPEAKER pro tempore. The gentleman is recognized for 5 minutes.

Mr. ROGERS of Kentucky. Madam Speaker, I rise in strong opposition to the motion to recommit. This procedural motion is nothing more than a dilatory tactic designed to score political points for the cameras.

We have worked fervently and in good faith to put together a CR that meets the Nation's critical needs for the next 6 months. We did take care of our veterans in this bill. We did take care of our troops. With the enactment of this CR, the funding for veterans will be $2.1 billion more than last year. The CR provides all the funds necessary for our troops' pay raise.

The only problem is, in order for the checks to go out, the Senate has to pass an authorization bill, which they've been sitting on for months. It's time for the Senate to act on behalf of our troops and our veterans.

Now, we've got to pass this CR to keep the government open and to keep the doors from closing on their government, yet the Democrats want to put a roadblock to passing this one piece of legislation that keeps the government running. The last time I checked, Madam Speaker, if you closed down the government, the Nation's most deserving—our troops and veterans—would not get a single dollar of the benefits that they deserve. So this bill is necessary.

With the November elections on the horizon, we should not be surprised that the other side wants to put politics ahead of doing our work—as usual. The American people expect us to stop the partisan bickering and get our work done. The time for idle talk is over. Enough is enough. We've got bipartisan agreement on this bill. The

House, the Senate—both parties—and the White House have signed off on this bill. The motion is not needed, it is not helpful, and the money is in the bill. Stop the political posturing, and make our citizens proud. Vote ''no.''

I yield back the balance of my time.

The SPEAKER pro tempore. Without objection, the previous question is ordered on the motion to recommit.

There was no objection.

The SPEAKER pro tempore. The question is on the motion to recommit.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

RECORDED VOTE

Mr. BARBER. Madam Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. Pursuant to clause 8 and clause 9 of rule XX, this 15-minute vote on the motion to recommit House Joint Resolution 117 will be followed by 5-minute votes on passing House Joint Resolution 117, if ordered; and suspending the rules and passing S. 3245.

The vote was taken by electronic device, and there were—ayes 189, noes 232, not voting 8, as follows:

[Roll No. 578]

AYES—189

Ackerman
Altmire
Andrews
Baca
Baldwin
Barber
Barrow
Bass (CA)
Becerra
Berkley
Berman
Bishop (GA)
Bishop (NY)
Bonamici
Boren
Boswell
Brady (PA)
Braley (IA)
Brown (FL)
Butterfield
Capps
Capuano
Carnahan
Carney
Carson (IN)
Castor (FL)
Chandler
Chu
Cicilline
Clarke (MI)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly (VA)
Conyers
Cooper
Costa
Costello
Courtney
Critz
Crowley
Cuellar
Cummings
Davis (CA)
Davis (IL)
DeFazio
DeGette
DeLauro
Deutch
Dicks
Dingell
Doggett
Donnelly (IN)
Doyle
Edwards
Ellison
Engel
Eshoo
Farr
Fattah
Filner
Frank (MA)
Fudge
Garamendi
Gonzalez
Green, Al
Green, Gene
Grijalva
Gutierrez
Hahn
Hanabusa
Hastings (FL)
Heinrich
Higgins
Himes
Hinchey
Hinojosa
Hirono
Hochul
Holden
Holt
Honda
Hoyer
Israel
Jackson Lee (TX)
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kildee
Kind
Kissell
Kucinich
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis (GA)
Lipinski
Loebsack
Lofgren, Zoe
Lowey
Luján
Lynch
Maloney
Markey
Matheson
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McIntyre
McNerney
Meeks
Michaud
Miller (NC)
Miller, George
Moore
Moran
Murphy (CT)
Nadler
Napolitano
Neal
Olver
Owens
Pallone
Pascrell
Pastor (AZ)
Paul
Pelosi
Perlmutter
Peters
Peterson
Pingree (ME)
Platts
Polis
Price (NC)
Quigley
Rahall
Rangel
Reyes
Richardson
Richmond
Rothman (NJ)
Roybal-Allard
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell
Sherman
Shuler
Sires
Slaughter
Smith (WA)
Speier
Stark
Sutton
Thompson (CA)
Thompson (MS)
Tierney
Tonko
Tsongas
Van Hollen
Velázquez
Visclosky
Walz (MN)
Wasserman Schultz
Waters
Watt
Waxman
Welch
Wilson (FL)
Woolsey
Yarmuth

NOES—232

Adams
Aderholt
Alexander
Amash
Amodei
Austria
Bachmann
Bachus
Barletta
Bartlett
Barton (TX)
Bass (NH)
Benishek
Berg
Biggert
Bilbray
Bilirakis
Bishop (UT)
Black
Blackburn
Bonner
Bono Mack
Boustany
Brady (TX)
Brooks
Buchanan
Bucshon
Buerkle
Burgess
Burton (IN)
Calvert
Camp
Campbell
Canseco
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman (CO)
Cole
Conaway
Cravaack
Crawford
Crenshaw
Culberson
Denham
Dent
DesJarlais
Diaz-Balart
Dold
Dreier
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Emerson
Farenthold
Fincher
Fitzpatrick
Flake
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gallegly
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guinta
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Hayworth
Heck
Hensarling
Herrera Beutler
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (IL)
Johnson (OH)
Johnson, Sam
Jordan
Kelly
King (IA)
Kingston
Kinzinger (IL)
Kline
Labrador
Lamborn
Lance
Landry
Lankford
Latham
LaTourette
Latta
Lewis (CA)
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Lungren, Daniel E.
Mack
Manzullo
Marchant
Marino
McCarthy (CA)
McCaul
McClintock
McHenry
McKeon
McKinley
McMorris Rodgers
Meehan
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mulvaney
Murphy (PA)
Myrick
Neugebauer
Noem
Nugent
Nunes
Nunnelee
Olson
Palazzo
Paulsen
Pearce
Pence
Petri
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Quayle
Reed
Rehberg
Reichert
Renacci
Ribble
Rigell
Rivera
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross (FL)
Royce
Runyan
Ryan (WI)
Scalise
Schilling
Schmidt
Schock
Schweikert
Scott (SC)
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stearns
Stivers
Stutzman
Sullivan
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner (NY)
Turner (OH)
Upton
Walberg
Walden
Walsh (IL)
Webster
West
Westmoreland
Whitfield
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Young (AK)
Young (FL)
Young (IN)

NOT VOTING—8

Akin
Blumenauer
Broun (GA)
Herger
Jackson (IL)
King (NY)
Ross (AR)
Towns

□ 1813

So the motion to motion to recommit was rejected.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore. The question is on the passage of the joint resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Mr. DICKS. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This will be a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 329, noes 91, not voting 9, as follows:

[Roll No. 579]

AYES—329

Ackerman
Aderholt
Alexander
Amodei
Andrews
Austria
Baca
Bachus
Baldwin
Barber
Barletta
Barrow
Bartlett
Bass (CA)
Bass (NH)
Becerra
Benishek
Berkley
Berman
Biggert
Bilbray
Bilirakis
Bishop (GA)
Bishop (NY)
Bishop (UT)
Black
Blackburn
Bonamici
Bonner
Boren
Boswell
Brady (PA)
Brady (TX)
Braley (IA)
Brown (FL)
Buchanan
Bucshon
Buerkle
Burgess
Butterfield
Calvert
Camp
Campbell
Cantor
Capito
Capps
Carnahan
Carney
Carson (IN)
Carter
Cassidy
Castor (FL)
Chaffetz
Chandler
Chu
Cicilline
Clarke (MI)
Clarke (NY)
Clay
Cleaver
Clyburn
Coble
Coffman (CO)
Cohen
Cole
Conaway
Connolly (VA)
Costa
Courtney
Cravaack
Crawford
Critz
Crowley
Cuellar
Culberson
Cummings
Davis (CA)
DeFazio
DeGette
DeLauro
Denham
Dent
Diaz-Balart
Dicks
Dingell
Doggett
Dold
Donnelly (IN)
Doyle
Dreier
Duffy
Edwards
Ellison
Ellmers
Engel
Eshoo
Farenthold
Farr
Fattah
Filner
Fitzpatrick
Fleischmann
Fortenberry
Frelinghuysen
Fudge
Gallegly
Garamendi
Garrett
Gerlach
Gibbs
Gibson
Gonzalez
Goodlatte
Granger
Graves (GA)
Green, Al
Green, Gene
Griffin (AR)
Grijalva
Grimm
Guinta
Guthrie
Gutierrez
Hahn
Hanabusa
Hanna
Harper
Harris
Hastings (FL)
Hastings (WA)
Hayworth
Heck
Heinrich
Hensarling
Herrera Beutler
Higgins
Himes
Hinchey
Hinojosa
Hirono
Hochul
Holden
Holt
Honda
Hoyer
Huizenga (MI)
Hultgren
Hunter
Hurt
Israel
Issa
Jackson Lee (TX)
Jenkins
Johnson (GA)
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Kaptur
Keating
Kelly
Kildee
Kind
King (IA)
Kingston
Kinzinger (IL)
Kline
Lance
Langevin
Lankford
Larsen (WA)
Larson (CT)
Latham
LaTourette
Latta
Levin
Lewis (CA)
Lewis (GA)
Lipinski
LoBiondo
Loebsack
Lofgren, Zoe
Long
Lowey
Lucas
Luetkemeyer
Luján
Lungren, Daniel E.
Lynch
Maloney
Manzullo
Marino
Markey
Matsui
McCarthy (CA)
McCarthy (NY)
McCaul
McCollum
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
Meehan
Meeks
Mica
Michaud
Miller (MI)
Miller (NC)
Moore
Moran
Mulvaney
Murphy (CT)
Murphy (PA)
Myrick
Nadler
Napolitano
Neal
Nugent

Nunes
Nunnelee
Olson
Owens
Palazzo
Pallone
Pascrell
Pastor (AZ)
Paulsen
Pearce
Pelosi
Pence
Perlmutter
Peters
Pingree (ME)
Pitts
Platts
Polis
Pompeo
Price (GA)
Price (NC)
Quigley
Rahall
Rangel
Reed
Reichert
Renacci
Reyes
Ribble
Richardson
Richmond
Rivera
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Rothman (NJ)
Roybal-Allard
Royce
Runyan
Ruppersberger
Ryan (OH)
Ryan (WI)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Scalise
Schakowsky
Schiff
Schock
Schwartz
Scott (VA)
Scott, Austin
Scott, David
Serrano
Sessions
Sewell
Sherman
Shimkus
Shuster
Sires
Slaughter
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Southerland
Speier
Stivers
Sullivan
Sutton
Terry
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tierney
Tipton
Tonko
Turner (NY)
Upton
Van Hollen
Velázquez
Visclosky
Walberg
Walden
Walz (MN)
Wasserman Schultz
Waters
Watt
Waxman
Webster
Welch
West
Westmoreland
Whitfield
Wilson (FL)
Womack
Woodall
Yarmuth
Young (AK)
Young (FL)
Young (IN)

NOES—91

Adams
Altmire
Amash
Bachmann
Barton (TX)
Berg
Bono Mack
Boustany
Brooks
Burton (IN)
Canseco
Capuano
Chabot
Conyers
Cooper
Costello
Crenshaw
Davis (IL)
DesJarlais
Duncan (SC)
Duncan (TN)
Emerson
Fincher
Flake
Fleming
Flores
Forbes
Foxx
Frank (MA)
Franks (AZ)
Gardner
Gingrey (GA)
Gohmert
Gosar
Gowdy
Graves (MO)
Griffith (VA)
Hall
Hartzler
Huelskamp
Johnson (IL)
Jones
Jordan
Kissell
Kucinich
Labrador
Lamborn
Landry
Lee (CA)
Lummis
Mack
Marchant
Matheson
McClintock
McDermott
McIntyre
McKeon
Miller (FL)
Miller, Gary
Neugebauer
Noem
Olver
Paul
Peterson
Petri
Poe (TX)
Posey
Quayle
Rehberg
Rigell
Ross (FL)
Rush
Schilling
Schmidt
Schrader
Schweikert
Scott (SC)
Sensenbrenner
Shuler
Simpson
Stark
Stearns
Stutzman
Tsongas
Turner (OH)
Walsh (IL)
Wilson (SC)
Wittman
Wolf
Woolsey
Yoder

NOT VOTING—9

Akin
Blumenauer
Broun (GA)
Herger
Jackson (IL)
King (NY)
Miller, George
Ross (AR)
Towns

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There is 1 minute remaining.

□ 1820

Mr. GRAVES of Missouri changed his vote from ''aye'' to ''no.''

Mr. WELCH changed his vote from ''no'' to ''aye.''

So the joint resolution was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

REAUTHORIZING CERTAIN VISA PROGRAMS

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (S. 3245) to extend by 3 years the authorization of the EB–5 Regional Center Program, the E-Verify Program, the Special Immigrant Nonminister Religious Worker Program, and the Conrad State 30 J–1 Visa Waiver Program, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Texas (Mr. SMITH) that the House suspend the rules and pass the bill.

This will be a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 412, nays 3, not voting 14, as follows:

[Roll No. 580]

YEAS—412

Ackerman
Adams
Aderholt
Alexander
Altmire
Amodei
Andrews
Austria
Baca
Bachmann
Bachus
Baldwin
Barber
Barletta
Barrow
Bartlett
Barton (TX)
Bass (CA)
Bass (NH)
Becerra
Benishek
Berg
Berkley
Berman
Biggert
Bilbray
Bilirakis
Bishop (GA)
Bishop (NY)
Bishop (UT)
Black
Blackburn
Bonamici
Bonner
Bono Mack
Boren
Boswell
Boustany
Brady (PA)
Brady (TX)
Braley (IA)
Brooks
Brown (FL)
Buchanan
Bucshon
Burgess
Burton (IN)
Butterfield
Calvert
Camp
Campbell
Canseco
Cantor
Capito
Capps
Capuano
Carnahan
Carney
Carson (IN)
Carter
Cassidy
Castor (FL)
Chabot
Chaffetz
Chu
Cicilline
Clarke (MI)
Clarke (NY)
Clay
Cleaver
Clyburn
Coble
Coffman (CO)
Cohen
Conaway
Connolly (VA)
Conyers
Cooper
Costa
Costello
Courtney
Cravaack
Crawford
Crenshaw
Critz
Crowley
Cuellar
Culberson
Cummings
Davis (CA)
Davis (IL)
DeFazio
DeGette
DeLauro
Denham
Dent
DesJarlais
Deutch
Diaz-Balart
Dicks
Dingell
Doggett
Dold
Donnelly (IN)
Doyle
Dreier
Duffy
Duncan (SC)
Duncan (TN)
Edwards
Ellison
Ellmers
Emerson
Engel
Farenthold
Farr
Fattah
Filner
Fincher
Fitzpatrick
Flake
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Frank (MA)
Franks (AZ)
Frelinghuysen
Fudge
Gallegly
Garamendi
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gonzalez
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Green, Al
Green, Gene
Griffin (AR)
Griffith (VA)
Grijalva
Guinta
Guthrie
Gutierrez
Hahn
Hall
Hanabusa
Hanna
Harper
Harris
Hartzler
Hastings (FL)
Hastings (WA)
Hayworth
Heck
Heinrich
Hensarling
Herrera Beutler
Higgins
Himes
Hinchey
Hinojosa
Hirono
Hochul
Holden
Holt
Honda
Hoyer
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Israel
Issa
Jackson Lee (TX)
Jenkins
Johnson (GA)
Johnson (IL)
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Jones
Jordan
Kaptur
Keating
Kelly
Kildee
Kind
King (IA)
Kingston
Kinzinger (IL)
Kissell
Kline
Kucinich
Labrador
Lamborn
Lance
Landry
Langevin
Lankford
Larsen (WA)
Larson (CT)
Latham
LaTourette
Latta
Lee (CA)
Levin
Lewis (CA)
Lewis (GA)
Lipinski
LoBiondo
Loebsack
Lofgren, Zoe
Long
Lowey
Lucas
Luetkemeyer
Luján
Lummis
Lungren, Daniel E.
Lynch
Mack
Maloney
Manzullo
Marchant
Marino
Markey
Matheson
Matsui
McCarthy (CA)
McCarthy (NY)
McCaul
McClintock
McCollum
McDermott
McGovern
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
McNerney
Meehan
Meeks
Mica
Michaud
Miller (FL)
Miller (MI)
Miller (NC)
Miller, Gary
Miller, George
Moore
Moran
Mulvaney
Murphy (CT)
Murphy (PA)
Myrick
Nadler
Napolitano
Neal
Neugebauer
Noem
Nugent
Nunes
Nunnelee
Olson
Olver
Owens
Palazzo
Pallone
Pascrell
Pastor (AZ)
Paulsen
Pearce
Pelosi
Pence
Perlmutter
Peters
Peterson
Petri
Pingree (ME)
Pitts
Platts
Poe (TX)
Polis
Pompeo
Posey
Price (GA)
Price (NC)
Quayle
Quigley
Rahall
Rangel
Reed
Rehberg
Reichert
Renacci
Reyes
Ribble
Richardson
Richmond
Rigell
Rivera
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross (FL)
Rothman (NJ)
Roybal-Allard
Royce
Runyan
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Scalise
Schakowsky
Schiff
Schilling
Schmidt
Schock
Schrader
Schwartz
Schweikert
Scott (SC)
Scott (VA)
Scott, Austin
Scott, David
Sensenbrenner
Serrano
Sessions
Sewell
Sherman
Shimkus
Shuler
Shuster
Simpson
Sires
Slaughter
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Southerland
Speier
Stark
Stearns
Stivers
Stutzman
Sullivan
Sutton
Terry
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tierney
Tipton
Tonko
Tsongas
Turner (NY)
Turner (OH)
Upton
Van Hollen
Velázquez
Visclosky
Walberg
Walden
Walsh (IL)
Walz (MN)
Wasserman Schultz
Waters
Watt
Waxman
Webster
Welch
West
Westmoreland
Whitfield
Wilson (FL)
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Woolsey
Yarmuth
Yoder
Young (AK)
Young (FL)
Young (IN)

NAYS—3

Amash
Gohmert
Paul

NOT VOTING—14

Akin
Blumenauer
Broun (GA)
Buerkle
Chandler
Cole
Eshoo
Grimm
Herger
Jackson (IL)
King (NY)
Ross (AR)
Ryan (WI)
Towns

□ 1827

So (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

CONDEMNING THE SHOOTING THAT KILLED SIX INNOCENT PEOPLE AT THE SIKH TEMPLE OF WISCONSIN IN OAK CREEK, WISCONSIN, ON AUGUST 5, 2012

Mr. FARENTHOLD. Mr. Speaker, I ask unanimous consent that the Committee on Oversight and Government Reform be discharged from further consideration of House Resolution 775, and ask for its immediate consideration in the House.

The Clerk read the title of the resolution.

The SPEAKER pro tempore (Mr. MULVANEY). Is there objection to the request of the gentleman from Texas?

There was no objection.

The text of the resolution is as follows:

H. RES. 775

Whereas on Sunday, August 5, 2012, a shooting took place at the Sikh Temple of Wisconsin in Oak Creek, Wisconsin;

Whereas as a result of the shooting, six innocent individuals lost their lives while preparing to attend a Sunday morning worship;

Whereas three individuals were severely injured in the attack;

Whereas many individuals and members of the Sikh community selflessly sought to aid and protect others above their own safety; and

Whereas the quick action of law enforcement officials prevented additional losses of life: Now, therefore, be it

Resolved, That the House of Representatives—

(1) condemns the senseless attack at the Sikh Temple of Wisconsin in Oak Creek, Wisconsin, on Sunday, August 5, 2012;

(2) offers condolences to the families, friends, and loved ones who were killed in the attack and expresses hope for the full recovery of those injured in the attack;

(3) honors the selfless, dedicated service of—

(A) the emergency response teams and law enforcement officials who responded to the attack; and

(B) law enforcement officials who continue to investigate the attack; and

(4) remains hopeful, as additional details regarding the attack are gathered, that the citizens of this country will come together, united in a shared desire for peace and justice while standing with the Sikh community to grieve the loss of life.

The resolution was agreed to.

A motion to reconsider was laid on the table.

SOLIDARITY WITH THE SIKH COMMUNITY

(Mr. ROYCE asked and was given permission to address the House for 1 minute.)

Mr. ROYCE. Mr. Speaker, I would like to speak in favor of the resolution I coauthored with the Wisconsin delegation here in solidarity with the Sikh community in Oak Creek and the Sikh community all across the United States.

In a strange coincidence, I had a previously scheduled meeting in California at a Sikh temple on the very day when that murderous attack in Oak Creek occurred. Obviously, our discussion shifted to the subject of that premeditated attack.

I was able to hear about the plight of being targeted because of one's religion, the plight of being targeted for one's appearance.

We are in a constant struggle against bad ideas, despicable ideas.

Passing this resolution will not ease the pain of those affected by this tragedy, but it does show to the world that people from across the United States can unite and denounce bigoted violence.

Our great country is rooted in religious tolerance. The Constitution makes freedom of religion first and foremost. There is no place in this country for religious-motivated terrorism, and this resolution that we passed reaffirms that.

I end by thanking Mr. RYAN and the Wisconsin delegation for their efforts on this resolution, but also I thank the leadership of both parties here today for working with us to make sure that this resolution came to the floor.

NO MONEY FOR LIBYA OR EGYPT

(Mr. BURTON of Indiana asked and was given permission to address the House for 1 minute.)

Mr. BURTON of Indiana. Mr. Speaker, I'm really disappointed today. We passed a CR for 6 months, and it contained language in there that was supposedly designed to keep Libya and Egypt from getting funds. My colleagues overwhelmingly voted for it. I do not criticize them for that.

But I do feel very strongly in my heart that we made a mistake by not, in the Rules Committee, passing an amendment which would make sure that the money in that bill for foreign assistance did not go to Libya or Egypt.

I read the document that they put out, and it does not prohibit the money from getting to Libya and Egypt. The Muslim Brotherhood runs Egypt. They hate the United States, and their President has said he wanted to model his country after Iran.

In Libya, they killed our Ambassador and scaled the walls. They burned our flag. They did it in Egypt, and they held up the al Qaeda flag; and we're going to give them money. It makes no sense.

If the American people were paying attention to this right now, they would raise hell.

HUNGER STRIKES IN CUBA

(Mr. RIVERA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. RIVERA. Mr. Speaker, this Monday, prominent Cuban dissident Marta Beatriz Roque launched a hunger strike in order to draw attention to the unwavering attempts by the Castro dictatorship to suppress pro-democracy supporters. She has since been joined in her hunger strike by an additional 25 dissidents. Roque suffers from diabetes, and her water-only fast could easily kill her in days.

Castro's thugs have continually increased the level of repression against the opposition movement. It is intolerable that this has become the ''norm'' in Cuban society. Jailing, beating, and detaining peaceful protestors who are simply demanding their basic human rights is not the norm. It is unacceptable.

The Castro brothers will continue their violent and abusive ways and will stop at nothing to remain in power. How bad do things need to get before the international community finally recognizes the plight of the Cuban people? These brave men and women continue to risk their lives every day, and we must call attention to their struggle.

RUSSIA PNTR

The SPEAKER pro tempore. Under the Speaker's announced policy of January 5, 2011, the gentleman from California (Mr. DREIER) is recognized for 60 minutes as the designee of the majority leader.

GENERAL LEAVE

Mr. DREIER. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks on the subject of my Special Order.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

Mr. DREIER. Mr. Speaker, I rise today to talk about an issue that both Democrats and Republicans, and virtually every American, is talking about, and people all over the world are talking about. What is that issue? How do we increase global economic growth; and here in this country, how do we create more good American jobs.

It's obviously a key part of the Presidential campaign. We have Democrats and Republicans daily stand in the well of the House of Representatives and offer proposals, talk about their ideas as to how we can create good jobs.

We have the sad report of 380,000 people who fell off the rolls even looking for jobs. We have literally millions of our fellow Americans who are looking for jobs, and we have many businesses that are struggling.

One of the great challenges that President Obama put forward was the goal of doubling our exports, and we all know that he very much wanted to do that. We, as Members of Congress, came together after a decade, and we finally were able to successfully pass market-opening opportunities for U.S. workers to sell their goods and provide our services in Panama, Colombia, and South Korea.

□ 1840

It took us a long time to get there. I know that it's easy to point the finger of blame, but the fact is we've been ready for a long time. This institution

was ready for a long time, Democrats and Republicans alike, and we were finally able to get the legislation up here from down on Pennsylvania Avenue, and we were able to make it happen with strong bipartisan votes on all three of those agreements.

Well, Mr. Speaker, with recognition that opening up markets around the world for U.S. goods and services is a key way to create jobs here—because, again, as we debated the Panama, Colombia, and Korea Trade Agreements, there were Members on both sides of the aisle who stood up and argued in behalf of those great agreements—we now have before us what I believe is an absolute no-brainer, but tragically it's created some political consternation over a lot of confusion.

We know that the idea of seeing countries join the WTO, the World Trade Organization, creates a scenario whereby they have to comply with a rules-based trading system. We know that once they enter the WTO, there are constraints imposed on them along with the benefits that they get for their membership in the WTO. And there was a lot of negotiation, a lot of talk about Russia's entry into the World Trade Organization. The idea of seeing Russia forced to comply with a system that would prevent them from engaging in discriminatory practices, from engaging in the kinds of acts that prevent products and services from getting into their country, the structure of having to comply with a rules-based system is something that membership in the WTO forces and creates.

Again, there were a lot of negotiations. The last was dealing with a border dispute with Georgia that was resolved, and that was resolved several months ago. That put into place a structure that allowed, on August 22—last month—for Russia to enter the World Trade Organization.

Russia is part of the WTO. They are now, having been for over 3 weeks, a member of the World Trade Organization. That means, as I said, tremendous benefits that Russia gets. They have 140 million consumers, and there are going to be opportunities for countries around the world to export into Russia. We, last year, exported $11 billion of goods and services into the WTO. But guess what, Mr. Speaker? We're not at the table anymore. We've lost out on our chance to be able to sell our goods and services into Russia, that market of 140 million consumers.

Now, why is it that we've lost out? Well, we haven't been able to have a vote here in the Congress on Russia's accession into the WTO. Why hasn't that happened? Well, I hate to be political—even though this is the time of year when people are especially political—but we need to get this sent up here to the Congress so that we can put together what I know is going to be broad bipartisan support to make this happen. When it comes up, I know that we will see tremendous support on the Republican side of the aisle. And I say that because I'm particularly proud of the 73 newly elected Republican Members of Congress. Of the 87, 73 sent a letter to President Obama saying that they believe it very important for us to open up that market, so that if we all have this desire of creating more good jobs in the United States, let's open up that market to 140 million consumers. Well, unfortunately we're still waiting for that.

And I know that it's not just Republicans who are in support of this, Mr. Speaker. We have Democrats who are passionately and strongly in support of it. My very dear friend from New York (Mr. MEEKS) says he's going to join us. We've got other colleagues of ours who are going to join us in just a minute. But I want to say that this is something that absolutely should be done.

Now, I talked about the fact that I believe it's a no-brainer, but I recognize that there is a lot of political consternation about this because it's Russia. We all know that Russia has an absolutely horrendous human rights policy. We know that Russia has engaged in trying to expand its sphere to other former republics of the Soviet Union. We know that there is tremendous corruption and cronyism that exists in Russia today, and it is not acceptable. It is not acceptable to any of us.

Now, there are some, Mr. Speaker, who argue that for us to deny the U.S. an opportunity to have a vote on PNTR—basically repealing Jackson-Vanik and allowing us to proceed with this—would be a good thing and it would send a message to Russia, when in fact the exact opposite is the case. There is nothing that we could do as the United States of America that would be a greater boost to supporting the perpetuation of the aberrant behavior that we have seen from Russia than for us to deny a vote on permanent normal trade relations that would see us, then, have access to that market.

I said that last year we exported $11 billion of goods and services to Russia. If we could pass PNTR here, projections are that by 2017 we would double that from $11 billion to $22 billion. Now, what does that mean? It means more good U.S. jobs. And what does it mean? It means an expansion of our American values. It means, again, this forced compliance with a rules-based trading system. It means creating a structure that will allow us to undermine the kind of political repression that exists in Russia.

Our sticking our head in the sand would be just plain wrong. Now, those are not just my words, Mr. Speaker. We, on the 12th of March, received a letter from seven of the most prominent and outspoken human rights activists in Russia. They, in a letter, an open letter that was sent to those of us who are considering this issue, said the following. Now this is from these very, very prominent dissidents and activists, some of whom I'm sure have been imprisoned. They've had long histories of being opposition leaders to Vladimir Putin. So in the letter that they sent to us, Mr. Speaker, they said:

Some politicians in the United States argue that the removal of Russia from Jackson-Vanik would help no one but the current Russian undemocratic political regime. That assumption is flat wrong. Although there are obvious problems with democracy and human rights in modern Russia, the persistence on the books of the Jackson-Vanik amendment does not help to solve them at all. Moreover, it brings direct harm. It limits Russia's competitiveness in international markets for higher value-added products, leaving Russia trapped in its current petro-state model of development and preventing it from transforming into a modern, diversified, and more high-tech economy. This helps Mr. Putin and his cronies.

At the end of the day, those who defend the argument that Jackson-Vanik's provisions should still apply to Russia in order to punish Putin's anti-democratic regime only darken Russia's political future, hamper its economic development, and frustrate its democratic aspirations.

Mr. Speaker, I'd like to include this letter from the seven dissidents in the RECORD in its entirety, underscoring how critically important it is for us to take this action so that we can boost those who are struggling to improve the plight of those Russians who are seeing their human rights jeopardized based on the current policies.

MARCH 12, 2012.

REMOVE RUSSIA FROM JACKSON-VANIK!

Removal of Russia from the provisions of the Cold War era Jackson-Vanik Amendment has long been an issue of political debate. Although the outdated nature and irrelevance of the amendment is widely recognized, some politicians in the United States argue that the removal of Russia from Jackson-Vanik would help no one but the current Russian undemocratic political regime.

That assumption is flat wrong. Although there are obvious problems with democracy and human rights in modern Russia, the persistence on the books of the Jackson-Vanik Amendment does not help to solve them at all. Moreover, it brings direct harm. It limits Russia's competitiveness in international markets for higher value-added products, leaving Russia trapped in its current petro-state model of development and preventing it from transforming into a modern, diversified and more hi-tech economy.

This helps Mr Putin and his cronies, who continue to benefit from control over raw materials exports and who have no real interest in diversifying Russia's economy. During the period of their rule, dependence on oil and gas exports has become even greater than before. Needless to say, hanging in a petro-state limbo prevents the emergence in Russia of an independent and advanced middle class, which should be the main source of demand for pro-democracy political transformation in the future. More and more talented and creative Russians are leaving the country because there are better opportunities for finding good jobs in hi-tech industries abroad.

At the end of the day, those who defend the argument that Jackson-Vanik's provisions should still apply to Russia in order to punish Putin's anti-democratic regime only darken Russia's political future, hamper its economic development, and frustrate its democratic aspirations.

Jackson-Vanik is also a very useful tool for Mr Putin's anti-American propaganda

machine: it helps him to depict the United States as hostile to Russia, using outdated cold-war tools to undermine Russia's international competitiveness.

We, leading figures of the Russian political opposition, strongly stand behind efforts to remove Russian from the provisions of the Jackson-Vanik Amendment. Jackson-Vanik is not helpful in any way—neither for promotion of human rights and democracy in Russia, nor for the economic interests of its people. Sanctions which harm the interests of ordinary Russians are unhelpful and counter-productive—much more effective are targeted sanctions against specific officials involved in human rights abuse, like those named in the Senator Benjamin Cardin's list in the Sergey Magnitsky case (Senate Bill 1039).

It is time to remove Russia from Jackson-Vanik!

SERGEY ALEKSASHENKO, *Political Council member, People's Freedom Party (Parnas).*
ALEXANDER LEBEDEV, *Independent businessman and politician.*
VLADIMIR MILOV, *Leader, ''Democratic Choice'' movement.*
ALEXEY NAVALNY, *Attorney and civil activist.*
BORIS NEMTSOV, *Co-chairman, People's Freedom Party (Parnas), ''Solidarity'' movement.*
ILYA PONOMAREV, *State Duma member, Just Russia Party.*
VLADIMIR RYZHKOV, *Co-chairman, People's Freedom Party (Parnas).*

I also want to say that as we look at this question of job creation and economic growth, it's not something that, again, is at all partisan, and it's something that transcends this institution. We have received a number of letters—and let me see if I can dig this one up here. We have a bipartisan letter from Governors across this country that was sent just weeks ago, on the 25th of July. It was sent to us by Governors from Alabama, Arkansas, California, Connecticut, Delaware, Georgia, Iowa, Michigan, Mississippi, North Dakota, South Carolina, South Dakota, Utah, Vermont, and Washington, a broad cross-section geographically and politically, Democrats and Republicans. All these Governors were signatories to this letter in which they say:

As Governors, we know from firsthand experience in our States that expanding opportunities for international trade and attracting foreign investment are essential to promoting U.S. economic growth and creating new and better jobs right here in America. Russia's impending membership in the World Trade Organization offers a significant opportunity to increase our trade and investment with the world's ninth-largest economy.

So I've got to say, Mr. Speaker, you can understand why I see this as a no-brainer.

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To me, this is a pretty simple thing. But I recognize that some might believe that it's a reward to Russia and to Vladimir Putin, and I stand with them for all the reasons that they're opposing it. But I argue that the reasons that they and I oppose the actions of Vladimir Putin underscore why we need to ensure that the U.S. is at the table.

And so, with the President having stated that he has this goal of doubling U.S. exports, and we've got 140 million consumers there who very much want to have access to U.S.-manufactured products, to our goods and services, we need to get it done.

And why don't I begin, since I see a number of my colleagues here, by recognizing my very good friend from New York (Mr. MEEKS), who has joined us. As I recognize Mr. MEEKS, I'd like to say that a number of Members have come up to me from both sides of the aisle, Mr. Speaker, and indicated that they very much wanted to be able to be here this evening to talk about this.

With that, I would like to yield time to my very good friend from New York (Mr. MEEKS).

Mr. MEEKS. Mr. Speaker, I'd like to thank my friend from California (Mr. DREIER). And he's correct. This is a bipartisan bill that makes common sense, just common sense that we get this done.

So, as I stand here today, I say to you, it is the right thing for America, it is the right thing for businesses in America, and it's the right thing for us to create jobs in America, passing PNTR for Russia.

Mr. DREIER said Russia is the ninth largest market in the world and wants the United States-manufactured goods and services, and U.S. companies are eager to supply Russia's rapidly expanding consumer market. So why are we waiting to make this happen?

While we wait, the failure of the United States Congress to grant permanent normal trade relations to Russia has compromised the competitiveness of United States businesses, hindered the increase of export of goods and services, and stood in the way of growth for United States domestic jobs.

On August 22, the Russian Federation joined the World Trade Organization, concluding nearly 20 years of negotiations and discussions with the United States and about 150 other WTO members. And during these years, it wasn't easy, but Russia did complete numerous reforms of its businesses and trade practices and of its legal system to conform to the norms of the international community and to the WTO rules. These reforms will benefit—not hurt, benefit—U.S. companies. It puts them in a rules-based system.

Now, since August 22, Russia has significantly opened its markets to more than 150 WTO trading partners, with the sole exception—the sole exception—the United States of America. That means that, since August 22, businesses from more than 150 WTO member countries with, again, the sole exception of those of the United States, have conducted trade with Russian counterparts protected by the WTO dispute resolution mechanisms. And while we wait to act, U.S. businesses are at a competitive disadvantage.

Business analysts say that the U.S. exporters currently underperform with respect to Russia. They predict that with PNTR, U.S. trade with Russia could admittedly double over the next 5 years.

Now, I'm from New York, and I just look at what it means for New York, just a small piece. In New York, where exports to Russia nearly reached a half a billion dollars in 2001, half a billion dollars, now, that's a big deal. But when you consider the transportation, the shipping, the customs brokers, the airport personnel jobs involved, the potential economic impact is tremendous.

Clearly, increased trade is good for New York, but it's also good for every State in the United States and stands to benefit every State. Every State, I repeat, stands to benefit from the new opportunity to sell more American goods and services to Russia through PNTR. So, I say we've got to get it right.

Let me just conclude by saying this. I also am the ranking Democrat on Europe, and as I go and talk to a number of the nations who used to be part of the USSR, some who still have some conflicts with Russia, one of the things that I want to talk to them about, well, what do you think?

A, are you happy to be in the WTO? They all said yes.

B, should we get rid of Jackson-Vanik and make sure that we're able to trade? They all said yes, that it sends the right message and it compels Russia to play by some rules, and we then have a referee in which to make sure they do that.

So I'm hopeful that we get this together and, before we leave here, we pass PNTR for Russia, because every single day that we don't, we're losing out on creating jobs here in America.

I look forward to working with you, and hopefully we'll get this done.

Mr. DREIER. Mr. Speaker, I thank my friend for his very thoughtful comments, and I would just like to underscore this notion of doubling our exports. Taking that level from $11 billion in the next 5 years to $22 billion will inure to the benefit of New York, of California, of Minnesota, of Louisiana, and it will provide benefits all across this country.

And at the same time, it will help us deal with this human rights question, which is such an important one, because I haven't talked about it, but obviously including the legislation that deals with the very tragic death of Sergey Magnitsky, who was a lawyer in Russia who was raising questions and, basically, a whistleblower of raising concerns about the behavior of the Russian Government. He was left to die in prison. And we, with this legislation,

will be ensuring that those who are responsible are brought to justice and that it never happens again.

And so I think that, all the way around, this can be a win-win for the cause of human rights and for the cause of creating jobs right here, and I thank my friend from New York for his thoughtful contribution.

We're very pleased to be joined, Mr. Speaker, by my good friend from Minnesota, with whom I've been privileged to travel and has a great understanding and grasp of the issue of globalization and how opening up new markets around the world will benefit his constituents. And I'm happy to yield to my friend.

Mr. PAULSEN. Well, I thank the chairman for yielding.

And let me just first say, with the bipartisan support of this important issue, which I will concur in comments from Mr. MEEKS, but I want to say I want to thank Mr. DREIER, the chairman, because I think we're having these types of discussions on the floor today thanks to his many years of leadership to educate all of us in the House on a bipartisan basis about the benefits of trade, about selling American, and his leadership in establishing this Free Trade Caucus has been so valuable to me as a newer Member. And I know that our country is in great gratitude, and we're going to miss your leadership down the road, Mr. Chairman, in the future.

Let me just say that I also want to rise in strong support for passing this permanent normal trade relations status with Russia. We must pass this legislation to give American manufacturers, American farmers, and American service providers a fair chance to compete and then win and sell more of their goods in the markets of Russia.

□ 1900

Russia joined the WTO already. They already joined the World Trade Organization back on August 22. They've already begun to open their markets to the rest of the world, so now there are about 150 countries, except the United States, that can fully benefit from much better access to the Russian marketplace. Additionally, all of these nations, except the United States, can benefit from Russia's WTO entrance commitments, including stronger international property protections, greater transparency, recourse to the WTO's dispute settlement procedures if Russia fails to meet its commitments.

Until Congress approves PNTR, the United States cannot claim all the benefits that go along with Russia's entrance into the WTO membership obligations. From the President's Export Council, we've already heard some great statistics that are real. They are real, Mr. Speaker. They estimate that U.S. exports to Russia will double and triple over the next 5 years if we pass PNTR, adding jobs here in the United States. These are jobs in manufacturing; these are service jobs; these are jobs in high-tech; and all across the spectrum of other industries. There is no doubt that Russia's demand for foreign services and goods is growing. This is a country with a population of 142 million people. It has got a rapidly growing middle class.

I will speak in particular about a company, Medtronic, which is a medical device manufacturer based in Minnesota, my home State. It's one of the companies that will lose out if we don't pass permanent normal trade relations soon. And Russia, as I mentioned, is one of the fastest-growing markets. It is also a fast-growing market for medical devices and medical technology. It's a key player in the Russian medical device market. In fact, since 2005, there have been 10,000 Russian health care professionals who have been trained in Medtronic technologies. In the last 5 years, these Medtronic technologies and therapies have benefited about 70,000 patients across Russia.

So Russia has now agreed to substantial tariff reductions for imported medical devices. Russian tariffs on these products will average about 5 percent. It is going to give U.S. medical technology companies the opportunity to significantly expand into the Russian market. Meanwhile, Russia PNTR does not require any tariff reductions or market liberalization by the United States. Yet all of this will go away and all of this will be at risk if we do not act in passing PNTR with Russia in the near future here.

Mr. Speaker, I would just say that the approval of Russia PNTR is a critical step towards ensuring that U.S. companies can benefit from Russia's WTO ascension and remain competitive in the markets today. Until we do that, all other WTO countries will continue to grab market share, market share that is much more difficult to grab back in today's global, competitive environment. So, when I think of a competitor and a company like Medtronic that's based in Minnesota, we want to make sure that their workers and their ingenuity and their innovation is going to continue to grow and prosper so we can sell American across the world. In other words, U.S. companies are being left behind as our competitors continue to grow in this very profitable market of medical devices, losing ground we may never be able to make up.

With other countries gaining this head start now in the Russian market, our time is running out, so this PNTR really benefits the United States. I hope that we act next week, Mr. Chairman, before we head back for the election season because this is critical for jobs; it's bipartisan; the President can claim great ownership and credit for this as well if we act soon. I will do all I can to continue to work with you, Mr. Chairman, to move this forward as well.

Mr. DREIER. If I could reclaim my time, I thank my friend for his very strong commitment to this.

I would like to expand on this Medtronic example for a moment, if I could, because we talk about big pictures; we talk about numbers; we say, yes, we want to create jobs, but the example of Medtronic is very clearly a specific opportunity.

I wonder if my friend has any examples or if he has talked to executives at Medtronic about the benefits of opening up that market in Russia, because it's true. We are horrified at the crony capitalism that exists in Russia, and we are horrified at the human rights violations that exist, but there are also many very, very good, dedicated, hardworking Russian people who would like to have an opportunity to have access to many of the products that are made right here in the United States. I know my friend and I have traveled around the globe, and one of the things that consistently comes forward is people saying we want to be able to purchase goods from the United States of America, goods manufactured in the United States of America.

I wonder if my friend might tell us a little bit about the success of Medtronic and what has happened and exactly what benefit we would see created for jobs here and also for the consumers in Russia.

Mr. PAULSEN. I will just say that, whether it's a company like a Medtronic or an agricultural-based company like a Cargill, which is based in my district in Minnesota as well, clearly there is the opportunity to sell American knowing that 95 percent of the world's consumers are outside of the United States. This opportunity in Russia with huge market share is going to mean more medical devices being sold in Russia. These are life-improving, these are life-saving technologies, and there is no doubt in a competitive environment that European companies are trying to access that market and are moving forward to do that. So a world-class leader like a Medtronic is going to have a vacuum unless it's able to move forward and unless Congress acts to give permanent normal trade relations.

Mr. DREIER. In reclaiming my time, my friend is absolutely right, and I just want to again express appreciation to his commitment to our Trade Working Group, which is on a wide range of issues. We've been able to focus on creating jobs for millions of Americans as we have sought to recognize the benefits of exports and imports as well when it comes to improving the standard of living and the quality of life for our fellow Americans. He has been very dedicated to his constituents, and I appreciate your participation this evening, too.

I am also very pleased to see that we are joined by my very good friend from Louisiana, another hardworking member of the House Ways and Means Committee and someone who understands the world extraordinarily well. I would like to recognize my friend Mr. BOUSTANY.

Mr. BOUSTANY. Thank you, Chairman DREIER.

Let me say thank you, first of all, for your tremendous service to our country in your capacity as a Member of Congress and as chairman of the Rules Committee. I want to thank you for your leadership on international trade and in promoting America's role in international trade. I also want to thank you for your friendship and for your wise counsel. I've enjoyed the time I've been able to travel with you.

Mr. DREIER. We've still got months to go.

Mr. BOUSTANY. We still do, but I'll say this: I'll miss having you here, and I look forward to keeping in touch in the future.

Mr. DREIER. Absolutely, we should do that.

Mr. BOUSTANY. Thank you for organizing this round of speeches tonight to talk about this crucial piece of legislation that we need to pass because what it will do will be to ensure a level playing field for U.S. workers, U.S. farmers, employers who are competing for business in Russia.

Now, we all know that, until Russia came into the WTO, it was a very difficult place to get market access for our businesses, especially, certainly, large companies, but small companies, mid-sized firms. I believe it is vital for Congress to grant Russia permanent normalized trade relations by removing them from the Jackson-Vanik amendment. If we don't do this, if we don't terminate that provision and grant PNTR, Russia will deny or could certainly deny U.S. exporters some of the market-opening concessions it has made to join the WTO, and the United States would not be able to challenge those actions in a rule-based system through the WTO's dispute settlement system.

This is critically important, especially if we talk about small- and mid-sized firms that are in manufacturing that want to export. They need that kind of rules-based system to work within. Otherwise, they don't have the recourse to fight protracted battles in a difficult market like Russia's.

Of course, it's with some trepidation that we undertake this as we know that the relationship between our two countries is somewhat tenuous. We know very well about Russia's human rights abuses. We know about the poor respect for the rule of law. We've heard extensive stories about the corruption. The reality, though, is that Russia has now become a full-fledged member of the World Trade Organization, and to avoid putting the U.S. at a disadvantage, we need to move forward and grant permanent normalized trade relations.

I'll say this: that the best thing we can do as a country from a foreign policy standpoint with our relationship with Russia is to move forward with normalizing trade relations with Russia. If you want to see political reforms in Russia, if you want to clean up the corruption, if you want to see the rule of law flourish in Russia, our commercial relationship with Russia is critical because it will help build a strong, vibrant middle class in Russia, which will help bring about political reforms there and help overall in the world of security. At the same time, it's a win-win because this grants the United States' businesses and farmers access to a market which will help create good-paying, high-paying jobs here in the U.S.

PNTR will also make permanent the trade status the United States has extended to Russia on an annual basis for more than a decade. So we're not doing anything new. We're permanently normalizing this, which essentially grants Russia the same access to the U.S. market that all of our other trading partners enjoy.

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This is nothing new or anything special for Russia. Rather, it is far more important for the United States, for our manufacturers, our service providers, our agriculture interests who are seeking open access into the Russian market.

In an attempt to continue a level playing field for international trade, the WTO requires members to extend normal trade relations to all other WTO members on an unconditional basis, unless a country does not want to apply WTO rules to another country. After 18 years of negotiations, Russia officially became a member of the WTO on August 22 of this year. Currently, the United States has a condition that is placed on Russia. It dates back to the 1970s when the Soviet Union had restrictive immigration policies preventing Jews from leaving its territory.

Congress passed the Jackson-Vanik amendment to the Trade Act of 1974. However, since 1992, the United States has certified annually that Russia complies with the Jackson-Vanik amendment's provisions, and we have conferred normal trade relations on an annual basis to Russia. Only by graduating Russia from the Jackson-Vanik amendment, making these normal trade relations permanent will the U.S. be able to be in full compliance with its WTO obligations, enabling U.S. businesses and farmers to enjoy all the trade concessions and commitments that Russia has made in order to join the WTO.

Mr. DREIER. I'll just reclaim my time there to underscore the very important point that my friend has made, Mr. Speaker.

We all know that the intentions behind the Jackson-Vanik amendment were very good. We saw horrendous policies from the Soviet Union in a wide range of areas. Virtually everything they did was bad as the Soviet Union, a totalitarian country. But the denial of opportunities for Jews to emigrate, especially going back to Israel, is what led to that amendment to the 1974 agreement.

I would like to ask my friend to repeat again—he said that we've had complete compliance that we've been able to certify for now exactly two long decades since 1992. That's 20 years ago, 1992 to 2012. For 20 years, we've had annual certification because there has been an opportunity in Russia since, thank God, the Soviet Union came down with the work of so many people. We saw it come down, and we now have seen really what you would call a Cold War-era provision that has been left in place for two decades.

Why in the world would we still have this? It seems to me that it's the right thing for us to do to ensure that we sweep this aside so that we can move ahead with these market-opening opportunities. I assume that's the point the gentleman was making.

I'm happy to yield to my friend.

Mr. BOUSTANY. That's exactly right. This is a Cold War relic, this amendment that was put into place. The gentleman is correct that since 1992, we've on an annual basis waived its provisions, but we now need to move forward. The world has changed.

As we look to move forward with expanding market access for our farmers, our businesses, especially small and mid-sized firms, it's critical that we grant permanent normalized trade relations if we're going to maintain U.S. competitiveness globally. Right now we're slipping. We're losing our competitive edge.

A country like China, for instance, has consummated well over 100 trade agreements just in the last couple of years. We have done three, and it took us 5 years since the Bush administration to put in place three relatively small trade agreements. We need to take advantage of the WTO structure. And with Russia coming on board as the ninth largest economy, we have a huge opportunity to promote American competitiveness and American business interests at no cost to us. Staying out of this hurts us, and that's why we need to move forward.

If we don't act to grant PNTR to Russia, our Nation's dedicated workforce, our determined business community, we'll be left at a competitive disadvantage, vis-a-vis our foreign competitors. Given the slow growth of our economy and the continued high unemployment rate, we can't allow this to happen. And with Europe struggling, this is an important market to help with global growth by helping U.S. growth and jobs in the United States.

I was a cosponsor of the vital legislation to grant PNTR to Russia, to place additional reporting requirements, of course, on both Russia and the U.S. administration. These conditions ensure that Russia implements its WTO obligations and those obligations are enforced.

Some will raise the question of, Wait a minute, we had a problem with China when they came onto the WTO, and we're still struggling with that. We have learned from that process, and we have additional safeguards in this agreement that will help make sure

that Russia fully maintains its obligations under permanent normalized trade relations.

Mr. DREIER. Reclaiming my time just to underscore this point, this notion that the WTO, which is an entity that stems from an agreement that the postwar leaders put together in 1947 called the General Agreement on Tariffs and Trade, the idea behind that was to diminish tariff and nontariff barriers. When we saw in the early 1990s the WTO put into place, the idea is to see issues like intellectual property violations, which we know are rampant around the world, in Russia, and we have intellectual property violations here in the United States, as well. We see lots of retaliatory action that is taken. With the structure of the WTO, there is pressure to live with a rules-based trading system to deal with these kinds of corrupt practices that go on with great regularity.

I'm happy to further yield to my friend.

Mr. BOUSTANY. If we're going to work through these commercial types of agreements and eliminate the corruptions, the abuses, the intellectual property theft, we have to make the rules-based system work. And the WTO framework which basically grew out of the general agreement on tariffs and trade in the 1940s is that mechanism, and it works. That's what allows us to make a claim against China, for instance, when they're doing abusive practices. It is an equalizer. It basically puts in place a framework that ensures that trade is conducted fairly and openly. That's what U.S. workers and U.S. farmers are looking for.

It's also very important as a critical piece to maintaining global security. If we focus on international economics, commercial relationships through open navigation of the seas, open trade, we're going to see less conflict in the world. I think this is critical from a security standpoint, and it's critical from a standpoint of economic prosperity for the United States. As the United States continues to face economic challenges, our national exports have remained relatively strong. They've probably kept us out of a recession over the last several quarters.

Mr. DREIER. If I could reclaim my time, I think the gentleman makes a very important point about what I like to refer to as the interdependence of economic and political liberalization.

We know people in this country are hurting. We all have constituents who are having a difficult time keeping a roof over their head, keeping food on the table. People have lost their jobs and their homes. We know it's been very tough. We know again that creating markets for these workers is very important. So seeing the standard of living improve throughout the rest of the world creates new markets for us, and it leads to political liberalization.

As we see that the many people in Russia who are suffering have opportunities to improve their quality of life and their standard of living by buying U.S. goods and services, it seems to me that's going to lead towards greater pressure for political reform, to address these human rights problems, to address the crony capitalism that exists, to address the kind of outrageous behavior that we see with great regularity from Vladimir Putin.

I'm happy to further yield to my friend.

Mr. BOUSTANY. I agree with that.

Any of these things that will help promote the development of a middle class in these other countries, whether it be China or Russia in this particular class, creates a new consumer class for American goods.

Now, we're all patriotic. We want to buy American. I love to go to the store, and I'll buy something; and if the label says ''Made in America,'' I feel good. I feel good about it. Most Americans do. But by God, I want a Russian mother to buy something on the shelf that says ''Made in America.'' We need to sell America, sell American goods overseas. That's where 95 percent of the world's consumers are, and our economy has been too much mired in domestic consumption at the expense of not looking into the outside world to export American-made goods to these consumers who live outside the United States.

By normalizing our trade relationship with Russia, we will create the mechanism to do that with Russia. This will increase critical sales of American goods and services to Russia. Not only that, we will create very good high-paying jobs here in the United States. This is definitely a win-win situation.

We spoke about Russia being the ninth largest world economy, importing more than $400 billion in goods and services. And as some of my colleagues may be aware, Louisiana, my State—it's a small State, but it's seventh among the 50 States in total exports because of our location on the Gulf of Mexico and our waterways and our ports.

□ 1920

In the first quarter of 2012, Louisiana farmers and small businesses exported nearly $14.25 billion in goods and services to the rest of the world. In fact, in 2011, Louisiana exported $135 million worth of goods to Russia, which created a lot of good jobs in Louisiana.

Louisiana was a top supplier of PVC plastics to Russia in 2011, with $21.4 million in exports, but exporters in the EU and in China still accounted for more than 60 percent of Russian imports of that particular material. We have an opportunity to grow this if we grant this kind of permanent, normalized trade relations.

Mr. DREIER. Reclaiming my time, just to underscore again, PVC is that material that's used in sprinklers. And I see this PVC material. I have been very familiar with it for many years.

What my friend is saying is there is an opportunity for exports to exceed the $24 million coming from Louisiana to Russia, but right now we're seeing other parts of the world transcend that. By virtue of the fact that they have access to that consumer market in Russia, it's denying the people of Louisiana from being able to see an increase in the level of exports of PVC material into Russia.

I yield to the gentleman.

Mr. BOUSTANY. That's exactly right. Louisiana produces a PVC plastic, or looking for opportunities to get into that market, and yet they're being superseded by countries in Europe and China.

In fact, Russia, when it joined the WTO, agreed to reduce its average tariffs on plastic products from 10 percent to 6.2 percent. If we don't do this, we're going to be subject to higher tariffs, putting us at a major competitive disadvantage, and our foreign competitors will take advantage of this. Again, we'll have the mechanisms in place, if we do grant trade relations, to have a dispute mechanism in place to ensure that Russia keeps its commitments to our workers, our businesses back here at home.

Now, there's no reason not to move forward with this, and I hope that we can see some action on this relatively soon, because as each day kicks by, we are losing competitiveness.

One last tidbit of information, Louisiana doesn't have large Fortune 500 companies. We have a couple, but we have a lot of small- and mid-sized firms that are manufacturers, and we are a leader in manufacturing on the small scale in the energy sector with equipment and services that are vital to energy production, energy security globally.

These companies would love to get into the Russian market, to have the right protections of law so that they could sell their goods and services. This would lead to a lot of economic activity in Louisiana. It would help, you know, create good-paying jobs once again, help promote our energy sector, development and manufacturing in the energy sector, of which Louisiana—and the United States, frankly—has been a leader.

Congress must continue to support these kinds of agreements to boost our economy here at home to create job opportunities, good-paying job opportunities right here at home. That's why it's so important to move forward on this.

Mr. DREIER. Well, Mr. Speaker, let me express my appreciation for the very thoughtful remarks. The dedication that my friend has shown to his Louisiana constituents and the American people is, really, very, very respected in this institution. And I want him to know how much, Mr. Speaker, I do appreciate his understanding of what it's going to take to create more jobs in Louisiana for the people there who are struggling and working so hard.

One issue that I wanted to mention, I talked about it earlier, but I think is

very important, and it's really what's led to people who are in opposition to this, and that is this question of human rights. We have horror story after horror story.

I have stood in this well and several times talked about the relationship that I developed with a man who is currently in prison in Russia, and this man's name is Mikhail Khodorkovsky. He was in the energy business, a company called Yukos. He was one of the most successful, dedicated, and hardworking Russians. He was one of the greatest philanthropists in Russia, giving huge sums of money to support many, many charitable causes.

But, Mr. Speaker, he was guilty of one thing and one thing only: He was not a supporter of Vladimir Putin. And he sat in my office in the Rules Committee, right upstairs here, and, having visited him in Moscow and then having him visit me here in the Capitol. He said that he was nervous, and he was concerned that he was going to face some consequences for his opposition to Vladimir Putin.

Today I'm embarrassed to say how I reacted. I laughed. I said, The Soviet Union no longer exists. We have moved to a country that is independent, free, strong, vibrant, moving away from corruption, and, you, Mr. Khodorkovsky—Mikhail, I was calling him then—I said, You are, in fact, one of the most successful people in the country. There's no way that you would face that kind of threat.

Well, Mr. Speaker, tragically, we saw Mikhail Khodorkovsky jailed for 7 years, and then we saw an extension, another 7-year extension of his sentence. I will tell you that that is one of the reasons, because of the dedication that I have to the name of Mikhail Khodorkovsky, who at this moment is suffering in a prison in Russia, it is for that reason that I want us to take every step that we can to ensure that we bring about the kind of reform and the change that is essential.

What we've done in this legislation, Mr. Speaker, is we have dealt with a specific case where a man died. Sergey Magnitsky was relatively young. He was in his thirties, a lawyer who raised questions and concerns about the behavior of Vladimir Putin's Russia. For that, he was sentenced to prison. He was beaten, tortured, and left to die.

That has raised concern here in the United States and around the world. That kind of action is not acceptable, and we have to do everything that we can to ensure that those who are responsible are brought to justice and that it never, ever happens again.

Mr. Speaker, I'm happy to say that in this legislation we have the so-called Magnitsky bill, which was reported unanimously out of our House Foreign Affairs Committee. This measure has passed the Senate. We need to see the melding of these. We need to see this put together and passed so that we can say that we're going to expand our American values, creating jobs in the United States by opening up this market and, at the same time, saying we will ensure that whoever is responsible for this kind of outrageous behavior is brought to justice. We're seeing, obviously, horrendous human rights violations take place around the globe.

Yesterday morning I stood here to talk about our great, great Ambassador, an amazing Foreign Service Officer who represented the United States in Damascus, Jerusalem, and other spots in the world in his dedicated career. Tragically, Chris Stevens was killed, as we all know.

We are seeing a very, very dangerous world, and that's why it's important for us to stand up and take action, and that's exactly what this measure calling for the U.S. to be at the table with Russia by granting PNTR will do.

Again, my friend has said it perfectly. Mr. PAULSEN said it. Mr. MEEKS said it. My colleague, I know, in his talking points that I submitted for the record, Mr. MORAN, would have said it. KEVIN BRADY, the chairman of the Trade Subcommittee had to go to a meeting, but he very much wanted to be a part of our presentation this evening, and he passionately believes that this is the way for us to most effectively deal with the very, very serious problems that we have on economic growth and on human rights violations. I hope, I hope that we will be able to see passage as soon as possible.

Again, I know that this is the time of year, as I said at the very outset, just weeks before the election, to be very partisan. This is something that we can have a bipartisan victory on.

That's why, Mr. Speaker, I'd like to implore President Obama to get engaged on this. I know that there are many issues, again, looking at Africa and the Middle East. I know he is campaigning in his quest to be reelected. This is something that Democrats and Republicans in the House will pass with strong support if he will get engaged and work with us, work with us to ensure that we can bring this together.

□ 1930

And so I hope very much that he will do that in the coming days and weeks to underscore his goal of creating jobs.

I'd like to further yield to my friend. It looks like he'd like to offer something.

Mr. BOUSTANY. I thank the chairman for yielding some time back to me. I share his sentiments about the situation with human rights and liberty. America has always been the beacon of liberty—individual liberty. And it's also been the hope of the world with regard to human rights. And we have to understand, the American public has to understand that one of the most important tools that we have as a Nation is our economic strength. And it comes from each and every one of us in this country—from a plumber to a mechanic or someone engaged in small manufacturing, our farmers. That economic strength comes from each and every one of us. It wells up into the mighty country that we have.

We think about American might in terms of military might. Yes, it's a great and wondrous thing, but our economic strength is even more important. And the way we use that to influence events in the world to help promote liberty, to promote human rights is to engage in trade. And the surest way that we're going to help promote changes in Russia for the better is to help that middle class. And by engaging in trade, that middle class will be stronger, it will be wealthier, it will want to engage; and that will lead to serious political reforms.

The last thing I want to say is I share your sentiments with regard to Ambassador Stevens. He was a wonderful man. He served his country in many hotspots, difficult places. He was fearless. And I would also say that we oftentimes talk about our military men and women and we put them up on the pedestal, where we should, rightly so, but we forget to talk about our diplomats and our foreign service officers who do the same sorts of things, putting themselves in harm's way in these very tough places around the world. They are extremely patriotic. They do their duty. They make us all proud. We lost a great patriot with Ambassador Stevens.

Mr. DREIER. Mr. Speaker, I thank my friend for his very thoughtful contribution on that. As we talk about human rights violations and the kind of threat that exists to those lovers of freedom around the world, I will say that just a couple of hours ago I talked to a friend of mine who is Libyan. In fact, his father was the lead opposition for four decades to Muammar Qadhafi in Libya. And he was in tears in our conversation, saying that the people of Libya owe everything to the United States of America. He said Benghazi would have been completely lost were it not for the United States of America and what it is that we did to bring about the kind of liberation that they so desperately needed, having been repressed for 42 years under Muammar Qadhafi.

And he went on to say that as we look at Libya, it's important to note that the tragic murder of Ambassador Stevens did not come from the people of Libya. It came from individuals, a few individuals. He said the people of Libya love the American people and revere the American people. I suspect that as we're talking about Russian PNTR that the same thing exists in Russia. Because they're living with great oppression. They're living with what is little more than an authoritarian dictatorship with the kind of crony capitalism and the violations of human rights that we're speaking of. Mr. Speaker, the people of Russia—and I know many Russians; we all do—have great respect and love for us as well.

So, again, our goal is to bring an end to repressive policies and use, as my

friend so eloquently said, the economic strength of the United States that is exemplified in every American who is working in whatever capacity at all to see our economy grow. Because we're the only complete superpower left in the world today, the only complete superpower. By virtue of that, I mean militarily, economically, and geopolitically. And we have to step up to the plate and continue to exercise that strong leadership role; and passage of permanent normal trade relations, taking this step will go a long way towards doing just that.

Mr. Speaker, I thank all of my friends who participated. And I know, as I've asked for general leave, others who wanted to be here who were unable to are going to be joining in submitting statements for the RECORD.

With that, I yield back the balance of my time.

Mr. MORAN. Mr. Speaker, I rise today to underscore the importance of immediate approval legislation to repeal Jackson-Vanik establish U.S. permanent normal trade relations with Russia.

There is demonstrated and widespread bipartisan support for Russian PNTR among our colleagues in the House, as well as in the Senate. And we cannot and should not wait to pass this legislation which will greatly benefit American business and their employees as they seek entré into the expanding Russian market.

We all share serious concerns with the ongoing human and political rights situation in the Russian Federation, but the maintenance Jackson-Vanik does nothing to address those concerns.

What it does do is deny the United States and our business the ability to fully take advantage of the benefits of Russian accession to the WTO both in terms of market access and trade enforcement.

PNTR will provide the United States with important benefits at no cost to us.

With PNTR, American companies will be able to take full advantage of lower Russian tariffs, stronger IP protections, and other market-opening concessions that the Russians agreed to as part of joining the World Trade Organization.

Last month's WTO accession promises to open that country large and growing consumer market to exporters around the world.

Unfortunately, because we have yet to establish PNTR with Russia, all the members of the WTO except the United States are now fully benefiting from increased access to the growing Russian market, which is the world's 9th largest economy.

Unlike the United States, other countries also have the ability to use the WTO's dispute settlement process to help ensure Russia honors its new WTO commitments. This is particularly important in a market such as Russia's which is relatively new to market capitalism and continues to present serious problems for foreign businesses.

Anders Aslund and Gary Hufbauer from the Peterson Institute for International Economics predict that U.S. exports to Russia should double within 5 years after accession to the WTO. Evidence from countries that joined the WTO between 2000 and 2010 suggest this statistic to be true, and maybe even a conservative estimation. If Exports to Russia grow at the same rate as they did for exports to Ukraine and the Baltics, exports could triple, approaching $30 billion. This would place Russia among America's large second tier-markets, such as Australia, India and France.

Every day we have not passed PNTR is a day where we put this opportunity in jeopardy by according a competitive advantage to non-American companies doing business in Russia.

We have the opportunity now to pass bipartisan legislation that advances American economic interests, which should not dither and continue to allow the partisan politics of election season to prevent us from grasping that opportunity.

PROGRESSIVE CAUCUS

The SPEAKER pro tempore. Under the Speaker's announced policy of January 5, 2011, the gentleman from Minnesota (Mr. ELLISON) is recognized for 60 minutes as the designee of the minority leader.

Mr. ELLISON. Mr. Speaker, my name is KEITH ELLISON. I'm the cochair of the Progressive Caucus. Tonight, I come before the people on the floor of the House of Representatives to discuss important issues facing our economy and the huge challenges that our Nation is facing, particularly with regard to the events that are going to take shape right after the election.

The Progressive Caucus has come together, Mr. Speaker, and thought very carefully about what a deal would look like and should look like. I want to talk about that tonight. I want to go into what we call the Deal for All and to elaborate on some of the complexities that are facing our country and how this is a time where we really need to focus on the real core of what is important to make sure that as all these fiscal matters come together, the United States and the people of America, particularly the working people, come out on top and in the right space.

Before I dive into that, Mr. Speaker, I do want to yield just for a moment to talk about the great service of Ambassador Chris Stevens. Ambassador Stevens was a dedicated public servant, and he and the individuals who lost their lives in Benghazi recently have to be remembered for the dedicated service that they lent to our country. It's important to note that Chris Stevens loved Libya, loved Libyans; and it's not any accident that Libyans took to the streets not to attack America, but really Libyans came to the street holding up placards apologizing for the act of these terrorists who killed Americans and Libyans when they assaulted the consulate in Benghazi, and many of them held up placards extolling the great virtues of Chris Stevens. And it's important to point out that as Americans are watching these things unfold across the Middle East, that the last thing Chris Stevens would want would be for us to withdraw or pull out of Libya.

This horrible incident that occurred in Benghazi was not done by the Libyan people. It was done by terrorists who have nothing but contempt for the democracy in Libya, which is unfolding; and that is why they would take their action against the consulate as they did do. But it's important to note that there were about seven Libyans who died. The numbers are yet coming in. Of course, they're subject to being revised. But there were a number of Libyans who lost their lives trying to defend that consulate. And I think Americans should keep that in mind. They also should keep in mind that as the outbreak of these protests across the Middle East—you have one in Yemen, you have them in Libya, you have them in Egypt—it is important to point out that leaders of these countries have apologized for these things, particularly Yemen and Libya. And Egypt eventually got there.

And it's important to point out that Americans should know that this is not representative of certainly the will of the Libyan people. And there are a lot of people across the region who support the United States and support a good relationship with the United States. We should not allow ourselves to be confused by these events. I could easily see how people could be; but when you see dedicated public servants risking their lives to build bridges, the last thing we want to do is withdraw and abandon these relationships that have been fought hard for and now have been paid for in the blood of our heroes, Ambassador Chris Stevens being one of them.

So I do want to just wrap up this section of my discussion tonight and just point out Chris Stevens, a dedicated servant of the United States, a dedicated and committed man who has gone and offered the ultimate sacrifice on behalf of his country to build bridges between people and particularly to help build democracy in the weak state of Libya, a state that threw off a dictator.

Chris Stevens went there to help the people and to help them build a democracy, and he must be remembered for his great sacrifice and also that of the individuals who lost their lives with him, four Americans and several Libyans. And as the names come forward and as their names are released, we'll come back to this microphone and share the information with the people.

□ 1940

So now let's talk about the business we're here to talk about, Madam Speaker. Tonight, we're talking about the Progressive Caucus message. The Congressional Progressive Caucus is the organization in Congress dedicated to talking about what's good for the average working American, making sure that the average American's interests are looked out and regarded highly as we move forward.

I want to talk a little bit about the Budget For All, and not only the Budget For All, but also the Deal For All.

I want to get right to the point. Everybody is talking about the fiscal

cliff. The sequestration cuts are going to come into effect. These are significant cuts both in military and nonmilitary domestic discretionary spending, which will be devastating to important programs like transportation, like health care, like research, like education. They'll put significant cuts in these important programs, lay off a lot of people, perhaps even exacerbating our already too-high unemployment rate.

But not only that, we see that the Bush tax cuts will expire, the payroll tax will expire, the so-called doc fix will expire, the AMT will expire. There's a number of things coming together, and many people who watch the news know that after this election, we're going to see a significant amount of activity around how we Members of Congress will be able to pull our fiscal situation back together in a way that hopefully avoids big cuts to important programs, hopefully avoids great pain that working class people might suffer if we don't come together and come up with some deal.

You've heard a lot of discussion about a grand bargain. But if we do any deal, the core values of the deal, we need to say first and upfront what this deal must include.

The first thing this deal must include, and I'll start with this poster here, Madam Speaker, is protection for America's social safety net. Let me start with a quote from President Roosevelt where he says: ''Every man, woman, and child is a partner.'' In 2012, these words come to life when we see that more than 58 million people rely on Medicaid. That's a lot of people, Madam Speaker; 48 million rely on Medicare; more than 61 million rely on Social Security.

So with the idea in mind that everybody is included, everybody counts, everybody is contemplated in our American life, it's important to point out that as we move forward with this Deal For All, or any deal that we might have, that it's important to maintain the social safety net, particularly in very difficult economic times. If you slice Medicaid, Medicare, Social Security, you are going to literally be harming the interests of millions and millions of Americans. Therefore, a key feature of any deal will be preservation of benefits for the people who need them most—Medicare, Medicaid, Social Security.

Madam Speaker, the next slide, the next poster here is a poster that talks about how we need to move our Nation's military towards the ability to deal with 21st-century threats. That will mean that we need to do some changes, some adjustments; and Cold War-era weapons systems are just not what this particular moment calls for.

So the second feature of the Deal For All will be that the military, which has seen its budget literally double since 2001, will have to share and do some paring down, but not just paring down, literally advancing. But some of these old Cold War-era weapons systems and some of these things that are fit for dealing with the Soviet Union just aren't necessary any more. They're expensive, cost a lot of money, and they don't help us meet the threats we're facing right now.

So the second feature of the Deal For All would be moving our military to a position where it's dealing with 21st-century threats, not simply maintaining old expensive programs that we don't really need.

The third feature of the Deal For All would be that we would ask Americans who have been well-to-do Americans, people who have benefited tremendously under the Bush tax cuts, to do a little more. Now, I know my friends in the Republican caucus and some conservatives often say that taxes, why would you want to punish somebody for being successful. Well, we think that America has done so much for so many that to help pay a little bit more to this country that you love is not a punishment. In fact, it's actually something that we would expect people to do. And there's a lot of very well-to-do people who agree with that point of view.

We actually have a piece of an idea called the Buffett rule because a very rich man says that, hey, a rich man like Warren Buffett should not be paying a lower tax rate than his secretary, which he does.

So Americans of various economic classes agree taxes are not a punishment. They are the cost of funding a civilized society; and if we're going to meet the budget challenges facing our Nation, we're going to have to get some revenue, and it might well come from the people who have benefited so much under the Bush-era tax cuts.

Then, finally, but perhaps most importantly, Madam Speaker, we need to get Americans to work. This is a key feature of what any Deal For All must include.

So tonight, we're talking about the Deal For All, and we're talking about the fiscal cliff, and we're talking about what any fair agreement would have to include. This is not bargaining chips, Madam Speaker. All four of these things are key. In order to have a safe, sound budget fix or grand bargain, we're going to have to have something to get Americans back to work, and we're talking about an infrastructure bank, a longer-term transportation bill, various things I'm going to talk about tonight.

But putting Americans back to work, asking the military to share in the cuts, and to revamp our military for a 21st-century world.

Three, asking the top 2 percent to pay a little bit more by allowing the Bush-era tax cuts to expire for the top echelon. It would only mean that the top rates would go from 35 to 39½ percent.

Finally, we're going to protect Social Security, Medicare, and Medicaid because these programs are essential and vital, particularly in times where people are truly having tough economic times.

□ 1950

So that's where we start the conversation tonight, focused on dealing with a proper resolution to these huge budget fights that we are about to have because so many important features of our fiscal reality are coming to expiration on December 31.

So I want to say that this deal that I think that we should have, we should work on, Mr. Speaker, and this Budget for All, this Deal for All as well, it's something that I think we can reach, we should reach. The American people need us to try to work toward a solution. This is why the Progressive Caucus has come together and said this is what we should do:

We should have a deal. The deal will be comprehensive, a deal that could help us avoid the harsh realities of sequestration, that could avoid the complete expiration of all the Bush tax cuts or the extension of all the Bush tax cuts, a deal that will help us do the doc fix and do all the things we need to do.

We do need some kind of agreement, but the agreement has to have some key benchmarks. I've laid them out to you, and I'll just repeat:

Ask the richest to help pay the freight for America;

Ask the military to share in the cuts; good, safe, sound cuts that will help position us for the 21st century are available;

We need to make sure that we protect those who benefit from Social Security, Medicare, and Medicaid;

And, most importantly, we need to grow the economy by investing in jobs.

But we have had some difficulty getting together, and I'm not surprised. Colleagues on the other side of the aisle, on the Republican side of the aisle, have been, Mr. Speaker, slow to try to come together and work out the deals that we need, but we do extend our hand. Hopefully, we will be able to come together and work out these problems because the American people depend upon us to do that.

But I do want to say that we have seen some real challenges over the course of the year just in terms of getting things done. So I think this is the time when we really need to come together and focus on what's needed. But in order to be fair, Mr. Speaker, I think the people should know what some of the real serious challenges that we've been facing are.

I just want to make note right now that we have had a Congress where obstruction has been the norm. It doesn't have to stay that way—and I urge colleagues on all sides of the aisle to work together. But I'll never forget being in this Chamber just about a year ago, a little more than a year ago, when, because of obstructionism, we could not come together. The Republican caucus refused to vote to raise the debt ceiling, something that had been done literally dozens of times both under

Democrats and Republicans. But they refused to do it, and this political rancor resulted in the downgrade of America's bond rating.

This was a tragic moment that happened a year ago, but it marks the obstruction that we've seen. Hopefully, this kind of obstruction will not be what we see going forward.

But I think it's important that much of the obstruction that we began to see had to do with the budgetary position that we saw starting with the Congress from the very beginning. The bottom line is that it started with the idea that we could only have massive cuts and no revenue. Our colleagues even continue to this day to talk about how terrible the economy continues to be, but their only prescription for fixing it is to take, as President Obama said, two tax cuts for the wealthiest Americans and call us in the morning. That's funny, but it's, sadly, true as well. Tax cuts seems to be their only prescription for all problems facing the American economy.

We started out this Congress with a budget being laid out. It was talked about as the Ryan budget, but really it was the Republican budget. He may have been the author of it, but they all voted for it, embraced it. But this budget, where we started out with massive cuts, didn't balance for a long, long time. The budget never really added up, and it still doesn't.

So in order to get to a deal or some kind of grand bargain to deal with our fiscal challenges that are coming right up soon, we need a new spirit of cooperation, and it cannot be based on the budget that was offered by PAUL RYAN and backed by the Republican Congress. Like I said, it didn't add up.

The fact is that my Republican friends think that businesses always want a tax cut. I owned a small business myself. I was a lawyer. I had a law firm. I had staff that I had to pay. I had machines I had to purchase. I had rent that I had to pay. I had a payroll that I had to make. What I needed was clients coming through the door so that would justify me adding and hiring more people. But just tax cuts alone is not what small business people need. What they really need is greater demand, which is what we're not addressing if we don't deal with the key feature in the Deal for All, which is to invest in jobs.

If people can't buy, Mr. Speaker, then stores can't sell; if stores can't sell, they can't hire; and if they can't hire, people can't buy. This is the heart of the problem: slack demand, high unemployment, people who do have jobs nervous about making purchases. This is the heart of the problem and what we've got to address. Misunderstanding these simple ideas about the importance of the American consumer having enough wherewithal to buy things that they need is really part of the heart of this problem that we're in right now.

This idea of thinking that, oh, yeah, just a tax cut will solve the problem, or, oh, yeah, and get rid of all the health and safety regulations, too, these two things could never bring America prosperity. But making sure that Americans are working and optimistic about their economic future will absolutely help this economy, and it's what we've got to do. I think through the Deal for All, any bargain we come to will put us on the right footing as long as we keep those key features in place.

So here's the thing: We've got to get to the point where we're working together. The key to that is to scrap this budget, this Ryan budget the Republicans have adopted. We've got to scrap that idea that we can't raise any taxes, that raising taxes is bad, that taxes are wrong, and that taxes are always a problem and that they're a punishment. We've got to scrap that idea. We know better than that.

So many of our colleagues even signed pledges that they wouldn't raise taxes, and this, of course, has been a problem. The only pledge I say around here is the Pledge of Allegiance.

But the fact is that we've got to scrap this idea so that when we face this real serious fiscal cliff, some people are calling, that we are able to negotiate. This means letting go of some of our long-held attachments, starting with the so-called Ryan Republican budget and these no-tax pledges. If we were able to do that, we could solve our problems.

Again, it's not all tax raising. It's going to be cuts, too. We have some ideas about where we can cut in a way that makes our country stronger, but there will have to be a mixture of both of these things.

I just want to talk a little bit about the Ryan Republican budget and just to help dramatize what some of the key problems are with it and why it's not workable and why we need to reject it as we move into this fiscal time. We're going to have to deal with this fiscal cliff, as has been named.

One of the key features of why it's not going to work and why it's wrong is that it ends the Medicare guarantee. It replaces it with vouchers. Some people around here like to talk about ObamaCare. Well, I far prefer ObamaCare to voucher care. And it makes it dangerously more expensive for seniors and the disabled. We don't want to put seniors in a more precarious financial situation, which is what the Ryan voucher care idea would do.

The Ryan budget, adopted by the Republicans, would also cut Medicaid funding by 34 percent. It cuts away tens of millions of needy people and turns the program into an underfunded block grant program. This is a sad way to treat some of our most vulnerable citizens. And you should know, Mr. Speaker, that Medicaid actually impacts seniors, too, because so much of the money that funds nursing home care is from Medicaid. So it's not just Medicare. Medicaid cuts, 34 percent, would be very harmful.

The Ryan budget also cuts transportation by 25 percent. Now, transportation is a job creator. Transportation puts Americans to work—building roads, bridges, transit, helping people get from here to there. I can imagine high-speed railcars.

I'm from Minnesota. I'd love to see us have a high-speed train from Duluth to Minneapolis to Chicago. It would be a great thing. It would put lots of people back to work, and it would improve productivity. It would allow people, after it's built, to get from here to there faster so they can get to meetings, so they can do what they need to do, and stop the bottleneck, cut down on carbon emissions and move people around, not just cars.

□ 2000

Transportation, a huge job creator, cut 25 percent in the Ryan budget.

Cuts education by 40 percent, 45 percent. Now, if there's one engine of economic development, having smarter, better-trained people has got to be the core of that, and yet education is cut by 45 percent in the Ryan budget.

So the bottom line is, these are some of the key things that are wrong with this budget. There are many more. I plan on talking about them.

But I want to just return to my theme a little bit, Madam Speaker, to say that we are facing a fiscal cliff. Americans do need to focus on it and do need to call their Members of Congress and say focus on the job at hand. We need you to focus your attention. We do know all these things are expiring. What are you people in Congress going to do about it?

What we're saying we've got to do about it in the Progressive Caucus is that we do need to come together and have a deal, but the deal has to have four pieces. And I'll repeat, Madam Speaker.

We need to make sure the military shares in the cuts by being more efficient. We need to make sure that we protect Social Security, Medicare, and Medicaid. And we need to make sure that we are putting jobs up front and investing in American jobs to a very large degree. And we need to ask the wealthiest among us to contribute a little bit more so we can meet our budgetary challenges. That's what the Progressive Caucus says we need to do.

We've had difficulty coming together because, well, quite frankly, obstruction, Republican obstruction has made it difficult to move forward and do anything.

Why did we have the obstruction?

Because we started out with signing pledges that we won't raise taxes, and we had a Ryan budget that imposed significant and deep cuts that have already resulted in a number of public sector workers being laid off and Federal employees having a reduction in their health care. And so these things, this sort of obstructive nature and insisting on cuts only, has been the source of the problem.

In order to get to a solution, we need people to come off these rigid positions so that we can do the people's business.

I mean, just to sort of like think about the level of obstruction, I already mentioned, Madam Speaker, last August, how dramatic it was when the Republican majority refused to raise the debt ceiling and caused us to have a downgrade in our bond rating. That was a sad moment.

But we've also wasted a lot of time. For example, we voted 32 times to repeal ObamaCare. And I do call it ObamaCare because Obama does care, which is more than I can say for some. But in this time, we had time for cutting or voting to repeal ObamaCare 32 times, but we didn't have any time to offer serious fixes to the economy.

And I just want to mention that President Obama, to his credit, has done, I think, great and excellent work in offering solutions. They just simply, Madam Speaker, have been ignored. I mean, it's really kind of sad when you think about the fact that the President has offered real serious and important solutions to the problems of the Nation and yet, they really, really have not been seriously addressed.

For example, the President called us all here and talked about the American Jobs Act. This is a great piece of legislation. But, do you know, Madam Speaker, we've never even had a vote on it. We never even had an opportunity to say who wants the American Jobs Act. It was simply something that the Republican majority in the House wouldn't even address.

The fact is that there were great ideas in this bill, and I just want to talk a little bit about those ideas because I think that they would really do a lot of good.

It includes a national infrastructure bank bill, a proposal that we would be able to fund by the Federal Government putting some seed money and then leveraging that money, that public money, with some private sector bonds. We would then have a fund of money that we could then use to make investment in important infrastructure that would be a key and important element of the program.

We would be able to make investments in the transmission lines that would help take wind energy from the western part of my State in Minnesota and bring it to where the population centers are.

We would be able to improve our grid and have a smart grid that would make energy use much more efficient and much more effective. And we would be able to use this infrastructure bank bill to be able to fund programs all over the United States where we wouldn't only build things that we need, we would improve them.

The American Society of Civil Engineers has addressed this issue, Madam Speaker, and what they said is about $2.3 trillion of infrastructure maintenance needs to be done. You know, I come from the city of Minneapolis and in my city, about 5 years ago we had a bridge fall into the Mississippi River.

Maintenance in this country is critical. We have bridges that are old and deteriorating all over this country. We have bridges that are in need of repair, roads as well.

And we also have other projects that need to be taken care of in terms of our grid, in terms of wastewater treatment, in terms of all types of important infrastructure tools, but we are not investing in them. In fact, we're relying on the things that our grandparents gave us. We're relying on Eisenhower-era infrastructure because we haven't, in our age, focused on the needs of the American people to have an infrastructure bill.

You know, just to talk a little bit more about the American Jobs Act, it would also extend cutting payroll taxes in half for 98 percent of businesses. It would also offer a complete payroll tax holiday for added workers or increased wages. It would extend 100 percent expensing throughout this year, and if we were to pass it, maybe even longer. And this continues to be an effective way to incentivize new investment.

And also, it would address and reform regulatory reductions to help entrepreneurs and small businesses access capital. We do need to help small business people be able to get the money they need to do investment in their company, and that means access to capital.

The American Jobs Act would also have a returning heroes hiring tax credit for veterans. This is something we addressed already, which is a great thing, but it would move on from there, and it would prevent up to 280,000 teacher layoffs.

Madam Speaker, you should know, we have had, now, about 30 months of private sector growth. But we have had also significant number of months of public sector layoffs, mostly teachers. This is because of these draconian cuts that the Federal Government has made, and State governments have been affected by and, therefore, city and local governments. But we would be able to address these massive public sector worker layoffs, which are really hurting our economy. And of course, teachers have been some of the most negatively impacted of all.

We also would move from that idea to another great one: modernizing at least 35,000 public schools across the country. You know, our public schools across this Nation, our kids go there, they spend hours and hours a day trying to learn there. But many of them are in very bad repair. Some 35,000 public schools need help. We can support new science labs, Internet-ready classrooms, and renovations to schools across the country in rural and urban America.

The American Jobs Act, with all these great ideas, never got a shot in this Congress. It would, as I said, call for infrastructure investment with a national infrastructure bank, which I've talked about already.

I didn't mention airport improvements. I did mention waterways. But it would put literally thousands of workers back on the job.

And also, we need to wire up this country. We would expand access to high speed wireless, as part of a plan for freeing up the Nation's spectrum.

□ 2010

Now, I want to just remind you, Madam Speaker, that our Nation at one time didn't have the entire country on the electrical grid. There was a program called Rural Electrification, which was a program under the Roosevelt administration by which our Nation just decided that you would not have to leave the countryside, the rural areas, to take advantage of electric lights, but we would wire the whole country—and we did.

The new wiring, the new Rural Electrification program, is connecting all of America with high-speed wireless. This is a project we should embark on. It's worthy, and it would help improve economic activity. It would help revitalize rural communities, and people wouldn't have to move to the urban centers for work. It would be a great thing.

The American Jobs Act also included pathways back to work for Americans looking for work. Of course, we have a serious unemployment problem, and we see some of our friends on the Republican side of the aisle shaking their fingers, criticizing. Well, where are the jobs? I remember Speaker BOEHNER asking, Where are the jobs? Often, when I hear that from my colleagues, I think to myself, well, the jobs are in the American Jobs Act. Can we take it up? Can we have a vote on it?

There is something we can do for Americans who are looking for work. One of the most innovative reforms to the unemployment insurance program in 40 years is a program which is part of an extension of the unemployment insurance to prevent 5 million Americans who are looking for work from losing their benefits.

The President's plan would include innovative work-based reforms to prevent layoffs and give States greater flexibility to use unemployment insurance benefits to fund and support job seekers, including things like, one, work sharing, unemployment insurance for workers whose employers choose work sharing over layoffs; two, a new bridge-to-work program, a plan that builds on and improves innovative State programs and where those displaced workers take temporary voluntary work and pursue on-the-job training; three, innovative entrepreneurship and wage insurance programs. States could also be empowered to implement wage insurance to help reemploy older workers in programs that make it easier for the unemployed workers to start their own businesses.

So these are a number of things contained in the American Jobs Act which we have never had a shot at, and it's a

key feature of what we propose in the Deal For All: get to work. We've got a country to rebuild. This is absolutely the case, but if the Republican majority would allow us to take up the American Jobs Act, I am confident there is something in there that my colleagues would like.

Maybe they'd like the $4,000 tax credit to employers for hiring long-term unemployed workers. That would be a great benefit to workers and employers.

They might like another feature of the American Jobs Act, that of prohibiting employers from discriminating against unemployed workers when hiring. We know now that many workers who have been out of work and out of the market for a while are asked, Do you have a job? No. Have you been unemployed? If the answer is—yes, for a certain amount of time—well, we're not going to hire you, which simply prolongs the problem. These are valuable workers with good skills, and they should have a shot in getting back into the workforce.

We might also find support for expanding job opportunities for low-income youth and adults through a fund for successful approaches for subsidized employment, innovative training programs and summer and year-round jobs for youth. One of the groups of people that has been really hard hit during this recession is young people. The American Jobs Act proposed by President Obama addresses youth employment; yet we haven't had a chance to deal with it because of Republican obstructionism.

I want to encourage all of my colleagues on both sides of the aisle to let go of their attachments. Let go of the pledges. Let go of the Ryan budget. Let's come together to solve our problems. Many of them can be found in the American Jobs Act.

For example, there is a whole section in there on tax relief for every American worker and family. Now, I don't think we need to extend tax cuts for the richest folks, because they don't need them; but when people do need them, Democrats are happy to cut taxes, and we have. We cut payroll taxes for about 160 million workers. We could extend that if the President's plan will expand the payroll tax cut passed last year. Another thing is allowing more Americans to refinance their mortgages at today's near 4 percent interest rates. It would put nearly $2,000 a year in a family's pocket.

But the American Jobs Act—an excellent vehicle for putting Americans back to work—never really had a shot because, as the minority leader in the Senate said, the number one priority for the Republican caucus was to make President Obama a one-term President. Is it right to make getting rid of Obama your top priority when we have so many Americans out of work and when we have an economy that really has never come back? I think that is not a good thing, and I wish we could move away from that and start focusing on the things that people really, really, really need.

In fact, I go back to the Deal For All, which is the Progressive Caucus' idea for how we negotiate what the basic foundation of any deal needs to be. It's simple the way things are shaping up. After all the dust has settled from the 2012 election, an average middle class family could face tax increases of $2,000 unless Congress acts. That's how important it is for us to do something and to act. This fiscal cliff they talk about is an opportunity to address the budget in a responsible way that grows our economy and puts Americans back to work.

We talked about the American Jobs Act. There are other great ideas, as well; but too many folks in Washington and too many folks here in the Capitol would rather cut Medicare, Medicaid and Social Security, which are benefits that millions of Americans depend on.

As I said, this particular chart shows it all. When you see the huge numbers of people who rely on Medicare, Medicaid and Social Security, rather than getting together and working on a problem, they'd rather cut Medicare, Medicaid and Social Security benefits that millions of Americans depend on and raise taxes on middle class Americans to protect tax breaks for millionaires and billionaires. It's as simple as that.

So let's just take a look at what's at risk, Madam Speaker. One in every four families depends on our Social Security system—61 million folks, including 36 million retired Americans. It's important for people to remember that Social Security also cares for people with disabilities and survivor benefits for people who have parents who pass on. So many children in this country today are surviving on those benefits which some of us in Congress are trying to protect and others are trying to cut. Nearly every American senior can depend on Medicare to cover health care costs.

Turning Medicare into a voucher system, as the Republicans have proposed, would not only make seniors pay thousands more for Medicare—about $6,000 more estimated—but it would leave as many 65- and 66-year-olds without any health care coverage at all, which would be a shame. It would return our Nation to a time when seniors were in desperate and bad shape.

So that's why the Progressive Caucus is proposing the Deal For All. They are commonsense proposals that would solve our deficit problems and protect the American middle class.

The Deal For All says that any plan cannot slash benefits for millions of America's seniors, children and disabled Americans who depend on Social Security, Medicare and Medicaid.

The Deal For All says we must make and ask and expect that the wealthiest 2 percent pay their fair share of taxes and close loopholes that let companies ship jobs overseas.

The Deal For All makes smart cuts to defense spending—not just any old cuts, smart cuts, efficient cuts—to focus our Armed Forces on combating 21st-century risks.

The Deal For All also calls for any plan to invest in America's future by putting Americans back to work.

Yes, we are facing a fiscal cliff, as some call it, but that doesn't mean the middle class should get pushed over the edge of that cliff.

□ 2020

If working and middle class people are going to take a hit in tough times, it shouldn't be to pay for tax breaks for rich folks and millionaires and billionaires and oil companies. It's time for all Americans of every economic situation to step up and do what's right for this country, and it's time we had a deal in Washington that reflects our values.

I just want to elaborate on this a little bit by telling you, Madam Speaker, about how the Progressive Caucus has been bringing experts together to study this issue. This is not just something we've thought up. We've brought experts from the field, economists, people who really focus hard and have expertise in Social Security, Medicare, Medicaid, jobs, how to reduce the military budget in a wise way. We've brought folks together to discuss this.

In fact, yesterday was one of the hearings that we've had, and the Progressive Caucus was hard at work holding a hearing. We're going to put some of it online so people can see it. We had these experts from across the political spectrum—some conservatives—to detail the best ways to avoid the fiscal cliff and to rejuvenate the economy without harming essential protections for the middle class. The pending fiscal cliff is an enormous opportunity to address our jobs crisis. I say ''jobs'' first, Madam Speaker, and then we need to put our country on the path to fiscal health.

The Progressive Caucus is laying the groundwork to make sure that any agreement reflects these core values. Our bipartisan panel yesterday confirmed that the best way to grow our economy is from the middle out, not from the top down. No trickle down. We also cannot expect to put Americans back to work unless we protect Social Security, Medicare, Medicaid, and ask the wealthiest to contribute their fair share.

We had Larry Korb come in, and he is a person with an extensive background, a very wise gentleman, is politically on the conservative side, but has done a lot of important research on how we can reduce our military footprint in a smart way. Mr. Larry Korb was a very well-prepared witness and shared his views and was really a big help as he laid out his presentation.

I just want to share with you a little bit about what he had to say, Madam Speaker, because it really was fascinating. I would urge people to check

out Mr. Korb's presentation online. He had a number of things that would really provoke a lot of important thought, and they're online. You can go to the Progressive Caucus Web site and see some of that.

Let me talk a little bit about what he said. Mr. Larry Korb was asked how best to summarize his take on the current defense budget, and he pointed to our poster, this one right here. Mr. Korb made himself very clear when he said, Don't pay for a 20th-century military in the 21st century, which I think sums it up. I'll elaborate more on what he had to say, but we had another expert who I think I would like to direct people to listen to, Ms. Maya Rockeymoore. She is the chair of the National Committee to Preserve Social Security and Medicare. She said, ''Changes to programs must be based on what is best for the beneficiaries, not on what is expedient for reducing America's debt.'' She also went on to add that Social Security, Medicare, and Medicaid are vital to the economic and health security of millions of senior Americans.

Chad Stone was also there, and he talked about the jobs picture. He actually referenced our poster right here, as well. Chad Stone, he is the chief economist for the Center on Budget and Policy Priorities. He said that piling tax cuts on will only lead to Draconian cuts in programs that millions of Americans rely on. So we can't go with this cuts-only approach. We've got to have some jobs, and we've got to have some investment.

Steve Wamhoff from the Citizens for Tax Justice put it best. He said:

I think all of us here agree that the most important job for Congress right now is to help the economy to create jobs. Tax cuts are one of the least effective tools to accomplish this goal.

We had a great lineup. I urge folks to go on our Web site and study what they had to say. But I do want to go back for a moment to just talk about the ideas Larry Korb had to share. He mentioned sequestration. He said that sequestration is certainly not a smart way to cut the defense budget because it's just an across-the-board cut, but close analysis and careful cuts and strategic ones could help a lot. He talked about how the Pentagon actually is pretty well endowed. He talked about how if the automatic sequestration defense cuts were to go into effect the fiscal year of 2013, non-war expenditures of the 2013 base, he said the budget will be reduced by about $55 billion down to what is about $500 billion and remain at that level in real terms for quite a while. He said that this will result in total reduction of about $500 billion over a decade from the projected levels in defense spending. He also went on to note that it also means that the Pentagon will still be spending more in 2013 after sequestration than it did in 2006. So they're not going to be poor by any means.

At the height of the Iraq war in 2006, we still would have been spending more than that if sequestration goes into effect, but he's not just saying do sequestration. He's actually promoting a strategic and smart way to do some cuts. He says that the United States military can do well, defend our Nation, and protect our country for about $500 billion, and that seems to make sense to me. We'd still be spending so much more than any other country in the world.

He went on to also note that in short the military really doesn't have a resource problem. They have what they need to defend the country. He noted that if sequestration goes into effect, it would not be ideal to just do across-the-board cuts, but there are a number of weapon systems that could be retired and a number of strategies for reducing the military budget that would not hurt national security, but would really put our country in a position where we are dealing with our financial problems in a forthright way. I think that it makes sense to really look carefully at these ideas.

Maya Rockeymoore went on to note, when she talked about Social Security, that it does not contribute to our Nation's deficit. If you look at Social Security, it actually runs a surplus, and we don't need to cut Social Security. What we need to do is to recognize that this important program is a program that has been one of the most successful in the history of the United States; and if we abandon our commitment to our seniors and the disabled, we will be abandoning a core principle of our country.

Mr. Chad Stone was important in his testimony, as well. As we wrapped up, I was most impressed that it's not just about cuts, that we also need to grow our way out of this recession. That means investing in jobs. I think the American Jobs Act and many other things would put us farther down the line if we were to make those proper investments.

That's what I want to say about the economy tonight. I'd like to urge people, Madam Speaker, to focus their attention on the so-called ''fiscal cliff.'' It is coming up. We will see expiration of the Bush tax cuts. We will see expiration of the payroll tax. We will see expiration of the doc fix. We will see expiration of the AMT. There will be a number of things coming together all at the same time. There will be budgetary negotiations.

But no matter what they are, they've got to include protection of our social safety net: Social Security, Medicare, and Medicaid. The military must share in the cuts. The wealthiest Americans must help us get some revenue. Finally, we've got to put jobs up front and center and grow this economy.

With that, Madam Speaker, I yield back the balance of my time.

□ 2030

ADMINISTRATION IN REVIEW

The SPEAKER pro tempore (Mrs. NOEM). Under the Speaker's announced policy of January 5, 2011, the Chair recognizes the gentleman from Texas (Mr. GOHMERT) for 30 minutes.

Mr. GOHMERT. Madam Speaker, in the summer of 1973, it was a real honor for me to be selected to go on an exchange program. Of course I had to borrow the money to go and had to pay that back by working hard to take care of the loan, but I went on an exchange program to the Soviet Union, 1973, that summer. It was quite an eye-opener for me.

Despite how wonderful the country was made to sound and how great it was that the government, they proclaimed, was the safety net for everybody in the country, they were proclaiming because the government was in charge of everything and in charge of everybody's business, there was 100 percent employment. They talked about how wonderful their socialized medicine was.

There were eight Americans on this program that were allowed into the Soviet Union that summer, and we all had very different backgrounds, had different political views. There were a lot of big hearts in the group on both ends of the political spectrum.

But, for me, a kid growing up in east Texas, it was an extraordinary education. Because even though people talked about how wonderful it was to have socialized medicine, everybody had a safety net because the government was the safety net, that country's economic system was rotting from within.

I went to a medical school. It reminded me of pictures of American medical schools from 40 to 50 years before. We went to an economic exhibition, kind of like a world's fair in Moscow, at one point. It reminded me of the pictures from a 1940 or early 1950s world's fair, you know, things like tractors sitting out there with people oohing and aahing over tractors. I'm going, good grief, because I knew we didn't need a world's fair to see tractors like that. You could go to any used tractor dealer and find tractors that nice in the U.S., but everybody was told how wonderful it was.

During the course of the summer, during the course of my time down in the Ukraine, I got to be good friends with a few of the students there. They were very standoffish at first. I spoke some Russian back in those days, and they spoke better English than I did Russian. But one guy in particular, he'd bring his dictionary with him and translate, because both of us—you know, it's amazing. You take a language course—I had two years of Russian at Texas A&M. You know, you're taught to converse about, ''I'm going to the library'' and ''I have a dog'' and these kinds of things, but when you want to talk about really serious life issues, we weren't prepared for those things. We needed a dictionary so we could get our ideas across.

At one point he said, ''You seem surprised that our country wouldn't want

better.'' He grabbed my shirt and he said, ''We don't have material this good.'' I just had, you know, a regular polo-type shirt. He said, ''We don't have material this good for our individuals, and we fought two world wars on our soil. We don't have it as good as you do in your country, that's obvious. But people will always be reluctant to leave the best they've ever known for something they're not sure about.''

When we got to 1989 and the Soviet Union fell because of the economic disease and decay that was pushed into the death spiral by President Reagan's actions, followed by President George H. W. Bush, it collapsed. Then we began to see all of the economic problems that were eating away at that country because the government tried to be the safety net for everything and everybody, and it won't work that way.

At a collective farm, way out from Kiev, I was surprised. I have worked on farms and ranches, and you usually try to get your work done before midafternoon when the sun gets its hottest, and that means you start early, start as close to daybreak as you can, and midmorning is prime time.

Here it was midmorning, and these farmers were sitting around in the shade there in the farming village. I had been looking out at these fields. You could hardly tell what was cultivated and what wasn't. They looked terrible.

They had some really nice gardens right around their individual dwelling places. Yeah, those were kept up. Those they got to have for themselves. But the fields just didn't look good at all.

I tried to be nice, and in my best Russian I could, I said, ''When do you work out in the fields?'' They kind of laughed, and one of them said in Russian, ''I make the same number of rubles if I'm here or if I'm out there, so I'm here.''

Boy, was that a lesson in why a big, huge, nothing but safety net country can't work. Free markets work until they decide it's time to be socialistic, progressive, whatever you want to call it, and so they go that way. Then the free market forces fail because they have been taken over by progressive socialist structures.

Now, it's a good thought. I mean, it's a wonderful idea to think, gee, well, we'll just decree, as did the Pilgrims, as did the early New Testament Church, we'll just bring everything into a common storehouse and split it equally. It sounds like a great idea.

As the Apostle Paul found, as the Pilgrims found, eventually you have to say, You know what? This isn't working out very well. We're going to have to have some strict rules. The Pilgrims found, if you divide it up into private property and allowed people to eat what they grew, not only do they grow enough for themselves, but they actually would grow enough to use, trade, barter, sell, and that could be very effective.

I heard my friend across the aisle mentioning earlier about the so-called Ryan voucher care, and I know they know—and in fairness to my friend PAUL RYAN, and it was great to see him on the floor this evening—that actually anybody over 55 gets Medicare. The Paul Ryan proposal, it's not exactly like the bill that I previously proposed, but, you know, my friend's brilliant. He's on the right track. He says, if you're over 55, you get Medicare.

Now, I would go a step further, because I know what's being proposed for those under 55 is going to end up being so much better giving control back to patients, getting control back between the doctor and the patients instead of having an insurance company or the government between the patient and the doctor.

This business is a safety net. Clearly, they're not talking safety net. They're talking government takeover of everything.

□ 2040

But PAUL RYAN's plan would make sure that those under 55 had health care—and had it affordable. And so there are all kinds of reforms that need to be made. We did not need a full takeover of health care by the government.

My friend had mentioned that, because we kept passing bills to repeal ObamaCare—and actually there were very few bills that dealt with a massive repeal of ObamaCare, but there were many bills that picked out specific parts. Look, friends across the aisle, you surely don't want to be responsible for this terrible part of ObamaCare. So when people go back and say, Oh, you voted to repeal it 33 times, well, there were different aspects, and we couldn't even get our friends to vote to repeal parts that they knew, once they found out after they passed it, what was in it. Wouldn't even vote for things to be repealed that they knew would not be good.

My friend said that, basically, the President called us here and asked us to pass his American Jobs Act. And I was so glad he brought that up. I'd about forgotten about the American Jobs Act. He came and stood right there, Madam Speaker, and told us, I forget, 16, 17 times: Pass my bill, right here, right now, over and over. And so I kept wanting to get a copy of the bill. He was chastising us for not passing it. Well, show it to me. Let me see it. So we kept calling the White House trying to get it. A week later, it was clear there was no bill.

So I figured, well, if there's no bill, and he keeps running around the country spending all the taxpayers' money flying around on Air Force One, what sounded and looked like campaign stops, but government paid for it all—so he's out there saying over and over and over, Tell Congress to pass my American Jobs Act. Pass the American Jobs Act. He had banners: Pass the American Jobs Act. American Jobs Act. I thought, Well, good grief, if he's going to keep telling us we need to pass the American Jobs Act, there really ought to be one. So I put a 2-page bill together that would eliminate the 35 percent tariff that we put on all American-made goods here in America, made by any company in America. It's called a corporate tax; an insidious tax because it deceives people into thinking that, gee, if you tax the evil old mean corporations, then we don't have to pay it. Baloney. If a corporation, a company doesn't pass that tax on to its customers, clients, people buying its services, then they go out of business. That's how it works. Thirty-five percent tax. The highest tariff that any country in the world puts on its own goods. And we were doing that. So mine says, let's eliminate that. And we'd heard from people around the world that, good grief, if you just dropped your corporate tax 12 percent, manufacturing jobs would come flooding back into this country.

You want to talk about pro-union. I know this side of the aisle wants to see the government unions grow more and more. I can never understand that. I can understand retired government workers needing a union because they don't have leverage. But to have government workers in a country where the government is the people. All of us that are elected here, we're public servants. Everybody that is hired by the Federal Government is supposed to be a government servant. We work for the people of America. Why in the world would you need a union to conspire against the people of America? Because, obviously, the role of any government union would be to get government bigger and bigger and more and more benefits, to the detriment of those who are paying for all of that. So, anyway, I don't understand why we need Federal Government unions. Neither did Franklin D. Roosevelt. But that's where all this goes.

By the way, when we eventually got a copy of the President's idea of a Jobs Act, we found that although he had been telling everybody in America he was only going to increase taxes on millionaires and billionaires, what he did was increase taxes on everybody that made over $125,000 individually. He said he was going after Big Oil. He's going to end the giveaways to Big Oil. But when you look to around page 130 or so, the pages that dealt with oil companies, they were not going to affect the Big Oil companies at all. But since 94, 95 percent of all the oil and gas wells in America are drilled and operated by independent oil companies, run by Americans, you look at what was eliminated, it was really only the things that were going to devastate the independents, some of them basically mom-and-pop-type services that worked on oil wells, gas wells. It's going to shut them down. They wouldn't be able to afford business. It would eliminate the passthrough deduction for investing in wells. If the

independents can't get people to invest in the wells, they can't drill them. But the Big Oil companies, they don't have to get people to invest in oil wells. They've got enough money to do that.

It was incredible. I couldn't believe it. I got it to CPAs that do work for independent oil and gas companies, small ones, and they were saying, Oh, my word. If this goes into law, we'll be out of business. We can't stay in business. What does that do? It ends 94, 95 percent of the oil and gas wells in America. It also means that gasoline goes up even further than the doubling that this President has already done.

Oh, wind energy. We heard about wind energy, smart grid. Think about it. We've had these hearings in our Natural Resources Committee. DOC HASTINGS has done a fabulous job. Amazing the stuff you find out. And what we found out even just this week, last week, actually, when you talk about using wind or solar energy, since wind doesn't blow all the time and sun doesn't shine all time, and since we don't have an effective way to hold electricity, there's no massive battery that we've developed yet that holds significant amounts of electricity, so you have to use that electricity immediately, because you can't hold it. When we get to the point where we have some way to hold electricity, then we're on our way. Then solar, wind, those things will be a whole lot more helpful. But as it is, if you declare we're going to have to have wind energy and we're going to have to use solar energy, then for those times when the wind is not blowing or the sun is not shining but people still need electricity, then you're going to have to have a coal-fired power plant, you're going to have to have a natural-gas powered plant, a nuclear powered plant.

So you're going to have to have all of those things standing by to produce the energy when these other things don't. You're going to have to have different sets of wires taking electricity from the regular power plants and also send them out to the windmills way out wherever they are, where they're out there chopping up endangered species, birds and all, and bring that electricity in. You're going to end up having to have different wires going out to solar places. And so actually you're going to be paying two and three times as much for energy because you have to have two to three times the infrastructure just so that you can say we're getting some of our power from wind and from sun.

What it did was set up more government. You read the bill like I did—and yes, I'm anal enough, I read some of these stupid bills, including the President's idea of a Jobs Act. It created more government. It took over more control over the Internet. It took over more control of cable. It's just a disaster.

So I hear about the President's great ideas for helping the economy, and I say thank goodness the President didn't pass that disaster because the economy would be doing even far worse. Well, except for the people that suck out the millions and hundreds of millions and billions, like the President's friends at Solyndra and things like that.

□ 2050

By the way, I see today this article, September 13, 2012: ''AP reports weekly U.S. jobless aid applications jump to 382,000,'' by Christopher Rugaber.

Anyway, jobless claims jump to a 2-month high. Not exactly the progress the President says was happening.

I've been mentioning, ever since I found out from Gold Star parents Billy and Karen Vaughn, they told me two-thirds of the deaths and the wounds of our military in Afghanistan have occurred under President Obama. I couldn't believe that. So we got the official numbers. I've got a poster around here somewhere. I don't have time to use it right now.

But when we got the official numbers, it turns out 70 percent of those who have been killed in Afghanistan have been killed under President Obama's command, even though he's been in command in Afghanistan only half the time of President Bush. Eighty-four percent of those people losing arms, legs, hands, terribly disabling wounds from IEDs and other injury sources, 84 percent of those have occurred under Commander in Chief Obama compared to the 16 percent that occurred under President Bush in Afghanistan.

Article here from Breitbart by Tony Lee:

> On the somber 11th anniversary of the 9/11 attacks, nearly 2,000 members of the U.S. military have died in Afghanistan since the war started in response to the attacks in 2011.

By the way, this President Obama, when he was running for President, called it the ''good war.''

But this article by Tony Lee goes on and points out what I've been talking about ever since Billy and Karen brought that to my attention, and I was greatly sorry that I did not know that without them pointing it out to me.

It was also interesting to read an article by John Nolte, 12 September, 2012. Obviously, I like the guy. I like his cynicism. He says:

> Oh, that awful Mitt Romney. Just a few minutes before the White House itself disavowed the Cairo Embassy apologizing for free speech, Romney rightfully condemned the appeasing statement in no uncertain terms. And as a result, all day long, the corrupt media has been on a rampage to make Romney pay for the unpardonable sin of criticizing Their Precious One.
>
> You see, there's no precedent for a political opponent immediately criticizing a sitting President after a foreign policy crisis. Oh, wait.

Then it has reference to other articles where that's gone on, a flashback to Kerry slamming Bush. Over and over it's happened when it's a Republican President.

The article says:

> So with the entire institution of the media circling the wagons for Obama today, in a futile attempt to rescue him from his own foreign policy blunders, we now have CBS News riding to the rescue in order to give the same President who condemned Romney before he condemned the terrorists an opportunity to further politicize this tragedy:
>
> ''There's a broader lesson to be learned here. Governor Romney seems to have a tendency to shoot first and aim later.''

That's what President Obama had to say. Yes, that's the President talking about spouting off too quickly.

> But the President is right about Mitt Romney: guilty as charged. Romney did shoot first to defend the principles of free speech that the people who work for Obama in Cairo were so eager to fritter away. Yes, that damn Mitt Romney saw this outrageous example of simpering in the face of terror coming from American officials and immediately spoke out against it.

It goes on to make a great point. Romney stood up for free speech.

The movie that's been fussed about sounds like a ridiculous thing that should not be done, except that this is America where people, whether it's Howard Stern or anybody else, they have a right to say things, no matter how offensive they may be, unless they go so far that they actually harm other people.

Another article: ''No Record of Intel Briefings for Obama Week Before Embassy Attacks.'' This was written by Wynton Hall, 12 September, 2012, and it points out:

> According to the White House calendar, there is no public record of President Barack Obama attending his daily intelligence briefing—known as the Presidential Daily Brief (PDB)—in the week leading up to the attacks on the U.S. Embassy in Cairo and the murder of U.S. Libyan Ambassador Chris Stevens and three American members of his staff.

I've got to say. I read an account and a story of the administration reporting the name of one of the other three killed as part of the Libyan Embassy personnel. They gave that man's name, pointed out he was a former SEAL team member but was in a private security force. Then, according to the article, the administration reported that he was killed while running for cover.

Madam Speaker, I know something about SEAL team members. In the mind of a SEAL team member or a former SEAL team member, he is never running for cover. He is running for a place, if at all, from which to launch a better attack. Even in death, this administration can't be respectful to the people that have laid down their lives for this administration.

Even though the White House says that, gee, the President does read briefings, he just hasn't been getting them personally, I would hope that he would start doing that. There are people's lives at stake, and he is President. He's such a fantastic campaigner, and I know it's inconvenient, but I sure hope that he'll get back to being President.

To give credit where credit is due, it was very wonderful of the President to

take a minute and a half or whatever it was, a minute, minute and a half, to pay tribute to those who laid down their lives for their country at the Libya Embassy where they didn't have adequate security, and where this administration enabled al Qaeda and others to take over the government. It was nice of him to take a minute and a half to pay tribute to them giving their lives in the middle of his campaign event before he went on with the celebration.

I recall President George W. Bush. People here know we certainly had our differences, and I certainly disagreed with him on a number of things. But I had great respect for the man. He said:

How can I go play golf when I am Commander in Chief and I have sent soldiers, our military, into harm's way? It just doesn't feel right for me to be out on a golf course having a good time when our men and women are in harm's way.

But it did look like a fun celebration there that President Obama was having in Las Vegas.

Another article: ''Libyan Official: U.S. At Fault in Attacks.'' Written by Awr Hawkins, 12 September, 2012.

He points out that although the head of Libya's National Assembly has formally apologized for the killing of U.S. Ambassador Christopher Stevens, other higher-ranking Libyan officials refuse to apologize and continue to contend the U.S. is to blame.

The story talks about those contentions. Hey, it was our fault. Kind of like the ridiculous claims that sometimes those of us who were judges or prosecutors heard from a guilty rape defendant who said, ''Well, you know, she was asking for it.'' Excuse me?

That was abominable what happened at the Libyan Embassy. It is a tragic fact that this administration, against the will of Congress, without even asking what the will of Congress was, said, Well, gee, the U.N., Organization of Islamic Conference, they want us there. So, why not? We ought to go. That's all he needed. He didn't care what Congress thought.

He enabled them. He used American bombers. And then when the American public obviously was upset, eventually, that it was taking so long—hey, hey, keep in mind, it's not the U.S.; it's NATO. He may not have gotten a briefing that let him know that over 60 percent of the NATO military is American military.

Here's a flashback article. I just think it's important, when these terrible things are happening around the world, that we take a quick look at how we got where we are so maybe we don't keep doubling down on things that get Americans killed and hurt our national security. This article by Dana Loesch, 12 September 2012, ''Flashback: Obama Admin Endorsed Muslim Brotherhood,'' it points out from a New York Times article even August 1 this year, it said:

Leon E. Panetta, the United States Defense Secretary, said on Tuesday that President Mohammed Morsi of Egypt was ''his own man,'' a strong declaration of American support for Mr. Morsi, a former leader of the Muslim Brotherhood whose future course in Egypt remains a great unknown to the Obama administration.

Well, it didn't keep us from enabling him to be there.

Another article: ''Obama Admits He Lost Egypt As American Ally.'' It goes on to talk about how the President, because of our turning our back, or stabbing a man with whom this administration had made agreements, who was trying to uphold the Israeli-Egyptian Accord that was brokered by President Carter—one nice thing that President Carter did. President Obama now admits, well, they're not really an enemy, but they're not an ally. We lost them as an ally because of the incompetence of this administration.

''Obama Declines Meeting With Netanyahu,'' and let me just finish with this. Although he doesn't have time for Netanyahu, apparently he has time to attend a Jay-Z and Beyonce fundraiser. They're fabulous entertainers, I understand that. But there's a country to run, there are Americans being killed, and it's time somebody around this town picked up the responsibility and acted responsibly. I don't think doing a CR is the way to do it, but certainly not running off to fundraisers when people are giving their lives for you on foreign soil is the way to go either.

With that, I yield back the balance of my time.

ENROLLED BILL SIGNED

Karen L. Haas, Clerk of the House, reported and found truly enrolled a bill of the House of the following title, which was thereupon signed by the Speaker:

H.R. 6336. An act to direct the Joint Committee on the Library to accept a statue depicting Frederick Douglass from the District of Columbia and to provide for the permanent display of the statue in Emancipation Hall of the United States Capitol.

ADJOURNMENT

Mr. GOHMERT. Madam Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 9 o'clock and 2 minutes p.m.), the House adjourned until tomorrow, Friday, September 14, 2012, at 9 a.m.

EXPENDITURE REPORTS CONCERNING OFFICIAL FOREIGN TRAVEL

Reports concerning the foreign currencies and U.S. dollars utilized for Official Foreign Travel during the second and third quarters of 2012 pursuant to Public Law 95-384 are as follows:

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, ROBERT KAREM, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JUNE 10 AND JUNE 18, 2012

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Robert Karem	6/10	6/13	South Korea		1,050.03						1,050.03
	6/10	6/18	Japan		2,262.29						2,262.29
Committee total											3,312,32

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

MR. ROBERT KAREM, July 25, 2012.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, BARRY JACKSON, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN AUG. 5 AND AUG. 13, 2012

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Barry Jackson	8/5	8/8	Vietnam		812,00		[3] 14455				15267.00
	8/8	8/10	Cambodia		349.00						349.00
	8/10	8/12	Burma		512.00						512.00
	8/12	8/13	Malaysia		255.00						255.00

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, BARRY JACKSON, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN AUG. 5 AND AUG. 13, 2012—Continued

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Committee total											16,383.00

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
[3] Airfare inclusive for entire trip.

MR. BARRY JACKSON, Sept. 12, 2012.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, DELEGATION TO ESTONIA, RUSSIA, GEORGIA, AND IRELAND, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JUNE 29 AND JULY 8, 2012

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Kevin McCarthy	6/30	7/2	Estonia		652.00		(3)				652.00
Hon. Peter Roskam	6/30	7/2	Estonia		652.00		(3)				652.00
Hon. Mac Thornberry	6/30	7/2	Estonia		652.00		(3)				652.00
Hon. Tom Rooney	6/30	7/2	Estonia		652.00		(3)				652.00
Hon. Kay Granger	6/30	7/2	Estonia		652.00		(3)				652.00
Hon. Mike Kelly	6/30	7/2	Estonia		652.00		(3)				652.00
Hon. Adrian Smith	6/30	7/2	Estonia		652.00		(3)				652.00
Hon. Karen Bass	6/30	7/2	Estonia		652.00		(3)				652.00
Tim Berry	6/30	7/2	Estonia		652.00		(3)				652.00
Natalie Buchanan	6/30	7/2	Estonia		652.00		(3)				652.00
Brittany Carey	6/30	7/2	Estonia		652.00		(3)				652.00
Erica Elliott	6/30	7/2	Estonia		652.00		(3)				652.00
Emily Murry	6/30	7/2	Estonia		652.00		(3)				652.00
Stephen Pinkos	6/30	7/2	Estonia		652.00		(3)				652.00
Hon. Kevin McCarthy	7/2	7/5	Russia		1,308.00		550.00				1,858.00
Hon. Peter Roskam	7/2	7/5	Russia		1,308.00		550.00				1,858.00
Hon. Mac Thornberry	7/2	7/5	Russia		1,308.00		550.00				1,858.00
Hon. Tom Rooney	7/2	7/5	Russia		1,308.00		550.00				1,858.00
Hon. Kay Granger	7/2	7/5	Russia		1,308.00		612.00				1,920.00
Hon. Mike Kelly	7/2	7/5	Russia		1,308.00		612.00				1,920.00
Hon. Adrian Smith	7/2	7/5	Russia		1,308.00		550.00				1,858.00
Hon. Karen Bass	7/2	7/5	Russia		1,308.00		550.00				1,858.00
Tim Berry	7/2	7/5	Russia		1,308.00		550.00				1,858.00
Natalie Buchanan	7/2	7/5	Russia		1,308.00		550.00				1,858.00
Brittany Carey	7/2	7/5	Russia		1,308.00		550.00				1,858.00
Erica Elliott	7/2	7/5	Russia		1,308.00		550.00				1,858.00
Emily Murry	7/2	7/5	Russia		1,308.00		550.00				1,858.00
Stephen Pinkos	7/2	7/5	Russia		1,308.00		550.00				1,858.00
Hon. Kevin McCarthy	7/5	7/7	Georgia		596.00		(3)				596.00
Hon. Peter Roskam	7/5	7/7	Georgia		596.00		(3)				596.00
Hon. Mac Thornberry	7/5	7/7	Georgia		596.00		(3)				596.00
Hon. Tom Rooney	7/5	7/7	Georgia		596.00		(3)				596.00
Hon. Kay Granger	7/5	7/7	Georgia		596.00		(3)				596.00
Hon. Mike Kelly	7/5	7/7	Georgia		596.00		(3)				596.00
Hon. Adrian Smith	7/5	7/7	Georgia		596.00		(3)				596.00
Hon. Karen Bass	7/5	7/7	Georgia		596.00		(3)				596.00
Tim Berry	7/5	7/7	Georgia		596.00		(3)				596.00
Natalie Buchanan	7/5	7/7	Georgia		596.00		(3)				596.00
Brittany Carey	7/5	7/7	Georgia		596.00		(3)				596.00
Erica Elliott	7/5	7/7	Georgia		596.00		(3)				596.00
Emily Murry	7/5	7/7	Georgia		596.00		(3)				596.00
Stephen Pinkos	7/5	7/7	Georgia		596.00		(3)				596.00
Hon. Kevin McCarthy	7/7	7/8	Ireland		411.00		(3)				411.00
Hon. Peter Roskam	7/7	7/8	Ireland		411.00		(3)				411.00
Hon. Mac Thornberry	7/7	7/8	Ireland		411.00		(3)				411.00
Hon. Tom Rooney	7/7	7/8	Ireland		411.00		(3)				411.00
Hon. Kay Granger	7/7	7/8	Ireland		411.00		(3)				411.00
Hon. Mike Kelly	7/7	7/8	Ireland		411.00		(3)				411.00
Hon. Adrian Smith	7/7	7/8	Ireland		411.00		(3)				411.00
Hon. Karen Bass	7/7	7/8	Ireland		411.00		(3)				411.00
Tim Berry	7/7	7/8	Ireland		411.00		(3)				411.00
Natalie Buchanan	7/7	7/8	Ireland		411.00		(3)				411.00
Brittany Carey	7/7	7/8	Ireland		411.00		(3)				411.00
Erica Elliott	7/7	7/8	Ireland		411.00		(3)				411.00
Emily Murry	7/7	7/8	Ireland		411.00		(3)				411.00
Stephen Pinkos	7/7	7/8	Ireland		411.00		(3)				411.00
Committee total											49,300.00

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
[3] Military air transportation.

HON. KEVIN MCCARTHY, Aug. 7, 2012.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, DELEGATION TO LIBERIA, TUNISIA, KENYA, MADAGASCAR, AND MOROCCO, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JUNE 30 AND JULY 9, 2012

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. David Dreier	6/30	7/2	Liberia		500.00		(3)				500.00
Hon. David Price	6/30	7/2	Liberia		500.00		(3)				500.00
Hon. Ed Whitfield	6/30	7/2	Liberia		500.00		(3)				500.00
Hon. Susan Davis	6/30	7/2	Liberia		500.00		(3)				500.00
Hon. Mike Ross	6/30	7/2	Liberia		500.00		(3)				500.00
Hon. Gwen Moore	6/30	7/2	Liberia		500.00		(3)				500.00
Barry Jackson	6/30	7/2	Liberia		500.00		(3)				500.00
Brad Smith	6/30	7/2	Liberia		500.00		(3)				500.00
Thomas Wickham	6/30	7/2	Liberia		500.00		(3)				500.00
Rachael Leman	6/30	7/2	Liberia		500.00		(3)				500.00
John Lis	6/30	7/2	Liberia		500.00		(3)				500.00
Robert Lawrence	6/30	7/2	Liberia		500.00		(3)				500.00
Hon. David Dreier	7/2	7/4	Tunisia		396.00		(3)				396.00

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, DELEGATION TO LIBERIA, TUNISIA, KENYA, MADAGASCAR, AND MOROCCO, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JUNE 30 AND JULY 9, 2012—Continued

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. David Price	7/2	7/4	Tunisia		396.00		[3]				396.00
Hon. Ed Whitfield	7/2	7/4	Tunisia		396.00		[3]				396.00
Hon. Susan Davis	7/2	7/4	Tunisia		396.00		[3]				396.00
Hon. Mike Ross	7/2	7/4	Tunisia		396.00		[3]				396.00
Hon. Gwen Moore	7/2	7/4	Tunisia		396.00		[3]				396.00
Barry Jackson	7/2	7/4	Tunisia		396.00		[3]				396.00
Brad Smith	7/2	7/4	Tunisia		396.00		[3]				396.00
Thomas Wickham	7/2	7/4	Tunisia		396.00		[3]				396.00
Rachael Leman	7/2	7/4	Tunisia		396.00		[3]				396.00
John Lis	7/2	7/4	Tunisia		396.00		[3]				396.00
Robert Lawrence	7/2	7/4	Tunisia		396.00		[3]				396.00
Hon. David Dreier	7/4	7/6	Kenya		700.00		[3]				700.00
Hon. David Price	7/4	7/6	Kenya		700.00		[3]				700.00
Hon. Ed Whitfield	7/4	7/6	Kenya		700.00		[3]				700.00
Hon. Susan Davis	7/4	7/6	Kenya		700.00		[3]				700.00
Hon. Mike Ross	7/4	7/6	Kenya		700.00		[3]				700.00
Hon. Gwen Moore	7/4	7/6	Kenya		700.00		[3]				700.00
Barry Jackson	7/4	7/6	Kenya		700.00		[3]				700.00
Brad Smith	7/4	7/6	Kenya		700.00		[3]				700.00
Thomas Wickham	7/4	7/6	Kenya		700.00		[3]				700.00
Rachael Leman	7/4	7/6	Kenya		700.00		[3]				700.00
John Lis	7/4	7/6	Kenya		700.00		[3]				700.00
Robert Lawrence	7/4	7/6	Kenya		700.00		[3]				700.00
Hon. David Dreier	7/6	7/8	Madagascar		474.00		[3]				474.00
Hon. David Price	7/6	7/8	Madagascar		474.00		[3]				474.00
Hon. Ed Whitfield	7/6	7/8	Madagascar		474.00		[3]				474.00
Hon. Susan Davis	7/6	7/8	Madagascar		474.00		[3]				474.00
Hon. Mike Ross	7/6	7/8	Madagascar		474.00		[3]				474.00
Hon. Gwen Moore	7/6	7/8	Madagascar		474.00		[3]				474.00
Barry Jackson	7/6	7/8	Madagascar		474.00		[3]				474.00
Brad Smith	7/6	7/8	Madagascar		474.00		[3]				474.00
Thomas Wickham	7/6	7/8	Madagascar		474.00		[3]				474.00
Rachael Leman	7/6	7/8	Madagascar		474.00		[3]				474.00
John Lis	7/6	7/8	Madagascar		474.00		[3]				474.00
Robert Lawrence	7/6	7/8	Madagascar		474.00		[3]				474.00
Hon. David Dreier	7/8	7/9	Morocco		250.00		[3]				250.00
Hon. David Price	7/8	7/9	Morocco		250.00		[3]				250.00
Hon. Ed Whitfield	7/8	7/9	Morocco		250.00		[3]				250.00
Hon. Susan Davis	7/8	7/9	Morocco		250.00		[3]				250.00
Hon. Mike Ross	7/8	7/9	Morocco		250.00		[3]				250.00
Hon. Gwen Moore	7/8	7/9	Morocco		250.00		[3]				250.00
Barry Jackson	7/8	7/9	Morocco		250.00		[3]				250.00
Brad Smith	7/8	7/9	Morocco		250.00		[3]				250.00
Thomas Wickham	7/8	7/9	Morocco		250.00		[3]				250.00
Rachael Leman	7/8	7/9	Morocco		250.00		[3]				250.00
John Lis	7/8	7/9	Morocco		250.00		[3]				250.00
Robert Lawrence	7/8	7/9	Morocco		250.00		[3]				250.00
Committee totals											27,840.00

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
[3] Military air transportation.

HON. DAVID DREIER, Aug. 1, 2012.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON AGRICULTURE, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN APR. 1 AND JUNE 30, 2012

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Tim Holden	5/20	5/21	South Korea		338.90		[3]				338.90
	5/21	5/24	China		1,115.89		[3]				1,115.89
	5/24	5/26	India		582.63		[3]				582.63
	5/26	5/27	Germany		291.00		[3]				291.00
Hon. Glenn Thompson	6/09	6/10	Azerbaijan		270.00		[3]				270.00
	6/10	6/11	Afghanistan		16.00		[3]				16.00
	6/11	6/13	Pakistan		549.00		[3]				549.00
	6/13	6/14	Bahrain		46.00		[3]				46.00
	6/14	6/15	Yemen				[3]				
	6/15	6/16	Egypt		92.00		[3]				92.00
Committee total											

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
[3] Military air transportation.

HON. FRANK D. LUCAS, Chairman.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON APPROPRIATIONS, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN APR. 1 AND JUNE 30, 2012

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Barbara Lee	4/2	4/3	Uganda		305.00						305.00
Misc. delegation costs									150.00		150.00
Commercial Airfare											
Hon. Jack Kingston	4/2	4/3	Rwanda		337.75						337.75
Local ground transportation							126.48				126.48
Commercial Airfare							204.00				204.00
Hon. John R. Carter	4/20	4/22	United Arab Emirates		429.00						429.00
	4/22	4/23	Afghanistan		28.00						28.00
	4/23	4/24	Qatar		341.00						
Misc. delegation costs									166.80		166.80
Commercial Airfare							5,411.90				5,411.90
Hon. Steven C. LaTourette	4/3	4/5	Turkey		894.66		[3]				894.66

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON APPROPRIATIONS, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN APR. 1 AND JUNE 30, 2012—Continued

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
	4/5	4/6	Israel		498.00		[3]				498.00
	4/6	4/8	Jordan		588.00		[3]				588.00
	4/8	4/9	Ireland		243.59		[3]				243.59
Misc. delegation costs									1,766.11		1,766.11
Hon. Steve Austria	4/3	4/5	Turkey		894.66						894.66
	4/5	4/6	Israel		498.00		[3]				498.00
	4/6	4/8	Jordan		588.80		[3]				588.80
	4/8	4/8	Ireland		243.59		[3]				243.59
Misc. delegation costs									1,766.11		1,766.11
Hon. Jack Kingston	6/09	6/10	Azerbaijan		373.00		[3]				373.00
	6/10	6/11	Afghanistan		56.00		[3]				56.00
	6/11	6/13	Pakistan		622.00		[3]				622.00
	6/13	6/14	Bahrain		124.00		[3]				124.00
	6/14	6/15	Yemen		226.62		[3]				266.05
	6/15	6/16	Egypt		266.05		[3]				266.05
Committee total					7,557.72		5,742.38		3,849.02		17,149.12

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
[3] Military air transportation.

HON. HAROLD ROGERS, Chairman.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON ARMED SERVICES, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN APR. 1 AND JUNE 30, 2012

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency	Foreign currency	U.S. dollar equivalent or U.S. currency	Foreign currency	U.S. dollar equivalent or U.S. currency
Visit to Ghana, Tanzania, United Arab Emirates Germany with CODEL Inhofe, April 9–16, 2012:											
Hon. Jeff Miller	4/9	4/11	Ghana		31.14						31.14
	4/11	4/14	Tanzania		180.50						180.50
	4/14	4/16	United Arab Emirates		84.76						84.76
	4/16	4/17	Germany		10.00						10.00
Visit to Afghanistan, United Arb Emirates with CODEL Gochmert, April 19–23, 2012:											
Hon. Madeleine Z. Bordallo	4/20	4/21	United Arab Emirates		337.33						337.33
	4/21	4/22	Afghanistan		28.00						28.00
	4/22	4/23	United Arab Emirates		359.38						359.38
Commercial airfare							7,504.70				7,504.70
Visit to Afghanistan, Bahrain, Belgium, May 18–23, 2012:											
Hon. Martha Roby	5/19	5/20	Belgium		112.00						112.00
	5/20	5/21	Afghanistan		28.00						28.00
	5/21	5/22	Bahrain		365.19						365.19
	5/22	5/23	Ireland		111.00						111.00
Hon. Susan Davis	5/19	5/20	Belgium		112.00						112.00
	5/20	5/21	Afghanistan		28.00						28.00
	5/21	5/22	Bahrain		365.19						365.19
	5/22	5/23	Ireland		111.00						111.00
Hon. Kathy Hochul	5/19	5/20	Belgium		112.00						112.00
	5/20	5/21	Afghanistan		28.00						28.00
	5/21	5/22	Bahrain		365.19						365.19
	5/22	5/23	Ireland		111.00						111.00
Jaime Cheshire	5/19	5/20	Belgium		112.00						112.00
	5/20	5/21	Afghanistan		28.00						28.00
	5/21	5/22	Bahrain		365.00						365.00
	5/22	5/23	Ireland		111.00						111.00
Debra Wada	5/22	5/23	Ireland		111.00						111.00
	5/20	5/21	Afghanistan		28.00						28.00
	5/21	5/22	Bahrain		365.19						365.19
	5/22	5/23	Ireland		111.00						111.00
Delegation expenses			Bahrain						106.10		106.10
Visit to India, China, South Korea, Germany with CODEL Kline, May 18–27, 2012:											
Hon. Mike McIntyre	5/20	5/21	South Korea		338.90						338.90
	5/21	5/24	China		1,115.89						1,115.89
	5/24	5/26	India		582.63						582.63
	5/26	5/27	Germany		291.00						291.00
Visit to Uganda, Kenya with CODEL Coons, May 25–31, 2012:											
Hon. Adam Smith	5/26	5/29	Uganda		198.00						198.00
	5/29	5/31	Kenya		46.00						46.00
Paul Arcangeli	5/26	5/29	Uganda		198.00						198.00
	5/29	5/31	Kenya		286.00						286.00
Visit to Tanzania, Senegal, Tunisia, May 29–June 5, 2012:											
Craig Greene	5/31	6/1	Tanzania		546.00						546.00
	6/1	6/2	Senegal		760.73						760.73
	6/4	6/5	Tunisia		196.00						196.00
Commercial airfare							15,782.00				15,782.00
Paul Arcangeli	5/30	6/1	Tanzania		546.00						546.00
	6/1	6/2	Senegal		388.00						388.00
Commercial airfare							15,782.00				15,782.00
Debra Wada	5/30	6/1	Tanzania		546.00						546.00
	6/1	6/2	Senegal		760.73						760.73
	6/4	6/5	Tunisia		196.00						196.00
Commercial airfare							15,782.00				15,782.00
Timothy McClees	5/30	6/1	Tanzania		546.00						546.00
	6/1	6/2	Senegal		760.73						760.73
	6/4	6/5	Tunisia		196.00						196.00
Commercial airfare							15,782.00				15,782.00
Delegation expenses			Tunisia						134.91		134.91
Visit to Germany, Burkina Faso, Niger, May 29–June 5, 2012:											
Peter Villano	5/30	5/31	Germany		114.00						114.00
	5/31	6/2	Niger		435.36						435.36
	6/2	6/4	Burkina Faso		281.95						281.95
Commercial airfare							11,648.00				11,648.00

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON ARMED SERVICES, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN APR. 1 AND JUNE 30, 2012—Continued

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency	Foreign currency	U.S. dollar equivalent or U.S. currency	Foreign currency	U.S. dollar equivalent or U.S. currency
Mark Lewis	5/30	5/31	Germany		114.00						114.00
	5/31	6/2	Niger		435.36						435.36
	6/2	6/4	Burkina Faso		281.95						281.95
Commercial airfare							11,648.00				11,648.00
Visit to Denmark, Romania, France, United Kingdom, Germany, June 8–18, 2012:											
Hon. Michael Turner	6/9	6/10	Denmark		145.00						145.00
	6/10	6/11	Germany		177.00						177.00
	6/11	6/13	United Kingdom		1,024.78						1,024.78
	6/13	6/16	France		2,252.95						2,252.95
	6/16	6/17	Romania		92.00						92.00
Hon. Loretta Sanchez	6/9	6/10	Denmark		145.00						145.00
	6/10	6/11	Germany		177.00						177.00
	6/11	6/13	United Kingdom		1,024.78						1,024.78
	6/13	6/16	France		2,252.95						2,252.95
	6/16	6/17	Romania		92.00						92.00
Timothy Morrison	6/9	6/10	Denmark		145.00						145.00
	6/10	6/11	Germany		177.00						177.00
	6/11	6/13	United Kingdom		1,024.78						1,024.78
	6/13	6/16	France		2,252.95						2,252.95
	6/16	6/17	Romania		92.00						92.00
Leonor Tomero	6/9	6/10	Denmark		145.00						145.00
	6/10	6/11	Germany		177.00						177.00
	6/11	6/13	United Kingdom		1,024.78						1,024.78
	6/13	6/16	France		2,252.95						2,252.95
	6/16	6/17	Romania		92.00						92.00
Delegation expenses			United Kingdom						541.11		541.11
			France						5,300.00		5,300.00
Visit to Afghanistan, Pakistan, Qatar, June 11–16, 2012:											
Hon. Robert Wittman	6/13	6/14	Afghanistan		28.00						28.00
	6/14	6/15	Pakistan		294.00						294.04
Commercial airfare							2,531.70				2,531.70
Hon. K. Michael Conaway	6/13	6/14	Afghanistan		28.00						28.00
	6/14	6/15	Pakistan		294.00						294.00
Commercial airfare							9,766.00				9,766.00
Hon. Steven Palazzo	6/13	6/14	Afghanistan		28.00						28.00
	6/14	6/15	Pakistan		294.00						294.00
Commercial airfare							10,569.70				10,569.70
Michele Pearce	6/13	6/14	Afghanistan		28.00						28.00
	6/14	6/15	Pakistan		294.00					294.00	
Commercial airfare							9,766.00				9,766.00
Paul Lewis	6/13	6/14	Afghanistan		28.00						28.00
	6/14	6/15	Pakistan		294.00						294.00
Commercial airfare							9,766.00				9,766.00
Alex Gallo	6/13	6/14	Afghanistan		28.00						28.00
	6/14	6/15	Pakistan		294.00						294.00
Commercial airfare							9,766.00				9,766.00
Delegation expenses			Pakistan						855.89		855.89
Visit to South Korea, Japan, June 9–18, 2012:											
Roger Zakheim	6/10	6/13	South Korea		1,050.03						1,050.03
	6/13	6/18	Japan		2,527.52						2,527.52
Commercial airfare							5,006.70				5,006.70
Jenness Simler	6/10	6/13	South Korea		1,050.03						1,050.03
	6/13	6/18	Japan		2,256.12						2,256.12
Commercial airfare							5,006.70				5,006.70
Michael Casey	6/10	6/13	South Korea		1,050.03						1,050.03
	6/13	6/18	Japan		2,256.12						2,256.12
Commercial airfare							5,006.70				5,006.70
Delegation expenses									327.76		327.76
Visit to Japan, South Korea, June 9–15, 2012:											
Jeanette James	6/10	6/12	Japan		750.63						750.63
	6/12	6/15	South Korea		1,050.00						1,050.00
Commercial airfare							11,178.40				11,178.40
Jeanette James	6/10	6/12	Japan		750.63						750.63
	6/12	6/15	South Korea		1,050.00						1,050.00
Commercial airfare							11,178.40				11,178.40
Delegation expenses			South Korea						333.30		333.30
Visit to Azerbaijan, Afghanistan, Pakistan, Bahrain, Yemen, Egypt with CODEL Platts, June 8–16, 2012:											
Hon. John Fleming	6/9	6/10	Azerbaijan		249.75						249.75
	6/10	6/11	Afghanistan		56.00						56.00
	6/11	6/13	Pakistan		427.63						427.63
	6/13	6/14	Bahrain		124.00						124.00
	6/14	6/15	Yemen		226.62						226.62
	6/15	6/16	Egypt		174.05						174.05
Visit to France, June 17–19, 2012:											
Timothy Morrison	6/17	6/19	France		1,096.00						1,096.00
Commercial airfare							2,364.50				2,364.50
Leonor Tomero	6/17	6/19	France		1,096.00						1,096.00
Commercial airfare							2,364.50				2,364.50
Committee total					48,213.61		188,200.00		7,599.07		244,012.68

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. HOWARD P. "BUCK" McKEON, Chairman, July 31, 2012.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON THE BUDGET, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN APR. 1 AND JUNE 30, 2012

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Tom Price	4/3	4/5	Turkey		759.00		(3)				759.00
	4/5	4/6	Israel		493.00		(3)				493.00
	4/6	4/8	Jordan		588.80		(3)				588.80
	4/8	4/9	Ireland		243.59		(3)				243.59
Jennafer Spealman	4/3	4/5	Turkey		759.00		(3)				759.00

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON THE BUDGET, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN APR. 1 AND JUNE 30, 2012—Continued

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
	4/5	4/6	Israel		493.00		(3)				493.00
	4/6	4/8	Jordan		588.80		(3)				588.80
	4/8	4/9	Ireland		243.59		(3)				243.59
Control Room	4/2	4/5	Turkey						1,027.32		1,027.32
Control Room	4/5	4/6	Israel						340.00		340.00
Parking Fees	4/3	4/9					105.00				105.00
Committee total					4,168.78		105.00		1,367.32		5,641.10

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
[3] Military air transportation.

HON. PAUL RYAN, Chairman, July 27, 2012.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON EDUCATION AND THE WORKFORCE, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN APR. 1 AND JUNE 30, 2012

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. John Kline	5/20	5/21	Republic of Korea		338.90		(3)				338.90
Hon. Virginia Foxx	5/20	5/21	Republic of Korea		338.90		(3)				338.90
Hon. David ''Phil'' Roe	5/20	5/21	Republic of Korea		338.90		(3)				338.90
Hon. Tim Walberg	5/20	5/21	Republic of Korea		338.90		(3)				338.90
Elizabeth Barrett Karr	5/20	5/21	Republic of Korea		338.90		(3)				338.90
Angelyn Shapiro	5/20	5/21	Republic of Korea		338.90		(3)				338.90
Casey Buboltz	5/20	5/21	Republic of Korea		338.90		(3)				338.90
Delegation expenses	5/20	5/21	Republic of Korea						5,800.76		5,800.76
Hon. John Kline	5/21	5/24	People's Republic of China		1,115.89		(3)				1,115.89
Hon. Virginia Foxx	5/21	5/24	People's Republic of China		1,115.89		(3)				1,115.89
Hon. David ''Phil'' Roe	5/21	5/24	People's Republic of China		1,115.90		(3)				1,115.89
Hon. Tim Walberg	5/21	5/24	People's Republic of China		1,115.90		(3)				1,115.89
Elizabeth Barrett Karr	5/21	5/24	People's Republic of China		1,115.90		(3)				1,115.89
Angelyn Shapiro	5/21	5/24	People's Republic of China		1,115.90		(3)				1,115.89
Casey Buboltz	5/21	5/24	People's Republic of China		1,115.89		(3)				1,115.89
Delegation expenses	5/21	5/24	People's Republic of China						7,137.92		7,137.92
Hon. John Kline	5/24	5/26	India		582.63		(3)				582.63
Hon. Virginia Foxx	5/24	5/26	India		582.63		(3)				582.63
Hon. David ''Phil'' Roe	5/24	5/26	India		582.63		(3)				582.63
Hon. Tim Walberg	5/24	5/26	India		582.63		(3)				582.63
Elizabeth Barret Karr	5/24	5/26	India		582.63		(3)				582.63
Angelyn Shapiro	5/24	5/26	India		582.63		(3)				582.63
Casey Buboltz	5/24	5/26	India		582.63		(3)				582.63
Delegation expenses	5/24	5/26	India						5,387.97		5,387.97
Hon. John Kline	5/26	5/27	Germany		291.00		(3)				291.00
Hon. Virginia Foxx	5/26	5/27	Germany		291.00		(3)				291.00
Hon. David ''Phil'' Roe	5/26	5/27	Germany		291.00		(3)				291.00
Hon. Tim Walberg	5/26	5/27	Germany		291.00		(3)				291.00
Elizabeth Barrett Karr	5/26	5/27	Germany		291.00		(3)				291.00
Angelyn Shapiro	5/26	5/27	Germany		291.00		(3)				291.00
Casey Buboltz	5/26	5/27	Germany		291.00		(3)				291.00
Committee total					16,298.94				18,326.65		34,625.59

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
[3] Military or transportation.

HON. JOHN KLINE, Chairman, July 27, 2012.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON ENERGY AND COMMERCE, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN APR. 1 AND JUNE 30, 2012

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Mary Bono Mack	4/13	4/15	Colombia		214.00		(3)				214.00
Hon. Michael Burgess	4/20	4/20	United Arab Emirates		143.00		10,779.00				19,922.00
Hon. Phil Gingrey	6/9	6/10	Denmark		340.00		(3)				340.00
	6/10	6/13	England		360.00		(3)				360.00
	6/13	6/13	Scotland		290.00		(3)				290.00
	6/13	6/16	France		492.00		(3)				492.00
	6/16	6/17	Romania		250.00		(3)				250.00
Committee total					2,089.00		10,779.00				21,868.00

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
[3] Military air transportation.

HON. FRED UPTON, Chairman, Aug. 3, 2012.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON FINANCIAL SERVICES, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN APR. 1 AND JUNE 30, 2012

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency	Foreign currency	U.S. dollar equivalent or U.S. currency	Foreign currency	U.S. dollar equivalent or U.S. currency
Hon. Andre Carson	4/3	4/5	Turkey		1,097.61		(3)				1,097.61
	4/5	4/6	Israel		498.00		(3)				498.00
	4/6	4/8	Jordan		588.00		(3)				588.00
Hon. Keith Ellison	4/1	4/5	Saudi Arabia		1,857.58		16,813.20				18,670.78

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON FINANCIAL SERVICES, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN APR. 1 AND JUNE 30, 2012—Continued

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency	Foreign currency	U.S. dollar equivalent or U.S. currency	Foreign currency	U.S. dollar equivalent or U.S. currency
Hon. Stevan Pearce	4/9	4/10	Ghana		241.14		(3)				241.14
	4/10	4/13	Tanzania		635.57		(3)				635.57
	4/14	4/15	United Arab Emirates		398.80		(3)				398.80
	4/15	4/16	Germany		175.06		(3)				175.06
Hon. Thaddeus McCotter	4/20	4/22	Taiwan		582.69		(3)				582.69
	4/22	4/25	South Korea		1,013.00		(3)				1,013.00
Hon. Donald Manzullo	6/9	6/11	Denmark		651.32		(3)				651.32
	6/11	6/12	France		235.68		(3)				235.68
Hon. Bill Huizenga	6/9	6/11	Denmark		828.00		(3)				828.00
	6/11	6/12	France		324.00		(3)				324.00
Committee total					10,722.14		16,813.20				27,535.34

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
[3] Military air transportation.

HON. SPENCER BACHUS, Chairman, July 31, 2012.7

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON FOREIGN AFFAIRS, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN APR. 1 AND JUNE 30, 2012

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Karen Bass	5/26	5/29	Uganda		928.68		8,851.90				9,780.58
Eric Williams	5/26	5/29	Uganda		851.95		1,934.60				2,786.55
	5/29	6/1	Kenya		964.13		(3)				964.13
	6/1	6/2	Tanzania		195.84		(3)				195.84
	6/2	6/3	Egypt		174.05		(3)				174.05
Gregory Simpkins	3/31	4/4	Nigeria		1,483.96		12,094.76				13,578.72
Algene Sajery	3/31	4/4	Nigeria		1,615.00		9,970.80				11,585.80
Hon. Dan Rohrabacher	4/23	4/24	Qatar		453.00		4,342.10				4,795.10
Paul Berkowitz	4/23	4/24	Qatar		453.00		4,342.10				4,795.10
Hon. Steve Chabot	5/19	5/20	India		237.00		12,487.00		633.18		13,357.18
	5/20	5/22	Laos		293.00		81.31				374.31
	5/22	5/23	Burma		158.00						158.00
	5/24	5/25	Yemen		49.00						49.00
Kevin Fitzpatrick	5/19	5/20	India		241.00		12,487.00				12,728.00
	5/20	5/22	Laos		288.00						288.00
	5/22	5/23	Burma		158.00						158.00
	5/24	5/25	Yemen		29.00						29.00
Hon. Christopher Smith	6/10	6/16	Bolivia		801.89		9,838.17				10,640.06
Sheri Rickert	6/10	6/16	Bolivia		764.44		9,838.17				10,602.61
Priscilla Koepke	6/10	6/14	Thailand		728.85		8,825.20		253.31		9,807.36
	6/14	6/16	Cambodia		491.65				160.36		652.01
Dennis Halpin	6/10	6/14	Thailand		737.00		7,499.50				8,236.50
	6/14	6/16	Cambodia		468.00		5,398.70				5,866.70
Lisa Williams	6/10	6/14	Thailand		847.00		7,534.50				8,381.50
	6/14	6/16	Cambodia		513.00		5,398.70				5,911.70
Hon. Ileana Ros-Lehtinen	5/20	5/22	Taiwan		545.08		(3)		8,926.08		9,471.16
	5/22	5/25	South Korea		1,023.10		(3)		2,678.30		3,701.40
Hon. Jean Schmidt	5/20	5/22	Taiwan		545.07		(3)				545.07
	5/22	5/25	South Korea		1,023.10		(3)				1,023.10
Hon. Dan Burton	5/20	5/22	Taiwan		713.61		(3)				713.61
	5/22	5/25	South Korea		1,023.10		(3)				1,023.10
Dennis Halpin	5/20	5/22	Taiwan		545.07		(3)				545.07
	5/22	5/25	South Korea		1,023.10		(3)				1,023.10
Jay Henderson	5/20	5/22	Taiwan		545.07		(3)				545.07
	5/22	5/25	South Korea		1,023.10		(3)				1,023.10
Brad Goehner	5/20	5/22	Taiwan		545.07		(3)				545.07
	5/22	5/25	South Korea		1,023.10		(3)				1,023.10
Janelle Perez	5/20	5/22	Taiwan		545.07		(3)				545.07
	5/22	5/25	South Korea		1,023.10		(3)				1,023.10
Andrew Lee	5/20	5/22	Taiwan		545.07		(3)				545.07
	5/22	5/25	South Korea		1,023.10		(3)				1,023.10
Hon. Connie Mack	4/13	4/15	Colombia		1,127.37		(3)		17,497.00		18,624.37
Hon. Jeff Duncan	4/13	4/15	Colombia		1,127.37		(3)				1,127.37
Hon. David Rivera	4/13	4/15	Colombia		1,127.37		(3)				1,127.37
Hon. Albio Sires	4/13	4/15	Colombia		1,127.37		(3)				1,127.37
Eddy Acevedo	4/13	4/15	Colombia		1,127.37		(3)				1,127.37
Peter Quilter	4/13	4/15	Colombia		1,127.37		(3)				1,127.37
Jason Steinbaum	4/13	4/15	Colombia		1,127.37		(3)				1,127.37
Hubbell Knapp	4/13	4/15	Colombia		1,127.37		(3)				1,127.37
Kristin Jackson	4/13	4/15	Colombia		1,127.37		(3)				1,127.37
Hon. Tom Marino	6/9	6/10	Azerbaijan		323.00		(3)				323.00
	6/10	6/11	Afghanistan		6.00		(3)				6.00
	6/11	6/13	Pakistan		572.00		(3)				572.00
	6/13	6/14	Bahrain		74.00		(3)				74.00
	6/14	6/15	Yemen		176.62		(3)				176.62
	6/15	6/16	Egypt		216.05		(3)				216.05
Hon. Karen Bass	4/10	4/14	Guatemala		979.08		914.50				1,893.58
Hon. Renee Ellmers	5/18	5/20	Belgium		112.00		(3)				112.00
	5/20	5/21	Afghanistan		11.00		(3)				11.00
	5/21	5/22	Bahrain		365.19		(3)				365.19
	5/22	5/23	Ireland		111.00		(3)				111.00
Hon. Dana Rohrabacher	4/20	4/23	United Arab Emirates		1,485.00		1,284.70				2,769.70
Paul Berkowitz	4/20	4/21	United Arab Emirates		480.00		1,284.70				1,764.70
	4/21	4/22	Afghanistan		28.00		(3)				28.00
	4/22	4/23	United Arab Emirates		645.00		(3)				645.00
Greg McCarthy	5/4	5/5	Belgium		348.05		3,995.90				4,343.95
	5/5	5/6	Jordan		310.00		(3)				310.00
	5/6	5/8	Iraq								
	5/8	5/9	Kuwait								
Committee total					43,026.67		128,404.31		30,148.23		201,579.21

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
[3] Military air transportation.

HON. ILEANA ROS-LEHTINEN, Chairman, July 31, 2012.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON HOMELAND SECURITY, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN APR. 1 AND JUNE 30, 2012

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Sheila Jackson Lee	4/14	4/15	Colombia		530.09		[4] 898.1				1,428.19
Hon. Henry Cuellar	4/13	4/15	Colombia		999.50		[3]				995.00
Per diem returned					(63.47)						(63.47)
Hon. Mike Rogers	3/31	4/2	China		750.86		12,518.50				13,269.36
	4/2	4/3	Korea		393.05						393.05
	4/3	4/6	Japan		1,360.40						1,360.40
Per diem returned					(75.00)						(75.00)
Hon. Billy Long	3/31	4/2	China		750.86		12,449.50				13,200.36
	4/2	4/3	Korea		393.05						393.05
	4/3	4/6	Japan		1,360.40						1,360.40
Hon. Sheila Jackson Lee	4/2	4/3	Korea		393.05		12,262.90				12,655.95
	4/3	4/5	Japan		882.25						882.25
Mike Russell	3/31	4/2	China		750.86		7,252.70				8,003.56
	4/2	4/3	Korea		393.05						393.05
	4/3	4/6	Japan		1,360.40						1,360.40
Per diem returned					(135.00)						(135.00)
Amanda Parikh	3/31	4/2	China		750.86		13,553.50				14,304.36
	4/2	4/3	Korea		393.05						393.05
	4/3	4/6	Japan		1,360.40						1,360.40
Per diem returned					(50.00)						(50.00)
Marisela Salayandia	3/31	4/2	China		750.86		13,295.50				14,046.36
	4/2	4/3	Korea		393.05						393.05
	4/3	4/6	Japan		1,360.40						1,360.40
Control room (CODEL Rogers)	3/31	4/1	China						509.13		509.13
Telephone charges	4/1	4/1	China						79.05		79.05
Hon. Patrick Meehan	4/3	4/5	Turkey		729.00		[3]				729.00
	4/5	4/6	Israel		493.00						493.00
	4/6	4/8	Jordan		310.00						310.00
	4/8	4/9	Ireland		297.00						297.00
Kevin Gundersen	4/3	4/5	Turkey		729.00		[3]				729.00
	4/5	4/6	Israel		493.00						493.00
	4/6	4/8	Jordan		310.00						310.00
	4/8	4/9	Ireland		297.00						297.00
Per diem returned					(92.00)						(92.00)
Committee total					17,102.85		71,332.60				89,023.63

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
[3] Military air transportation.
[4] Returned military air transportation.

HON. PETER T. KING, Chairman, July 18, 2012.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON OVERSIGHT AND GOVERNMENT REFORM, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN APR. 1 AND JUNE 30, 2012

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Thomas Alexander	5/4	5/5	Belgium		542.10						
	5/5	5/6	Jordan		275.00						
	5/6	5/8	Iraq								
	5/8	5/9	Kuwait								
Commercial airfare							3,597.50				
James Lewis	5/4	5/5	Belgium		527.98						
	5/5	5/6	Jordan		287.56						
	5/6	5/8	Iraq								
	5/8	5/9	Kuwait								
Commercial airfare							3,597.50				
Carlos Uriarte	5/4	5/5	Belgium		542.10						
	5/5	5/6	Jordan		289.50						
	5/6	5/8	Iraq								
	5/8	5/9	Kuwait								
Commercial airfare							3,597.50				
Hon. Todd Platts	6/9	6/10	Azerbaijan		323.00						
	6/10	6/11	Afghanistan		16.00						
	6/11	6/13	Pakistan		556.50						
	6/13	6/14	Bahrain		56.00						
	6/14	6/15	Yemen		202.37						
	6/15	6/16	Egypt		266.05						
Delegation expenses			Pakistan						1,045.25		
Delegation expenses			Egypt						2,396.10		
Delegation expenses			Bahrain						293.91		
Hon. Stephen Lynch	6/9	6/10	Azerbaijan		373.00						
	6/10	6/11	Afghanistan		56.00						
	6/11	6/13	Pakistan		622.00						
	6/13	6/14	Bahrain		124.00						
	6/14	6/15	Yemen		226.62						
	6/15	6/16	Egypt		266.05						
Ashok Pinto	6/9	6/10	Azerbaijan		334.19						
	6/10	6/11	Afghanistan		11.00						
	6/11	6/13	Pakistan		537.43						
	6/13	6/14	Bahrain		109.00						
	6/14	6/15	Yemen		169.62						
	6/15	6/16	Egypt		256.05						
Tyler Grimm	6/9	6/10	Azerbaijan		310.00						
	6/10	6/11	Afghanistan		37.47						
	6/11	6/13	Pakistan		526.00						
	6/13	6/14	Bahrain		114.00						
	6/14	6/15	Yemen		204.62						
	6/15	6/16	Egypt		231.39						
Bruce Fernandez	6/9	6/10	Azerbaijan		347.00						
	6/10	6/11	Afghanistan								
	6/11	6/13	Pakistan		572.00						
	6/13	6/14	Bahrain		124.00						
	6/14	6/15	Yemen		226.62						
	6/15	6/16	Egypt		243.05						
Committee total											24,263.03

[1] Per diem constitutes lodging and meals.

[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. DARRELL E. ISSA, Chairman, Aug. 13, 2012.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON SCIENCE, SPACE, AND TECHNOLOGY, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN APR. 1 AND JUNE 30, 2012

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Donna Edwards	5/19	5/20	Belgium		112.00		(3)		55.88		167.88
	5/20	5/21	Afghanistan		28.00		(3)				28.00
	5/21	5/22	Bahrain		365.19		(3)		69.09		434.28
	5/22	5/23	Ireland		111.00		(3)		33.27		144.27
Hon. Eddie Bernice Johnson	6/29	6/30	Latvia		258.00		(3)				258.00
	7/1	7/3	Kazakhstan		730.00		(3)				730.00
	7/3	7/5	Kyrgyz Republic		622.00		(3)				622.00
	7/5	7/6	Tajikistan		325.00		(3)				325.00
	7/6	7/7	Uzbekistan		279.00		(3)				279.00
	7/7	7/8	Spain		399.00		(3)				399.00
Committee total					3,229.19				158.24		3,387.43

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
[3] Military air transportation.

HON. RALPH M. HALL, Chairman, Aug. 2, 2012.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON SMALL BUSINESS, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN APR. 1 AND JUNE 30, 2012

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]

HOUSE COMMITTEES
Please Note: If there were no expenditures during the calendar quarter noted above, please check the box at right to so indicate and return. ☒

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. SAM GRAVES, Chairman, July 31, 2012.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON TRANSPORTATION AND INFRASTRUCTURE, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN APR. 1 AND JUNE 30, 2012

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Randy Hultgren	4/3	4/4	Turkey		329.00		(3)				329.00
	4/4	4/5	Turkey		430.00		(3)				430.00
	4/5	4/6	Israel		493.00		(3)				493.00
	4/6	4/8	Jordan		310.00		(3)				310.00
	4/8	4/9	Ireland		297.00		(3)				297.00
Committee total					1,859.00						1,859.00

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.
[3] Military air transportation.

HON. JOHN L. MICA, Chairman, July 30, 2012.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON VETERANS' AFFAIRS, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN APR. 1 AND JUNE 30, 2012

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Jeff Denham	6/30	7/2	Slovakia		992.00				1,714.85		2,706.85
Committee total					992.00				1,714.85		2,706.85

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. JEFF MILLER, Chairman, Aug. 10, 2012.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, PERMANENT SELECT COMMITTEE ON INTELLIGENCE, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN APR. 1 AND JUNE 30, 2012

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Kathryn Wheelbarger	4/09	4/19	Asia		1,805.46						
Commercial aircraft							16,203.00				18,008.46
Ashley Lowry	4/09	4/19	Asia		1,805.46						
Commercial aircraft							16,203.00				18,008.46
Carly Scott	4/09	4/19	Asia		1805.46						
Commercial aircraft							16,203.00				18,008.46
Hon. Mac Thornberry	4/10	4/12	SE Asia		566.00						
	4/12	4/14	SE Asia		628.00						
	4/14	4/15	SE Asia		437.00						
Commercial aircraft							11,643.20				13,274.20
Hon. Devin Nunes	4/10	4/12	SE Asia		566.00						
	4/12	4/14	SE Asia		628.00						
	4/14	4/15	SE Asia		437.00						

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, PERMANENT SELECT COMMITTEE ON INTELLIGENCE, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN APR. 1 AND JUNE 30, 2012—Continued

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Commercial aircraft							12,520.60				14,151.60
Geof Kahn	4/10	4/12	SE Asia		566.00						
	4/12	4/14	SE Asia		628.00						
	4/14	4/15	SE Asia		437.00						
Commercial aircraft							11,643.20				13,274.20
Amanda Rogers Thorpe	4/10	4/12	SE Asia		566.00						
	4/12	4/14	SE Asia		628.00						
	4/14	4/15	SE Asia		437.00						
Commercial aircraft							11,643.20				13,274.20
Hon. Mike Rogers	4/29	4/30	Asia/Middle East		156.00						
	4/30	5/02	Asia/Middle East								
Commercial aircraft							14,457.62				14,613.62
Hon. Dutch Ruppersberger	4/29	4/30	Asia/Middle East		156.00						
	4/30	5/02	Asia/Middle East								
Commercial aircraft							14,457.62				14,613.62
Michael Allen	4/29	4/30	Asia/Middle East		156.00						
	4/30	5/2	Asia/Middle East								
Commercial aircraft							14,457.62				
Mike Shank	4/29	4/30	Asia/Middle East		156.00						
	4/30	5/2	Asia/Middle East								
Commercial aircraft							14,457.62				14,613.62
Hon. Devin Nunes	5/20	5/21	Asia		470.50						
	5/21	5/22	Asia		573.45						
Commercial aircraft							12,292.80				
George Pappas	5/20	5/21	Asia		470.50						
	5/21	5/22	Asia		573.45						
Commerical aircraft							12,292.80				13,336.75
Hon. Michele Bachmann	5/20	5/22	Asia		416.97						
	5/22	5/24	Asia		1,054.38						
	5/24	5/25	Asia		368.01						
Commercial aircraft							17,108.70				18,948.06
Hon. Devin Nunes	5/22	5/24	Asia		1,054.38						
	5/24	5/25	Asia		368.01						
Commerical aircraft							12,144,10				13,566.49
Hon. Dutch Ruppersberger	5/20	5/22	Asia		416.97						
	5/22	5/24	Asia		1,054.38						
	5/24	5/25	Asia		368.01						
Commercial aircraft							11,930.90				13,770.26
Hon. Adam Schiff	5/20	5/22	Asia		416.97						
	5/22	5/24	Asia		1,054.38						
	5/24	5/25	Asia		368.01						
Commercial aircraft							15,399.90				17,239.26
Darren Dick	5/20	5/22	Asia		416.97						
	5/22	5/24	Asia		1,054.38						
	5/24	5/25	Asia		368.01						
Commerical aircraft							14,006.70				15,846.06
Susan Phalen	5/20	5/22	Asia		416.97						
	5/22	5/24	Asia		1,054.38						
	5/24	5/25	Asia		368.01						
Commercial aircraft							14,006.70				15,846.06
Robert Minehart	5/20	5/22	Asia		416.97						
	5/22	5/24	Asia		1,054.38						
	5/24	5/25	Asia		368.01						
Commercial aircraft							11,930.00				13,769.36
Chelsey Campbell	6/10	6/11	Central America		83.00						
	6/11	6/13	Central America		398.00						481.00
Commercial aircraft											
Sarah Geffroy	6/10	6/11	Central America		83.00						
	6/11	6/13	Central America		398.00						481.00
Commercial aircraft											
Alonzo Robertson	6/10	6/11	Central America		83.00						
	6/11	6/13	Central America		398.00						
Commercial aircraft											481.00
Hon. Jeff Miller	6/10	6/11	SE Asia		208.00						
	6/11	6/14	SE Asia		628.29						
	6/14	6/17	SE Asia		553.89						
Commercial aircraft							14,978.60				16,368.78
George Pappas	6/10	6/11	SE Asia		208.00						
	6/11	6/14	SE Asia		628.29						
	6/14	6/17	SE Asia		920.31						
Commercial aircraft							14,978.60				16,735.20
Linda Cohen	6/10	6/11	SE Asia		208.00						
	6/11	6/14	SE Asia		628.29						
	6/14	6/17	SE Asia		920.31						
Commercial aircraft							14,978.60				16,735.20
Committee total											340,058.54

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. MIKE ROGERS, Chairman, July 31, 2012.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

7635. A letter from the Director, Program Development and Regulatory Analysis, Department of Agriculture, transmitting the Department's final rule — Water and Waste Disposal Loans and Grants (RIN: 0572-AC26) received August 20, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Agriculture.

7636. A letter from the Under Secretary, Department of Defense, transmitting The Fiscal Year 2011 Inventory of Contracts for Services for the Military Departments, Defense Agencies, and Department of Defense Field Activities; to the Committee on Armed Services.

7637. A letter from the Director, Defense Procurement and Acquisition Policy, Department of Defense, transmitting the Department's final rule — Defense Federal Acquisition Regulation Supplement: Inflation Adjustment of Threshold for Acquisition of Right-Hand Drive Passenger Sedans (DFARS Case 2012-D016) (RIN: 0750-AH65) received August 24, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Armed Services.

7638. A letter from the Chief Counsel, Department of Homeland Security, transmitting the Department's final rule — Final Flood Elevation Determinations [Docket ID: FEMA-2012-0003] received August 20, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Financial Services.

7639. A letter from the Chief Counsel, Department of Homeland Security, transmitting the Department's final rule — Suspension of Community Eligibility [Docket ID: FEMA-2012-0003] [Internal Agency Docket

No.: FEMA-8241] received August 20, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Financial Services.

7640. A letter from the Chief Counsel, Department of Homeland Security, transmitting the Department's final rule — Final Flood Elevation Determinations [Docket ID: FEMA-2012-0003] received August 20, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Financial Services.

7641. A letter from the Associate General Counsel for Legislation and Regulations, Department of Housing and Urban Development, transmitting the Department's final rule — Supplemental Standards of Ethical Conduct for Employees of the Department of Housing and Urban Development [Docket No.: FR-5542-F-02] (RIN: 2501-AD55) received August 20, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Financial Services.

7642. A letter from the Assistant General Counsel for Regulatory Services, Department of Education, transmitting the Department's final rule — Final priority; National Institute on Disability and Rehabilitation Research (NIDRR)—Disability and Rehabilitation Research Projects and Centers Program—Rehabilitation Research and Training Center (RRTCs) on Vocational Rehabilitation (VR) and Developing Strategies to Meet Employer Needs in Changing Economic Environments [CDFA Number: 84.133B-1] received August 20, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Education and the Workforce.

7643. A letter from the Assistant Secretary for Special Education and Rehabilitative Services, Department of Education, transmitting the Department's final rule — Final Priority; Technical Assistance on State Data Collection, Analysis, and Reporting —— National IDEA Technical Assistance Center on Early Childhood Longitudinal Data Systems [CDFA Number: 84.373Z] received August 22, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Education and the Workforce.

7644. A letter from the Assistant General Counsel for Regulatory Services, Department of Education, transmitting the Department's final rule — Final Priority; Technical Assistance on State Data Collection, Analysis, and Reporting — National IDEA Technical Assistance Center on Early Childhood Longitudinal Data Systems [CDFA Number: 84.373Z] received August 22, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Education and the Workforce.

7645. A letter from the Assistant General Counsel for Regulatory Services, Department of Education, transmitting the Department's final rule — Final Priorities and Definitions; State Personnel Development Grants received August 22, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Education and the Workforce.

7646. A letter from the Director, Directorate of Construction, Occupational Safety and Health Administration, Department of Labor, transmitting the Department's final rule — Cranes and Derricks in Construction: Demolition and Underground Construction [Docket: ID-OSHA-2007-0066] (RIN: 1218-AC61) received August 22, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Education and the Workforce.

7647. A letter from the Chief of Staff, Media Bureau, Federal Communications Commission, transmitting the Commission's final rule — In the Matter of Amendment of Section 73.202(b), Table of Allotments, FM Broadcast Stations (Westfield, New York) [MB Docket No.: 12-51] (RM-11647) received August 20, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

7648. A letter from the Director, Office of Congressional Affairs, Nuclear Regulatory Commission, transmitting the Commission's final rule — NRC Regulatory Issue Summary 2012-09 Endorsement of Nuclear Energy Institute Guidance for Using an Alternative Method to Manage Cumulative Fatigue at Nuclear Power Reactor Sites received August 20, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

7649. A letter from the Auditor, Office of the District of Columbia Auditor, transmitting copy of the report entitled ''District of Columbia Agencies' Compliance with Small Business Enterprise Expenditure Goals through the 3rd Quarter of Fiscal Year 2012'', pursuant to D.C. Code section 47-117(d); to the Committee on Oversight and Government Reform.

7650. A letter from the Chairman and Chief Executive Officer, Farm Credit Administration, transmitting in accordance with Pub. L. 105-270, the Federal Activities Inventory Reform Act of 1998 (FAIR Act), the Administration's inventory of commercial activities until June 2012; to the Committee on Oversight and Government Reform.

7651. A letter from the Chairman, National Capitol Planning Commission, transmitting the Commission's annual report for FY 2011 prepared in accordance with the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 (No FEAR Act); to the Committee on Oversight and Government Reform.

7652. A letter from the Chair, Cost Accounting Standards Board (Acting Administrator, OFPP), Office of Management and Budget, transmitting the Office's final rule — Cost Accounting Standards: Cost Accounting Standards 412 and 413 — Cost Accounting Standards Pension Harmonization Rule received August 22, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Oversight and Government Reform.

7653. A letter from the Chief, Branch of Listing, Department of the Interior, transmitting the Department's final rule — Endangered and Threatened Wildlife and Plants; Designation of Critical Habitat for Ipomopsis polyantha (Pagosa skyrocket), Penstemon debilis (Parachute beardtongue), and Phacelia submutica (DeBeque phacelia) [Docket No.: FWS-R6-ES-2011-0040] (RIN: 1018-AX75) received August 22, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

7654. A letter from the Branch Chief, Department of the Interior, transmitting the Department's final rule — Endangered and Threatened Wildlife and Plants; Endangered Status for 23 Species on Oahu and Designation of Critical Habitat for 124 Species [Docket No.: FWS-R1-ES-2010-0043] (RIN: 1018-AV49) received August 22, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

7655. A letter from the Director, Administrative Office of the United States Courts, transmitting the 2011 Report of Statistics Required by the Bankruptcy Abuse Prevention and Consumer Protection Act of 2005; to the Committee on the Judiciary.

7656. A letter from the Federal Liaison Officer, Department of Commerce, transmitting the Department's final rule — Revision of Patent Term Adjustment Provisions Relating to Appellate Review [Docket No.: PTO-P-2011-0058] (RIN: 0651-AC63) received August 20, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on the Judiciary.

7657. A letter from the Federal Liaison Officer, Department of Commerce, transmitting the Department's final rule — Changes to Implement Miscellaneous Post Patent Provisions of the Leahy-Smith America Invents Act [Docket No.: PTO-P-2011-0072] (RIN: 0651-AC66) received August 20, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on the Judiciary.

7658. A letter from the Acting Assistant Attorney General, Department of Justice, transmitting the Department's report on stalking for 2010; to the Committee on the Judiciary.

7659. A letter from the Acting Assistant Attorney General, Department of Justice, transmitting the fourth annual report of the NICS Improvement Amendments Act of 2007; to the Committee on the Judiciary.

7660. A letter from the Under Secretary and Director, Patent and Trademark Office, transmitting the Office's final rule — International Trademark Classification Changes [Docket No.: PTO-T-20123-0027] (RIN: 0651-AC80) received August 20, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on the Judiciary.

7661. A letter from the Attorney, Department of Homeland Security, transmitting the Department's final rule — Safety Zone; Belle Pass Dredge Operations, Belle Pass, Mile Marker 1.0 to Mile Marker (-0.2), Port Fourchon, Lafourche Parish, LA [Docket No.: USCG-2012-0392] (RIN: 1625-AA00) received August 28, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

7662. A letter from the Attorney, Department of Homeland Security, transmitting the Department's final rule — Safety Zone; Kemah Boardwalk Summer Season Fireworks, Galveston Bay, Kemah, TX [Docket Number: USCG-2012-0240] (RIN: 1625-AA00) received August 28, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

7663. A letter from the Attorney Advisor, Department of Homeland Security, transmitting the Department's final rule — Safety Zones; Catawba Island Club Fire Works Catawba Island Club, Port Clinton, OH; Pacing for Recovery, Lake Erie, Sterling State Park, Monroe, MI; Put-In-Bay Fireworks, Fox's the Dock Pier, South Bass Island, Put-In-Bay, OH [Docket No.: USCG-2012-0374] (RIN: 1625-AA00) received August 28, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

7664. A letter from the Attorney Advisor, Department of Homeland Security, transmitting the Department's final rule — Safety and Security Zones; OPSAIL 2012 Connecticut, Thames River, New London, CT [Docket Number: USCG-2011-1029] (RIN: 1625-AA87) received August 28, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

7665. A letter from the Attorney Advisor, Department of Homeland Security, transmitting the Department's final rule — OPSAIL 2012 Virginia, Port of Hampton Roads, VA [Docket Number: USCG-2012-0174] (RIN: 1625-AA00, AA08, AA11) received August 28, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

7666. A letter from the Attorney Advisor, Department of Homeland Security, transmitting the Department's final rule — Safety Zone; City of Ogdensburg Fireworks, St. Lawrence River, Ogdensburg, NY [Docket No.: USCG-2012-0608] (RIN: 1625-AA00) received August 28, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

7667. A letter from the Attorney Advisor, Department of Homeland Security, transmitting the Department's final rule — Safety Zone; Village of Sackets Harbor, Lake Ontario, Sackets Harbor, NY [Docket No.: USCG-2012-0460] (RIN: 1625-AA00) received August 28, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

7668. A letter from the Attorney, Department of Homeland Security, transmitting the Department's final rule — Safety Zone; Bay Village Independence Day Fireworks, Lake Erie, Bay Village, OH [Docket No.: USCG-2012-0553] (RIN: 1625-AA00) received August 28, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

7669. A letter from the Attorney Advisor, Department of Homeland Security, transmitting the Department's final rule — Safety Zone; Conneaut 4th of July Festival, Lake Erie, Conneaut, OH [Docket Number: USCG-2012-0480] (RIN: 1625-AA00) received August 28, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

7670. A letter from the Attorney Advisor, Department of Homeland Security, transmitting the Department's final rule — Safety Zone; A Salute to our Heroes Fireworks, Hamlin Beach State Park, Hamlin, NY [Docket Number: USCG-2012-0354] (RIN: 1625-AA00) received August 28, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

7671. A letter from the Chairman, Department of Transportation, transmitting the Department's final rule — Regulations Governing Fees for Services Performed in Connection With Licensing and Related Services — 2010 Update [Docket No.: EP 542 (Sub-No. 20)] received August 20, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

7672. A letter from the NASA Chief Scientist, National Aeronautics and Space Administration, transmitting the Administration's final rule — Research Misconduct [Docket No.: NASA-0031] (RIN: 2700-AD84) received August 20, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Science, Space, and Technology.

7673. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service's final rule — Update of Weighted Average Interest Rates, Yield Curves, and Segment Rates [Notice 2012-53] received August 22, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Ways and Means.

7674. A letter from the Assistant Secretary, Legislative Affairs, Department of State, transmitting the 2011 annual report on the operation of the Enterprise for the Americas Initiative and the Tropical Forest Conservation Act; jointly to the Committees on Foreign Affairs and Agriculture.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of the rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. LUCAS: Committee on Agriculture. H.R. 6083. A bill to provide for the reform and continuation of agricultural and other programs of the Department of Agriculture through fiscal year 2017, and for other purposes; with an amendment (Rept. 112–669. Referred to the Committee of the Whole House on the state of the Union.

Mr. HASTINGS of Washington: Committee on Natural Resources. H.R. 3409. A bill to limit the authority of the Secretary of the Interior to issue regulations before December 31, 2013, under the Surface Mining Control and Reclamation Act of 1977 (Rept. 112–670). Referred to the Committee of the Whole House on the state of the Union.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. WHITFIELD (for himself, Mr. COHEN, Mr. MORAN, and Ms. SCHAKOWSKY):

H.R. 6388. A bill to amend the Horse Protection Act to designate additional unlawful acts under the Act, strengthen penalties for violations of the Act, improve Department of Agriculture enforcement of the Act, and for other purposes; to the Committee on Energy and Commerce.

By Mr. LAMBORN:

H.R. 6389. A bill to replace automatic spending cuts with targeted reforms, and for other purposes; to the Committee on the Budget, and in addition to the Committees on Ways and Means, Energy and Commerce, Education and the Workforce, the Judiciary, House Administration, Natural Resources, Rules, Appropriations, Agriculture, and Oversight and Government Reform, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. CUMMINGS (for himself, Ms. WATERS, Mr. RANGEL, Ms. MATSUI, Mr. CARSON of Indiana, and Mr. WATT):

H.R. 6390. A bill to establish a grant program to enhance existing secondary education programs for the purpose of teaching high school students about the Constitution of the United States and the constitutions of the individual States; to the Committee on Education and the Workforce.

By Mr. POE of Texas:

H.R. 6391. A bill to terminate the designation of the Islamic Republic of Pakistan as a major non-NATO ally, and for other purposes; to the Committee on Foreign Affairs.

By Ms. BALDWIN:

H.R. 6392. A bill to amend part D of title XVIII of the Social Security Act to permit the Secretary of Health and Human Services to negotiate covered part D drug prices, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. BARBER (for himself and Mr. PLATTS):

H.R. 6393. A bill to amend title 38, United States Code, to direct the Secretary of Veterans Affairs to consider the best interest of the veteran when determining whether the veteran should receive certain contracted health care, to amend the Wounded Warrior Act to improve access to certain medical care for former members of the Armed Forces with severe injuries or illnesses, and for other purposes; to the Committee on Armed Services, and in addition to the Committee on Veterans' Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. POLIS (for himself, Mr. HINOJOSA, and Mr. QUIGLEY):

H.R. 6394. A bill to facilitate affordable workforce homeownership in, and develop the full-time resident communities of, high tourism areas, and for other purposes; to the Committee on Financial Services, and in addition to the Committee on Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. BACA:

H.R. 6395. A bill to provide homeowners with additional protections and safeguards against foreclosure, and for other purposes; to the Committee on Financial Services.

By Mr. BRALEY of Iowa:

H.R. 6396. A bill to establish a grant program to test and mitigate radon levels in public schools, and for other purposes; to the Committee on Energy and Commerce.

By Mr. CAMPBELL:

H.R. 6397. A bill to prohibit Fannie Mae and Freddie Mac from purchasing, the FHA from insuring, and the Department of Veterans Affairs from guaranteeing, making, or insuring, a mortgage that is secured by a residence or residential structure located in a county in which the State has used the power of eminent domain to take a residential mortgage; to the Committee on Financial Services, and in addition to the Committee on Veterans' Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. GERLACH (for himself and Mr. NEAL):

H.R. 6398. A bill to amend the Internal Revenue Code of 1986 to modify and extend the credit for nonbusiness energy property; to the Committee on Ways and Means.

By Mr. HEINRICH (for himself, Mr. LUJÁN, and Mr. PEARCE):

H.R. 6399. A bill to amend the Native American Programs Act of 1974 to reauthorize a provision to ensure the survival and continuing vitality of Native American languages; to the Committee on Education and the Workforce.

By Mr. MCDERMOTT:

H.R. 6400. A bill to amend the Public Health Service Act to authorize grants to States for the purpose of assisting the States in operating an RDOCS program in order to provide for the increased availability of primary health care services in health professional shortage areas; to the Committee on Energy and Commerce.

By Mr. MEEHAN (for himself, Mr. LOEBSACK, Mr. BUCSHON, and Mr. BILIRAKIS):

H.R. 6401. A bill to require the Secretary of Labor to carry out a pilot program on providing veterans with access at One-Stop Centers to Internet websites to facilitate online job searches, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. MORAN:

H.R. 6402. A bill to amend the Public Health Service Act to authorize grants to 10 States for demonstration projects for the expansion of State registries on childhood immunization or health to include data on body mass index (BMI), collected and submitted to the State by health care providers; to the Committee on Energy and Commerce.

By Mr. MURPHY of Connecticut:

H.R. 6403. A bill to provide for grants in lieu of expensing under the Internal Revenue Code of 1986 for energy efficient commercial buildings placed in service by manufacturers; to the Committee on Ways and Means, and in addition to the Committee on Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. RYAN of Ohio (for himself, Ms. SUTTON, and Mr. ANDREWS):

H.R. 6404. A bill to make available funds from the Emergency Economic Stabilization Act of 2008 for funding pension benefits with respect to former employees of Delphi Corporation; to the Committee on Financial Services, and in addition to the Committee on Education and the Workforce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. SLAUGHTER:
H.R. 6405. A bill to amend the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 to provide grants for the revitalization of waterfront brownfields, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committees on Transportation and Infrastructure, and Rules, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. SPEIER (for herself and Mr. PLATTS):
H.R. 6406. A bill to expand whistleblower protections to non-Federal employees whose disclosures involve misuse of Federal funds; to the Committee on Oversight and Government Reform, and in addition to the Committees on Armed Services, and Education and the Workforce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. TIERNEY (for himself and Mr. GEORGE MILLER of California):
H.R. 6407. A bill to ensure that students and taxpayers receive the full value of their education investments; to the Committee on Education and the Workforce.

By Mr. WALSH of Illinois:
H.R. 6408. A bill to amend the Help America Vote Act of 2002 to require each individual who desires to vote in an election for Federal office to provide the appropriate election official with a government-issued photo identification, and for other purposes; to the Committee on House Administration.

By Ms. WOOLSEY (for herself, Mr. GEORGE MILLER of California, and Mr. KILDEE):
H.R. 6409. A bill to streamline the administration of whistleblower protections for private sector employees; to the Committee on Education and the Workforce, and in addition to the Committees on the Judiciary, and Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. JACKSON LEE of Texas (for herself, Mr. JOHNSON of Georgia, Mrs. CHRISTENSEN, and Mr. RUSH):
H.J. Res. 119. A joint resolution expressing support for designation of September 2012 as ''Gospel Music Heritage Month'' and honoring gospel music for its valuable and longstanding contributions to the culture of the United States; to the Committee on Oversight and Government Reform.

By Mr. SAM JOHNSON of Texas (for himself, Mr. LATOURETTE, and Mr. BECERRA):
H.J. Res. 120. A joint resolution providing for the appointment of Barbara Barrett as a citizen regent of the Board of Regents of the Smithsonian Institution; to the Committee on House Administration.

By Mrs. DAVIS of California (for herself, Mr. POLIS, and Mr. GRIJALVA):
H. Res. 781. A resolution expressing support for designation of the month of October 2012 as National Principals Month; to the Committee on Education and the Workforce.

By Mr. BOSWELL (for himself and Mr. MCDERMOTT):
H. Res. 782. A resolution supporting the goals and ideals of National Suicide Prevention and Awareness Month; to the Committee on Energy and Commerce.

By Mr. MCCAUL:
H. Res. 783. A resolution expressing the sense of the House of Representatives with respect to the attacks on United States diplomats in Libya and Egypt; to the Committee on Foreign Affairs.

By Mrs. SCHMIDT (for herself, Mr. CHABOT, Mr. TURNER of Ohio, Mr. JORDAN, Mr. LATTA, Mr. JOHNSON of Ohio, Mr. AUSTRIA, Mr. BOEHNER, Ms. KAPTUR, Mr. KUCINICH, Ms. FUDGE, Mr. TIBERI, Ms. SUTTON, Mr. LATOURETTE, Mr. STIVERS, Mr. RENACCI, Mr. RYAN of Ohio, Mr. GIBBS, and Mr. HALL):
H. Res. 784. A resolution celebrating the life and achievements of Neil A. Armstrong, a United States patriot who humbly and selflessly served his country, State, and community as a naval aviator, test pilot, astronaut, aeronautical engineer, university professor, and businessman; to the Committee on Science, Space, and Technology.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. WHITFIELD:
H.R. 6388.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 3 which grants Congress the power to regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.

By Mr. LAMBORN:
H.R. 6389.
Congress has the power to enact this legislation pursuant to the following:
The Preamble of the Constitution identifies ''providing for the common defense'' as one of the core responsibilities of the federal government. Additionally, Article 1 Section 8 clauses 11, 12, 13, 15, and 16 make clear national defense was a priority for the founders as they drafted the Constitution. Furthermore, this legislation restores a proper balance of power between the federal government and state governments as the 10th Amendment intended.

By Mr. CUMMINGS:
H.R. 6390.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 18

By Mr. POE of Texas:
H.R. 6391.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 14

By Ms. BALDWIN:
H.R. 6392.
Congress has the power to enact this legislation pursuant to the following:
Section 8 of Article I of the Constitution.

By Mr. BARBER:
H.R. 6393.
Congress has the power to enact this legislation pursuant to the following:
Clause 18 section 8 of article I of the Constitution.

By Mr. POLIS:
H.R. 6394.
Congress has the power to enact this legislation pursuant to the following:
Article I, section 8, clause 1 (relating to the general welfare of the United States); and Article I, section 8, clause 3 (relating to the power to regulate interstate commerce).

By Mr. BACA:
H.R. 6395.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 3 of the U.S. Constitution.

By Mr. BRALEY of Iowa:
H.R. 6396.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clause 18 of the United States Constitution.

By Mr. CAMPBELL:
H.R. 6397.
Congress has the power to enact this legislation pursuant to the following:
Clause 3 of section 8 of article I of the Constitution of the United States.

By Mr. GERLACH:
H.R. 6398.
Congress has the power to enact this legislation pursuant to the following:
The Congress enacts this bill pursuant to Clause 1 of Section 8 of Article I of the United States Constitution.

By Mr. HEINRICH:
H.R. 6399.
Congress has the power to enact this legislation pursuant to the following:
Congress has the power to enact this legislation pursuant to Article I, Section 8 of the United States Constitution.

By Mr. McDERMOTT:
H.R. 6400.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, clause 1.

By Mr. MEEHAN:
H.R. 6401.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to Article I, Section 8, Clause 18.

By Mr. MORAN:
H.R. 6402.
Congress has the power to enact this legislation pursuant to the following:
This legislation is authorized by Article 1, Section 8, Clause 1, which grants Congress, authority regarding Defence [sic] and general Welfare of the United States.

By Mr. MURPHY of Connecticut:
H.R. 6403.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8.

By Mr. RYAN of Ohio:
H.R. 6404.
Congress has the power to enact this legislation pursuant to the following:
The above mentioned legislation is based upon the following Section 8 statement:
To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

By Ms. SLAUGHTER:
H.R. 6405.
Congress has the power to enact this legislation pursuant to the following:
Art. I, Sec. 8, cl. 1
Art. I, Sec. 8, cl. 18

By Ms. SPEIER:
H.R. 6406.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article 1, Section 8 of the United States Constitution.

By Mr. TIERNEY:
H.R. 6407.
Congress has the power to enact this legislation pursuant to the following:
The constitutional authority of Congress to enact this legislation is provided by Article I, Section 8 of the United States Constitution.

By Mr. WALSH of Illinois:
H.R. 6408.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 4, Clause 1: The Times, Places, and Manner of holding Elections for Senators and Representatives, shall be prescribed by each state by the legislature

thereof; but the Congress may at any time by Law make or such Regulations, except as to the Places of chusing Senators.

By Ms. WOOLSEY:

H.R. 6409.

Congress has the power to enact this legislation pursuant to the following:

This bill is introduced under the powers granted to Congress under Article 1 of the Constitution.

By Ms. JACKSON LEE of Texas:

H.J. Res. 119.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article 1, Section 8, Clause 1 of the United States Constitution.

By Mr. SAM JOHNSON of Texas:

H.J. Res. 120.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 17, giving Congress exclusive jurisdiction over the District of Columbia. That clause was cited as the authority for the government's ability to accept the original Smithson donation and the creation of the Smithsonian Institution via the Act of August 10, 1846.

Article 1, Section 8, Clause 18, the Necessary and Proper clause, which provides the power to enact legislation necessary to effectuate one of the earlier enumerated powers, such as the authority granted in Article 1, Section 8, Clause 17 referred to bove.

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions as follows:

H.R. 100: Mr. YODER.
H.R. 191: Mr. REYES.
H.R. 327: Ms. BALDWIN.
H.R. 382: Mr. ELLISON.
H.R. 414: Mr. SARBANES.
H.R. 456: Mr. BARBER.
H.R. 458: Mr. KEATING.
H.R. 733: Mrs. ROBY and Mr. BARBER.
H.R. 860: Mr. SMITH of New Jersey and Mr. BARBER.
H.R. 890: Mr. MARINO.
H.R. 998: Mr. BARBER.
H.R. 1054: Mr. ELLISON.
H.R. 1084: Mr. GIBSON.
H.R. 1137: Mr. CICILLINE.
H.R. 1206: Mr. TURNER of Ohio and Mr. FLORES.
H.R. 1236: Mr. SHULER.
H.R. 1265: Mr. HUELSKAMP.
H.R. 1370: Mr. ROGERS of Kentucky and Mr. TURNER of Ohio.
H.R. 1404: Mr. CUMMINGS.
H.R. 1416: Ms. BALDWIN.
H.R. 1479: Mr. DEFAZIO.
H.R. 1485: Mr. AMODEI.
H.R. 1513: Mr. COBLE.
H.R. 1653: Mr. HINOJOSA and Mr. DAVID SCOTT of Georgia.
H.R. 1895: Ms. EDWARDS.
H.R. 1910: Ms. RICHARDSON, Mr. CUMMINGS, and Ms. TSONGAS.
H.R. 1946: Mr. BACHUS.
H.R. 1984: Mr. OLVER.
H.R. 2077: Mr. HUELSKAMP, Mr. MULVANEY, Mrs. LUMMIS, Mr. HULTGREN, Mr. WOMACK, Mr. ROONEY, Mr. DESJARLAIS, Mr. MCCAUL, and Mr. WILSON of South Carolina.
H.R. 2082: Mr. REED.
H.R. 2088: Ms. ROYBAL-ALLARD, Mr. CONNOLLY of Virginia, Mr. CONYERS, Mr. PASTOR of Arizona, Ms. DELAURO, Mr. BRADY of Pennsylvania, Ms. SLAUGHTER, Mr. BOSWELL, Ms. BERKLEY, Ms. WASSERMAN SCHULTZ, Mr. BARBER, and Mr. MILLER of North Carolina.
H.R. 2353: Mr. HARRIS.
H.R. 2492: Ms. JENKINS, Mr. BACA, Ms. BASS of California, and Mr. DANIEL E. LUNGREN of California.
H.R. 2505: Mr. MATHESON.
H.R. 2524: Mr. WELCH.
H.R. 2530: Mr. CRITZ.
H.R. 2547: Mr. BERMAN.
H.R. 2672: Mr. SIRES.
H.R. 2730: Mr. BERMAN, Mrs. NAPOLITANO, and Ms. MOORE.
H.R. 2953: Mr. ELLISON.
H.R. 3097: Mr. HERGER and Mr. KINGSTON.
H.R. 3098: Mr. HERGER.
H.R. 3125: Mr. MCKEON, Ms. ESHOO, Ms. WOOLSEY, and Mr. FARR.
H.R. 3144: Mr. BUCSHON.
H.R. 3238: Mr. BLUMENAUER, Mr. MEEKS, Ms. BORDALLO, Mr. MCGOVERN, and Ms. HANABUSA.
H.R. 3269: Mr. KING of Iowa.
H.R. 3423: Mr. PITTS, Ms. RICHARDSON, Ms. WASSERMAN SCHULTZ, and Mr. DEFAZIO.
H.R. 3485: Mr. RANGEL, Mr. KUCINICH, Mr. CONYERS, Mr. PASTOR of Arizona, Mr. PASCRELL, Ms. DELAURO, Ms. HIRONO, Mr. BRADY of Pennsylvania, Mr. BOSWELL, Ms. SLAUGHTER, and Mr. BARBER.
H.R. 3511: Mr. VISCLOSKY.
H.R. 3612: Mr. FATTAH and Mr. KILDEE.
H.R. 3665: Mr. COURTNEY.
H.R. 3773: Mr. GRIFFIN of Arkansas.
H.R. 3783: Ms. ROS-LEHTINEN and Mr. BERMAN.
H.R. 3790: Mr. HASTINGS of Florida and Mr. GEORGE MILLER of California.
H.R. 3842: Mr. YODER.
H.R. 4007: Ms. BUERKLE.
H.R. 4066: Mr. DOLD, Mr. BASS of New Hampshire, Mr. DONNELLY of Indiana, Mrs. MYRICK, Mr. PASCRELL, Mr. MORAN, and Mr. JONES.
H.R. 4120: Mr. SMITH of New Jersey, Mr. MARKEY, and Mr. MILLER of North Carolina.
H.R. 4165: Mr. RUSH.
H.R. 4183: Mr. SHULER.
H.R. 4250: Mr. COBLE and Mr. GALLEGLY.
H.R. 4296: Mr. PITTS.
H.R. 4378: Mr. BOSWELL, Mr. MCMORRIS RODGERS, Mr. MICHAUD, Mr. MORAN, and Mr. BLACK.
H.R. 4405: Mrs. CAPPS.
H.R. 4965: Ms. BUERKLE, Mr. FRANKS of Arizona, and Mr. OWENS.
H.R. 4972: Mr. ELLISON.
H.R. 5741: Ms. KAPTUR and Mr. GRIFFIN of Arkansas.
H.R. 5745: Mr. FILNER.
H.R. 5747: Mr. ROTHMAN of New Jersey.
H.R. 5817: Mr. OWENS and Mr. WALBERG.
H.R. 5840: Mr. THOMPSON of Mississippi, Mr. ENGEL, Mr. TURNER of Ohio, Ms. WOOLSEY, and Ms. RICHARDSON.
H.R. 5879: Mr. BRALEY of Iowa.
H.R. 5909: Ms. SCHAKOWSKY.
H.R. 5925: Mr. MILLER of Michigan and Mr. FORTENBERRY.
H.R. 5942: Mr. RANGEL, Mr. GONZALEZ, Mr. COFFMAN of Colorado, and Mr. LEWIS of Georgia.
H.R. 5943: Mr. ELLISON, Mr. SCHILLING, and Mr. COBLE.
H.R. 5977: Mr. LAMBORN and Mr. MARCHANT.
H.R. 5979: Mr. GINGREY of Georgia.
H.R. 6107: Mr. TOWNS, Ms. WOOLSEY, and Mr. MCGOVERN.
H.R. 6118: Mr. LIPINSKI.
H.R. 6139: Mr. STIVERS.
H.R. 6150: Ms. WATERS, Mr. STARK, and Mr. KIND.
H.R. 6155: Mr. FITZPATRICK, Mr. BOSWELL, Mr. PERLMUTTER, and Ms. BROWN of Florida.
H.R. 6163: Mr. BACHUS.
H.R. 6170: Mr. KING of New York, Ms. KAPTUR, Ms. CASTOR of Florida, Mr. LIPINSKI, and Ms. LINDA T. SÁNCHEZ of California.
H.R. 6218: Mr. QUIGLEY.
H.R. 6220: Mr. ELLISON.
H.R. 6278: Mr. LIPINSKI.
H.R. 6292: Mrs. MALONEY.
H.R. 6307: Mr. POLIS.
H.R. 6310: Mr. HIMES.
H.R. 6320: Mr. MURPHY of Pennsylvania.
H.R. 6325: Mr. ISRAEL.
H.R. 6331: Ms. PELOSI, Mr. FARR, Ms. ESHOO, Mr. GEORGE MILLER of California, Ms. RICHARDSON, and Mr. TOWNS.
H.R. 6349: Mr. GRIFFIN of Arkansas.
H.J. Res. 92: Mr. SARBANES.
H.J. Res. 118: Mr. HERGER, Mr. BUCSHON, Mr. MICA, Mr. NEUGEBAUER, Mr. ROSS of Florida, Mr. SCOTT of South Carolina, Mr. GINGREY of Georgia, Mr. HASTINGS of Washington, Mr. GOSAR, and Mr. ADERHOLT.
H. Con. Res. 116: Mr. REED and Mr. BRALEY of Iowa.
H. Con. Res. 129: Mr. MCCAUL, Mr. HARPER, and Ms. SUTTON.
H. Res. 134: Mr. POSEY and Mr. GARDNER.
H. Res. 564: Mr. PASCRELL.
H. Res. 705: Mr. HULTGREN.
H. Res. 772: Ms. FOXX.
H. Res. 777: Mr. BASS of New Hampshire.

DELETIONS OF SPONSORS FROM PUBLIC BILLS AND RESOLUTIONS

Under clause 7 of rule XII, sponsors were deleted from public bills and resolutions as follows:

H. Res. 177: Mr. HULTGREN.

CORRECTION

United States of America

Congressional Record

PROCEEDINGS AND DEBATES OF THE 112th CONGRESS, SECOND SESSION

Vol. 158 WASHINGTON, THURSDAY, SEPTEMBER 13, 2012 *No. 123*

Senate

The Senate met at 10 a.m. and was called to order by the Honorable TOM UDALL, a Senator from the State of New Mexico.

PRAYER

The PRESIDING OFFICER. Today's opening prayer will be offered by Rev. Father Marcel Rainville from St. Michael's College in Burlington, VT.

The guest Chaplain offered the following prayer:

With humble hearts, let us pray.

Gracious God, You make us stewards of Your creation so that in all things we may honor the gift of life which You bestow on us each day.

We pray for these our elected officials as they work to perform the sacred mission of service taken up on behalf of all the citizens of this Nation that thirsts for God. Guide them with good judgments in the exercise of their duties. May Your spirit of wisdom abide with them in shaping a more benevolent world according to Your great love, and may the hearts of Your people, especially these present, be open to the needs of all our brothers and sisters.

We pray in Your great Name. Amen.

PLEDGE OF ALLEGIANCE

The Honorable TOM UDALL led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

APPOINTMENT OF ACTING PRESIDENT PRO TEMPORE

The PRESIDING OFFICER. The clerk will please read a communication to the Senate from the President pro tempore (Mr. INOUYE).

The legislative clerk read the following letter:

U.S. SENATE,
PRESIDENT PRO TEMPORE,
Washington, DC, September 13, 2012.

To the Senate:

Under the provisions of rule I, paragraph 3, of the Standing Rules of the Senate, I hereby appoint the Honorable TOM UDALL, a Senator from the State of New Mexico, to perform the duties of the Chair.

DANIEL K. INOUYE,
President pro tempore.

Mr. UDALL thereupon assumed the chair as Acting President pro tempore.

RECOGNITION OF THE MAJORITY LEADER

The ACTING PRESIDENT pro tempore. The majority leader is recognized.

FAMILY AND BUSINESS TAX CUT CERTAINTY ACT OF 2012—MOTION TO PROCEED

Mr. REID. Mr. President, I move to proceed to Calendar No. 499, S. 3521.

The ACTING PRESIDENT pro tempore. The clerk will report the motion to proceed.

The legislative clerk read as follows:

Motion to proceed to Calendar No. 499, S. 3521, a bill to amend the Internal Revenue Code of 1986 to extend certain expiring provisions.

Mr. REID. Mr. President, I yield to my friend from Vermont.

The ACTING PRESIDENT pro tempore. The Senator from Vermont is recognized.

GUEST CHAPLAIN FATHER MARCEL RAINVILLE

Mr. SANDERS. Mr. President, I am delighted that Father Marcel Rainville has offered the opening prayer for the Senate this morning, and I thank him very much for joining us in doing so.

Father Rainville is a native of Vermont. He is a distinguished member of the Society of St. Edmund, an order which has a very long history in our State. Established in Vermont first at Keeler's Bay in 1891 and then in Swanton in 1895, the Society of St. Edmund still has its headquarters in Vermont. The society founded St. Michael's College, which was officially incorporated in 1913 as the first Catholic college in the State of Vermont with the authority to grant college degrees. The Edmundites have long stood for justice and civil rights in our country, including in Selma, AL, where they have a mission. The society has established a successful alternative school for African-American boys in New Orleans. The Edmundites have as a major part of their vocation the mission to help those who are most in need, and we appreciate all of the good work they do.

Father Rainville was born in Swanton, VT. He was ordained as a priest in the Society of St. Edmund, and this year marks the 40th anniversary of his ordination. Father Marcel spent part of his life as a priest serving in the Edmundite mission in Venezuela, working with and sustaining the impoverished in a barrio in Caracas. He currently resides in Winooski Park, VT, where he has also served as chaplain. He currently serves as the director of formation for the Society of St. Edmund.

It gives me great pride that he has given the opening prayer today in the Senate, and all of Vermont appreciates the wonderful work he has done. He is a kind and gentle human being and is much beloved in our State. I thank him again for being with us today, and I thank the Chaplain for his help in arranging this visit.

ORDER OF BUSINESS

Mr. REID. Mr. President, last night cloture was filed on the substitute amendment and the underlying bill, the veterans jobs bill. If we are unable to reach an agreement to move up the timing of the cloture vote, then we will have to have these votes as early as we can under rule XXII. Under such a scenario, the first rollcall vote on cloture

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on the substitute amendment would occur shortly after 1 a.m. Friday morning, and that is tonight. If there are 60 votes to cut off the filibuster on the substitute amendment, then there will be up to 30 hours postcloture on the substitute amendment prior to a vote on its adoption which would occur at 7:30 a.m. Saturday morning. Immediately following the vote on the adoption of the substitute amendment, the Senate will proceed to the cloture vote on the underlying bill as amended. If cloture is invoked on the bill as amended, then there will be up to 30 hours postcloture prior to a vote on passage of the bill as amended. The vote on passage would occur about 2:30 p.m. Sunday afternoon.

That is for the information of all Senators. Until we get this worked out, everybody better stay right where they are and not go places because we will have votes every day. We will then be able to finish this work on Sunday sometime late in the afternoon, and then, of course, with the Jewish holidays on Monday and Tuesday, we would come back and work on the CR and a couple of other things beginning Wednesday.

SCHEDULE

Mr. President, in the next hour, after I finish my remarks and Senator MCCONNELL finishes his remarks, the majority will control the first half and the Republicans will control the final half. It will be 1 hour that will be equally divided.

VETERANS JOBS CORPS ACT

Mr. President, as we know, it is Thursday, which means Republicans have once again forced the Senate to waste the better part of a week jumping through procedural hoops that do not do have one positive outcome for our country. This week the Senate waited out yet another filibuster. It was the 380th filibuster in the 6 years I have been the leader in the Senate. This time the Republicans are not just obstructing a measure that would create jobs, which they have done many times, they are obstructing the measure that would create jobs for the men and women who risked their lives over the past 11 years to protect our freedom.

Each year 200,000 servicemembers reenter the workforce. The Veterans Jobs Corps Act, which is before this body, would invest in those returning veterans, easing the transition back to civilian life with job-training programs and priority hiring for first responder positions. If young veterans want to continue their service to country and community by becoming police officers, firefighters, or rescue workers, we should do everything we can to help them achieve that goal. This legislation would also create jobs for veterans restoring forests, parks, coasts, and public lands. The least we can do for those who have fought for this country abroad is to ensure they never have to fight for a job when they come home.

The legislation that is before this body should sail through the Senate with bipartisan support. Remember, the substitute amendment is a bipartisan measure worked on by Senator BURR and others on the Republican side, but this worthy legislation has met one Republican stall tactic after another. Not only has this bill faced a strong series of procedural hurdles, the Republicans have larded it up with unrelated ideological amendments. That is what they want to do anyway. While some of these amendments are certainly important, they don't belong in any jobs measure, let alone a jobs measure that would assist returning veterans.

Unfortunately, I am not surprised to see the Grand Old Party blocking a jobs bill. After all, that has been their tactic all this Congress. It has really been their tactic for 4 years. Republican leader MITCH MCCONNELL said so himself. During the darkest days of the great recession, he said his No. 1 goal was to defeat President Obama—not to create jobs, not to do anything to boost the economy, but to defeat President Obama. Obviously, it is still true today. I am dismayed to see them blocking a jobs bill aimed at protecting those who protect this great Nation. This is really a new low for the Republicans. At a time when 175,000 post-9/11 veterans are out of work, and many of them are homeless, we can't afford to waste time with election-year politics.

Less than 3 weeks before his death, President John F. Kennedy wrote:

> As we express our gratitude, we must never forget the highest appreciation is not to utter words, but to live by them.

It is time that the Senate show its gratitude to a new generation of veterans with deeds. It is my hope that my Republican colleagues will find it in themselves to put American veterans first and political aspirations second.

This bill could pass today and we could send it to the House and have the President sign it within a matter of days. It is a shame if that doesn't happen. I have gone over the schedule with everyone within the sound of my voice, and I hope we can move forward.

Mr. President, will you announce the schedule of the day.

RESERVATION OF LEADER TIME

The ACTING PRESIDENT pro tempore. Under the previous order, the leadership time is reserved.

ORDER OF BUSINESS

Under the previous order, the next hour will be equally divided and controlled between the two leaders or their designees, with the majority controlling the first half.

Mr. REID. Mr. President, I suggest the absence of a quorum and that the time be equally charged.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Ms. CANTWELL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

Ms. CANTWELL. Mr. President, I ask the indulgence of my colleague from West Virginia. We thought the minority leader was coming to the floor to speak so we have gotten a little behind, but I appreciate his indulgence for me to recognize a very important Washingtonian.

HONORING OUR FOREIGN SERVANTS

However, before I start, I wish to take a moment to say that my thoughts and prayers are with the families of the victims of the horrific attack that happened in Libya, and that it is now time to remember all of the men and women who serve our country abroad at these embassies and to thank them for their service and hope for their protection.

REMEMBERING GEORGE HICKMAN, TUSKEGEE AIRMAN

Ms. CANTWELL. Mr. President, on a chilly day in January of 2009, Americans watched with pride as Barack Obama stood before the Nation and took the Presidential oath of office. For some, that experience was another milestone in a long journey to ensure America lives up to the idea that this country was built for everyone. The election of an African-American President shattered a barrier that many thought would never happen.

The American struggle for civil rights has produced many seminal moments, including Rosa Parks and the Montgomery bus boycott, Martin Luther King at the march on Washington, and Jackie Robinson stepping to the plate for the first time. Before all of these events, however, there were the Tuskegee Airmen.

George Hickman, a Washington resident and a Tuskegee Airman, was truly part of America's ''greatest generation.'' They were a catalyst for an eventual desegregation of the entire U.S. military. On March 19, 1941, the 99th Pursuit Squadron was formed at Tuskegee Institute in Alabama.

When the United States was waging war against tyranny abroad, the members of what became known as the Tuskegee Airmen fought it; they fought the globe for us. Breaking barriers is never easy. At the time, the competence and patriotism of these African-Americans sometimes were openly questioned, but the Tuskegee Airmen didn't listen to those critics. They were fighting for what this country could be, not what it was.

In the first class of graduates there were only five, but before the war ended almost 1,000 pilots went through training at Tuskegee. Of those, 450 flew planes in the 99th Squadron and the 332nd Fighter Group in missions across Europe. They used the steely resolve they had shown in the face of racism to their advantage.

The 99th conducted bomber escort missions with stunning success. They flew 200 of 205 of these missions without a loss of a single bomber to the enemy aircraft.

The 332nd group achieved just as much. The Red Tail fighters came to be feared in the skies because of the feats like the one Lieutenant Pierson pulled off when he took out a German destroyer in the Harbor of Trieste, Italy, with just a 50-caliber machine gun.

Equally important were the Tuskegee pilots who broke barriers at home. They may not have participated in combat, but they proved they were instrumental in powering the American military that eventually won the war. Amidst jeers and insults, the Tuskegee Airmen quietly went about their job with grace. Through grit and determination they barreled through dead ends and blocked doors and shined a light for others to follow.

President Obama acknowledged as much when he said: ''My career in public service was made possible by the path heroes like the Tuskegee Airmen trail-blazed.''

These important Tuskegee Airmen were pioneers, and among them was George Hickman from Seattle, proud and smiling as always, as we can see in this photograph.

So I rise today to honor the life of this American hero and loyal Washingtonian. George Hickman passed away on August 19 at the age of 88. We owe George Hickman a great deal because beneath that big smile lay a quiet determination and courageous spirit that helped him make America a better place for all.

George grew up in St. Louis, MO. He loved building model planes which he bought for 10 cents at Woolworth's, and he dreamed of becoming a pilot. At age 18 he pursued that dream.

When he graduated from high school in 1943, George trained with the Army's all African-American 99th Pursuit Squadron in Tuskegee, AL. He was a Tuskegee Airman and one of our Nation's first African-American pilots.

George's passion for aviation continued after his service was up, and as a mechanic with the Tuskegee Airmen he developed skills that allowed him to succeed in and graduate from college. Eventually George brought his expertise to Boeing when he moved to Seattle in 1955. Over a 29-year history he rose through the ranks at Boeing, but that is not where this story ends.

George was also an uplifting spirit, and he had the most radiant smile. We can see that from this picture. That smile was there for his community, his family, and everyone who met him. George became a well-known figure at Seattle sporting events for the University of Washington Huskies and the Seattle Seahawks. In fact, people called him ''our lucky charm.''

For more than 40 years, he served as a press attendant and usher at UW sporting events. George never missed a game, including Rose Bowls, and he was there to give moral support to everyone. He even went to the basketball and volleyball games and gave high fives to everyone on the court.

As the University of Washington basketball coach Lorenzo Romar put it: ''He is a guy that is selfless. He is always trying to lift someone else up.''

I also wondered, seeing this picture of George many times before today, if it was the steely reserve of being an airman that grounded him for what he considered to be really important in life; that is, lifting up other people. That is exactly what George did. The University of Washington community lifted up George too. They helped collect enough money so he could travel to Washington, DC, to be part of President Obama's inauguration, along with 188 other Tuskegee Airmen. Some estimates are that more than half of those Tuskegee Airmen who attended the inauguration are no longer with us.

With George's passing, certainly there is one more angel in heaven with a very big smile on his face, but here on Earth we have one fewer American hero from the Tuskegee Airmen days to tell his story. So, today, I encourage all Americans to learn about the story of the Tuskegee Airmen. For those in the Pacific Northwest, I encourage people to visit the Museum of Flight in Seattle and the Northwest African American Museum because they both have exhibits on display that showcase this epic story. It is a great opportunity to reflect on the people who inspired our Nation's founding ideals and who ended up changing the course of American history.

George Hickman may no longer be with us, but he will always be remembered for that very big smile, especially by those he touched in his life. His spirit will live on. It is almost as if he is saying in that picture: You can get it done. We can get it done.

His legacy lives on through his children Regena, Sheri, Vincent, and Shauniel, as well as his grandchildren and great-grandchildren. We will all carry on this legacy with the U.S. military and the trailblazing Tuskegee Airmen. George's spirit will also carry on back home at Husky Stadium and at Hec Edmundson Pavilion. Many people, including the Seattle City Council, those at the university, and the Seahawks have all honored him in their special ways.

So on behalf of a grateful nation, it is my pleasure to submit a resolution to honor the life of an American hero, a great Washingtonian, George Hickman. As his wife Doris summed it up: ''George loved his family and enjoyed life to the fullest.''

George Hickman was a true American hero and an inspiration for all of us. I hope we agree to this resolution.

Ms. CANTWELL. Thank you, Mr. President. I yield the floor.

The ACTING PRESIDENT pro tempore. The Senator from West Virginia.

VETERANS JOBS CORPS ACT OF 2012

Mr. MANCHIN. Mr. President, first of all, I wish to thank my colleague and good friend from the State of Washington, Senator CANTWELL, for honoring and recognizing a true American hero. We have had so many of them, and we still have so many, and I wish to thank her for that.

As the country mourns for those we have lost in Libya and those who remain in harm's way to keep us all safe, we are reminded of the sacred debt we owe the men and women who put their lives on the line for us every day. No matter the generation and no matter the war, America's soldiers, sailors, marines, and airmen are always tough, always determined, and always victorious. Even when we have asked the impossible of them, they have served us well.

However, how well have we served them? How well have we kept our sacred promise to care for those who, as Abraham Lincoln said, ''have borne the battle'' for us and for this great country of ours?

The Veterans Jobs Corps Act is an opportunity to make good on that promise, but it is more than an opportunity; it is an obligation. It is also a duty and, most importantly, it is a privilege. It is one of the best welcome home celebrations we could give the men and women in our armed forces, as well as the 9/11 generation of their families—more than 1 million military spouses and 2 million children, many of whom have lived their entire lives in a nation at war.

Today, one of our Nation's great challenges is a new generation of veterans coming home to a weak economy. Those veterans are disciplined and have some of the best training in the world, but now those veterans who fought in Iraq and Afghanistan now fight for jobs.

The unemployment rate for these post-9/11 veterans is 10.9 percent, according to the Bureau of Labor Statistics this past August, and that is well above the national average. That is unacceptable. That is why every day in the U.S. Senate I will stand with our veterans—as I know the Acting President pro tempore does and all of our colleagues—24/7. That is why one of my top priorities in the Senate has been—and will continue to be—to make sure there are good jobs for our returning veterans.

I am particularly pleased that the Veterans Jobs Corps Act includes provisions to provide veterans with access to the Internet and computers to assist them in their job searches. This is important because, as we all know, today's veterans are tech-savvy.

I have talked with Labor Secretary Solis about establishing an Internet portal for job seekers, and I will be working closely with the Secretary to make sure this provision of the act is up and running as quickly as possible.

I do, however, suggest that we amend the legislation so it is abundantly clear that employment opportunities available through the Veterans Jobs Corps are maintained on one—only one—Internet portal—a simple, one-stop center for job seekers. In this technology age, we need a central clearinghouse to match veterans with available jobs.

I also want to propose two more amendments to the Veterans Jobs

Corps Act that might have been overlooked.

First, as written, the legislation addresses commercial driver's licenses, CDLs, as we know them, but not construction equipment or heavy equipment operating licenses. I suggest we amend the legislation to include reciprocity on licensure, which, clearly, will make it easier for veterans to get jobs operating this heavy equipment at construction and mining sites. They have been doing these jobs already every day in the military. There is no reason why they should have to face a complete new hurdle to get a new license for the same work here at home.

And second, I would like the legislation to encourage Members of Congress to lead by example and hire qualified veterans for openings in all of our offices both here and at home. I proudly display the ''I Hire Veterans'' logo in my office, and many of our colleagues do. I have made this a commitment to every veteran: that we will do all we can to put them back into employment. But we must all lead by example.

As members of the Veterans Jobs Caucus, we must do everything we can to end the unemployment crisis our veterans are facing. In fact, while I was in my great State of West Virginia during our most recent State work period, I had the privilege of working with a private sector partner, DuPont—International DuPont—which has joined the ''I Hire Veterans'' project. They have committed that for all of their new hires, at least 10 percent will be veterans. That is tremendous. This project is our new yellow ribbon and, as I have always said, if you want to really help a vet, hire a vet and then do business with folks who also hire vets.

I have seen firsthand the positive impact veterans have on our economy. Leadership, teamwork, commitment, and trust—these are the hallmark qualities of all of our military heroes. And these are skills every American business—big or small—needs and can use today.

Like every generation of warriors, today's young veterans make great hires. Their resumes include maturity, crisis management skills, and loyalty, and those resumes should be at the top of every stack of a person looking for a good employee today.

Patriotism has many requirements and one requirement is to keep faith with those who have worn the uniform of the United States of America. It is one thing to recall President Lincoln's immortal words and the commitment to those who have ''borne the battle.'' It is another to live by them—to always stand with the men and women who have kept this Nation safe and free.

They answered the call. We must do so as well. And I am so proud to support this legislation.

Three million veterans have returned from military service over the past 10 years, and another 1 million are expected to return to civilian life over the next 5 years.

Can we rise to the challenge, the way our warriors did in Iraq and Afghanistan? Can we make sure our economy is ready for them? Of course we can. And just as importantly, we must.

So I ask all of my colleagues—Democrats and Republicans—to please vote ''yes'' on this most important piece of legislation.

I yield the floor.

The ACTING PRESIDENT pro tempore. The Senator from Colorado is recognized.

Mr. UDALL of Colorado. Mr. President, I commend my colleague from West Virginia for his eloquent and articulate and powerful remarks about the importance of standing with our veterans. We have work to do, as Abraham Lincoln so powerfully put it. I want to acknowledge the great work of my colleague from West Virginia.

Mr. MANCHIN. I thank the Senator.

WIND PRODUCTION TAX CREDIT

Mr. UDALL of Colorado. Mr. President, I am here, as I have been on many a morning over the last number of months, to urge all of us to work together in order to extend the production tax credit for wind energy. The PTC, as it is known, is going to expire in a few months. That impending expiration not only threatens the jobs of tens of thousands of Americans but also threatens the continued prosperity of an industry that has seen tremendous growth over the last decade. We simply cannot let that happen. But each day we fail to act—and, in effect, abdicate our basic responsibility to support job creation—we are allowing jobs to be exported and we are truly abandoning a part of the bright future of American manufacturing.

I have had the opportunity over the last several months, as I mentioned, to come to the floor and talk about the benefits of the production tax credit in individual States. Today I think it is timely and appropriate to highlight the great State of Arizona—a State I have a special affinity for, as does the Acting President pro tempore. We were both born and raised in Tucson, and we both, I know, share a sense of pride because Arizona has adopted a renewable electricity standard such as we have in Colorado, such as we have in the Acting President pro tempore's State of New Mexico. The important part is not just the adoption of that standard but Arizona's commitment to renewable energy has truly produced results.

When you think about Arizona, you think about solar resources. The Sun shines many a day in Arizona. But it is also home to more than ample wind resources. In fact, the studies show that Arizona has enough wind potential to provide 40 percent—40 percent—of the State's current electricity needs. That is according to the National Renewable Energy Laboratory.

Arizona is not letting that wind go to waste. It completed its first commercial wind project in 2009, and it has been steadily adding capacity ever since. This first project was the Dry Lake Wind Project, which is a wind farm comprised of 30 turbines in Navajo County, which is up in the northeastern section of the State, familiar to the Acting President pro tempore, quite near his home State of New Mexico.

But Arizona is not stopping with this one project. There are at least seven wind manufacturers in Arizona that are creating good-paying jobs, and I want to mention one, Southwest Windpower. It is a national leader in the small wind market, and it has a manufacturing facility up in Flagstaff, which is in Coconino County, in the center of the northern part of Arizona.

These online wind projects already power over 33,000 homes, and, as I have highlighted, current projects under construction are likely to drastically multiply that number. Why is this important? Well, we have clean, renewable energy that creates American jobs. You talk about a virtuous cycle. This is one.

There is a large wind project proposed in Arizona. It is the Mohave County Wind Farm. It is up in the northwestern section of Arizona. It will produce 500 megawatts of electricity. Mr. President, 500 megawatts would power 110,000 homes per year. As importantly, that is an investment of hundreds of millions of dollars and, conservatively, it would create nearly 1,000 jobs. Those are impressive numbers.

Why do I bring up this proposed project? Well, I bring it up because this investment is at risk. The BLM, under Secretary Salazar's leadership, has fast-tracked this project, and it is scheduled to begin construction next year. But our inaction here literally will thwart those plans. Without an extension of the production tax credit, the future of this project and the jobs and the clean energy it will produce are in jeopardy. That is flat out unacceptable. We have to act here in the Congress in order for the immense potential of wind power to be realized.

I want to talk today about something I have not mentioned previously on the upside. When we produce power from wind in the arid West, we save an enormous amount of water. Recent estimates project that for every 1,000 megawatts of new wind power produced, we save over 818 million gallons of water on an annual basis. I do not have to tell the Acting President pro tempore we are in a period of extreme drought not only in the Southwest but in the Midwest. When you add in the fact that Arizona has a very arid climate, fresh water supplies become increasingly precious. So when we take steps to reduce the demand for that fresh water, we make a downpayment on the future of the Southwest. Of course, we know that well in Colorado. We are the headwaters of some of the most significant major rivers that feed the water needs of the States all around us. But if we let the PTC expire, we risk all the jobs, the manufacturing, the water savings that would

have really positive effects on our economy.

I see my good friend from Arizona is here, and I want to conclude. But I want to conclude on this note: This is not a partisan issue. On both sides of the aisle, we have strong support for the production tax credit.

Just last month, the Finance Committee included an extension of the production tax credit on a strong bipartisan vote. Our good friend, Senator GRASSLEY from Iowa, has led the effort here in the Congress, and we have support in both Houses. So I want to make a plea to all of us: Let's act in a bipartisan fashion. Let's renew the production tax credit.

The production tax credit simply equals jobs. So we ought to pass it as soon as possible because the production tax credit equals jobs, and that is job one here for those of us in the Senate.

In the House yesterday a group of Members—over a dozen of them—made this effort bicameral. They talked on the floor of the House about how the PTC has benefited their districts. Their remarks highlighted what I have been saying for months: Without the PTC, thousands of good-paying American jobs will likely be lost or shipped overseas. There is no reason that should happen. Let's pass the production tax credit extension as soon as possible.

I thank the Acting President pro tempore for his interest and his support.

I yield the floor.

The ACTING PRESIDENT pro tempore. The Senator from South Dakota is recognized.

Mr. THUNE. Mr. President, I ask unanimous consent to enter into a colloquy with my colleagues from Arizona, Alabama and New Hampshire.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

SEQUESTRATION

Mr. THUNE. Mr. President, we come to the floor today to talk about the sequestration and the looming fiscal cliff. Unfortunately, the White House missed an important deadline last week by failing to provide Congress and the American people with a required report that details the administration's plan for implementing the $1.2 trillion sequester that is scheduled to take effect on January 2 of next year, less than 4 months from now.

That report on both defense and nondefense cuts came about because the administration ignored repeated requests to provide Congress and the American people with details about the impact that sequestration is going to have on critical programs, particularly with regard to our military and national defense. Members of both parties agreed that it was necessary for the White House to produce this information, and so we were glad to see that Sequestration Transparency Act bill passed, a bill with which Senator SESSIONS, Senator MCCAIN, and others of us were involved. The law required the administration to produce by September 6, last week, a report on how they intended to implement sequestration. Yet so far we have not seen that report. Here we are, it is a week later, and so far President Obama has chosen to ignore a requirement that he signed into law just over a month ago.

All Americans are required to play by the rules and follow the laws of the land. It seems to me, at least, the administration owes the American people and the Congress, under the law that was passed, a report that would detail the proposal they have with regard to the sequestration that is going to occur the first of next year.

I think the reason that is important—it is important for a lot of reasons, but we do not have a lot of time here. If we are going to do something to avert what would be a catastrophe for our national security interests, we have to take the steps that are necessary to do that. Well, it is very hard to come up with a replacement or an alternative to what the administration proposes when we do not know what the administration is proposing.

So we are hoping that when we get this report, which I hope will be soon since it is now a week overdue, we get an idea about what the administration proposes to do and then Congress can move forward, hopefully, with an alternative that would avert what would be a major disaster, as has been described by our military leadership in this country, to America's national security interests. I know the Senator from Arizona, the Senator from Alabama, and others will detail some of that, but I think it is important to point out what some of the President's own advisers have said.

The Secretary of Defense Leon Panetta has issued repeated warnings about the negative impact these cuts will have on our military, saying, ''It would do catastrophic damage to our military and its ability to protect this country.''

General Odierno, Chief of Staff of the Army, said that ''cuts of this magnitude would be catastrophic to the military.'' He went on to say that ''these cuts would incur an unacceptable level of strategic and operational risk.''

It is interesting, there is a book out now by Washington Post reporter Bob Woodward, who describes President Obama and then-OMB Director Jack Lew when they were going through this process as insisting on these defense cuts during the debt ceiling negotiation. It is clear they wanted to use these defense cuts as leverage to get tax increases.

In fact, if we breach the fiscal cliff, if we go over the fiscal cliff, it is now being predicted by the Congressional Budget Office that that will drive unemployment beyond 9 percent next year and plunge the country into yet another recession. In fact, they project—CBO does—that the GDP will contract by 2.9 percent during the first half of next year and by 5 percent over the entire year. Federal Reserve Chairman Ben Bernanke has also said that estimates ''do not incorporate the additional negative effects likely to result from public uncertainty about how these matters will be resolved.''

We are heading toward a train wreck. We are heading toward a disaster for America's national security interests. It all started with the fact that this Chamber has not produced a budget for now 3 years in a row. This is what you end up with when you do not have a budget. We do not have a blueprint on how we are going spend $3.6 trillion of the American taxpayers' money, so we ended up with a budget control act which was cobbled together at the last minute to avoid a crisis on the debt limit last summer which put in place a supercommittee designed to come up with these cuts. When the committee failed, this sequestration process was triggered. That was last November. We have had almost a whole year now for the administration to put forward their plan about how they would implement this sequestration, these across-the-board cuts that disproportionately impact our national security spending.

It is a disservice to the American people, disservice to the Congress for the administration not only to have not put something out prior to, but now since we passed legislation that was signed into law just a month ago that required the President to put forward this report, not to have received it yet so that we can have the time that is necessary to take the action that is necessary to avoid what would be a catastrophe and a disaster for America's national security interests.

I hope we will receive that report. This fiscal cliff is real. It is not just the Congressional Budget Office; a lot of the outside analysts have looked at this and come to the same conclusion; that is, if something is not done to avert these cuts and to deal with the tax increases that will occur on the first of next year, we will go over a fiscal cliff, and that could be incredibly dangerous and have catastrophic consequences for America's national security interests but also for our economy and for jobs.

I would like to yield to my colleague from Arizona, Senator MCCAIN, one of the most respected voices on national security issues and someone who has been very active on this sequester issue and trying to get the Defense Department to at least let us know what they are intending to do with regard to the cuts that are going to impact the national security interests of this country.

I yield to the Senator from Arizona.

Mr. MCCAIN. Mr. President, I ask unanimous consent that I be included in the colloquy with the Senator from South Dakota, the Senator from Alabama, and, naturally, the Senator from New Hampshire as well.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

Mr. MCCAIN. Mr. President, I think the Senator from South Dakota has laid out the problem. One of the regrets that I think all of us have is the failure of this message to get to the American people: the loss of 1 million defense jobs, $1 trillion taken out of our economy, the devastation to our national security that has been so graphically described by our Secretary of Defense and our uniformed chiefs. And still I think most Americans do not understand how the word ''sequestration'' applies in this particular situation. Now, maybe when this report—thanks to the legislation sponsored by the Senator from South Dakota—comes out as to the effects, it will give more visibility to the train wreck we are facing. It is a train wreck.

I would like to remind my colleagues again that the President cut $78 billion from defense in 2011. The budget request this year cut an additional $487 billion over the next decade, and this is another approximately $480 billion in addition to that. That is why our uniformed service chiefs say they will not be able to carry out their missions if this sequestration takes place.

And the President of the United States, whose title is ''Commander in Chief,'' has said, as far as I know, one, that he wants us to agree to tax increases. There have been some comments he has made about, well, after the election, maybe we will sit down. That is not the job of the Commander in Chief of the Armed Forces whose No. 1 priority is this Nation's security. The job of the President of the United States is to prevent the catastrophic consequence of sequestration on our Nation's national security.

I stand ready—and I know my colleagues do—I stand ready to go over to the White House and sit down with the President of the United States and say: How can we avert this catastrophe for our Nation's defense? What is the answer? Well, as soon as the Republicans agree to tax increases, or, after the election, maybe we can sit down. Meanwhile, the Pentagon has to plan. They have to plan on what their budget is, on what their capabilities are going to be, what their acquisitions are going to be, how we are going to pay, make sure the pay and benefits of our men and woman who are serving are kept up.

I will yield to my friend from Alabama in just a second, but this is really an incredibly frustrating situation. We are not going to take up the Defense authorization bill anytime soon. We are going through a veterans jobs act that never had a hearing, sponsored by a person who is not a member of the Veterans' Affairs Committee. There are six veterans jobs programs already in being today. Then I read in some of these periodicals that we are going to take up a bill from the Senator from Montana concerning some kind of hunting deal.

Meanwhile, the Senate refuses to take up the National Defense Authorization Act, which has to do with defending this Nation. What is the role of the President of the United States on this issue? I ask my colleagues, are we, for the first time in 50 years—the first time in 50 years—not going to pass and send to the President's desk for signature a defense authorization bill? Instead, we will go back and forth filing cloture and arguing on amendments and on which will be allowed or not allowed, fill up the tree, blah, blah, blah. Yet the majority leader of the Senate cannot take up the national defense authorization bill, the most important piece of legislation this body considers, and it may be that we do not take it up for the first time in 50 years.

We must address the issue of sequestration. I again commit to making compromises, to doing things I otherwise would not agree to, because we cannot allow this train wreck that will endanger the lives of our citizens to take place. Do not take my word for it. Take the word of the Secretary of Defense appointed by the President of the United States and our uniformed chiefs appointed by the President of the United States with the advice and consent of the Senate that this is a devastating challenge to our national security. We just found out in the last couple of days that the world we live in is a very dangerous one.

I thank my colleagues for their involvement.

I yield to the Senator from Alabama.

Mr. SESSIONS. Mr. President, I think we should listen to Senator MCCAIN. Senator MCCAIN made a point that I think he understands. He is the ranking Republican on the Armed Services Committee. He has served his Nation with a career in the military. And we have a Commander in Chief who is not leading. We have a majority leader in the U.S. Senate who is not leading. We are about to have no Defense authorization bill this year for the first time in 50 years.

I would also note that this will be the first time since I have been in the Senate in maybe—I do not know how long—that we have passed not a single appropriations bill, zero, including a defense appropriations bill. It is going to be part of some massive, ominous CR for 6 months without any real oversight or thought as to how that money will be spent.

I am a member of the Armed Services Committee and ranking member of the Budget Committee. I would like to point out how these cuts that, as Senator THUNE established, were driven by the White House when they set up this committee last August—and we committed to reducing spending by $2.1 trillion over 10 years. Instead of spending $47 trillion, they would reduce it to $45 trillion. We are spending now at the rate of $36 trillion over 10. We are still increasing spending over current rates, but it would not be quite as much.

But the way this fell is remarkable. I wanted to show this chart. Under the fallback sequester, the defense budget shrinks while nondefense spending soars. Under the budget as proposed and in law today, the Defense Department, unless we take action to fix this sequestration, would have a reduction of 11 percent over 10 years in its programs, while the remaining five-sixths of the Federal Government—defense is only one-sixth—would get a 35-percent increase. This is the kind of poor management we ought to not allow to happen. The Secretary of Defense said it would be ''catastrophic.'' The Chairman of the Joint Chiefs said it would be ''catastrophic.'' Yet that is where we are heading.

We need leadership now. It will take place in January. We need to fix it now because defense contractors and military budget people in the Department of Defense are right now trying to wrestle with what to do about it.

This is not acceptable. So you say—they might say: The Defense Department has received dramatic increases. It ought to take more cuts.

We have heard that said. It is really not so. Let me show you some things about spending. From 2008 through 2011, these are the increases in spending by department or major program. Food stamps has gone up 100 percent—double. Medicaid went up 37 percent from 2008 through 2011. The Defense Department has increased 10 percent and basically last year had very little increase. The perception is that the Defense Department is the one that is driving the increases in spending. That is not accurate. Let me point out that under the Budget Control Act agreement of August 1 year ago, they totally exempted food stamps from any reduction, they totally exempted Medicaid from any reduction—not a dime—and that is why the cuts fall disproportionately on defense, and Social Security has no reduction. So these are things we need to understand as we wrestle with how to manage the people's money.

I thank Senator THUNE for his leadership. To Senator MCCAIN, I just would say this is not a good way to do business. I don't believe it will eventually become law. But right now it is causing disruption in the Defense Department, in our procurement for the Defense Department. We need to do something about it sooner rather than later. It is very disappointing the Commander in Chief, the Chief Executive, doesn't see this problem and begin to provide leadership right now to fix it.

I see my colleague from New Hampshire, a fabulous new addition to both the Budget Committee and the Armed Services Committee, has come to the floor. I am so pleased with her grasp of defense issues and her passion about it. Senator AYOTTE.

Ms. AYOTTE. Mr. President, I ask unanimous consent to enter into this colloquy with my colleagues.

The PRESIDING OFFICER (Mr. CASEY). Without objection, it is so ordered.

Ms. AYOTTE. It is an honor certainly to speak after the Senator from Alabama, who is the ranking Republican

on the Senate Budget Committee. He knows better than anyone else here, as my colleague from South Dakota said, had we done a budget for our country, we wouldn't find ourselves in a situation such as this, where we are going to put our national security at risk. It has been over 3 years since this body has done a budget. I think it is outrageous. Having been elected in 2010, I am so angry about that, I have signed up to support the bill that says we shouldn't get paid until we have a budget because where we end up is with this sequestration deal.

This is a lesson we should learn when we have an absence of leadership, when we have a majority leader who thinks it is foolish to have a budget, when we have absence of leadership from our Commander in Chief, who doesn't think this is a priority to resolve. The President should be calling all of us to the table to resolve this because of national security. Without resolving it, we end up putting our country at risk. The foremost responsibility we have in representing the American people under our Constitution is to keep them safe. If we don't do that, we have nothing else.

We have seen the events over the last few days, as Senator MCCAIN has described them. He is the ranking member of the Armed Services Committee and certainly someone known as being more knowledgeable about national security than anyone else in this body. I believe he is right. It is a dangerous time in the world right now. We are faced with Iran trying to acquire nuclear capability, we have the Middle East unraveling right now, and there is an absence of American leadership, unfortunately.

If we take, in addition to the $487 billion in reductions we are already planning for the Department of Defense, another $500 billion off that, with what we see happening around the world and the risks to our country—terrorists who still want to kill us for who we are and what we believe in—then as our own Secretary of Defense has said, this sequestration will be catastrophic, leading to a hollow force, shooting ourselves in the head. That is what our Secretary of Defense has said. Irresponsible.

Mr. MCCAIN. May I ask the Senator from New Hampshire, is it not true we went to her State and met with a major defense industry in the State of New Hampshire that employs thousands of people?

Ms. AYOTTE. Yes, we did. In fact, I was at the same major defense employer in my State on Monday the same employer we went to—BAE.

Mr. MCCAIN. What do they say?

Ms. AYOTTE. They say they are worried about sequestration because there are thousands of jobs at stake in New Hampshire. But more important, there is the capacity to make sure our troops have the very best equipment, the very best technology, and that we can prevent attacks on our country. When we send our troops into harm's way, we need to know they are protected. We have a responsibility to them.

There are jobs at stake and there is safety to our troops. When we talk about hollowing out our force, we mean putting our troops at risk and, finally, not only that, but we think about our safety. So there are real jobs at stake. As the Senator from Arizona has said, my State estimates 3,600 jobs on the defense end and over 1 million jobs in this country.

Let's face it, I saw the workers, I have talked to them, and they are very worried we are not going to take up our responsibility; that there is an absence of leadership. Where is the Commander in Chief on this? Of all the things the President has responsibility for, this cannot be punted until after an election. This should not be used as a bargaining chip for other goals he wants to accomplish—increasing taxes in this country. He should be at the table right now. We are all willing to sit down and listen to ideas and to compromise with the other side, but we need the leadership of our President to do that.

I understand the President may be too busy campaigning to do that, but this is too important to leave until after an election.

Mr. MCCAIN. Could I ask the Senator from Alabama, is it not true, if these cuts are enacted in the fashion they are designed right now, we are going to have a serious impact on our economy, to the point where it could result in even negative growth, according to objective studies?

Mr. SESSIONS. The Congressional Budget Office and others, as Senator THUNE indicated, have said if the tax increases are imposed and the sequester cuts are done, we could go back into another recession. The last thing we need to get this budget under control and our finances under control is another recession. It would be unthinkable for us to take action that would put us in that kind of context.

As Senator MCCAIN knows, there are requirements the defense contractors—any government contractor—has when they know they are not going to be able, under the law, to keep the number of people employed. They have to send them a notice they are going to be laid off in advance so they have an opportunity to find other work. They are preparing to send out those notices now, and that has a depressing effect on the economy as well, I think. It is a very serious matter for the economy.

But most important to me is, when we start playing games with production and procurement of weapon systems and things, it costs the government more money. Wouldn't the Senator agree? If a contractor is producing 100 widgets and then they go to 50 widgets, then back to 100, doesn't the government often have to pay penalties and doesn't it drive up cost?

Mr. MCCAIN. Wouldn't that also be true if a defense contractor today literally has no ability to make plans for what their company or corporation would be expected to do on January 1 of 2013?

Mr. SESSIONS. Absolutely; that is correct. Under the law, these cuts will take place in January. That will happen unless we pass a law to change it—unless we take action to change it. What, are we going to wait until December 31? Is that when we are going to deal with this?

As Senator AYOTTE suggests, we should do it now because it is the responsible thing to do to fix this problem and not leave the Defense Department in turmoil. They will not even send an answer to our request—Senator THUNE, myself, Senator MCCAIN—on where the cuts are going to occur, I guess because they do not want to or they do not know yet. But this is turmoil within the Department.

Mr. THUNE. If the Senator from Alabama will yield on that, I think it is important again to point out this could be avoided. Actually, the House of Representatives passed a budget trying to avoid it. They addressed this in their budget. They restricted these reductions, did away with the 50 percent whack the Defense Department would get, which is disproportionate relative to their share of the budget. Defense represents 20 percent or about one-sixth of the budget, as the Senator from Alabama pointed out, but it gets 50 percent of the cuts.

But the House of Representatives passed a budget that the Democrats have been down here attacking for the last couple days—the ''Ryan'' budget or the House-passed budget. At least they had a budget. We haven't had a budget for 3 years in the Senate.

Mr. MCCAIN. Isn't that known as chutzpah—to come down and attack the other body's budget when we haven't done a budget for 3 years, which is required by law?

I have to hand it to them—I have to hand it to them. I congratulate my friends on the other side of the aisle who come down and attack the other body's budget when they haven't done one in 3 years. Congratulations for new levels of hypocrisy.

Ms. AYOTTE. If the Senator from Arizona will yield, I too would call that hypocrisy. I mean, when there is no plan in the Senate for the fiscal state of the country, when the other side seems unwilling to actually do the work of the Budget Committee, when the majority leader calls it foolish—and by the way, when the President's own budget gets zero votes—

Mr. MCCAIN. Yes, the President did have a budget. It got zero votes. Not a single Member on the other side of the aisle voted for their own President's budget. Yet they will come down and attack a budget proposal which, by the way, puts us on a path to a balanced budget, and there is certainly no proposal I have ever seen coming from the other side. In fact, the answer, according to them, is spend more money—

spend more money. Let's have more of everything. Obviously, that has not been a very successful approach over the last 3½ years.

Again, I don't mean to be too repetitive, but here we are and what are we debating—a jobs bill. It sounds great. It sounds great: a veterans jobs bill. What could be better or more important? We have six veterans jobs programs that haven't succeeded. The fact is we are not addressing the needs of the men and women in the military who will be veterans someday. We are not providing them with the equipment, the training, and the wherewithal to defend this Nation by both ignoring sequestration and not taking up the National Defense Authorization Act.

My friends, I think the American people see through this charade we are conducting in these last few days before we go out to campaign and see if we can find and meet any Americans who are still in that 11 percent who say they still approve of Congress.

Mr. SESSIONS. We are going to have a lot more unemployed veterans if we don't fix this sequester because it is clearly going to cause the Defense Department to reduce personnel in a significant number; wouldn't the Senator agree?

Mr. MCCAIN. I totally agree.

Mr. SESSIONS. Senator THUNE mentioned the Ryan budget, a historic budget which changes the debt course of America and puts us on a path to prosperity and not decline. It is an honest budget, and it fixes this sequester.

I would ask Senator THUNE, doesn't the budget passed by the House do that? Isn't that proof that if we put our heads together, we can develop a way of dealing with this sequester; that it is not impossible to do?

Mr. THUNE. Right, and it passed months ago. We all talk about the jobs impact, the Warren Act notices that are going to go out, and all the uncertainty created by not knowing what the impact of this is going to be, but the House of Representatives passed a budget months ago which spelled out in clear detail how they would avoid these Draconian cuts to the national security budget, replaced them with alternatives by finding reductions in spending in other areas of the budget, and put a budget out that actually accomplished that objective and avoided what we all know is going to be a disaster and a train wreck at the end of the year.

So what happens? The Senate—the world's greatest deliberative body—doesn't pass a budget for the third year in a row. Here we are, at the eleventh hour, less than 4 months away from when this would take effect, with defense contractors sending out pink slips to employees in the very near future, and the Senate has done nothing to avoid what we know is a very predictable crisis.

Everybody knows this is coming. The Congressional Budget Office is predicting it, the Federal Reserve is predicting it, outside analysts are predicting it. Everybody knows the combination of tax increases on January 1 and the dramatic cuts in the Defense Department are going to take the country into a place economically that we don't want to go. In most cases, according to the CBO, they have said it is going to take us back into a recession. They are predicting a 2.9-percent contraction in the economy in the first 6 months of next year and unemployment over 9 percent.

It is not as though we don't see this coming. Yet here we are, as Senator MCCAIN pointed out, talking about small-ball stuff. We are doing things that in somebody's opinion I am sure is important, but we know we have a disaster looking us right in the eye, and we aren't doing anything to address it.

Again, it all starts with the failure by this institution, the Senate—the world's greatest deliberative body—not able to pass a budget, its most fundamental responsibility. The ranking member of the Budget Committee, the Senator from Alabama, knows full well. The Senator from New Hampshire is also a member of that committee. I am not sure why our committee exists if we aren't going to pass a budget, but we haven't done it now under the Democratic leadership here in the United States for 3 consecutive years.

Mr. SESSIONS. Mr. President, I do believe we are at a point in history that this Congress has the responsibility. Sequester cannot be carried out in the way it is written today. It will do severe damage to the Defense Department. We are going to fix it at some point. It only makes good sense and good business for us to fix it now, to avoid the disruptions that are ongoing in our Department of Defense.

Now I say we will fix it. I know there are a number of friends of the President who have long desired severe cuts in the Defense Department. He said he doesn't, but he at this point is taking action that I can only conclude indicates he favors these reductions to occur. The only way he might not do it is if we have the tax increase he wishes to see occur.

Mr. THUNE. On that point, it looks as if what they are doing is running out the clock, doesn't it? They have a requirement by September 6—last week—to produce at least their proposal. It is by law. We passed it. He signed it into law back in August. It was required last week, and we haven't seen it yet. It looks to me what they are doing is trying to run the clock out, hoping Congress is going to go home to campaign and they will not have had to do anything to deal with this—until the lameduck, at which point they can use defense cuts as leverage to try to get tax increases.

It is pretty plain what is going on here. But they have a requirement under the law to produce that. They haven't done it. The Senator from Alabama and I were authors of that legislation. The Senator from New Hampshire has been a great leader in trying to get the administration to put their proposal for implementation in front of us. That hasn't happened. That is, I think, the only conclusion anybody can draw.

Mr. SESSIONS. The Senator from New Hampshire has campaigned on this and talked about these issues. I guess it has been frustrating to serve on the Budget Committee and the Armed Services Committee and to see as much dysfunction as has occurred.

Ms. AYOTTE. It has. We have to do a budget, I would say to the Senators from Alabama and South Dakota, for our country. And we need to make sure that we protect our national security. That is why this problem has to be solved now. We need leadership from the President as Commander in Chief.

I would point out, in response to the comments of the Senator from South Dakota, not only has the Department of Defense ignored this law of producing a plan as to how they are going to implement sequestration; the administration went so far as to have the Department of Labor issue an order saying: Employers, don't comply with the law of the Warren Act to tell employees that your job may be at risk and issue a layoff notice.

That is how far the administration is going in not wanting to take this issue head on. But it is too important to the American people. We have got to resolve it. We are willing to try to resolve it. I am the cosponsor of another bill that would come up with alternative spending reductions to resolve it. We have got to do it now. We owe this to the American people. We owe this to our men and women in uniform.

Again, if we do a budget and we do what is right for our country, we would never find ourselves in this situation.

I see the Republican leader here. We certainly wish to hear from the Republican leader and would end this colloquy and yield back our time to the leader.

Mr. THUNE. Mr. President, I yield back the remainder of our time.

The PRESIDING OFFICER. The Republican leader.

MIDDLE EAST UNREST

Mr. MCCONNELL. Mr. President, the attacks this week on our diplomats, our installations, and diplomatic security personnel have reminded all of us of the service of these brave Americans—the service they render to our country every single day, from the deadly attacks on a U.S. diplomatic station in Benghazi, to the attack on our embassy in Cairo, and now another attack on another embassy last night in Yemen; four Americans are dead; our flag is being desecrated. This is a moment for Americans to show our closest allies in the Middle East that we stand with them unequivocally. No mixed signals. Neither Israel nor any of our allies should ever have any reason to doubt that resolve.

I am encouraged that Turkey has condemned the violence in Benghazi.

There is absolutely no justification for what happened in Cairo, Benghazi, or Yemen. None. We must do everything within our power to protect our representatives overseas and hunt down those responsible for these attacks.

There were warnings yesterday that other attacks on other embassies may be imminent. This is a gravely serious moment. But America does not shrink from the defense of its core values or its interests overseas. We must project strength.

The unrest in the Middle East—in Libya, Egypt, and especially the Sinai, Yemen, and Syria—presents a profound and formidable challenge to our interests, in addition to the U.S. Central Command, and to our allies. None of our Nation's enemies—al-Qaida, other violent extremists, Hezbollah, and especially Iran—should view this moment as a window of American vulnerability. Now is the moment to send a clear signal to longstanding allies such as Israel that they can rely on our support. And every member of our armed services, diplomatic corps, and intelligence community should know they have our support and gratitude in the challenging days that lie ahead.

Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from West Virginia.

THE RYAN BUDGET

Mr. ROCKEFELLER. Mr. President, I rise today to talk about the so-called Ryan budget plan, endorsed and fully absorbed by Governor Romney—which, when you read it, is nothing more than a diabolical blueprint for slashing services that help families, seniors, and children all across the country.

The Ryan-Romney plan—which is the centerpiece of the Republican Presidential campaign, and certainly will grow more so—has finally come under the new scrutiny that it needed as people got a good look at it leading up to the GOP convention last month. I, for one, have been ashamed of this document for much longer. I was proud the Senate voted against it, although it was equally discouraging that a majority of the House voted for it.

I am here today because I want to set the record straight on what, in my judgment, the Ryan-Romney plan would do to people in my home State of West Virginia, to the Presiding Officer's home State, and to the country.

The Ryan budget proposal tackles the deficit by shredding something called the safety net. If people aren't clear what that is, it is the net of public policy underneath the worst possible situation that somebody can come to in terms of health care or inability to live. Families have counted on that safety net for years in rough times, because they have had that safety net and they have used that safety net.

In essence, the unbalanced Ryan proposal guts programs for seniors, people who are disabled, children, families struggling to make ends meet, and then—most fascinating—turning those cuts into $4 trillion worth of tax breaks for the very wealthiest Americans and corporations. And people say class warfare, but it is mathematics. They give the average millionaire a tidy little tax cut of $265,000 under the Ryan-Romney plan while desperately undermining our economy.

He says he hopes his plan will balance the budget by 2040. That is not very encouraging, and it is probably optimistic on his part if it were ever to take place. The Ryan plan does not contribute a single penny to deficit reduction, which is the great problem we are facing and which we are going to deal with—not a single penny.

Consider how they shred health care, with $2.9 trillion in health care cuts, not just from repealing health care reform—an amazing thing to do—but also by gutting Medicare and Medicaid. In the passing of the health care act, all of a sudden 30 million Americans—by no means all those who are uninsured—get health insurance coverage. The act makes sure that they get health insurance coverage. The Ryan budget, backed by Romney, would take that possibility away from 30 million people who have lived without health insurance for many years.

The Ryan-Romney plan would take Medicare that more than 50 million seniors rely on and turn it into a privatized voucher system. I know this has been said, and it has been said because it is true. They would cap how much the government spends on seniors' health care, regardless of their health care needs—letting profit-seeking private health insurance companies decide what to cover and what not to cover. That alone would cost every individual senior an additional $6,000 per year if that plan were to come into effect. If seniors are not able to pay the difference, then they are simply out of luck under the Ryan-Romney budget plan.

This plan also rips apart the Medicaid Program by turning it into a block grant program. On this one, I get pretty indignant. Right now, Medicaid is a lifeline to 70 million Americans, including families and children living in or near poverty. Medicaid today provides long-term care for more than half of seniors in the United States of America. They can spend down—get rid of their assets—so they qualify for Medicaid so they can get long-term care. There isn't anybody in this country who isn't going to be faced with long-term care. The difference is that some can pay for it and some will have families absorb it through love and cultural tradition, but most can't. They have to have help. There is a little bit that is Medicare, but it is virtually Medicaid that provides long-term care. That is when you are in your declining years. That is when you are approaching death. That is when you are at your most dangerous and vulnerable situation. That is when you are scared. That is when your children come from other States to try to help—but then they start spending down the money they have saved for their kids to go to college. It is a desperate situation, even as it is today with full Medicaid coverage. This would affect those who need care at home, a lot of home health, and it would also affect seniors in nursing homes in terrible ways.

The fact is that middle-income families in this country cannot afford the $80,000 or more per year that it costs to keep a loved one in a nursing home in something called long-term care. The only way to do it without bankrupting the entire family is with the help of Medicaid. Yes, it is a big program. Yes, we are going to have to face reality in some respects on its size. But scaling back Medicaid the way they do it in the Ryan-Romney plan so badly hurts American families, and it forces State governments to do things which they are not going to be able to afford to do. They are going to have to cut services or they are going to have to go more deeply into debt themselves.

So the real prospect is of people in their seventies, eighties, nineties, et cetera, with no long-term care because of a theological point of view that government is awful—but what this is awful to is people. It is just terrible for people. The Ryan-Romney plan would mean millions more Americans could not afford basic health care—and we know what happens next. More people will get sick with untreated illnesses. Then health care costs will go up for everyone.

That implies that people get health care. Yes, they do because they can go to the emergency room of a hospital. They will not always get services, but for the most part they get those services. But they are not paying for that; the average American is, which adds about $2,000 to their family budget every year, paying for other people's health care because the uninsured do not have insurance and therefore they have no place to go. The idea of repealing the health care act and taking 30 million Americans—really, if we had more money we would have done the 45 or 50 million who are really uninsured and underinsured and taken care of them, but we did not have the money to do that.

The nursing homes and the 1.8 million people who work there would be forced to slash their services or close their doors or certainly turn away seniors. In their frenzy to repeal health care reform, and with not a single proposal to replace it—the great silence—Ryan-Romney would also completely undo all of the new consumer protections to fight back against cruel health insurance practices.

I chair the Commerce Committee. That is about all we dealt with for the past 2 years, health insurance companies and their practices. It is pretty depressing. For example, the new provision ending discrimination by health insurance companies against people with preexisting conditions—that is law. Under Ryan-Romney that would

end. I reiterate, women who are pregnant, millions of Americans who have diabetes, people with asthma, people with acne, have frequently been just turned down by health insurance companies when they ruled the roost. Now they don't rule the roost under the new health care bill, and a lot of money is being rebated to American people who were overcharged.

The reform we passed allows parents to keep their children on their insurance plan until the kids are 26 years old. That is one of the most popular aspects in the country. That would disappear under the Ryan-Romney budget plan.

There is a lot of lack of understanding of the health care bill, and it is not wildly popular in some parts of the country. Where you and I come from, Mr. President, that is true. But, on the other hand, when one thinks of it as a bill, people do not know what is in it. When one explains to people what is in it and give them examples, such as up until the age of 26 children can stay on their family's health insurance plan; curtailing the restrictions of lifetime limits, the annual limits first and then lifetime limits in 2014, they are lifted so people get the health care they need.

Pretty much every night on television we see stories of kids born with some terrible set of health problems. I remember one I talked with, an 8-year-old boy who had cancer, and his family. He had run into his annual lifetime limit. He died. This was 2 years ago. He died. He would not have died under the health care act, but the Romney-Ryan people want to scrap all that.

One thing that is very well known is the prescription drug doughnut hole, which our reform bill actually had closed. It is a very big deal. It is very hard to understand how that comes about. What is a doughnut hole? But seniors understand it because they spend quite a lot of time paying premiums to health insurance companies but getting no benefits or health care coverage during that period in which they are in the doughnut hole. We stopped that in the health care bill. That would be repealed. They open that doughnut hole right back up, the Ryan-Romney budget plan, putting that $4,200 a year right back on the shoulders of our individual seniors all across the country.

We can see a pattern here. It is absolutely appalling. It is appalling. They do not talk about it, but even Social Security is threatened by their plans. Social Security is a contract the American people have made with themselves. Virtually everyone pays in throughout their working years so that everyone has a safety net when they retire or they become disabled or they die young and have others in their family to care for—leaving a surviving spouse and children to struggle without help. Under our bill, of course, nothing is changed. They want to change that.

PAUL RYAN, for whatever reason, has been trying, since 2004, to privatize Social Security. He just flatout has. He can say what he wants. He can say he doesn't think that anymore—he actually doesn't say that, but that is what he believes because if someone has been doing something for the past 10 years, they probably believe in it pretty strongly—meaning he would like to see the American people bet their retirement savings on the stock market, which is usually not stable. I don't buy that. West Virginia seniors do not buy that.

Think back to 2008 when the financial crisis hit. If every American had privatized Social Security accounts then, their retirement security would have been wiped out. Instead, while many people lost a whole lot of money in that stock market crash back then, their Social Security benefits were safe, and they knew it.

People are fragile. Not everybody is a venture capitalist or an entrepreneur. Not everybody is born wealthy. People are living at the edge. Psychologically, they are living even more closely to the edge. Fear comes to them easily. So when we do something good like pass a health care bill which is going to help them, and then people come in and say they are going to repeal the whole act and everything about it, and then, yes, something about Social Security too—it is cruel. It is appalling and it is cruel. We need to protect and strengthen Social Security, not destroy it.

Don't just take that from me. There is far-ranging opposition to the Ryan-Romney budget plan from economists to religious leaders. A group of Catholic Bishops—this interested me greatly because the candidate for Vice President on the Republican ticket said he got his sort of social values from his Catholic teaching.

There is a group of Catholic Bishops recently who asked Republicans to stop championing Ryan's proposals because they were appalled by it—Catholics are very strong on fairness for people and always have been—because it is so hurtful to the poor. It fails their morality test.

My colleague, Senator KENT CONRAD, shared with us this week an amazing quote that I cannot stop myself from giving to you because it was from one of Ronald Reagan's economic advisers, a fellow named Bruce Bartlett, which bears repeating. He said the following:

> Distributionally, the Ryan plan is a monstrosity. The rich would receive huge tax cuts while the social safety net would be shredded to pay for [those tax cuts]. Even as an opening bid to begin budget negotiations with the Democrats, the Ryan plan cannot be taken seriously. It is less of a wish list than a fairy tale utterly disconnected from the real world, backed up by make-believe numbers and unreasonable assumptions. Ryan's plan isn't even an act of courage [Bruce Bartlett says]; it's just pandering to the Tea Party.

I think Mr. RYAN is of the tea party, so I don't know of his need to pander to it. But anyway that is what this Reagan person indicated.

> A real act of courage would have been for him to admit, as all serious budget analysts know, that revenues will have to rise well above 19 percent of GDP to stabilize the debt.

In the coming weeks and months we will continue to hear a lot of back-and-forth about the heartless policy proposals coming from PAUL RYAN and Members of Congress who support his plan. This is a deadly serious debate—deadly serious, with enormous consequences for our country and for every person in it.

It is my sincere and urgent hope that as more Americans come to understand exactly where the Ryan-Romney plan would take our Nation and its life-saving programs and others, that they will decide to run in the opposite direction away from it. The Republican budget is a slap in the face to millions of Americans. We can and will reduce our deficit. We are going to do that because we have to. There is a strong and enduring consensus on that point. But we do not have to do it this way, and we must not do it this way.

I yield the floor.

The PRESIDING OFFICER. The Senator from North Dakota.

Mr. HOEVEN. Mr. President, I rise today to speak on the veterans jobs bill. That is the legislation before us. We voted on it last night, and we will likely be voting on it again today and possibly tomorrow. I rise to speak on that bill.

I have in fact offered an amendment to the bill because we should do all we can to support our veterans. It is very important. They put their very lives on the line for us, and we need to do all we can to support them. But we need to do it the right way, and that is why I am offering this amendment. We are talking about creating jobs for our veterans. The right way to do that is long-term jobs, quality employment, not short-term stimulus-type jobs. That is exactly why I am offering this amendment to the legislation that would include approval of the Keystone XL Pipeline project.

The VFW, the Veterans of Foreign Wars, is an organization that does a tremendous amount for our veterans. We all know the VFW. We all know the great work they do on behalf of our veterans. The VFW is already working to help returning vets get jobs—and that is great. They are working to help our returning veterans get jobs constructing the Keystone XL Pipeline.

The only problem is those jobs are in Canada. Those jobs are in Canada because they have not approved the Keystone XL Pipeline in the United States. After 4-plus years, it is still in the permitting process. Since the administration has approved the project, we need to step up and approve the project, and we can do that. This amendment would do that.

I want to talk a little bit about what the VFW is doing to help veterans get jobs in the energy industry by doing things such as building the Keystone

XL Pipeline, as I mentioned, right now in Canada. VetJobs is a job placement company of which the VFW owns 10 percent, so it is partially owned by the VFW. They are working with the Edmonton Economic Development Corps to hire Canadians in Edmonton and the surrounding area in Alberta. Of course, we can see that is where the pipeline is being constructed in Canada. They are working right now to hire vets to work on such things as the construction of the Keystone XL Pipeline.

Several days ago I spoke with Ted Daywalt. Ted Daywalt is the CEO of VetJobs. He told me that in Alberta they have listings in 17 different job categories and they could use between 12,000 and 15,000 people in Alberta, Canada, just working in the energy industry. Why not put those veterans to work right here at home? We all want to have good-quality jobs, but we want to have it near our home and not have to go to a different country to get that job.

The Perryman Group estimates that the Keystone XL Pipeline will create 15,000 to 20,000 direct construction jobs right away, and that it will create thousands and thousands of permanent jobs in addition to those construction jobs. That is without spending any tax dollars, that is without adding to the deficit, that is without adding to the debt, and that is jobs here at home, not in Canada. Also, TransCanada, the company building the Keystone XL Pipeline, gives a hiring preference to veterans. They give a hiring preference to veterans in Canada and they give a hiring preference to veterans in the United States.

In fact, they also sponsor a program that is actually delivered by a nonprofit entity called Helmets to Hardhats. They train returning veterans so they can do these kinds of jobs. So we can make these quality, long-term, permanent jobs available right away here in the United States by supporting this amendment. In addition, we get more safe, dependable, reliable energy.

Has anyone checked gas prices recently? It is more than $3.80 a gallon on average in this country. That is more than double what it was when this administration started in office.

There is another benefit as well. We reduce our dependence on oil from the Middle East. Now compare this legislation to the Veterans Job Corps proposal we are looking at in the bill that is under consideration right now on the Senate floor. The Veterans Jobs Corps proposal spends $1 billion. At this time we are $16 trillion in debt, and that is growing. We have legislation that spends $1 billion to create government jobs for our veterans. Well, let's take a look at those jobs. We want to create 20,000 jobs with that $1 billion, so that means $50,000 a job for 1 year. Then what do we do? We spent $1 billion, we created a bunch of temporary jobs for 1 year. Then what do our veterans do? Do we spend more to try to keep this going? Where does this go?

Instead of doing that, by approving this legislation I have offered, we can create thousands of more jobs and we don't spend anything and it creates tax revenues, it creates economic activity, and it reduces the deficit. It also helps us generate more energy for this country instead of more government spending, a bigger deficit, and temporary jobs.

I think our veterans would very much appreciate knowing that they are working on producing and transporting more energy for the country and that they are helping to reduce gas prices at the pump for our hard-working taxpayers and our consumers. I think they would also appreciate the fact that we are working to reduce our dependence on oil from the Middle East. Maybe that way we would not have to send them back to the Middle East for energy or security reasons. I think our veterans would appreciate that.

The proposal we are putting forward creates permanent jobs, and it creates them the right way. I encourage support for it because it is about supporting and creating jobs in this country the right way and supporting jobs for our veterans.

This amendment is about jobs, and it will help our veterans. It is about energy that will help hard-working Americans with gas prices at the pump. It is about economic growth which will help our economy. Economic growth and better control of spending is what we need to do to address the deficit and the debt. This legislation is about energy security, to make our Nation more energy secure.

Here are my concluding questions: Why wouldn't we vote on this amendment? Why wouldn't we have a vote on this amendment? Why wouldn't we approve it for the benefit of our economy, for the benefit of the American people in our country and for the benefit of our veterans?

I yield the floor and note the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

The PRESIDING OFFICER. The Senator from New York.

Mr. SCHUMER. I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

RYAN BUDGET PLAN

Mr. SCHUMER. Mr. President, it is nice to see PAUL RYAN back in Congress. It will be even nicer to see him back as a full-time Member in January.

There has been a lot of controversy about Mr. RYAN and some of the things he states, why he states them, and the contrast with what he says and what he has done. Perhaps the least credible claim of all about Congressman RYAN is the idea that he is a serious deficit hawk and that his budget is a serious attempt at deficit reduction. He is not and it is not.

The Paul Ryan budget is about ideology rather than commonsense solutions to the country's economic and fiscal problems. As more and more people are learning, it certainly is not about, as Bill Clinton said, arithmetic.

In RYAN's budget, any savings achieved by his plan to privatize Medicare and gut investments in the middle-class do not go to reducing the deficit. He is saying he is creating that pain because we need the pain for deficit reduction. He uses all those savings to pay for further tax cuts to the wealthy.

This chart explains it pretty well. Independent studies have found that the Ryan budget would raise taxes on the middle class up to $2,600. People earning between $50,000 and $100,000 pay $1,300 more a year, people earning between $100,000 and $200,000 pay $2,600 more a year, and then there is a whopping savings to people whose income is over $200,000.

As a result of the massive giveaways to the wealthiest Americans, the Congressional Budget Office found that RYAN's plan failed to balance the budget until 2040. But even this conclusion relies on rosy assumptions supplied to CBO by RYAN himself.

Ryan's plan could take longer to improve the fiscal outlook under a more realistic set of assumptions, even taking the unrealistically rosy assumptions that RYAN stipulates in his budget, for instance, that revenue levels would be 19 percent of GDP. That is almost certainly not true. His plan would not balance the budget until 2040.

Independent experts, such as the nonpartisan Tax Policy Center, challenged these assumptions. Under more realistic assumptions, RYAN's plan would take far longer to balance the budget and cause the Federal debt to rise even further.

Moreover, RYAN's spending cuts are totally unrealistic. Outside of Medicare and Medicaid, Mr. RYAN would slash the government, including defense, to 3.75 percent of GDP by 2050. Defense alone is 4.6 percent today. According to CBO the total has never been below 8 percent since World War II and defense has never been below 3 percent. Mr. RYAN would either have to make massive defense cuts—the very same defense cuts he decried on the campaign trail yesterday—or he would need to virtually eliminate the rest of the government, such as transportation, security, education, FBI, scientific research, and food testing. We know that is not going to happen.

The larger point is this: In terms of deficit reduction, the Ryan plan is—there is no other way to state it—a fraud.

This should come as no surprise. After all, Congressman RYAN supported the Bush policies that got us into this deep fiscal hole in the first place. From the Bush tax cuts to two unfunded wars to the unpaid-for creation of Medicare Part D, Congressman RYAN's fingerprints are all over the big-spending

Bush policies that turned Bill Clinton's surpluses into the record deficits inherited by Barack Obama.

RYAN voted against the Simpson-Bowles framework. When PAUL RYAN had a chance to walk the walk on deficit reduction, he joined all the other House Republicans on the Commission in voting down the report. He urged Speaker BOEHNER to abandon the grand bargain talks with President Obama.

The New York Times reported that during the summer of 2011, RYAN appealed to Representative CANTOR to cut off negotiations between the Speaker and the White House because he didn't feel the terms of the emerging agreement adhered strictly enough to his conservative principles and the deal might politically benefit President Obama.

It is not a secret the Ryan budget both hurts the middle class and does nothing for deficit reduction. The only people who would benefit are the very wealthy and, God bless them, they are doing well in America, but as recent statistics just showed, they are the only people gaining in income.

One other thing I wish to add about Mr. RYAN, he seems like a nice man, a nice family, but his recent speeches have been so revealing. He did the same thing yesterday, once again showing he has learned nothing from the mistakes he has made in the last few weeks. When it comes to the big debates facing our country, PAUL RYAN either has an extremely poor memory or he has a tendency to play fast and loose with the facts. In one speech, Congressman RYAN falsely blamed President Obama for shuttering the GM plant that actually announced it was closing during President Bush's term; for $716 million in Medicare savings that Congressman RYAN included in his own budget; and, third, for the Simpson-Bowles blueprint that Congressman RYAN himself voted against. That is just a sampling.

Just yesterday he did it again. There you go again, PAUL RYAN. He was giving a speech back in Wisconsin when he blamed the President—solely the President—for the year-end trigger, the sequestration, that was part of the Budget Control Act. Never mind that Congressman RYAN voted for the very same sequestration himself. Never mind it was his side's idea, in fact, to hold our credit rating hostage in the first place and insist on these dollar-for-dollar cuts he now decries. Never mind the fact that we all know that if PAUL RYAN had opposed the sequestration proposal—the chairman of the Budget Committee in the House—it certainly would have failed. Now he goes to Wisconsin and said the President is to blame for sequestration. It is the same thing he did with Simpson-Bowles. It is not fair. It is not right. All we can do is shake our heads at this ''what is good for me is not good for you'' kind of double standard.

I would say to PAUL RYAN: You haven't learned much from your mistakes in the past few weeks. There you go again. Your budget proves it, and even your speeches, including the one yesterday, prove it again.

I yield the floor and note the absence of a quorum.

The PRESIDING OFFICER (Mrs. HAGAN). The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mrs. MURRAY. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mrs. MURRAY. Madam President, I ask unanimous consent to speak as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

VAWA REAUTHORIZATION

Mrs. MURRAY. Madam President, today marks 18 years to the day since President Clinton signed the Violence Against Women Act into law. Since that day, this law has protected countless women across the country, as seen most directly by the fact that annual rates of domestic violence have dropped by more than 60 percent.

Today also marks a far less celebratory day in the history of this critical bill. That is because today is also the 139th day of delay by the House of Representatives since the Senate passed an inclusive, bipartisan VAWA bill by a vote of 68 to 31. It marks 139 days since House Republicans decided not to follow suit and to instead pass a version of our legislation that stripped vital protections included in our Senate bill—provisions that protect some of the most at-risk women in our country.

It has now been 139 days since 15 Senate Republicans stood to join with us to pass this legislation because they knew the history of this bill. They knew that every time the Violence Against Women Act has been reauthorized, it has consistently included bipartisan provisions to expand protections to women who were not previously covered. They understand that domestic violence protections for all women shouldn't be a Democratic or a Republican issue.

I hope Speaker BOEHNER and our colleagues in the House hear this: We are not backing down and we will keep fighting because 139 days is inexcusable. In fact, 1 day is inexcusable. It is now long past time for Speaker BOEHNER to look beyond ideology and partisan politics. Their obstruction clearly is taking a toll on women across this country.

In fact, for Native and immigrant women and LGBT individuals, every moment our inclusive legislation to reauthorize VAWA is delayed is another moment they are left without the resources and protection they deserve. The numbers are staggering. One in three—one in three—Native women will be raped in their lifetime, two in five are victims of domestic violence, and Native women are killed at 10 times the rate of the national average.

These shocking statistics aren't isolated to one group of women; 25 to 35 percent of women in the LGBT community experience domestic violence in their relationship, and three in four abused immigrant women never entered the process to obtain legal status even though they were eligible because their abuser husbands never filed the paperwork.

While these numbers are frightening, what is even tougher is when we sit down face to face with women who are at risk of being left out of this bill. Over this last August recess I held a number of roundtables in different corners of my State with women who had been trapped in abusive relationships. Many of them are from the communities of the women whom the House Republicans refuse to extend these provisions to. Through painful memories and many tears, they told me about how they feel all alone. Numerous women who are immigrants talked about how they were scared for themselves or their children, so they didn't report their husbands or boyfriends. Tribal women talked about how not only have they been abused but how they then had to watch their abuser do the same thing to other women on their reservation with no recourse.

Every moment the House of Representatives continues to delay is another moment these women and 30 million women similar to them are left without the protections they deserve.

These statistics should make it perfectly clear to our colleagues in the other Chamber that their current inaction has a real impact on the lives of women across America who are affected by violence. Where a person lives, their immigration status, whom they love should not determine whether the perpetrators of domestic violence are brought to justice.

These women cannot afford any further delay—not on this bill. We all know what it will take to move this bill forward: leadership from Speaker BOEHNER. Today, the effort we started in the Senate in May—an effort that will continue for as long as it takes—is a call for the very same thing: leadership. It is time for Speaker BOEHNER to look beyond ideology and partisan politics. It is time for him to look at the history of a bill that again and again has been supported and expanded by both Republicans and Democrats.

For 18 years this bill has expanded protection for vulnerable women. For the last 139 days, Speaker BOEHNER and House Republicans have put this legacy at risk. It is time for them to do the right thing and pass the Senate's inclusive bipartisan Violence Against Women Act.

Senator LEAHY, who is chair of the Judiciary Committee, will be here shortly. He has put tremendous effort into making sure this bill is passed in a way that includes women across this country. We owe him a debt of gratitude, as well as all the members of the Judiciary Committee, some of whom will be here over the next hour to talk.

Again, we are here to remind everyone there are women in this country who do not receive the protections of the domestic violence law that was passed. We are here to make sure we are going to stand for them and keep pushing until Speaker BOEHNER takes up this bill and passes it to protect women.

I see Senator LEAHY arriving on the floor just as I was speaking about him. He will be speaking about this issue. We owe him a debt of gratitude for standing for women across this country but especially for, this time, fighting to make sure this is an inclusive bill, passed on a bipartisan vote out of the Senate, and one that will change the lives of so many women. We owe it to them and Speaker BOEHNER owes it to them to take up this bill and pass it.

Thank you. I yield the floor.

The PRESIDING OFFICER. The Senator from Vermont.

Mr. LEAHY. Madam President, I thank the distinguished Senator for her kind comments. She knows that this, whether in Washington State or the State of Vermont, is a major issue. She has voted for and supported the Leahy-Crapo bill, as has the distinguished Presiding Officer. I have said so many times on this floor that violence is violence is violence and abuse is abuse is abuse, and this should not be a partisan issue.

Two weeks ago, in Tampa, Republican leaders from Congress and around the country sought to make clear their commitment to advancing causes important to women. Well, I will say as a Democrat I was pleased to see that commitment from the Republican Party. But now I hope they will put those words into action and prove that this was not just campaign rhetoric. While they have not asked me for advice, I would give some advice to my Republican friends. If they do want to show their commitment to women, one significant step Republicans should take would be to help us reauthorize the Violence Against Women Act.

It was signed into law 18 years ago today—18 years ago today. I remember that day. I was there. As one of those who helped draft it, I was so proud to see it signed into law.

This landmark bill, which fundamentally changed the way our country responds to domestic and sexual violence, expired, though, 1 year ago this month. There is no good reason why we cannot all work together to see that this lifesaving law is reauthorized immediately. It should not be a Republican or Democratic issue. It is an American issue. How can people say they are not opposed to violence against women?

Just yesterday, the Republican attorney general from Utah and the Democratic attorney general from Maryland—people who have completely different philosophies—called on Congress to pass the Senate bill, which covers all victims, including immigrant women. In their guest column in Politico, the two noted that the bipartisan Senate bill would give ''a significant boost for law enforcement and public safety.'' At the same time, they said the politically charged House bill ''seeks to turn a bipartisan concern for abuse survivors into a partisan wedge'' and ''dramatically roll[s] back important protections for battered immigrant women and their children.''

Madam President, I ask unanimous consent that the Politico column, along with a statement released today by Attorney General Holder on the 18th anniversary of the Violence Against Women Act, be printed in the RECORD at the end of my comments.

The PRESIDING OFFICER. Without objection, it is so ordered.

(See exhibit 1.)

Mr. LEAHY. You hear these continued calls for action. We know the Leahy-Crapo reauthorization bill passed the Senate with a strong bipartisan majority of 68 votes. Every woman in the Senate—Republican and Democrat alike—voted for it. But Republican leaders in both the House and the Senate have hidden behind a procedural technicality. They refuse to allow the House to vote on the Senate bill.

Well, that obstruction has to end. Too many lives are on the line to play these political games. Here in the Senate, we have twice asked Republican leaders to agree to take up a House revenue bill, substitute the bipartisan Senate VAWA bill, and send it to the House immediately to overcome this procedural concern. Each time they have refused this commonsense resolution. This contrasts how we moved forward earlier this year using the same process to overcome similar technical hurdles with both the Transportation bill and the FAA reauthorization legislation. So with a little bit of cooperation from the other side we could move VAWA now.

People watching this and listening to this might think: Well, these are technical and arcane procedures. They are technical and arcane procedures. But they are stopping us from moving forward with the Violence Against Women Act. We can set them aside for Transportation and the FAA—both important things—but if you are somebody who has been battered and abused, if you are near death, do not talk to that person about technicalities.

I have said many times on this floor—I still have nightmares from some of the crime scenes I went to as a young prosecutor. It was always at 2 and 3 and 4 o'clock in the morning. The ones easiest to handle were those where the victim lived, although sometimes just barely. I remember riding in the ambulance with a victim on the way to the emergency room to find out what happened. Many other times we were there waiting for the coroner to arrive because the body was on the floor.

I wish everybody who is hiding behind these technicalities would come with those of us from both parties, those of us who have been prosecutors, who have gone to those crime scenes. I guarantee you, they would be back here saying: Get rid of those technicalities.

I cannot understand the House Republican leadership hiding behind this excuse to avoid debating and voting on the bipartisan Senate bill. This is a good bill. It brought Republicans and Democrats together in this body across the political spectrum. The House Republican leadership should stop blocking it on this obscure technicality. The Speaker can waive the technicality. The House could vote on the Senate bill any time.

I would like to see people stand up and say: Yes, I want to stop violence against women or I am going to vote ''no.'' Right now they are allowed to vote ''maybe.'' No victim wants to hear ''maybe.'' They want us to do something. Both in the House and the Senate, we have a privileged position as Members. Do not hide behind a technicality. Have the courage—have the courage—to stand up and vote ''yes'' or ''no.''

The House Republicans could have allowed a vote on the text of the Senate bill as a House amendment or a House bill. Instead, they are choosing to hold up VAWA reauthorization for all victims. Please reconsider. Move forward with us to protect all victims of violence. And if you are unwilling to do that, if you are going to stand behind this, do not go home and campaign and say you have a commitment to women.

Battered women are in all categories. They go across all political spectrums. They go across all economic spectrums. Do not go back home and say: I am standing up for you. No, you are not standing up. You are hiding. You are hiding. You are hiding behind a technicality. Well, these victims cannot hide. They are sought out, and they become victims. Let's do something for them.

Our bill was developed with the input of victims and the service providers who work with them day in and day out. It helps women who are victims of terrible crimes—the very people we claim we want to support and protect. It does so in important and responsible ways. Do not go home and say: I stand up for all of you; do not go home and say: I am standing for law enforcement; do not go home and say: I want people protected when you refuse to step around a procedural motion and protect them. Do not be that hypocritical.

We have only a few precious days left this Congress to reauthorize the Violence Against Women Act. If the Republican leadership wants to help end domestic and sexual violence, well then, do so. Now is the time to act. Do not hide behind fiction. Have the courage to stand up and say you are on the side of victims. And if you are not on their side, then stand up and vote against them. Do not vote ''maybe.'' Do not hide behind a technicality. It is time to make good on our promise to

the victims of these horrible crimes. Helping them—no matter who they are—has to be our goal. Their lives depend upon it. Our lives do not depend upon it, but their lives depend upon it. They are counting on us. It is time to stand up.

I yield the floor.

EXHIBIT 1

[From Politico, Sept. 11, 2012]

WEAKENING VIOLENCE AGAINST WOMEN ACT BETRAYS IMMIGRANT VICTIMS

(By Mark Shurtleff and Doug Gansler)

All women who have lived through violence and abuse should have the certainty that the law will protect them—no matter their race, creed, color, religion or immigration status. Unfortunately, Congress is now considering proposals that would erode this certainty—and its failure to act is already causing harm.

We urge congressional leaders to move forward now to reauthorize the Violence Against Women Act, without provisions harmful to immigrants.

As long-time law enforcement leaders, we know this act is crucial. Since passage in 1994, it has helped cut domestic violence by more than half. Still, the scourge of domestic violence remains a serious problem: One in four women experiences an act of domestic violence or sexual assault in her lifetime, and three women die every day at the hands of abusive husbands or partners.

Rates of trafficking women—often from one abusive context to another—are also alarmingly high. Roughly 100,000 survivors of human trafficking live in the United States today, according to the State Department, whose estimates suggest as many as 17,500 foreign-born victims are illegally brought in each year.

We need every available tool to fight these serious crimes, so we fully support reauthorization of the Violence Against Women Act—but not in a dangerously altered form that would harm vulnerable immigrant women.

We don't use ''dangerously'' lightly. When the House sought reauthorization, legislators made changes that dramatically roll back important protections for battered immigrant women and their children—leaving them vulnerable to abuse and, worse, death at the hands of an abuser.

Several House provisions would further endanger immigrant survivors of human trafficking and domestic abuse. These provisions would leave them no legal way to break the cycle of violence in which they are trapped and leave law enforcement no way to bring perpetrators to justice. The changes, for example, would discourage immigrant survivors from calling the police, for fear of immigration issues—so police can't intervene and save their lives.

For many of these women, immigration status is one more weapon that abusers use to intimidate them. Abusers often threaten, ''You can't call the police. They'll just deport you.''

Under the existing law, our response is clear: ''He's wrong. You're safe.'' If we certify that a victim was helpful to law enforcement during an investigation, she can seek special legal immigration status—known as a U visa.

But the House bill would make this visa temporary and take away an immigrant survivor's incentive to come forward. ''He's wrong; you're safe'' would be replaced with the far less reassuring message ''You'll have to wait and see.''

What kind of person does the U visa help? Consider ''Stephanie,'' an immigrant living in Maryland who lacked work authorization. She had already been sexually harassed by work supervisors when a stranger followed her into a room in the building where she was working and tried to rape her. Stephanie was able to fight him off and immediately reported the incident to police, who found the man nearby and arrested him.

After reporting the terrible crime, Stephanie learned she would be eligible for a U visa for her cooperation with police and the state's attorney. Her assistance helped get a rapist off the streets. Today, Stephanie has her U visa and is confident and self-supporting.

The House bill would silence thousands of women like Stephanie and derail our efforts to put their attackers behind bars. Worse, it would further endanger some of the very women whom the Violence Against Women Act is meant to help.

In late August, we received a reminder of reauthorization's urgency. Our immigration authorities announced that they had reached the limit of 10,000 U visas for the current fiscal year, leaving a six-week gap before the new fiscal year brings a fresh allotment. In the meantime, lives are at risk.

The Senate's bipartisan reauthorization bill would increase that visa limit to 15,000, a significant boost for law enforcement and public safety.

The law enforcement community now has 17 years of experience with the Violence Against Women Act and has used it successfully to combat human trafficking, sexual assault and domestic violence. We have relied on it to protect survivors of all stripes and hold their abusers accountable.

These abusers don't differentiate by race, creed, color, religion or immigration status. In seeking justice for survivors, neither should we.

The House version of the Violence Against Women Act reauthorization seeks to turn a bipartisan concern for abuse survivors into a partisan wedge. Congress must not let partisanship stand in the way of our work to protect all women, and their families, from harm.

DEPARTMENT OF JUSTICE

Office of Public Affairs

[For Immediate Release—Thursday, September 13, 2012]

STATEMENT FROM ATTORNEY GENERAL ERIC HOLDER ON THE 18TH ANNIVERSARY OF THE VIOLENCE AGAINST WOMEN ACT

Attorney General Eric Holder released the following statement today on the 18th anniversary of the Violence Against Women Act:

''Since the landmark Violence Against Women Act (VAWA) became law 18 years ago today, VAWA has vastly improved our ability to address domestic violence, dating violence, sexual assault, and stalking and has helped countless victims of these crimes get access to needed services. It's important to remember that none of this progress has been inevitable—it has been the result of the tireless work of advocates, law enforcement, prosecutors, and others. On the front lines of this effort, the Office on Violence Against Women administers VAWA programs, providing states, territories, local and tribal governments, and nonprofit organizations with critical resources to initiate and sustain efforts to reduce and stop violence against women. As Congress moves to consider reauthorizing this critical law, we urge lawmakers to come together on a bipartisan basis, as it has historically, to pass a VAWA reauthorization that expands rather than limits victim access to justice and strengthens law enforcement and prosecutorial tools to seek justice and hold violators accountable. VAWA has been strengthened each time it has been reauthorized, with bipartisan support, and this year after 18 years of progress, it should be no different.''

Mr. LEAHY. I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mrs. BOXER. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mrs. BOXER. Madam President, before Senator LEAHY leaves the floor, I want to thank him from the bottom of my heart. What he has shown is that he can team up in a bipartisan way to help the women of this country avoid needless, senseless, dangerous violence. I thank the Senator, and I stand here to support his efforts.

The Leahy-Crapo bill is the bill we need to pass. Why? Because it is the bill that includes everyone. We do not want to leave out 30 million people. We do not want to leave 30 million people out of the Violence Against Women Act. That is what the House of Representatives does because they leave out immigrant people, they leave out the gay and lesbian community, they leave out students and Native Americans.

When you look at those women and those groups, you find out, indeed, they have a very high percentage of violence in their communities—violence against women that leaves women in deep trouble and threatens their lives. So only the Leahy-Crapo bill—only the Senate bill—which passed here with such a great number of votes can include everyone.

So if you take, for example, Cristina, in my home State of California, whose boss threatened her with deportation unless she complied with his demands for sex, she is not covered in the House bill. This is a woman who is essentially being held hostage by her boss. He is using his power over her, and she is not covered by the House bill.

The House bill, again, fails to protect LGBT individuals when they have problems with abusive partners and have been turned away in the past from shelters because the Violence Against Women Act did not cover the LGBT community.

Mika is a student who struggled to get her college to enforce a restraining order against her boyfriend after he had assaulted her and stalked her. She should not have had to struggle. Under the Leahy-Crapo Senate Violence Against Women Act, Mika will be covered.

Then-Senator JOE BIDEN, now Vice President BIDEN, wrote the Violence Against Women Act. It was a long time ago. I was in the House, and I was so honored when JOE BIDEN came and asked me to carry the House version of the bill. I did that, and I remember being so proud because Joe was such a leader on this and he had the faith in me to ask me to help him.

But I can tell you, it was a struggle to get it done. It took several years to get it done. And when I got to the Senate, I watched JOE BIDEN team up with Senator HATCH, and I helped them on the floor. I was only able to get a portion of the bill passed in the House, so there was a lot more we needed to do, and we did it.

I want to read a statement that Vice President BIDEN made today—he just sent it out—because it speaks to this issue. He said:

Eighteen years ago today, the landmark Violence Against Women Act was signed into law. It was founded on the basic premise that every woman deserves to be safe from violence, and since its passage, we have made tremendous strides towards achieving that goal. We gave law enforcement and the courts more tools to combat domestic violence and hold offenders accountable. We created a national hotline to direct victims to life-saving assistance. And since VAWA passed, annual rates of domestic violence have dropped by more than 60 percent.

It is important to reflect on what Vice President BIDEN is saying. Because of the Violence Against Women Act, we have seen a drop in the annual rate of domestic violence by more than 60 percent. And now we are here to say: Let's make it even better by including 30 million people who were left out of the bill.

Quoting the Vice President, he says:

But we still have much work to do. Three women still die every day as a result of domestic violence. One in five women have been raped, many as teenagers, and one in six women have been victims of stalking.

He writes:

While women and girls face these devastating realities every day, reauthorization of the strengthened VAWA languishes in Congress. VAWA is just as important today as when it first became law, and I urge Congress to keep the promise me made to our daughters and our granddaughters on that day—that we would work together to keep them safe.

In closing, because I see Senator COONS is here—we are so happy he is here to talk on this issue, I feel it is important to note that over 900 groups nationwide have signed a letter in support of the bill that includes these 30 million people—that includes everyone. We know this law is working. On today, the 18th anniversary of the VAWA being signed into law by Bill Clinton, let's pass this legislation and send it to President Obama, legislation that strengthens the law, is bipartisan like the Leahy-Crapo bill, and includes everyone.

I yield the floor.

The PRESIDING OFFICER. The Senator from Delaware.

Mr. COONS. Madam President, I rise today in honor of the 18th anniversary of the signing of the Violence Against Women Act into law. As my good friend and colleague the Senator from California has just reminded all of us, it was my home State Senator, now our Vice President, JOE BIDEN, whose leadership in getting the Violence Against Women Act signed into law in the first place, moved us in this country toward a society that is more just, that is more safe, that is more welcoming.

It is, in my view, incredibly discouraging that we are fighting today in the Congress a battle that he made such great early progress on and that should have been won decades ago. Why must we fight in 2012 such a protracted legislative battle to maintain, strengthen, and secure the rights of more than half of the population of this country and to extend the lifesaving programs supported by VAWA to those who need them of every background all across our country?

It cannot be that it is because those who oppose VAWA's reauthorization believe that violence against women is no longer a threat. In my own home county, New Castle County, DE, earlier this year a man was arrested after a horrifying assault on his ex-girlfriend, committed in front of all five of her children. The victim's teenage son called 9–1–1 in a panic, terrified. This incident, one of sadly many in my home community, is just another stark example of how domestic violence continues to hurt and harm not just its victims but entire families, not just the woman or occasionally men who are the victims of domestic violence but the children who witness it and whose lives are changed by it.

In a world where this sort of violence continues to happen in all our communities, we still need the Violence Against Women Act. We need it to be reauthorized. We need it to be reauthorized and strengthened. We need it to be reauthorized, strengthened, and broadened. It has been a full year since VAWA expired, and still we do not have a reauthorization signed into law. Reauthorization is a real opportunity, one built into the initial act, that requires us as a body, the House and Senate together, to sit down and sift through the data and to examine how these programs can be better, stronger, more efficient, and more effective. Every 5 years we have to take a hard look at where we are failing and where we are succeeding in this important work against domestic violence, the scourge that lives in the dark throughout our community.

Here in the Senate we have done that work. The House, sadly, has not. In my view, we must not let them be a roadblock to the critical progress we have been called upon to make. This is our time to make the necessary changes to improve VAWA and to reauthorize it, and we will not back down.

In this year's reauthorization we made a number of critical changes, positive changes, and two that are particularly important to me: First, ensuring that every victim of abuse in this country is able to count on the law to protect them, regardless of who they are, where they live, or whom they love; and, second, ensuring that we reduce bureaucracy and strengthen accountability, to ensure that taxpayer dollars authorized through VAWA are spent wisely, responsibly, and effectively.

The Senate reauthorization moves us forward by adding protections for victims of domestic violence regardless of their sexual orientation. The reality is, as we learned in reexamining VAWA and the experiences of the last 5 years, sadly the reality is that lesbian, gay, bisexual, and transgender Americans experience domestic violence at the same percentage as relationships in the general population, a shocking 25 to 30 percent of all relationships. Yet nearly half of LBGTQ victims are turned away from domestic violence shelters and one-quarter are unjustly arrested as if they were the perpetrators.

The Senate reauthorization makes plain that discrimination is not the policy of these United States. It says no program funded by Federal VAWA dollars can turn away a domestic violence victim because of their sexual orientation or their gender identity, whether the victim is gay or straight, American Indian, White, Black, or Latino. In my view, and the view of so many in this Chamber, they deserve protection from abuse and justice for their abusers.

There are two other important changes in this VAWA reauthorization as passed through the Senate, both of which help ensure we bring perpetrators to justice no matter who their victims are or where their crimes are committed. These provisions support victims of crime committed on tribal lands and help law enforcement to secure needed testimony from victims who are unwilling to come forward due to reasonable fear of deportation.

So in total I think all three of these important changes to the substance and scope of VAWA strengthen it, carry forward its initial spirit, and are completely appropriate things for this Senate and the House to do in our every 5-year reconsideration and reauthorization of VAWA.

It is important to remember that VAWA goes beyond basic justice for our fellow citizens. It supports the investigation and prosecution of violent crime. Delaying this reauthorization means denying essential tools to law enforcement officers in my home State of Delaware and the Presiding Officer's home State of North Carolina and all across our country.

As someone who used to be directly responsible for a county police department, who worked in close partnership with all of the different elements, all the different nonprofit groups and civic and community groups, all of the elements from corrections to law enforcement to advocates to providers of services that were brought together in a positive and cohesive way by VAWA, I know how important this is to a holistic approach to combating domestic violence.

If we are to tackle a problem this large, this pervasive, this dangerous, we need well-trained and dedicated law

enforcement officers. We also need support from the whole community to provide the whole broad range of services that can continue to make progress in pressing back on this evil in our country.

In Delaware, that is exactly want we have done. In Delaware, VAWA has fostered a community of those dedicated to reducing violence, allowing each group to reinforce the other, and adding value that individual programs alone could not create. VAWA touches on everything from transitional housing to national hotlines, from the safe exchange of children to increased awareness on college campuses, from law enforcement grants in rural communities to sexual assault service programs in urban communities—not only for women, for men, for children but for whole families and whole communities.

VAWA is an important piece of legislation, and that it sits unauthorized in the other Chamber of this Congress is, to me, a great shame and a great tragedy. We must not allow this anniversary of its initial signing into law to pass without redoubling our efforts and redoubling our commitment.

My colleagues who oppose this reauthorization put all of this progress at risk. Their insistence on excluding some of our friends and neighbors just because of their background or their sexual orientation is unconscionable. We will keep fighting to secure VAWA reauthorization this year because the safety of our communities depends upon it and simple justice calls for it.

I yield the floor, and I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Ms. KLOBUCHAR. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Ms. KLOBUCHAR. Madam President, I am here today to talk about the Violence Against Women Reauthorization Act which, as you know, we passed in April with the leadership of Senator LEAHY and with the cosponsorship of Senator CRAPO. We got that strong bipartisan bill through the Senate on a 68-to-31 vote.

As you know, all women Senators, Democrats and Republicans, supported that bill, just like the two prior reauthorizations from 2000 and 2006. This bill improves the current law in many ways to better address domestic violence, sexual assault, and stalking. We have heard from a long list of experts in our Judiciary Committee about the changes that were needed for this reauthorization, and we incorporated those ideas and language from people on the front line.

As a result, this bill, this bipartisan reauthorization bill, is strongly supported by law enforcement, victim service providers, and faith groups across the country. I want to talk about some of the ways that this reauthorization bill builds upon the improvement that past reauthorizations made, but first I think it is important to mention the bipartisan bill does not ignore the current budget climate. It consolidates 13 programs in only 4. So when I hear about the old bill, to keep it going, this bill is actually better from an efficiency standpoint. It consolidates 13 programs into 4 in an effort to reduce duplication and bureaucratic redtape. It also cuts the authorization level for VAWA by more than $135 million a year. That is a 17-percent decrease from the 2006 reauthorization. So this was a clear acknowledgement that our country is going to have to make some changes in our fiscal situation as we go into this next year. That was one of the reasons this new bill, this reauthorization, was so important.

We are doing more with less. No existing grant program receives an increase in authorization levels in this bill, and the legislation creates only one new program, at $5 million a year. That new program will support travel efforts to combat domestic violence on reservations.

In terms of policy, one of the biggest changes in this year's violence against women reauthorization is a greater focus on preventing and responding to sexual assault. We still have a lot of work to do in reducing sexual assault in America where nearly one in five women has been raped at some point in their lives, and over 42 percent were raped before the age of 18.

As a former prosecutor, I am all too aware of the fact that prosecution and conviction rates for sexual assault are among the lowest for any violent crime. So in an effort to solve that problem, this year's reauthorization opens funding to programs that are more directly responsive to the needs of sexual assault survivors.

I woke up this morning and read my town newspaper in the Twin Cities and saw that a 30-year-old rape-murder case was solved—30 years old. You think of the new technology that is available. It was solved because they kept the DNA from the scene. They were able to match it to someone in another State who had been imprisoned. They were able to charge that case. Think of the justice for those family members and also for the rest of the country where, hopefully, this conviction will be made. They will be able to make sure that person is behind bars forever.

Those are the kinds of things that happen in this day with the new technology, but unless we have people trained to use that technology, unless we have people who are able to work with victims, unless we have victims who feel comfortable coming forward when they are sexually assaulted or a victim of domestic assault, none of it means anything to this system. That is why the VAWA bill is so important.

Another area of improvement in this bill is the effort to more effectively provide services to victims from traditionally underserved communities. This bill adds new definitions that will help make sure VAWA-funded programs provide a variety of services that address the needs of racial and ethnic minorities.

As Chairman LEAHY's committee report points out, studies indicated that women of color are reluctant to turn to traditional domestic violence programs, and culturally specific programming may be more effective in meeting their needs. Our recent National Institute of Justice study found that women of color may be less likely to receive all the services they need.

Domestic violence and sexual assault are problems that affect everyone in this country, and this new bill, this reauthorization bill, recognizes that fact. The Senate version of the VAWA reauthorization also includes a number of improvements that specifically address the needs of women living in tribal areas. It is a sad reality that Native American women experience rates of domestic violence and sexual assault that are significantly higher than the national average. So the VAWA reauthorization strengthens existing efforts to confront the ongoing epidemic of violence on tribal lands by expanding the tools available to Federal law enforcement.

The Judiciary Committee worked closely with the Indian Affairs Committee to craft the most effective responses to the frighteningly high levels of domestic violence and sexual assault in tribal areas. One important provision gives tribal courts jurisdiction over a non-Native American who has committed acts of domestic violence against Native American women in a small subset of cases that meet three specific criteria: No. 1, the crime must have occurred on a reservation; No. 2, the crime must be domestic violence; and No. 3, the defendant must live on a reservation. Why did we do this? Because we know a lot of these cases weren't being reported. These cases weren't being prosecuted. It is very difficult sometimes for State and Federal authorities, with their limited resources, to come in and handle these cases. It was simply a pragmatic response to a legal issue, and it is something which, as I said, in the Senate got broad bipartisan support. We have a significant Native American population in my State, so this change and several others will be very helpful in cracking down on these crimes.

Finally, I will briefly mention one part of this reauthorization on which I worked hard. And I see Senator HUTCHISON of Texas in the Chamber, and it is good to see her because I am going to be talking about the amendment she and I worked on together, and that is an updating of our stalking laws.

Current law focuses on what the victim knows and requires prosecutors to show that the victim experienced a certain level of fear in order to secure a

conviction. But sometimes the victims of stalkers, particularly high-tech stalkers—stalkers who are putting camera equipment and little peepholes in hotel rooms, stalkers who are using the Internet—aren't even aware of what the stalker is doing until later, until suddenly they see a picture of themselves undressing or a picture of themselves without clothes on the Internet being distributed across the entire country, across the entire world, which is a real case that happened in this country with a sports reporter.

Those are the kinds of things we are now seeing. So while they are experiencing it, they do not have that level of fear because it happens later. What we have done—Senator HUTCHISON and I and others—is to update the stalking law she was involved in before I even came to the Senate. We have updated that law to make it as sophisticated as the people who are committing these crimes.

This is just a sampling of some of the important changes in this reauthorization bill. It is basically about making the Violence Against Women Act, which has been so important to our country and to women in this country, making it more efficient and updating it for where the real needs are. Things change over time. We learn new law enforcement techniques, and we have to be able to put those into action. That is what this is about.

For me, this is about Officer Shawn Schneider, an officer in Lake City, MN, who got called to a scene to respond to a domestic violence crime. He went up to the front door, the door opened, and there was a 17-year-old victim with a clearly agitated, mentally ill perpetrator, her boyfriend, who ends up shooting Officer Schneider. He died a few days later, leaving behind a widow and three little kids, and his funeral was right around the holidays. The last time his family had been in church was for the church pageant for Christmas. The next time his family walked down the aisle of that church was for his funeral—the funeral of a little girl's father. She was wearing a blue dress covered in stars. That is what I remember—a little girl walking down the aisle of that church at her father's funeral.

When I see that kind of thing, I know one thing: Domestic violence just doesn't have one victim; domestic violence makes an entire family a victim, an entire community and an entire nation. And when that officer was called to that scene, he didn't ask: Oh, is the victim an American Indian? Is the victim gay? Is the victim a woman or a man? He did his job. He showed up at the scene. Now it is time for us to do our job. The House of Representatives should pass this bill, and we should get this done.

I thank the Presiding Officer, and I yield the floor.

The PRESIDING OFFICER. The Senator from Texas.

Mrs. HUTCHISON. Madam President, I am pleased to follow the Senator from Minnesota because we did work on a piece of legislation, which she perfected. It was my bill that first passed on stalking that would take the antistalking laws nationwide because so often it happens across State lines, and so we had to put it all together so that if someone did cross State lines to stalk a woman or her children or a man or anyone, that would be prosecutable.

I was so pleased Senator KLOBUCHAR then came with a bill which I was proud to cosponsor which updated the technology criminals now use to harass, scare and really make life miserable for people they know. I had a stalker myself for about 12 years. I didn't know him, but he certainly did make my life different, that is for sure. And sometimes it is worse than what I experienced because there are actual threats.

I will never forget the time I got a call from an attorney in the U.S. Attorney's Office in Austin, TX, and he said: I just wanted you to know we got our first conviction under your antistalking law. It was a man who was harassing his ex-wife and his children, threatening them with a gun, and we were able to put him away and make that family a lot safer. I thought, you know, we live to actually know something we have done makes a difference. So I thank the Senator from Minnesota for carrying that forward.

HONORING OUR FOREIGN SERVANTS

I rise today, Madam President, to talk about Neil Armstrong and about NASA, but I can't stand here today with what is going on in the Middle East and not say that I join the thousands and maybe millions of others who mourn the loss of a U.S. Ambassador who was killed in Libya. You know, I would mourn any U.S. Ambassador who is killed in the line of duty, but it makes it even harder when we know this one was doing such a great job. Christopher Stevens had dedicated his life really trying to make peace and trying to be a force for the positive in the Middle East. He was our Ambassador to Libya.

I am sad to say it appears this was a plot. It was not an accident. It wasn't something that happened because he happened to be in the consulate. It apparently was a premeditated murder of our Ambassador. And I know the whole country mourns the loss of someone who tried so hard to do what is right and to then have this happen. So I want to pay my respects to him and to all who knew and worked with him.

In the travels I have been fortunate to make as a U.S. Senator, I am always so impressed with the representatives of the United States in our embassies and consulates throughout the world. Our Foreign Service representatives do a fabulous job. They take their lives and put them in danger sometimes, especially in countries that are strife-torn, as certainly Libya is right now and Egypt as well. So my great respect goes out to our Foreign Service community, and I think we have just been reminded of the service they give and the sacrifices they make.

HONORING NEIL ARMSTRONG

Madam President, I wish to speak today about the life of a gentle giant, Neil Armstrong, and also about the future of NASA. This all came together this week because I have just returned from the National Cathedral, where I joined congressional colleagues, Senators, and many others in paying our final respects to a man who unquestionably was a true American hero. Of course, we know Neil Armstrong made world history when he stepped out on the Moon's surface for the first time an American had done so and he uttered those words that will be forever enshrined in American consciousness.

They say that some seek fame and some have it thrust on them, but Neil Armstrong was the rare man who earned his fame and yet shied away from it at every turn. He preferred to live the life of, as he described it himself, ''a white-sock, pocket-protector, nerdy engineer.'' He chose to live a private life rather than bask in well-deserved glory. For that, he was more than a hero, he was a role model we would all be fortunate to follow. We have too few of those today. Neil Armstrong served his country in Korea, where he was a fighter pilot and was shot down. He certainly served at NASA, which we all know, and he served his community as a professor at the University of Cincinnati. He was a serious, dedicated scientist who loved what he did and just wanted to get the job done.

There is a story told about him of an incident that occurred during training before the Moon landing where his vehicle forced an ejection. His only injury was biting his own tongue, but it was a near-death incident nonetheless. It was a very lucky escape. Another astronaut saw Neil working at his desk and said he had heard about Neil being thrown out of his vehicle. Then he asked when it happened, and Neil said: About an hour ago. The astronaut—Alan Bean—later told Neil's biographer:

> I can't think of another person, let alone another astronaut, who would have just gone back to his office after ejecting a fraction of a second before getting killed.

I was lucky enough to know Neil Armstrong. We first met when he, *Apollo 13* commander Jim Lovell, and Gene Cernan expressed concern over the administration's proposal to abandon NASA's manned space exploration program. They wrote an open letter. And let me tell you, when the first and last men to set foot on the Moon had an issue with the direction of NASA, everybody listened. It was a rare occasion that these astronaut leaders would speak publicly on such an issue, and considering Neil's propensity to shy away from the spotlight, it had even more significance. But he thought it was important, and a great bipartisan number of our colleagues agreed it was important that he chose to speak out on this very important issue.

The plan proposed canceling the existing space exploration program and suspending plans to build a replacement for the space shuttle. It placed immediate reliance on commercial capabilities, which at the time were undeveloped and unproven. Neil was particularly concerned about leaning too heavily on commercial crew vehicles because he rightly believed NASA should have ultimate ownership and stewardship of the next phase of deep space exploration.

When I asked if that group would testify before the Senate Commerce Committee and give us the benefit of their immense experience, Neil Armstrong and Gene Cernan were able to do so. Their testimony in May of 2010 helped us craft the NASA Reauthorization Act of 2010, which we managed to pass with a balanced plan that prioritized NASA's development of future exploration beyond low Earth orbit, while putting significant resources into commercial development of crew vehicles to the space station. We passed it unanimously in the Senate, very bipartisan, and we passed it on Neil Armstrong's birthday—on August 5, 2010.

When the space shuttle was retired, some thought the space program was ended. You know, I took a group of Cub Scouts to Johnson Space Center in Houston just a few months ago. They have a great program for our Scouts—well, for any group who actually wants to go and spend the night at the visitor's center at Johnson Space Center. They get to tour NASA and hear about the great feats of our country in space. And one of the little boys said to our NASA administrator at Johnson: Gosh, I am really sorry the space program is ending. And I was shocked and the administrator was shocked, and we said: Oh, but it is not ending. The space program is not ending.

If we allow people to think, if we allow our young—possibly the next generation of astronauts and scientists—to think the program is ending, are they going to be inspired to take those courses in aeronautical engineering that will give them the background to propel them to the next level of space exploration that is going to do things maybe we haven't even thought of yet? We would eliminate the potential that manned space exploration can produce in the next decade.

We had a hearing in the Commerce Committee yesterday where we heard from NASA scientists about the Mars rover called *Curiosity*.

It was just breathtaking to hear the advancements that we have made with that rover that is now plodding around exploring the dirt and the rocks and the atmosphere on Mars.

One of the scientists pointed out that these NASA programs aren't just about exploration, they result in technologies that we use every day and that make our lives better right here on Earth. One pointed out that *Curiosity* is the first step in the next frontier of space, probing the atmosphere and geology of Mars. Each mission will build on the success of the last, and these robots and rovers that are going up now will be the precursors to the time when we put people—astronauts—on Mars.

There are myriads of practical results from NASA's programs, and there are many reasons to keep them alive and fully funded, but I think the astronauts—Neil Armstrong, Jim Lovell, and Gene Cernan put it best in their open letter:

> America's space accomplishments earned the respect and admiration of the world. Science probes were unlocking the secrets of the cosmos. Space technology was providing instantaneous worldwide communication; orbital sentinels were helping man understand the vagaries of nature. Above all else, the people around the world were inspired by the human exploration of space and the expanding of man's frontier. It suggested that what had been thought to be impossible was now within reach.

Gene Cernan was one of those who gave the eulogy today at Neil Armstrong's memorial service at the National Cathedral. He gave a personal account. They were very close friends. They went fishing together. They had a long-term and lasting mutual respect, admiration, and friendship.

America cannot lose its preeminence in space. We are the leaders of the free world, and we are the natural leaders beyond its atmosphere. This is not done in dominance or hegemony but to ensure that technology can be used for our economic benefit. The satellites we have discovered with the space exploration have transformed communications, and satellite-guided missiles have given us defense capabilities that hit the target with less collateral damage.

This is my last of 19 wonderful years in the United States Senate, during which I have championed and fought for NASA and our manned spacecraft and space flight programs. I have worked with so many dedicated colleagues on both sides of the aisle, and I am proud of what we have accomplished. I am asking that my colleagues do not let all of the hard work of the past be for nothing. We saved the manned exploration program, but there is so much more to be done. NASA must continue to be a priority.

I am a budget cutter. I will match anyone with the budget cutting that I think we need to do in this country. But the key for Congress is to remember what the Constitution says: The purse strings belong to Congress. So our responsibility is to set that cap on spending—set that cap at the lowest level we can and cover our functions that are necessary to run the government of this country.

The normal average spending of the Federal Government is about 20 percent of our gross domestic product. We are up to 24 percent in the last few years. We have to come back. We have to come back to 20. We may have to go to 18 in order to end at 20, but we must not refuse to set the priorities that will make sure we have a strong economy in the future. We must invest in the programs that will yield the benefits that will keep our economy going, our people working, and our engineers able to continue to produce the great things that have happened in our space program, in our medical research, and more.

This is so important to all of us. America's competitiveness depends on maintaining our dominance in science and technology. We cannot do it without NASA. Neil Armstrong left his mark on the American people and on generations around the globe. This is his enduring legacy. Ours must be to maintain the great organization—NASA—that made him a legend and helped make America the greatest Nation on Earth.

Madam President, I yield the floor.

The PRESIDING OFFICER (Mrs. MCCASKILL). The Senator from Rhode Island.

CLIMATE CHANGE

Mr. WHITEHOUSE. Madam President, I am here on the floor again today, as I try to be every week, to speak about the continuing effects of carbon pollution on our planet, on our climate, and on our oceans. We have been away for the August recess, so it has been a while since I have done that.

August has been somewhat eventful. We have had two party conventions, and we have had continued news about what is happening to our climate and to our world.

The National Oceanic and Atmospheric Administration reported that July was the hottest month ever in the contiguous United States in their 118 years of keeping records. According to NOAA's State of the Climate reports, nearly 63 percent of the country experienced moderate to exceptional drought in July and August. It is affecting all sorts of folks—farmers, obviously. Unexpectedly high spring temperatures, for instance, decimated the tart cherry production in northwest Michigan where 75 percent of the country's tart cherries are grown. Freezing weather, followed by a warmer than usual spring, destroyed the cherry buds, and more than 90 percent of that crop was lost. Grapes and peaches and apple harvests were also affected. Losses from this are estimated at $210 million, making this year the worst year on the books for Michigan fruit, just to give one example.

Electricity generation, of all things, was also affected. Over the weekend, a Washington Post article documented electricity-generating facilities are struggling to supply consistent levels of electric generation because of these drought conditions. Lake Mead, Hoover Dam's reservoir, fell 103 feet below its targeted capacity. Low water levels have hindered barge transport of coal up the Mississippi River. Eight coal-fired and nuclear power plants in Illinois needed special permission to discharge cooling water that exceeded their Federal clean water permit ceiling of 90 degrees.

NASA scientist James Hansen published a study last month concluding that the 2011 heat waves in Texas and in Oklahoma, as well as the heat wave at that time in Russia, were likely caused by climate change—by the carbon pollution that we are emitting—with the analysis that what the carbon pollution in our climate does is to load the climate dice in favor of more and more extreme storms and extreme conditions like these heat waves.

Last week, the University of Colorado's National Snow and Ice Data Center and NASA announced together that Arctic Sea ice has reached a record low of 1.58 million square miles—nearly 70,000 square miles smaller than the previous modern low. Of course, there are still weeks to go in the melting season, and so it will be a lower record than that.

In the past three decades the annual average temperatures have increased twice as much over the Arctic as over the rest of the world. The Arctic is really the leading edge for the climate changes that are occurring as a result of our carbon pollution. The average extent of the Arctic Sea ice has declined by 25 to 30 percent, and the rate of that decline is accelerating. Habitats are changing, extreme weather is increasing, species are moving, oceans are warming and rising, and Republicans and special interests are denying. They insist on keeping their heads in the sand. In this case, given the source of much of the denial propaganda, it is probably safe to say that they have their heads in the oil sands.

The conventions that took place over August were instructive. I believe history will look back at the Republican Convention as a disgrace of climate denial in the face of the mounting facts. By contrast, President Obama pointed out clearly, simply, and plainly that carbon pollution is heating our planet, that climate change is not a hoax, that more droughts and floods and wildfires are not a joke, that they are a threat to our children's future. I applaud the President for his leadership in this way.

He was not the only Democratic leader to touch on this issue. Senator KERRY—who gave a brilliant and passionate speech on the floor before the August recess—in his remarks said this:

> Despite what you heard in Tampa, an exceptional country does care about the rise of the oceans and the future of the planet. That is a responsibility from the Scriptures. And that, too, is a responsibility of the leader of the free world.

President Clinton, in his wonderful magisterial speech, lauded the agreement the Obama administration made with the management, labor, and environmental groups to double car mileage. He pointed out:

> That was a good deal. It will make us more energy independent. It will cut greenhouse gas emissions. And according to several analyses, over the next 20 years, it'll bring another half a million good new jobs into the American economy.

Congressman BARNEY FRANK of Massachusetts reminded us of the Romney who understood climate change, who said he was for climate change—I think he meant he was doing something about climate change—back when he was Governor of Massachusetts. He reminded us: Now there's a Romney who believes it is a myth.

Secretary Ken Salazar, who served with real distinction in the Senate, said of the deniers:

> Mock our sacred responsibility as stewards of God's Earth. Their attitude isn't just sad; it's reckless and it's backward.

Tom Steyer is the cofounder of Advanced Energy Economy. He said this about Governor Romney:

> Governor Romney's road to the future will lead to dirty air and increasing climate volatility, uncertainty over energy prices and less security, not more.

He contrasted that with President Obama. ''President Obama's road to the future,'' he said, ''will lead us to energy independence, energy security, a safer and cleaner environment, and countless new jobs that can never be outsourced.''

And as silent and mocking as the Republican convention and the Republican candidate were on this issue, they have doubled down since then. Over the weekend on ''Meet the Press,'' Mr. Romney restated that he is ''not in this race to slow the rise of the oceans or to heal the planet.'' His energy plan makes no mention whatsoever of climate change or of promoting renewable energy technology. Instead, it details how the United States can exploit what the platform calls the domestic ''cornucopia of carbon-based energy resources.''

Our platform makes it clear that we take this seriously.

> We know that global climate change is one of the biggest threats of this generation—an economic, environmental and national security catastrophe in the making. We affirm the science of climate change, commit to significantly reducing the pollution that causes climate change, and know we have to meet this challenge by driving smart policies that lead to greater growth in clean energy generation and result in a range of economic and social benefits.

In our national security platform we state:

> The national security threat from climate change is real, urgent and severe. The change wrought by a warming planet will lead to new conflicts over refugees and resources; new suffering from drought and famine; catastrophic natural disasters and the degradation of vital ecosystems across the globe.

By contrast, the Republican platform calls on Congress to take quick action to prohibit the EPA from moving forward with new greenhouse gas regulations.

We are at history's junction, as shown by these two conventions and these two platforms. The Republicans would take us back into the past on a tide of propaganda and denial to serve the special interests of the polluters. The Obama administration would take us forward to compete successfully in the world for clean energy innovation, clean energy technology, and clean energy jobs. It would allow us to meet our responsibility to our children and grandchildren to leave them a world as good as the one that was left to us. And it would, in addition, show that this great experiment in human liberty, the United States of America, this great democracy, is not for sale.

The findings that we made in our platform I will quote again: ''We know that global climate change is one of the biggest threats of this generation . . . and we affirm the science of climate change'' follows the very strong findings of the American scientific community, indeed the world scientific community. Back in October 2009, a letter from a coalition of respected scientific organizations said this:

> Observations throughout the world make it clear that climate change is occurring, and rigorous scientific research demonstrates that the greenhouse gases emitted by human activities are the primary driver. These conclusions are based on multiple independent lines of evidence, and contrary assertions are inconsistent with an objective assessment of the vast body of peer-reviewed science.

These were esteemed organizations: American Chemical Society, American Meteorological Society, American Society of Agronomy, Botanical Society of America, and many others. They do not think the jury is out on this question. They know that in fact the verdict is in and we now have a responsibility to ourselves and to the future to act.

Recently, Dr. Richard Muller, a converted climate skeptic, released findings from his research—which was, ironically, partially funded by the Koch brothers—that the Earth's land temperature has increased by 2.5 degrees Fahrenheit over the past 250 years and 1.5 degrees of that over the past 50 years. He states, ''moreover, it appears likely that essentially all of this increase results from the human emission of greenhouse gases.''

Another benchmark was a monitoring station in the Arctic that measured carbon dioxide at 400 parts per million for the first time. This is 50 parts per million higher than the maximum contraction of carbon in the atmosphere at which scientists predict a stable climate, and it is well outside the 170 parts per million to 370 parts per million range for carbon in our atmosphere that has persisted for the last 8,000 centuries.

Essentially all of human development has taken place within a range of 170 to 300 parts per million in our atmosphere and we just broke, in the Arctic, 400 parts per million for the first time. We are not just off the road and over the chatter strip. We are way out of history's line.

Again, we are at a junction in history. I urge we go forward, that we drive our country toward successful competition for a clean energy future, that we meet our responsibility to our

children and our grandchildren, and that we prove to ourselves and to the rest of the world that our great American experiment in human liberty is not for sale to the polluting industries.

I yield the floor.

THE ECONOMY

Mr. BARRASSO. Madam President, I wish to take a few minutes today to talk about our Nation's economy. This speech is not about the economy that we wish we had; this speech is not about the economy that we used to have; this is about the economy that we have today.

By now, Americans are all too familiar with the bad economic news. The front page of today's Wall Street Journal provides little respite from that bad news. It reads, and here is the headline, front page: ''Household Income Sinks To '95 Level.''

Let me say that again: ''Household Income Sinks To '95 Level.''

The President talks about moving forward. But the reality is that the American paychecks are moving backward. The article goes on to describe a report from the Census Bureau, a report that illustrates what millions of Americans already know. We are not better off than where we were last year or the year before or the year before that. In fact, the Census Bureau data shows that household incomes in 2011 fell for the fourth consecutive year. Hard-working Americans do not need census data to tell them this, they know it. All they need to do is look at their paycheck. For many it is significantly smaller.

While paychecks continue to shrink, the cost of everyday living has gone up. Gasoline prices have gone up another 30 cents a gallon in just over a month. Americans recently paid the highest price ever on a Labor Day weekend for gasoline. One out of every seven people in America is now on food stamps.

In 2008, that was before President Obama's election, the poverty rate was 13.2 percent, and 38.8 million Americans were in poverty. This week's numbers show a 16-percent increase in just 3 years. Poverty rates remain stuck at their highest level since 1993.

I made many of the same points last week in the response to the President's weekly address, but I believe it is important to make them again. While many Americans worry about their shrinking paycheck, far too many others have no paycheck at all. Today, 23 million Americans are unemployed or underemployed. Many of these folks are our friends, our neighbors, and family members. The undeniable truth is President Obama is on track to have the worst jobs record of any President since World War II.

When the President was hyping his so-called stimulus program, his economic team claimed unemployment would not go above 8 percent and would be below 6 percent by now. Instead, it has been higher than 8 percent for 43 straight months. According to last week's jobs data, unemployment dropped from 8.3 percent to 8.1 percent. Why does that happen? It didn't drop because of newly created jobs. It dropped because 368,000 Americans simply gave up looking for work. They just gave up.

With the stimulus bill, the President promised jobs. The only thing he delivered was not jobs but more debt. It is bad enough that the stimulus was wasted. Even worse, he borrowed the money, much of it from China.

The reality is that America is not better off than it was 4 years ago. In terms of global competitiveness, the United States has dropped for 4 straight years. When President Obama took office, we were No. 1 in the world. Now we are No. 7. Why? American businesses are at a competitive disadvantage. That is because of our tax rates. They are the highest in the developed world. American businesses are being asked to create jobs in the face of a regulatory onslaught the likes of which we have never seen before.

Americans know what works. What works here in this country is low taxes, reasonable regulations, and living within our means.

President John Kennedy understood that. He said:

> Persistently large deficits would endanger our economic growth and our military and defense commitments abroad.

He said that 50 years ago, in 1962. Washington's budget deficit that year, in 1962, was $7 billion. From $7 billion then to $1.2 trillion this year. For every year since he has taken office, President Obama has spent at least $1 trillion more than Washington took in—all of it borrowed. And there is no end in sight.

According to the Congressional Budget Office, the government ran a $192 billion deficit last month alone. This is the highest deficit ever for the month of August.

Under his watch, government continues to spend too much, borrow too much, and grow bigger every day. President Obama's record of failure has come at a great cost to our country and to our future. The President's policies have failed to produce the results, the accountability, and the solutions that the American people deserve. The Obama administration is simply not moving our country forward.

A healthy economy comes from a growing private sector. Yet the President doesn't seem to appreciate or value the private sector. Remember, he said if you have a business you didn't build it, someone else did? In Wyoming and in communities all across this country there are bakers and florists and dry cleaners and farmers who did build their businesses and whose families have been working in them for generations. Those business owners know what President Obama does not. They understand, as Ronald Reagan put it, that you can't be for big government, big taxes, and big bureaucracy, and still be for the little guy.

As a Nation we are being bled by overspending, we are being choked by regulations, and we are being paralyzed by a lack of affordable energy. Just look at one of the President's favorite legislative accomplishments, the President's health care law. The American people knew what they wanted from health care reform. They wanted the care they need, from a doctor they choose, at a lower cost. Instead, what did they get? They got a $700 billion cut to Medicare, a government mandate that everyone must buy insurance, funding for IRS agents to investigate you, but too little money for doctors to treat you.

Similar to health care, the American people know exactly what they want from our Nation's energy policy. What they want is energy security. Yet the President continues to block the Keystone XL Pipeline and the oil and the jobs that come with it. The President has wasted millions and millions in taxpayer dollars on Solyndra, and the President continues to stifle domestic production of affordable American energy sources such as coal while driving up energy bills for the American people.

Since energy security is not a priority for this President, what about financial security for our children and grandchildren? Washington has piled a mountain of debt on the backs of future generations, and the President keeps adding more. On his watch, the national debt just passed $16 trillion, with no end in sight.

President Obama says he deserves a grade of incomplete on his handling of the economy, but people only ask for an incomplete grade when they know they are failing. He is now asking all of us to give him more time. The question is, Can we afford to give him that time?

As I said in the beginning of this address on the floor of the Senate, it is not about the economy we wish we had or the economy we used to have; it is about the economy we have today. It is about reality. Instead of giving President Obama 4 more years to continue the policies that have not worked and are not working, it is time for a change.

A SECOND OPINION

Madam President, I would also like to take a few moments today to talk, as I do each week in the Senate, as a physician and give a doctor's second opinion about the health care law.

I come to the Senate floor just about every week to talk about the health care law. I have practiced medicine in Wyoming for one-quarter of a century. I have taken care of families and many patients on Medicare. What I wish to do today is talk about the health care law's impact specifically on our seniors who rely on Medicare for their health care. Specifically, I wish to talk about how this law is going to impact those living in rural and frontier areas such as Wyoming.

I know it can be very challenging for people living in rural communities to get the care they need, especially from

a doctor they choose. The associated press recently described this issue in an article entitled ''Boomers retiring to rural areas won't find doctors.'' The story highlighted the trouble Nina Musselman from rural Oregon had finding a new family physician when her previous doctor moved away.

After 1 year of going to different physicians who would treat her temporarily, she finally found a new permanent provider. The words she used to describe her experience were: ''It's a sad situation for seniors.'' Unfortunately, because of the President's health care law, the situation for seniors—especially those living in rural communities—is only expected to get worse. The article not only confirms that fewer doctors are working in rural areas but also that the program pays rural doctors less for a procedure. This fact, combined with the cuts to the program scheduled to take place under the health care law, means seniors in rural areas will have greater difficulty finding a doctor to take care of them.

Mark Pauly, a professor of health care management at the University of Pennsylvania put it this way: If the cuts to Medicare are allowed to go through, ''the doctors are saying: We're out of here.''

Professor Pauly adds:

The least they [the doctors] are saying is: ''We'll treat Medicare patients like we treat Medicaid patients,'' which is mostly not.

Over the past 2 weeks the Republicans and Democratic parties have held their nominating conventions. The Nation has had an opportunity to hear from both Governor Romney and President Obama about their accomplishments and their visions for America.

After hearing the President's speech, I was struck by the fact that he barely mentioned his health care law. The newspaper Politico stated: ''In back-to-back speeches, Obama and Vice President JOE BIDEN all but ignored the Affordable Care Act.''

It isn't surprising, given the fact that the law remains deeply unpopular with the majority of the American people. In fact, the latest Rasmussen poll found that half the people surveyed support repealing the health care law.

The President and Washington Democrats might be trying to avoid the law. As a physician who practiced in Wyoming, I believe the topic is too important to ignore. All seniors, especially those in rural America, need to know how this law will impact their ability to get the care they need.

Previously, the Institute of Medicine found that there are fewer primary care physicians—as well as other medical specialists—per capita in rural areas compared to urban areas. It is not just primary care physicians and it is not just specialists, it is both. So while people in rural America make up 20 percent of the Nation's population, they are only served by about 9 percent of the Nation's physicians.

The Kaiser Family Foundation tells us the beneficiaries in rural areas account for at least 60 percent of the Medicare populations in Mississippi, Montana, North Dakota, South Dakota, Vermont, and Wyoming. This is why I have such a passion for ensuring that all our seniors, no matter where they live, can receive their Medicare benefits. Unfortunately, all America knows is that the President's health care law made significant cuts to Medicare.

Specifically, the Congressional Budget Office told us the law takes over $700 billion from the Medicare Program. This money will not be used to improve the health care received by seniors but, rather, to pay for a whole new government program for someone else. In fact, if the cuts in the health care law are implemented, the nonpartisan Actuary at the Centers for Medicare and Medicaid Services found that Medicare payments for inpatient hospital services would eventually be only 39 percent of private insurance rates.

The situation facing physicians is not any better. The actuary at CMS reported that in 2009 Medicare paid physicians approximately 80 percent of private insurance rates. Under current law, if the cuts are allowed to move forward, Medicare will eventually only pay about 26 percent of the rate of private insurance. There is no question that the ramifications of these cuts will directly impact the ability of seniors to receive the health care they need.

As Professor Timothy Jost noted in the New England Journal of Medicine:

If the gap between private and Medicare rates continues to grow—

As it is under this law—

health care providers may well abandon Medicare.

For the millions of seniors who rely on Medicare, losing access to the program is simply not acceptable.

When the President passed his health care law, he proudly stated he was expanding health care coverage for millions of Americans. What he failed to mention is that this expanding coverage is being bought at the expense of American seniors.

Washington Democrats have long argued that the cuts to Medicare will do two things at the same time. They say it will expand health coverage for the uninsured and extend the life of the Medicare trust fund.

In Wyoming and all across the country people know we cannot spend the same money twice. Apparently, the President and supporters of his health care law, right here in this body, think they can. Their logic defies math and it defies common sense.

As a former Director of the Congressional Budget Office, Douglas Holtz-Eakin stated in a recent op-ed: ''Any suggestion that Medicare will last longer is an illusion—not a fact.''

America's seniors cannot afford the spending illusions contained in the health care law. Congress must act and repeal the law before Medicare is transformed from a vital program into an empty promise.

With that, I yield the floor and note the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. HARKIN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. SANDERS). Without objection, it is so ordered.

THE RYAN BUDGET

Mr. HARKIN. Mr. President, I said earlier this week when we came in on Monday that every day I would come to the floor—and other Senators I know are coming to the floor—to let the American people know what Mr. Romney and Mr. RYAN are trying to hide from them. What they are trying to hide is what their blueprint is for America, where they want to take the country. People listen to all of their speeches on the campaign trail, but show me your budget and I will show you what your priorities are.

A budget is a blueprint, and we have from Mr. RYAN, our colleague in the House, his budget. I think, if I am not mistaken, it has been passed twice in the House and I think almost every Republican voted for it; the same as here in the Senate. So if Mr. RYAN and Mr. Romney were to be elected to the Presidency and Vice Presidency, they would then be able to move their budget through under a little-known procedure called reconciliation. It is a fancy word, but all it means is that it would go through with 51 votes.

I think it is important for the American people to know what is in that budget, what is in that blueprint for America. That is why this week I have taken the time to talk about the impact of the budget on health care and on education. Today I wish to talk about the impact of this budget on where I live—rural America, in the Midwest, where the occupant of the Chair lives. What is the impact of the Ryan budget on those of us who live in small towns, in rural communities, those who live on farms, and ranchers in the West? What is the impact?

First of all, I think it is important to step back and take a look at the Ryan budget blueprint overall. What it does is it further decimates the middle class in America. The very centerpiece of the Ryan budget is a dramatic shift of even more wealth to those at the top, targeting huge new tax cuts for the richest 2 percent.

For those making over $1 million a year—I have used this chart before and I will continue to use it—for those making over $1 million, they would get $265,000 more in tax breaks. That is added on to $129,000 that they already get from the Bush tax cuts. So under the Ryan plan, if a person makes over $1 million a year, they will get $394,000 in tax cuts. They are entitled to that. That is an entitlement. If a person makes that much money, they are entitled to get that tax cut. So when we

hear people talking about entitlements, remember, it is not just the poor, it is the rich too. They get a lot of entitlements.

They are going to have all of these new tax cuts. The total is $4.5 trillion over 10 years. Where do they get that money? They don't want to say how they would pay for it, but we have to look at the budget. The Ryan Republican budget would partially offset the tax cuts by making deep, Draconian cuts to programs that protect the middle class and are essential to quality of life in our country—everything from education, student grants and loans, law enforcement, clean air and clean water, food safety, medical research, highways, bridges and other infrastructure, agriculture, and energy.

As I said before, the Republican plan would end Medicare. The Ryan budget ends Medicare. They keep saying: Well, it ends it as we know it. Well, as we know it, that is what it is. It replaces Medicare with voucher care. Voucher care, not Medicare; voucher care. It would completely destroy Medicare. They say: Well, people can take their vouchers and keep Medicare, if they like, or they can go out and get a private plan. If one is a healthy elderly person, they might be able to get a cheap plan out there someplace. So all of the healthy elderly leave Medicare, which leaves only the sickest and the poorest in Medicare, so the costs skyrocket and it becomes unsupportable. That is the way to destroy Medicare.

Again, they talk a lot—Mr. RYAN and Mr. Romney—about reducing the deficit and balancing the budget. Even under the most rosy assumptions, the Ryan budget does not balance the budget until the year 2040—28 years from now. Mr. RYAN is a true acolyte of former Vice President Cheney who, in a very unguarded moment, said deficits don't matter. Well, they obviously didn't, because we see how much the deficits went up under the Bush-Cheney administration. I always say Mr. RYAN has also—he won't say it but his budget shows it—they don't think deficits matter either because they have deficits for the next 28 years.

Again, when I tell people this, when I outline the budget for folks back home, they say, You must be kidding; nothing could be that extreme. Well, the Ryan plan is extreme and unbalanced, and I am not making it up. Even former House Speaker Newt Gingrich criticized the Ryan budget. He called it rightwing social engineering. Well, all I can say is Newt got that one right. But that is Newt. Let's listen to the economic adviser to the icon of the modern day Republican Party, President Ronald Reagan. This is what he said. Let's hear what Mr. Bartlett said. He said: ''Distributionally, the Ryan plan is a monstrosity. The rich would receive huge tax cuts while the social safety net would be shredded to pay for them. . . .''

A monstrosity. This is the economic adviser to President Reagan. President Reagan wouldn't have a chance in today's Republican Party, not with the Ryan budget.

Again, the Ryan budget is radical—radical—in shrinking the size of government to what it was more than a half a century ago.

Today I wish to focus specifically on the devastating impact of the Romney-Ryan budget on American agriculture and on our quest for clean renewable energy and energy independence. The Ryan budget would make deep reductions in our Federal commitment to America's farmers and ranchers, to rural communities, and to consumers, especially consumer safety. The Ryan budget calls for reducing funding for agriculture conservation over 10 fiscal years by $16 billion below the funding levels that we have now in the present farm bill. That amounts to about a 24.5-percent reduction in conservation of soil and water. Our Nation cannot afford to back off on our commitment to agricultural conservation, not at a time when climate and weather are becoming more variable and damaging to the land and when farmers and ranchers need to keep increasing production to meet demands from a growing population.

More and more demands are being put on our land with a changing climate and that is why conservation funding is so critically important. Farmers and ranchers have made tremendous progress on conservation. Yet about a quarter—one-fourth—of U.S. cropland is still deteriorating from excess soil erosion.

Concerning water quality, nitrates in the Mississippi River and its tributaries were 10 percent higher in 2008 than they were 20 years ago. There have been no consistent nitrate declines in the past 30 years. Here are a couple of photographs to illustrate what I am talking about. This is a nice, pastoral view looking over some rolling cropland. This is a gully. We can see they put up some plastic here to stop it, but this is where the rain comes down, hits it, washes it off, down into the ditches. That is sort of the ''before'' photo. That is before conservation practices. Let's take a look at the same picture after we have used Federal conservation plans and the farmer's own money. Look what we have now—a nice, grassy waterway that absorbs all of that rain. That is what conservation does.

Concerning water quality, here is another picture. It is a picture of a gully washer, and we see the land being eroded there, the stream bank being eroded. That was before. This is what it looks like afterward—a nice stream with clean water, a lot of bank protection, a lot of trees. In fact, the farmhouse we saw in the last picture we can barely see above the tree line in this picture. That is what conservation does. The Ryan budget decimates that. It would cut 24.5 percent, almost 25 percent, of all of the funding for conservation in America at a time when we know what is happening in the Mississippi River, with all of the nitrates going down the Mississippi River, with the land erosion. As I said, at a time when our farmers are being asked to produce even more and more to meet a growing population.

Also, this doesn't just affect farmers, it affects all of us. Some people might say: Conservation, sure, that looks nice, saving the water and soil, but what does that have to do with me, because I live in Los Angeles or San Francisco or some place such as that. It has to do with the quality of life in America and it has to do with whether we are going to preserve the bountiful land that we have for future generations and whether we are going to commit ourselves to having clean water and cleaning up our rivers and our streams and to prevent our soil from flowing down the river.

That is conservation.

Another troubling feature of the Ryan budget is that it would impose new tighter limits on money appropriated for rural housing, rural water and wastewater systems, and economic development, as well as other vital Department of Agriculture functions such as food safety and agricultural research, education, and extension.

The Ryan budget adopted by the House would overall cut the funding for, as we said, nondefense domestic appropriations by about 18.9 percent, compared to the current appropriations levels, and that is for next year, that is for 2014 and for years thereafter.

Let's consider rural development programs at the Department of Agriculture. For fiscal year 2012, we appropriated $2.4 billion. That is for rural development. That money provides assistance to rural housing, rural cooperatives and other small businesses, and rural water and wastewater systems. That figure for fiscal year 2012 that I gave you—$2.4 billion—was already 9 percent below the 2011 appropriation for rural development. The 2011 appropriation was 11 percent below the fiscal year 2010 funding.

What would the Ryan budget do? Slash another 19 percent—18.9 percent—from rural development funding. That would amount to a cut of roughly $454 million in 2014—$½ billion in cuts to wastewater systems, rural cooperatives, and rural housing.

Consider the food and agricultural research, education, and extension sponsored by the Department of Agriculture. The fiscal year 2012 appropriation for this was $2.3 billion. Again, that was a slight reduction from appropriations in recent years. It was $2.3 billion in fiscal year 2012, and in fiscal year 2010 it was $2.59 billion. So we have already taken some reductions. We already know our current levels of investment in Federal food and agricultural research are falling far behind what is needed to meet the challenges I just spoke about, the challenges of producing food, more food to meet a growing world population, the need for

exports, but to do it in an environmentally benign way, which saves soil and water for future generations.

Well, the Ryan budget, again, lops off another 18.9 percent. That would be about $435 million in 2014—$½ billion from these vital programs. Again, these do not just affect farmers, these affect all of us.

Take food safety—just food safety. People like to know when they buy food someplace—they have a high expectation it is not going to make them sick. Well, the fiscal year 2012 appropriation was $2.5 billion for the FDA, the Food and Drug Administration, and $1 billion for the Food Safety and Inspection Service. That is the Department of Agriculture. That is FSIS, the Food Safety and Inspection Service, that deals with Federal meat and poultry inspection. The FDA handles everything else.

Now, if the Ryan budget were adopted, again, there would be an 18.9-percent cut to both the FDA and the Food Safety and Inspection Service. Listen to this. That would be a cut of about $472 million from the Food and Drug Administration—to inspect our food and our drugs to make sure they are safe—and a cut of about $189 million from the Food Safety and Inspection Service that inspects meat and poultry. So consumers would have much less assurance in the safety of their food.

Need I remind people that the Senate and the House just passed this year a proposal to reauthorize the Food and Drug Administration, to give them more duties, more responsibilities, to do more inspections of food coming into this country from overseas. President Obama signed that into law. It was supported by Republicans and Democrats, consumers, pharmaceutical companies, and food companies. Everybody supported it—a great bill.

Now, here is the Ryan budget. They are going to take about $½ billion out of that per year. So we might have given them the authority in the authorization bill, but then we are going to cripple it and cut them off at the knees. We are going to cut them off—if we adopt the Ryan budget—by taking about $½ billion a year from the FDA.

Let's take a look at what it would do about energy because this not only means a lot to Iowa, it means a lot to our country in terms of moving ahead to develop renewable, safe, domestically grown energy.

The Ryan budget claims that President Obama has stifled domestic energy production by blocking or delaying the production of oil—both onshore and offshore—and gas. But what he fails to acknowledge is that under President Obama we have already opened vast expanses of public lands for oil and gas exploration, and production of both has increased—by 13 percent for domestic oil; 12 percent for natural gas—since 2008.

But most egregious about the Ryan budget is that it completely ignores and, again, hinders our development of renewable energy.

Wind power. Wind power in America has now provided over 35 percent of the new electricity generation capacity installed in the United States over the last 5 years. In the last 5 years, wind energy accounts for 35 percent of all of that.

The wind power industry has doubled its electricity contribution four times just since 2000. Shown on this chart I have in the Chamber has been the growth of wind power capacity in the United States since 2000. It has doubled it four times and is continuing to grow.

The wind power industry now accounts for 75,000 American jobs—75,000 American jobs—heavily concentrated in California, Colorado, Texas, Iowa, Illinois, Michigan, Ohio, and Pennsylvania. Well, Mr. Romney has said he wants to do away with the production tax credit, wipe all that out.

I wonder how the people of California and Texas and Colorado and Iowa and Illinois and Michigan and Ohio and Pennsylvania might feel about that—not to mention the other States where they are just now beginning to develop their wind energy potential?

So the Ryan budget does away with the production tax credit, and Mr. Romney has given his stamp of approval on that.

Now, likewise, with liquid fuels. Americans clearly want to increase production and use of domestic renewable fuels. We have responded in the past with tax credits and renewable fuel use requirements, the renewable fuels mandate. Small business entrepreneurs have built ethanol and biodiesel biorefineries all across the country. They now supply about 10 percent of the fuel used in our gasoline-powered autos and trucks.

That is 10 percent that no longer comes from outside our borders. And here is the expansion, as shown on this chart, of all of the biorefineries in the United States just in the last few years. Look how they have grown. There are a lot of jobs there—a lot of jobs, a lot of liquid fuels. In fact, if you look at the chart showing the expansion of liquid fuels and the decrease of imports of oil, they just about match. Just take a look.

Going back to 2000, this line shows the increase in ethanol production and this line shows the decrease in oil imports. Boy, they just about match. As ethanol production has gone up, oil imports have gone down.

Well, the Ryan budget basically says we should roll back all this Federal intervention—just roll it back. But they say it is OK for the oil companies to go offshore and drill offshore, drill in very fragile areas of our country. I would not be surprised if they wanted to open up Yellowstone Park to oil and gas exploration pretty soon.

I just want to share the Iowa experience, if I might, about renewable energy because I think it speaks to the potential that we have nationwide.

Up until a decade ago—10 years ago—my State of Iowa was nearly 100 percent dependent on energy imports. All of our gasoline and diesel came from out of State. Most of our electricity came from out of State—coal. By contrast, today Iowa generates about 20 percent of its electricity from instate wind power facilities. We now have about 7,000 jobs in the wind power industry. We build the turbines, we build the blades, we build the towers—everything—there. We are teaching a whole new generation of young Americans at our community colleges how to fix, repair, replace, and maintain our wind generators.

So instead of paying others for imported coal or for coal-based electricity from other States, Iowans are using their money to build and install and operate their own wind turbines and generating electricity from our own instate renewable wind resources.

For liquid fuels it is the same. It is remarkable. As I said, remember, Iowa imported all of its oil and gas 10 years ago—gasoline. Iowa now has 54 biorefineries producing about 4 billion gallons of ethanol and biodiesel a year. That is 50 percent more than the total amount of liquid fuels that we consume in a year. So Iowa, in 10 years, has gone from a total importer of liquid fuels to a net exporter. We make more than 50 percent more than we actually use, so we get to export to other States. Again, that is good-paying jobs. It is a renewable resource, with higher incomes for farmers. It helps Iowa's economy better than the economies of the Mideast oil states.

So America can follow in Iowa's footsteps but only if we continue the energy policies that have enabled these achievements. We need to extend the production tax credit to expand wind power and other renewable electric systems across the country, such as solar electric. The Ryan budget does not account for that. The Ryan budget drops all of these investments, in renewable biofuels also.

So, again, as I said, each day we have looked at the Ryan budget and how it affects health, how it affects education. Senator BOXER from California and others have come out and talked about how it affects our transportation infrastructure in America. But I also wanted to point out what it does to our renewable energy sector and what it does to agriculture, especially conservation, and how it would decimate our efforts to ensure clean water and stop soil erosion in all of our States.

So before I close, I just want to provide a broader context so we understand the consequences of the Romney-Ryan budget. Going back to the 1930s, the American people have supported and strengthened a kind of unique American social contract. That social contract says we will prepare our young and we will care for our elderly. That contract says: If you work hard and play by the rules, you will be able

to rise to the middle class or even beyond. That social contract says a cardinal role of government is to provide a ladder or ramp of opportunity so that every American can realistically—realistically—aspire to the American dream.

Well, in one document, the Romney-Ryan budget would rip up that social contract, shred it. Do not take my word. Let's go back to Mr. Bartlett's quote again that I had right at the beginning. Do not take my word for it. It is right here. This is Ronald Reagan's economic adviser. He says:

Distributionally, the Ryan plan is a monstrosity. The rich would receive huge tax cuts while the social safety net would be shredded to pay for them.

How far do you think Ronald Reagan would get today with this Republican Party with that kind of statement?

So, again, the Ryan budget would rip up that sort of contract, replace it with a sort of survival-of-the-fittest, winner-take-all. It is sort of ''tough luck; you are on your own.'' If you were born wealthy, if you live in the right circumstances, you are OK, or if you win the lottery, God bless you. You are OK if you win the lottery, but otherwise, tough luck, you are on your own.

I agree with what President Clinton said last week when he said there are two competing philosophies here. One is the Romney-Ryan budget philosophy of ''you are on your own.'' The other philosophy is what I think we have been proposing; that is, we are all better off when it is a ''we are all in it together'' philosophy. Again, the Ryan budget, the Romney-Ryan budget is a blueprint for where they want to take America. This is not just some phony liberal thing thrown out here. This is their budget. This tells you where they want to go. It is a blueprint for a building. It is a blueprint for what they want America to become. Well, I do not think that is the kind of America my neighbors and I would find acceptable, certainly not one they find acceptable for their kids.

Mr. RYAN said that he had developed his views on his budget—they were formed by Catholic social teaching. Well, I don't know; I went to Catholic schools most of my life, and that is not what I was taught. I was not taught that you are on your own, that government has no responsibility whatsoever to ensure that you have decent health, safety, education, that you have a decent retirement so that you do not get put in the poorhouse. I was taught that we are all in this together. I see the bishops say the same. The Catholic bishops say the Ryan budget fails the moral test—fails the moral test. They reiterated their demand that the Federal budget protect the poor, and I said the GOP measures fail to meet this moral criteria.

So, again, I have taken this floor every day. I intend to take it every day from now until whenever we adjourn to keep pointing out, along with other Senators, what is in this Romney-Ryan budget. It is really scary.

A lot of times when we go out campaigning, we tell people: This is the most important election ever. How many times have you heard that one? This is the most important election ever. You hear both sides saying that. Well, I have been through a lot of elections. I have said that a lot of times. I will not say that. I am not going to tell anyone this is the most important election ever, but I will say this: This is the scariest election I have seen in my lifetime—the scariest. Oh, sure, we have had our differences before with Republicans and Democrats. That is OK. That is fine. That is the political give-and-take. And even under President Reagan, who was more conservative than any President we have had since probably Herbert Hoover or before, you know, sure they moved the country in a more conservative direction, but it wasn't like this. It wasn't anything close to what this Ryan budget is doing. Even Presidents who have run in the past, maybe with the exception of Barry Goldwater, but I do not know much about his budget—I daresay I bet it was not this bad. I bet it was not anything close to this. This is why this is scary. This is turning America back to where we were before Roosevelt. I do not mean Franklin Roosevelt, I mean Theodore Roosevelt. That is how far back they would turn this country.

I yield the floor, and I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

THE FARM BILL

Ms. STABENOW. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Ms. STABENOW. I first wish to thank Senator HARKIN as chair of the Health, Education, Labor, and Pensions Committee and past chair of the Agriculture Committee for his words of concern regarding the House budget as it relates to agriculture. I share those concerns and I thank him for speaking out on that. It is just one more reason to pass a farm bill. We need to get a farm bill done right now.

Let me say to all of my colleagues, and particularly in the House because we have done our job in the Senate and we are ready to complete the task of getting a farm bill, we now only have 17 days, 17 days until the current farm bill expires on September 30. Seventeen days. We know as a practical matter, because the House says they are leaving next Friday, it is actually shorter, but we have 17 days before the end of the month, before the current policy expires and we begin to see a phase-in of policies that end up going back to 1949 by the first of the year on subsidies and planting restrictions and a whole range of things that cost a lot of money and make no sense.

I am asking that the House come together, as we did in the Senate when we passed our bipartisan farm bill on June 21, and pass a farm bill in the House. We passed the Agricultural Reform, Food, and Jobs Act by a bipartisan vote of 64 to 35. I believe the votes are there in the House of Representatives if there is a willingness to have a bipartisan vote. I believe that together, Democrats and Republicans, there are enough votes to pass it, and the House has time to act. They are completing the continuing resolution today, and my understanding is there is nothing else of substance that is on the agenda for next week. And even if there was, 1 day—1 day—is all we are asking, 1 day to bring up and do the work for rural America, for agriculture, ranchers across the country, to create a 5-year farm bill policy that includes disaster assistance that will work for all parts of agriculture. We are asking for 1 day.

Farmers across the country have been hit hard by disasters, as we know—very, very hard. It has been devastating for many of our ranchers and farmers between late frosts and the severe drought this year. We need to get a farm bill done. Why is that? Because the farm bill is also a disaster bill.

I can speak from the standpoint of Michigan, where the warmth in March and then the late deep freeze eliminated almost all of our tart cherries. We are No. 1 in the country in tart cherries. We do not have any. Sweet cherries, apples, peaches hit, grapes, and that, along with the drought, means that every single county in Michigan is under a disaster declaration right now. We address that in the farm bill we passed.

By the way, disaster assistance is in the farm bill the Senate passed, fully paid for with savings within the farm bill.

We reinstate the livestock disaster program, and we make it permanent. We make it permanent. We support specialty crop growers who need crop insurance and do not have it now, such as our cherry growers. Tart cherry growers cannot purchase crop insurance because there is no crop insurance. In addition to helping them in the short run, we need to make sure we are ready for the future, and we do that in this bill.

We put in place a new dairy program to make sure we are not seeing farmers go bankrupt. And our Presiding Officer from Vermont certainly understands and has led efforts. I remember 2009, 2010, what was happening, what we had to do. We know the current policy is a disaster waiting to happen for dairy. So kicking the can down the road, doing some long-term extension, and not taking any action on the farm bill is a disaster for diary, which, by the way, is the No. 1 single commodity in my State as well.

We need to get the farm bill done.

We make sure those who have lost crop this year because of the early warm spring and late frost as well as our livestock operators and others get help not just for the future but this

year, 2012. That is in the Senate-passed farm bill. It is also, by the way, in the House committee-passed farm bill, which is what the Speaker and the Republican leadership should be taking up on the floor of the House.

We also strengthen conservation, which is so critical because unlike the Dust Bowl of the thirties where soil was swirling around and all that was happening at that time, despite the horrible drought, soil is on the ground. Why? Because of conservation efforts and policies that have made a difference. We need to continue and strengthen that as we do in our farm bill for the future. It is critical that we move forward on conservation.

So the House taking up a farm bill addresses the disaster assistance that needs to be addressed for our farmers and ranchers in a responsible way. It is paid for within the savings of the farm bill. And we make sure we do not have other disasters happening by not moving forward with improvements in policy for commodities such as dairy.

I am proud of what we did in the Senate. It was bipartisan. We tried very hard. I worked very hard to create an opportunity where there was enough time in the summer for the House to be able to take action. We moved, as we all know, quickly, both in committee—Senator ROBERTS and I and all of our colleagues, with the leadership support on the floor, moved quickly in June to pass a bill so that there would be all of July and the beginning of August until the break for the House to act so that we could then go to conference committee in August and come back right now and pass a final farm bill, which is what should have happened. So now we are in plan B, which is at least—at least the House of Representatives ought to be doing their job in passing the farm bill so we can work on this in October and come back in November before the full Congress.

I commend the leadership of the Agriculture Committee in the House and have great confidence that, working together with them, we can come together on our differences and put together a responsible, effective deficit reduction farm bill in the final analysis. But we can't get there until the House gives us some kind of a bill to work with.

So I am asking the Speaker, I am asking the Republican leadership to take just 1 day, 1 day for rural America, 1 day for farmers and ranchers across this country so that we can address disaster assistance and long-term economic policy for rural America.

The House leadership, the Republican leadership heard yesterday from hundreds of farmers from all over the country that we need a farm bill now. There were over 80 different groups who put that rally together to make it very clear that they do not want a stopgap measure, that they do not want to kick the can down the road or do another 1-year extension; they just want us to get it done and to get it done right now. Many of these farmers are in the middle of harvest. It is the earliest corn harvest in 25 years because of the drought. They took time from work to come here at their own expense, their own time to give a very clear message to the House Republican leadership. It is time to get this done.

Frankly, it is past time to get it done. We have heard that the House wants to do a 1-year extension of current policy, but we are not going to support that. Do we really want to continue for another year the subsidies, such as the direct payments we eliminated in the Senate farm bill, the subsidies that go to people regardless of whether they are even growing the crop for which they are getting the subsidies? We eliminated four different subsidies and instead listened to farmers across this country to strengthen crop insurance. That is what we heard from Michigan to Kansas, from California to all across this country, that we need to strengthen crop insurance, and that is what we have done.

Do we really want to be in a situation where one more time there is not action on deficit reduction? The one piece of legislation we have passed in a bipartisan way that reduces the deficit of this country is our farm bill. Amazingly, we have $23 billion in reduced spending, in deficit reduction, which goes away with an extension. It won't happen if we kick the can down the road, so we need to get this done.

I understand there are some in the House who don't believe we ought to invest in any kind of agricultural policy. I know there are those who think we shouldn't invest in nutrition or conservation of land and water or agricultural policy or energy jobs or a whole range of things, such as rural development, supporting our small rural towns. I understand they do not want to do a farm bill. I also know there are some folks who don't like the reforms we have. They want to continue those payments. I understand that. But I believe the majority of people in the House, just like the majority of the people in the Senate, will come together if given the opportunity and vote for reform, for deficit reduction, for a strengthened crop insurance program, other risk management tools for our farmers, a disaster assistance program that is permanent for livestock producers, help for our food growers, strong nutrition policy that includes focusing on waste, fraud, and abuse, rural development, and a streamlined, more effective conservation policy that creates flexibility and tools for our farmers as well as those who want to hunt and fish and protect our open spaces. I believe a majority of the House wants to get that done.

I think it is very important, with 17 days left, that we remember what this is about. There are 16 million people in this country who work because of agriculture—16 million people. We talk a lot about jobs and job policies. I don't know of any we have debated on this floor that have impacted 16 million people and their families, and we came together to get this done because we understood that.

Right now, despite the best efforts of the Committee on Agriculture in the House on a bipartisan basis to report a bill, the House leadership—the Republican leadership—will not take 1 day—1 day—to focus on 16 million jobs, economic development, quality of life in rural America for those who have been hit so hard by this economy, and the jobs of the future we have in this farm bill. Time is running out. Time is running out. We need to get this done. We understand that.

Farmers know that when there is work to be done, they can't kick the can down the road. When a crop is ready for harvest, a farmer can't say: Gee, I am tired; I will do it next week. When the crop needs to be harvested, they have to get up and go do it. They do what needs to be done. And we had folks who came here yesterday, who left their fields and who basically said: Even though I have a lot of work to do at home, I have to go to the U.S. House of Representatives to tell the Republican leadership that it is time to get the job done.

Mr. President, I would like to put into the RECORD a letter that was sent from 13 different leadership organizations on agriculture in this country. I will explain what is in it, but I ask unanimous consent to have printed in the RECORD a letter dated September 7, 2012, to Senators REID and MCCONNELL.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

SEPTEMBER 7, 2012.

Hon. HARRY REID,
Majority Leader, U.S. Senate,
Washington, DC.
Hon. MITCH MCCONNELL,
Minority Leader, U.S. Senate,
Washington, DC.

DEAR MAJORITY LEADER REID AND MINORITY LEADER MCCONNELL: The undersigned farm organizations support finding a path forward to reaching agreement on a new five-year farm bill before current program authorities expire on Sept. 30. We were disappointed that the House did not consider the House Agriculture Committee's bill before the August recess. That bill, and the bill passed by the Senate in June, would provide the disaster relief our farm and ranch families need at this time.

Instead, the House passed a separate disaster bill just before the recess that would make supplemental agricultural disaster assistance available for Fiscal Year 2012. Specifically, the bill would retroactively extend the Livestock Indemnity Program (LIP), the Livestock Forage Program (LFP), the Emergency Livestock Assistance Program (ELAP) and the Tree Assistance Program (TAP) so that producers are helped for Fiscal Year 2012. All of those programs expired in 2011. Offsets to pay for the disaster assistance would come from imposing caps on two conservation programs, the Conservation Stewardship Program (CSP) and the Environmental Quality Incentives Program (EQIP).

We know that some Senators will return from the recess and encourage you to consider the House-passed measure. This is something our groups do not support. We

strongly urge you to refrain from this as we fear that passage of a bill similar to the House bill could result in further delays in completing a full five-year farm bill.

In addition, almost identical provisions to retroactively extend these four programs are included in the Senate-passed farm bill and the bill reported by the House Agriculture Committee, and these provisions are paid for in the context of the measures included in the disaster bill. Those measures would likely be included in any conference committee report. It is imperative that we pass a comprehensive, long-term farm bill. Farmers and ranchers always face decisions that carry very serious financial ramifications, such as planting a crop, buying land or building a herd, and we need clear and confident signals from our lawmakers.

Assistance for cattle and sheep producers is very important, and we strongly support helping them in the five-year farm bill, but it is also important to provide assistance to producers of other types of livestock and fruits and vegetables. The House disaster assistance bill does not help hog or poultry producers and only provides limited assistance via the grazing program for the dairy industry. The bill does not help dairy producers who are not located in a designated disaster county with grazing assistance and does not address high feed prices for dairy, hog or poultry producers. Many producers of fruits and vegetables may not have crop insurance available to them as a risk management tool, and they too need some type of help, which this package does not address. The Senate-passed farm bill contains many new, improved and reauthorized risk management tools. It is a more comprehensive response to this year's and future years' drought and other disasters that impact crop and livestock production.

The Congressional Budget Office scored the House-passed disaster bill as costing $383 million. That expense is offset by cuts of $639 million from the CSP and EQIP programs, leaving $256 million to go towards deficit reduction. If the House simply passed the five-year farm bill passed by the committee on a bipartisan basis, this disaster bill would not be necessary. The bill costs more than $600 million and would not provide relief to livestock producers less than a month earlier than a farm bill debated and passed in September. Agriculture will already contribute a minimum of $23 billion in deficit reduction by passing the farm bill. We do not need to provide additional deficit reduction in this package only month before we reduce the deficit far more than agriculture's ''fair share.''

Both the Senate and the House Agriculture Committees have produced reform-minded, bipartisan bills that address many of the core principles we believe are important, such as strengthening crop insurance as a reliable risk management tool. We remain committed to attempting to pass a five-year farm bill as soon as possible, including the long-term provisions it includes, which would help alleviate the emergency conditions we are seeing across the country.

American Farm Bureau Federation, American Soybean Association, National Association of Wheat Growers, National Barley Growers Association, National Corn Growers Association, National Farmers Union.

National Milk Producers Federation, National Sunflower Association, Northarvest Bean Growers Association, United Fresh Produce Association, U.S. Canola Association, USA Dry Pea & Lentil Council, Western Growers.

Ms. STABENOW. Mr. President, this letter was sent to Majority Leader REID and Republican Leader MCCONNELL on behalf of the American Farm Bureau, American Soybean Association, the National Association of Wheat Growers, National Barley Growers Association, National Corn Growers Association, National Farmers Union, National Milk Producers Federation, National Sunflower Association, Northarvest Bean Growers Association, United Fresh Produce Association, U.S. Canola Association, U.S. Dry Pea and Lentil Council, and the Western Growers, all saying: Don't do something short term; do the farm bill. They are all saying: Don't do some short-term effort that is only focused on disaster. Don't do an effort that does not complete the job.

In regard to consideration of the House-passed disaster measure, they say:

> We strongly urge you to refrain from this as we fear that passage of a bill similar to the House bill could result in further delays in completing a full 5-year farm bill.

These provisions retroactively are in the Senate-passed bill and the bill reported from the House Agriculture Committee. They are paid for within the context of the farm bill. And they know, as we know, that in the final bill we present, they will be included. We certainly are going to include comprehensive disaster assistance, but they are asking us to do it in the context of a 5-year farm bill. That is what everyone is saying in farm country, in rural America, that it is not enough to just do a little bit here and there. And on top of that, it is not necessary. It is not necessary. We have a comprehensive disaster assistance bill within the contents of the farm bill. So does the House committee. We just need 1 day. There are 17 days left, and we are asking the House Republican leadership to invest 1 day in American agriculture, and I hope they will do it.

Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from Montana.

Mr. TESTER. Mr. President, I would like to ask the chairwoman of the Agriculture Committee if she would be kind enough to stay for a few questions.

I came to talk today about the Veterans Jobs Corps Act, but agriculture and food security is very important to this country.

First of all, I wish to commend the chairwoman of the Senate Agriculture Committee for putting out an agriculture bill that I think really meets the needs of this country and definitely the agricultural community.

First of all, I just have to ask—the Agriculture bill sent out of the Senate provides a good safety net for those in production agriculture. I know the Senator took that into account. Whether you are a dairy producer, a corn producer, a wheat producer, or whatever, it is there.

The Senator comes from the State of Michigan. That is a little different from Montana, but we both know the Midwest has been under incredible drought. There have been fires all over this country. I talked to the ranking member on the train yesterday, and he was talking about fires in Kansas, and we have had fires in Montana.

Is there disaster assistance in this bill, if the House were to take it up and pass it? Would we have to worry about that being taken care of in the farm bill?

Ms. STABENOW. I wish to thank my friend from Montana, who, by the way, is a farmer. I have called him more than one time in Montana, and he has said: I am in the field. I am getting off the tractor. So he speaks with great authority. And the answer is yes, there is comprehensive disaster assistance paid for in the savings of our farm bill.

Mr. TESTER. So if we combine that with the safety net, if we don't do a farm bill, as the House wants to do, and just have an extension, what will happen to that $23 billion in taxpayer savings?

Ms. STABENOW. It goes away. There is no $23 billion in taxpayer savings if we don't pass the farm bill.

Mr. TESTER. And if it is extended, would it, in fact, cost the taxpayers? That $23 billion would not only go away, but wouldn't the taxpayers have to pay for any kind of disaster extension?

Ms. STABENOW. No question, we would be paying for disaster assistance. By the way, the reforms go away, and I know the Senator from Montana supports the reforms in the bill. We would see those subsidies continue—direct payments and so on—and we would be rolling back to a whole era of planting restrictions and huge subsidies back from the 1940s and 1950s.

Mr. TESTER. One more point. If this farm bill goes away in 17 days, the farmers out there who need help from the bank to get an operating loan to continue on the next year, what will happen to those folks?

Ms. STABENOW. The Senator raises a very important question because economic certainty means that farmers and ranchers are going to be able to know what is happening next year and can go to the bank and get those operating loans and plan for next year what they are going to plant. All that certainty will be gone. Everybody talks about how we need certainty for the future and the economy, and I couldn't agree more. This will do more to disrupt rural America and our ability to have a stable food supply and agriculture than anything else.

Mr. TESTER. Once again I wish to thank the chairwoman of the Senate Agriculture Committee for such a great job passing a responsible bill out of committee and getting it through the Senate itself. The only thing I would like to say is, to my knowledge, the House works on majority rule. I doubt it would even take 1 day. If they want to roll up their sleeves and get after this, they could get the Senate farm bill passed there.

Remember, this farm bill saves $23 billion, it provides a safety net for agriculture, has a great disaster component to it, and provides the kind of certainty for people to know, when they go to the bank, which is most farmers, and get that operating loan, they have a backstop that the bankers can depend on to offer that loan. So I thank the Senator for her great work.

VETERANS JOBS CORPS ACT

Mr. President, I rise today to call on the Senate to pass the Veterans Jobs Corps Act. Veterans and their families make great sacrifices so we can live freely in the greatest Nation in the world. Too many of our veterans return home and struggle to find good jobs. Our veterans deserve better. They earn our everlasting respect with their service and our best efforts to help them get good jobs when their service ends—jobs that will improve the communities they live in and jobs that will help us grow our economy.

This bill takes good ideas from both sides of the aisle and does just that. It increases training and hiring opportunities for veterans using proven job-training initiatives, and it will give local governments the resources to hire qualified veterans as police officers, firefighters, and other first responders. At a time when local budgets around the country are tight, putting qualified veterans to work protecting our communities is smart policy.

The Veterans Jobs Corps Act also helps rural America by training and hiring veterans to help restore and protect America's forests, parks, refuges, and veterans cemeteries. This is an important step forward, but investing in rural America must also mean investing in the veterans who are from rural America. That is why I added a provision to the bill that would bring more veterans jobs counselors to rural States across this country, including Montana.

Job counselors work closely with veterans and local employers to connect former servicemembers with good jobs close to home. These counselors develop extensive knowledge of local job and training opportunities and maintain a list of resources that prepare veterans to enter the workforce. Right now the Labor Department allocates job counselors based solely on population without taking into account the distances that folks have to travel in rural America. That often means veterans in my State of Montana travel hundreds of miles for the employment assistance they have earned, and it leaves the six job counselors we have to cover tens of thousands of veterans over an area the size of the entire northeast border.

My provision will fix this imbalance. It will give large and rural States such as Montana enough job counselors to serve all parts of the State and help to ensure that they are developing relationships with veterans and employers that will put more veterans back to work.

The Veterans Jobs Corps Act is fully paid for, and it shouldn't be controversial at a time when our veterans continue to struggle or at a time when more and more veterans continue to return from the battlefields in Afghanistan. Our veterans fought hard for this country, and their families have sacrificed much. We owe it to them to put aside political differences and to pass this bill. It is a responsible measure that will make our communities safer, preserve our most treasured places, and will move this country forward. Our veterans earned nothing less.

I especially want to thank Senator BILL NELSON for his leadership on this important bill. It deserves the support of the Senate.

I yield the floor, and I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. BLUMENTHAL. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mrs. SHAHEEN). Without objection, it is so ordered.

Mr. BLUMENTHAL. Madam President, like many of my colleagues, I am very proud to support the Veterans Jobs Corps Act of 2012.

Very simply, this measure keeps faith with our veterans, offers them employment opportunities commensurate not only with what they have given to the country, what they have served and sacrificed to accomplish and give back, but also with their skills and talents and gifts that have been enhanced and enlarged by their military service. This measure addresses the chronic and persistent problem of unemployment among our young veterans. It is a searing indictment of our Nation that unemployment among these young veterans is many percentage points higher than the average population.

What is happening in this country is that a new generation is returning home—a new generation of veterans ready to work, wanting to serve in civilian life just as they had in the military. With the ending of the war in Iraq and the winding down of our presence in Afghanistan, 200,000 servicemembers are transitioning to the civilian workforce every year.

In July 2011 there were 232,000 post-9/11 era veterans unemployed. That is 12.4 percent as an unemployment rate. The August jobs report of this year shows that the most recent unemployment rate for post-9/11 veterans is 10.9 percent, and for Connecticut it is just under 10 percent.

There are many more statistics that show unemployment rates for these young veterans—particularly for our enlisted men and women coming back from Iraq and Afghanistan—are higher, some would estimate double the average rate across the population. They are an indictment of our commitment and our obligation unfulfilled so far by the greatest Nation in the history of the world.

Too often in our history we have failed to keep faith, and we have left veterans behind. I have advocated measures in health care, counseling, training, and employment opportunities. But I want to focus on one measure in particular where all of us joined forces and reached a consensus as recently as last November.

The Veterans Jobs Corps Act of 2012 is a new measure that would provide opportunities in conservation and in other kinds of public service, firefighting, and police. But there is an existing measure whose very life is threatened because it will expire in 2012. This measure is the VOW to Hire Heroes Act, specifically the tax credits under those measures for hiring unemployed or disabled veterans. Those tax credits will expire at the end of this year unless they are renewed. That is the reason I am introducing legislation, along with cosponsors Senators Webb, Cantwell, TOM UDALL, Heller, and Mikulski, that extends the VOW to Hire Heroes Act tax credit through the end of 2016.

This measure is important to be extended because it offers these veterans new opportunities, and promotes and incentivizes employers to put our veterans to work.

Hiring a veteran is not only the right thing to do to honor the men and women who have sacrificed, the men and women of our country, it also makes good business sense. Veterans are among our most highly skilled, capable, disciplined, reliable, and dedicated workers. Businesses ought to relish their services. Countless businesses big and small have already found that veterans are a tremendous asset to their workforce. This bill is important to build on the measures we have in place. Simply, it makes these veterans even more attractive.

Last month I visited the Arna Machine Company in Bristol, CT, and I talked with a young veteran whose name is Nick Saucier, a former Army sniper who served in Afghanistan and now works there as a machinist. Being a former Army sniper, Nick knows about precision and care, taking your time to be on target. He is now training to use computer-assisted manufacturing software with the same care and precision and discipline that he developed in his Army training as a sniper.

While I was at Arna, I talked to Stephen Shanahan, the president of the company, who is very proud and rightly proud of having 42 employees and growing in this tough economy. He is hiring and he said to me these tax credits have helped him fill positions with young qualified personnel who are veterans.

I have also worked with Congressman CHRIS MURPHY to survey manufacturers about veteran hiring. This legislation is the result of those conversations and discussions, the data and the

feedback we received, as well as consultation with my friend Bud Bucha, who has helped me time and again address the challenges facing veterans.

These tax credits will expire, they will end unless we renew them. We owe it to our veterans, to our business community, to manufacturers and small businesses that want to do the right thing, to make sure they have this incentive. I have heard from employers and veterans firsthand that many of them were not aware of this tax credit, so I have proposed as part of this legislation increased measures to create awareness and spread the word about these tax incentives so that big companies with their tax attorneys, but also smaller companies that may not have the consultants and the accountants to do this kind of work, know of it and take advantage of it.

This measure also simplifies the process for veterans and small businesses to take advantage of the tax incentives. Currently, to be a ''qualified veteran,'' individuals must gain approval through a local employment agency, which can be unnecessarily time consuming and burdensome to them and to the potential employer. This bill offered today would modify the Work Opportunity Tax Credit process to allow individuals to be considered qualified veterans for tax purposes if they simply provide a DD 214, have an honorable discharge, and valid proof of unemployment.

This bill would also extend the amount of time employers have to take advantage of tax credits for hiring unemployed or disabled veterans, enhancing its use to countless small businesses as well as veterans. It would allow employers to take advantage of these tax credits for an additional 4 years, providing returning service men and women with a clear path to employment when they need it, and they will need it over these 4 years.

I am very honored that this bill has been endorsed by the Veterans of Foreign Wars and the American Legion, which have been championing employment opportunities for veterans.

I urge my colleagues to continue their support for veterans by supporting this legislation which will create more good jobs. We owe our veterans more good jobs. And it will grow our economy.

Let me say, finally, nearly three-quarters of a million veterans—to be more precise, 742,000 men and women—are eligible for the employer hiring tax credits. Let's do the right thing. Let's extend these tax credits. We adopted them overwhelmingly last November in the VOW to Hire Heroes Act. We have it in our power and it is our obligation to meet this challenge. For our veterans we should do no less.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

Mr. PAUL. Madam President, I ask unanimous consent the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

FOREIGN AID

Mr. PAUL. Madam President, last evening I had a spirited exchange with the majority leader. The exchange was over whether we should send billions of dollars, billions of dollars we technically don't even have, to foreign countries that disrespect us, foreign countries that have tortured people who are friends of America.

In Pakistan, Dr. Shakil Afridi helped us to get bin Laden. He has been tortured, kept in prison, and now been given a life sentence. I have asked one simple thing. I want to have 15 minutes, have a discussion, and have a vote on whether we should continue to send money to Pakistan. I have said we should send not one penny to Pakistan until this doctor is released. We offered at one time a $50 million reward for help in getting bin Laden. Young men and women sacrificed their limbs to go to Afghanistan, many sacrificed their lives to go to Pakistan to get bin Laden. And this man who helped get bin Laden, we are now letting him rot in a prison. We are now letting this man spend the rest of his life in prison.

Do you know what this administration did? About a month ago they gave Pakistan about $1 billion more. Do you know how Pakistan responded? The head of the security agency for Pakistan said very snidely and with a great deal of arrogance: Come back and talk to us in 10 years about Dr. Afridi. They are going to keep him in prison for the rest of his life if he is not killed. His life has been threatened. Other prisoners and the public have threatened his family's life.

Is this how we treat a friend of America? I have asked for 15 minutes to have a vote. Why don't they want to have a vote? Because they know the American people are with me. If you ask the question, ''Should we send money to countries that don't like us and disrespect us?'' 80 to 90 percent of the American people are with me.

They are afraid to vote on this issue. I have been giving them a chance to debate this for 6 weeks now. We have spent the whole week up here not having a debate because they do not want to have a vote because they know if they vote their position, which is to send your money to Pakistan and to Egypt and to Libya, the American people will not like it. So they are not willing to stand in the broad daylight and vote to continue this aid. They just do not want to have the vote.

Last evening the majority leader said that his concern is over the veterans benefits bill. I also am concerned, so I have reconsidered my amendment. My amendment before would return the money to the Treasury and to counteract the debt. We would take the somewhere between $3 and $4 billion and send it back to the Treasury. But if what is holding this up is that the majority leader thinks this is not in any way connected with veterans benefits, why don't we take half of the $4 billion that we would not send to Pakistan, let's take that half of that and put that into veterans benefits. I am willing to triple the size of the veterans benefits bill if we will take the money from where we should not be spending it.

Some will stand and they will argue: Gosh, we have to be engaged in Pakistan because they have nuclear weapons. I am not saying disengage. I am just saying you don't have to bribe people to be our friend. We don't have the money anyway. We have to borrow the money from China to send it to Pakistan. I am not saying don't have relations with Pakistan. Many in Pakistan have been sympathetic to our country. Many in Pakistan have helped our country. But many in Pakistan, with a wink and a nod, look at us, take our money and laugh at us. They cash our check and they laugh at us.

The American people are tired of this. Our Treasury is bare. There is a multitude of reasons why we should not continue to send good money after bad. Compound that with the tragedy that has occurred over the last couple of days, the tragedy of our Ambassador being assassinated in Libya and three of his fellow workers killed; the tragedy of our embassy being attacked in Egypt. We give Egypt $3 billion a year, and do you know what. Egypt cannot protect or will not protect our embassy. There was a phone call to the embassy from someone in Egypt saying the mob is coming. A phone call is not enough. Do you think they could have sent soldiers and tanks to protect our embassy? They gave us a phone call saying the mob is coming.

Egypt needs to act as our ally if they want to continue to cash our checks. My position is: Not one penny more for Libya or Egypt or Pakistan until they act as our allies. Some say we have to keep sending it. Fine, let's send it when they act as our allies. Let's send it when they start behaving as civilized nations and come to their senses.

I have an amendment, and I am going to ask unanimous consent to bring this amendment forward. I may be surprised, but I think the other side is going to object. I will be asking for 15 minutes of the Senate's time to vote on ending this aid. Instead, we are taking half of the $4 billion we are squandering overseas and giving to people who don't like us and putting it toward the deficit and using the other half of that aid and putting it into veterans' benefits.

If we are really talking about veterans' benefits and really serious about providing money for the veterans, let's take it from an area which is insulting to veterans. Let's take it from a country that insults every veteran in this country, Pakistan. Our men and women gave their lives to fight a war in Afghanistan and in neighboring Pakistan to get the chief architect of 9/11, bin Laden. Let's memorialize those people who sacrificed their lives and the veterans by saying we are not

going to give money to a country that disrespects and disavows everything we have done over the last 10 years to combat terrorism.

I ask unanimous consent we resume consideration of S. 3457, set aside the pending amendments, and call up my amendment No. 2838.

The PRESIDING OFFICER. Is there objection?

Mr. KERRY. Madam President, reserving the right to object, let me first mention that, sadly, this afternoon we learned one of the four people who were killed in Libya, Glen Doherty, is a Massachusetts native, a former Navy Seal and State Department security official who was guarding and caring for the Ambassador and taking care of the wounded people there.

As Senator MCCAIN, Senator LINDSEY GRAHAM, and Senator LIEBERMAN said on the floor yesterday, I believe cutting the aid to any of these countries right now in this fashion is not the way to honor the memory of Ambassador Chris Stevens. He went there in great danger to help that country be free and have an opportunity for democracy. Glen Doherty did the same thing. He put his life on the line in order to help the Libyans.

The Senator from Kentucky might be surprised to know that the Libyan people—by vast numbers—are grateful to the United States and are mourning the death of Ambassador Stevens. I heard the Senator from Kentucky—frankly, in a kind of arrogant statement is really the only way I can frame it—say several times: Start behaving like a civilized nation. Well, by whose standard and when? The Libyan and Egyptian Governments didn't do what is happening there. The Yemen Government sent its people to protect our people, and we helped negotiate the transfer of authority to this new government in Yemen.

Are they having difficulties? Yes. Go back and look at the United States of America in the 1700s. We had some difficulties. We had to write slavery out of the Constitution, not to mention a bunch of other things. It takes time. The arrogance of suggesting that we are going to judge whether they are civilized today or tomorrow because a mob or a bunch of militants took matters into their own hands would just be so self-defeating and such a narrow effort that anyone could possibly conceive.

I ask if the Senator has ever been to Pakistan? Has the Senator ever been to Egypt? The Senator doesn't want to answer. I presume that means he has not. He ought to go to Egypt and see what those people are struggling to do. There was a revolution in Tehrir Square. It wasn't an Islamic revolution; it was a generational revolution, a bunch of young people with smart phones tweeting and Googling each other trying to touch the world and have a future. The Senator wants to cut off American assistance to these nascent democratic efforts?

Whatever happened to the great commitment of the conservative movement in America to freedom and democracy and to help it develop? Just turn our back on it and pull out the aid? What the heck. Because we don't think they are civilized. I find it kind of stunning when the Senator says: Foreign countries that aren't friendly. The countries didn't do these things. It is the militant extremists and radical terrorists within those countries whom those people are struggling to beat back.

Right now there are troops in the western part of Pakistan losing their lives by fighting extremists. Cut off the aid, and we send the message: If you don't do exactly what we say, exactly when we say, exactly the way we want, we are not going to give you the pittance we give you.

We give less than 1 percent of the entire budget of the United States of America. Less than 1 percent goes into all of our foreign operations, all of our embassies, our security, and our aid. It is 1 percent. The impact is extraordinary. The Senator wants to just cut it off? OK.

We have 130,000 troops in Afghanistan, and they are largely supplied now somewhat from the northern route that has been created. They are also supplied from Karachi by road all the way over the Khyber Pass and down into Afghanistan. We have gone through a long process of working with the Pakistanis to be able to renew and do that.

As everybody knows, we have decimated al-Qaida in the western part of their country. Civilians are being killed in their country in an effort to protect our country. They have endured that. Their political system has endured that, and we are just going to turn around and say we are going to pull the aid out and we only want to do it with 15 minutes on the floor of the Senate? Here is a major policy consideration, and we just want 15 minutes because it is that simple.

These are four countries which are all critical to the future of the region in the Middle East. Egypt is an essential partner with respect to the potential of peace in the Middle East, one-quarter of the Arab world.

I have been to Egypt many times. I have sat with the new President, President Morrissey, and I have met with others engaged in this transformation. They are trying to be a legitimate democracy. Yes, their people won the election, and we are not exactly on the same page, but that is what happens in democracies. That is what happens when people vote. Are we not going to respect their democracy?

I just say to my friend from Kentucky, there are critical issues at stake. We are not buying it. What we are doing is trying to help them to be able to make this transformation to a full-throated, full-blooded democracy that can respect its court system and its elected institutions, and it doesn't come easily.

Their police were decimated in the course of the revolution. There was corruption and they are working to change that. There is a whole unbelievable transformation taking place. It is not going to be pretty. It is difficult. There are a lot of unscrupulous people we all know have hated us for a long time who would love to get the upper hand. If we pull out, we give them the upper hand. Stay there and we have an opportunity to do what Chris Stevens, Glen Doherty, and a lot of other people were doing, which is stand and fight for the interest of the United States of America because we have real interests in those places. That is what this is about.

First of all, it deserves more than 15 minutes. Secondly, it is not appropriate to do it on a veterans bill where we desperately need to get this help to our veterans. Do it freestanding. We ought to do it in the proper way. Do it through our committee. We will have a hearing. I am happy to have that done properly. This is not the way to do it, and this is not the moment to do it. It would have a profoundly negative impact that could contribute to even more violence and not stem it if that were our reaction.

Madam President, I do object, and hopefully at some point I will be happy to have this debate. It is a worthwhile one, but this is not the time and this is not the bill.

The PRESIDING OFFICER. Objection is heard.

Mr. KERRY. Madam President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant bill clerk proceeded to call the roll.

Mr. SESSIONS. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

VETERANS JOBS CORPS ACT

Mr. SESSIONS. Madam President, the Veterans Jobs Corps bill creates a new mandatory program that would cost $1 billion over 5 years. As the ranking Republican on the Budget Committee and someone who is committed to ensuring that we honor our commitments as part of our process in the Senate, I am concerned about the cost of the bill and the fact that it violates our budget agreement entered into last year.

The spending on this new program is to be offset by, we are told, $119 million in direct spending reductions and $1.132 billion in new taxes. So it is a tax-and-spend bill.

My staff on the Senate Budget Committee has confirmed that there is a 302(f) Budget Act point of order against the Veterans Jobs Corps Act with the managers' amendment as it is presently. So that is the situation. So when I say we have confirmed that, what I mean is that we have talked to the Budget Committee chairman, Senator CONRAD, and his staff, and they have

confirmed our conclusion that this violates the Budget Control Act.

The 302(f) point of order lies against this bill because the Veterans Jobs Corps bill, as amended, would cause an increase in the budget authority and outlays above the Veterans' Affairs Committee's allocation that was deemed by the Budget Control Act. The Veterans Jobs Corps bill would specifically cause an increase in budget authority and outlays above the Veterans' Affairs Committee's allocation by $61 million in 2013 and $480 million between the 5 years of 2013 and 2017. So the budget gimmicks in the Veterans Jobs Corps Act are significant and very troubling.

The CBO accounting procedures don't catch this, but it is very real. They don't catch it because the people who wrote the legislation wrote it in a way so they could avoid the proper score from the CBO in this process.

The bill shifts the timing of corporate income tax payments so that it appears to collect $135 million in additional revenue in 2013. What does that mean? A month or so before these payments are due, they accelerate the receipt of those payments. The payments fall in this year, and bingo, we say we have another $135 million we can spend. Isn't that wonderful. We just accelerate the date and the time that it would be paid. However, this is simply a smoke-and-mirrors scheme since the timing shift in payments will lead to exactly $135 million less in taxes collected in 2014. In other words, if we were planning on collecting $135 million next year and we collect it this year, the people who owed the money next year don't owe it anymore; they have already paid it. So there is a hole in next year. I have offered under the Honest Budget Act, along with Senator OLYMPIA SNOWE and other colleagues, legislation that would end this pernicious gimmick. It is worse than a gimmick.

This bill uses the exact same mechanism in 2017 and in 2018. The bill collects $392 million more in tax payments in 2017, but—and I have the chart from the Congressional Budget Office—it collects $392 million less in 2018. Do my colleagues follow me? We just accelerate the money, we spend the money, we get it this year, but we don't get it the next year. So over a period of time, this is a gimmick. It creates no new real money, but it creates the appearance of having real money and it is the appearance of money that is being spent, not real money. This is just one of the examples of how this country is going broke.

If this gimmick was not included, the Veterans Jobs Corps bill would increase the deficit by $38 million in 2013 and by $324 million over the period of 2013 through 2017. About one-third of the total expenditure of the bill is based on this gimmick. Our Democratic colleagues have used this budget gimmick to claim that it decreases the deficit by $97 million in 2013 and by $68 million in 2013 through 2017, a 5-year period.

I believe these points about the Federal budget process are indisputable. I know what CBO says about it. If we look at their numbers and we examine it over a period of 6 years, we see clearly that the money is not there. I invite any member who wants to suggest that this is real money the U.S. Treasury is receiving to come to the floor and explain how they think they are correct. I don't believe that I am in error.

To put it simply, the money my Democratic colleagues claim in the bill as revenue isn't there. It appears to be there on paper, but that is not the truth. The American people need to know the truth.

We simply spend more money on the Veterans' Affairs Committee allocations than was agreed to in the Budget Control Act. We are already violating that. We have done it already this year. As a result, we have eroded the small, but significant steps we took to bring some spending under control.

The Budget Control Act would have reduced spending by $2.1 trillion over 10 years for the entire U.S. budget. Well, how much is that? We know that $2.1 trillion is a lot. It is a lot, but we plan to spend $47 trillion over that 10 years. So we would be reducing our projected spending from $47 trillion to $45 trillion over 10 years. Surely we can do that. That is not a cut, because if we spend for 10 years at the current level of spending, we would be spending $37 trillion, so we are still increasing spending from $37 trillion to $45 trillion, just not $47 trillion. And the Republic is not going to sink into the ocean with those kinds of cuts, but it would begin to put us on a path of honesty and responsibility and end the unsustainable debt course we are now on.

I am not happy about this. I will make this budget point of order formally when we get back on the bill. I don't know when that will be because for right now we have gotten off of it. But I want my colleagues to know what the situation is, because it may be at 1 o'clock tomorrow morning when we have that done.

I wish to say this: This Congress has had the worst record in decades, maybe in 100 years. We haven't had a budget for over 3 years. We haven't dealt with the sequester that has to be dealt with before the end of the year.

This Senate—not the House but this Senate—has not passed a single appropriations bill. To my knowledge, I say to my colleague Senator HATCH, I don't believe we have ever failed to have a single bill, although several times we have only had a few. But now we have none, and they have made it a policy of the majority party not to bring up a single bill so we can cobble it all together in some big omnibus CR and pass it in the dead of night, maybe on Christmas Eve, after the election is over. We should have been doing that all year long.

We haven't dealt with the tax increases that are going to hammer the economy in January, and we haven't passed a budget in over 1,000 days. The House has passed a good budget which would change the debt course of America and put us on a sound path. They sent over a Defense authorization bill. They sent over a Defense appropriations bill, and most of the appropriations bills, until it became clear Senator REID said we are not going to pass them anymore. They sent over other good legislation that is dying in the Senate.

There are ways to help veterans get jobs. There are already six jobs programs for veterans now—six of them now. Maybe they could be improved or fixed, and if we do it right, we could create a bill that helps veterans get jobs without violating the budget.

Before I yield the floor, I am pleased to see my colleague Senator HATCH, the ranking member of the Senate Finance Committee. His leadership on the Judiciary Committee and Finance Committee is well-known in this body and I am honored to serve with him.

I yield the floor.

The PRESIDING OFFICER. The Senator from Utah.

UNFINISHED BUSINESS

Mr. HATCH. Madam President, I wish to thank my colleague, who makes a lot of very important points here today, and I hope everyone in this body is paying attention.

Back in June I came to the floor to discuss the many items of unfinished business the Congress must take up before the end of the year. Among those items are a number of tax-related issues that simply cannot be put off without inflicting more damage on our economy and on our American taxpayers.

When I spoke on the floor regarding this tax agenda 3 months ago, I used this chart right here.

Sadly, as you can see from this chart, things have not changed since then. We still need to resolve the death tax. As you can see, death tax relief is the third one down listed on the chart. It will expire at the end of 2012. We need to act in order to prevent a hike in the death tax in 2013. Unfortunately, rather than work to prevent an increase in the death tax, a number of my colleagues voted earlier this summer to expand it significantly.

While we have passed a bill through the Finance Committee, the Senate has yet to act on the tax extenders, which expired 9 months ago. As you can see, we have not done the tax extenders, either, on the floor.

We still have not acted to address the alternative minimum tax, or AMT, which is set to hit millions of Americans if we do not act to patch it. That is right there as the second item on this chart. This issue of the AMT, the alternative minimum tax, needs to be discussed in some detail because the failure to resolve the AMT is emblematic of the failure of this administration to take even the most basic steps to protect American families from the

tax increases looming at the end of this year. Nearly 4 million families paid the AMT in 2011. Yet, if nothing is done to address the AMT in this session, an additional 27 to 28 million families will be hit with a surprise AMT tax increase on tax day next April. Now, that bears repeating. There are 27 or 28 million families who have heretofore not been hit by the AMT who will be hit if Congress fails to act before the end of this year. But even that does not tell the whole story. More than twice that number, that is, 60 million American families, will have to fill out the AMT—alternative minimum tax—worksheet on their tax forms just to determine whether they owe anything under the AMT. This is a textbook example of the administrative burden and deadweight loss that our complicated Tax Code imposes on the American economy. For those who will be hit by the AMT, this is not just a reality that will hit on April 15 of next year, it is a reality today. Those families ensnared by the AMT are required to make estimated tax payments, and Monday of next week, September 17, the third such payment is due.

The AMT has become a unique burden because of the way it is structured. Unlike most provisions in the Tax Code, the level of income exempt from the AMT is not automatically adjusted for inflation. For 11 years, we have passed legislation to temporarily raise the AMT exemption, which was originally meant for only 155 millionaires who did not pay any taxes. But each time we face an expiration of one of these temporary raises—like we do again this year—we risk seeing the AMT return to its permanent level. Over time, that becomes more and more problematic as more and more Americans have incomes that reach the unadjusted AMT income level. These temporary exemption increases have been enacted to prevent millions of middle-class American families from falling prey to the AMT. But now, the closer we get to the end of 2012 without another AMT patch, the more likely it becomes that the tax will hit an unprecedented number of American families.

Ultimately, we need a permanent fix for the AMT. This annual shell game needs to come to an end. This tax was initially created over 50 years ago to address 155 high-income individuals who paid zero in income taxes—155 people. Because of its poor design, today an additional 27 million Americans, many squarely in the middle class, are now threatened by the AMT.

The President and his allies assure us that AMT relief is a top priority, but that seems to be just more talk. The President's budget proposed a permanent fix to the AMT by replacing it with a so-called Buffett tax, but the President's math just never added up. Supposedly, nonpartisan policy experts and fact checkers have been eager beavers when it comes to criticizing the math in Governor Romney's tax proposal, but maybe they should check the President's math as well.

If we do not eliminate the AMT, it will hit millions and millions of American taxpayers, unjustly so. The President claims a permanent fix is a priority of his. In his fiscal year 2013 budget, he proposed to offset it with the Buffett tax. People treat the President's fiscal year 2013 budget as though it never happened. In some sense, I understand that. It received not a single vote in the U.S. Senate, even with his own party controlling the Chamber. But that said, it is the President's budget. He wrote it. He presented it. He owns it. And how does it add up? Consider the math on his permanent AMT fix. Again, he proposes to replace the AMT—ostensibly helping middle-class taxpayers—with the Buffett tax—ostensibly hurting the evil rich. That sounds great until you look at the numbers. How much revenue loss would there be from a permanent AMT fix? Madam President, $864 billion, to be exact. And how much would the Buffett tax yield? Fifty billion dollars—a little less, actually. So the Buffett tax misses the target by over 94 percent. The President would need to increase his Buffett tax by over 1,600 percent to fill in the gap. There are not enough Pinocchios in all of Disney World to describe the phoniness that is the President's AMT proposal.

Ultimately, the AMT needs to go in its entirety. It will probably go as part of comprehensive tax reform. Unfortunately, President Obama and his campaign are undercutting the prospects for tax reform every day with their dishonest attacks on Governor Romney's tax proposal, a key element of which has been endorsed by the Chairman of the President's own Export Council even as his desperate campaign attacks that same feature. But absent a permanent AMT fix, a temporary patch is both a viable and a necessary option.

So here we are, with all of these must-address measures. We have the AMT, tax extenders, the death tax, sequestration, and, of course, the expiration of the 2001–2003 tax relief that threatens to throw our economy into another recession. Yet, at a moment crying out for Presidential leadership, we get campaign partisanship. The President and his allies only seem concerned about getting past the next election. At a time when serious solutions to our fiscal crisis are demanded, they offer no plans of their own. We hear that we need to stay the course, but the course we are on has provided us with four straight trillion-dollar-plus deficits and a debt that threatens not only our long-term but immediate fiscal well-being.

The President's suggestion that we can solve these problems by cutting defense spending and raising taxes on the wealthy is a parody of serious fiscal policy. It might be good for a bumper sticker, a college sociology seminar, or an Occupy Wall Street sit-in, but the numbers do not add up.

The President's mantra is that tax increases on the rich are all that is necessary to pay every bill and balance every budget. That is not an oversimplification. If you watch the President's campaign commercials, the only thing he says about balancing the budget is that he wants to ''ask the wealthy to pay a little more.'' If that is truly the extent of the President's plan for solving our fiscal crisis, he is either being dishonest or he needs to invest in a new calculator.

Let me give an example. Our Nation currently faces what some, including Federal Reserve Chairman Ben Bernanke, have called a fiscal cliff. With tax relief scheduled to expire at the end of this year, our Nation faces the possibility of being thrown into another recession. According to the CBO, that outcome is a certainty if the tax relief signed by both Presidents Bush and Obama is allowed to expire under current economic conditions. Yet, rather than working with the Republicans in Congress to extend that tax relief—tax relief that originally passed with bipartisan support and was extended in a similar fashion in 2010—President Obama has opted to hold American taxpayers hostage in order to extract a tax increase for those making more than $250,000 a year. And why? Not to help the economy and not to reduce the deficit but for electoral votes. The President and his supporters claim these tax increases are necessary if we are to get our fiscal house in order, but if you do the math, the President's proposal would only raise enough revenue to reduce this year's deficit by 5 percent. It would be just enough to fund the government's activities for about a week.

Whether we are talking about the Buffett tax in the context of the AMT discussion or the President's fixation with raising the top marginal tax rates in the midst of a historically weak economic recovery, it is clear that the President and his allies in Congress are not serious about addressing the issues most important to the American people. These issues will not go away after the election, but the President has offered no positive program for getting us out of this mess. And I have gotten quite a kick out of them saying Governor Romney should be more specific on what he is doing. Where is the President's plan? What is he going to do? How are we going to get out of this fiscal mess? Not a doggone thing being said except things that do not add up mathematically—to borrow a very important phrase by a person from the Democratic Party during our convention.

Now, the President might envision himself as this century's Franklin Roosevelt, but in this campaign the only thing President Obama has to offer is fear—fear itself. His failure to offer solutions does not just have a theoretical impact, this failure of leadership hits real people in a real way. Do not just ask those making their quarterly tax

payments on Monday. Ask any small business owner whether they are worried about their taxes going up next year. Ask any American who is having trouble making ends meet if they are concerned that Congress has neglected to address so many issues that will dramatically impact their financial well-being.

When the Senate recesses next week until after Election Day, I wonder what my colleagues in the majority will tell their constituents when they are asked why Congress has not acted on these items. This checklist right here that we were talking about before, all of those are important. We have to do those. My guess is they will say it all had to wait until after the election. That is all they can say because if they were to come clean, they would have to admit that they did not want to pass any of these things. They were more interested in campaigning on our tax problems than on fixing them.

If we go until the end of the year without addressing these pressing issues, the wound to our Nation's economic and fiscal well-being will be entirely self-inflicted. These are matters that could have and should have been addressed months ago, and we need to address all of those issues. That we have arrived at this point—three-quarters of the way through the year—without fixing these problems should be an embarrassment to the President and those in Congress who are supportive of his agenda.

I yield the floor.

The PRESIDING OFFICER. The Senator from Arizona.

Mr. MCCAIN. Madam President, I have a parliamentary inquiry. What is the parliamentary situation as it exists?

The PRESIDING OFFICER. The Senate is on the motion to proceed to S. 3521.

Mr. MCCAIN. Is the pending legislation open for amendment?

The PRESIDING OFFICER. It is not. The Senate is on the motion to proceed.

Mr. MCCAIN. How long has the Senate been on the motion to proceed?

The PRESIDING OFFICER. The Senate went to the motion this morning.

Mr. MCCAIN. I thank the Presiding Officer.

DEFENSE AUTHORIZATION

I was just glancing through the often-read calendar of business here that we chop down a lot of trees to provide on every Senator's desk on a daily basis. It is the Calendar of Business for Thursday, September 13. On page 58, for order No. 419, is S. 3254, by Mr. LEVIN, ''a bill to authorize appropriations for fiscal year 2013 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.'' This was reported and placed on the calendar on June 4, 2012. So for nearly 4 months we have had the Defense authorization bill pending on the legislative calendar.

Meanwhile, we have been taken up with other important items, such as the one we are considering now, one that praises, as we all do, our veterans, with efforts for our veterans to obtain jobs. We already have six veterans job-training programs, but, what the heck, let's have another one.

Meanwhile, the men and women who are serving in the military, who will be veterans, are not having authorized the equipment, the training, the programs, the health care, family support systems for military families, for example, strengthening training, oversight, and the prevention of military sexual assault, ensuring that reductions in military personnel are matched with comparable savings in civilian personnel and contractors over the next 5 years, without sacrificing mission-critical capabilities. It authorizes $135 billion for military personnel, for the men and women who are serving today, including the cost of pay allowances, bonuses, and a 1.7-percent much-deserved, across-the-board pay raise for all members of the uniformed armed services. It also includes nearly $1 billion in unemployment benefits for members who leave military service and cannot find civilian jobs. It authorizes all our major weapons systems and every piece of equipment large or small that the Department of Defense needs and the men and women need who are still fighting in a war.

We found out in the last day or so that we still live in an extremely dangerous world. It authorizes $525 billion for the Defense Department, $88 billion for operations in Afghanistan and around the world, and $17.8 billion to maintain our nuclear deterrent. I think we have just seen with the tragic death of our Ambassador that al-Qaida and other extremist organizations are making a comeback in places such as Iraq and Afghanistan; certainly extremists were present in Libya in the tragic death of four Americans.

This legislation enhances the capabilities of our military and partners to counter and ultimately defeat al-Qaida and its regional affiliates which remain intent on attacking the United States and our interests.

But there is an issue that all of us are concerned about, cyber warfare, those attacks that we know are coming sooner or later. This legislation improves the ability of our Armed Forces to counter nontraditional threats focusing on terrorism cyber warfare and the proliferation of weapons of mass destruction.

I could go on and on about the importance of this legislation which has been before this body for 4 months. And what has the Democratic leader of this Senate done? We are about to go out of session next week without addressing the most important responsibility of this Senate and their elected representatives which is our Nation's defense.

In the meantime, when we take up bills, the majority leader ''fills up the tree.'' A lot of people do not know what that means. That means we cannot have an amendment. Then we vote and we drop that particular piece of legislation. Then the next week we will take up a piece of legislation that somehow will enhance the majority leader's ability to maintain his position as majority leader, certainly not believing that that legislation will actually be passed by the Senate.

Every year for 51 years the Senate has passed the Defense authorization bill, it has gone to conference and been signed by the President of the United States. The majority leader of the Senate and the Members on the other side of this body have been derelict in their duties, and we are about for the first time in 50 years not to authorize what the men and women who are putting their lives on the line for us every single day need very badly.

You know, sometimes my colleagues wonder why the American people hold us in such low esteem. If we cannot enact legislation that has us carry out our most important duties as representatives of the people, including the men and women in the military, then I am surprised that so many Americans still approve of the way Congress operates.

What have we watched here on the floor of the Senate for the last 4 months since this bill was put on the calendar and could have been taken up, debated and passed by the Senate as we have every year for 50 years? The majority leader of the Senate has refused to bring this bill before the body for debate, discussion, amendment and passage, our most solemn responsibility.

All I can say is, shame, shame, shame that we have not fulfilled the responsibilities to the men and women who are sacrificing their very lives on our behalf, a failure of colossal proportions. All I can say is I believe that the American people are aware, and I believe the American people deserve a lot better than they are getting from this body.

I yield the floor.

The PRESIDING OFFICER (Mr. COONS.) The Senator from New Hampshire is recognized.

Ms. AYOTTE. Mr. President, I want to follow up on the comments of the distinguished ranking member on the Senate Armed Services Committee who, of course, through his own service and sacrifice for our country knows too well how important it is for us to stand with our men and women in uniform. I wanted to follow up on what he said.

This body is about to go out and adjourn next week without passing a Defense authorization bill. It would be the first time in over 50 years in the history of our country. There is no plan that we have heard from the majority leader as to when we will take up this incredibly important legislation for our country.

What Senator MCCAIN has already outlined addresses issues such as pay for our soldiers and the equipment they

need and benefits they deserve and they have earned, and all of the important issues that impact the protection of our country, and making sure we stand in faith with our men and women in uniform.

But I have to say that, unfortunately, this is part of a pattern of where we are right now in the Senate. It is very disappointing. I got elected in 2010. I know the Presiding Officer did as well. I came here because I saw that our country was in trouble. At the time I ran, we were $13 trillion in debt. Now we are $16 trillion in debt.

I have the privilege of serving on the Senate Armed Services Committee. It really is a privilege. I am the wife of an Iraq war veteran, very proud of our men and women in uniform. I take that responsibility very seriously. But here we stand, about to adjourn without taking up Defense authorization, so important to our men and women in uniform. Here we stand about to adjourn with our military facing what is called sequestration, which is an across-the-board cut which our own military leaders have said will hollow out our force, will undermine our military security for generations. These are the words of our own Secretary of Defense, will break faith with our men and women in uniform. If we do not take action before January 1, this happens to our military, on top of the fact that we have not taken up Defense authorization.

But not only that, it has been 3 years since the Senate has taken up a budget for our country, which is one of the reasons we find ourselves in the situation with the hatchet coming to our military in January.

On top of that, the majority leader has not brought forward one appropriations bill that would go with, if done in the right way, the appropriate budgeting and responsible budgeting process for this Nation. Let's identify some of the appropriations bills. None of them has come to the floor. But there are two important ones I can think of for our men and women in uniform, the Defense appropriations and also the appropriations for our veterans. Yet none of that has come to the floor, and here we are about to adjourn next week, not doing the people's business, the reason why people sent us here. If we cannot have a budget and we cannot take care of the foremost responsibilities of the American people, which is to keep them safe through preventing Draconian defense cuts that are going to undermine and break faith with our military, and, by the way also will cost us a million jobs coming in January, along with I did not even mention our tax rates are expiring, yet we are all leaving town, I think it is irresponsible.

I would call on the majority leader to bring up the Defense authorization bill now. Why can't we do a budget for this country? Without a budget, how are we ever going to address the fiscal issues that are burning and have led us to be $16 trillion in debt?

I stand here today to talk about why we should bring the Defense authorization to the floor. I certainly do not want to be part of a Senate that for the first time in 50 years has not passed that Defense authorization bill for our men and women in uniform.

Here is what is important as well. In the Senate Armed Services Committee we passed Defense authorization out of committee unanimously. At a time when I understand the American people are looking at us saying, there is too much partisanship, we see you fighting too much, this is a bill that passed with unanimous support from Republicans and Democrats from that committee. So in terms of a bill we can bring to the floor that is incredibly important to our country, incredibly important to our men and women in uniform, and a bipartisan bill, I cannot think of a better thing to do for our men and women in uniform, rather than continuing to have what we have seen from the majority leader, which is sort of political show votes rather than doing the real work the American people have sent us here to do.

Defense authorization should be on the top of our list, preventing our military from these receiving these devastating cuts that are going to diminish our national security at a very troubling time in the world, and also averting this fiscal crisis that is coming in January. I think we should stay to do that. I think the American people would expect nothing loss of us.

I thank the Presiding Officer. I know the Senator ran in 2010. I am sure you heard this when you ran for office. We need to do better by the American people. I know this. We owe it to our brave men and women in uniform to pass Defense authorization—bring it to the floor, debate it robustly, and then make sure it goes forward.

The House passed their Defense authorization on May 18. We should do our job here as well and take it up right away. I hope the majority leader will do that.

I yield the floor.

The PRESIDING OFFICER. The Senator from Alabama.

Mr. SESSIONS. Mr. President, I thank Senator AYOTTE. She is a great member of the Budget Committee and a very active and aggressive member of the Armed Services Committee. She is the wife of an Iraq veteran, and knows and cares about these issues and contributes greatly. She and some of our other new Members have been flabbergasted to see how little has been accomplished in the 2 years they have been here. In my experience, Senator AYOTTE, this is the worst performance in the 16 years I have ever seen in the Senate. It may be the worst performance in 100 years.

As the Senator mentioned, the House passed the Defense authorization act in May. They passed a Defense appropriations bill in July. We have had all summer and done nothing. The Senator is so correct. We had some intense and good debate in the Armed Services Committee over that bill. Yet when it finished, we had a unanimous vote. I thought that was special. So why did the bill not get brought up? I do not know. I feel as if we have missed an opportunity to do our duty. Not only have we not had a budget, not only have we not had a Defense Authorization bill or a Defense appropriations bill, we have not had 1 of the 12 appropriation bills brought to the floor, not 1. I believe that has never happened perhaps ever before, at least in maybe a century. The decision that was made by the Democratic leader was supported by his conference. He cannot just do things that his conference does not support, so they have decided not to do this. We end up at the end of the year with this massive CR with multiple changes. They say it will be a clean continuing resolution to fund the government for 6 months at the same level of funding. That is not exactly accurate. There are some things in it. But it is not the way to do business—to have every one of the bills cobbled together, all 12 appropriations bills cobbled together, in one 6-month, half-year, appropriations bill. Because, you see, as of September 30, if we don't pass the appropriations bills, the government shuts down. Under the law and the Constitution this government cannot spend a dime that Congress has not appropriated. That is the way the government works. We have to appropriate money before some bureaucrat can spend it.

The House has done their duty but not the Senate. We have not passed a single one. So what will happen to avoid the entire government being shut down, the entire Defense Department being hammered? What will we do? We will pass a continuing resolution that continues to fund the government. For now, we understand it will be 6 months, and that would be a substitute for doing what we should have done. What will we do 6 months from now? Will we have another 6-month CR or will we actually pass appropriations bills?

I appreciate the leadership of Senator AYOTTE and her participation. I have heard her express her frustration as a new member of the Budget Committee that we haven't had a budget and didn't bring one up in the Budget Committee and didn't vote on it. As the ranking member of the Budget Committee, it was a deeply disappointing thing for me. That was a decision made by the majority leader, Senator REID, who said it would be foolish to have a budget. Now we have gone about 1,233 days without a budget in this country and it has created this kind of dysfunction in our government. I don't think it is acceptable. I don't believe there is an excuse for it. I believe it has been done purely for politics, and that is not good, not when the men and women in uniform are serving us, at risk of their lives, losing life and limb on behalf of this Congress because we sent them there and asked them to undertake a

dangerous job. Yet we can't even get together and get a bill to the floor.

I would say we worked hard in the Armed Services Committee. A bill Senator LEVIN and Senator MCCAIN led us to pass was passed unanimously. It was bipartisan. There were some things I would have liked to have seen done differently, and Senator MCCAIN and Senator LEVIN may have had different ideas, but we couldn't get everyone to agree with everything we liked. We did, however, get a pretty good bill and it was within the budget and it was the kind of legislation we need to pass.

So the House has passed their authorization bill, within the budget, and similar to our bill. We should be able to conference and produce legislation in a reasonable amount of time. But when a bill such as that comes to the floor, people are entitled to have amendments. They are entitled to offer an amendment, as Senator PAUL wants, to cut off funding for some foreign aid we have been putting out. But some people don't want to vote on that. It might not be an easy vote, but this is the Senate. People are entitled to offer amendments, they are entitled to have votes on issues they believe in and they campaigned on and they advocate and they are entitled to get their vote. But if it is a tough vote, it seems around here the leadership on the other side doesn't want us to talk about it. They do not want to be on record as voting. So that is a disappointment to us.

I think Senator MCCAIN spoke with clarity. He spoke as a man who served his country, who has been in harm's way, who suffered on behalf of our country, who understands foreign policy, who understands the Defense Department, and understands Congress. His comments were solid, on point and correct, and I hope all Americans listen to him.

I appreciate the opportunity of sharing my disappointment at this point and just want to make one last point before I yield the floor.

Senator MCCAIN, earlier today, and I and others, talked about the sequester. That has to be fixed by the beginning of next year. It needs to be fixed now. We can fix it now. We will fix it, in my opinion, sometime between now and the end of the year. It would be so much better if we brought it up, confronted the difficulties of the sequester and fixed it now rather than leaving a cloud over the Defense Department.

If we somehow fail to alter this sequester, this bill that is currently on the floor—the Veterans Jobs Corps Act—becomes very insignificant because we are going to be laying off so many members of our military who maybe just recently got back from a deployment overseas, in harm's way, who would like to make a career in the U.S. military. Maybe that is their plan and they all of a sudden get a blue slip. All of a sudden they hear Congress couldn't confront the sequester, we don't have money, and we are going to have to lay them off.

Don't think that is not possible. Because if this sequester goes in place, we are going to have to reduce personnel numbers in our military significantly. We have already taken almost $500 billion out of the Defense Department over 10 years. The sequester would take even more—an additional $492 billion in this sequester—and it cannot be done without more personnel reductions.

We have already assumed a decline of military personnel with the overseas deployments going down—some decline. But this would be a rapid, dramatic decline to meet the demands of the cuts of the sequester that are unwisely being imposed at this point, and it would cause substantial layoffs as well as substantial procurement problems.

So I hope we will think about that as we go forward. If we can't get it done before we recess, it needs to be done promptly. It should have been done this summer, and I feel like the leadership of the Senate should have been active in that. I think the President of the United States should have talked to his Secretary of Defense, who said the sequester would be catastrophic, would hollow out the military. He should have talked to Secretary Panetta, and he should be over here with Congress providing some leadership, saying: Mr. REID, fix this sequester. We cannot allow it to happen. I am the Chief Executive of the U.S. Government, I am the Commander in Chief of the U.S. military, and you are going to do damage to the military of the United States. It is my responsibility as President to insist that you and Congress get this thing done. I am prepared to provide leadership and suggestions and help to get it done.

Has the President done that? No. He has not said one word about our advancing or putting any effort into leadership that would lead us to fix this problem. I think that is disappointing. I have to say it is. Maybe others think it is all right for him to lead from behind, to sit in the White House and go make speeches and not worry about the sequester and not worry about the fact we haven't passed a Defense bill. I don't think so. I think you are still President of the United States, even when you are running for reelection. I think a phone call or two to the Senate leadership would get the ball moving. That is about all it takes, frankly.

It seems to me the White House is perfectly happy with inaction. That is the bottom line, in my opinion. They are perfectly happy. They want to tell the Republicans: If you don't raise taxes, like we want taxes to be raised, we are going to hammer the Defense Department. But he is Commander in Chief. He has a moral obligation to those men and women, to make sure we are safe and they are treated fairly. I don't think that is responsible.

I yield the floor, and I suggest the absence of a quorum.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

FAILED ECONOMICS

Mr. MCCONNELL. Mr. President, anyone who happened to be watching the Senate floor a little earlier today got a taste of why, in the midst of a national job crisis, Americans are still in danger of being slammed by one of the biggest tax hikes in history; why the U.S. military is today at risk of cuts that would devastate national security; and why there is now a very good chance another major ratings agency will downgrade our Nation's credit.

There is a reason all these things may actually happen, and it has nothing whatsoever to do with the Republicans:

The Nation is at risk of an entirely avoidable economic calamity because the President of the United States and the Democrats who control the Senate would rather spend their time picking apart PAUL RYAN and his budget plan—which the House has already passed—than producing one of their own. They would rather sit on the sidelines and hope people focus on the other guy's attempts to solve our most pressing domestic problems than bother to do anything about them themselves. This has been the Democratic M.O. for 2 long years, and it is a disgrace.

Later today the House will pass a 6-month continuing resolution to fund the government beyond the end of the month. Why? Well, because Democrats refuse to do the basic work of government. The Democratic Senate hasn't passed a budget in more than 3 years. This year they haven't passed a single appropriations bill. For 2 years Democrats have done nothing—nothing but cast blame.

The law says Democrats have to pass a budget. A simple majority can pass a budget. The law has been ignored. The President proposed a budget of his own. They have opposed that one as well.

The Nation is just 3½ months away from going off a fiscal cliff, and they actually seem to welcome it because their overriding goal isn't to help the American people find work, it isn't to get a handle on the debt, it isn't to give small businesses a boost, it is to make government even bigger than it already is. And they are perfectly willing to let the country plunge into an even deeper economic mess to ensure they get the bigger government they want. That is how extreme Washington Democrats have become.

They are on an ideological crusade. They spent the first 2 years of this Presidency putting their policies in place, and when they lost their big majorities in Congress they decided to sit on their hands rather than change their approach, as all of these challenges built and built and built.

For 2 years this President got absolutely everything he wanted legislatively. Aided by giant majorities in both Houses of Congress and goaded on by a chief of staff who told him to brush aside any pleas for bipartisanship, he spent 2 years putting into

place the big government agenda he and his liberal allies had dreamed of—an agenda so extreme that their biggest challenge was making sure Members of their own party didn't defect.

The results of those efforts are clear for all to see. Unemployment has been above 8 percent for 43 straight months. Growth is an anemic 1.5 percent, the slowest recovery since the Great Depression. The Federal debt is a stratospheric $16 trillion. A full 15 percent of Americans are now on food stamps. The Census Bureau said just yesterday that household incomes have declined every year of the Obama administration, and one out of six Americans is living in poverty. And the labor participation rate—the percentage of those who can work who are actually working—is at its lowest point in decades.

If we count people who have given up looking for work, unemployment is above 11 percent, not the 8 percent we read about. These are the grim realities of the Obama economy. And make no mistake, the framework for it was laid in 2009 and 2010.

So, yes, President Obama and Governor Romney have different philosophies on how to lead America back to prosperity. But the biggest difference is this: One of them has had 4 years to implement his vision, and it should be obvious to everyone it has been a total failure. It has failed to lift us out of a jobs crisis. It has helped prevent the type of recovery we all know is entirely possible. Yet all we get from the President or from Democrats in Congress is feel-good rhetoric, attacks on Republicans who are actually working to solve our problems, and political show votes that are deliberately designed to fail.

Blame the other guy and maybe people will not notice your own refusal to lead or the implications of your own vision. Because, make no mistake, in order to fund the government this President wants, there would be no choice but to go after the very middle class he claims to be fighting for.

That is the dirty little secret behind the President's vision for America. That is the math he didn't mention in Charlotte, and that is the real story about what has been going on around here for 2 long years. The President and Democrats in Congress laid the foundation for the economy we are in right now. They were so sure it would work that the President said if it didn't, he wouldn't deserve reelection. Well, it didn't.

So for the last 2 years Republicans in Congress have done everything we could to convince the President to go in a different direction, to change course. He didn't. He doubled down on the same failed policies, and when he wasn't able to get them through Congress, he blamed Republicans for the consequences. Well, blaming us for the results of his policies is almost as ridiculous as concluding that the vision behind them will be any more successful over the next 4 years than it has been over the last 4 years.

It is time for Democrats, from the President on down, to stop blaming others and to start leading. Our problems are too serious and our challenge is too urgent to wait another day to act.

TRIBUTE TO JAMES BILLINGTON

Mr. MCCONNELL. Mr. President, tomorrow the Librarian of Congress, Dr. Jim Billington, will mark 25 years on the job, and so I would like to just say a few words of congratulations in honor of his service.

Dr. Billington has enjoyed a distinguished career. He is a Rhodes Scholar, earned his doctorate from Oxford, served in the Army, and taught history at Harvard and Princeton. He is a renowned author and a Russian scholar, advising numerous Members of Congress, administration officials, and even Presidents.

Dr. Billington's tenure at the Library of Congress has been exemplary. His most significant contribution is certainly his vision to bring the Library of Congress into the 21st century by digitalizing its collection. Because of his actions, Dr. Billington has expanded the Library of Congress's reach into thousands of educational institutions and millions of homes here and throughout the world. Under Dr. Billington's leadership, the Library of Congress has strengthened and flourished.

So today we honor and we thank Dr. Jim Billington for an outstanding job leading the Library of Congress for the past 25 years. We wish him continued success and thank him for a lifetime of service to inspiring and educating others.

Dr. Billington, congratulations.

Mr. SCHUMER. Mr. President, I too wish to offer congratulations and gratitude to Dr. James H. Billington on the occasion of his 25th Anniversary as Librarian of Congress on September 14, 2012.

Dr. Billington was sworn into office as the 13th Librarian of Congress on September 14, 1987, after being nominated by Ronald Reagan and unanimously confirmed by the U.S. Senate. A distinguished Rhodes Scholar, author, and humanitarian, he has received over 40 honorary doctorates and has authored several books on Russia and the former Soviet Union. Earlier in his career he served in the U.S. Army and taught history at Harvard and Princeton Universities. Later he went on to become the director of the Woodrow Wilson International Center for Scholars in Washington, D.C. where he founded the Kennan Institute for Advanced Russian Studies and seven other new programs as well as the Wilson Quarterly.

Mr. Billington's tenure at the Library has been remarkable for his vision, his commitment to excellence, and for the wide-ranging intellect and experience he has applied to making the Library of Congress one of the most respected citadels of knowledge in the world.

Dr. Billington led the Library into the digital age, giving on-line access to its many treasures to Members of Congress and people throughout the world with the Library of Congress National Digital Library Program, the THOMAS data base, and the Open World Program. He oversaw the establishment of the Kluge Center, an endowment fostering scholarly interaction between world thinkers and policy makers that includes a million-dollar prize honoring lifetime achievement in the study of humanity. His encouragement and enthusiastic leadership led to the creation of the Packard Campus Audio-Visual Conservation Center which consolidated all of the Library's recorded sound and film collection in a single, state-of-the-art facility for conservation and permanent archival storage. These are just some of the many accomplishments for which he will be long remembered.

Dr. Billington has also overseen the restoration of the Thomas Jefferson and John Adams buildings. Today, the Thomas Jefferson building, with its pristinely restored marble columns, staircases, mosaics, and paintings is considered to be one of the most beautiful public buildings in America.

As Chairman of the Joint Committee on the Library and Chairman of the Senate Committee on Rules and Administration, I extend my appreciation to Dr. Billington for his visionary leadership and extraordinary accomplishments that have made the Library of Congress, one our greatest national institutions, the remarkable place that it is today.

Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. THUNE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. THUNE. Mr. President, I ask unanimous consent that I be allowed to speak as if in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

THE RYAN BUDGET

Mr. THUNE. Mr. President, all week my Democratic colleagues in the Senate have been coming to the floor and using scare tactics and demagoguery on the so-called Ryan budget. Of course, what they are referring to is the budget that was passed by the House of Representatives months ago.

I suppose it is fair anytime someone produces something to have that criticized, critiqued, scrutinized, looked at, and discussed. But at the same time it seems if someone is going to attack the product that somebody else had put forward the natural follow-up question would be: So what are you proposing? Where is your budget proposal?

I think it begs the question on behalf of the American people that the Democrats in the Senate who want to attack the House-passed budget haven't produced a budget of their own.

It has been over 1,200 days—1,232 to be precise—that we have not considered a budget in the Senate. For those who are trying to do that arithmetic in their minds right now, that is 3 years and 4 months—3 years and 4 months without a budget in the U.S. Senate. That, at the same time that we continue to get bad news about the economy.

This week we received news that Moody's intends, if we end up going over the fiscal cliff next year, to downgrade America's credit rating. That would follow with other credit rating agencies that have already made that assumption about the American economy and the American fiscal situation. We also received notice last week that the World Economic Forum had downgraded America's global competitiveness.

When President Obama took office in January 2009, America was ranked first in the world when it comes to global competitiveness. We dropped down to fourth or fifth in the last year or two. But just in the last couple of weeks, the World Economic Forum has dropped the United States even further. We are now seventh in the world when it comes to global competitiveness.

The reasons they cite for that are many, but it comes back to the basic issues of spending and debt and taxes and regulations and redtape and the cost of doing business in this country. It seems as though the Democratic solution is to tax more so we can spend more. Raise taxes to grow government. That seems to be the only solution the other side is willing to put forward.

Now, when I say that is the only solution, that is what we hear coming out of the White House in terms of the so-called fiscal cliff and in terms of the response to dealing with the sequester: Well, we could do away with the sequester if we just had more revenues. If Washington could just raise more money—more tax revenues—from the American people, this problem would all go away.

But what it misses is the fact that the real issue in Washington, DC, isn't that we tax too little; it is that we spend too much. Washington has a spending problem that needs to be corrected. At least the House of Representatives put forward a budget plan that addressed the fundamental problems that plague our Nation's fiscal situation.

You look at what we are facing in terms of obligations, liabilities, responsibilities in the years in the future—Medicare, Social Security, Medicaid, other programs—they continue to grow at two or three times the rate of inflation. That is not sustainable. That is going to lead us to bankruptcy. We are on an unsustainable fiscal path. The trajectory we are on today cannot be sustained over time. Yet we have not seen any proposal put forward by the Democrats here in the Senate—not just for this last year but the year before that and the year before that. It has been 3 years and 4 months now since the Democrats in the Senate have put a budget on the floor that we would have an opportunity to vote on and to give the American people at least an idea about where we want to lead this country.

So when they come down here, hour after hour, day after day, night after night, attacking the House-passed budget, I think the American people have to say to the Democrats here in the Senate: Where is your plan? Where is your budget? Show us what you would do. Show us how you would address the fiscal crisis we are facing.

The answer is, there is none, it is nada, it is zero. There is not one, no budget, no plan, not this year or the year before or the year before that. For 3 years and 4 months now there has not been a budget put on the floor of the Senate for us to vote on, for us to discuss, for us to have any kind of conversation about the future of this country and what we are going to do to address the fiscal crisis that we all acknowledge exists.

This is the most predictable crisis, as has been pointed out, in American history. We all know where we are headed. You can look at the numbers. It is not complicated. It is not rocket science. It is simply a function of math and the math is working against us, and every day we wait it becomes more complicated, difficult, and problematic, I believe, for us to solve this problem, and it further threatens the future and puts at risk our children and grandchildren and the quality of life and the standard of living they are going to experience and enjoy in their lifetimes.

When the ratings agencies such as Moody's come out and say that this fiscal cliff, if we go over it, means a downgrade in the credit rating of the United States, when you have organizations such as the World Economic Forum say that the United States is now seventh when it comes to global competitiveness as opposed to first—which is where it was when the President took office—we all should take notice. It is another flashing light, another warning sign, another red flag, if you will, that things are not well in the United States of America. Yet the only proposal that has been put forward that would address that is the budget passed by the House of Representatives. Why? Because the U.S. Senate again has not passed a budget. We have not produced a budget now for over 3 years.

It is interesting because one of my Democratic colleagues who was down here talking earlier this week described the budget as a set of values; in attacking the House-passed budget, that somehow the House-passed budget represented the wrong values. It did not represent, somehow, American values. If the budget represents a set of values, what does it mean, then, when you do not have one? If you do not have a budget, what does that say about your values?

It seems to me, at least, that at least the House of Representatives, to their credit, has put forward a proposal that, whether or not you agree with it, does address the fundamental problems we have as a Nation; that is, out-of-control Federal spending, a trajectory with regard to entitlement programs that literally will bankrupt the country, and a Tax Code that is overly complicated that needs to be reformed. Those were all addressed in the House budget. A lot of people attacked the whole idea in the House budget with regard to Medicare reform, which is referred to as premium support. Premium support is not a new idea. It is something that was popularized by liberal think tanks years ago. In fact, this year the House-proposed idea, when it comes to premium support, was something advanced by Representative PAUL RYAN and Senator WYDEN here in the U.S. Senate. It was a bipartisan idea.

It was also something advocated by the Rivlin-Domenici task force that looked at our fiscal situation, made recommendations, and when it came to the notion of how to reform Medicare, premium support was something that was put forward as something that could be a new idea that can save the government—the taxpayers—money, introduce competition in the same way that the Medicare Part D Program has introduced competition and actually saved money over what it was proposed to cost.

It is not a new idea. It is an idea that has been tried. When Medicare Part D was adopted, the premium support concept was included as part of that and you can see the results of that have led to lower costs, much lower costs than were predicted. Frankly, that is, I believe, because it introduced the element of competition into the whole way we deliver health care services under Medicare. That was something that was proposed and built upon, developed as part of the budget that was passed in the House of Representatives. But, again, it is something that is not new around here. It has had lots of support in the past from Democrats.

It seems to me at least that if we know what we have today is not working, we ought to be willing to at least entertain a discussion and conversation about some ideas that might actually solve the problem and might work. Yet here in the Senate for 3 years we have not had a budget.

Some would argue that the President of the United States has put forward a budget. In fact, as a matter of I guess delivering a set of papers to the Congress, he did do that. But I would argue and I think most would agree it was not a serious effort. It certainly was not a meaningful attempt to address

the issue of spending and debt or entitlement reform and that was evidenced by the fact that when it was put on the floor in the Senate to be voted on, it was defeated by a vote of 97 to 0. In the previous year the House of Representatives had a vote on the President's budget. That year it was voted down in the House by something like 419 or 420 to 0. The President's budget for 2 consecutive years here in the Senate has not received one vote from any Democrat in either the House or the Senate.

That should speak volumes about the President's attempt to do this. I think what it suggests is it was not serious, it did not make a real effort at trying to address the issues of spending and debt and getting the economy growing again and reforming our Tax Code and driving down the cost of doing business in this country instead of increasing the costs, which is something that seems to be happening every single day. As I travel across my State of South Dakota and listen to businesses from other parts of the country, I hear over and over again that the cost of doing business is making us uncompetitive. We continue to be saddled with regulations, with requirements, with mandates, with taxes. Those sorts of things, the redtape of doing business, are making it incredibly difficult for our small businesses and job creators to get this economy back on its feet and get it growing again.

I would simply say in response to the attacks that have been leveled by my colleagues on the other side on the proposal that was advanced and put forward by the House Republicans, that it would bode well if you want to have a debate about priorities, if you want to have a debate about values and if you want to have a debate about budgets, to have one. It starts with a budget. We don't have one. We do not have any plan for how we are going to deal with the very factors, the very elements that led organizations such as Moody's and the World Economic Forum to determine that the United States credit rating is in jeopardy and that our global competitiveness has dropped from first in the world to seventh.

Those are things I think we ought to be talking about, and you cannot start talking about those things unless you have a plan, unless you have a budget that describes what you would do to address the drivers of Federal spending, the drivers of Federal debt.

Again I cannot emphasize this enough: the only thing I hear coming out of my colleagues on the other side to address it is we need more revenues. We need to raise more taxes. We don't have enough revenue. If we could raise more revenue we could solve all those problems. I say to my colleagues what we have here in Washington, DC, is not a revenue issue, we have a spending problem. Washington does not tax too little, it spends too much. That is why we need to get spending under control, but it starts with the budget.

I think it behooves our colleagues on the other side, as they come down here day after day and berate and attack and suggest somehow that the budget that was passed by the House of Representatives is not representative of American values, to come down here with something of their own that might lay out a plan that actually does address Medicare reform, Medicaid reform, tax reform—the things that we know have to be dealt with in the future if we are going to hand a better and more prosperous and stronger Nation to our children and our grandchildren. That simply has not happened.

They can come down here and say what they want, but when there is no budget, there is no blueprint, there is no plan, then there is no path forward that addresses these difficult, complicated challenges and problems that face us and face our Nation in the future. I hope we eventually see that. I hope the President will come to the table and that we can sit down and talk about how we are going to solve the fiscal cliff we are headed over at the end of this year. Again, it is not just the credit rating, it is not just global competitiveness, it is the American economy that is at stake as well. The Congressional Budget Office has said if we go over this fiscal cliff where taxes go up on January 1, where these disproportionate cuts take effect on the military budget, we are looking at an economic recession next year, a contraction of the economy of 2.9 percent and unemployment above 9 percent. This is about America's standing, about our competitiveness, and it is about jobs in the economy, fundamentally. It is high time that we had help and cooperation and an idea, perhaps, from the other side about how they would solve these problems. I hope we will get that.

I yield the floor.

The PRESIDING OFFICER. The Senator from Maryland.

Mr. CARDIN. Mr. President, first I note Senator GRASSLEY is on the floor and I thank him for the courtesy of allowing me to go next.

I ask unanimous consent to speak as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

THE FARM BILL

Mr. CARDIN. Mr. President, I take this time on behalf of Maryland farmers. They are hurting, along with many farmers around the Nation, because of the devastation from the drought. I am talking on behalf of the poultry farmers. As the Presiding Officer knows, in the Delmarva peninsula the impact they have had from the drought on the corn crop makes it extremely difficult to make ends meet. I am talking about dairy farmers in western Maryland. We have a robust agricultural community. It is one of the largest parts of our economy. That is true in just about every State in the Nation. We have seen the worst drought in 50 years. It is affecting 42 States in this Union. This is widespread. Congress needs to act.

First we should encourage our colleagues in the House of Representatives to take up and pass the farm bill that we have passed. That was a bipartisan bill. It was a bill that was debated in this Chamber. It is a bill that would help our agricultural community to get through this crisis brought about by extreme weather. As I mentioned, the farm bill was a bipartisan effort. It dealt with many components that would help segments of our agricultural community as a result of the conditions from the drought. Let me mention a few.

The livestock disaster provision that expired in 2011 in the farm bill is strengthened, it is made retroactive back to 2012, and it would help those who are in the cattle producing part of agriculture get through the conditions of this drought. Seventy-two percent of the cattle-producing areas are affected by the drought. It is going to have an effect on our entire country. We have a responsibility to make sure our farm policies help them get through the unusually disastrous weather conditions. As I mentioned earlier—and the Presiding Officer being from Delaware knows the poultry industry has suffered unbelievably. The reason, quite frankly, is—and I will talk a little bit more about this—the price to produce a chick in the poultry industry is so much dependent on the price for feed and corn. The corn price is extremely high as a result, in part, of the drought conditions.

The farm bill we passed would help the corn producers which, in fact, would help the poultry industry, so it is an important part of the farm bill. From my fruit and vegetable growers, the reform in the Crop Insurance Program would help them during these very tough times.

Let me mention the conservation programs. I know Chairman STABENOW has talked about this frequently on the floor, but the farm bill we passed reforms the conservation programs and allows our farmers to do the right thing. One of the things we learned from the Dust Bowl—the crisis we confronted in the 1930s—was that we have to take care of and protect our water and soil. We need to be attentive to water and soil. After the Dust Bowl crisis, we passed in the Congress different types of conservation acts.

The farm bill we passed in this House consolidates, reforms, and strengthens the conservation programs so our farmers can do the right thing not only for producing today but producing tomorrow and taking care of the circumstances we know Mother Nature will be throwing at us. We can't do anything about that until the House takes up the farm bill. They have yet to take it up.

I urge my colleagues in the other body to take up this bill. We need to do that for many reasons, one of which, of course, is the extreme conditions that the agricultural community in this country is confronting as a result of this drought.

Let me talk specifically about poultry. On the Delmarva Peninsula, the poultry industry is in crisis. It is in crisis. The Senator from Delaware, the Presiding Officer, understands this. Seventy-five percent of the cost to produce poultry is in the price of feed. The poultry industry uses corn for feed. They need to have corn. At the present time, corn is approaching $9 a barrel. What does that mean? If the price is at that rate, it would cost about $2 per pound to produce a chick for market. The retail price is $2 a pound. It doesn't take too much of an economic background to know we cannot make it under those economic conditions.

Our poultry industry needs help. They need to be competitive, and it is difficult to do that when we are so dependent upon the price of corn. The problem with corn is we are competing uses. It is not only used in the food chain, it is used as an energy source as a result of corn-based ethanol, which distorts the food chain.

I have introduced legislation, along with Senator BOOZMAN and Senator MIKULSKI, that would modify the renewable fuel standards. Those are the standards which require a certain percentage of our renewables in corn ethanol. It would modify that, and let me explain how. It would link the amount of corn ethanol required for the renewable food standards to the amount of the corn supply. That makes sense. When we have more corn, fine, we can meet the renewable standards. But this year we have had drought conditions so we have much less corn. As a result, corn is going up in price, making it very difficult for our poultry industry. So then the requirements would be reduced. We think that makes sense. That is using market forces to help meet our energy needs but also to help deal with the realities of the poultry industry.

I have also joined with Senator HAGAN, Senator CHAMBLISS, Senator PRYOR, and Senator BOOZMAN in authoring a letter to the Environmental Protection Agency calling for them to waive the renewable fuel standards conventional ethanol product mandate for this year. Again, let the farmers be able to compete. Don't let us distort the marketplace.

Let me just say, in summary, agriculture is critically important to this country for many reasons. It is one of the largest parts of our economy, it is important for our national security, and it is part of our way of life. We lead the world in agriculture productivity. It is important for us on international trade and all the reasons I mentioned. We need to be attentive to how we deal with agriculture in this country. We need a farm and agricultural policy.

The farm bill we passed is necessary to be enacted or we are going to have a lapse in our agricultural programs. We have done our work. It is critically important before the House goes home that they take up the farm bill. I hope they will pass our farm bill in order to help farmers in Maryland and around the Nation. I then hope we would also pay special attention to the poultry industry, to recognize that because of the price of corn related not just to the food chain but to energy we have a responsibility to help an industry that is so dependent upon corn as a commodity to produce the poultry product.

We need to help our agricultural community to do the right thing. It is important for our country, and I urge my colleagues to pay attention to these issues before we recess for the fall elections.

With that, I yield the floor.

The PRESIDING OFFICER (Mr. BLUMENTHAL). The Senator from Iowa.

Mr. GRASSLEY. I come to the floor to discuss the State of our economy and to give suggestions on how to improve it. But before I go to the main purpose of why I came here, I wish to say to the Senator from Maryland that I agree with him. The House of Representatives ought to take up a farm bill. I hope they will, and that is my urging.

I also wish to take advantage of the opportunity to explain a little bit about ethanol and how that works in with the situation he brought up about increasing feed for chickens or any other animals.

This year, farmers planted 96 million acres of corn. There were more acres of corn planted than in any other year since 1938. Most of that is because of the ethanol industry. If we didn't have the ethanol industry, we would normally plant somewhere between 80 and 85 million acres of corn.

Let's assume we never heard of the word ''ethanol'' or the product ethanol, that it didn't even exist, and farmers planted the usual 80 to 85 million acres of corn. Let's also assume we had the same drought we had this year—over about two-thirds of the United States—and the corn crop is going to be reduced because of it. If we planted 80 to 85 million acres of corn and we had the same drought, we would still have the high price of grain we have right now, but we wouldn't have ethanol to blame for it.

So the marketplace is bringing about the increased production of corn because of feed, fuel, and fiber. We should not be scapegoating ethanol, because if we didn't have ethanol to blame, we wouldn't be planting 95 or 96 million acres of corn. We would be planting about 80 to 85 million acres of corn and we would still have the same high price and the same problem for the poultry producers.

ECONOMIC LEADERSHIP

Now to the point that I came to the Senate floor. We all recognize our Nation faces challenging times. We have had years with unemployment at unacceptable levels and anemic economic growth that shows no sign of lifting us out of the situation. Meanwhile, rampant government spending, which we were promised would jump-start the economy and create jobs, has instead displaced private sector investment and choked off job creation. More and more Americans are starting to doubt that their children and grandchildren will have better opportunities than they had, not to mention the fact that they will be forced to pay for all that spending.

We keep being told by President Obama and members of his party that change is just around the corner. If we just keep doing what we are doing, things will get better. After almost 4 years of failed policy and dashed hopes, that line is wearing thin. Fortunately, our problems are not insurmountable and the solutions are common sense. All that is needed is sufficient leadership to make the tough decisions.

In fact, this is the same situation Great Britain faced in the 1970s. Britain was mired in debt and even had to go to the IMF for a bailout. Successive British Prime Ministers had recognized the looming financial problem for years but failed to get the budget under control. At that time, in the 1970s, Britain was known as the ''sick man of Europe.'' Still, as in this country, interest groups that benefited from public spending threatened to bring down any British Government that even considered measures to control spending.

We see those same forces in the Congress of the United States telling us we can't cut anyplace. In fact, Britain did face massive strikes in the winter of 1978 to 1979, better known as the winter of discontent.

As a result of the inability of several different Prime Ministers to take the difficult steps necessary to turn things around, many pundits started to speculate Britain had become ungovernable. There were even many British politicians who had decided the best they could accomplish was to manage the economic and political decline of Britain. We hear the term in the United States of a ''new norm.'' I hope we aren't getting into that same attitude the British had in the 1970s.

But they had a leader who came along by the name of Margaret Thatcher. She utterly rejected the notion that decline was an option. In fact, she was famous for repeating the phrase: ''There is no alternative.'' So I would like to take those words, ''there is no alternative,'' as a guiding point for us in the Congress, Republican or Democrat, that we have to do something.

''There is no alternative.'' Prime Minister Thatcher meant that control of the policy based on uncontrolled spending had failed. If economic recovery was the goal, the only alternative was the free market. This meant cutting spending, reducing growth-inhibiting income taxes, and reining in government micromanagement of business—things we hear from the private sector in the United States today.

Despite the hard lessons of experience, the prevailing economic theory of the day still held: that government

spending was good for the economy and that government central planners could operate more efficiently than private business left alone.

That is the situation she was describing in Britain. However, for us in the United States, whether it is government or the private sector, it is like asking: Are 535 Members of Congress smarter to determine the direction of the economy or are the 308 million people outside of the Congress in the United States better prepared to do it, and which will do the most good?

Now, Thatcher faced intense opposition both from true believers in the stimulus ideology and from those with a vested interest in the status quo, but having rejected national decline, as she did, as an option, there really was no alternative. She explained to the British public why her course of action was necessary and stood up to the special interests that stood in the way of prosperity. We hear from our constituents we ought to do something about those special interests, but we don't seem to do much about it.

When the media began speculating she would fail to follow through and that she would lose her spine and make a U-turn as so many of her predecessors had done, Mrs. Thatcher's response was: ''You turn if you want to . . . The lady's not for turning.''

What Prime Minister Thatcher provided for Britain is very simple: Leadership. That is what the United States needs today.

Most Americans I talk to believe in our opportunity society and refuse to accept that the American dream of a better life for our children is dead or that there is a new norm or that America is in decline. For those of us who feel that way, restoring the dynamic American free market economy is essential. In the words of Margaret Thatcher, there is no alternative. We must reduce spending. There is no alternative. We must have low, simple, and stable taxes. There is no alternative. And there is no alternative to reducing and reforming the growing regulatory burden.

During the last 3½ years, the national debt has grown by more than $5 trillion—an increase of 50 percent. This year will be the fourth consecutive year with trillion-dollar annual deficits. These deficits and a Federal debt that now totals $16 trillion are, in fact, dampers on private sector job creation.

When Washington takes and spends the wealth created in the private sector, it crowds out new investments that would have been made by businesses and entrepreneurs, investments that would have resulted in the creation of new wealth and job opportunities for more Americans. The out-of-control spending has created a stagnant economy with unemployment stuck above 8 percent now for 42 consecutive months.

Economic freedom must replace bigger government. Economic growth must be our top priority, and fiscal discipline in Washington is a prerequisite to sustainable economic growth. In the words of Prime Minister Thatcher, there is no alternative.

The 4-year experiment attempting to increase economic prosperity by growing government and managing the economy through government intervention has failed. To address the anemic economic recovery and get America back to work, we must reduce the size and scope of the Federal Government. In the words of Prime Minister Thatcher, there is no alternative.

Again, our Nation is $16 trillion in debt. How much is $16 trillion? Well, if we started counting to 16 trillion one second at a time, it would take a person over 500,000 years to reach that level.

The Federal Government will spend more than $11 trillion just on Medicare and Medicaid over the next 10 years. Medicare and Medicaid serve a vital role in providing health care services to individuals who are poor, elderly, or disabled. But just because those programs have operated a certain way for 47 years doesn't mean they operate efficiently, even though we all agree they are part of the social fabric of America and must be maintained. If we want to save those programs for future generations, the current path of just saying no to every proposal and every special interest is not an option. In the words of Prime Minister Thatcher, there is no alternative. There is no alternative but to look at their very structure and ask the question: Can we do better?

As we begin to take the steps to pull ourselves out of this fiscal mess, we also need to reform how Washington does business so we don't find ourselves in this situation again. One major step that could produce long-term fiscal discipline is a balanced budget amendment, but if we passed that today it would not get us out of the hole we are in. However, once we get out of the hole, it is going to keep us from getting into it again.

The national debt now is reaching a point where if we do not intervene with a constitutional amendment for a balanced budget, it is going to become unsustainable. Mere laws have not controlled deficit spending because Congress can always change a law when it becomes politically expedient. I went through this one time because I was an author with a former Senator in this body by the name of Harry Byrd from the State of Virginia, not West Virginia. He and I worked together when I was a Member of the House. We got legislation passed requiring a balanced budget. For 15 years that law was on the books and never in those 15 years was there ever a balanced budget.

So it makes it very clear that statutes will not control deficit spending. I concluded a long time ago that a constitutional amendment is a ''must'' to provide Congress with necessary discipline. The example right now of Europe's debt situation is sobering. Nations that allow debt to grow out of control risk default.

Think of Greece as an example. If we do not take effective, corrective action, the European future could be ours, and maybe sooner than we think. The time for tinkering around the edges of the budget is over. We must take bold action to address the debt crisis before it is too late. In the words of Prime Minister Thatcher, there is no alternative.

Another area crying out for decisive action is our voluminous Tax Code. Uncertainty in our Tax Code and the threat of higher taxes is like an anchor preventing our economy from setting sail. At the end of the year, the across-the-board tax relief first enacted in 2001 and 2003 will expire. Its expiration will lead to a higher tax bill for virtually every taxpayer, representing one of the largest tax increases in the history of the country, and, as my colleagues know, that can happen without even a vote of Congress. Federal Reserve Chairman Ben Bernanke has testified about the negative impact of higher taxes on a fragile economy.

More importantly, I hear from employers that uncertainty about the future makes it difficult to plan, take risks, and make decisions to expand and hire. Tax certainty must be a priority in creating a progrowth environment. In the words of Prime Minister Thatcher, there is no alternative.

Even President Obama has acknowledged the negative impact of tax increases on economic growth saying we shouldn't raise taxes in a recession. We remember because he campaigned on tax increases in 2008, but before he was even sworn in he warned people we can't have that tax increase now because we are in a recession. Nevertheless, nearly every day our President is on the campaign trail in 2012 talking about tax increases on the so-called rich claiming them to pay their fair share. But I have never had a definition from the President of the United States of what a fair share is.

However, the so-called rich already pay the overwhelming majority of Federal taxes. Do my colleagues know that the top 20 percent of households currently account for 95 percent of Federal income taxes? Moreover, the top 1 percent we hear so much about bears nearly 40 percent of the Federal income tax burden. It is no wonder our job sector, especially the nearly 1 million small businesses targeted by the President's tax increase, are reluctant to make business decisions and invest in this climate when taxes are going to go so high at the end of this year. There are businesses ready to expand and create jobs. There are millions of dollars in private sector investment waiting to be invested and to create jobs. But businesses are holding back, waiting for the heavy boot of higher taxes to drop. It is time we replaced divisiveness and demagoguery with a progrowth tax policy.

This country does not need more taxes; we need more taxpayers. The way to get more taxpayers is to get

more people working. The way to get more people working is to encourage that investment. We need to take the uncertainty out of the present political environment here that has an impact on the economy.

When businesses and entrepreneurs are willing to put everything on the line by opening a new business or expanding an existing business, we must assure them that they will be able to enjoy the fruits of their success, not punish them with a higher tax bill which takes money out of their cashflow. When a business operates on cashflow, they cannot hire people if they don't have the cash.

So we must act decisively to stop job-killing taxes from going up. In the words of Prime Minister Thatcher, there is no alternative.

It isn't just the threat, though, of taxes that has caused uncertainty and held back private sector investment. The threat of costly new regulations has paralyzed many industries. In fact, I hear more complaints from small businesses about regulation than I do this biggest tax increase in the history of the country coming before us this December.

During the past few years, thousands of new Federal rules were finalized. Those who view government intervention into private enterprise as positive might say: So what.

All of these rules come with real costs. This administration has issued about 200 major rules that each have an impact of $100 million or more. A Gallup poll taken at the end of last year found that compliance with government regulations is the single biggest issue facing small business owners today. When 70 percent of the new jobs in America are created by small business, we ought to be concerned about what these small businesspeople are saying is their No. 1 problem.

On top of the outright cost of new regulation and the compliance burden, the uncertainty about when a new regulation might come down makes businesses reluctant to expand. In recent years we have seen regulation on top of regulation. No one knows when the next one will appear or how much it will cost.

During the Great Depression, the avalanche of new agencies with newfound regulatory powers led to businesses sitting on large amounts of cash, even in industries that were not yet affected by the new regulations because the uncertainty about who would be targeted next froze private sector investment. Now we are seeing pretty much the same thing today.

It would be one thing if these were essential protections for the environment or public health as proponents often claim, but for many of these new regulations the cost of compliance outweighs the public benefit.

It doesn't make any sense to try to regulate dust on farms when there is no practical way to stop the wind blowing. Still, I don't know how many years the EPA has been working on what they call a ''fugitive dust rule.'' Does it make any sense to make a dairy farmer fill out pages of documents to prove they have a plan in place in the case of an accidental milk spill? Well, they considered that regulation, but it was too outlandish that they made a public announcement they were not going to do that. Then why was EPA wasting time considering these regulations in the first place? There are legitimate forms of pollution that need attention, but even then the EPA seems intent on overkill.

Did the Utility MACT rule, which was intended to limit mercury emissions from powerplants, really need to be the single most expensive regulation in EPA history?

In addition to this rule, powerplants that rely on coal, like most of those in my State of Iowa, are facing a whole new string of overlapping rules with their own compliance deadlines and paperwork.

These include the Cross-State Air Pollution Rule, the National Ambient Air Quality Standards, regulation of greenhouse gas emissions, cooling water intake regulations, clean water effluent guidelines, and coal ash regulations.

Taken separately, each of these may have some justification, but when you put them all together, the cost and compliance burden is enormous, especially on small utilities.

Yesterday there was a delegation of Iowa rural electric cooperatives in my office explaining exactly how costly this was to them and their consumers.

That leads many people to suspect that the real motivation for this burst of regulation is an ideological drive to artificially raise the cost of electricity generation using coal, which would hurt the economy in places such as Iowa that rely on coal for cost-effective energy. A regulatory approach that imposes excessive costs for little or no benefit does not do anyone any good.

Regulatory agencies should be held accountable for meeting the cost-benefit test and also—a little more difficult to measure—the commonsense test. The deluge of regulations in recent years and the uncertainty—there is that word again: ''uncertainty''—about what is coming next is acting like a wet blanket on our economy. We must put an immediate stop to unnecessary, costly new regulations. In the words of Prime Minister Thatcher, there is no alternative.

In the long run, we need comprehensive regulatory reform. The Constitution vests all legislative powers in the Congress, which is directly accountable to the American people. However, over the years, Congress has delegated more and more authority to unelected and unaccountable bureaucrats. And once delegated, it is difficult to take back. As a result, then, we have a massive administrative state full of well-meaning but unelected government officials who have great power to write regulations with the force of law, with little or no democratic accountability.

This has led to the implementation of major policy decisions that impact the economy and the lives of the American people that likely would never have been approved if they would have had to have been voted on by the Congress.

That is why I am an original cosponsor of the Regulations From the Executive in Need of Scrutiny Act. REINS is the acronym. The REINS Act would require every major Federal regulation to come before both Houses of Congress for a vote and be signed by the President before it can be implemented. This will allow voters to hold their Members of Congress accountable for ill-conceived regulations. It would be a check on the mistake that Congress makes by delegating so much power in the first place. It would also provide more transparency and predictability to the regulatory process, thus reducing job-killing uncertainty.

Reforms such as the REINS Act would be a major change in how Washington does business, and that upsets a lot of apple carts. In the words of Prime Minister Thatcher, there is no alternative.

If we want economic growth and jobs, if we want a brighter future for America, we cannot afford to dither any longer. We need leadership like Britain had under Margaret Thatcher that is willing to tell all the special interests and all the political power players, there is no alternative.

We must take steps I have outlined to reinvigorate the free market economy. Just like Britain in 1979, there is no alternative.

We have tried President Obama's theory on economic stimulus. It was supposed to keep unemployment under 8 percent, and it has never been under 8 percent since the day he signed it. We saw a massive expansion of government and deficit spending as a result. More than $800 billion was spent on a failed economic stimulus bill that was supposed to keep unemployment down. We all know how that turned out.

Government spending in the process has reached unprecedented levels. Today, the size of government—if you combine local, State, and Federal—is 40 percent of our gross domestic product. One hundred years ago, it was 8 percent. If it were true that government spending creates economic growth, then we should be living high off the hog today, but it is not.

The private sector creates jobs. It is the responsibility of the government to merely create an environment that leads to job growth. Remember a very basic premise: Government consumes well. It does not create well. Through economic freedom, entrepreneurs are free to innovate and prosper. This economic success leads to higher standards of living and a better quality of life. Importantly, these gains do not then come at the expense of others. Because, contrary to what some around

here would have you believe, when someone produces a product or a service that others want, they are creating new wealth and everyone is better off. But too often around here, we think matters of the economy are a zero-sum game.

One person's prosperity, then, does not come at the expense of another's. In fact, business success and economic growth lift all boats through employment gains, higher wages, and greater value to the consumer.

We sometimes hear it implied that individual success cannot be achieved without government involvement or intervention. Some people seem to believe that an individual's success must come at somebody else being deprived or that the success was only achieved collectively and with the help of government. This line of thinking concludes that government and society is, therefore, entitled to some of the fruits of that individual's labor. This line of thinking is in stark contradiction to our country's founding principles that government exists to protect the individual's right to life, liberty, and the pursuit of happiness. Happiness is not found in a government paycheck redistributing what somebody else earned. In fact, government dependence leads to resentment.

By contrast, this great American dream of ours is based on individual Americans working hard and earning their own success.

A country with an increasing number of citizens dependent on a government that lives beyond its means and redistributes what remains of a once great economy would, then, cease to be the great America that we have had for 225 years. Such a future is unacceptable to most Americans, just as it was unacceptable to Prime Minister Thatcher, who said, there is no alternative.

The American dream is our birthright and our obligation to posterity. We must return to progrowth policies and an opportunity society. There is no alternative.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mrs. SHAHEEN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mrs. SHAHEEN. I ask unanimous consent to speak as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

TRAVEL TOURISM

Mrs. SHAHEEN. Mr. President, anybody who has been outside today knows that we had a beautiful day, and the last couple of days have been beautiful, so it is hard to believe that the summer is actually coming to a close. But as it does end, I wanted to take a few minutes this afternoon to highlight something that is very important to us in New Hampshire and to the country. That is tourism, particularly the outdoor industry association and its importance to local economies in New Hampshire and across this country.

New Hampshire has long recognized the importance of conservation and the economic benefits that come from supporting outdoor recreation. Our beautiful State, like Connecticut, has an abundance of natural treasures, the White Mountain National Forest, our scenic lakes, our coastline—we may only have 18 miles of coastline but it is beautiful, with beautiful beaches and rocky coves.

These treasures draw visitors from across New England, from all over the world. Protecting these natural resources is not just good for the environment, it is also critical for our economy. In fact, the outdoor recreation economy supports 53,000 jobs in New Hampshire alone, 6.1 million American jobs across the country. That is more than we have in the construction industry, in the finance and insurance industries or in the education industry. And even in this time of economic recovery, outdoor recreation produces $646 billion in direct consumer spending.

Again, that is more than the pharmaceutical industry, motor vehicle parts, and household utilities. Americans today spend nearly as much on snow sports as they do on Internet access, and considerably more on bike gear and trips than on airplane tickets and fees. This is all detailed in a report called the Outdoor Recreation Economy, which is a very interesting analysis of what the outdoor recreation economy means to this country.

I recently had the opportunity to visit Eastern Mountain Sports. EMS is a New Hampshire-based business that specializes in outdoor apparel and equipment. At EMS, I saw the direct economic benefit that comes from our support for the development and conservation of outdoor recreation areas. I had a chance to talk to some of the 300 or so employees at EMS. They have stores throughout the east coast, and they are just one example of the countless businesses that have grown strong, thanks to the careful stewardship of our beautiful areas in this country, of the landscapes that so many of their customers visit.

One of the ways we have preserved the great outdoors at the Federal level is through the Land and Water Conservation Fund. The fund was created in 1965. It protects lands, forests, State and local parks, and critical wildlife habitat. This critical program also helps ensure hunting and fishing access, something also very important to New Hampshire. It supports battlefields, trails, sporting facilities, and outdoor recreation opportunities in every State.

Every year since I arrived in the Senate in 2009, I have led a letter with Senator LEAHY of Vermont to appropriators that supports robust funding for the Land and Water Conservation Fund. The most recent letter was signed by 44 Senators from both sides of the aisle, a very strong showing of bipartisanship from supporters who know this is a program that works for the environment and works for small business.

I am also pleased to cosponsor legislation—bipartisan legislation—that is led by Senator BINGAMAN, which would permanently authorize the Land and Water Conservation Fund with dedicated funding. In New Hampshire, the LWCF has supported more than 650 local recreation and conservation projects and it helps protect locations such as the White Mountain National Forest, the Appalachian Trail, the Umbagog National Wildlife Refuge, and the Silvio Conte Wildlife Refuge.

These scenic locations, whether they are enjoyed for relaxation or exercise, support jobs and local economies by increasing the demand for outdoor recreation equipment and by attracting visitors to our State. Those visitors eat in our restaurants, they shop at our small businesses, they stay in some of the most beautiful hotels you will find anywhere in America.

The outdoor economy supports tourism, and tourism should be recognized as the economic engine that it is throughout this country. The travel and tourism industry is one of the top 10 industries in 48 States in the country. It supports over 14 million American jobs. In New Hampshire, travel and tourism is our second largest industry, supporting over 60,000 jobs.

I had the opportunity yesterday with a number of small business owners and representatives from New Hampshire to visit Brand USA, which is the national initiative that is the result of travel and tourism legislation passed by the Senate and Congress in 2010 to begin advertising the United States outside of this country. They have advertisements now in Canada, in the UK, and in markets that are important as we think about how we can attract visitors to the United States. In New Hampshire, it is not difficult to see why tourism is so important. Visitors are drawn to New Hampshire for our charming attractions, for our landscapes, for our foliage—which is about to begin, actually—and they provide a beautiful environment for families to spend time together.

During August my husband and I actually had the opportunity to take all of our grandchildren—our 7 grandchildren; actually, our entire family, 14 of us—up to the White Mountains. We stayed at the Mount Washington Hotel, which is at the base of Mount Washington. It is a beautiful hotel where the Bretton Woods monetary conference was held back in the late 1940s. We had a great time. We went hiking, my oldest grandson went fishing with his father, one of my granddaughters went horseback riding with my daughter, we visited the flume, which is a naturally

occurring gorge in New Hampshire, and we ended the several days we were there visiting at a place called Clark's Trading Post, which is a great family business in New Hampshire. They work with black bears that roam the woods of New Hampshire, and they have been working with them for 50 years, so it is a real trained-bear show. In addition to that, they have attractions from New England, they have a railroad, and it is just a great place for the family to spend the afternoon. This was a wonderful trip. It brought our family closer. It allowed the cousins to visit with each other. We came back rested, restored, and we had a great time investing in New Hampshire businesses.

As our family saw last month, conservation programs such as LWCF are part of what we need to do to make sure those kinds of experiences are available to everybody in New Hampshire and across this country. They are a part of our responsibility to safeguard our environmental heritage. More than that, as the outdoor recreation economy shows, as so many reports show, they are an economic imperative that supports millions of jobs nationwide.

I am going to continue to work to strengthen programs such as the Land and Water Conservation Fund and to promote tourism and the outdoor recreation economy, and I urge all of my colleagues to join these efforts because they not only protect America's great outdoors, they support the businesses and the outdoor recreation economy they sustain.

Mr. President, I yield the floor, and I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mrs. MURRAY. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. DURBIN). Without objection, it is so ordered.

Mrs. MURRAY. Mr. President, I have come to the floor this evening to make a few things abundantly clear about the Veterans Jobs Corps legislation the Senate is currently considering.

First and foremost, the bill in front of us is fully paid for, using offsets that both Republicans and Democrats have supported in the past. So this bill is paid for.

Secondly, no matter what Republicans try to tell us, this is a bill that includes ideas from both sides of the aisle. In fact, of the 12 provisions in this bill, 8 of them started as Republican ideas.

We in fact included Senator BURR's entire alternative to this bill to make it even more bipartisan. On top of that, we have included bills that are sponsored by Senator TOOMEY, Senator BOOZMAN, Senator JOHANNS, and Senator ISAKSON. So don't let anybody tell you we have not been inclusive in this process.

We know on this side that we do not have a monopoly of good ideas to help solve the problems of veterans who are looking for work today, and that is why we have included as many avenues to employment as possible in this legislation.

Finally and most importantly, I want to make sure that everyone who is considering voting for the budget point of order that Senator SESSIONS has been out here talking about and indicated he may raise knows exactly what is at stake. Believe me, every single veteran in the country needs to know what is at stake as well. What his budget point of order says is we are now going to draw a line in the sand on what we will provide for our Nation's veterans. It does not matter if the bill is paid for. The point of order puts a pricetag on the care of veterans and then says not a dime more.

This point of order really ties our hands. It says even at a time of war, even at a time when nearly one in five young veterans is out of work, at a time when the veterans' suicide rate is skyrocketing and when more young veterans are becoming homeless, we are done; veterans are on their own.

It says even if we find offsets for new investments and ideas to aid our Nation's heroes—we paid for it—tough luck; nothing you can do. It says countless bills waiting for consideration in the Senate, sponsored by Republicans and Democrats, can be tossed along the wayside.

When are we going to realize that our veterans are a cost of these wars; that helping to give them the skills and training to find work is a cost of war; that their transition home is a cost of war and it is a cost we are going to face, not just this year or next year or 10 years from now but for the rest of the lives of these men and women? When are we going to realize it is not enough to pat our veterans on the back for their service but not give them a helping hand when they come home? The budget point of order says we have done enough for veterans.

I say we cannot do enough. Less than 1 percent of U.S. citizens have served. Less than 1 percent of U.S. citizens have served for the well-being of the other 99 percent. It is simply wrong for us to say we are out of help.

Veterans across the country are watching, they are waiting, and they are tired of excuses. They want to see we can get this bill to the finish line.

I know some Republicans have pointed to the calendar as a reason for their opposition to this bill. Honestly I wish it were not September either and we did not have to deal with politics here in Washington, DC. But, you know, who could care less about what month it is or how many days out we are from an election? The nearly 1 million unemployed veterans looking for work. When you talk to them, their concern is not what month it is or how many days before election, it is about what jobs are available in their community. What training program can they take advantage of. What is being done to honor their two or three or more tours overseas.

Our answer cannot be that we are all out of options. It cannot be that their service was worth only so much. I am here to urge Republicans to join us this evening in rising above politics as we have done time and time again throughout history for our veterans, to ignore the calendar and do what is right. Let's send a message from the Senate that our veterans come first; that we will keep our end of the bargain; that we will never put a price on the commitment we owe them.

I urge my colleagues to join me in waiving the budget point of order when it is offered later this evening.

I yield the floor and I suggest the absence of a quorum.

The PRESIDING OFFICER. Pursuant to the Senator's request, the clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. SESSIONS. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. WHITEHOUSE). Without objection, it is so ordered.

Mr. SESSIONS. Mr. President, earlier our colleague, Senator MURRAY, complained that objections to the Veterans Jobs Corps bill was political—I think that was the thrust of part of her remarks—and that we should just pass it and move on.

My sole problem with the legislation—and Senator MURRAY, as a member of the Budget Committee understands this—is it violates the budget and is subject to a budget point of order. It would spend more money on this legislation than the veterans committee is authorized to spend. If we do that, we are supposed to vote on it, and a budget point of order would lie, and those who want to waive the budget would move to waive the budget and we would vote. It takes 60 votes to waive the duly agreed upon spending limits we have in that regard. That was part of the Budget Control Act in which we raised the debt ceiling by $2.1 trillion. We agreed to put some limits on spending—not much but some. Here we are already, after several different prior violations of the budget, back at it again. So that is the concern.

Senator BURR has offered legislation that would help solve the problem of unemployment among veterans, and his doesn't violate the budget. We could support it. I would note that the veterans committee never had a hearing on this. Therefore, nobody ever: studied it, called expert witnesses, had hearings in public, or examined witnesses to find out if this plan is the best way to help veterans who are unemployed. We have six programs already that do this. Maybe it would be better to consolidate some of them and add a little to it. Maybe some of them ought to be eliminated and a new program that is outlined in the Murray

amendment could be utilized to do that. But we have had no real opportunity to do that.

So what is the politics? I would say the politics is that the majority party and the majority leader, do not want to talk about real issues of great importance, so this bill is brought up and utilized to fill up the whole week. So we are not going to take up several other pieces of legislation that are important.

It was suggested that those Republicans who don't favor this way of dealing with unemployment of veterans—if we don't do that, we don't like veterans and we don't like people who have served our country and we are insensitive about that. Let me ask a question. If those on the other side care about veterans—if they say this bill, which would cost $900 million, which is a lot of money but not that much in terms of what we deal with—so if we don't support this bill, they say we don't care about veterans. So let me pose this question: If my democratic colleagues care about our men and women in uniform who serve our country and veterans, how could they oppose authorizing the Defense bill?

Senator REID, the majority leader, blocked bringing up the bipartisan-approved Defense authorization bill. It has been passed every year for over 50 years. That amounts to $631 billion. If we don't pass that, we are not taking care of the pay raise for military men and women and a lot of other initiatives that are in there. I would just point out to my colleagues that it passed the Senate Armed Services Committee on a bipartisan basis—not just on a bipartisan basis, unanimously. Yet Senator REID will not bring it up. The House has passed the Defense authorization bill. They passed it in May. We have never brought it to the floor. The leader has refused to bring it to the floor.

I suggest if my colleagues have a question about the jobs bill for veterans for us, why don't we ask this question: What do they think of the military if they will not bring up a military authorization bill? Do they care about them?

What about the Defense appropriations bill? The House has passed the Defense appropriations bill. The Appropriations Committee of the Senate has passed the Defense appropriations bill. It is on the Senate floor waiting to be called up and voted on. It is not being voted on, and we are, again, talking about $600 billion. But this $900 million bill is taking up the whole week and the other bill will not even be brought up.

One more question: If my Democratic colleagues are concerned about veterans and jobs, what about the sequester? We are on track to hammer the Defense Department with half of the budget cuts. The Defense Department makes up about one-sixth of the Federal Government spending. It is going to take half of the cuts. It has already taken almost $500 billion in cuts. This would be another $492 billion in cuts to the Defense Department. Secretary Panetta, the Secretary of Defense, has told the President and the whole world this would be catastrophic. It would hollow out the military. It would endanger our ability to fulfill our mission, but we are on track to have that go into effect—those cuts take place in January—and we are going to have military officials reduce dramatically, if that occurs, the number of men and women in uniform. We are going to have people coming off the battlefield in Iraq and Afghanistan and other places wanting to make a career out of the military, thinking they could make a career out of the military, and all of a sudden, because of this sequester, they are going to walk in and they will get a pink slip. ''Sorry, we don't need you anymore. Good luck.''

We have plans under the cuts that are in place in the Defense Department to draw down the number of personnel. This would be dramatically more. Where are they going to get jobs? Many of the people who would also lose their jobs in that process work for defense contractors or civilian employees of the Department of Defense who also are veterans, who got jobs as civilian employees in the Department of Defense. They will be laid off.

Why aren't we dealing with the sequester? Earlier today Senator MCCAIN said it was a shame that we are not dealing with these issues. ''Shame, shame, shame,'' Senator MCCAIN said. I think that is right. Yet we are having the spectacle of the majority party in this Congress attacking the Republicans for not liking the military because we don't agree to a budget-busting bill on how to create jobs. That has never been through the committee for veterans, jobs for veterans—neve been through the committee and never had a proper process.

I do not agree with that. We have a serious problem in this Senate. We have a majority party in this Senate that is refusing to undertake the basic requirements of the U.S. Senate. We have not passed a budget. We have not passed a single appropriations bill. We certainly did not pass a Defense appropriations bill. The Defense authorization bill, as has been noted, was passed for 50-plus years. It will not be even brought up to have debate on, and it passed the committee unanimously.

What is this? This is a fear, it seems to me, a political fear. And the political fear is, if you bring up these bills, Democrats might have to vote on amendments and things, and they do not want to vote. If you get to bring a budget to the floor, well, you have a right to offer amendments about the future financial course of America, and we get to have full debate about it, and talk about it, and offer amendments and be on record as to what we believe in, how much debt we think we can sustain in this country.

They do not want to do that. Senator REID said it is foolish to have a budget. It is not foolish to have a budget, of course. That is why we are in such a fix today, I would suggest.

So can we do more for veterans? I think we can do more, and I think we can help them with their employment circumstances. I served 10 years in the Army Reserve. One of my duties was to be the representative for the employer support of the Guard and Reserve, and that was to ensure that people who were called up for our National Guard or our Army Reserve or go on active duty—to make sure when they come back they get the job they had, they will not lose their employment position as a result of serving their country. That is one of the things we did.

When I was a U.S. attorney, I prosecuted some cases—and we won—where I felt people had lost their job as a result of being called up to military service. That is not acceptable. We need to protect our men and women. I have a history of that.

But this bill does not guarantee that we are going to use the money wisely that is being spent. So I am amazed we are using our last hours here to move forward a bill that violates the budget when we do not have to. Senator BURR's bill does not violate the budget, and it will, I am confident, do the job, do the same kind of job for helping veterans get jobs. This is very odd, to suggest that somehow those of us on this side are using politics to block a benefit to veterans. Give me a break. That is kind of an odd charge, isn't it?

I would say that people on our side are standing and asking principled questions. Yes, we want to do more for veterans. Yes, we hope to help them find jobs. But we agreed just last August to spending limits. We agreed just last August, in exchange for raising the debt ceiling $2 trillion, to reduce some spending—not a lot, but some spending. Here we are, just over a year later, and we are already busting those limits we agreed to. It is not right, and it cannot be the kind of thing we should be doing.

One more thing, and it is obvious to those of us in the Senate, if we take a minute to think about it; and that is, sustaining the budget point of order, not waiving the budget, does not kill the Murray bill or the Burr bill. It simply says, go back to committee, have a real hearing, bring a bill forward that actually stays within the budget. That is all it says do.

If we continue this process—and we have done it several times already this year—of violating the budget, pretty soon the budget numbers we have are going to be worthless. That would be my concern. Let's send the legislation back to committee, let's have a hearing, let's let a bill come forward, let's consider the six jobs programs for veterans that are already in place, see if they need to be improved, expanded, consolidated, how this bill should be passed to complement those programs, and see if we do not get the maximum benefit for veterans for every dollar the taxpayers have sent to us.

To the extent to which we spend a dime above the budget, it is either borrowed or paid for by new taxes. There is no doubt about it. There are new taxes in this bill, new revenue that is in this bill. Some of it is gimmicky, I have to tell you, and it is not the way we should do business, in my view.

I appreciate the opportunity to share these thoughts. I believe the budget point of order should not be waived. We should not spend more than the deemed budget allocations allow. We should send this bill back to committee, tell them to get busy on a thorough review of the jobs situation of veterans, and come forward and produce a bill we can pass that does the job and does not violate the budget. We spend $3,700 billion. We ought to be able to find $900 million somewhere in that budget to meet this challenge.

I thank the Chair and yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. REID. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. REID. Mr. President, I ask unanimous consent that on Wednesday, September 19, following any leader remarks, the Senate resume consideration of S. 3457, and notwithstanding rule XXII, it be in order for Senator MCCONNELL or his designee to raise a budget point of order against the substitute amendment No. 2789; that if a budget point of order is raised, the majority leader or his designee be recognized for a motion to waive the applicable budget points of order; that the time until 12 noon be equally divided between the two leaders or their designees on the motion to waive; that upon the use or yielding back of time, the Senate proceed to vote on the motion to waive; that if the motion to waive the applicable budget points of order is not agreed to, the cloture motions with respect to the substitute and the underlying bill be withdrawn and the bill be returned to the calendar and the majority leader then be recognized; that if the motion to waive is agreed to, at a time to be determined by the majority leader, after consultation with the Republican leader and notwithstanding rule XXII, the motion to commit be withdrawn; that all pending amendments be withdrawn with the exception of the pending substitute amendment No. 2789; that there be 30 minutes of debate, equally divided between the two leaders or their designees; that upon the use or yielding back of time, the Senate proceed to vote on the motion to invoke cloture on the substitute amendment No. 2789; if cloture is invoked, the remaining postcloture time be yielded back and the Senate then proceed to vote in relation to the substitute amendment No. 2789; that following that vote, the Senate proceed to vote on the motion to invoke cloture on S. 3457, as amended, if amended; and if cloture is invoked, the postcloture time be yielded back, the bill be read a third time and the Senate proceed to vote on passage of the bill as amended, if amended, and following the vote on passage, the majority leader be recognized; if cloture is not invoked on the substitute amendment No. 2789, the cloture motion on the underlying bill be withdrawn and the bill be returned to the calendar; further, that no amendments, motions or points of order be in order to the substitute amendment or the bill other than those listed in this agreement; finally, that when the Senate receives H.J. Res. 117, the continuing resolution for fiscal year 2013, it be placed on the calendar; that on Wednesday, September 19, it be in order for the majority leader to move to proceed to H.J. Res. 117 and file cloture on the motion to proceed; finally, that if a cloture motion is filed, notwithstanding rule XXII, the vote on the motion to invoke cloture on the motion to proceed to H.J. Res. 117 occur at 2:15 p.m., on Wednesday, September 19.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. REID. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. DURBIN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

MORNING BUSINESS

Mr. DURBIN. Mr. President, I ask unanimous consent the Senate proceed to a period of morning business, with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMENDING CONGRESSMAN JERRY COSTELLO

Mr. DURBIN. Mr. President, I would like to take a moment to thank a man who has been a good friend to me and a strong advocate for working people in our home State of Illinois, across America and beyond.

Congressman JERRY COSTELLO has represented the 12th Congressional District of Illinois in the House of Representatives for nearly a quarter century. We served together for 8 years in the House, from 1988 to 1996.

Congressman COSTELLO will be retiring at the end of this Congress. He has flown home nearly every weekend for 24 years. He and I have shared more flights between Washington and Illinois than either of us can count. I will miss his company on those flights, and all of us in the Illinois congressional delegation will miss his leadership and good counsel in our ranks.

JERRY COSTELLO and I were both born in East St. Louis, IL, which was a hard-scrabble, working class town even back then. JERRY'S family lived in Holy Angels Parish and I was a St. Elizabeth Parish kid, but we were both taught by the Marianist brothers at Assumption High School, home of the Pioneers.

JERRY's family moved to Belleville, IL, when JERRY was in high school and his dad was elected St. Clair County sheriff. In seventh grade, he met the love of his life, Georgia Cockrum. They married when they were just 18.

JERRY put himself through college working as a court bailiff. He also worked as a deputy sheriff, probation officer and court administrator.

In 1980 he was elected St. Clair County Board chairman, making him CEO of one of Illinois' largest counties.

In 1988 he won a special election to fill the term of a longtime Congressman who had died in office. Mel Price was a veritable legend who had served in Congress since before JERRY COSTELLO was born.

I remember when JERRY COSTELLO was sworn in. I was one of the newer members of the Illinois delegation back then. Welcoming him to our delegation that day were Illinois Senators Paul Simon and Alan Dixon, along with Congressmen Sid Yates, Frank Anunzio, Ken Gray and me.

We kidded JERRY and called him ''Landslide'' because of his narrow margin of victory. It was the one and only time in his congressional career that he had a close election.

The 12th Congressional District in southern and southwest Illinois runs along the Mississippi River, from Alton south to Cairo. It is a mix of agricultural and industrial communities including East St. Louis, Belleville, Carbondale and Granite City.

People there don't care much about political labels, they care about results—and that is what JERRY COSTELLO has always focused on. He is pragmatic and bipartisan.

The Almanac of American Politics said it well. JERRY COSTELLO: As practical and district-minded as any member of the House. If it can be done, COSTELLO will surely do it.

He has fought for smart, responsible economic policies. He supported historic deficit reduction bills in 1993 and 1997 that helped produce the first balanced budget in a generation. Four years ago when our Nation was on the verge of economic collapse, he voted for the Recovery Act to help prevent a second Great Depression.

On that day 24 years ago that he was sworn in, JERRY COSTELLO expressed interest in serving on the House Public Works and Transportation Committee. He won that assignment. Today he is the senior Democrat on the House Transportation Aviation Subcommittee, an assignment he has used to keep the aerospace industry alive and well in southern Illinois.

He has also been a relentless advocate for aviation safety. He has had a

hand in every major aviation safety bill over the past decade. Congressman COSTELLO'S legacy will be safer skies and runways for America.

No one in Congress has a better understanding of or a stronger commitment to improving America's transportation infrastructure.

JERRY COSTELLO has helped write three national Transportation bills. We served together on the conference committee for the most recent Transportation Act, which passed earlier this year. It was a bipartisan victory that will create or save 3 million good jobs, strengthen America's infrastructure and provide the certainty that transportation planners and builders need.

Building modern, regional transportation networks to support economic development and improve people's quality of life has always been one of his top priorities.

JERRY COSTELLO has been involved in every major transportation project in the St. Louis-Metro East region for the last 30 years, from construction of the Clark Bridge to the New Mississippi River Bridge connecting St. Louis and East St. Louis.

He helped bring light rail to the Metro East region and he helped lead the effort to create a high-speed rail corridor connecting St. Louis and Chicago. He helped pass the strongest airline safety law in 50 years. His leadership was critical in securing the funding to strengthen the flood control levees and dams along the Mississippi River and in the adoption of new flood insurance maps that are fair and equitable.

The first vote JERRY COSTELLO cast in Congress was a ''yes'' vote to help bring a South Africa trade sanctions bill to the floor for debate. He has remained a committed, consistent champion of basic human rights and worker rights—including worker safety and the right to bargain collectively.

He has fought for fair trade, for efforts to create good jobs in America, and against rewarding companies for shipping American jobs overseas. He has voted to make college more affordable, and he helped pass the Affordable Care Act. Presidents and Congresses tried for a century to pass comprehensive health care. JERRY COSTELLO bravely cast one of the votes that finally got the job done.

Coal lies below 65 percent of Illinois' surface. It could be a real economic and energy boon to America—if we can find a way to use it safely and cleanly. JERRY COSTELLO has fought for cutting-edge new technologies and public-private partnerships including FutureGen and the new Prairie State Energy Campus that can advance clean coal exploration and bring thousands of good new jobs to Illinois. He has also been a strong supporter of expanding the use of biofuels—a move that would help our environment, boost our energy security and benefit Illinois farmers.

Scott Air Force Base is the largest employer in Illinois south of Springfield. When the future of the base hung in the balance during successive rounds of BRAC closings between 1995 and 2005, JERRY COSTELLO led the effort to maintain and expand its missions. Instead of shutting down, Scott Air Force Base actually added 800 new jobs and when then-Defense Secretary Robert Gates visited Scott in 2007 he hailed it as one of America's three most important air bases.

Congressman JOHN SHIMKUS has called JERRY COSTELLO the ''patron saint of Scott Air Force Base'' and he's right. JERRY'S energy and skill did more to save Scott Air Force Base from being closed by the BRAC process than any other factor.

Loretta and I want to thank JERRY'S wife, Georgia, their three grown children, Jerry, John and Gina, and their eight grandchildren for sharing so much of their husband, father and grandfather with our State and our Nation all these years.

JERRY has said that he might like to teach government next. He would be good at it. The success of our democracy depends on our ability to solve hard problems by reaching honorable compromises. JERRY COSTELLO could teach that lesson because he has lived it. Whatever his future holds, I wish my old friend the best of luck and I want to thank him again for all he has done for our State and our Nation.

I now ask unanimous consent to enter Senator KIRK'S statement honoring Congressman COSTELLO'S service to the State of Illinois into the RECORD following my remarks.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

Mr. KIRK. Mr. President, I rise today to give thanks to the dean of Illinois' House of Representatives delegation, Congressman JERRY COSTELLO, who has announced his retirement after more than two decades of service in the Congress. Congressman COSTELLO has been a fixture in the halls of the Capitol long before I took office in 2001, and we will miss his leadership and dedication to the people of the 12th Congressional District.

From his senior position on the House Transportation and Infrastructure Committee, he has been a tireless advocate for our Nation's road, rail, waterway and aviation infrastructure. His work to improve southwestern Illinois' levee system in particular will pay lasting dividends for his district's safety and economic development.

Congressman COSTELLO has been such an effective legislator not just because of his knowledge of the issues, but also due to his ability to work across the aisle. In a time of increasing partisanship in Washington, Congressman COSTELLO has established himself as a bipartisan partner, more interested in delivering for his district than scoring political points. This fact is underscored by his close relationship with our colleague Congressman JOHN SHIMKUS. Together, they have advanced numerous priorities for southern Illinois, including their support for clean, domestic energy production.

But his work on behalf of the men and women of Scott Air Force Base is what I believe will be one of his lasting legacies. Congressman COSTELLO fought to keep Scott open during Base Realignment and Closure Commission process and has been a strong advocate for the base's core medical, communications, and logistics missions, along with the communities that surround Scott.

I know I speak for our entire delegation when I wish Congressman COSTELLO a happy and well-earned retirement. His leadership will be missed.

2012 PARALYMPIC GAMES

Mr. DURBIN. Mr. President, this past Sunday, the closing ceremonies of the 2012 summer Paralympic games were held in London. More than 4,200 athletes seated in the arena were joined by 80,000 cheering spectators to celebrate the culmination of 11 days of athletic achievement with parades, fireworks, and music.

Of the 227 American athletes competing in this year's London games, 20 are members or veterans of the U.S. Armed Forces, including three Active Duty servicemembers. This is especially noteworthy given that it was disabled British World War II veterans using sports as rehabilitation who founded what has become today's modern Paralympic games.

Among those representing Team USA in the London Paralympic games were many athletes from Illinois, including a number of students and alumni of the University of Illinois' acclaimed Adapted Varsity Athletics Program.

Evanston native Greta Neimanas arrived at her second Paralympic games as a 7-time national champion, 13-time world championship medalist and ParaPan Am games gold medalist. A longtime patient of the Rehabilitation Institute of Chicago (RIC) and an inspiration to many of RIC's younger patients, she competed in both track and road cycling events in London.

Joe Berenyi left London with three Paralympic medals: a gold, a silver, and a bronze. The cyclist, who was born in Aurora, IL, also set a world record on his way to becoming the Paralympic champion in the men's individual C3 Pursuit. A father of three, Joe returned to Oswego this week where he was surprised by a parade of family and friends in his honor.

Centennial High School graduate Nichole Millage of Champaign won her second silver medal in sitting volleyball as a member of the women's team. Even before winning silver in Beijing, Nichole saw the amputation of her left leg as an opportunity, not a disability.

Born in Chicago, Justin Zook is a three-time Paralympic gold medalist and world recordholder. Justin's victory in the 100-meter backstroke in London was all the more impressive given his disability reclassification on the eve of the games, placing him alongside athletes with a lower level of physical disability than he had competed against previously.

University of Illinois junior Tatyana McFadden, who goes by the nickname ''Lady Velocity,'' won four medals in London: three gold and one bronze. She competed in the 100, 400, 800, and 1,500 meters and the marathon and was only

prevented from medaling in all five by a punctured tire during the marathon. She still came in ninth. As a leading voice advocating for disability rights, her motto is ''Sports is my passion, paving access for others is my purpose.''

Born and raised in Chicago, Eric Barber has been playing wheelchair basketball for 20 years. He captured his second Paralympic medal this year in London as a member of the bronze-winning U.S. men's wheelchair basketball team. Eric was also a member of the wheelchair basketball team that won bronze in Sydney in 2000.

Joining him on the men's wheelchair basketball team was former University of Illinois point guard Steve Serio, who led the U.S. team with 20 points and recorded four rebounds and eight assists during the team's bronze-medal game against host Great Britain.

Team captain Will Waller was the third Illini on the men's wheelchair basketball team at his fourth Paralympic games.

Jennifer Chew represented the University of Illinois on the women's wheelchair basketball team. When not training herself, she manages the Denver Lady Nuggets basketball team and assistant coaches the Junior Rolling Nuggets basketball team.

Teammate and fellow Illini Sarah Castle was in London at her fourth Paralympic games but only her second as a basketball player. Sarah competed at the 2000 and 2004 Paralympic games as a swimmer—winning silver in Sydney—before a shoulder injury prompted her to pursue wheelchair basketball instead.

Paralympian Adam Bleakney has competed in wheelchair racing events ranging from 100 meters to the marathon in the 2000, 2004, 2008, and now 2012 summer games. Adam completed both his undergraduate and graduate education at the University of Illinois in Champaign, where he now serves as head coach of the wheelchair track team.

Three-time Chicago Marathon winner Josh George claimed bronze in London in the men's 800 meters. After graduating with honors from the University of Illinois, Josh continued to participate in the school's program as a volunteer assistant coach. When not racing, he works at Intelliwheels, a startup that develops innovative wheelchair technologies at the University of Illinois' EnterpriseWorks.

Anjali Forber-Pratt began wheelchair racing when she was just 9 years old. She went on to win a total of four gold, six silver, and two bronze medals at the Junior National Wheelchair Games before claiming two bronze medals at the Paralympic games in Beijing and competing in the 100, 200, and 400 meters in London. Anjali embodies her personal motto, ''Dream, Drive, Do'' not only as an athlete but also as a student—she holds three degrees from the University of Illinois, including her doctorate.

Illinois freshman Ray Martin dominated the track, sweeping the men's 100, 200, 400, 800 meters. His impressive four gold medals placed him at the top of the medal count for Illini athletes.

Since competing in his first marathon in 2007, Aaron Pike has become one of the top wheelchair racers in America in the event. At the University of Illinois, he led the Illini to four straight finals of the National Intercollegiate Wheelchair Basketball Tournament, and two titles.

Jessica Galli of Savoy has competed in four Paralympic games, where she has won one gold, one bronze, and four silver medals. She holds both a bachelor's and a master's degree from the University of Illinois, where she also competed on the wheelchair track team. She serves as an advocate for disabled athletes through her work on the U.S. Olympic Committee's Athletes' Advisory Council, Wheelchair and Ambulatory Sports USA, and USA Wheelchair Track and Field.

In a momentous year for Brian Siemann, he not only competed in his first Paralympic games, but he will also graduate from the University of Illinois, where he is currently a senior. The 2012 U.S. Paralympic National Champion in the 100 and 200 meters, Brian lives his favorite quote: ''Don't stop believing.''

Recent University of Illinois graduate Ryan Chalmers competed as a collegiate athlete in both basketball and track, where his multisport talent earned him an athletic scholarship. Ryan chose track over basketball before being selected as a member of Team USA for the 2012 Paralympics.

After an intense summer training in Champaign, Amanda McGrory competed in London in five events, including the 800, 1,500, 5,000 and the marathon. The University of Illinois graduate began as a sprinter but changed her mind after her first marathon, one of the sport's most grueling events.

Although she hadn't ever competed in a marathon until moving to Champaign to attend the University of Illinois just a few years ago, Susannah Scaroni represented the United States in the distance event in London. A member of the Illini track and road racing team, this was her first Paralympics.

It is no coincidence that so many of Illinois' Paralympians are current students or alumni of the University of Illinois at Urbana-Champaign. Since becoming the first in the Nation to open its doors to those with disabilities in 1949, our State's flagship university has become a world leader in disability sports. The University of Illinois' adaptive sports program draws athletes from across the globe, and has sent students, alumni or coaches to every Paralympics since 1960.

Just as their nondisabled counterparts, the athletic ability and tenacious commitment of each and every one of these athletes serves as an inspiration to their friends, their families, and to Americans across the country. Although each faces some form of physical limitation, these athletes accept no limits on what they can achieve.

I congratulate all of Team USA's athletes on their success at this year's Paralympic games, and especially those from Illinois. It is an honor to represent them.

VOTE EXPLANATION

Ms. LANDRIEU. Mr. President, I regret having missed the September 12, 2012, vote on the motion to proceed to S. 3457, the Veterans Jobs Corps Act of 2012.

Had I been present, I would have voted in favor of the motion to proceed to the Veterans Jobs Corps Act of 2012. I am a proud supporter of our Nation's veterans, and I believe this bill will provide our veterans with much needed support in order to start new careers.

REAUTHORIZING THE EB–5 REGIONAL CENTER PROGRAM

Mr. LEAHY. Mr. President, today, the House of Representatives passed S. 3245, legislation to reauthorize the job-creating EB–5 Regional Center Program for an additional 3 years. In addition to this important program, the legislation also prevents the expiration of three other immigration programs important to Senator CONRAD, Senator HATCH, and Senator GRASSLEY.

I am very pleased the House acted with such strong bipartisan support, and I commend House Judiciary Committee chairman LAMAR SMITH for his quick action on the bill. Once again I thank the Judiciary Committee's ranking member, Senator GRASSLEY, for his partnership on this legislation.

Passage of this legislation in the House today will ensure that the job-creating EB–5 Regional Center Program will continue. Today's action will allow the U.S. Citizenship and Immigration Services to continue to improve and grow the program administratively and will give me and other interested lawmakers, agency officials, and private citizens the time needed to consider and find consensus on lasting statutory improvements to the program so that it may continue as a permanent and vital part of our immigration system. Most importantly, it will allow American entrepreneurs to continue building job-creating development projects around the country.

This program is and will remain a productive part of America's immigration system. Like Canada, Australia, New Zealand, and the United Kingdom, the United States is right to provide the world's citizens the opportunity to immigrate to its shores based upon investment. This program welcomes people from around the world who devote substantial investment capital to American businesses to invigorate American communities. And it does so at no cost to the American taxpayer. Moreover, those who immigrate through this program will purchase

real estate and other goods, enroll their children in our schools, colleges, and universities, pay taxes, and enrich the communities in which they will live and work.

As the availability of credit in the United States has become restricted, particularly for new and small businesses, many have turned to this program for capital. The program's growth over the last several years has been significant. And with increased growth comes the need for the law to keep pace and for the administering agency to adapt to this growth and devote the necessary resources. As we move forward, I look forward to continuing my work on comprehensive legislation to make this program an efficient, more productive, and permanent part of our immigration law. We have already seen many instances of the way in which this program can harness together many individual investments to do big things in many communities. But the law can and will benefit from some improvement in the coming months, and I stand ready to work with any Senators who recognize the value and potential of this program.

Our immigration law provides 10,000 visas each year for this program. When this program reaches the point at which it is fully subscribed, based on the minimum required investment amount and the statutory job creation requirement, it has the potential to direct $5 billion in foreign capital investment into American communities each year, with the potential for the creation of 100,000 American jobs. And that calculation does not take into account the domestic capital that can be attracted when projects are capitalized and carried out through this program or the ancillary benefits that communities experience when local economies are strengthened, nor does it account for the immeasurable contributions that new Americans make to our communities across the country every day.

We all recognize the need to take steps to do whatever we can to spur our economy and create jobs for American citizens. I have no doubt that the action taken unanimously by the Senate on August 3 and the decisive action taken by the House of Representatives today to complete the legislative process on this bill will help us meet this shared goal.

2012 OLYMPIANS

Mr. LEVIN. Mr. President, every 4 years families across the United States and around the world come together as summer begins to wind to a close to watch as supremely gifted athletes from across the globe showcase their talents in peaceful competition. The many thrilling moments that comprise this 16-day span are both awe-inspiring and riveting, and I congratulate each of the athletes who competed in the 2012 Olympic games in London for their effort, sacrifice and competitive spirit. Being an Olympian is a tremendous feat and is the product of a relentless commitment to intense, event-specific training, coupled with the drive, determination, and perseverance to excel. These events and these athletes captured our imagination, and once again, reminded us that achievement is limited only by our will and our audacity to dream big.

Representing their country in London is an experience these athletes will cherish for a lifetime. They leave with new bonds and new friendships borne of mutual respect. London was a welcoming and gracious host for these athletes, their family and friends, as well as the multitudes of fans that witnessed these enthralling sporting events firsthand. The venues were breathtaking, and the opening and closing ceremony was a feast for the senses, taking us on a splendid journey through history and foreshadowing what was to come. I, along with many across Michigan, applaud their effort.

There were many firsts at these games. For the first time, a woman was a member of every Olympic delegation, including a Saudi Arabian woman competing bravely for her home country. The London games also featured the debut of women's boxing. It was particularly gratifying to watch a Flint Northwestern High School student earn the first gold medal in Women's Boxing for the United States. The poise, quickness and grit of Flint native Claressa Shield displayed en route to her victory was a delight to watch. There was also Oscar Pistorius, a bold and graceful athlete who has overcome many obstacles to compete alongside able-bodied athletes as peers.

And none of us will forget Michael Phelps, who followed up his brilliance in Athens with another dramatic and impressive performance in London, solidifying his place among the greatest Olympians of all time. The medal total for this Michigan Wolverine is astonishing—22 Olympic medals, 18 of them gold.

Nor will we forget the passion and spunk of the ''Fierce Five'', led by DeWitt's own Jordyn Weiber. Jordyn experienced a range of emotion at these games, from the high of winning the team gold in gymnastics for the United States to disappointment of falling just short of qualifying, by the narrowest of margin, for the highly coveted individual All-Around title. Her grace in both victory and disappointment set a fine example for aspiring young gymnasts.

And there was two-time Olympian Allison Schmitt, who earned three gold medals in swimming to increase her lifetime Olympic medal total to six.

As evidenced by these and other impressive performances, Michigan was well-represented in London. Impressively, 30 athletes with strong ties to Michigan competed in these games, including Chas Betts in wrestling, Tia Brooks in track, Tyler Clary in swimming, Ellis Coleman in wrestling, Desiree Davila in track, Geena Gall in track, Jake Herbert in wrestling, Charlie Houchin in swimming, Connor Jaeger in swimming, Kara Lynn Joyce in swimming, Ken Jurkowski in rowing, Justin Lester in wrestling, Spenser Mango in wrestling, Sam Mikulak in gymnastics, Brett Newlin in rowing, Jamie Nieto in track, Tom Peszek in rowing, Jeff Porter in track, Ben Provisor in wrestling, Dathan Ritzenhein in track, Daryl Szarenski in shooting, Davis Tarwater in swimming, Sarah Trowbridge in rowing, Peter Vanderkaay in swimming, Lauryn Williams in track, and Sarah Zelenka in rowing.

In addition to these outstanding American athletes, Michiganians proudly witnessed a number of talented athletes from other nations with strong ties to Michigan compete in these games, including Eric Alejandro in track, Bradley Ally in swimming, George Bovell in swimming, Nate Brannen in track, Syque Caesar in gymnastics, Milorad Cavic in swimming, Franklin Gomez in wrestling, Janine Hanson in rowing, Barry Murphy in swimming, Wu Peng in swimming, Krista Phillips in basketball, Tiffany Porter in track, Nicole Sifuentes in track, and Nick Willis in track.

The joy and excitement on the faces of these fine athletes as they fulfilled their dream to compete against the best in the world was infectious. Their determination was searing. Watching them compete in a gracious way as the world tuned in reminds us of what is possible. They navigated cultural differences, overcame language barriers and set aside historical disputes to engage in fair, peaceful competition. While it is in many ways symbolic, it is nonetheless significant. It reminds us all that we are a human family and that respect and dignity is deserved for all.

Barbara and I are honored to salute the many athletes with ties to Michigan who competed in London. Their hard work was evident; their skill was exquisite; and the competition that resulted was fascinating to watch. The inspiring example of excellence these athletes have put forth will not soon be forgotten. In homes across our State, young people are working a little harder, setting their goals a little higher and aspiring to equal or exceed the athletic prowess displayed in London time and time again. Our future is a little brighter as a result of each of them.

WORLD WAR II VETERANS

Mr. TESTER. Mr. President, On September 23, nearly 100 World War II veterans from Montana will be visiting our Nation's Capital.

With a great deal of honor and respect, I extend a hearty Montana welcome to each and every one of them.

Together, they will visit the World War II Memorial and share stories about their service. This journey will

no doubt bring about a lot of memories. I hope it will give them a deep sense of pride also.

What they achieved together almost 70 years ago was remarkable. That memorial is a testament to the fact that a grateful nation will never forget what they did nor what they sacrificed. To us, they were the greatest generation. They left the comforts of their family and their communities to confront evil from Iwo Jima to Bastogne. Together, they won the war in the Pacific by conquering an empire and liberated a continent by defeating Hitler and the Nazis.

To them, they were simply doing their jobs. They enlisted in unprecedented numbers to defend our freedoms and our values. They represented the very best of us and made us proud.

From a young age I remember playing the bugle at the memorial services of veterans of the first two world wars. It instilled in me a profound sense of respect I will never forget.

Honoring the service of every generation of American veterans is a Montana value. I deeply appreciate the work of the Big Sky Honor Flight, a nonprofit organization that made this trip and the first trip in June possible.

To the World War II veterans making the trip, I salute you. We will always be grateful, and we will never forget your service or sacrifice.

ADDITIONAL STATEMENTS

CONGRATULATING THE NEVADA COMMUNITY FOUNDATION

● Mr. HELLER. Mr. President, today I wish to congratulate one of my home State's local leaders in charitable giving, the Nevada Community Foundation, on obtaining its National Standards for U.S. Community Foundations accreditation from the Community Foundations National Standards Board.

The Foundation's commitment to the highest philanthropic standards for operational quality, integrity, and accountability has continuously provided the citizens of southern Nevada with invaluable services and leadership in their neighborhoods.

In the fall of 1988, the Nevada Community Foundation was incorporated as the first community foundation of Nevada. Designed to be a center of philanthropy for Nevada, the foundation is dedicated to improving the lives of current and future generations of southern Nevadans. By encouraging philanthropy, providing leadership, and promoting grant lending, the Nevada Community Foundation has worked tirelessly to meet the needs of southern Nevada. The foundation is committed to supporting local services, including education, social services, health, arts and culture, and the environment.

Serving the southern region of the Silver State for more than 24 years, the Nevada Community Foundation has remained a trusted philanthropic partner and champion for community investment. I applaud the Foundation's values of community, humility, and stewardship that have helped to enrich our communities and hope that they serve as an example for others within the state.

Today, I ask my colleagues to join me in recognizing the Nevada Community Foundation on receiving its National Standards accreditation. On behalf of the residents of southern Nevada, I congratulate the Nevada Community foundation on this accomplishment and commend the foundation's dedication to my home State.●

MESSAGES FROM THE PRESIDENT

Messages from the President of the United States were communicated to the Senate by Mr. McCathran, one of his secretaries.

EXECUTIVE MESSAGES REFERRED

As in executive session the Presiding Officer laid before the Senate messages from the President of the United States submitting sundry nominations which were referred to the appropriate committees.

(The messages received today are printed at the end of the Senate proceedings.)

MESSAGES FROM THE HOUSE

At 12:55 p.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the House has passed the following bills, in which it requests the concurrence of the Senate:

H.R. 3857. An act to amend the Implementing Recommendations of the 9/11 Commission Act of 2007 to require the Secretary of Homeland Security to include as an eligible use the sustainment of specialized operational teams used by local law enforcement under the Transit Security Grant Program, and for other purposes.

H.R. 5544. An act to authorize and expedite a land exchange involving National Forest System land in the Laurentian District of the Superior National Forest and certain other National Forest System land in the State of Minnesota that has limited recreational and conservation resources and lands owned by the State of Minnesota in trust for the public school system that are largely scatered in checkerboard fashion within the Boundary Waters Canoe Area Wilderness and have important recreational, scenic, and conservation resources, and for other purposes.

H.R. 5865. An act to promote the growth and competitiveness of American manufacturing.

H.R. 5949. An act to extend the FISA Amendments Act of 2008 for five years.

ENROLLED BILL SIGNED

At 6:39 p.m., a message from the House of Representatives, delivered by Mr. Novotny, one of its reading clerks, announced that the Speaker has signed the following enrolled bill:

H.R. 6336. An act to direct the Joint Committee on the Library to accept a statue depicting Frederick Douglass from the District of Columbia and to provide for the permanent display of the statue in Emancipation Hall of the United States Capitol.

MEASURES REFERRED

The following bills were read the first and the second times by unanimous consent, and referred as indicated:

H.R. 3857. An act to amend the Implementing Recommendations of the 9/11 Commission Act of 2007 to require the Secretary of Homeland Security to include as an eligible use the sustainment of specialized operational teams used by local law enforcement under the Transit Security Grant Program, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

H.R. 5544. An act to authorize and expedite a land exchange involving National Forest System land in the Laurentian District of the Superior National Forest and certain other National Forest System land in the State of Minnesota that has limited recreational and conservation resources and lands owned by the State of Minnesota in trust for the public school system that are largely scattered in checkerboard fashion within the Boundary Waters Canoe Area Wilderness and have important recreational, scenic, and conservation resources, and for other purposes; to the Committee on Agriculture, Nutrition, and Forestry.

H.R. 5865. An act to promote the growth and competitiveness of American manufacturing; to the Committee on Commerce, Science, and Transportation.

MEASURES READ THE FIRST TIME

The following bill was read the first time:

H.R. 5949. An act to extend the FISA Amendments Act of 2008 for five years.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–7441. A communication from the President of the United States, transmitting, pursuant to law, a report relative to an alternative plan for pay increases for civilian Federal employees covered by the General Schedule and certain other pay systems for 2013; to the Committee on Homeland Security and Governmental Affairs.

EC–7442. A communication from the Associate General Counsel for General Law, Department of Homeland Security, transmitting, pursuant to law, a report relative to a vacancy in the position of Acting Commissioner, U.S. Customs and Border Protection, received in the Office of the President of the Senate on September 10, 2012; to the Committee on Homeland Security and Governmental Affairs.

EC–7443. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 19–439, ''Compulsory/No Fault Motor Vehicle Insurance Amendment Act of 2012''; to the Committee on Homeland Security and Governmental Affairs.

EC–7444. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 19–440, ''Automated Traffic Enforcement Amendment Act of 2012''; to the

Committee on Homeland Security and Governmental Affairs.

EC–7445. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 19–441, ''Anacostia River Clean Up and Protection Amendment Act of 2012''; to the Committee on Homeland Security and Governmental Affairs.

EC–7446. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 19–442, ''Immigration Detainer Compliance Amendment Act of 2012''; to the Committee on Homeland Security and Governmental Affairs.

EC–7447. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 19–443, ''Access to Selective Service Registration Amendment Act of 2012''; to the Committee on Homeland Security and Governmental Affairs.

EC–7448. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 19–444, ''DOC Inmate Processing and Release Amendment Act of 2012''; to the Committee on Homeland Security and Governmental Affairs.

EC–7449. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 19–445, ''Block Party Act of 2012''; to the Committee on Homeland Security and Governmental Affairs.

EC–7450. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 19–446, ''Pesticide Education and Control Amendment Act of 2012''; to the Committee on Homeland Security and Governmental Affairs.

EC–7451. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 19–447, ''Anacostia Waterfront Environmental Standards Amendment Act of 2012''; to the Committee on Homeland Security and Governmental Affairs.

EC–7452. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 19–448, ''Regulation of Body Artists and Body Art Establishments Act of 2012''; to the Committee on Homeland Security and Governmental Affairs.

EC–7453. A communication from the District of Columbia Auditor, transmitting, pursuant to law, a report entitled, ''District of Columbia Agencies' Compliance with Small Business Enterprise Expenditure Goals through the 3rd Quarter of Fiscal Year 2012''; to the Committee on Homeland Security and Governmental Affairs.

EC–7454. A communication from the Executive Director, Commodity Futures Trading Commission, transmitting, pursuant to law, the Commission's fiscal year 2012 FAIR Act inventory; to the Committee on Homeland Security and Governmental Affairs.

EC–7455. A communication from the Chief of the Planning and Regulatory Affairs Branch, Food and Nutrition Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Food Distribution Program on Indian Reservations: Administrative Funding Allocations'' (RIN0584–AD85) received in the Office of the President of the Senate on September 10, 2012; to the Committee on Homeland Security and Governmental Affairs.

EC–7456. A communication from the Chairman of the National Transportation Safety Board, transmitting, pursuant to law, the Board's amended Fiscal Year 2011 Annual Report on The Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002; to the Committee on Homeland Security and Governmental Affairs.

EC–7457. A communication from the Secretary of Housing and Urban Development, transmitting, pursuant to law, the Office of the Inspector General's Semiannual Report for the period of October 1, 2012 through March 31, 2012; to the Committee on Homeland Security and Governmental Affairs.

EC–7458. A communication from the Director of the Acquisition Policy and Legislation Branch, Office of the Chief Procurement Officer, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Homeland Security Acquisition Regulation (HSAR); Revision Initiative'' (RIN1601–AA28) received during adjournment of the Senate in the Office of the President of the Senate on August 31, 2012; to the Committee on Homeland Security and Governmental Affairs.

EC–7459. A communication from the Administrator, Federal Emergency Management Agency, Department of Homeland Security, transmitting, pursuant to law, a report relative to the cost of response and recovery efforts for FEMA–3345–EM in the State of West Virginia having exceeded the $5,000,000 limit for a single emergency declaration; to the Committee on Homeland Security and Governmental Affairs.

EC–7460. A communication from the Secretary of Health and Human Services, transmitting, pursuant to law, a report relative to three violations of the Antideficiency Act occurring in an Indian Health Services (IHS) account; to the Committee on Appropriations.

EC–7461. A communication from the Assistant Secretary of Defense (Global Strategic Affairs), transmitting, pursuant to law, a report entitled ''Report on Proposed Obligations for Cooperative Threat Reduction, September 2012''; to the Committee on Armed Services.

EC–7462. A communication from the Assistant Secretary for Export Administration, Bureau of Industry and Security, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Updated Statements of Legal Authority for the Export Administration Regulations'' (RIN0694–AF78) received in the Office of the President of the Senate on September 12, 2012; to the Committee on Banking, Housing, and Urban Affairs.

EC–7463. A communication from the Assistant Legal Adviser for Treaty Affairs, Department of State, transmitting, pursuant to the Case-Zablocki Act, 1 U.S.C. 112b, as amended, the report of the texts and background statements of international agreements, other than treaties (List 2012–0119—2012–0122); to the Committee on Foreign Relations.

EC–7464. A communication from the Program Manager, Centers for Disease Control and Prevention, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Specifications for Medical Examinations of Underground Coal Miners'' (RIN0920–AA21) received in the Office of the President of the Senate on September 12, 2012; to the Committee on Health, Education, Labor, and Pensions.

EC–7465. A communication from the Program Manager, Centers for Disease Control and Prevention, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''World Trade Center Health Program; Addition of Certain Types of Cancer to the List of WTC-Related Health Conditions'' (RIN0920–AA49) received in the Office of the President of the Senate on September 12, 2012; to the Committee on Health, Education, Labor, and Pensions.

EC–7466. A communication from the Senior Procurement Executive/Deputy Chief Acquisition Officer, Office of Acquisition Policy, General Services Administration, transmitting, pursuant to law, the report of a rule entitled ''Federal Acquisition Regulation; Federal Acquisition Circular 2005–61, Introduction'' (FAC 2005–61) received in the Office of the President of the Senate on September 12, 2012; to the Committee on Homeland Security and Governmental Affairs.

EC–7467. A communication from the District of Columbia Auditor, transmitting, pursuant to law, a report entitled, ''Audit of the Closure and Consolidation of 23 D.C. Public Schools''; to the Committee on Homeland Security and Governmental Affairs.

EC–7468. A communication from the Special Inspector General for Iraq Reconstruction, transmitting, pursuant to law, the Quarterly Report for July 2012; to the Committee on Homeland Security and Governmental Affairs.

EC–7469. A communication from the Acting Assistant Attorney General, Office of Legislative Affairs, Department of Justice, transmitting, pursuant to law, a report entitled ''Debt Collection Recovery Activities of the Department of Justice for Debts Referred to the Department for Collection Annual Report for Fiscal Year 2011''; to the Committee on the Judiciary.

EC–7470. A communication from the Federal Liaison Officer, Patent and Trademark Office, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''CPI Adjustment of Patent Fees for Fiscal Year 2013'' (RIN0651–AC55) received in the Office of the President of the Senate on September 10, 2012; to the Committee on the Judiciary.

EC–7471. A communication from the Secretary, Judicial Conference of the United States, transmitting, a report of proposed legislation entitled ''Criminal Judicial Procedure, Administration, and Technical Amendments Act of 2012''; to the Committee on the Judiciary.

EC–7472. A communication from the Director, Administrative Office of the United States Courts, transmitting, pursuant to law, a report entitled ''2011 Report of Statistics Required by the Bankruptcy Abuse Prevention and Consumer Protection Act of 2005''; to the Committee on the Judiciary.

EC–7473. A communication from the President, American Academy of Arts and Letters, transmitting, pursuant to law, a report relative to the Academy's activities during the year ending December 31, 2011; to the Committee on the Judiciary.

EC–7474. A joint communication from the Chair and Vice Chair, Federal Election Commission, transmitting, pursuant to law, the Commission's fiscal year 2014 budget request; to the Committee on Rules and Administration.

EC–7475. A communication from the Assistant Attorney General, Office of Legislative Affairs, Department of Justice, transmitting, pursuant to law, a report entitled ''Uniformed Services Employment and Reemployment Rights Act of 1994 (USERRA) Quarterly Report to Congress; Third Quarter of Fiscal Year 2012''; to the Committee on Veterans' Affairs.

EC–7476. A communication from the Director of the Regulation Policy and Management Office of the General Counsel, Veterans Health Administration, Department of Veterans Affairs, transmitting, pursuant to law, the report of a rule entitled ''Sharing Information Between the Department of Veterans Affairs and the Department of Defense'' (RIN2900–AN95) received in the Office of the President of the Senate on September 10, 2012; to the Committee on Veterans' Affairs.

EC–7477. A communication from the Director of the Regulation Policy and Management Office of the General Counsel, Veterans

Health Administration, Department of Veterans Affairs, transmitting, pursuant to law, the report of a rule entitled ''Guide and Service Dogs'' (RIN2900–AN51) received in the Office of the President of the Senate on September 10, 2012; to the Committee on Veterans' Affairs.

EC–7478. A communication from the Program Manager, Information Sharing Environment, Office of the Director of National Intelligence, transmitting, pursuant to law, a report entitled, ''Annual Report to the Congress on the Information Sharing Environment''; to the Select Committee on Intelligence.

EC–7479. A communication from the Program Manager, Information Sharing Environment, Office of the Director of National Intelligence, transmitting, pursuant to law, a cover letter, without the listed attachment, relative to the report entitled ''Annual Report to the Congress on the Information Sharing Environment''; to the Select Committee on Intelligence.

EC–7480. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zones; Fourth of July Fireworks Displays within the Captain of the Port Charleston Zone, SC'' ((RIN1625–AA00) (Docket No. USCG–2012–0384)) received during adjournment of the Senate in the Office of the President of the Senate on August 6, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7481. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Rocketts Red Glare Fireworks, Ancarrows Landing Park, James River, Richmond, VA'' ((RIN1625–AA00) (Docket No. USCG–2012–0114)) received during adjournment of the Senate in the Office of the President of the Senate on August 6, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7482. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Baltimore Air Show, Patapsco River, Baltimore, MD'' ((RIN1625–AA00) (Docket No. USCG–2012–0076)) received during adjournment of the Senate in the Office of the President of the Senate on August 6, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7483. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; America's Cup World Series, East Passage, Narragansett Bay, Rhode Island'' ((RIN1625–AA00) (Docket No. USCG–2011–1172)) received during adjournment of the Senate in the Office of the President of the Senate on August 6, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7484. A communication from the Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Spiny Lobster Fishery of the Gulf of Mexico and South Atlantic; Amendment 11'' (RIN0648–BB44) received during adjournment of the Senate in the Office of the President of the Senate on August 8, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7485. A communication from the Acting Deputy Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Arrowtooth Flounder in the Bering Sea and Aleutian Islands Management Area'' (RIN0648–XC129) received during adjournment of the Senate in the Office of the President of the Senate on August 8, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7486. A communication from the Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries Off West Coast States; Pacific Coast Groundfish Fishery Management Plan; Trawl Rationalization Program'' (RIN0648–BC00) received during adjournment of the Senate in the Office of the President of the Senate on August 8, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7487. A communication from the Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Atlantic Highly Migratory Species; 2012 Atlantic Bluefin Tuna Quota Specifications'' (RIN0648–XA920) received during adjournment of the Senate in the Office of the President of the Senate on August 8, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7488. A communication from the Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Western Pacific Pelagic Fisheries; Revised Swordfish Trip Limits in the Hawaii Deep-Set Longline Fishery'' (RIN0648–BB48) received during adjournment of the Senate in the Office of the President of the Senate on August 8, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7489. A communication from the Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Taking of Marine Mammals Incidental to Commercial Fishing Operations; Bottlenose Dolphin Take Reduction Plan'' (RIN0648–BA34) received during adjournment of the Senate in the Office of the President of the Senate on August 8, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7490. A communication from the Acting Deputy Assistant Administrator for Regulatory Programs, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries Off West Coast States; Coastal Pelagic Species Fisheries; Annual Specifications'' (RIN0648–XB045) received during adjournment of the Senate in the Office of the President of the Senate on August 13, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7491. A communication from the Deputy Assistant Administrator for Regulatory Programs, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Revisions to Framework Adjustment 47 to the Northeast Multispecies Fishery Management Plan and Sector Annual Catch Entitlements; Updated Annual Catch Limits for Sectors and the Common Pool for Fishing Year 2012'' (RIN0648–BB62) received during adjournment of the Senate in the Office of the President of the Senate on August 10, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7492. A communication from the Acting Assistant Administrator for Fisheries, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; Reef Fish Fishery of the Gulf of Mexico; Red Snapper Management Measures'' (RIN0648–BB91) received during adjournment of the Senate in the Office of the President of the Senate on August 13, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7493. A communication from the Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries Off West Coast States; Coastal Pelagic Species Fisheries; Annual Specifications'' (RIN0648–XA882) received during adjournment of the Senate in the Office of the President of the Senate on August 22, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7494. A communication from the Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; Comprehensive Annual Catch Limit Amendment Supplement'' (RIN0648–BB93) received during adjournment of the Senate in the Office of the President of the Senate on August 22, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7495. A communication from the Acting Deputy Assistant Administrator for Regulatory Programs, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Gulf of Alaska; Final 2012 and 2013 Harvest Specifications for Groundfish; Correction'' (RIN0648–XA711) received during adjournment of the Senate in the Office of the President of the Senate on August 22, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7496. A communication from the Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; Reef Fish Fishery of the Gulf of Mexico; Amendment 32 Supplement'' (RIN0648–AY56) received during adjournment of the Senate in the Office of the President of the Senate on August 22, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7497. A communication from the Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Atlantic Highly Migratory Species; North and South Atlantic Swordfish Quotas and Management Measures'' (RIN0648–BB75) received during adjournment of the Senate in the Office of the President of the Senate on August 22, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7498. A communication from the Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Atlantic Highly Migratory Species; Electronic Dealer Reporting Requirements'' (RIN0648–BA75) received in the Office of the President of the Senate on September 10, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7499. A communication from the Deputy Assistant Administrator for Operations, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Groundfish of the Gulf of Alaska; Amendment 88; Correction'' (RIN0648–BC23) received during adjournment of the Senate in the Office of the President of the Senate on August 8, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7500. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Atlantic Highly Migratory Species; Atlantic Bluefin Tuna Fisheries'' (RIN0648–XC055) received during adjournment of the Senate in

the Office of the President of the Senate on August 17, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7501. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Shallow-Water Species Fishery by Vessels Using Trawl Gear in the Gulf of Alaska'' (RIN0648–XC056) received during adjournment of the Senate in the Office of the President of the Senate on August 17, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7502. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Atlantic Highly Migratory Species; Commercial Gulf of Mexico Non-Sandbar Large Coastal Shark Fishery'' (RIN0648–XC080) received during adjournment of the Senate in the Office of the President of the Senate on August 17, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7503. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Reef Fish Fishery of the Gulf of Mexico; 2012 Commercial Accountability Measure and Closure for Gulf of Mexico Gray Triggerfish'' (RIN0648–XC076) received during adjournment of the Senate in the Office of the President of the Senate on August 17, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7504. A communication from the Deputy Assistant Administrator for Regulatory Programs, National Marine Fisheries Service, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Chinook Salmon Bycatch Management in the Gulf of Alaska Pollock Fishery; Amendment 93'' (RIN0648–BB24) received during adjournment of the Senate in the Office of the President of the Senate on August 22, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7505. A communication from the Acting Deputy Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; 'Other Rockfish' in the Central Regulatory Area of the Gulf of Alaska'' (RIN0648–XC167) received in the Office of the President of the Senate on September 10, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7506. A communication from the Acting Deputy Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Northeastern United States; Northeast Multispecies Fishery; White Hake Trimester Total Allowable Catch Area Closure for the Common Pool Fishery'' (RIN0648–XC153) received in the Office of the President of the Senate on September 11, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7507. A communication from the Acting Deputy Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Squid in the Bering Sea and Aleutian Islands Management Area'' (RIN0648–XC119) received during adjournment of the Senate in the Office of the President of the Senate on August 8, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7508. A communication from the Acting Deputy Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Coastal Migratory Pelagic Resources of the Gulf of Mexico and South Atlantic; 2012–2013 Accountability Measure and Closure for Gulf King Mackerel in Western Zone'' (RIN0648–XC160) received in the Office of the President of the Senate on September 11, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7509. A communication from the Acting Deputy Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Deep-Water Species Fishery by Vessels Using Trawl Gear in the Gulf of Alaska'' (RIN0648–XC142) received in the Office of the President of the Senate on September 11, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7510. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Snapper-Grouper Fishery of the South Atlantic; 2012 Recreational Accountability Measure and Closure for South Atlantic Golden Tilefish'' (RIN0648–XC025) received during adjournment of the Senate in the Office of the President of the Senate on August 17, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7511. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Safety Zone; Temporary Change for Recurring Fireworks Display within the Fifth Coast Guard District, Pamlico River and Tar River; Washington, NC'' ((RIN1625–AA00) (Docket No. USCG–2012–0097)) received during adjournment of the Senate in the Office of the President of the Senate on August 6, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7512. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Approval of Classification Societies'' ((RIN1625–AB35) (Docket No. USCG–2007–27668)) received during adjournment of the Senate in the Office of the President of the Senate on August 8, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7513. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Validation of Merchant Mariners' Vital Information and Issuance of Coast Guard Merchant Mariner's Licenses and Certificates of Registry (MMLs)'' ((RIN1625–AA85) (Docket No. USCG–2004–17455)) received during adjournment of the Senate in the Office of the President of the Senate on August 6, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7514. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Alternate Tonnage Threshold for Oil Spill Response Vessels'' ((RIN1625–AB82) (Docket No. USCG–2011–0966)) received during adjournment of the Senate in the Office of the President of the Senate on August 6, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7515. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Swim Events in the Captain of the Port New York Zone; Hudson River, East River, Upper New York Bay, Lower New York Bay; New York, NY'' ((RIN1625–AA00) (Docket No. USCG–2011–1000)) received during adjournment of the Senate in the Office of the President of the Senate on August 6, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7516. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Navigation and Navigable Waters; Technical, Organizational and Conforming Amendments'' ((RIN1625–AB86) (Docket No. USCG–2012–0306)) received during adjournment of the Senate in the Office of the President of the Senate on August 6, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7517. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Validation of Merchant Mariners' Vital Information and Issuance of Coast Guard Merchant Mariner's Documents (MMDs)'' ((RIN1625–AB81) (Docket No. USCG–2003–14500)) received during adjournment of the Senate in the Office of the President of the Senate on August 6, 2012; to the Committee on Commerce, Science, and Transportation.

EC–7518. A communication from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Carbon Dioxide Fire Suppression Systems on Commercial Vessels'' ((RIN1625–AB44) (Docket No. USCG–2006–24797)) received during adjournment of the Senate in the Office of the President of the Senate on August 6, 2012; to the Committee on Commerce, Science, and Transportation.

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. LIEBERMAN, from the Committee on Homeland Security and Governmental Affairs, with an amendment in the nature of a substitute and an amendment to the title:

S. 2170. A bill to amend the provisions of title 5, United States Code, which are commonly referred to as the ''Hatch Act'' to eliminate the provision preventing certain State and local employees from seeking elective office, clarify the application of certain provisions to the District of Columbia, and modify the penalties which may be imposed for certain violations under subchapter III of chapter 73 of that title (Rept. No. 112–211).

By Mr. AKAKA, from the Committee on Indian Affairs, without amendment:

S. 2389. A bill to deem the submission of certain claims to an Indian Health Service contracting officer as timely.

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. SCHUMER:

S. 3537. A bill to require all recreational vessels to have and post passenger capacity limits and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. JOHANNS (for himself and Mr. TESTER):

S. 3538. A bill to reform laws relating to small public housing agencies, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Mr. KERRY:

S. 3539. A bill to encourage the adoption and use of certified electronic health record

technology by safety net providers and clinics; to the Committee on Finance.

By Mr. TESTER:

S. 3540. A bill to reduce Federal advertising budgets; to the Committee on Homeland Security and Governmental Affairs.

By Mr. NELSON of Nebraska (for himself and Mr. JOHANNS):

S. 3541. A bill to amend section 520 of the Housing Act of 1949 to revise the census data and population requirements for areas to be considered as rural areas for purposes of such Act; to the Committee on Banking, Housing, and Urban Affairs.

By Ms. KLOBUCHAR (for herself and Mr. BLUNT):

S. 3542. A bill to authorize the Assistant Secretary of Homeland Security (Transportation Security Administration) to modify screening requirements for checked baggage arriving from preclearance airports, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. CORNYN (for himself and Mrs. HUTCHISON):

S. 3543. A bill to exempt from the Lacey Act Amendments of 1981 certain water transfers by the North Texas Municipal Water District and the Greater Texoma Utility Authority; to the Committee on Environment and Public Works.

By Mr. BROWN of Ohio (for himself, Mr. SCHUMER, and Ms. STABENOW):

S. 3544. A bill to make available funds from the Emergency Economic Stabilization Act of 2008 for funding pension benefits with respect to former employees of Delphi Corporation; to the Committee on Banking, Housing, and Urban Affairs.

By Mr. GRASSLEY (for himself and Mr. FRANKEN):

S. 3545. A bill to amend title 11 of the United States Code to clarify the rule allowing discharge as a nonpriority claim of governmental claims arising from the disposition of farm assets under chapter 12 bankruptcies; to the Committee on Finance.

By Mr. JOHNSON of South Dakota (for himself, Mr. AKAKA, Mr. TESTER, Mr. UDALL of New Mexico, and Mr. FRANKEN):

S. 3546. A bill to amend the Native American Programs Act of 1974 to reauthorize a provision to ensure the survival and continuing vitality of Native American languages; to the Committee on Indian Affairs.

By Mr. KERRY (for himself, Mr. LIEBERMAN, Mr. SANDERS, and Mr. BLUMENTHAL):

S. 3547. A bill to amend the Lacey Act Amendments of 1981 to clarify provisions enacted by the Captive Wildlife Safety Act, to further the conservation of certain wildlife species, and for other purposes; to the Committee on Environment and Public Works.

By Mr. AKAKA:

S. 3548. A bill to clarify certain provisions of the Native American Veterans' Memorial Establishment Act of 1994; to the Committee on Indian Affairs.

By Mrs. GILLIBRAND:

S. 3549. A bill to amend the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 to provide grants for the revitalization of waterfront brownfields, and for other purposes; to the Committee on Environment and Public Works.

By Mr. BLUMENTHAL (for himself and Mr. HARKIN):

S. 3550. A bill to amend the Higher Education Act of 1965 to protect students from deceptive practices and high-pressure sales by institutions of higher education, to provide a waiting period for students to make enrollment decisions, to guard against misrepresentation, to standardize and elevate institutional disclosures, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. DEMINT (for himself and Mr. CORKER):

S. 3551. A bill to require investigations into and a report on the September 11–13, 2012, attacks on the United States missions in Libya, Egypt, and Yemen, and for other purposes; to the Committee on Foreign Relations.

By Ms. STABENOW (for herself and Mr. ROBERTS):

S. 3552. A bill to reauthorize the Federal Insecticide, Fungicide, and Rodenticide Act; considered and passed.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mrs. BOXER (for herself and Mr. CORNYN):

S. Res. 554. A resolution calling on the Government of the People's Republic of China to facilitate the immediate and unconditional release of Gao Zhisheng, and for other purposes; to the Committee on Foreign Relations.

By Mr. CONRAD (for himself, Mr. ENZI, and Mr. CARDIN):

S. Res. 555. A resolution supporting the goals and ideals of ''National Save for Retirement Week'', including raising public awareness of the various tax-preferred retirement vehicles and increasing personal financial literacy; to the Committee on Health, Education, Labor, and Pensions.

By Mr. INHOFE:

S. Res. 556. A resolution expressing the sense of the Senate that foreign assistance funding to the Governments of Libya and Egypt should be suspended until the President certifies to Congress that both governments are providing proper security at United States embassies and consulates pursuant to the Vienna Convention on Consular Relations; to the Committee on Foreign Relations.

By Mr. KERRY (for himself, Mr. LUGAR, Mrs. FEINSTEIN, Mr. LEAHY, Mr. UDALL of Colorado, Mr. LIEBERMAN, Mr. KIRK, Mr. MCCAIN, and Mrs. BOXER):

S. Res. 557. A resolution honoring the contributions of Lodi Gyaltsen Gyari as Special Envoy of His Holiness the Dalai Lama and in promoting the legitimate rights and aspirations of the Tibetan people; to the Committee on Foreign Relations.

By Mr. REID:

S. Res. 558. A resolution congratulating the athletes from the State of Nevada and throughout the United States who participated in the 2012 Olympic and Paralympic Games as members of the United States Olympic and Paralympic Teams; to the Committee on Commerce, Science, and Transportation.

ADDITIONAL COSPONSORS

S. 621

At the request of Mr. ROCKEFELLER, the name of the Senator from West Virginia (Mr. MANCHIN) was added as a cosponsor of S. 621, a bill to amend the Surface Mining Control and Reclamation Act of 1977 to provide for use of excess funds available under that Act to provide for certain benefits, and for other purposes.

S. 755

At the request of Mr. WYDEN, the name of the Senator from New Jersey (Mr. MENENDEZ) was added as a cosponsor of S. 755, a bill to amend the Internal Revenue Code of 1986 to allow an offset against income tax refunds to pay for restitution and other State judicial debts that are past-due.

S. 810

At the request of Ms. CANTWELL, the name of the Senator from Maryland (Ms. MIKULSKI) was added as a cosponsor of S. 810, a bill to prohibit the conducting of invasive research on great apes, and for other purposes.

S. 821

At the request of Mr. LEAHY, the name of the Senator from Colorado (Mr. BENNET) was added as a cosponsor of S. 821, a bill to amend the Immigration and Nationality Act to eliminate discrimination in the immigration laws by permitting permanent partners of United States citizens and lawful permanent residents to obtain lawful permanent resident status in the same manner as spouses of citizens and lawful permanent residents and to penalize immigration fraud in connection with permanent partnerships.

S. 829

At the request of Mr. CARDIN, the name of the Senator from Michigan (Ms. STABENOW) was added as a cosponsor of S. 829, a bill to amend title XVIII of the Social Security Act to repeal the Medicare outpatient rehabilitation therapy caps.

S. 996

At the request of Mr. ROCKEFELLER, the name of the Senator from Alaska (Ms. MURKOWSKI) was added as a cosponsor of S. 996, a bill to amend the Internal Revenue Code of 1986 to extend the new markets tax credit through 2016, and for other purposes.

S. 998

At the request of Mr. AKAKA, the name of the Senator from North Dakota (Mr. CONRAD) was added as a cosponsor of S. 998, a bill to amend title IV of the Employee Retirement Income Security Act of 1974 to require the Pension Benefit Guaranty Corporation, in the case of airline pilots who are required by regulation to retire at age 60, to compute the actuarial value of monthly benefits in the form of a life annuity commencing at age 60.

S. 1171

At the request of Mr. SCHUMER, the names of the Senator from New Hampshire (Mrs. SHAHEEN) and the Senator from Michigan (Ms. STABENOW) were added as cosponsors of S. 1171, a bill to amend the Internal Revenue Code of 1986 to extend the exclusion from gross income for employer-provided health coverage for employees' spouses and dependent children to coverage provided to other eligible dependent beneficiaries of employees.

S. 1301

At the request of Mr. LEAHY, the name of the Senator from Iowa (Mr. HARKIN) was added as a cosponsor of S. 1301, a bill to authorize appropriations for fiscal years 2012 through 2015 for the

Trafficking Victims Protection Act of 2000, to enhance measures to combat trafficking in persons, and for other purposes.

S. 1324

At the request of Mrs. BOXER, the name of the Senator from Maryland (Ms. MIKULSKI) was added as a cosponsor of S. 1324, a bill to amend the Lacey Act Amendments of 1981 to prohibit the importation, exportation, transportation, and sale, receipt, acquisition, or purchase in interstate or foreign commerce, of any live animal of any prohibited wildlife species, and for other purposes.

S. 1512

At the request of Mr. CARDIN, the name of the Senator from North Dakota (Mr. CONRAD) was added as a cosponsor of S. 1512, a bill to amend the Internal Revenue Code of 1986 and the Small Business Act to expand the availability of employee stock ownership plans in S corporations, and for other purposes.

S. 1894

At the request of Mr. SCHUMER, the name of the Senator from California (Mrs. FEINSTEIN) was added as a cosponsor of S. 1894, a bill to deter terrorism, provide justice for victims, and for other purposes.

S. 1910

At the request of Mr. LIEBERMAN, the name of the Senator from California (Mrs. FEINSTEIN) was added as a cosponsor of S. 1910, a bill to provide benefits to domestic partners of Federal employees.

S. 1966

At the request of Ms. AYOTTE, the name of the Senator from Mississippi (Mr. COCHRAN) was added as a cosponsor of S. 1966, a bill to direct the Secretary of Homeland Security to reform the process for enrolling, activating, issuing, and renewing Transportation Worker Identification Credentials so that applicants are not required to visit a designated enrollment center more than once.

S. 2046

At the request of Ms. MIKULSKI, the name of the Senator from Illinois (Mr. DURBIN) was added as a cosponsor of S. 2046, a bill to amend the Immigration and Nationality Act to modify the requirements of the visa waiver program and for other purposes.

S. 2172

At the request of Ms. SNOWE, the name of the Senator from Massachusetts (Mr. BROWN) was added as a cosponsor of S. 2172, a bill to remove the limit on the anticipated award price for contracts awarded under the procurement program for women-owned small business concerns, and for other purposes.

S. 2234

At the request of Mr. BLUMENTHAL, the name of the Senator from New York (Mrs. GILLIBRAND) was added as a cosponsor of S. 2234, a bill to prevent human trafficking in government contracting.

S. 2288

At the request of Ms. LANDRIEU, the name of the Senator from Alaska (Mr. BEGICH) was added as a cosponsor of S. 2288, a bill to amend title XXVII of the Public Health Service Act to preserve consumer and employer access to licensed independent insurance producers.

S. 2620

At the request of Mr. SCHUMER, the name of the Senator from Hawaii (Mr. AKAKA) was added as a cosponsor of S. 2620, a bill to amend title XVIII of the Social Security Act to provide for an extension of the Medicare-dependent hospital (MDH) program and the increased payments under the Medicare low-volume hospital program.

S. 3196

At the request of Ms. SNOWE, the name of the Senator from Massachusetts (Mr. BROWN) was added as a cosponsor of S. 3196, a bill to establish the National Women's High-Growth Business Bipartisan Task Force, and for other purposes.

S. 3197

At the request of Ms. SNOWE, the name of the Senator from Massachusetts (Mr. BROWN) was added as a cosponsor of S. 3197, a bill to reauthorize the women's business center program of the Small Business Administration, and for other purposes.

S. 3204

At the request of Mr. JOHANNS, the name of the Senator from Montana (Mr. BAUCUS) was added as a cosponsor of S. 3204, a bill to address fee disclosure requirements under the Electronic Fund Transfer Act, and for other purposes.

S. 3244

At the request of Mr. FRANKEN, the name of the Senator from Rhode Island (Mr. WHITEHOUSE) was added as a cosponsor of S. 3244, a bill to amend the Higher Education Opportunity Act to add disclosure requirements to the institution financial aid offer form and to amend the Higher Education Act of 1965 to make such form mandatory.

S. 3248

At the request of Mr. ENZI, the name of the Senator from Nebraska (Mr. NELSON) was added as a cosponsor of S. 3248, a bill to designate the North American bison as the national mammal of the United States.

S. 3252

At the request of Mr. PORTMAN, the name of the Senator from Nevada (Mr. REID) was added as a cosponsor of S. 3252, a bill to provide for the award of a gold medal on behalf of Congress to Jack Nicklaus, in recognition of his service to the Nation in promoting excellence, good sportsmanship, and philanthropy.

S. 3402

At the request of Mr. CASEY, the name of the Senator from Maryland (Ms. MIKULSKI) was added as a cosponsor of S. 3402, a bill to require the Secretary of Labor to maintain a publicly available list of all employers that relocate a call center overseas, to make such companies ineligible for Federal grants or guaranteed loans, and to require disclosure of the physical location of business agents engaging in customer service communications, and for other purposes.

S. 3426

At the request of Mr. MERKLEY, the name of the Senator from Connecticut (Mr. BLUMENTHAL) was added as a cosponsor of S. 3426, a bill to amend the Truth in Lending Act to address certain issues related to the extension of consumer credit, and for other purposes.

S. 3457

At the request of Mr. NELSON of Florida, the names of the Senator from Pennsylvania (Mr. CASEY) and the Senator from West Virginia (Mr. MANCHIN) were added as cosponsors of S. 3457, a bill to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes.

S. 3463

At the request of Mr. FRANKEN, the names of the Senator from Maryland (Mr. CARDIN) and the Senator from Hawaii (Mr. AKAKA) were added as cosponsors of S. 3463, a bill to amend title XVIII of the Social Security Act to reduce the incidence of diabetes among Medicare beneficiaries.

S. 3477

At the request of Mrs. BOXER, the names of the Senator from California (Mrs. FEINSTEIN), the Senator from Maryland (Mr. CARDIN) and the Senator from Maryland (Ms. MIKULSKI) were added as cosponsors of S. 3477, a bill to ensure that the United States promotes women's meaningful inclusion and participation in mediation and negotiation processes undertaken in order to prevent, mitigate, or resolve violent conflict and implements the United States National Action Plan on Women, Peace, and Security.

S. 3485

At the request of Mr. BROWN of Ohio, the name of the Senator from Texas (Mrs. HUTCHISON) was added as a cosponsor of S. 3485, a bill to limit the authority of States to tax certain income of employees for employment duties performed in other States.

S. 3522

At the request of Mr. MENENDEZ, the name of the Senator from Louisiana (Ms. LANDRIEU) was added as a cosponsor of S. 3522, a bill to provide for the expansion of affordable refinancing of mortgages held by the Federal National Mortgage Association and the Federal Home Loan Mortgage Corporation.

S. 3536

At the request of Mr. BLUMENTHAL, the name of the Senator from Maryland (Mr. CARDIN) was added as a cosponsor of S. 3536, a bill to amend the Internal Revenue Code of 1986 to extend the work opportunity credit for hiring veterans, and for other purposes.

S.J. RES. 50

At the request of Mr. HATCH, the names of the Senator from North Dakota (Mr. HOEVEN), the Senator from Texas (Mrs. HUTCHISON), the Senator from Tennessee (Mr. ALEXANDER), the Senator from Georgia (Mr. ISAKSON) and the Senator from South Carolina (Mr. GRAHAM) were added as cosponsors of S.J. Res. 50, a joint resolution providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the Office of Family Assistance of the Administration for Children and Families of the Department of Health and Human Services relating to waiver and expenditure authority under section 1115 of the Social Security Act (42 U.S.C. 1315) with respect to the Temporary Assistance for Needy Families program.

S. RES. 543

At the request of Mrs. BOXER, the name of the Senator from Kansas (Mr. ROBERTS) was added as a cosponsor of S. Res. 543, a resolution to express the sense of the Senate on international parental child abduction.

AMENDMENT NO. 2782

At the request of Mr. MCCONNELL, his name was added as a cosponsor of amendment No. 2782 intended to be proposed to S. 3457, a bill to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes.

AMENDMENT NO. 2790

At the request of Mr. BLUMENTHAL, the name of the Senator from Montana (Mr. TESTER) was added as a cosponsor of amendment No. 2790 intended to be proposed to S. 3457, a bill to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes.

AMENDMENT NO. 2801

At the request of Ms. SNOWE, the names of the Senator from Washington (Mrs. MURRAY) and the Senator from Minnesota (Ms. KLOBUCHAR) were added as cosponsors of amendment No. 2801 intended to be proposed to S. 3457, a bill to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. KERRY:

S. 3539. A bill to encourage the adoption and use of certified electronic health record technology by safety net providers and clinics; to the Committee on Finance.

Mr. KERRY. Mr. President, the American Recovery and Reinvestment Act of 2009, ARRA, provided Medicare and Medicaid incentive payments to providers that adopt and meaningfully use electronic health records, EHRs, in their practices. While this program has helped thousands of providers, practices, and hospitals nationwide, many safety net providers and clinics have not been able to benefit from the Medicaid EHR incentives.

Safety net providers serve as a critical entry point into the health care system, and provide essential health care services for millions of low-income, uninsured and underinsured individuals. Given that Medicaid eligibility levels are so low in many States, it is difficult for many safety net providers to meet the 30 percent Medicaid threshold required to participate in the Medicaid EHR incentive program even though their patients are predominately low-income. Congress addressed this problem only for practitioners working in federally-qualified health centers and rural health centers by creating a 30 percent ''needy'' threshold in ARRA for those providers. Unfortunately, ARRA fails to provide a similar standard for other providers serving low-income individuals.

The Medicaid Information Technology to Enhance Community Health, MITECH, Act of 2012 seeks to eliminate the barriers that prevent safety net providers from qualifying from Medicaid EHR incentives. Specifically, it would expand eligibility for meaningful use incentives to providers that practice predominantly in a qualified safety net clinic, QSNC. The act defines a QSNC as a clinic or network of clinics that is operated by a private non-profit or public entity and that has at least 30 percent of its patient volume attributable to needy individuals. The act also directs the Secretary of Health and Human Services to develop a methodology to allow these clinics to be eligible for meaningful use payments as an entity, similar to the current process that exists for hospitals.

I would like to thank the 13 national organizations who have been integral to the development of this legislation and who have endorsed it today, including the Association of State and Territorial Health Officials, the HIV Medicine Association, Mental Health America, the National Association of Public Hospitals, the National Family Planning and Reproductive Health Association, and the Trust for America's Health.

The MITECH Act will allow safety net clinics to better communicate with patients about necessary screenings, help ensure compliance with prescription drugs, and will strengthen the safety net which provides essential care to so many Americans. It is my hope that we can move forward with this bill in a bipartisan manner. I ask all of my colleagues to support this important legislation.

By Mr. GRASSLEY (for himself and Mr. FRANKEN):

S. 3545. A bill to amend title 11 of the United States Code to clarify the rule allowing discharge as a nonpriority claim of governmental claims arising from the disposition of farm assets under chapter 12 bankruptcies; to the Committee on Finance.

Mr. GRASSLEY. Mr. President, I rise today to introduce, along with Senator FRANKEN, the Family Farmer Bankruptcy Tax Clarification Act of 2012. This bill addresses the recent United States Supreme Court case Hall v. United States. In a 5–4 decision, the Supreme Court ruled the provision I inserted into the 2005 Bankruptcy Abuse Prevention and Consumer Protection Act did not accomplish what we intended. The Family Farmer Bankruptcy Tax Clarification Act of 2012 corrects this and clarifies that bankrupt family farmers reorganizing their debts are able to treat capital gains taxes owed to a governmental unit, arising from the sale of farm assets during a bankruptcy, as general unsecured claims. This bill will remove the Internal Revenue Service's veto power over a bankruptcy reorganization plan's confirmation, giving the family farmer a chance to reorganize successfully.

In 1986 Congress enacted Chapter 12 of the Bankruptcy Code to provide a specialized bankruptcy process for family farmers. In 2005 Chapter 12 was made permanent. Between 1986 and 2005 we learned what aspects worked and did not work for family farmers reorganizing in bankruptcy. One problematic area was where a family farmer needed to sell assets in order to generate cash for the reorganization. Specifically, a family farmer would have to sell portions of the farm to generate cash to fund a reorganization plan so that the creditors could receive payment. Unfortunately, in situations like this, the family farmer is selling land that has been owned for a very long time, with a very low cost basis. Thus, when the land is sold, the family farmer is hit with a substantial capital gains tax, which is owed to the Internal Revenue Service.

Under the Bankruptcy Code, taxes owed to the Internal Revenue Service receive priority treatment. Holders of priority claims must receive payment in full, unless the claim holder agrees to be treated differently. This creates problems for the family farmer who needs the cash to pay creditors to reorganize. However, since the Internal Revenue Service has the ability to require full payment, they hold veto power over a plan's confirmation, which means in many instances the plan will not be confirmed. This does not make sense if the goal is to give the family farmer a fresh start. Thus, in 2005 Congress said that in these limited situations, the taxes owed to the Internal Revenue Service could be treated as general, unsecured debt. This removed the government's veto power over plan confirmation and paved the way for family farmers to reorganize successfully.

However, in Hall v. United States, the Supreme Court ruled that despite Congress's express goal of helping family farmers, the language inserted into the Bankruptcy Code in 2005 conflicted with the Tax Code. The Hall case was one of statutory interpretation. There is no question what Congress was trying to do; rather, did Congress use the

correct language? My goal, along with others at the time, was to relieve family farmers from having their reorganization plans fail because of huge tax liabilities to the federal government. Justice Breyer noted this in the dissent: ''Congress was concerned about the effect on the farmer of collecting capital gains tax debts that arose during (and were connected with) the Chapter 12 proceedings themselves. . . . The majority does not deny the importance of Congress' objective. Rather, it feels compelled to hold that Congress put the Amendment in the wrong place.'' Hall v. United States, 132 S.Ct. 1882, 1897, 2012, Breyer, J., dissenting, internal citations and quotations omitted.

As a result of the Hall case, family farmers facing bankruptcy now find themselves caught in an unfortunate situation. The rules have changed and must be corrected in order to provide certainty and clarity in the law. The Family Farmer Bankruptcy Tax Clarification Act of 2012 will provide the clarity needed to help family farmers reorganize in bankruptcy.

This bill strikes the current language in the Bankruptcy Code, which the Supreme Court said does not work, 11 U.S.C. §1222(a)(2)(A) and inserts a new 11 U.S.C. §1222(a)(5). The new provision transforms all government claims arising as a result of the sale or transfer of post-petition farm assets into unsecured, non-priority claims, notwithstanding any language in the Internal Revenue Code to the contrary. The bill also provides new sections for treatment of these claims during the bankruptcy process. The bill recognizes that some asset sales may occur post-confirmation. As a result, we also provide a mechanism for plan modification as a result of these sales, if used for the specified purpose of reorganization, to assist in reorganization. Finally, we make a technical change to 11 U.S.C. §1228(a), which practitioners and commentators have long argued is needed. This technical change is within the limited scope of this clarification bill, as it provides greater certainty and clarity that has troubled courts and practitioners alike.

I recognize the end of this session of Congress is near and the time to do something is short. However, we have been fine tuning this legislation to ensure it properly corrects the Hall case. We will seek to do what we can during the remaining Congressional calendar to fix the problem this year. Should we run out of time, then we will maintain our focus on this problem into the next year. The Family Farmer Bankruptcy Tax Clarification Act of 2012 ensures that what Congress sought to do in 2005 actually occurs. In the wake of the Hall decision, clarification is needed to help ensure family farmers facing bankruptcy will have a chance to reorganize successfully.

Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 3545

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Family Farmer Bankruptcy Tax Clarification Act of 2012''.

SEC. 2. CLARIFICATION OF RULE ALLOWING DISCHARGE TO GOVERNMENTAL CLAIMS ARISING FROM THE DISPOSITION OF FARM ASSETS UNDER CHAPTER 12 BANKRUPTCIES.

(a) IN GENERAL.—Section 1222(a) of title 11, United States Code, is amended—

(1) in paragraph (2), by striking ''unless—'' and all that follows through ''the holder'' and inserting ''unless the holder'';

(2) in paragraph (3), by striking ''and'' at the end;

(3) in paragraph (4), by striking the period at the end and inserting ''; and''; and

(4) by adding at the end the following:

''(5) notwithstanding the application of the rules under subchapter V of chapter 1 of the Internal Revenue Code of 1986, and without regard to whether the claim arose before or after the filing of the petition, provide for the treatment and payment of any unsecured claim owed to a governmental unit by the debtor or the estate that arises as a result of the sale, transfer, exchange, or other disposition of any farm asset used in the debtor's farming operation as an unsecured claim that is not entitled to priority under section 507.''.

(b) POSTPETITION CLAIMS RELATING TO SALE, TRANSFER, EXCHANGE, OR OTHER DISPOSITION OF FARM ASSETS.—

(1) IN GENERAL.—Section 1222 of title 11, United States Code, is amended by adding at the end the following:

''(e)(1) A governmental unit may file a proof of claim for a claim described in subsection (a)(5) that arises after the date on which the petition is filed.

''(2)(A) Except as provided in subparagraph (B), if a governmental unit has not filed a proof of claim under paragraph (1) for a claim described in subsection (a)(5), after the date that is 120 days after the date on which the claim arises, the trustee or the debtor may file proof of such claim.

''(B)(i) For a claim described in subsection (a)(5) that is a tax for which a return is due, if the debtor or trustee has provided notice as described in clause (ii) and the governmental unit has not filed a proof of claim under paragraph (1), after the date that is 180 days after the date on which the debtor or trustee provides the notice, the debtor or the trustee may file proof of such claim.

''(ii) Notice as described in this clause is notice by the debtor or the trustee—

''(I) indicating the intent to file the applicable claim;

''(II) setting forth the amount of the claim;

''(III) that includes a copy of the filed return relating to the claim; and

''(IV) that is delivered to the governmental unit at the address designated for requests made under section 505(b)(1)(A).

''(3) A claim filed under paragraph (1) or (2) shall be allowed or disallowed under section 502, but shall be determined as of the date such claim arises, and shall be allowed under section 502(a), (b), or (c) of this title, or disallowed under section 502(d) or 502(e) of this title the same as if such claim had arisen before the date of the filing of the petition.''.

(2) MODIFICATION OF PLAN AFTER CONFIRMATION.—Section 1229(a) of title 11, United States Code, is amended—

(A) in paragraph (2), by striking ''or'' at the end;

(B) in paragraph (3), by striking the period at the end and inserting ''; or''; and

(C) by adding at the end the following:

''(4) provide for the payment of a claim described in section 1222(a)(5) that arose after the date on which the petition is filed.''.

(c) TECHNICAL CORRECTION.—Section 1228(a) of title 11, United States Code, is amended in the matter preceding paragraph (1)—

(1) by inserting a comma after ''all debts provided for by the plan''; and

(2) by inserting a comma after ''allowed under section 503 of this title''.

(d) EFFECTIVE DATE.—The amendments made by this section shall apply to any bankruptcy case that—

(1) is pending on the date of enactment of this Act and relating to which an order of discharge under section 1228 of title 11, United States Code, has not been entered; or

(2) commences on or after the date of enactment of this Act.

By Mr. KERRY (for himself, Mr. LIEBERMAN, Mr. SANDERS, and Mr. BLUMENTHAL):

S. 3547. A bill to amend the Lacey Act Amendments of 1981 to clarify provisions enacted by the Captive Wildlife Safety Act, to further the conservation of certain wildlife species, and for other purposes; to the Committee on Environment and Public Works.

Mr. KERRY. Mr. President, today I am introducing the Big Cats and Public Safety Protection Act to protect public safety, improve animal welfare, assist international big cat conservation, and to help clarify the existing patchwork of current state regulation. This is a companion for legislation previously introduced in the House by Representatives HOWARD MCKEON and LORETTA SANCHEZ. Amazingly, it is unknown even how many big cats such as lions, cougars, leopards, and cheetahs live or are bred in private possession in the United States. This bill would prevent the private possession and breeding of big cats, while still allowing properly accredited zoos and wildlife sanctuaries to continue to operate in the critical conservation and animal welfare roles that they occupy today.

Why is this legislation so important? First, this is a public safety issue, which was made tragically clear almost a year ago in Zanesville, Ohio, when the owner of a backyard zoo opened the cages of his tigers, leopards, lions, wolves, bears, and monkeys before killing himself. Wild animals were literally roaming the streets where children were playing and people were going about their daily lives. Sadly, the situation gave police no choice but to shoot and kill almost 50 animals, including 38 big cats, before they could enter populated areas. Public safety officials were, understandably, not trained or equipped to deal with large exotic animals especially 300 pound tigers. This tragedy should serve as a chilling wakeup call about our lack of safeguards around large, wild species being kept as pets. In the past 11 years in the United States, incidents involving captive big cats have resulted in the deaths of 21 people, 16 adults and 5 children. During the same time period,

there have been 246 maulings, 253 escapes, 143 big cat deaths, and 128 confiscations.

This is also an animal welfare issue. Research shows that the captive big cat community is characterized by a systemic culture of inhumane mistreatment of the animals. One major reason for this is that once individual big cats have outgrown the infancy stage when they are most profitable, they are often warehoused in terrible conditions. Because private ownership is allowed to continue, many sanctuaries for mistreated or unwanted big cats are at or nearing capacity and lack financial reserves to provide greater assistance. The recent closure of a major sanctuary in Texas that had over 50 big cats has made matters worse.

Third, this is a matter of conservation. Tigers, for example, are extremely endangered by poaching and trade, and illegal tiger products continue to be smuggled into the U.S. from foreign countries. One of the biggest threats to wild tigers is the demand for tiger parts and products, and leakage of captive tiger parts and products into the illegal market continues to encourage demand, perpetuating poaching and threatening remaining wild populations.

Finally, this bill will address the current patchwork state regulation. There are still two states that have no regulations or permits at all regarding private ownership of exotic animals including big cats. Seven other States have little to no regulations of private ownership of exotic animals including big cats. Another 14 states allow big cat possession only with a state permit, and 27 states and the District of Columbia have enacted full bans on private ownership of big cats, though all of those exempt federally-licensed exhibitors. Given the risks I have already outlined, this kind of regulatory patchwork is simply unacceptable and could be dangerous.

I believe that the Big Cats and Public Safety Protection Act will help ensure that lions, tigers, and other potentially dangerous big cats do not threaten public safety, harm global conservation efforts, or end up living in squalid conditions where they are subject to mistreatment and cruelty.

A number of organizations are supportive of this bill, including the International Fund for Animal Welfare, the Humane Society of the United States, Born Free USA, Big Cat Rescue, the Animal Welfare Institute, and the World Wildlife Foundation.

I would like to recognize Senators LIEBERMAN, SANDERS, and BLUMENTHAL as original cosponsors of this bill. I look forward to continued progress in enhancing the protection and conservation of wild big cats and in increasing public safety from the dangers of these untamed animals.

By Mr. AKAKA:

S. 3548. A bill to clarify certain provisions of the Native American Veterans Memorial Establishment Act of 1994; to the Committee on Indian Affairs.

Mr. AKAKA. Mr. President, as Chairman of the Committee on Indian Affairs, I am introducing legislation to make technical corrections to the National Native American Veterans' Memorial Act of 1994.

The 1994 Act honors the profound contributions of Native Veterans by authorizing the construction of a National Native American Veterans' Memorial. Unfortunately, technical issues with the law have made it difficult to move forward with the Memorial. The bill I am introducing today seeks to alleviate those obstacles.

My legislation would make technical corrections in order to allow the National Museum of American Indian to join the National Congress of American Indians in the fundraising efforts for the Memorial. In addition, my bill would allow the Memorial to be constructed on the property provided for by the National Museum of American Indian Act.

Per capita, American Indians, Alaska Natives, and Native Hawaiians serve at a higher rate in the Armed Forces than any other group of Americans. Native peoples have served in all of the Nation's wars since the Revolutionary War. A memorial in their honor is well-deserved and long overdue.

My non-controversial, no cost, technical amendments bill will make it easier to construct the authorized memorial to honor our Native Veterans.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 554—CALLING ON THE GOVERNMENT OF THE PEOPLE'S REPUBLIC OF CHINA TO FACILITATE THE IMMEDIATE AND UNCONDITIONAL RELEASE OF GAO ZHISHENG, AND FOR OTHER PURPOSES

Mrs. BOXER (for herself and Mr. CORNYN) submitted the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 554

Whereas Gao Zhisheng is a prominent Chinese human rights lawyer known for representing religious minority groups, factory workers, coal miners, and victims of government land seizures;

Whereas, in 2001, the Ministry of Justice of the People's Republic of China listed Gao Zhisheng as one of the top ten lawyers in China;

Whereas the Government of the People's Republic of China arrested Gao Zhisheng on August 15, 2006, and prevented him from meeting with chosen legal counsel;

Whereas, on December 22, 2006, Gao Zhisheng was convicted of inciting subversion and received a suspended sentence of three years subject to five years of probation;

Whereas, in September 2007, authorities in China apprehended and detained Gao Zhisheng for 50 days;

Whereas Gao Zhisheng claimed that during his detention, government officials threatened his life and tortured him, including beating him with electrified batons, urinating on him, leaving him tied up for hours, and holding lighted cigarettes close to his eyes and nose;

Whereas the Government of the People's Republic of China arrested and detained Gao Zhisheng again on February 4, 2009;

Whereas Gao Zhisheng's whereabouts were unknown until March 2010, when he resurfaced, only to be arrested once more on April 20, 2010;

Whereas, on November 19, 2010, the United Nations Working Group on Arbitrary Detention determined Gao Zhisheng's ongoing detention to be arbitrary and in violation of international law;

Whereas Gao Zhisheng was held for 20 months before officials in China informed his family in December 2011 that he was being held at the Shaya County Prison in remote Xinjiang, China;

Whereas authorities allowed Gao Zhiyi to visit his brother, Gao Zhisheng, in the Shaya County Prison for 30 minutes on March 24, 2012, but then warned him not to speak to the media or he would not be allowed to visit his brother again;

Whereas the arbitrary arrest and detention of attorneys who represent minority groups and human rights activists could have a chilling effect on other attorneys working with similar clients;

Whereas Article 9 of the International Covenant on Civil and Political Rights, adopted at New York December 16, 1966, to which the Government of the People's Republic of China is a signatory, states, ''No one shall be subjected to arbitrary arrest or detention.'';

Whereas the International Covenant on Civil and Political Rights also guarantees the right to freedom of expression;

Whereas the wife of Gao Zhisheng, Geng He, and their two children have been afforded protection as political asylees in the United States;

Whereas the United States Government has authorized Gao Zhisheng to enter the United States, based on his family's successful claim of political asylum; and

Whereas the continued detention of Gao Zhisheng, with limited or no access to family or legal counsel, by the Government of the People's Republic of China is a source of grave concern to the United States Senate: Now, therefore, be it

Resolved, That the Senate calls on the Government of the People's Republic of China—

(1) to immediately facilitate continued access to Gao Zhisheng by his family and lawyers;

(2) to facilitate the immediate and unconditional release of Gao Zhisheng, including allowing Mr. Gao to leave China to come to the United States to be reunited with his family, should he wish to do so; and

(3) to release all persons in China who have been arbitrarily detained.

SENATE RESOLUTION 555—SUPPORTING THE GOALS AND IDEALS OF ''NATIONAL SAVE FOR RETIREMENT WEEK'', INCLUDING RAISING PUBLIC AWARENESS OF THE VARIOUS TAX-PREFERRED RETIREMENT VEHICLES AND INCREASING PERSONAL FINANCIAL LITERACY

Mr. CONRAD (for himself, Mr. ENZI, and Mr. CARDIN) submitted the following resolution; which was referred to the Committee on Health, Education, Labor, and Pensions:

S. RES. 555

Whereas people in the United States are living longer, and the cost of retirement is increasing significantly;

Whereas Social Security remains the bedrock of retirement income for the great majority of the people of the United States but was never intended by Congress to be the sole source of retirement income for families;

Whereas recent data from the Employee Benefit Research Institute indicates that, in the United States, less than ⅗ of workers or their spouses are currently saving for retirement, and the actual amount of retirement savings of workers is much less than the amount needed to adequately fund their retirement years;

Whereas the financial literacy of workers in the United States is important to their understanding of the need to save for retirement;

Whereas saving for retirement is a key component to overall financial health and security during retirement years, and the importance of financial literacy in planning for retirement must be advocated;

Whereas many workers may not be aware of their options in saving for retirement or may not have focused on the importance of, and need for, saving for retirement;

Whereas many employees have available to them, through their employers, access to defined benefit and defined contribution plans to assist them in preparing for retirement, yet many of those employees may not be taking advantage of those plans at all or to the full extent allowed by Federal law;

Whereas the need to save for retirement is important even during economic downturns or market declines, which make continued contributions all the more important;

Whereas all workers, including public and private sector employees, employees of tax-exempt organizations, and self-employed individuals, can benefit from developing personal budgets and financial plans that include retirement savings strategies and taking advantage of tax-preferred retirement savings vehicles; and

Whereas October 21 through October 27, 2012, has been designated as ''National Save for Retirement Week'': Now, therefore, be it

Resolved, That the Senate—

(1) supports the goals and ideals of ''National Save for Retirement Week'', including raising public awareness of the importance of saving adequately for retirement;

(2) supports the need to raise public awareness of the availability of a variety of ways to save for retirement which are favored under the Internal Revenue Code of 1986 and are utilized by many people in the United States, but which should be utilized by more; and

(3) calls on the States, localities, schools, universities, nonprofit organizations, businesses, other entities, and the people of the United States to observe National Save for Retirement Week with appropriate programs and activities, with the goal of increasing the retirement savings and personal financial literacy of all people in the United States.

SENATE RESOLUTION 556—EXPRESSING THE SENSE OF THE SENATE THAT FOREIGN ASSISTANCE FUNDING TO THE GOVERNMENTS OF LIBYA AND EGYPT SHOULD BE SUSPENDED UNTIL THE PRESIDENT CERTIFIES TO CONGRESS THAT BOTH GOVERNMENTS ARE PROVIDING PROPER SECURITY AT UNITED STATES EMBASSIES AND CONSULATES PURSUANT TO THE VIENNA CONVENTION ON CONSULAR RELATIONS

Mr. INHOFE submitted the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 556

Resolved, That it is the sense of the Senate that foreign assistance funding to the Governments of Libya and Egypt should be suspended until the President certifies to Congress that both governments are providing, and will provide in the future, security necessary to protect United States personnel in and around the United States embassies and consulates in these two countries, pursuant to the Vienna Convention on Consular Relations, done at Vienna April 24, 1963.

SENATE RESOLUTION 557—HONORING THE CONTRIBUTIONS OF LODI GYALTSEN GYARI AS SPECIAL ENVOY OF HIS HOLINESS THE DALAI LAMA AND IN PROMOTING THE LEGITIMATE RIGHTS AND ASPRIATIONS OF THE TIBETAN PEOPLE

Mr. KERRY (for himself, Mr. LUGAR, Mrs. FEINSTEIN, Mr. LEAHY, Mr. UDALL of Colorado, Mr. LIEBERMAN, Mr. KIRK, Mr. MCCAIN, and Mrs. BOXER) submitted the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 557

Whereas Lodi Gyaltsen Gyari, who was born in Nyarong, Kham in 1949, was recognized according to Tibetan Buddhist tradition as a reincarnate lama and began his monastic studies at 4 years of age in Lhumorhab Monastery, which was located in what is now Kardze Prefecture, Sichuan Province;

Whereas, in 1958, 9-year-old Lodi Gyari fled Nyarong with his family to avoid pursuit by the Chinese People's Liberation Army and was said to have led his group to safety in India through prayer and divinations;

Whereas Lodi Gyari, as a young man in India, began a career-long commitment to the Tibetan struggle against Chinese oppression in Tibet, becoming editor for the Tibetan Freedom Press, founder of the Tibetan Review, the first English language journal published by Tibetans in exile, and a founding member of the Tibetan Youth Congress;

Whereas Lodi Gyari served as a civil servant in the Central Tibetan Administration of His Holiness the Dalai Lama, as Chairman of the Tibetan Parliament in exile, and as a Deputy Cabinet Minister for the Departments of Religious Affairs and Health and Cabinet Minister for the Department of Information and International Relations;

Whereas, in 1991, Lodi Gyari moved to the United States in the capacity of Special Envoy of His Holiness the Dalai Lama and was soon after selected to be President of the International Campaign for Tibet;

Whereas, for 3 decades Lodi Gyari has met with leaders and diplomats of governments around the world and with Members of the United States Congress and parliaments of other nations—

(1) to explain the Tibetan position with regard to engagement with China;

(2) to urge supportive strategies and policies from governments;

(3) to explain the Dalai Lama's ''Middle Way'' philosophy of seeking genuine autonomy for Tibet within the People's Republic of China that contributes to harmony between the Tibetan and Chinese peoples; and

(4) to promote Tibetan statecraft as the Dalai Lama's senior ambassador-at-large;

Whereas, during his time as Special Envoy based in Washington, D.C., Congress approved many policy and programmatic measures on Tibet, which served to institutionalize the Tibet issue within the Government of the United States, most notably the establishment of a Special Coordinator on Tibetan Issues within the Department of State and support for Tibetan refugees;

Whereas, in 1999, Lodi Gyari became a United States citizen;

Whereas in May 1998, His Holiness the Dalai Lama authorized Special Envoy Lodi Gyari to be the principal person to reestablish contact with the Chinese government on the Tibetan issue;

Whereas, between September 2002 and January 2010, Lodi Gyari led the Dalai Lama's negotiating team in 9 formal rounds of meetings with Chinese officials with tireless drive and immense skill, winning the respect of the international community;

Whereas Lodi Gyari presented the Chinese government with the Memorandum on Genuine Autonomy for the Tibetan People and its accompanying Note, thus detailing the Tibetan side's vision for a political solution for Tibet consistent within the framework of the Chinese constitutional and laws on autonomy;

Whereas Lodi Gyari, in service to the Dalai Lama, came to represent in national capitals around the world, the great hope and conviction that the rights of Tibetans could be protected and their repression could be ended.

Whereas, in the personally and professionally difficult task of representing Tibetan interests in dialogue with the People's Republic of China, Lodi Gyari demonstrated spirit, intelligence, and extraordinary tact, and brought civility, reason and a measure of mutual understanding to the Tibetan-Chinese relationship;

Whereas Lodi Gyari has credited the farsighted wisdom of His Holiness the Dalai Lama in empowering the Tibetan people by his devolution of his political authority to an elected Tibetan leadership; and

Whereas, Lodi Gyari resigned his position, effective June 1, 2012, in the context of the deteriorating situation inside Tibet, including increasing incidents of Tibetan self-immolations, and expressing deep frustration over the lack of positive response from the Chinese side in their nearly 10-year dialogue, and in respect for the process of the devolution of political power to the elected Tibetan leaders.

Now, therefore, be it

Resolved, That the Senate—

(1) honors the service of Lodi Gyaltsen Gyari as Special Envoy of His Holiness the Dalai Lama;

(2) commends the achievements of Lodi Gyaltsen Gyari in building an international coalition of support for Tibet that recognizes—

(A) the imperative to preserve the distinct culture and religious traditions of Tibet; and

(B) that the Tibetan people are entitled under international law to their own identity and dignity and genuine autonomy within the People's Republic of China that fully preserves the rights and dignity of the Tibetan people;

(3) acknowledges the role of Lodi Gyaltsen Gyari, as a naturalized United States citizen, to promoting understanding in the United States of the Tibetan people, their culture and religion, and their struggle for genuine autonomy, human rights, dignity, and the preservation of unique linguistic, cultural, and religious traditions; and

(4) strongly supports a political solution for Tibet within the People's Republic of China that satisfies the legitimate grievances and aspirations of the Tibetan people.

SENATE RESOLUTION 558—CONGRATULATING THE ATHLETES FROM THE STATE OF NEVADA AND THROUGHOUT THE UNITED STATES WHO PARTICIPATED IN THE 2012 OLYMPIC AND PARALYMPIC GAMES AS MEMBERS OF THE UNITED STATES OLYMPIC AND PARALYMPIC TEAMS

Mr. REID of Nevada submitted the following resolution; which was referred to the Committee on Commerce, Science, and Transportation:

S. RES. 558

Whereas the 2012 Olympic Games were held in London, England from July 27, 2012, to August 12, 2012, and the 2012 Paralympic Games were held in London, England from August 29, 2012, to September 9, 2012;

Whereas 532 Olympians and 227 Paralympians competed on behalf of Team USA in London, England;

Whereas the great State of Nevada contributed 4 athletes to the United States Olympic Team and 1 athlete to the United States Paralympic Team;

Whereas the Olympians and Paralympian from the State of Nevada proudly represented the United States in competition and displayed an admirable dedication to the spirit of the Olympic Games;

Whereas Amanda Bingson of Las Vegas, Nevada, competed in the Olympic Women's Hammer Throw event;

Whereas Jacob Dalton of Reno, Nevada, competed in the Olympic Men's Gymnastics Floor Exercise and Men's Team events;

Whereas Connor Fields of Las Vegas, Nevada, competed in the Olympic Men's BMX event;

Whereas Michael Hunter II of Las Vegas, Nevada, competed in the Olympic Men's Heavyweight Boxing event;

Whereas Cortney Jordan of Henderson, Nevada, competed in the Paralympic Women's 400m Freestyle, 100m Breaststroke, 100m Backstroke, 200m Individual Medley, 50m Freestyle, and 100m Freestyle events;

Whereas Ms. Jordan won silver medals in the 400m Freestyle, 50m Freestyle, and 100m Freestyle, and a bronze medal in the 100m Backstroke;

Whereas the citizens of the State of Nevada and the people of the United States stand united in respect and admiration for the Nevadan Olympians and Paralympian, and the athletic accomplishments, sportsmanship, and dedication of those athletes to excellence in the 2012 Olympics and Paralympics;

Whereas the many accomplishments of the Nevadan Olympians and Paralympian would not have been possible without the hard work and dedication of many others, including the United States Olympic Committee, the relevant United States National Governing Bodies, and the many administrators, coaches, and family members who provided critical support for the athletes: Now, therefore, be it

Resolved, That the Senate extends sincere congratulations for the accomplishments and gratitude for the sacrifices of the athletes from the State of Nevada and throughout the United States on the United States Olympic and Paralympic Teams and to everyone who supported the efforts of those athletes at the 2012 Olympics and Paralympics.

AMENDMENTS SUBMITTED AND PROPOSED

SA 2817. Mr. MANCHIN submitted an amendment intended to be proposed by him to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table.

SA 2818. Mr. MANCHIN submitted an amendment intended to be proposed by him to the bill S. 3457, supra; which was ordered to lie on the table.

SA 2819. Mr. MANCHIN submitted an amendment intended to be proposed by him to the bill S. 3457, supra; which was ordered to lie on the table.

SA 2820. Mr. LEVIN (for himself, Ms. LANDRIEU, and Mr. COCHRAN) submitted an amendment intended to be proposed by him to the bill S. 3457, supra; which was ordered to lie on the table.

SA 2821. Mrs. BOXER submitted an amendment intended to be proposed by her to the bill S. 3457, supra; which was ordered to lie on the table.

SA 2822. Ms. LANDRIEU submitted an amendment intended to be proposed by her to the bill S. 3457, supra; which was ordered to lie on the table.

SA 2823. Mr. COBURN submitted an amendment intended to be proposed by him to the bill S. 3457, supra; which was ordered to lie on the table.

SA 2824. Mr. COBURN submitted an amendment intended to be proposed by him to the bill S. 3457, supra; which was ordered to lie on the table.

SA 2825. Mr. COBURN submitted an amendment intended to be proposed by him to the bill S. 3457, supra; which was ordered to lie on the table.

SA 2826. Mr. COBURN submitted an amendment intended to be proposed by him to the bill S. 3457, supra; which was ordered to lie on the table.

SA 2827. Mrs. SHAHEEN (for herself and Mr. PORTMAN) submitted an amendment intended to be proposed by her to the bill S. 3457, supra; which was ordered to lie on the table.

SA 2828. Mr. HOEVEN (for himself and Mr. MANCHIN) submitted an amendment intended to be proposed by him to the bill S. 3457, supra; which was ordered to lie on the table.

SA 2829. Ms. KLOBUCHAR (for herself and Mr. ENZI) submitted an amendment intended to be proposed by her to the bill S. 3457, supra; which was ordered to lie on the table.

SA 2830. Mr. COCHRAN submitted an amendment intended to be proposed to amendment SA 2789 proposed by Mrs. MURRAY to the bill S. 3457, supra; which was ordered to lie on the table.

SA 2831. Mr. COCHRAN submitted an amendment intended to be proposed by him to the bill S. 3457, supra; which was ordered to lie on the table.

SA 2832. Mr. HOEVEN (for himself and Mr. MANCHIN) submitted an amendment intended to be proposed to amendment SA 2789 proposed by Mrs. MURRAY to the bill S. 3457, supra; which was ordered to lie on the table.

SA 2833. Ms. LANDRIEU submitted an amendment intended to be proposed to amendment SA 2789 proposed by Mrs. MURRAY to the bill S. 3457, supra; which was ordered to lie on the table.

SA 2834. Ms. LANDRIEU submitted an amendment intended to be proposed by her to the bill S. 3457, supra; which was ordered to lie on the table.

SA 2835. Ms. LANDRIEU submitted an amendment intended to be proposed to amendment SA 2789 proposed by Mrs. MURRAY to the bill S. 3457, supra; which was ordered to lie on the table.

SA 2836. Mr. LIEBERMAN (for himself, Ms. COLLINS, Mr. CARPER, and Mr. BROWN of Massachusetts) submitted an amendment intended to be proposed by him to the bill S. 3457, supra; which was ordered to lie on the table.

SA 2837. Ms. LANDRIEU (for herself, Ms. SNOWE, and Mrs. SHAHEEN) submitted an amendment intended to be proposed by her to the bill S. 3457, supra; which was ordered to lie on the table.

SA 2838. Mr. PAUL submitted an amendment intended to be proposed by him to the bill S. 3457, supra; which was ordered to lie on the table.

SA 2839. Mr. HATCH submitted an amendment intended to be proposed to amendment SA 2782 submitted by Mr. BURR and intended to be proposed to the bill S. 3457, supra; which was ordered to lie on the table.

TEXT OF AMENDMENTS

SA 2817. Mr. MANCHIN submitted an amendment intended to be proposed by him to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

SEC. ____. REPORT ON ESTABLISHMENT OF VETERANS JOBS WEBSITE.

Not later than 180 days after the date of the enactment of this Act, the Comptroller General of the United States shall submit to Congress a report—

(1) assessing the feasibility and advisability of the establishment by the Secretary of Veterans Affairs of a website designed specifically for public and private sector employers to advertize employment opportunities for veterans; and

(2) estimating the funds and other resources required to establish and maintain such a website.

SA 2818. Mr. MANCHIN submitted an amendment intended to be proposed by him to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table; as follows:

On page 13, between lines 18 and 19, insert the following:

''(v) Any other license to operate equipment or engage in a trade.

SA 2819. Mr. MANCHIN submitted an amendment intended to be proposed by him to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

SEC. ___. SENSE OF THE SENATE ON EMPLOYMENT BY MEMBERS OF CONGRESS OF VETERANS AND MEMBERS OF THE NATIONAL GUARD AND RESERVES.

It is the sense of the Senate that Members of Congress should lead by example by hiring qualified veterans and members of the National Guard and Reserves for open positions on their personal and committee staff.

SA 2820. Mr. LEVIN (for himself, Ms. LANDRIEU and Mr. COCHRAN) submitted an amendment intended to be proposed by him to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

SEC. ___. REDESIGNATED AREAS.

Section 3(p)(4)(C) of the Small Business Act (15 U.S.C. 632(p)(4)(C)) is amended—

(1) in clause (i), by striking ''or'' at the end;

(2) in clause (ii), by striking the period at the end and inserting ''; or''; and

(3) by adding at the end the following:

''(iii) September 30, 2013.''.

SA 2821. Mrs. BOXER submitted an amendment intended to be proposed by her to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

SEC. _____. CONTRIBUTIONS TO THE HOMELESS VETERANS ASSISTANCE FUND.

(a) IN GENERAL.—Subchapter A of chapter 61 of the Internal Revenue Code of 1986 is amended by adding at the end the following new part:

''PART IX—CONTRIBUTIONS TO THE HOMELESS VETERANS ASSISTANCE FUND

''Sec. 6098. Contributions to the Homeless Veterans Assistance Fund.

''SEC. 6098. CONTRIBUTIONS TO THE HOMELESS VETERANS ASSISTANCE FUND.

''(a) IN GENERAL.—Every individual, with respect to the taxpayer's return for the taxable year of the tax imposed by chapter 1—

''(1) may designate that a specified portion (not less than $1) of any overpayment of tax shall be paid over to the Homeless Veterans Assistance Fund in accordance with the provisions of section 9512, and

''(2) in addition to any payment (if any) under paragraph (1), may make a contribution to the United States of an additional amount which shall be paid over to such Fund.

''(b) MANNER AND TIME OF DESIGNATION AND CONTRIBUTION.—A designation and contribution under subsection (a) may be made with respect to any taxable year—

''(1) at the time of filing the return of the tax imposed by chapter 1 for such taxable year, or

''(2) at any other time (after such time of filing) specified in regulations prescribed by the Secretary.

Such designation and contribution shall be made in such manner as the Secretary prescribes by regulations except that, if such designation is made at the time of filing the return of the tax imposed by chapter 1 for such taxable year, such designation shall be made either on the first page of the return or on the page bearing the taxpayer's signature.

''(c) OVERPAYMENTS TREATED AS REFUNDED.—For purposes of this title, any portion of an overpayment of tax designated under subsection (a) shall be treated as—

''(1) being refunded to the taxpayer as of the last date prescribed for filing the return of tax imposed by chapter 1 (determined without regard to extensions) or, if later, the date the return is filed, and

''(2) a contribution made by such taxpayer on such date to the United States.''.

(b) HOMELESS VETERANS ASSISTANCE FUND.—Subchapter A of chapter 98 of the Internal Revenue Code of 1986 is amended by adding at the end the following new section:

''SEC. 9512. HOMELESS VETERANS ASSISTANCE FUND.

''(a) CREATION OF TRUST FUND.—There is established in the Treasury of the United States a trust fund to be known as the 'Homeless Veterans Assistance Fund', consisting of such amounts as may be appropriated or credited to such fund as provided in this section or section 9602(b).

''(b) TRANSFERS TO TRUST FUND.—There are hereby appropriated to the Homeless Veterans Assistance Fund amounts equivalent to the amounts designated and contributed under section 6098.

''(c) EXPENDITURES.—

''(1) IN GENERAL.—Subject to paragraphs (2) and (3), amounts in the Homeless Veterans Assistance Fund shall be available (and shall remain available until expended) to the Department of Veterans Affairs, in consultation with the Department of Labor Veterans Employment and Training Service and Department of Housing and Urban Development, for the purpose of providing services to homeless veterans, through—

''(A) the development and implementation of new and innovative strategies to prevent and end veteran homelessness, and

''(B) any homeless veteran program administered by the Department of Veterans Affairs, the Department of Labor Veterans Employment and Training Service, and the Department of Housing and Urban Development.

''(2) ADDITIONAL ALLOCATIONS.—The Secretary of Veterans Affairs is authorized to make transfers from the amounts described in paragraph (1) to the Department of Labor Veterans Employment and Training Service and the Department of Housing and Urban Development for the purpose of supporting programs that serve homeless veterans.

''(3) ADVANCE NOTICE.—The Secretary of Veterans Affairs, in collaboration with the Secretary of Labor and Secretary of Housing and Urban Development, shall submit a detailed expenditure plan for any amounts in the Homeless Veterans Assistance Fund to the Committees on Veterans' Affairs and Committees on Appropriations of the House of Representatives and of the Senate not later than 60 days prior to any expenditure of such amounts.

''(d) PRESIDENT'S ANNUAL BUDGET INFORMATION.—Beginning with the President's annual budget submission for fiscal year 2014 and every year thereafter, the Department of Veterans Affairs, the Department of Labor, and the Department of Housing and Urban Development shall include a description of the use of funds from the Homeless Veterans Assistance Fund from the previous fiscal year and the proposed use of such funds for the next fiscal year.''.

(c) CLERICAL AMENDMENTS.—

(1) The table of parts for subchapter A of chapter 61 of the Internal Revenue Code of 1986 is amended by adding at the end the following new item:

''PART IX—CONTRIBUTIONS TO THE HOMELESS VETERANS ASSISTANCE FUND''.

(2) The table of sections for subchapter A of chapter 98 of such Code is amended by adding at the end the following new item:

''Sec. 9512. Homeless Veterans Assistance Fund.''.

(d) EFFECTIVE DATE.—The amendments made by this section shall apply to taxable years beginning after the date of the enactment of this Act.

SA 2822. Ms. LANDRIEU submitted an amendment intended to be proposed by her to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

SEC. ___. SMALL BUSINESS PROCUREMENT.

Part 19 of the Federal Acquisition Regulation, section 15 of the Small Business Act (15 U.S.C. 644), and any other applicable laws or regulations establishing procurement requirements relating to small business concerns (as defined in section 3 of the Small Business Act (15 U.S.C. 632)) may not be waived with respect to any contract awarded under any program or other authority under this Act or an amendment made by this Act.

SEC. ___. PROHIBITION ON WAIVER OF REQUIREMENTS REGARDING DEPARTMENT OF VETERANS AFFAIRS CONTRACTING GOALS AND PREFERENCES.

Neither section 8127 nor section 8128 of title 38, United States Code, may be waived with respect to any contract awarded under any program or other authority under this Act or any amendment made by this Act.

SA 2823. Mr. COBURN submitted an amendment intended to be proposed by him to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

SEC. ___. TERMINATION OF TAXPAYER FINANCING OF PRESIDENTIAL ELECTION CAMPAIGNS.

(a) TERMINATION OF DESIGNATION OF INCOME TAX PAYMENTS.—Section 6096 of the Internal Revenue Code of 1986 is amended by adding at the end the following new subsection:

''(d) TERMINATION.—This section shall not apply to taxable years beginning after December 31, 2011.''.

(b) TERMINATION OF FUND AND ACCOUNT.—

(1) TERMINATION OF PRESIDENTIAL ELECTION CAMPAIGN FUND.—

(A) IN GENERAL.—Chapter 95 of subtitle H of such Code is amended by adding at the end the following new section:

''SEC. 9014. TERMINATION.

''The provisions of this chapter shall not apply with respect to any presidential election (or any presidential nominating convention) after the date of the enactment of this section, or to any candidate in such an election.''.

(B) TRANSFER OF EXCESS FUNDS TO GENERAL FUND.—Section 9006 of such Code is amended by adding at the end the following new subsection:

''(d) TRANSFER OF FUNDS REMAINING AFTER TERMINATION.—The Secretary shall transfer all amounts in the fund after the date of the enactment of this section to the general fund of the Treasury, to be used only for reducing the deficit.''.

(2) TERMINATION OF ACCOUNT.—Chapter 96 of subtitle H of such Code is amended by adding at the end the following new section:

''SEC. 9043. TERMINATION.

''The provisions of this chapter shall not apply to any candidate with respect to any presidential election after the date of the enactment of this section.''.

(c) CLERICAL AMENDMENTS.—

(1) The table of sections for chapter 95 of subtitle H of such Code is amended by adding at the end the following new item:

''Sec. 9014. Termination.''.

(2) The table of sections for chapter 96 of subtitle H of such Code is amended by adding at the end the following new item:

''Sec. 9043. Termination.''.

SA 2824. Mr. COBURN submitted an amendment intended to be proposed by him to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table; as follows:

Strike section 14 and all that follows and insert the following:

SEC. 14. EXTENSION OF MODIFIED PENSION FOR CERTAIN VETERANS COVERED BY MEDICAID PLANS FOR SERVICES FURNISHED BY NURSING FACILITIES.

Section 5503(d)(7) of title 38, United States Code, is amended by striking ''September 30, 2016'' and inserting ''March 31, 2017''.

SEC. 15. REVOCATION OR DENIAL OF PASSPORT IN CASE OF CERTAIN UNPAID TAXES.

(a) IN GENERAL.—Subchapter D of chapter 75 of the Internal Revenue Code of 1986 is amended by adding at the end the following new section:

''SEC. 7345. REVOCATION OR DENIAL OF PASSPORT IN CASE OF CERTAIN TAX DELINQUENCIES.

''(a) IN GENERAL.—If the Secretary receives certification by the Commissioner of Internal Revenue that any individual has a seriously delinquent tax debt in an amount in excess of $50,000, the Secretary shall transmit such certification to the Secretary of State for action with respect to denial, revocation, or limitation of a passport pursuant to section 15(d) of the Veterans Jobs Corps Act of 2012.

''(b) SERIOUSLY DELINQUENT TAX DEBT.—For purposes of this section, the term 'seriously delinquent tax debt' means an outstanding debt under this title for which a notice of lien has been filed in public records pursuant to section 6323 or a notice of levy has been filed pursuant to section 6331, except that such term does not include—

''(1) a debt that is being paid in a timely manner pursuant to an agreement under section 6159 or 7122, and

''(2) a debt with respect to which collection is suspended because a collection due process hearing under section 6330, or relief under subsection (b), (c), or (f) of section 6015, is requested or pending.

''(c) ADJUSTMENT FOR INFLATION.—In the case of a calendar year beginning after 2012, the dollar amount in subsection (a) shall be increased by an amount equal to—

''(1) such dollar amount, multiplied by

''(2) the cost-of-living adjustment determined under section 1(f)(3) for the calendar year, determined by substituting 'calendar year 2011' for 'calendar year 1992' in subparagraph (B) thereof.

If any amount as adjusted under the preceding sentence is not a multiple of $1,000, such amount shall be rounded to the next highest multiple of $1,000.''.

(b) CLERICAL AMENDMENT.—The table of sections for subchapter D of chapter 75 of the Internal Revenue Code of 1986 is amended by adding at the end the following new item:

''Sec. 7345. Revocation or denial of passport in case of certain tax delinquencies.''.

(c) AUTHORITY FOR INFORMATION SHARING.—

(1) IN GENERAL.—Subsection (l) of section 6103 of the Internal Revenue Code of 1986 is amended by adding at the end the following new paragraph:

''(23) DISCLOSURE OF RETURN INFORMATION TO DEPARTMENT OF STATE FOR PURPOSES OF PASSPORT REVOCATION UNDER SECTION 7345.—

''(A) IN GENERAL.—The Secretary shall, upon receiving a certification described in section 7345, disclose to the Secretary of State return information with respect to a taxpayer who has a seriously delinquent tax debt described in such section. Such return information shall be limited to—

''(i) the taxpayer identity information with respect to such taxpayer, and

''(ii) the amount of such seriously delinquent tax debt.

''(B) RESTRICTION ON DISCLOSURE.—Return information disclosed under subparagraph (A) may be used by officers and employees of the Department of State for the purposes of, and to the extent necessary in, carrying out the requirements of section 15(d) of the Veterans Jobs Corps Act of 2012.''.

(2) CONFORMING AMENDMENT.—Paragraph (4) of section 6103(p) of such Code is amended by striking ''or (22)'' each place it appears in subparagraph (F)(ii) and in the matter preceding subparagraph (A) and inserting ''(22), or (23)''.

(d) AUTHORITY TO DENY OR REVOKE PASSPORT.—

(1) DENIAL.—

(A) IN GENERAL.—Except as provided under subparagraph (B), upon receiving a certification described in section 7345 of the Internal Revenue Code of 1986 from the Secretary of the Treasury, the Secretary of State may not issue a passport to any individual who has a seriously delinquent tax debt described in such section.

(B) EMERGENCY AND HUMANITARIAN SITUATIONS.—Notwithstanding subparagraph (A), the Secretary of State may issue a passport, in emergency circumstances or for humanitarian reasons, to an individual described in subparagraph (A).

(2) REVOCATION.—

(A) IN GENERAL.—The Secretary of State may revoke a passport previously issued to any individual described in paragraph (1)(A).

(B) LIMITATION FOR RETURN TO UNITED STATES.—If the Secretary of State decides to revoke a passport under subparagraph (A), the Secretary of State, before revocation, may—

(i) limit a previously issued passport only for return travel to the United States; or

(ii) issue a limited passport that only permits return travel to the United States.

(3) HOLD HARMLESS.—The Secretary of the Treasury and the Secretary of State shall not be liable to an individual for any action with respect to a certification by the Commissioner of Internal Revenue under section 7345 of the Internal Revenue Code of 1986.

(e) REVOCATION OR DENIAL OF PASSPORT IN CASE OF INDIVIDUAL WITHOUT SOCIAL SECURITY ACCOUNT NUMBER.—

(1) DENIAL.—

(A) IN GENERAL.—Except as provided under subparagraph (B), upon receiving an application for a passport from an individual that either—

(i) does not include the social security account number issued to that individual, or

(ii) includes an incorrect or invalid social security number willfully, intentionally, negligently, or recklessly provided by such individual,

the Secretary of State is authorized to deny such application and is authorized to not issue a passport to the individual.

(B) EMERGENCY AND HUMANITARIAN SITUATIONS.—Notwithstanding subparagraph (A), the Secretary of State may issue a passport, in emergency circumstances or for humanitarian reasons, to an individual described in subparagraph (A).

(2) REVOCATION.—

(A) IN GENERAL.—The Secretary of State may revoke a passport previously issued to any individual described in paragraph (1)(A).

(B) LIMITATION FOR RETURN TO UNITED STATES.—If the Secretary of State decides to revoke a passport under subparagraph (A), the Secretary of State, before revocation, may—

(i) limit a previously issued passport only for return travel to the United States; or

(ii) issue a limited passport that only permits return travel to the United States.

(f) EFFECTIVE DATE.—The provisions of, and amendments made by, this section shall take effect on January 1, 2013.

SEC. 16. NO MORTGAGE INTEREST DEDUCTION FOR MILLIONAIRES AND BILLIONAIRES.

(a) IN GENERAL.—Section 163(h)(4) of the Internal Revenue Code of 1986 is amended by adding at the end the following new subparagraph:

''(G) NO DEDUCTION FOR MILLIONAIRES AND BILLIONAIRES.—

''(i) IN GENERAL.—Except as provided in clause (ii), no deduction shall be allowed by reason of paragraph (2)(D) for any taxable year with respect to any taxpayer with an adjusted gross income equal to or greater than $1,000,000 for such taxable year.

''(ii) TERMINATION.—Clause (i) shall not apply to any taxable year beginning after the date on which the aggregate savings from the elimination of the deductions and credits for millionaires attributable to the enactment of sections 16 through 22 of the Veterans Jobs Corps Act of 2012 matches dollar for dollar the increase of expenditures attributable to the enactment of sections 2 through 14 of such Act.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after December 31, 2012.

SEC. 17. NO RENTAL EXPENSE DEDUCTION FOR MILLIONAIRES AND BILLIONAIRES.

(a) IN GENERAL.—Section 212 of the Internal Revenue Code of 1986 is amended by adding at the end the following new flush sentence:

''Paragraph (2) shall not apply for any taxable year with respect to any taxpayer with an adjusted gross income equal to or greater than $1,000,000 for such taxable year. The preceding sentence shall not apply to any taxable year beginning after the date on which the aggregate savings from the elimination of the deductions and credits for millionaires attributable to the enactment of sections 16 through 22 of the Veterans Jobs Corps Act of 2012 matches dollar for dollar the increase of expenditures attributable to the enactment of sections 2 through 14 of such Act.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after December 31, 2012.

SEC. 18. NO GAMBLING LOSS DEDUCTION FOR MILLIONAIRES AND BILLIONAIRES.

(a) IN GENERAL.—Section 165(d) of the Internal Revenue Code of 1986 is amended by adding at the end the following: ''In the case of a taxpayer with an adjusted gross income equal to or greater than $1,000,000 for the taxable year, the preceding sentence shall not apply for any taxable year beginning before the date on which the aggregate savings from the elimination of the deductions and credits for millionaires attributable to the enactment of sections 16 through 22 of the Veterans Jobs Corps Act of 2012 matches dollar for dollar the increase of expenditures attributable to the enactment of sections 2 through 14 of such Act.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after December 31, 2012.

SEC. 19. NO DISCHARGE OF INDEBTEDNESS DEDUCTION FOR MILLIONAIRES AND BILLIONAIRES.

(a) IN GENERAL.—Section 108 of the Internal Revenue Code of 1986 is amended by adding at the end the following new subsection:

''(j) NO DEDUCTION FOR MILLIONAIRES AND BILLIONAIRES.—

''(1) IN GENERAL.—Except as provided in paragraph (2), no exclusion shall be allowed by reason of this section for any taxable year with respect to any taxpayer with an adjusted gross income equal to or greater than $1,000,000 for such taxable year.

''(2) TERMINATION.—Paragraph (1) shall not apply to any taxable year beginning after the date on which the aggregate savings from the elimination of the deductions and credits for millionaires attributable to the enactment of sections 16 through 22 of the Veterans Jobs Corps Act of 2012 matches dollar for dollar the increase of expenditures attributable to the enactment of sections 2 through 14 of such Act.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after December 31, 2012.

SEC. 20. NO ELECTRIC PLUG-IN VEHICLE TAX CREDIT FOR MILLIONAIRES AND BILLIONAIRES.

(a) IN GENERAL.—Section 30D(f) of the Internal Revenue Code of 1986 is amended by adding at the end the following new paragraph:

''(8) NO CREDIT FOR MILLIONAIRES AND BILLIONAIRES.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), no credit described in subsection (c)(2) shall be allowed under this section for any taxable year with respect to any taxpayer with an adjusted gross income equal to or greater than $1,000,000 for such taxable year.

''(B) TERMINATION.—Subparagraph (A) shall not apply to any taxable year beginning after the date on which the aggregate savings from the elimination of the deductions and credits for millionaires attributable to the enactment of sections 16 through 22 of the Veterans Jobs Corps Act of 2012 matches dollar for dollar the increase of expenditures attributable to the enactment of sections 2 through 14 of such Act.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after December 31, 2012.

SEC. 21. NO HOUSEHOLD AND DEPENDENT CARE CREDIT FOR MILLIONAIRES AND BILLIONAIRES.

(a) IN GENERAL.—Section 21 of the Internal Revenue Code of 1986 is amended by redesignating subsection (f) as subsection (g) and by inserting after subsection (e) the following new subsection:

''(f) NO CREDIT FOR MILLIONAIRES AND BILLIONAIRES.—

''(1) IN GENERAL.—Except as provided in paragraph (2), no credit shall be allowed under this section for any taxable year with respect to any taxpayer with an adjusted gross income equal to or greater than $1,000,000 for such taxable year.

''(2) TERMINATION.—Paragraph (1) shall not apply to any taxable year beginning after the date on which the aggregate savings from the elimination of the deductions and credits for millionaires attributable to the enactment of sections 16 through 22 of the Veterans Jobs Corps Act of 2012 matches dollar for dollar the increase of expenditures attributable to the enactment of sections 2 through 14 of such Act.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after December 31, 2012.

SEC. 22. NO RESIDENTIAL ENERGY EFFICIENT PROPERTY CREDIT FOR MILLIONAIRES AND BILLIONAIRES.

(a) IN GENERAL.—Section 25D(e) of the Internal Revenue Code of 1986 is amended by adding at the end the following new paragraph:

''(9) NO CREDIT FOR MILLIONAIRES AND BILLIONAIRES.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), no credit shall be allowed under this section for any taxable year with respect to any taxpayer with an adjusted gross income equal to or greater than $1,000,000 for such taxable year.

''(B) TERMINATION.—Subparagraph (A) shall not apply to any taxable year beginning after the date on which the aggregate savings from the elimination of the deductions and credits for millionaires attributable to the enactment of sections 16 through 22 of the Veterans Jobs Corps Act of 2012 matches dollar for dollar the increase of expenditures attributable to the enactment of sections 2 through 14 of such Act.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after December 31, 2012.

SEC. 23. SCORING OF BUDGETARY EFFECTS.

The budgetary effects of this Act, for the purpose of complying with the Statutory Pay-As-You-Go-Act of 2010, shall be determined by reference to the latest statement titled ''Budgetary Effects of PAYGO Legislation'' for this Act, submitted for printing in the Congressional Record by the Chairman of the Senate Budget Committee, provided that such statement has been submitted prior to the vote on passage.

SA 2825. Mr. COBURN submitted an amendment intended to be proposed by him to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table; as follows:

Strike section 8 and all that follows and insert the following:

SEC. 8. EXTENSION OF MODIFIED PENSION FOR CERTAIN VETERANS COVERED BY MEDICAID PLANS FOR SERVICES FURNISHED BY NURSING FACILITIES.

Section 5503(d)(7) of title 38, United States Code, is amended by striking ''September 30, 2016'' and inserting ''March 31, 2017''.

SEC. 9. REVOCATION OR DENIAL OF PASSPORT IN CASE OF CERTAIN UNPAID TAXES.

(a) IN GENERAL.—Subchapter D of chapter 75 of the Internal Revenue Code of 1986 is amended by adding at the end the following new section:

''SEC. 7345. REVOCATION OR DENIAL OF PASSPORT IN CASE OF CERTAIN TAX DELINQUENCIES.

''(a) IN GENERAL.—If the Secretary receives certification by the Commissioner of Internal Revenue that any individual has a seriously delinquent tax debt in an amount in excess of $50,000, the Secretary shall transmit such certification to the Secretary of State for action with respect to denial, revocation, or limitation of a passport pursuant to section 9(d) of the Veterans Jobs Corps Act of 2012.

''(b) SERIOUSLY DELINQUENT TAX DEBT.—For purposes of this section, the term 'seriously delinquent tax debt' means an outstanding debt under this title for which a notice of lien has been filed in public records pursuant to section 6323 or a notice of levy has been filed pursuant to section 6331, except that such term does not include—

''(1) a debt that is being paid in a timely manner pursuant to an agreement under section 6159 or 7122, and

''(2) a debt with respect to which collection is suspended because a collection due process hearing under section 6330, or relief under subsection (b), (c), or (f) of section 6015, is requested or pending.

''(c) ADJUSTMENT FOR INFLATION.—In the case of a calendar year beginning after 2012, the dollar amount in subsection (a) shall be increased by an amount equal to—

''(1) such dollar amount, multiplied by

''(2) the cost-of-living adjustment determined under section 1(f)(3) for the calendar year, determined by substituting 'calendar year 2011' for 'calendar year 1992' in subparagraph (B) thereof.

If any amount as adjusted under the preceding sentence is not a multiple of $1,000, such amount shall be rounded to the next highest multiple of $1,000.''.

(b) CLERICAL AMENDMENT.—The table of sections for subchapter D of chapter 75 of the Internal Revenue Code of 1986 is amended by adding at the end the following new item:

''Sec. 7345. Revocation or denial of passport in case of certain tax delinquencies.''.

(c) AUTHORITY FOR INFORMATION SHARING.—

(1) IN GENERAL.—Subsection (l) of section 6103 of the Internal Revenue Code of 1986 is amended by adding at the end the following new paragraph:

''(23) DISCLOSURE OF RETURN INFORMATION TO DEPARTMENT OF STATE FOR PURPOSES OF PASSPORT REVOCATION UNDER SECTION 7345.—

''(A) IN GENERAL.—The Secretary shall, upon receiving a certification described in section 7345, disclose to the Secretary of State return information with respect to a taxpayer who has a seriously delinquent tax debt described in such section. Such return information shall be limited to—

''(i) the taxpayer identity information with respect to such taxpayer, and

''(ii) the amount of such seriously delinquent tax debt.

''(B) RESTRICTION ON DISCLOSURE.—Return information disclosed under subparagraph (A) may be used by officers and employees of the Department of State for the purposes of, and to the extent necessary in, carrying out the requirements of section 9(d) of the Veterans Jobs Corps Act of 2012.''.

(2) CONFORMING AMENDMENT.—Paragraph (4) of section 6103(p) of such Code is amended by striking ''or (22)'' each place it appears in subparagraph (F)(ii) and in the matter preceding subparagraph (A) and inserting ''(22), or (23)''.

(d) AUTHORITY TO DENY OR REVOKE PASSPORT.—

(1) DENIAL.—

(A) IN GENERAL.—Except as provided under subparagraph (B), upon receiving a certification described in section 7345 of the Internal Revenue Code of 1986 from the Secretary of the Treasury, the Secretary of State may not issue a passport to any individual who has a seriously delinquent tax debt described in such section.

(B) EMERGENCY AND HUMANITARIAN SITUATIONS.—Notwithstanding subparagraph (A), the Secretary of State may issue a passport, in emergency circumstances or for humanitarian reasons, to an individual described in subparagraph (A).

(2) REVOCATION.—

(A) IN GENERAL.—The Secretary of State may revoke a passport previously issued to any individual described in paragraph (1)(A).

(B) LIMITATION FOR RETURN TO UNITED STATES.—If the Secretary of State decides to revoke a passport under subparagraph (A), the Secretary of State, before revocation, may—

(i) limit a previously issued passport only for return travel to the United States; or

(ii) issue a limited passport that only permits return travel to the United States.

(3) HOLD HARMLESS.—The Secretary of the Treasury and the Secretary of State shall not be liable to an individual for any action with respect to a certification by the Commissioner of Internal Revenue under section 7345 of the Internal Revenue Code of 1986.

(e) REVOCATION OR DENIAL OF PASSPORT IN CASE OF INDIVIDUAL WITHOUT SOCIAL SECURITY ACCOUNT NUMBER.—

(1) DENIAL.—

(A) IN GENERAL.—Except as provided under subparagraph (B), upon receiving an application for a passport from an individual that either—

(i) does not include the social security account number issued to that individual, or

(ii) includes an incorrect or invalid social security number willfully, intentionally, negligently, or recklessly provided by such individual,

the Secretary of State is authorized to deny such application and is authorized to not issue a passport to the individual.

(B) EMERGENCY AND HUMANITARIAN SITUATIONS.—Notwithstanding subparagraph (A), the Secretary of State may issue a passport, in emergency circumstances or for humanitarian reasons, to an individual described in subparagraph (A).

(2) REVOCATION.—

(A) IN GENERAL.—The Secretary of State may revoke a passport previously issued to any individual described in paragraph (1)(A).

(B) LIMITATION FOR RETURN TO UNITED STATES.—If the Secretary of State decides to revoke a passport under subparagraph (A), the Secretary of State, before revocation, may—

(i) limit a previously issued passport only for return travel to the United States; or

(ii) issue a limited passport that only permits return travel to the United States.

(f) EFFECTIVE DATE.—The provisions of, and amendments made by, this section shall take effect on January 1, 2013.

SEC. 10. NO MORTGAGE INTEREST DEDUCTION FOR MILLIONAIRES AND BILLIONAIRES.

(a) IN GENERAL.—Section 163(h)(4) of the Internal Revenue Code of 1986 is amended by adding at the end the following new subparagraph:

''(G) NO DEDUCTION FOR MILLIONAIRES AND BILLIONAIRES.—

''(i) IN GENERAL.—Except as provided in clause (ii), no deduction shall be allowed by reason of paragraph (2)(D) for any taxable year with respect to any taxpayer with an adjusted gross income equal to or greater than $1,000,000 for such taxable year.

''(ii) TERMINATION.—Clause (i) shall not apply to any taxable year beginning after the date on which the aggregate savings from the elimination of the deductions and credits for millionaires attributable to the enactment of sections 10 through 16 of the Veterans Jobs Corps Act of 2012 matches dollar for dollar the increase of expenditures attributable to the enactment of sections 2 through 8 of such Act.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after December 31, 2012.

SEC. 11. NO RENTAL EXPENSE DEDUCTION FOR MILLIONAIRES AND BILLIONAIRES.

(a) IN GENERAL.—Section 212 of the Internal Revenue Code of 1986 is amended by adding at the end the following new flush sentence:

''Paragraph (2) shall not apply for any taxable year with respect to any taxpayer with an adjusted gross income equal to or greater than $1,000,000 for such taxable year. The preceding sentence shall not apply to any taxable year beginning after the date on which the aggregate savings from the elimination of the deductions and credits for millionaires attributable to the enactment of sections 10 through 16 of the Veterans Jobs Corps Act of 2012 matches dollar for dollar the increase of expenditures attributable to the enactment of sections 2 through 8 of such Act.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after December 31, 2012.

SEC. 12. NO GAMBLING LOSS DEDUCTION FOR MILLIONAIRES AND BILLIONAIRES.

(a) IN GENERAL.—Section 165(d) of the Internal Revenue Code of 1986 is amended by adding at the end the following: ''In the case of a taxpayer with an adjusted gross income equal to or greater than $1,000,000 for the taxable year, the preceding sentence shall not apply for any taxable year beginning before the date on which the aggregate savings from the elimination of the deductions and credits for millionaires attributable to the enactment of sections 10 through 16 of the Veterans Jobs Corps Act of 2012 matches dollar for dollar the increase of expenditures attributable to the enactment of sections 2 through 8 of such Act.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after December 31, 2012.

SEC. 13. NO DISCHARGE OF INDEBTEDNESS DEDUCTION FOR MILLIONAIRES AND BILLIONAIRES.

(a) IN GENERAL.—Section 108 of the Internal Revenue Code of 1986 is amended by adding at the end the following new subsection:

''(j) NO DEDUCTION FOR MILLIONAIRES AND BILLIONAIRES.—

''(1) IN GENERAL.—Except as provided in paragraph (2), no exclusion shall be allowed by reason of this section for any taxable year with respect to any taxpayer with an adjusted gross income equal to or greater than $1,000,000 for such taxable year.

''(2) TERMINATION.—Paragraph (1) shall not apply to any taxable year beginning after the date on which the aggregate savings from the elimination of the deductions and credits for millionaires attributable to the enactment of sections 10 through 16 of the Veterans Jobs Corps Act of 2012 matches dollar for dollar the increase of expenditures attributable to the enactment of sections 2 through 8 of such Act.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after December 31, 2012.

SEC. 14. NO ELECTRIC PLUG-IN VEHICLE TAX CREDIT FOR MILLIONAIRES AND BILLIONAIRES.

(a) IN GENERAL.—Section 30D(f) of the Internal Revenue Code of 1986 is amended by adding at the end the following new paragraph:

''(8) NO CREDIT FOR MILLIONAIRES AND BILLIONAIRES.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), no credit described in subsection (c)(2) shall be allowed under this section for any taxable year with respect to any taxpayer with an adjusted gross income equal to or greater than $1,000,000 for such taxable year.

''(B) TERMINATION.—Subparagraph (A) shall not apply to any taxable year beginning after the date on which the aggregate savings from the elimination of the deductions and credits for millionaires attributable to the enactment of sections 10 through 16 of the Veterans Jobs Corps Act of 2012 matches dollar for dollar the increase of expenditures attributable to the enactment of sections 2 through 8 of such Act.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after December 31, 2012.

SEC. 15. NO HOUSEHOLD AND DEPENDENT CARE CREDIT FOR MILLIONAIRES AND BILLIONAIRES.

(a) IN GENERAL.—Section 21 of the Internal Revenue Code of 1986 is amended by redesignating subsection (f) as subsection (g) and by inserting after subsection (e) the following new subsection:

''(f) NO CREDIT FOR MILLIONAIRES AND BILLIONAIRES.—

''(1) IN GENERAL.—Except as provided in paragraph (2), no credit shall be allowed under this section for any taxable year with respect to any taxpayer with an adjusted gross income equal to or greater than $1,000,000 for such taxable year.

''(2) TERMINATION.—Paragraph (1) shall not apply to any taxable year beginning after the date on which the aggregate savings from the elimination of the deductions and credits for millionaires attributable to the enactment of sections 10 through 16 of the Veterans Jobs Corps Act of 2012 matches dollar for dollar the increase of expenditures attributable to the enactment of sections 2 through 8 of such Act.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after December 31, 2012.

SEC. 16. NO RESIDENTIAL ENERGY EFFICIENT PROPERTY CREDIT FOR MILLIONAIRES AND BILLIONAIRES.

(a) IN GENERAL.—Section 25D(e) of the Internal Revenue Code of 1986 is amended by adding at the end the following new paragraph:

''(9) NO CREDIT FOR MILLIONAIRES AND BILLIONAIRES.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), no credit shall be allowed under this section for any taxable year with respect to any taxpayer with an adjusted gross income equal to or greater than $1,000,000 for such taxable year.

''(B) TERMINATION.—Subparagraph (A) shall not apply to any taxable year beginning after the date on which the aggregate savings from the elimination of the deductions and credits for millionaires attributable to the enactment of sections 10 through 16 of the Veterans Jobs Corps Act of 2012 matches dollar for dollar the increase of expenditures attributable to the enactment of sections 2 through 8 of such Act.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after December 31, 2012.

SEC. 17. SCORING OF BUDGETARY EFFECTS.

The budgetary effects of this Act, for the purpose of complying with the Statutory Pay-As-You-Go-Act of 2010, shall be determined by reference to the latest statement titled ''Budgetary Effects of PAYGO Legislation'' for this Act, submitted for printing in the Congressional Record by the Chairman of the Senate Budget Committee, provided that such statement has been submitted prior to the vote on passage.

SA 2826. Mr. COBURN submitted an amendment intended to be proposed by him to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table; as follows:

Beginning on page 38, strike line 11 and all that follows through page 39, line 7, and insert the following:

SEC. 17. CONSOLIDATION OF VETERANS EMPLOYMENT ASSISTANCE PROGRAMS.

(a) IN GENERAL.—The Secretary of Labor and the Secretary of Veterans Affairs shall take such actions as may be necessary to consolidate the programs described in subsection (b) into a single program to be carried out by the Secretary of Veterans Affairs.

(b) PROGRAMS.—The programs described in this subsection are the following:

(1) Disabled Veterans' Outreach Program of the Department of Labor.

(2) Homeless Veterans' Reintegration Project of the Department of Labor.

(3) Local Veterans' Employment Representative Program of the Department of Labor.

(4) Transition Assistance Program of the Department of Labor.

(5) Veterans' Workforce Investment Program of the Department of Labor.

(6) Vocational Rehabilitation for Disabled Veterans of the Department of Veterans Affairs.

(c) METRICS.—The Secretary of Veterans Affairs shall establish metrics to assess the program resulting from consolidation under subsection (a).

SA 2827. Mrs. SHAHEEN (for herself and Mr. PORTMAN) submitted an amendment intended to be proposed by her to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table; as follows:

At the end of the bill, add the following:

TITLE II—ENERGY SAVINGS AND INDUSTRIAL COMPETITIVENESS

SEC. 201. SHORT TITLE.

This title may be cited as the ''Energy Savings and Industrial Competitiveness Act of 2012''.

Subtitle A—Buildings

PART I—BUILDING ENERGY CODES

SEC. 211. GREATER ENERGY EFFICIENCY IN BUILDING CODES.

(a) DEFINITIONS.—Section 303 of the Energy Conservation and Production Act (42 U.S.C. 6832) is amended—

(1) by striking paragraph (14) and inserting the following:

''(14) MODEL BUILDING ENERGY CODE.—The term 'model building energy code' means a voluntary building energy code and standards developed and updated through a consensus process among interested persons, such as the IECC or the code used by—

''(A) the Council of American Building Officials;

''(B) the American Society of Heating, Refrigerating, and Air-Conditioning Engineers; or

''(C) other appropriate organizations.''; and

(2) by adding at the end the following:

''(17) IECC.—The term 'IECC' means the International Energy Conservation Code.

''(18) INDIAN TRIBE.—The term 'Indian tribe' has the meaning given the term in section 4 of the Native American Housing Assistance and Self-Determination Act of 1996 (25 U.S.C. 4103).''.

(b) STATE BUILDING ENERGY EFFICIENCY CODES.—Section 304 of the Energy Conservation and Production Act (42 U.S.C. 6833) is amended to read as follows:

''SEC. 304. UPDATING STATE BUILDING ENERGY EFFICIENCY CODES.

''(a) IN GENERAL.—The Secretary shall—

''(1) encourage and support the adoption of building energy codes by States, Indian tribes, and, as appropriate, by local governments that meet or exceed the model building energy codes, or achieve equivalent or greater energy savings; and

''(2) support full compliance with the State and local codes.

''(b) STATE AND INDIAN TRIBE CERTIFICATION OF BUILDING ENERGY CODE UPDATES.—

''(1) REVIEW AND UPDATING OF CODES BY EACH STATE AND INDIAN TRIBE.—

''(A) IN GENERAL.—Not later than 2 years after the date on which a model building energy code is updated, each State or Indian tribe shall certify whether or not the State or Indian tribe, respectively, has reviewed and updated the energy provisions of the building code of the State or Indian tribe, respectively.

''(B) DEMONSTRATION.—The certification shall include a demonstration of whether or not the energy savings for the code provisions that are in effect throughout the State or Indian tribal territory meet or exceed—

''(i) the energy savings of the updated model building energy code; or

''(ii) the targets established under section 307(b)(2).

''(C) NO MODEL BUILDING ENERGY CODE UPDATE.—If a model building energy code is not updated by a target date established under section 307(b)(2)(D), each State or Indian tribe shall, not later than 2 years after the specified date, certify whether or not the State or Indian tribe, respectively, has reviewed and updated the energy provisions of the building code of the State or Indian tribe, respectively, to meet or exceed the target in section 307(b)(2).

''(2) VALIDATION BY SECRETARY.—Not later than 90 days after a State or Indian tribe certification under paragraph (1), the Secretary shall—

''(A) determine whether the code provisions of the State or Indian tribe, respectively, meet the criteria specified in paragraph (1); and

''(B) if the determination is positive, validate the certification.

''(c) IMPROVEMENTS IN COMPLIANCE WITH BUILDING ENERGY CODES.—

''(1) REQUIREMENT.—

''(A) IN GENERAL.—Not later than 3 years after the date of a certification under subsection (b), each State and Indian tribe shall certify whether or not the State and Indian tribe, respectively, has—

''(i) achieved full compliance under paragraph (3) with the applicable certified State and Indian tribe building energy code or with the associated model building energy code; or

''(ii) made significant progress under paragraph (4) toward achieving compliance with the applicable certified State and Indian tribe building energy code or with the associated model building energy code.

''(B) REPEAT CERTIFICATIONS.—If the State or Indian tribe certifies progress toward achieving compliance, the State or Indian tribe shall repeat the certification until the State or Indian tribe certifies that the State or Indian tribe has achieved full compliance, respectively.

''(2) MEASUREMENT OF COMPLIANCE.—A certification under paragraph (1) shall include documentation of the rate of compliance based on—

''(A) independent inspections of a random sample of the buildings covered by the code in the preceding year; or

''(B) an alternative method that yields an accurate measure of compliance.

''(3) ACHIEVEMENT OF COMPLIANCE.—A State or Indian tribe shall be considered to achieve full compliance under paragraph (1) if—

''(A) at least 90 percent of building space covered by the code in the preceding year substantially meets all the requirements of the applicable code specified in paragraph (1), or achieves equivalent or greater energy savings level; or

''(B) the estimated excess energy use of buildings that did not meet the applicable code specified in paragraph (1) in the preceding year, compared to a baseline of comparable buildings that meet this code, is not more than 5 percent of the estimated energy use of all buildings covered by this code during the preceding year.

''(4) SIGNIFICANT PROGRESS TOWARD ACHIEVEMENT OF COMPLIANCE.—A State or Indian tribe shall be considered to have made significant progress toward achieving compliance for purposes of paragraph (1) if the State or Indian tribe—

''(A) has developed and is implementing a plan for achieving compliance during the 8-year-period beginning on the date of enactment of this paragraph, including annual targets for compliance and active training and enforcement programs; and

''(B) has met the most recent target under subparagraph (A).

''(5) VALIDATION BY SECRETARY.—Not later than 90 days after a State or Indian tribe certification under paragraph (1), the Secretary shall—

''(A) determine whether the State or Indian tribe has demonstrated meeting the criteria of this subsection, including accurate measurement of compliance; and

''(B) if the determination is positive, validate the certification.

''(d) STATES OR INDIAN TRIBES THAT DO NOT ACHIEVE COMPLIANCE.—

''(1) REPORTING.—A State or Indian tribe that has not made a certification required under subsection (b) or (c) by the applicable deadline shall submit to the Secretary a report on—

''(A) the status of the State or Indian tribe with respect to meeting the requirements and submitting the certification; and

''(B) a plan for meeting the requirements and submitting the certification.

''(2) FEDERAL SUPPORT.—For any State or Indian tribe for which the Secretary has not validated a certification by a deadline under subsection (b) or (c), the lack of the certification may be a consideration for Federal support authorized under this section for code adoption and compliance activities.

''(3) LOCAL GOVERNMENT.—In any State or Indian tribe for which the Secretary has not validated a certification under subsection (b) or (c), a local government may be eligible for Federal support by meeting the certification requirements of subsections (b) and (c).

''(4) ANNUAL REPORTS BY SECRETARY.—

''(A) IN GENERAL.—The Secretary shall annually submit to Congress, and publish in the Federal Register, a report on—

''(i) the status of model building energy codes;

''(ii) the status of code adoption and compliance in the States and Indian tribes;

''(iii) implementation of this section; and

''(iv) improvements in energy savings over time as result of the targets established under section 307(b)(2).

''(B) IMPACTS.—The report shall include estimates of impacts of past action under this section, and potential impacts of further action, on—

''(i) upfront financial and construction costs, cost benefits and returns (using investment analysis), and lifetime energy use for buildings;

''(ii) resulting energy costs to individuals and businesses; and

''(iii) resulting overall annual building ownership and operating costs.

''(e) TECHNICAL ASSISTANCE TO STATES AND INDIAN TRIBES.—The Secretary shall provide technical assistance to States and Indian tribes to implement the goals and requirements of this section, including procedures and technical analysis for States and Indian tribes—

''(1) to improve and implement State residential and commercial building energy codes;

''(2) to demonstrate that the code provisions of the States and Indian tribes achieve equivalent or greater energy savings than the model building energy codes and targets;

''(3) to document the rate of compliance with a building energy code; and

''(4) to otherwise promote the design and construction of energy efficient buildings.

''(f) AVAILABILITY OF INCENTIVE FUNDING.—

''(1) IN GENERAL.—The Secretary shall provide incentive funding to States and Indian tribes—

''(A) to implement the requirements of this section;

''(B) to improve and implement residential and commercial building energy codes, including increasing and verifying compliance with the codes and training of State, tribal, and local building code officials to implement and enforce the codes; and

''(C) to promote building energy efficiency through the use of the codes.

''(2) ADDITIONAL FUNDING.—Additional funding shall be provided under this subsection for implementation of a plan to achieve and document full compliance with residential and commercial building energy codes under subsection (c)—

''(A) to a State or Indian tribe for which the Secretary has validated a certification under subsection (b) or (c); and

''(B) in a State or Indian tribe that is not eligible under subparagraph (A), to a local government that is eligible under this section.

''(3) TRAINING.—Of the amounts made available under this subsection, the State may use amounts required, but not to exceed $750,000 for a State, to train State and local building code officials to implement and enforce codes described in paragraph (2).

''(4) LOCAL GOVERNMENTS.—States may share grants under this subsection with local governments that implement and enforce the codes.

''(g) STRETCH CODES AND ADVANCED STANDARDS.—

''(1) IN GENERAL.—The Secretary shall provide technical and financial support for the development of stretch codes and advanced standards for residential and commercial buildings for use as—

''(A) an option for adoption as a building energy code by local, tribal, or State governments; and

''(B) guidelines for energy-efficient building design.

''(2) TARGETS.—The stretch codes and advanced standards shall be designed—

''(A) to achieve substantial energy savings compared to the model building energy codes; and

''(B) to meet targets under section 307(b), if available, at least 3 to 6 years in advance of the target years.

''(h) STUDIES.—The Secretary, in consultation with building science experts from the National Laboratories and institutions of higher education, designers and builders of energy-efficient residential and commercial buildings, code officials, and other stakeholders, shall undertake a study of the feasibility, impact, economics, and merit of—

''(1) code improvements that would require that buildings be designed, sited, and constructed in a manner that makes the buildings more adaptable in the future to become zero-net-energy after initial construction, as advances are achieved in energy-saving technologies;

''(2) code procedures to incorporate measured lifetimes, not just first-year energy use, in trade-offs and performance calculations; and

''(3) legislative options for increasing energy savings from building energy codes, including additional incentives for effective State and local action, and verification of compliance with and enforcement of a code other than by a State or local government.

''(i) EFFECT ON OTHER LAWS.—Nothing in this section or section 307 supersedes or modifies the application of sections 321 through 346 of the Energy Policy and Conservation Act (42 U.S.C. 6291 et seq.).

''(j) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to carry out this section and section 307 $200,000,000, to remain available until expended.''.

(c) FEDERAL BUILDING ENERGY EFFICIENCY STANDARDS.—Section 305 of the Energy Conservation and Production Act (42 U.S.C. 6834) is amended by striking ''voluntary building energy code'' each place it appears in subsections (a)(2)(B) and (b) and inserting ''model building energy code''.

(d) MODEL BUILDING ENERGY CODES.—Section 307 of the Energy Conservation and Production Act (42 U.S.C. 6836) is amended to read as follows:

''SEC. 307. SUPPORT FOR MODEL BUILDING ENERGY CODES.

''(a) IN GENERAL.—The Secretary shall support the updating of model building energy codes.

''(b) TARGETS.—

''(1) IN GENERAL.—The Secretary shall support the updating of the model building energy codes to enable the achievement of aggregate energy savings targets established under paragraph (2).

''(2) TARGETS.—

''(A) IN GENERAL.—The Secretary shall work with State, Indian tribes, local governments, nationally recognized code and standards developers, and other interested parties to support the updating of model building energy codes by establishing 1 or more aggregate energy savings targets to achieve the purposes of this section.

''(B) SEPARATE TARGETS.—The Secretary may establish separate targets for commercial and residential buildings.

''(C) BASELINES.—The baseline for updating model building energy codes shall be the 2009 IECC for residential buildings and ASHRAE Standard 90.1–2010 for commercial buildings.

''(D) SPECIFIC YEARS.—

''(i) IN GENERAL.—Targets for specific years shall be established and revised by the Secretary through rulemaking and coordinated with nationally recognized code and standards developers at a level that—

''(I) is at the maximum level of energy efficiency that is technologically feasible and life-cycle cost effective, while accounting for the economic considerations under paragraph (4);

''(II) is higher than the preceding target; and

''(III) promotes the achievement of commercial and residential high-performance buildings through high performance energy efficiency (within the meaning of section 401 of the Energy Independence and Security Act of 2007 (42 U.S.C. 17061)).

''(ii) INITIAL TARGETS.—Not later than 1 year after the date of enactment of this clause, the Secretary shall establish initial targets under this subparagraph.

''(iii) DIFFERENT TARGET YEARS.—Subject to clause (i), prior to the applicable year, the Secretary may set a later target year for any of the model building energy codes described in subparagraph (A) if the Secretary determines that a target cannot be met.

''(iv) SMALL BUSINESS.—When establishing targets under this paragraph through rulemaking, the Secretary shall ensure compliance with the Small Business Regulatory Enforcement Fairness Act of 1996 (5 U.S.C. 601 note; Public Law 104–121).

''(3) APPLIANCE STANDARDS AND OTHER FACTORS AFFECTING BUILDING ENERGY USE.—In establishing building code targets under paragraph (2), the Secretary shall develop and adjust the targets in recognition of potential savings and costs relating to—

''(A) efficiency gains made in appliances, lighting, windows, insulation, and building envelope sealing;

''(B) advancement of distributed generation and on-site renewable power generation technologies;

''(C) equipment improvements for heating, cooling, and ventilation systems;

''(D) building management systems and SmartGrid technologies to reduce energy use; and

''(E) other technologies, practices, and building systems that the Secretary considers appropriate regarding building plug load and other energy uses.

''(4) ECONOMIC CONSIDERATIONS.—In establishing and revising building code targets under paragraph (2), the Secretary shall consider the economic feasibility of achieving the proposed targets established under this section and the potential costs and savings for consumers and building owners, including a return on investment analysis.

''(c) TECHNICAL ASSISTANCE TO MODEL BUILDING ENERGY CODE-SETTING AND STANDARD DEVELOPMENT ORGANIZATIONS.—

''(1) IN GENERAL.—The Secretary shall, on a timely basis, provide technical assistance to model building energy code-setting and standard development organizations consistent with the goals of this section.

''(2) ASSISTANCE.—The assistance shall include, as requested by the organizations, technical assistance in—

''(A) evaluating code or standards proposals or revisions;

''(B) building energy analysis and design tools;

''(C) building demonstrations;

''(D) developing definitions of energy use intensity and building types for use in model building energy codes to evaluate the efficiency impacts of the model building energy codes;

''(E) performance-based standards;

''(F) evaluating economic considerations under subsection (b)(4); and

''(G) developing model building energy codes by Indian tribes in accordance with tribal law.

''(3) AMENDMENT PROPOSALS.—The Secretary may submit timely model building energy code amendment proposals to the model building energy code-setting and standard development organizations, with supporting evidence, sufficient to enable the model building energy codes to meet the targets established under subsection (b)(2).

''(4) ANALYSIS METHODOLOGY.—The Secretary shall make publicly available the entire calculation methodology (including input assumptions and data) used by the Secretary to estimate the energy savings of code or standard proposals and revisions.

''(d) DETERMINATION.—

''(1) REVISION OF MODEL BUILDING ENERGY CODES.—If the provisions of the IECC or ASHRAE Standard 90.1 regarding building energy use are revised, the Secretary shall make a preliminary determination not later than 90 days after the date of the revision, and a final determination not later than 15 months after the date of the revision, on whether or not the revision will—

''(A) improve energy efficiency in buildings compared to the existing model building energy code; and

''(B) meet the applicable targets under subsection (b)(2).

''(2) CODES OR STANDARDS NOT MEETING TARGETS.—

''(A) IN GENERAL.—If the Secretary makes a preliminary determination under paragraph (1)(B) that a code or standard does not meet the targets established under subsection (b)(2), the Secretary may at the same time provide the model building energy code or standard developer with proposed changes that would result in a model building energy code that meets the targets and with supporting evidence, taking into consideration—

''(i) whether the modified code is technically feasible and life-cycle cost effective;

''(ii) available appliances, technologies, materials, and construction practices; and

''(iii) the economic considerations under subsection (b)(4).

''(B) INCORPORATION OF CHANGES.—

''(i) IN GENERAL.—On receipt of the proposed changes, the model building energy code or standard developer shall have an additional 270 days to accept or reject the proposed changes of the Secretary to the model building energy code or standard for the Secretary to make a final determination.

''(ii) FINAL DETERMINATION.—A final determination under paragraph (1) shall be on the modified model building energy code or standard.

''(e) ADMINISTRATION.—In carrying out this section, the Secretary shall—

''(1) publish notice of targets and supporting analysis and determinations under this section in the Federal Register to provide an explanation of and the basis for such actions, including any supporting modeling, data, assumptions, protocols, and cost-benefit analysis, including return on investment; and

''(2) provide an opportunity for public comment on targets and supporting analysis and determinations under this section.

''(f) VOLUNTARY CODES AND STANDARDS.—Nothwithstanding any other provision of this section, any model building code or standard established under this section shall not be binding on a State, local government, or Indian tribe as a matter of Federal law.''.

PART II—WORKER TRAINING AND CAPACITY BUILDING

SEC. 221. BUILDING TRAINING AND ASSESSMENT CENTERS.

(a) IN GENERAL.—The Secretary of Energy shall provide grants to institutions of higher education (as defined in section 101 of the Higher Education Act of 1965 (20 U.S.C. 1001)) and Tribal Colleges or Universities (as defined in section 316(b) of that Act (20 U.S.C. 1059c(b)) to establish building training and assessment centers—

(1) to identify opportunities for optimizing energy efficiency and environmental performance in buildings;

(2) to promote the application of emerging concepts and technologies in commercial and institutional buildings;

(3) to train engineers, architects, building scientists, building energy permitting and enforcement officials, and building technicians in energy-efficient design and operation;

(4) to assist institutions of higher education and Tribal Colleges or Universities in training building technicians;

(5) to promote research and development for the use of alternative energy sources and distributed generation to supply heat and power for buildings, particularly energy-intensive buildings; and

(6) to coordinate with and assist State-accredited technical training centers, community colleges, Tribal Colleges or Universities, and local offices of the National Institute of Food and Agriculture and ensure appropriate services are provided under this section to each region of the United States.

(b) COORDINATION AND NONDUPLICATION.—

(1) IN GENERAL.—The Secretary shall coordinate the program with the Industrial Assessment Centers program and with other Federal programs to avoid duplication of effort.

(2) COLLOCATION.—To the maximum extent practicable, building, training, and assessment centers established under this section shall be collocated with Industrial Assessment Centers.

Subtitle B—Building Efficiency Finance

SEC. 231. LOAN PROGRAM FOR ENERGY EFFICIENCY UPGRADES TO EXISTING BUILDINGS.

Title XVII of the Energy Policy Act of 2005 (42 U.S.C. 16511 et seq.) is amended by adding at the end the following:

''SEC. 1706. BUILDING RETROFIT FINANCING PROGRAM.

''(a) DEFINITIONS.—In this section:

''(1) CREDIT SUPPORT.—The term 'credit support' means a guarantee or commitment to issue a guarantee or other forms of credit enhancement to ameliorate risks for efficiency obligations.

''(2) EFFICIENCY OBLIGATION.—The term 'efficiency obligation' means a debt or repayment obligation incurred in connection with financing a project, or a portfolio of such debt or payment obligations.

''(3) PROJECT.—The term 'project' means the installation and implementation of efficiency, advanced metering, distributed generation, or renewable energy technologies and measures in a building (or in multiple buildings on a given property) that are expected to increase the energy efficiency of the building (including fixtures) in accordance with criteria established by the Secretary.

''(b) ELIGIBLE PROJECTS.—

''(1) IN GENERAL.—Notwithstanding sections 1703 and 1705, the Secretary may provide credit support under this section, in accordance with section 1702.

''(2) INCLUSIONS.—Buildings eligible for credit support under this section include commercial, multifamily residential, industrial, municipal, government, institution of higher education, school, and hospital facilities that satisfy criteria established by the Secretary.

''(c) GUIDELINES.—

''(1) IN GENERAL.—Not later than 180 days after the date of enactment of this section, the Secretary shall—

''(A) establish guidelines for credit support provided under this section; and

''(B) publish the guidelines in the Federal Register; and

''(C) provide for an opportunity for public comment on the guidelines.

''(2) REQUIREMENTS.—The guidelines established by the Secretary under this subsection shall include—

''(A) standards for assessing the energy savings that could reasonably be expected to result from a project;

''(B) examples of financing mechanisms (and portfolios of such financing mechanisms) that qualify as efficiency obligations;

''(C) the threshold levels of energy savings that a project, at the time of issuance of credit support, shall be reasonably expected to achieve to be eligible for credit support;

''(D) the eligibility criteria the Secretary determines to be necessary for making credit support available under this section; and

''(E) notwithstanding subsections (d)(3) and (g)(2)(B) of section 1702, any lien priority requirements that the Secretary determines to be necessary, in consultation with the Director of the Office of Management and Budget, which may include—

''(i) requirements to preserve priority lien status of secured lenders and creditors in buildings eligible for credit support;

''(ii) remedies available to the Secretary under chapter 176 of title 28, United States Code, in the event of default on the efficiency obligation by the borrower; and

''(iii) measures to limit the exposure of the Secretary to financial risk in the event of default, such as—

''(I) the collection of a credit subsidy fee from the borrower as a loan loss reserve, taking into account the limitation on credit support under subsection (d);

''(II) minimum debt-to-income levels of the borrower;

''(III) minimum levels of value relative to outstanding mortgage or other debt on a building eligible for credit support;

''(IV) allowable thresholds for the percent of the efficiency obligation relative to the amount of any mortgage or other debt on an eligible building;

''(V) analysis of historic and anticipated occupancy levels and rental income of an eligible building;

''(VI) requirements of third-party contractors to guarantee energy savings that will result from a retrofit project, and whether financing on the efficiency obligation will amortize from the energy savings;

''(VII) requirements that the retrofit project incorporate protocols to measure and verify energy savings; and

''(VIII) recovery of payments equally by the Secretary and the retrofit.

''(3) EFFICIENCY OBLIGATIONS.—The financing mechanisms qualified by the Secretary under paragraph (2)(B) may include—

''(A) loans, including loans made by the Federal Financing Bank;

''(B) power purchase agreements, including energy efficiency power purchase agreements;

''(C) energy services agreements, including energy performance contracts;

''(D) property assessed clean energy bonds and other tax assessment-based financing mechanisms;

''(E) aggregate on-meter agreements that finance retrofit projects; and

''(F) any other efficiency obligations the Secretary determines to be appropriate.

''(4) PRIORITIES.—In carrying out this section, the Secretary shall prioritize—

''(A) the maximization of energy savings with the available credit support funding;

''(B) the establishment of a clear application and approval process that allows private building owners, lenders, and investors to reasonably expect to receive credit support for projects that conform to guidelines;

''(C) the distribution of projects receiving credit support under this section across States or geographical regions of the United States; and

''(D) projects designed to achieve whole-building retrofits.

''(d) LIMITATION.—Notwithstanding section 1702(c), the Secretary shall not issue credit support under this section in an amount that exceeds—

''(1) 90 percent of the principal amount of the efficiency obligation that is the subject of the credit support; or

''(2) $10,000,000 for any single project.

''(e) AGGREGATION OF PROJECTS.—To the extent provided in the guidelines developed in accordance with subsection (c), the Secretary may issue credit support on a portfolio, or pool of projects, that are not required to be geographically contiguous, if each efficiency obligation in the pool fulfills the requirements described in this section.

''(f) APPLICATION.—

''(1) IN GENERAL.—To be eligible to receive credit support under this section, the applicant shall submit to the Secretary an application at such time, in such manner, and containing such information as the Secretary determines to be necessary.

''(2) CONTENTS.—An application submitted under this section shall include assurances by the applicant that—

''(A) each contractor carrying out the project meets minimum experience level criteria, including local retrofit experience, as determined by the Secretary;

''(B) the project is reasonably expected to achieve energy savings, as set forth in the application using any methodology that

meets the standards described in the program guidelines;

''(C) the project meets any technical criteria described in the program guidelines;

''(D) the recipient of the credit support and the parties to the efficiency obligation will provide the Secretary with—

''(i) any information the Secretary requests to assess the energy savings that result from the project, including historical energy usage data, a simulation-based benchmark, and detailed descriptions of the building work, as described in the program guidelines; and

''(ii) permission to access information relating to building operations and usage for the period described in the program guidelines; and

''(E) any other assurances that the Secretary determines to be necessary.

''(3) DETERMINATION.—Not later than 90 days after receiving an application, the Secretary shall make a final determination on the application, which may include requests for additional information.

''(g) FEES.—

''(1) IN GENERAL.—In addition to the fees required by section 1702(h)(1), the Secretary may charge reasonable fees for credit support provided under this section.

''(2) AVAILABILITY.—Fees collected under this section shall be subject to section 1702(h)(2).

''(h) UNDERWRITING.—The Secretary may delegate the underwriting activities under this section to 1 or more entities that the Secretary determines to be qualified.

''(i) REPORT.—Not later than 1 year after commencement of the program, the Secretary shall submit to the appropriate committees of Congress a report that describes in reasonable detail—

''(1) the manner in which this section is being carried out;

''(2) the number and type of projects supported;

''(3) the types of funding mechanisms used to provide credit support to projects;

''(4) the energy savings expected to result from projects supported by this section;

''(5) any tracking efforts the Secretary is using to calculate the actual energy savings produced by the projects; and

''(6) any plans to improve the tracking efforts described in paragraph (5).

''(j) FUNDING.—

''(1) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to the Secretary to carry out this section $400,000,000 for the period of fiscal years 2012 through 2021, to remain available until expended.

''(2) ADMINISTRATIVE COSTS.—Not more than 1 percent of any amounts made available to the Secretary under paragraph (1) may be used by the Secretary for administrative costs incurred in carrying out this section.''.

Subtitle C—Industrial Efficiency and Competitiveness

PART I—MANUFACTURING ENERGY EFFICIENCY

SEC. 241. STATE PARTNERSHIP INDUSTRIAL ENERGY EFFICIENCY REVOLVING LOAN PROGRAM.

Section 399A of the Energy Policy and Conservation Act (42 U.S.C. 6371h–1) is amended—

(1) in the section heading, by inserting ''**and industry**'' before the period at the end;

(2) by redesignating subsections (h) and (i) as subsections (i) and (j), respectively; and

(3) by inserting after subsection (g) the following:

''(h) STATE PARTNERSHIP INDUSTRIAL ENERGY EFFICIENCY REVOLVING LOAN PROGRAM.—

''(1) IN GENERAL.—The Secretary shall carry out a program under which the Secretary shall provide grants to eligible lenders to pay the Federal share of creating a revolving loan program under which loans are provided to commercial and industrial manufacturers to implement commercially available technologies or processes that significantly—

''(A) reduce systems energy intensity, including the use of energy-intensive feedstocks; and

''(B) improve the industrial competitiveness of the United States.

''(2) ELIGIBLE LENDERS.—To be eligible to receive cost-matched Federal funds under this subsection, a lender shall—

''(A) be a community and economic development lender that the Secretary certifies meets the requirements of this subsection;

''(B) lead a partnership that includes participation by, at a minimum—

''(i) a State government agency; and

''(ii) a private financial institution or other provider of loan capital;

''(C) submit an application to the Secretary, and receive the approval of the Secretary, for cost-matched Federal funds to carry out a loan program described in paragraph (1); and

''(D) ensure that non-Federal funds are provided to match, on at least a dollar-for-dollar basis, the amount of Federal funds that are provided to carry out a revolving loan program described in paragraph (1).

''(3) AWARD.—The amount of cost-matched Federal funds provided to an eligible lender shall not exceed $100,000,000 for any fiscal year.

''(4) RECAPTURE OF AWARDS.—

''(A) IN GENERAL.—An eligible lender that receives an award under paragraph (1) shall be required to repay to the Secretary an amount of cost-match Federal funds, as determined by the Secretary under subparagraph (B), if the eligible lender is unable or unwilling to operate a program described in this subsection for a period of not less than 10 years beginning on the date on which the eligible lender first receives funds made available through the award.

''(B) DETERMINATION BY SECRETARY.—The Secretary shall determine the amount of cost-match Federal funds that an eligible lender shall be required to repay to the Secretary under subparagraph (A) based on the consideration by the Secretary of—

''(i) the amount of non-Federal funds matched by the eligible lender;

''(ii) the amount of loan losses incurred by the revolving loan program described in paragraph (1); and

''(iii) any other appropriate factor, as determined by the Secretary.

''(C) USE OF RECAPTURED COST-MATCH FEDERAL FUNDS.—The Secretary may distribute to eligible lenders under this subsection each amount received by the Secretary under this paragraph.

''(5) ELIGIBLE PROJECTS.—A program for which cost-matched Federal funds are provided under this subsection shall be designed to accelerate the implementation of industrial and commercial applications of technologies or processes (including distributed generation, applications or technologies that use sensors, meters, software, and information networks, controls, and drives or that have been installed pursuant to an energy savings performance contract, project, or strategy) that—

''(A) improve energy efficiency, including improvements in efficiency and use of water, power factor, or load management;

''(B) enhance the industrial competitiveness of the United States; and

''(C) achieve such other goals as the Secretary determines to be appropriate.

''(6) EVALUATION.—The Secretary shall evaluate applications for cost-matched Federal funds under this subsection on the basis of—

''(A) the description of the program to be carried out with the cost-matched Federal funds;

''(B) the commitment to provide non-Federal funds in accordance with paragraph (2)(D);

''(C) program sustainability over a 10-year period;

''(D) the capability of the applicant;

''(E) the quantity of energy savings or energy feedstock minimization;

''(F) the advancement of the goal under this Act of 25-percent energy avoidance;

''(G) the ability to fund energy efficient projects not later than 120 days after the date of the grant award; and

''(H) such other factors as the Secretary determines appropriate.

''(7) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to carry out this subsection, $400,000,000 for the period of fiscal years 2012 through 2021.''.

SEC. 242. COORDINATION OF RESEARCH AND DEVELOPMENT OF ENERGY EFFICIENT TECHNOLOGIES FOR INDUSTRY.

(a) IN GENERAL.—As part of the research and development activities of the Industrial Technologies Program of the Department of Energy, the Secretary shall establish, as appropriate, collaborative research and development partnerships with other programs within the Office of Energy Efficiency and Renewable Energy (including the Building Technologies Program), the Office of Electricity Delivery and Energy Reliability, and the Office of Science that—

(1) leverage the research and development expertise of those programs to promote early stage energy efficiency technology development;

(2) support the use of innovative manufacturing processes and applied research for development, demonstration, and commercialization of new technologies and processes to improve efficiency (including improvements in efficient use of water), reduce emissions, reduce industrial waste, and improve industrial cost-competitiveness; and

(3) apply the knowledge and expertise of the Industrial Technologies Program to help achieve the program goals of the other programs.

(b) REPORTS.—Not later than 2 years after the date of enactment of this Act and biennially thereafter, the Secretary shall submit to Congress a report that describes actions taken to carry out subsection (a) and the results of those actions.

SEC. 243. REDUCING BARRIERS TO THE DEPLOYMENT OF INDUSTRIAL ENERGY EFFICIENCY.

(a) DEFINITIONS.—In this section:

(1) INDUSTRIAL ENERGY EFFICIENCY.—The term ''industrial energy efficiency'' means the energy efficiency derived from commercial technologies and measures to improve energy efficiency or to generate or transmit electric power and heat, including electric motor efficiency improvements, demand response, direct or indirect combined heat and power, and waste heat recovery.

(2) INDUSTRIAL SECTOR.—The term ''industrial sector'' means any subsector of the manufacturing sector (as defined in North American Industry Classification System codes 31-33 (as in effect on the date of enactment of this Act)) establishments of which have, or could have, thermal host facilities with electricity requirements met in whole, or in part, by onsite electricity generation, including direct and indirect combined heat and power or waste recovery.

(3) SECRETARY.—The term ''Secretary'' means the Secretary of Energy.

(b) REPORT ON THE DEPLOYMENT OF INDUSTRIAL ENERGY EFFICIENCY.—

(1) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Secretary shall submit to the Committee on Energy and Commerce of the House of Representatives and the Committee on Energy and Natural Resources of the Senate a report describing—

(A) the results of the study conducted under paragraph (2); and

(B) recommendations and guidance developed under paragraph (3).

(2) STUDY.—The Secretary, in coordination with the industrial sector, shall conduct a study of the following:

(A) The legal, regulatory, and economic barriers to the deployment of industrial energy efficiency in all electricity markets (including organized wholesale electricity markets, and regulated electricity markets), including, as applicable, the following:

(i) Transmission and distribution interconnection requirements.

(ii) Standby, back-up, and maintenance fees (including demand ratchets).

(iii) Exit fees.

(iv) Life of contract demand ratchets.

(v) Net metering.

(vi) Calculation of avoided cost rates.

(vii) Power purchase agreements.

(viii) Energy market structures.

(ix) Capacity market structures.

(x) Other barriers as may be identified by the Secretary, in coordination with the industrial sector.

(B) Examples of —

(i) successful State and Federal policies that resulted in greater use of industrial energy efficiency;

(ii) successful private initiatives that resulted in greater use of industrial energy efficiency; and

(iii) cost-effective policies used by foreign countries to foster industrial energy efficiency.

(C) The estimated economic benefits to the national economy of providing the industrial sector with Federal energy efficiency matching grants of $5,000,000,000 for 5- and 10-year periods, including benefits relating to—

(i) estimated energy and emission reductions;

(ii) direct and indirect jobs saved or created;

(iii) direct and indirect capital investment;

(iv) the gross domestic product; and

(v) trade balance impacts.

(D) The estimated energy savings available from increased use of recycled material in energy-intensive manufacturing processes.

(3) RECOMMENDATIONS AND GUIDANCE.—The Secretary, in coordination with the industrial sector, shall develop policy recommendations regarding the deployment of industrial energy efficiency, including proposed regulatory guidance to States and relevant Federal agencies to address barriers to deployment.

SEC. 244. FUTURE OF INDUSTRY PROGRAM.

(a) IN GENERAL.—Section 452 of the Energy Independence and Security Act of 2007 (42 U.S.C. 17111) is amended by striking the section heading and inserting the following: ''**future of industry program**''.

(b) DEFINITION OF ENERGY SERVICE PROVIDER.—Section 452(a) of the Energy Independence and Security Act of 2007 (42 U.S.C. 17111(a)) is amended—

(1) by redesignating paragraphs (3) through (5) as paragraphs (4) through (6), respectively; and

(2) by inserting after paragraph (3):

''(5) ENERGY SERVICE PROVIDER.—The term 'energy service provider' means any private company or similar entity providing technology or services to improve energy efficiency in an energy-intensive industry.''.

(c) INDUSTRIAL RESEARCH AND ASSESSMENT CENTERS.—

(1) IN GENERAL.—Section 452(e) of the Energy Independence and Security Act of 2007 (42 U.S.C. 17111(e)) is amended—

(A) by redesignating paragraphs (1) through (5) as subparagraphs (A) through (E), respectively, and indenting appropriately;

(B) by striking ''The Secretary'' and inserting the following:

''(1) IN GENERAL.—The Secretary'';

(C) in subparagraph (A) (as redesignated by subparagraph (A)), by inserting before the semicolon at the end the following: '', including assessments of sustainable manufacturing goals and the implementation of information technology advancements for supply chain analysis, logistics, system monitoring, industrial and manufacturing processes, and other purposes''; and

(D) by adding at the end the following:

''(2) CENTERS OF EXCELLENCE.—

''(A) IN GENERAL.—The Secretary shall establish a Center of Excellence at up to 10 of the highest performing industrial research and assessment centers, as determined by the Secretary.

''(B) DUTIES.—A Center of Excellence shall coordinate with and advise the industrial research and assessment centers located in the region of the Center of Excellence.

''(C) FUNDING.—Subject to the availability of appropriations, of the funds made available under subsection (f), the Secretary shall use to support each Center of Excellence not less than $500,000 for fiscal year 2012 and each fiscal year thereafter, as determined by the Secretary.

''(3) EXPANSION OF CENTERS.—The Secretary shall provide funding to establish additional industrial research and assessment centers at institutions of higher education that do not have industrial research and assessment centers established under paragraph (1), taking into account the size of, and potential energy efficiency savings for, the manufacturing base within the region of the proposed center.

''(4) COORDINATION.—

''(A) IN GENERAL.—To increase the value and capabilities of the industrial research and assessment centers, the centers shall—

''(i) coordinate with Manufacturing Extension Partnership Centers of the National Institute of Standards and Technology;

''(ii) coordinate with the Building Technologies Program of the Department of Energy to provide building assessment services to manufacturers;

''(iii) increase partnerships with the National Laboratories of the Department of Energy to leverage the expertise and technologies of the National Laboratories for national industrial and manufacturing needs;

''(iv) increase partnerships with energy service providers and technology providers to leverage private sector expertise and accelerate deployment of new and existing technologies and processes for energy efficiency, power factor, and load management;

''(v) identify opportunities for reducing greenhouse gas emissions; and

''(vi) promote sustainable manufacturing practices for small- and medium-sized manufacturers.

''(5) OUTREACH.—The Secretary shall provide funding for—

''(A) outreach activities by the industrial research and assessment centers to inform small- and medium-sized manufacturers of the information, technologies, and services available; and

''(B) a full-time equivalent employee at each center of excellence whose primary mission shall be to coordinate and leverage the efforts of the center with—

''(i) Federal and State efforts;

''(ii) the efforts of utilities and energy service providers;

''(iii) the efforts of regional energy efficiency organizations; and

''(iv) the efforts of other centers in the region of the center of excellence.

''(6) WORKFORCE TRAINING.—

''(A) IN GENERAL.—The Secretary shall pay the Federal share of associated internship programs under which students work with or for industries, manufacturers, and energy service providers to implement the recommendations of industrial research and assessment centers.

''(B) FEDERAL SHARE.—The Federal share of the cost of carrying out internship programs described in subparagraph (A) shall be 50 percent.

''(C) FUNDING.—Subject to the availability of appropriations, of the funds made available under subsection (f), the Secretary shall use to carry out this paragraph not less than $5,000,000 for fiscal year 2012 and each fiscal year thereafter.

''(7) SMALL BUSINESS LOANS.—The Administrator of the Small Business Administration shall, to the maximum practicable, expedite consideration of applications from eligible small business concerns for loans under the Small Business Act (15 U.S.C. 631 et seq.) to implement recommendations of industrial research and assessment centers established under paragraph (1).''.

SEC. 245. SUSTAINABLE MANUFACTURING INITIATIVE.

(a) IN GENERAL.—Part E of title III of the Energy Policy and Conservation Act (42 U.S.C. 6341) is amended by adding at the end the following:

''SEC. 376. SUSTAINABLE MANUFACTURING INITIATIVE.

''(a) IN GENERAL.—As part of the Industrial Technologies Program of the Department of Energy, the Secretary shall carry out a sustainable manufacturing initiative under which the Secretary, on the request of a manufacturer, shall conduct onsite technical assessments to identify opportunities for—

''(1) maximizing the energy efficiency of industrial processes and cross-cutting systems;

''(2) preventing pollution and minimizing waste;

''(3) improving efficient use of water in manufacturing processes;

''(4) conserving natural resources; and

''(5) achieving such other goals as the Secretary determines to be appropriate.

''(b) COORDINATION.—The Secretary shall carry out the initiative in coordination with the private sector and appropriate agencies, including the National Institute of Standards and Technology to accelerate adoption of new and existing technologies or processes that improve energy efficiency.

''(c) RESEARCH AND DEVELOPMENT PROGRAM FOR SUSTAINABLE MANUFACTURING AND INDUSTRIAL TECHNOLOGIES AND PROCESSES.—As part of the Industrial Technologies Program of the Department of Energy, the Secretary shall carry out a joint industry-government partnership program to research, develop, and demonstrate new sustainable manufacturing and industrial technologies and processes that maximize the energy efficiency of industrial systems, reduce pollution, and conserve natural resources.

''(d) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be to carry out this section $10,000,000 for the period of fiscal years 2012 through 2021.''.

(b) TABLE OF CONTENTS.—The table of contents of the Energy Policy and Conservation Act (42 U.S.C. prec. 6201) is amended by adding at the end of the items relating to part E of title III the following:

''Sec. 376. Sustainable manufacturing initiative.''.

SEC. 246. STUDY OF ADVANCED ENERGY TECHNOLOGY MANUFACTURING CAPABILITIES IN THE UNITED STATES.

(a) IN GENERAL.—Not later than 60 days after the date of enactment of this Act, the Secretary shall enter into an arrangement with the National Academy of Sciences under which the Academy shall conduct a study of the development of advanced manufacturing capabilities for various energy technologies, including—

(1) an assessment of the manufacturing supply chains of established and emerging industries;

(2) an analysis of—

(A) the manner in which supply chains have changed over the 25-year period ending on the date of enactment of this Act;

(B) current trends in supply chains; and

(C) the energy intensity of each part of the supply chain and opportunities for improvement;

(3) for each technology or manufacturing sector, an analysis of which sections of the supply chain are critical for the United States to retain or develop to be competitive in the manufacturing of the technology;

(4) an assessment of which emerging energy technologies the United States should focus on to create or enhance manufacturing capabilities; and

(5) recommendations on leveraging the expertise of energy efficiency and renewable energy user facilities so that best materials and manufacturing practices are designed and implemented.

(b) REPORT.—Not later than 2 years after the date on which the Secretary enters into the agreement with the Academy described in subsection (a), the Academy shall submit to the Committee on Energy and Natural Resources of the Senate, the Committee on Energy and Commerce of the House of Representatives, and the Secretary a report describing the results of the study required under this section, including any findings and recommendations.

SEC. 247. INDUSTRIAL TECHNOLOGIES STEERING COMMITTEE.

The Secretary shall establish an advisory steering committee that includes national trade associations representing energy-intensive industries or energy service providers to provide recommendations to the Secretary on planning and implementation of the Industrial Technologies Program of the Department of Energy.

PART II—SUPPLY STAR

SEC. 251. SUPPLY STAR.

Part B of title III of the Energy Policy and Conservation Act (42 U.S.C. 6291) is amended by inserting after section 324A (42 U.S.C. 6294a) the following:

''SEC. 324B. SUPPLY STAR PROGRAM.

''(a) IN GENERAL.—There is established within the Department of Energy a Supply Star program to identify and promote practices, recognize companies, and, as appropriate, recognize products that use highly efficient supply chains in a manner that conserves energy, water, and other resources.

''(b) COORDINATION.—In carrying out the program described in subsection (a), the Secretary shall—

''(1) consult with other appropriate agencies; and

''(2) coordinate efforts with the Energy Star program established under section 324A.

''(c) DUTIES.—In carrying out the Supply Star program described in subsection (a), the Secretary shall—

''(1) promote practices, recognize companies, and, as appropriate, recognize products that comply with the Supply Star program as the preferred practices, companies, and products in the marketplace for maximizing supply chain efficiency;

''(2) work to enhance industry and public awareness of the Supply Star program;

''(3) collect and disseminate data on supply chain energy resource consumption;

''(4) develop and disseminate metrics, processes, and analytical tools (including software) for evaluating supply chain energy resource use;

''(5) develop guidance at the sector level for improving supply chain efficiency;

''(6) work with domestic and international organizations to harmonize approaches to analyzing supply chain efficiency, including the development of a consistent set of tools, templates, calculators, and databases; and

''(7) work with industry, including small businesses, to improve supply chain efficiency through activities that include—

''(A) developing and sharing best practices; and

''(B) providing opportunities to benchmark supply chain efficiency.

''(d) EVALUATION.—In any evaluation of supply chain efficiency carried out by the Secretary with respect to a specific product, the Secretary shall consider energy consumption and resource use throughout the entire lifecycle of a product, including production, transport, packaging, use, and disposal.

''(e) GRANTS AND INCENTIVES.—

''(1) IN GENERAL.—The Secretary may award grants or other forms of incentives on a competitive basis to eligible entities, as determined by the Secretary, for the purposes of—

''(A) studying supply chain energy resource efficiency; and

''(B) demonstrating and achieving reductions in the energy resource consumption of commercial products through changes and improvements to the production supply and distribution chain of the products.

''(2) USE OF INFORMATION.—Any information or data generated as a result of the grants or incentives described in paragraph (1) shall be used to inform the development of the Supply Star Program.

''(f) TRAINING.—The Secretary shall use funds to support professional training programs to develop and communicate methods, practices, and tools for improving supply chain efficiency.

''(g) EFFECT OF IMPACT ON CLIMATE CHANGE.—For purposes of this section, the impact on climate change shall not be a factor in determining supply chain efficiency.

''(h) EFFECT OF OUTSOURCING OF AMERICAN JOBS.—For purposes of this section, the outsourcing of American jobs in the production of a product shall not count as a positive factor in determining supply chain efficiency.

''(i) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to carry out this section $10,000,000 for the period of fiscal years 2012 through 2021.''.

PART III—ELECTRIC MOTOR REBATE PROGRAM

SEC. 261. ENERGY SAVING MOTOR CONTROL REBATE PROGRAM.

(a) ESTABLISHMENT.—Not later than January 1, 2012, the Secretary of Energy (referred to in this section as the ''Secretary'') shall establish a program to provide rebates for expenditures made by entities for the purchase and installation of a new constant speed electric motor control that reduces motor energy use by not less than 5 percent.

(b) REQUIREMENTS.—

(1) APPLICATION.—To be eligible to receive a rebate under this section, an entity shall submit to the Secretary an application in such form, at such time, and containing such information as the Secretary may require, including—

(A) demonstrated evidence that the entity purchased a constant speed electric motor control that reduces motor energy use by not less than 5 percent; and

(B) the physical nameplate of the installed motor of the entity to which the energy saving motor control is attached.

(2) AUTHORIZED AMOUNT OF REBATE.—The Secretary may provide to an entity that meets the requirements of paragraph (1) a rebate the amount of which shall be equal to the product obtained by multiplying—

(A) the nameplate horsepower of the electric motor to which the energy saving motor control is attached; and

(B) $25.

(c) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to carry out this section $5,000,000 for each of fiscal years 2012 and 2013, to remain available until expended.

PART IV—TRANSFORMER REBATE PROGRAM

SEC. 271. ENERGY EFFICIENT TRANSFORMER REBATE PROGRAM.

(a) DEFINITION OF QUALIFIED TRANSFORMER.—In this section, the term ''qualified transformer'' means a transformer that meets or exceeds the National Electrical Manufacturers Association (NEMA) Premium Efficiency designation, calculated to 2 decimal points, as having 30 percent fewer losses than the NEMA TP-1-2002 efficiency standard for a transformer of the same number of phases and capacity, as measured in kilovolt-amperes.

(b) ESTABLISHMENT.—Not later than January 1, 2012, the Secretary of Energy (referred to in this section as the ''Secretary'') shall establish a program to provide rebates for expenditures made by owners of commercial buildings and multifamily residential buildings for the purchase and installation of a new energy efficient transformers.

(c) REQUIREMENTS.—

(1) APPLICATION.—To be eligible to receive a rebate under this section, an owner shall submit to the Secretary an application in such form, at such time, and containing such information as the Secretary may require, including demonstrated evidence that the owner purchased a qualified transformer.

(2) AUTHORIZED AMOUNT OF REBATE.—For qualified transformers, rebates, in dollars per kilovolt-ampere (referred to in this paragraph as ''kVA'') shall be—

(A) for 3-phase transformers—

(i) with a capacity of not greater than 10 kVA, $15;

(ii) with a capacity of not less than 10 kVA and not greater than 100 kVA, the difference between 15 and the quotient obtained by dividing—

(I) the difference between—

(aa) the capacity of the transformer in kVA; and

(bb) 10; by

(II) 9; and

(iii) with a capacity greater than or equal to 100 kVA, $5; and

(B) for single-phase transformers, 75 percent of the rebate for a 3-phase transformer of the same capacity.

(d) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to carry out this section $5,000,000 for each of fiscal years 2012 and 2013, to remain available until expended.

Subtitle D—Federal Agency Energy Efficiency

SEC. 281. ADOPTION OF PERSONAL COMPUTER POWER SAVINGS TECHNIQUES BY FEDERAL AGENCIES.

(a) IN GENERAL.—Not later than 360 days after the date of enactment of this Act, the Secretary of Energy, in consultation with the Secretary of Defense, the Secretary of Veterans Affairs, and the Administrator of General Services, shall issue guidance for

Federal agencies to employ advanced tools allowing energy savings through the use of computer hardware, energy efficiency software, and power management tools.

(b) REPORTS ON PLANS AND SAVINGS.—Not later than 180 days after the date of the issuance of the guidance under subsection (a), each Federal agency shall submit to the Secretary of Energy a report that describes—

(1) the plan of the agency for implementing the guidance within the agency; and

(2) estimated energy and financial savings from employing the tools described in subsection (a).

SEC. 282. AVAILABILITY OF FUNDS FOR DESIGN UPDATES.

Section 3307 of title 40, United States Code, is amended—

(1) by redesignating subsections (d) through (h) as subsections (e) through (i), respectively; and

(2) by inserting after subsection (c) the following:

''(d) AVAILABILITY OF FUNDS FOR DESIGN UPDATES.—

''(1) IN GENERAL.—Subject to paragraph (2), for any project for which congressional approval is received under subsection (a) and for which the design has been substantially completed but construction has not begun, the Administrator of General Services may use appropriated funds to update the project design to meet applicable Federal building energy efficiency standards established under section 305 of the Energy Conservation and Production Act (42 U.S.C. 6834) and other requirements established under section 3312.

''(2) LIMITATION.—The use of funds under paragraph (1) shall not exceed 125 percent of the estimated energy or other cost savings associated with the updates as determined by a life-cycle cost analysis under section 544 of the National Energy Conservation Policy Act (42 U.S.C. 8254).''.

SEC. 283. BEST PRACTICES FOR ADVANCED METERING.

Section 543(e) of the National Energy Conservation Policy Act (42 U.S.C. 8253(e) is amended by striking paragraph (3) and inserting the following:

''(3) PLAN.—

''(A) IN GENERAL.—Not later than 180 days after the date on which guidelines are established under paragraph (2), in a report submitted by the agency under section 548(a), each agency shall submit to the Secretary a plan describing the manner in which the agency will implement the requirements of paragraph (1), including—

''(i) how the agency will designate personnel primarily responsible for achieving the requirements; and

''(ii) a demonstration by the agency, complete with documentation, of any finding that advanced meters or advanced metering devices (as those terms are used in paragraph (1)), are not practicable.

''(B) UPDATES.—Reports submitted under subparagraph (A) shall be updated annually.

''(4) BEST PRACTICES REPORT.—

''(A) IN GENERAL.—Not later than 180 days after the date of enactment of the Energy Savings and Industrial Competitiveness Act of 2012, the Secretary of Energy, in consultation with the Secretary of Defense and the Administrator of General Services, shall develop, and issue a report on, best practices for the use of advanced metering of energy use in Federal facilities, buildings, and equipment by Federal agencies.

''(B) UPDATING.—The report described under subparagraph (A) shall be updated annually.

''(C) COMPONENTS.—The report shall include, at a minimum—

''(i) summaries and analysis of the reports by agencies under paragraph (3);

''(ii) recommendations on standard requirements or guidelines for automated energy management systems, including—

''(I) potential common communications standards to allow data sharing and reporting;

''(II) means of facilitating continuous commissioning of buildings and evidence-based maintenance of buildings and building systems; and

''(III) standards for sufficient levels of security and protection against cyber threats to ensure systems cannot be controlled by unauthorized persons; and

''(iii) an analysis of—

''(I) the types of advanced metering and monitoring systems being piloted, tested, or installed in Federal buildings; and

''(II) existing techniques used within the private sector or other non-Federal government buildings.''.

SEC. 284. FEDERAL ENERGY MANAGEMENT AND DATA COLLECTION STANDARD.

Section 543 of the National Energy Conservation Policy Act (42 U.S.C. 8253) is amended—

(1) by redesignating the second subsection (f) (as added by section 434(a) of Public Law 110–140 (121 Stat. 1614)) as subsection (g); and

(2) in subsection (f)(7), by striking subparagraph (A) and inserting the following:

''(A) IN GENERAL.—For each facility that meets the criteria established by the Secretary under paragraph (2)(B), the energy manager shall use the web-based tracking system under subparagraph (B)—

''(i) to certify compliance with the requirements for—

''(I) energy and water evaluations under paragraph (3);

''(II) implementation of identified energy and water measures under paragraph (4); and

''(III) follow-up on implemented measures under paragraph (5); and

''(ii) to publish energy and water consumption data on an individual facility basis.''.

SEC. 285. ELECTRIC VEHICLE CHARGING INFRASTRUCTURE.

Section 804(4) of the National Energy Conservation Policy Act (42 U.S.C. 8287c(4)) is amended—

(1) in subparagraph (A), by striking ''or'' after the semicolon;

(2) in subparagraph (B), by striking the period at the end and inserting ''; or''; and

(3) by adding at the end the following:

''(C) a measure to support the use of electric vehicles or the fueling or charging infrastructure necessary for electric vehicles.''.

SEC. 286. FEDERAL PURCHASE REQUIREMENT.

Section 203 of the Energy Policy Act of 2005 (42 U.S.C. 15852) is amended—

(1) in subsections (a) and (b)(2), by striking ''electric energy'' each place it appears and inserting ''electric, direct, and thermal energy'';

(2) in subsection (b)(2)—

(A) by inserting '', or avoided by,'' after ''generated from''; and

(B) by inserting ''(including ground-source, reclaimed, and ground water)''after ''geothermal'';

(3) by redesignating subsection (d) as subsection (e); and

(4) by inserting after subsection (c) the following:

''(d) SEPARATE CALCULATION.—Renewable energy produced at a Federal facility, on Federal land, or on Indian land (as defined in section 2601 of the Energy Policy Act of 1992 (25 U.S.C. 3501))—

''(1) shall be calculated (on a BTU-equivalent basis) separately from renewable energy used; and

''(2) may be used individually or in combination to comply with subsection (a).''.

SEC. 287. STUDY ON FEDERAL DATA CENTER CONSOLIDATION.

(a) IN GENERAL.—The Secretary of Energy shall conduct a study on the feasibility of a government-wide data center consolidation, with an overall Federal target of a minimum of 800 Federal data center closures by October 1, 2015.

(b) COORDINATION.—In conducting the study, the Secretary shall coordinate with Federal data center program managers, facilities managers, and sustainability officers.

(c) REPORT.—Not later than 1 year after the date of enactment of this Act, the Secretary shall submit to Congress a report that describes the results of the study, including a description of agency best practices in data center consolidation.

Subtitle E—Miscellaneous

SEC. 291. OFFSETS.

(a) ZERO-NET ENERGY COMMERCIAL BUILDINGS INITIATIVE.—Section 422(f) of the Energy Independence and Security Act of 2007 (42 U.S.C. 17082(f)) is amended by striking paragraphs (2) through (4) and inserting the following:

''(2) $50,000,000 for each of fiscal years 2009 through 2012;

''(3) $100,000,000 for fiscal year 2013; and

''(4) $200,000,000 for each of fiscal years 2014 through 2018.''.

(b) ENERGY SUSTAINABILITY AND EFFICIENCY GRANTS AND LOANS FOR INSTITUTIONS.—Subsection (j) of section 399A of the Energy Policy and Conservation Act (42 U.S.C. 6371h–1) (as redesignated by section 241(2)) is amended—

(1) in paragraph (1), by striking ''through 2013'' and inserting ''and 2010, $100,000,000 for each of fiscal years 2011 and 2012, and $250,000,000 for fiscal year 2013''; and

(2) in paragraph (2), by striking ''through 2013'' and inserting ''and 2010, $100,000,000 for each of fiscal years 2011 and 2012, and $425,000,000 for fiscal year 2013''.

(c) WASTE ENERGY RECOVERY INCENTIVE PROGRAM.—Section 373(f)(1) of the Energy Policy and Conservation Act (42 U.S.C. 6343(f)(1)) is amended—

(1) by redesignating subparagraph (B) as subparagraph (D); and

(2) by striking subparagraph (A) and inserting the following:

''(A) $100,000,000 for fiscal year 2008;

''(B) $200,000,000 for each of fiscal years 2009 and 2010;

''(C) $100,000,000 for each of fiscal years 2011 and 2012; and''.

(d) ENERGY-INTENSIVE INDUSTRIES PROGRAM.—Section 452(f)(1) of the Energy Independence and Security Act of 2007 (42 U.S.C. 17111(f)(1)) is amended—

(1) in subparagraph (D), by striking ''$202,000,000'' and inserting ''$102,000,000''; and

(2) in subparagraph (E), by striking ''$208,000,000'' and inserting ''$108,000,000''.

SEC. 292. ADVANCE APPROPRIATIONS REQUIRED.

The authorization of amounts under this title and the amendments made by this title shall be effective for any fiscal year only to the extent and in the amount provided in advance in appropriations Acts.

SA 2828. Mr. HOEVEN (for himself and Mr. MANCHIN) submitted an amendment intended to be proposed by him to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table; as follows:

At the end of the amendment, add the following:

SEC. 19. KEYSTONE XL PERMIT APPROVAL.

(a) IN GENERAL.—Notwithstanding Executive Order No. 13337 (3 U.S.C. 301 note), Executive Order No. 11423 (3 U.S.C. 301 note), section 301 of title 3, United States Code, and any other Executive order or provision of law, no presidential permit shall be required for the pipeline described in the application filed on May 4, 2012, by TransCanada Corporation to the Department of State for the northern portion of the Keystone XL pipeline from the Canadian border to the South Dakota/Nebraska border.

(b) ENVIRONMENTAL IMPACT STATEMENT.—The final environmental impact statement issued by the Secretary of State on August 26, 2011, regarding the pipeline referred to in subsection (a), shall be considered to satisfy all requirements of the National Environment Policy Act of 1969 (42 U.S.C. 4321 et seq.).

(c) INTRASTATE PORTION.—Nothing in this section affects the ongoing work of the State of Nebraska with regard to the fully intrastate portion of the Keystone XL pipeline.

SA 2829. Ms. KLOBUCHAR (for herself and Mr. ENZI) submitted an amendment intended to be proposed by her to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. GRANTS FOR EMERGENCY MEDICAL SERVICES PERSONNEL TRAINING FOR VETERANS.

Section 330J(c)(8) of the Public Health Service Act (42 U.S.C. 254c–15(c)(8)) is amended by inserting before the period the following: '', including, as provided by the Secretary, may use funds to provide to military veterans required coursework and training that take into account, and are not duplicative of, previous medical coursework and training received when such veterans were active members of the Armed Forces, to enable such veterans to satisfy emergency medical services personnel certification requirements, as determined by the appropriate State regulatory entity''.

SA 2830. Mr. COCHRAN submitted an amendment intended to be proposed to amendment SA 2789 proposed by Mrs. MURRAY to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table; as follows:

On page 9, strike lines 24 and 25 and insert the following:

(1) IN GENERAL.—There is authorized to be appropriated to the Secretary of Veterans

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SA 2831. Mr. COCHRAN submitted an amendment intended to be proposed by him to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table; as follows:

On page 9, strike lines 4 and 5 and insert the following:

(1) IN GENERAL.—There is authorized to be appropriated to the Secretary of Veterans

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SA 2832. Mr. HOEVEN (for himself and Mr. MANCHIN) submitted an amendment intended to be proposed to amendment SA 2789 proposed by Mrs. MURRAY to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table; as follows:

At the end of the amendment, add the following:

SEC. 19. KEYSTONE XL PERMIT APPROVAL.

(a) IN GENERAL.—Notwithstanding Executive Order No. 13337 (3 U.S.C. 301 note), Executive Order No. 11423 (3 U.S.C. 301 note), section 301 of title 3, United States Code, and any other Executive order or provision of law, no presidential permit shall be required for the pipeline described in the application filed on May 4, 2012, by TransCanada Corporation to the Department of State for the northern portion of the Keystone XL pipeline from the Canadian border to the South Dakota/Nebraska border.

(b) ENVIRONMENTAL IMPACT STATEMENT.—The final environmental impact statement issued by the Secretary of State on August 26, 2011, regarding the pipeline referred to in subsection (a), shall be considered to satisfy all requirements of the National Environment Policy Act of 1969 (42 U.S.C. 4321 et seq.).

(c) INTRASTATE PORTION.—Nothing in this section affects the ongoing work of the State of Nebraska with regard to the fully intrastate portion of the Keystone XL pipeline.

SA 2833. Ms. LANDRIEU submitted an amendment intended to be proposed to amendment SA 2789 proposed by Mrs. MURRAY to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

SEC. ___. VETERANS' BUSINESS CENTER PROGRAM; OFFICE OF VETERANS BUSINESS DEVELOPMENT.

(a) IN GENERAL.—Section 32 of the Small Business Act (15 U.S.C. 657b) is amended by striking subsection (f) and inserting the following:

''(f) ONLINE COORDINATION.—

''(1) DEFINITION.—In this subsection, the term 'veterans' assistance provider' means—

''(A) a veterans' business center established under subsection (g);

''(B) an employee of the Administration assigned to the Office of Veterans Business Development; and

''(C) a veterans business ownership representative designated under subsection (g)(13)(B).

''(2) ESTABLISHMENT.—The Associate Administrator shall establish an online mechanism to—

''(A) provide information that assists veterans' assistance providers in carrying out the activities of the veterans' assistance providers; and

''(B) coordinate and leverage the work of the veterans' assistance providers, including by allowing a veterans' assistance provider to—

''(i) distribute best practices and other materials;

''(ii) communicate with other veterans' assistance providers regarding the activities of the veterans' assistance provider on behalf of veterans; and

''(iii) pose questions to and request input from other veterans' assistance providers.

''(g) VETERANS' BUSINESS CENTER PROGRAM.—

''(1) DEFINITIONS.—In this subsection—

''(A) the term 'active duty' has the meaning given that term in section 101 of title 10, United States Code;

''(B) the term 'private nonprofit organization' means an entity that is described in section 501(c) of the Internal Revenue Code of 1986 and exempt from taxation under section 501(a) of such Code;

''(C) the term 'Reservist' means a member of a reserve component of the Armed Forces, as described in section 10101 of title 10, United States Code;

''(D) the term 'Service Corps of Retired Executives' means the Service Corps of Retired Executives authorized under section 8(b)(1);

''(E) the term 'small business concern owned and controlled by veterans'—

''(i) has the same meaning as in section 3(q); and

''(ii) includes a small business concern—

''(I) not less than 51 percent of which is owned by one or more spouses of veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more spouses of veterans; and

''(II) the management and daily business operations of which are controlled by one or more spouses of veterans;

''(F) the term 'spouse', relating to a veteran, service-disabled veteran, or Reservist, includes an individual who is the spouse of a veteran, service-disabled veteran, or Reservist on the date on which the veteran, service-disabled veteran, or Reservist died;

''(G) the term 'veterans' business center program' means the program established under paragraph (2)(A); and

''(H) the term 'women's business center' means a women's business center described in section 29.

''(2) PROGRAM ESTABLISHED.—

''(A) IN GENERAL.—The Administrator, acting through the Associate Administrator, shall establish a veterans' business center program, under which the Associate Administrator may provide financial assistance to a private nonprofit organization to conduct a 5-year project for the benefit of small business concerns owned and controlled by veterans, which may be renewed for one or more additional 5-year periods.

''(B) FORM OF FINANCIAL ASSISTANCE.—Financial assistance under this subsection may be in the form of a grant, a contract, or a cooperative agreement.

''(3) VETERANS' BUSINESS CENTERS.—Each private nonprofit organization that receives financial assistance under this subsection shall establish or operate a veterans' business center (which may include establishing or operating satellite offices in the region described in paragraph (5) served by that private nonprofit organization) that provides to veterans (including service-disabled veterans), Reservists, and the spouses of veterans (including service-disabled veterans) and Reservists—

''(A) financial advice, including training and counseling on applying for and securing business credit and investment capital, preparing and presenting financial statements, and managing cash flow and other financial operations of a small business concern;

''(B) management advice, including training and counseling on the planning, organization, staffing, direction, and control of each major activity and function of a small business concern;

''(C) marketing advice, including training and counseling on identifying and segmenting domestic and international market opportunities, preparing and executing marketing plans, developing pricing strategies, locating contract opportunities, negotiating contracts, and using public relations and advertising techniques; and

''(D) advice, including training and counseling, for Reservists and the spouses of Reservists.

''(4) APPLICATION.—

''(A) IN GENERAL.—A private nonprofit organization desiring to receive financial assistance under this subsection shall submit an application to the Associate Administrator at such time and in such manner as the Associate Administrator may require.

''(B) 5-YEAR PLAN.—Each application described in subparagraph (A) shall include a 5-year plan on proposed fundraising and training activities relating to the veterans' business center.

''(C) DETERMINATION AND NOTIFICATION.—Not later than 60 days after the date on which a private nonprofit organization submits an application under subparagraph (A), the Associate Administrator shall approve or deny the application and notify the applicant of the determination.

''(D) AVAILABILITY OF APPLICATION.—The Associate Administrator shall make every effort to make the application under subparagraph (A) available online.

''(5) ELIGIBILITY.—The Associate Administrator may select to receive financial assistance under this subsection—

''(A) a Veterans Business Outreach Center established by the Administrator under section 8(b)(17) on or before the day before the date of enactment of this subsection; or

''(B) private nonprofit organizations located in various regions of the United States, as the Associate Administrator determines is appropriate.

''(6) SELECTION CRITERIA.—

''(A) IN GENERAL.—The Associate Administrator shall establish selection criteria, stated in terms of relative importance, to evaluate and rank applicants under paragraph (5)(C) for financial assistance under this subsection.

''(B) CRITERIA.—The selection criteria established under this paragraph shall include—

''(i) the experience of the applicant in conducting programs or ongoing efforts designed to impart or upgrade the business skills of veterans, and the spouses of veterans, who own or may own small business concerns;

''(ii) for an applicant for initial financial assistance under this subsection—

''(I) the ability of the applicant to begin operating a veterans' business center within a minimum amount of time; and

''(II) the geographic region to be served by the veterans' business center;

''(iii) the demonstrated ability of the applicant to—

''(I) provide managerial counseling and technical assistance to entrepreneurs; and

''(II) coordinate services provided by veterans services organizations and other public or private entities; and

''(iv) for any applicant for a renewal of financial assistance under this subsection, the results of the most recent examination under paragraph (10) of the veterans' business center operated by the applicant.

''(C) CRITERIA PUBLICLY AVAILABLE.—The Associate Administrator shall—

''(i) make publicly available the selection criteria established under this paragraph; and

''(ii) include the criteria in each solicitation for applications for financial assistance under this subsection.

''(7) AMOUNT OF ASSISTANCE.—The amount of financial assistance provided under this subsection to a private nonprofit organization for each fiscal year shall be—

''(A) not less than $150,000; and

''(B) not more than $200,000.

''(8) FEDERAL SHARE.—

''(A) IN GENERAL.—

''(i) INITIAL FINANCIAL ASSISTANCE.—Except as provided in clause (ii) and subparagraph (E), a private nonprofit organization that receives financial assistance under this subsection shall provide non-Federal contributions for the operation of the veterans' business center established by the private nonprofit organization in an amount equal to—

''(I) in each of the first and second years of the project, not less than 33 percent of the amount of the financial assistance received under this subsection; and

''(II) in each of the third through fifth years of the project, not less than 50 percent of the amount of the financial assistance received under this subsection.

''(ii) RENEWALS.—A private nonprofit organization that receives a renewal of financial assistance under this subsection shall provide non-Federal contributions for the operation of the veterans' business center established by the private nonprofit organization in an amount equal to not less than 50 percent of the amount of the financial assistance received under this subsection.

''(B) FORM OF NON-FEDERAL SHARE.—Not more than 50 percent of the non-Federal share for a project carried out using financial assistance under this subsection may be in the form of in-kind contributions.

''(C) TIMING OF DISBURSEMENT.—The Associate Administrator may disburse not more than 25 percent of the financial assistance awarded to a private nonprofit organization before the private nonprofit organization obtains the non-Federal share required under this paragraph with respect to that award.

''(D) FAILURE TO OBTAIN NON-FEDERAL FUNDING.—

''(i) IN GENERAL.—If a private nonprofit organization that receives financial assistance under this subsection fails to obtain the non-Federal share required under this paragraph during any fiscal year, the private nonprofit organization may not receive a disbursement under this subsection in a subsequent fiscal year or a disbursement for any other project funded by the Administration, unless the Administrator makes a written determination that the private nonprofit organization will be able to obtain a non-Federal contribution.

''(ii) RESTORATION.—A private nonprofit organization prohibited from receiving a disbursement under clause (i) in a fiscal year may receive financial assistance in a subsequent fiscal year if the organization obtains the non-Federal share required under this paragraph for the subsequent fiscal year.

''(E) WAIVER OF NON-FEDERAL SHARE.—

''(i) IN GENERAL.—Upon request by a private nonprofit organization, and in accordance with this subparagraph, the Administrator may waive, in whole or in part, the requirement to obtain non-Federal funds under subparagraph (A) for a fiscal year. The Administrator may not waive the requirement for a private nonprofit organization to obtain non-Federal funds under this subparagraph for more than a total of 2 fiscal years.

''(ii) CONSIDERATIONS.—In determining whether to waive the requirement to obtain non-Federal funds under this subparagraph, the Administrator shall consider—

''(I) the economic conditions affecting the private nonprofit organization;

''(II) the impact a waiver under this subparagraph would have on the credibility of the veterans' business center program;

''(III) the demonstrated ability of the private nonprofit organization to raise non-Federal funds; and

''(IV) the performance of the private nonprofit organization.

''(iii) LIMITATION.—The Administrator may not waive the requirement to obtain non-Federal funds under this subparagraph if granting the waiver would undermine the credibility of the veterans' business center program.

''(9) CONTRACT AUTHORITY.—A veterans' business center may enter into a contract with a Federal department or agency to provide specific assistance to veterans, service-disabled veterans, Reservists, or the spouses of veterans, service-disabled veterans, or Reservists. Performance of such contract shall not hinder the veterans' business center in carrying out the terms of the grant received by the veterans' business centers from the Administrator.

''(10) EXAMINATION AND DETERMINATION OF VIABILITY.—

''(A) EXAMINATION.—

''(i) IN GENERAL.—The Associate Administrator shall conduct an annual examination of the programs and finances of each veterans' business center established or operated using financial assistance under this subsection.

''(ii) FACTORS.—In conducting the examination under clause (i), the Associate Administrator shall consider whether the veterans' business center has failed—

''(I) to provide the information required to be provided under subparagraph (B), or the information provided by the center is inadequate;

''(II) the center has failed to comply with a requirement for participation in the veterans' business center program, as determined by the Assistant Administrator, including—

''(aa) failure to acquire or properly document a non-Federal share;

''(bb) failure to establish an appropriate partnership or program for marketing and outreach to small business concerns;

''(cc) failure to achieve results described in a financial assistance agreement; and

''(dd) failure to provide to the Administrator a description of the amount and sources of any non-Federal funding received by the center;

''(III) to carry out the 5-year plan under in paragraph (4)(B); or

''(IV) to meet the eligibility requirements under paragraph (5).

''(B) INFORMATION PROVIDED.—In the course of an examination under subparagraph (A), the veterans' business center shall provide to the Associate Administrator—

''(i) an itemized cost breakdown of actual expenditures for costs incurred during the most recent full fiscal year;

''(ii) documentation of the amount of non-Federal contributions obtained and expended by the veterans' business center during the most recent full fiscal year; and

''(iii) with respect to any in-kind contribution under paragraph (8)(B), verification of the existence and valuation of such contributions.

''(C) DETERMINATION OF VIABILITY.—The Associate Administrator shall analyze the results of each examination under this paragraph and, based on that analysis, make a determination regarding the viability of the programs and finances of each veterans' business center.

''(D) DISCONTINUATION OF FUNDING.—

''(i) IN GENERAL.—The Associate Administrator may discontinue an award of financial assistance to a private nonprofit organization at any time if the Associate Administrator determines under subparagraph (C) that the veterans' business center operated by that organization is not viable.

''(ii) RESTORATION.—The Associate Administrator may continue to provide financial assistance to a private nonprofit organization in a subsequent fiscal year if the Associate Administrator determines under subparagraph (C) that the veterans' business center is viable.

''(11) PRIVACY REQUIREMENTS.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), a veterans' business center established or operated using financial assistance provided under this subsection may not disclose the name, address, or telephone number of any individual or small business

concern that receives advice from the veterans' business center without the consent of the individual or small business concern.

''(B) EXCEPTION.—A veterans' business center may disclose information described in subparagraph (A)—

''(i) if the Administrator or Associate Administrator is ordered to make such a disclosure by a court in any civil or criminal enforcement action initiated by a Federal or State agency; or

''(ii) to the extent that the Administrator or Associate Administrator determines that such a disclosure is necessary to conduct a financial audit of a veterans' business center.

''(C) ADMINISTRATION USE OF INFORMATION.—This paragraph does not—

''(i) restrict access by the Administrator to program activity data; or

''(ii) prevent the Administrator from using information not described in subparagraph (A) to conduct surveys of individuals or small business concerns that receive advice from a veterans' business center.

''(D) REGULATIONS.—The Administrator shall issue regulations to establish standards for requiring disclosures under subparagraph (B)(ii).

''(12) REPORT.—

''(A) IN GENERAL.—Not later than 60 days after the end of each fiscal year, the Associate Administrator shall submit to the Committee on Small Business and Entrepreneurship of the Senate and the Committee on Small Business of the House of Representatives a report on the effectiveness of the veterans' business center program in each region during the most recent full fiscal year.

''(B) CONTENTS.—Each report under this paragraph shall include, at a minimum, for each veterans' business center established or operated using financial assistance provided under this subsection—

''(i) the number of individuals receiving assistance from the veterans' business center, including the number of such individuals who are—

''(I) veterans or spouses of veterans;

''(II) service-disabled veterans or spouses of service-disabled veterans; or

''(III) Reservists or spouses of Reservists;

''(ii) the number of startup small business concerns formed by individuals receiving assistance from the veterans' business center, including—

''(I) veterans or spouses of veterans;

''(II) service-disabled veterans or spouses of service-disabled veterans; or

''(III) Reservists or spouses of Reservists;

''(iii) the gross receipts of small business concerns that receive advice from the veterans' business center;

''(iv) the employment increases or decreases of small business concerns that receive advice from the veterans' business center;

''(v) to the maximum extent practicable, the increases or decreases in profits of small business concerns that receive advice from the veterans' business center; and

''(vi) the results of the examination of the veterans' business center under paragraph (10).

''(13) COORDINATION OF EFFORTS AND CONSULTATION.—

''(A) COORDINATION AND CONSULTATION.—To the extent practicable, the Associate Administrator and each private nonprofit organization that receives financial assistance under this subsection shall—

''(i) coordinate outreach and other activities with other programs of the Administration and the programs of other Federal agencies;

''(ii) consult with technical representatives of the district offices of the Administration in carrying out activities using financial assistance under this subsection; and

''(iii) provide information to the veterans business ownership representatives designated under subparagraph (B) and coordinate with the veterans business ownership representatives to increase the ability of the veterans business ownership representatives to provide services throughout the area served by the veterans business ownership representatives.

''(B) VETERANS BUSINESS OWNERSHIP REPRESENTATIVES.—

''(i) DESIGNATION.—The Administrator shall designate not fewer than 1 individual in each district office of the Administration as a veterans business ownership representative, who shall communicate and coordinate activities of the district office with private nonprofit organizations that receive financial assistance under this subsection.

''(ii) INITIAL DESIGNATION.—The first individual in each district office of the Administration designated by the Administrator as a veterans business ownership representative under clause (i) shall be an individual that is employed by the Administration on the date of enactment of this subsection.

''(14) EXISTING CONTRACTS.—An award of financial assistance under this subsection shall not void any contract between a private nonprofit organization and the Administration that is in effect on the date of such award.

''(h) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated—

''(1) to carry out subsections (a) through (f), $2,000,000 for each of fiscal years 2013 through 2015; and

''(2) to carry out subsection (g)—

''(A) $8,000,000 for fiscal year 2013;

''(B) $8,500,000 for fiscal year 2014; and

''(C) $9,000,000 for fiscal year 2015.''.

(b) GAO REPORTS.—

(1) DEFINITIONS.—In this subsection—

(A) the terms ''small business concern'' and ''veteran'' have the meanings given those terms under section 3 of the Small Business Act (15 U.S.C. 632); and

(B) the terms ''Reservist'', ''small business concern owned and controlled by veterans'', and ''veterans' business center program'' have the meanings given those terms in section 32(g) of the Small Business Act, as added by this section.

(2) REPORT ON ACCESS TO CREDIT.—

(A) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the Comptroller General of the United States shall submit a report regarding the ability of small business concern owned and controlled by veterans to access credit to—

(i) the Committee on Veterans' Affairs and the Committee on Small Business and Entrepreneurship of the Senate; and

(ii) the Committee on Veterans' Affairs and the Committee on Small Business of the House of Representatives.

(B) CONTENTS.—The report submitted under subparagraph (A) shall include an analysis of—

(i) the sources of credit used by small business concerns owned and controlled by veterans and percentage of the credit obtained by small business concern owned and controlled by veterans that is obtained from each source;

(ii) the default rate for small business concerns owned and controlled by veterans separately for each source of credit described in clause (i), as compared to the default rate for the source of credit for small business concerns generally;

(iii) the Federal lending programs available to provide credit to small business concerns owned and controlled by veterans;

(iv) gaps, if any, in the availability of credit for small business concerns owned and controlled by veterans that are not being filled by the Federal Government or private sources;

(v) obstacles faced by veterans in trying to access credit;

(vi) the extent to which deployment and other military responsibilities affect the credit history of veterans and Reservists; and

(vii) the extent to which veterans are aware of Federal programs targeted towards helping veterans access credit.

(3) REPORT ON VETERANS' BUSINESS CENTER PROGRAM.—

(A) IN GENERAL.—Not later than 60 days after the end of the second fiscal year beginning after the date on which the veterans' business center program is established, the Comptroller General of the United States shall evaluate the effectiveness of the veterans' business center program, and submit to Congress a report on the results of that evaluation.

(B) CONTENTS.—The report submitted under subparagraph (A) shall include—

(i) an assessment of—

(I) the use of amounts made available to carry out the veterans' business center program;

(II) the effectiveness of the services provided by each private nonprofit organization receiving financial assistance under the veterans' business center program;

(III) whether the services described in clause (ii) are duplicative of services provided by other veteran service organizations, programs of the Small Business Administration, or programs of another Federal department or agency and, if so, recommendations regarding how to alleviate the duplication of the services; and

(IV) whether there are areas of the United States in which there are not adequate entrepreneurial services for small business concerns owned and controlled by veterans and, if so, whether there is a veterans' business center established under the veterans' business center program providing services to that area; and

(ii) recommendations, if any, for improving the veterans' business center program.

(c) REPORTING REQUIREMENT FOR INTERAGENCY TASK FORCE.—Section 32(c) of the Small Business Act (15 U.S.C. 657b(c)) is amended by adding at the end the following:

''(4) REPORT.—Not less frequently than twice each year, the Administrator shall submit to Congress a report on the appointments made to and activities of the task force.''.

SEC. ___. EXTENSION OF MODIFIED PENSION FOR CERTAIN VETERANS COVERED BY MEDICAID PLANS FOR SERVICES FURNISHED BY NURSING FACILITIES.

Section 5503(d)(7) of title 38, United States Code, is amended by striking ''September 30, 2016'' and inserting ''June 30, 2017''.

SA 2834. Ms. LANDRIEU submitted an amendment intended to be proposed by her to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. VETERANS TECHNOLOGY PILOT PROGRAM.

(a) DEFINITIONS.—In this section—

(1) the term ''Administrator'' means the Administrator of the General Services Administration;

(2) the term ''Executive department'' has the same meaning as in section 101 of title 5, United States Code;

(3) the term ''qualified veteran'' means a veteran who the Secretary determines is in need of access to a computer to search and apply for employment;

(4) the term ''Secretary'' means the Secretary of Veterans Affairs; and

(5) the term ''veteran'' has the meaning given that term in section 101 of title 38, United States Code.

(b) PILOT PROGRAM.—

(1) ESTABLISHMENT.—Not later than 120 days after the date of enactment of this Act, the Secretary, in coordination with the Administrator, shall establish a pilot program to provide to qualified veterans not less than 25 percent of the Government-owned computers that would otherwise be disposed of during each year at no cost or reduced cost.

(2) PURPOSES OF PROGRAM.—The pilot program established under paragraph (1) shall be designed to—

(A) encourage and facilitate employment opportunities for and the entrepreneurship of veterans;

(B) assist the Secretary of Labor in carrying out section 5 of this Act; and

(C) reduce the overall unemployment of veterans.

(3) TERMINATION.—The authority to carry out the pilot program under this subsection shall terminate 3 years after the date on which the Secretary establishes the pilot program.

(c) REPORT.—

(1) REPORT REQUIRED.—Not later than 180 days after the date of enactment of this Act, the Secretary, in coordination with the Administrator, shall submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a report describing—

(A) the number of Government-owned computers in the 5 largest Executive departments during the 2-year period ending on the date of enactment of this Act, including the number of working computers, nonworking computers, desktop computers, and laptop computers;

(B) the number of Government-owned computers disposed of by the 5 largest Executive departments during the 2-year period ending on the date of enactment of this Act, including the number of such computers that were working computers, nonworking computers, desktop computers, or laptop computers;

(C) the procedures of the 5 largest Executive departments for the disposal of Government-owned computers; and

(D) the plans of the Secretary, in coordination with the Administrator, for carrying out the pilot program under subsection (b), including any plans to give priority to veterans who are disabled.

(2) DETERMINATION OF LARGEST EXECUTIVE DEPARTMENTS.—For purposes of paragraph (1), the 5 largest Executive departments shall be determined on the basis of the number of employees of each Executive department and the total amount appropriated to each Executive department for the fiscal year preceding the date of enactment of this Act.

(d) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to the Secretary such sums as may be necessary to carry out this section.

SA 2835. Ms. LANDRIEU submitted an amendment intended to be proposed to amendment SA 2789 proposed by Mrs. MURRAY to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

SEC. ___. VETERANS' BUSINESS CENTER PROGRAM; OFFICE OF VETERANS BUSINESS DEVELOPMENT.

(a) IN GENERAL.—Section 32 of the Small Business Act (15 U.S.C. 657b) is amended by striking subsection (f) and inserting the following:

''(f) ONLINE COORDINATION.—

''(1) DEFINITION.—In this subsection, the term 'veterans' assistance provider' means—

''(A) a veterans' business center established under subsection (g);

''(B) an employee of the Administration assigned to the Office of Veterans Business Development; and

''(C) a veterans business ownership representative designated under subsection (g)(13)(B).

''(2) ESTABLISHMENT.—The Associate Administrator shall establish an online mechanism to—

''(A) provide information that assists veterans' assistance providers in carrying out the activities of the veterans' assistance providers; and

''(B) coordinate and leverage the work of the veterans' assistance providers, including by allowing a veterans' assistance provider to—

''(i) distribute best practices and other materials;

''(ii) communicate with other veterans' assistance providers regarding the activities of the veterans' assistance provider on behalf of veterans; and

''(iii) pose questions to and request input from other veterans' assistance providers.

''(g) VETERANS' BUSINESS CENTER PROGRAM.—

''(1) DEFINITIONS.—In this subsection—

''(A) the term 'active duty' has the meaning given that term in section 101 of title 10, United States Code;

''(B) the term 'private nonprofit organization' means an entity that is described in section 501(c) of the Internal Revenue Code of 1986 and exempt from taxation under section 501(a) of such Code;

''(C) the term 'Reservist' means a member of a reserve component of the Armed Forces, as described in section 10101 of title 10, United States Code;

''(D) the term 'Service Corps of Retired Executives' means the Service Corps of Retired Executives authorized under section 8(b)(1);

''(E) the term 'small business concern owned and controlled by veterans'—

''(i) has the same meaning as in section 3(q); and

''(ii) includes a small business concern—

''(I) not less than 51 percent of which is owned by one or more spouses of veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more spouses of veterans; and

''(II) the management and daily business operations of which are controlled by one or more spouses of veterans;

''(F) the term 'spouse', relating to a veteran, service-disabled veteran, or Reservist, includes an individual who is the spouse of a veteran, service-disabled veteran, or Reservist on the date on which the veteran, service-disabled veteran, or Reservist died;

''(G) the term 'veterans' business center program' means the program established under paragraph (2)(A); and

''(H) the term 'women's business center' means a women's business center described in section 29.

''(2) PROGRAM ESTABLISHED.—

''(A) IN GENERAL.—The Administrator, acting through the Associate Administrator, shall establish a veterans' business center program, under which the Associate Administrator may provide financial assistance to a private nonprofit organization to conduct a 5-year project for the benefit of small business concerns owned and controlled by veterans, which may be renewed for one or more additional 5-year periods.

''(B) FORM OF FINANCIAL ASSISTANCE.—Financial assistance under this subsection may be in the form of a grant, a contract, or a cooperative agreement.

''(3) VETERANS' BUSINESS CENTERS.—Each private nonprofit organization that receives financial assistance under this subsection shall establish or operate a veterans' business center (which may include establishing or operating satellite offices in the region described in paragraph (5) served by that private nonprofit organization) that provides to veterans (including service-disabled veterans), Reservists, and the spouses of veterans (including service-disabled veterans) and Reservists—

''(A) financial advice, including training and counseling on applying for and securing business credit and investment capital, preparing and presenting financial statements, and managing cash flow and other financial operations of a small business concern;

''(B) management advice, including training and counseling on the planning, organization, staffing, direction, and control of each major activity and function of a small business concern;

''(C) marketing advice, including training and counseling on identifying and segmenting domestic and international market opportunities, preparing and executing marketing plans, developing pricing strategies, locating contract opportunities, negotiating contracts, and using public relations and advertising techniques; and

''(D) advice, including training and counseling, for Reservists and the spouses of Reservists.

''(4) APPLICATION.—

''(A) IN GENERAL.—A private nonprofit organization desiring to receive financial assistance under this subsection shall submit an application to the Associate Administrator at such time and in such manner as the Associate Administrator may require.

''(B) 5-YEAR PLAN.—Each application described in subparagraph (A) shall include a 5-year plan on proposed fundraising and training activities relating to the veterans' business center.

''(C) DETERMINATION AND NOTIFICATION.—Not later than 60 days after the date on which a private nonprofit organization submits an application under subparagraph (A), the Associate Administrator shall approve or deny the application and notify the applicant of the determination.

''(D) AVAILABILITY OF APPLICATION.—The Associate Administrator shall make every effort to make the application under subparagraph (A) available online.

''(5) ELIGIBILITY.—The Associate Administrator may select to receive financial assistance under this subsection—

''(A) a Veterans Business Outreach Center established by the Administrator under section 8(b)(17) on or before the day before the date of enactment of this subsection; or

''(B) private nonprofit organizations located in various regions of the United States, as the Associate Administrator determines is appropriate.

''(6) SELECTION CRITERIA.—

''(A) IN GENERAL.—The Associate Administrator shall establish selection criteria, stated in terms of relative importance, to evaluate and rank applicants under paragraph (5)(C) for financial assistance under this subsection.

''(B) CRITERIA.—The selection criteria established under this paragraph shall include—

''(i) the experience of the applicant in conducting programs or ongoing efforts designed

to impart or upgrade the business skills of veterans, and the spouses of veterans, who own or may own small business concerns;

''(ii) for an applicant for initial financial assistance under this subsection—

''(I) the ability of the applicant to begin operating a veterans' business center within a minimum amount of time; and

''(II) the geographic region to be served by the veterans' business center;

''(iii) the demonstrated ability of the applicant to—

''(I) provide managerial counseling and technical assistance to entrepreneurs; and

''(II) coordinate services provided by veterans services organizations and other public or private entities; and

''(iv) for any applicant for a renewal of financial assistance under this subsection, the results of the most recent examination under paragraph (10) of the veterans' business center operated by the applicant.

''(C) CRITERIA PUBLICLY AVAILABLE.—The Associate Administrator shall—

''(i) make publicly available the selection criteria established under this paragraph; and

''(ii) include the criteria in each solicitation for applications for financial assistance under this subsection.

''(7) AMOUNT OF ASSISTANCE.—The amount of financial assistance provided under this subsection to a private nonprofit organization for each fiscal year shall be—

''(A) not less than $150,000; and

''(B) not more than $200,000.

''(8) FEDERAL SHARE.—

''(A) IN GENERAL.—

''(i) INITIAL FINANCIAL ASSISTANCE.—Except as provided in clause (ii) and subparagraph (E), a private nonprofit organization that receives financial assistance under this subsection shall provide non-Federal contributions for the operation of the veterans' business center established by the private nonprofit organization in an amount equal to—

''(I) in each of the first and second years of the project, not less than 33 percent of the amount of the financial assistance received under this subsection; and

''(II) in each of the third through fifth years of the project, not less than 50 percent of the amount of the financial assistance received under this subsection.

''(ii) RENEWALS.—A private nonprofit organization that receives a renewal of financial assistance under this subsection shall provide non-Federal contributions for the operation of the veterans' business center established by the private nonprofit organization in an amount equal to not less than 50 percent of the amount of the financial assistance received under this subsection.

''(B) FORM OF NON-FEDERAL SHARE.—Not more than 50 percent of the non-Federal share for a project carried out using financial assistance under this subsection may be in the form of in-kind contributions.

''(C) TIMING OF DISBURSEMENT.—The Associate Administrator may disburse not more than 25 percent of the financial assistance awarded to a private nonprofit organization before the private nonprofit organization obtains the non-Federal share required under this paragraph with respect to that award.

''(D) FAILURE TO OBTAIN NON-FEDERAL FUNDING.—

''(i) IN GENERAL.—If a private nonprofit organization that receives financial assistance under this subsection fails to obtain the non-Federal share required under this paragraph during any fiscal year, the private nonprofit organization may not receive a disbursement under this subsection in a subsequent fiscal year or a disbursement for any other project funded by the Administration, unless the Administrator makes a written determination that the private nonprofit organization will be able to obtain a non-Federal contribution.

''(ii) RESTORATION.—A private nonprofit organization prohibited from receiving a disbursement under clause (i) in a fiscal year may receive financial assistance in a subsequent fiscal year if the organization obtains the non-Federal share required under this paragraph for the subsequent fiscal year.

''(E) WAIVER OF NON-FEDERAL SHARE.—

''(i) IN GENERAL.—Upon request by a private nonprofit organization, and in accordance with this subparagraph, the Administrator may waive, in whole or in part, the requirement to obtain non-Federal funds under subparagraph (A) for a fiscal year. The Administrator may not waive the requirement for a private nonprofit organization to obtain non-Federal funds under this subparagraph for more than a total of 2 fiscal years.

''(ii) CONSIDERATIONS.—In determining whether to waive the requirement to obtain non-Federal funds under this subparagraph, the Administrator shall consider—

''(I) the economic conditions affecting the private nonprofit organization;

''(II) the impact a waiver under this subparagraph would have on the credibility of the veterans' business center program;

''(III) the demonstrated ability of the private nonprofit organization to raise non-Federal funds; and

''(IV) the performance of the private nonprofit organization.

''(iii) LIMITATION.—The Administrator may not waive the requirement to obtain non-Federal funds under this subparagraph if granting the waiver would undermine the credibility of the veterans' business center program.

''(9) CONTRACT AUTHORITY.—A veterans' business center may enter into a contract with a Federal department or agency to provide specific assistance to veterans, service-disabled veterans, Reservists, or the spouses of veterans, service-disabled veterans, or Reservists. Performance of such contract shall not hinder the veterans' business center in carrying out the terms of the grant received by the veterans' business centers from the Administrator.

''(10) EXAMINATION AND DETERMINATION OF VIABILITY.—

''(A) EXAMINATION.—

''(i) IN GENERAL.—The Associate Administrator shall conduct an annual examination of the programs and finances of each veterans' business center established or operated using financial assistance under this subsection.

''(ii) FACTORS.—In conducting the examination under clause (i), the Associate Administrator shall consider whether the veterans' business center has failed—

''(I) to provide the information required to be provided under subparagraph (B), or the information provided by the center is inadequate;

''(II) the center has failed to comply with a requirement for participation in the veterans' business center program, as determined by the Assistant Administrator, including—

''(aa) failure to acquire or properly document a non-Federal share;

''(bb) failure to establish an appropriate partnership or program for marketing and outreach to small business concerns;

''(cc) failure to achieve results described in a financial assistance agreement; and

''(dd) failure to provide to the Administrator a description of the amount and sources of any non-Federal funding received by the center;

''(III) to carry out the 5-year plan under in paragraph (4)(B); or

''(IV) to meet the eligibility requirements under paragraph (5).

''(B) INFORMATION PROVIDED.—In the course of an examination under subparagraph (A), the veterans' business center shall provide to the Associate Administrator—

''(i) an itemized cost breakdown of actual expenditures for costs incurred during the most recent full fiscal year;

''(ii) documentation of the amount of non-Federal contributions obtained and expended by the veterans' business center during the most recent full fiscal year; and

''(iii) with respect to any in-kind contribution under paragraph (8)(B), verification of the existence and valuation of such contributions.

''(C) DETERMINATION OF VIABILITY.—The Associate Administrator shall analyze the results of each examination under this paragraph and, based on that analysis, make a determination regarding the viability of the programs and finances of each veterans' business center.

''(D) DISCONTINUATION OF FUNDING.—

''(i) IN GENERAL.—The Associate Administrator may discontinue an award of financial assistance to a private nonprofit organization at any time if the Associate Administrator determines under subparagraph (C) that the veterans' business center operated by that organization is not viable.

''(ii) RESTORATION.—The Associate Administrator may continue to provide financial assistance to a private nonprofit organization in a subsequent fiscal year if the Associate Administrator determines under subparagraph (C) that the veterans' business center is viable.

''(11) PRIVACY REQUIREMENTS.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), a veterans' business center established or operated using financial assistance provided under this subsection may not disclose the name, address, or telephone number of any individual or small business concern that receives advice from the veterans' business center without the consent of the individual or small business concern.

''(B) EXCEPTION.—A veterans' business center may disclose information described in subparagraph (A)—

''(i) if the Administrator or Associate Administrator is ordered to make such a disclosure by a court in any civil or criminal enforcement action initiated by a Federal or State agency; or

''(ii) to the extent that the Administrator or Associate Administrator determines that such a disclosure is necessary to conduct a financial audit of a veterans' business center.

''(C) ADMINISTRATION USE OF INFORMATION.—This paragraph does not—

''(i) restrict access by the Administrator to program activity data; or

''(ii) prevent the Administrator from using information not described in subparagraph (A) to conduct surveys of individuals or small business concerns that receive advice from a veterans' business center.

''(D) REGULATIONS.—The Administrator shall issue regulations to establish standards for requiring disclosures under subparagraph (B)(ii).

''(12) REPORT.—

''(A) IN GENERAL.—Not later than 60 days after the end of each fiscal year, the Associate Administrator shall submit to the Committee on Small Business and Entrepreneurship of the Senate and the Committee on Small Business of the House of Representatives a report on the effectiveness of the veterans' business center program in each region during the most recent full fiscal year.

''(B) CONTENTS.—Each report under this paragraph shall include, at a minimum, for each veterans' business center established or operated using financial assistance provided under this subsection—

''(i) the number of individuals receiving assistance from the veterans' business center, including the number of such individuals who are—

''(I) veterans or spouses of veterans;

''(II) service-disabled veterans or spouses of service-disabled veterans; or

''(III) Reservists or spouses of Reservists;

''(ii) the number of startup small business concerns formed by individuals receiving assistance from the veterans' business center, including—

''(I) veterans or spouses of veterans;

''(II) service-disabled veterans or spouses of service-disabled veterans; or

''(III) Reservists or spouses of Reservists;

''(iii) the gross receipts of small business concerns that receive advice from the veterans' business center;

''(iv) the employment increases or decreases of small business concerns that receive advice from the veterans' business center;

''(v) to the maximum extent practicable, the increases or decreases in profits of small business concerns that receive advice from the veterans' business center; and

''(vi) the results of the examination of the veterans' business center under paragraph (10).

''(13) COORDINATION OF EFFORTS AND CONSULTATION.—

''(A) COORDINATION AND CONSULTATION.—To the extent practicable, the Associate Administrator and each private nonprofit organization that receives financial assistance under this subsection shall—

''(i) coordinate outreach and other activities with other programs of the Administration and the programs of other Federal agencies;

''(ii) consult with technical representatives of the district offices of the Administration in carrying out activities using financial assistance under this subsection; and

''(iii) provide information to the veterans business ownership representatives designated under subparagraph (B) and coordinate with the veterans business ownership representatives to increase the ability of the veterans business ownership representatives to provide services throughout the area served by the veterans business ownership representatives.

''(B) VETERANS BUSINESS OWNERSHIP REPRESENTATIVES.—

''(i) DESIGNATION.—The Administrator shall designate not fewer than 1 individual in each district office of the Administration as a veterans business ownership representative, who shall communicate and coordinate activities of the district office with private nonprofit organizations that receive financial assistance under this subsection.

''(ii) INITIAL DESIGNATION.—The first individual in each district office of the Administration designated by the Administrator as a veterans business ownership representative under clause (i) shall be an individual that is employed by the Administration on the date of enactment of this subsection.

''(14) EXISTING CONTRACTS.—An award of financial assistance under this subsection shall not void any contract between a private nonprofit organization and the Administration that is in effect on the date of such award.

''(h) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated—

''(1) to carry out subsections (a) through (f), $2,000,000 for each of fiscal years 2013 through 2015; and

''(2) to carry out subsection (g)—

''(A) $8,000,000 for fiscal year 2013;

''(B) $8,500,000 for fiscal year 2014; and

''(C) $9,000,000 for fiscal year 2015.''.

(b) GAO REPORTS.—

(1) DEFINITIONS.—In this subsection—

(A) the terms ''small business concern'' and ''veteran'' have the meanings given those terms under section 3 of the Small Business Act (15 U.S.C. 632); and

(B) the terms ''Reservist'', ''small business concern owned and controlled by veterans'', and ''veterans' business center program'' have the meanings given those terms in section 32(g) of the Small Business Act, as added by this section.

(2) REPORT ON ACCESS TO CREDIT.—

(A) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the Comptroller General of the United States shall submit a report regarding the ability of small business concern owned and controlled by veterans to access credit to—

(i) the Committee on Veterans' Affairs and the Committee on Small Business and Entrepreneurship of the Senate; and

(ii) the Committee on Veterans' Affairs and the Committee on Small Business of the House of Representatives.

(B) CONTENTS.—The report submitted under subparagraph (A) shall include an analysis of—

(i) the sources of credit used by small business concerns owned and controlled by veterans and percentage of the credit obtained by small business concern owned and controlled by veterans that is obtained from each source;

(ii) the default rate for small business concerns owned and controlled by veterans separately for each source of credit described in clause (i), as compared to the default rate for the source of credit for small business concerns generally;

(iii) the Federal lending programs available to provide credit to small business concerns owned and controlled by veterans;

(iv) gaps, if any, in the availability of credit for small business concerns owned and controlled by veterans that are not being filled by the Federal Government or private sources;

(v) obstacles faced by veterans in trying to access credit;

(vi) the extent to which deployment and other military responsibilities affect the credit history of veterans and Reservists; and

(vii) the extent to which veterans are aware of Federal programs targeted towards helping veterans access credit.

(3) REPORT ON VETERANS' BUSINESS CENTER PROGRAM.—

(A) IN GENERAL.—Not later than 60 days after the end of the second fiscal year beginning after the date on which the veterans' business center program is established, the Comptroller General of the United States shall evaluate the effectiveness of the veterans' business center program, and submit to Congress a report on the results of that evaluation.

(B) CONTENTS.—The report submitted under subparagraph (A) shall include—

(i) an assessment of—

(I) the use of amounts made available to carry out the veterans' business center program;

(II) the effectiveness of the services provided by each private nonprofit organization receiving financial assistance under the veterans' business center program;

(III) whether the services described in clause (ii) are duplicative of services provided by other veteran service organizations, programs of the Small Business Administration, or programs of another Federal department or agency and, if so, recommendations regarding how to alleviate the duplication of the services; and

(IV) whether there are areas of the United States in which there are not adequate entrepreneurial services for small business concerns owned and controlled by veterans and, if so, whether there is a veterans' business center established under the veterans' business center program providing services to that area; and

(ii) recommendations, if any, for improving the veterans' business center program.

(c) REPORTING REQUIREMENT FOR INTERAGENCY TASK FORCE.—Section 32(c) of the Small Business Act (15 U.S.C. 657b(c)) is amended by adding at the end the following:

''(4) REPORT.—Not less frequently than twice each year, the Administrator shall submit to Congress a report on the appointments made to and activities of the task force.''.

SA 2836. Mr. LIEBERMAN (for himself, Ms. COLLINS, Mr. CARPER, and Mr. BROWN, of Massachusetts) submitted an amendment intended to be proposed by him to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

TITLE II—FIRE GRANTS REAUTHORIZATION

SEC. 201. SHORT TITLE.

This title may be cited as the ''Fire Grants Reauthorization Act of 2012''.

SEC. 202. AMENDMENTS TO DEFINITIONS.

(a) IN GENERAL.—Section 4 of the Federal Fire Prevention and Control Act of 1974 (15 U.S.C. 2203) is amended—

(1) in paragraph (3), by inserting '', except as otherwise provided,'' after ''means'';

(2) in paragraph (4), by striking '' 'Director' means'' and all that follows through ''Agency;'' and inserting '' 'Administrator of FEMA' means the Administrator of the Federal Emergency Management Agency;'';

(3) in paragraph (5)—

(A) by inserting ''Indian tribe,'' after ''county,''; and

(B) by striking ''and 'firecontrol' '' and inserting ''and 'fire control' '';

(4) by redesignating paragraphs (6) through (9) as paragraphs (7) through (10), respectively;

(5) by inserting after paragraph (5), the following:

''(6) 'Indian tribe' has the meaning given that term in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 450b) and 'tribal' means of or pertaining to an Indian tribe;'';

(6) by redesignating paragraphs (9) and (10), as redesignated by paragraph (4), as paragraphs (10) and (11);

(7) by inserting after paragraph (8), as redesignated by paragraph (4), the following:

''(9) 'Secretary' means, except as otherwise provided, the Secretary of Homeland Security;''; and

(8) by amending paragraph (10), as redesignated by paragraph (6), to read as follows:

''(10) 'State' has the meaning given the term in section 2 of the Homeland Security Act of 2002 (6 U.S.C. 101).''.

(b) CONFORMING AMENDMENTS.—

(1) ADMINISTRATOR OF FEMA.—The Federal Fire Prevention and Control Act of 1974 (15 U.S.C. 2201 et seq.) is amended by striking ''Director'' each place it appears and inserting ''Administrator of FEMA''.

(2) ADMINISTRATOR OF FEMA'S AWARD.—Section 15 of such Act (15 U.S.C. 2214) is amended by striking ''Director's Award'' each place it appears and inserting ''Administrator's Award''.

SEC. 203. ASSISTANCE TO FIREFIGHTERS GRANTS.

Section 33 of the Federal Fire Prevention and Control Act of 1974 (15 U.S.C. 2229) is amended to read as follows:

"SEC. 33. FIREFIGHTER ASSISTANCE.

''(a) DEFINITIONS.—In this section:

''(1) ADMINISTRATOR OF FEMA.—The term 'Administrator of FEMA' means the Administrator of FEMA, acting through the Administrator.

''(2) AVAILABLE GRANT FUNDS.—The term 'available grant funds', with respect to a fiscal year, means those funds appropriated pursuant to the authorization of appropriations in subsection (q)(1) for such fiscal year less any funds used for administrative costs pursuant to subsection (q)(2) in such fiscal year.

''(3) CAREER FIRE DEPARTMENT.—The term 'career fire department' means a fire department that has an all-paid force of firefighting personnel other than paid-on-call firefighters.

''(4) COMBINATION FIRE DEPARTMENT.—The term 'combination fire department' means a fire department that has—

''(A) paid firefighting personnel; and

''(B) volunteer firefighting personnel.

''(5) FIREFIGHTING PERSONNEL.—The term 'firefighting personnel' means individuals, including volunteers, who are firefighters, officers of fire departments, or emergency medical service personnel of fire departments.

''(6) INSTITUTION OF HIGHER EDUCATION.—The term 'institution of higher education' has the meaning given such term in section 101 of the Higher Education Act of 1965 (20 U.S.C. 1001).

''(7) NONAFFILIATED EMS ORGANIZATION.—The term 'nonaffiliated EMS organization' means a public or private nonprofit emergency medical services organization that is not affiliated with a hospital and does not serve a geographic area in which the Administrator of FEMA finds that emergency medical services are adequately provided by a fire department.

''(8) PAID-ON-CALL.—The term 'paid-on-call' with respect to firefighting personnel means firefighting personnel who are paid a stipend for each event to which they respond.

''(9) VOLUNTEER FIRE DEPARTMENT.—The term 'volunteer fire department' means a fire department that has an all-volunteer force of firefighting personnel.

''(b) ASSISTANCE PROGRAM.—

''(1) AUTHORITY.—In accordance with this section, the Administrator of FEMA may award—

''(A) assistance to firefighters grants under subsection (c); and

''(B) fire prevention and safety grants and other assistance under subsection (d).

''(2) ADMINISTRATIVE ASSISTANCE.—The Administrator of FEMA shall—

''(A) establish specific criteria for the selection of grant recipients under this section; and

''(B) provide assistance with application preparation to applicants for such grants.

''(c) ASSISTANCE TO FIREFIGHTERS GRANTS.—

''(1) IN GENERAL.—The Administrator of FEMA may, in consultation with the chief executives of the States in which the recipients are located, award grants on a competitive basis directly to—

''(A) fire departments, for the purpose of protecting the health and safety of the public and firefighting personnel throughout the United States against fire, fire-related, and other hazards;

''(B) nonaffiliated EMS organizations to support the provision of emergency medical services; and

''(C) State fire training academies for the purposes described in subparagraphs (G), (H), and (I) of paragraph (3).

''(2) MAXIMUM GRANT AMOUNTS.—

''(A) POPULATION.—The Administrator of FEMA may not award a grant under this subsection in excess of amounts as follows:

''(i) In the case of a recipient that serves a jurisdiction with 100,000 people or fewer, the amount of the grant awarded to such recipient shall not exceed $1,000,000 in any fiscal year.

''(ii) In the case of a recipient that serves a jurisdiction with more than 100,000 people but not more than 500,000 people, the amount of the grant awarded to such recipient shall not exceed $2,000,000 in any fiscal year.

''(iii) In the case of a recipient that serves a jurisdiction with more than 500,000 but not more than 1,000,000 people, the amount of the grant awarded to such recipient shall not exceed $3,000,000 in any fiscal year.

''(iv) In the case of a recipient that serves a jurisdiction with more than 1,000,000 people but not more than 2,500,000 people, the amount of the grant awarded to such recipient shall not exceed $6,000,000 for any fiscal year.

''(v) In the case of a recipient that serves a jurisdiction with more than 2,500,000 people, the amount of the grant awarded to such recipient shall not exceed $9,000,000 in any fiscal year.

''(B) AGGREGATE.—

''(i) IN GENERAL.—Notwithstanding subparagraphs (A) and (B) and except as provided under clause (ii), the Administrator of FEMA may not award a grant under this subsection in a fiscal year in an amount that exceeds the amount that is one percent of the available grant funds in such fiscal year.

''(ii) EXCEPTION.—The Administrator of FEMA may waive the limitation in clause (i) with respect to a grant recipient if the Administrator of FEMA determines that such recipient has an extraordinary need for a grant in an amount that exceeds the limit under clause (i).

''(3) USE OF GRANT FUNDS.—Each entity receiving a grant under this subsection shall use the grant for one or more of the following purposes:

''(A) To train firefighting personnel in—

''(i) firefighting;

''(ii) emergency medical services and other emergency response (including response to natural disasters, acts of terrorism, and other man-made disasters);

''(iii) arson prevention and detection;

''(iv) maritime firefighting; or

''(v) the handling of hazardous materials.

''(B) To train firefighting personnel to provide any of the training described under subparagraph (A).

''(C) To fund the creation of rapid intervention teams to protect firefighting personnel at the scenes of fires and other emergencies.

''(D) To certify—

''(i) fire inspectors; and

''(ii) building inspectors—

''(I) whose responsibilities include fire safety inspections; and

''(II) who are employed by or serving as volunteers with a fire department.

''(E) To establish wellness and fitness programs for firefighting personnel to ensure that the firefighting personnel are able to carry out their duties as firefighters, including programs dedicated to raising awareness of, and prevention of, job-related mental health issues.

''(F) To fund emergency medical services provided by fire departments and nonaffiliated EMS organizations.

''(G) To acquire additional firefighting vehicles, including fire trucks and other apparatus.

''(H) To acquire additional firefighting equipment, including equipment for—

''(i) fighting fires with foam in remote areas without access to water; and

''(ii) communications, monitoring, and response to a natural disaster, act of terrorism, or other man-made disaster, including the use of a weapon of mass destruction.

''(I) To acquire personal protective equipment, including personal protective equipment—

''(i) prescribed for firefighting personnel by the Occupational Safety and Health Administration of the Department of Labor; or

''(ii) for responding to a natural disaster or act of terrorism or other man-made disaster, including the use of a weapon of mass destruction.

''(J) To modify fire stations, fire training facilities, and other facilities to protect the health and safety of firefighting personnel.

''(K) To educate the public about arson prevention and detection.

''(L) To provide incentives for the recruitment and retention of volunteer firefighting personnel for volunteer firefighting departments and other firefighting departments that utilize volunteers.

''(M) To support such other activities, consistent with the purposes of this subsection, as the Administrator of FEMA determines appropriate.

''(d) FIRE PREVENTION AND SAFETY GRANTS.—

''(1) IN GENERAL.—For the purpose of assisting fire prevention programs and supporting firefighter health and safety research and development, the Administrator of FEMA may, on a competitive basis—

''(A) award grants to fire departments;

''(B) award grants to, or enter into contracts or cooperative agreements with, national, State, local, tribal, or nonprofit organizations that are not fire departments and that are recognized for their experience and expertise with respect to fire prevention or fire safety programs and activities and firefighter research and development programs, for the purpose of carrying out—

''(i) fire prevention programs; and

''(ii) research to improve firefighter health and life safety; and

''(C) award grants to institutions of higher education, national fire service organizations, or national fire safety organizations to establish and operate fire safety research centers.

''(2) MAXIMUM GRANT AMOUNT.—A grant awarded under this subsection may not exceed $1,500,000 for a fiscal year.

''(3) USE OF GRANT FUNDS.—Each entity receiving a grant under this subsection shall use the grant for one or more of the following purposes:

''(A) To enforce fire codes and promote compliance with fire safety standards.

''(B) To fund fire prevention programs, including programs that educate the public about arson prevention and detection.

''(C) To fund wildland fire prevention programs, including education, awareness, and mitigation programs that protect lives, property, and natural resources from fire in the wildland-urban interface.

''(D) In the case of a grant awarded under paragraph (1)(C), to fund the establishment or operation of a fire safety research center for the purpose of significantly reducing the number of fire-related deaths and injuries among firefighters and the general public through research, development, and technology transfer activities.

''(E) To support such other activities, consistent with the purposes of this subsection, as the Administrator of FEMA determines appropriate.

''(4) LIMITATION.—None of the funds made available under this subsection may be provided to the Association of Community Organizations for Reform Now (ACORN) or any of its affiliates, subsidiaries, or allied organizations.

''(e) APPLICATIONS FOR GRANTS.—

''(1) IN GENERAL.—An entity seeking a grant under this section shall submit to the Administrator of FEMA an application therefor in such form and in such manner as the Administrator of FEMA determines appropriate.

''(2) ELEMENTS.—Each application submitted under paragraph (1) shall include the following:

''(A) A description of the financial need of the applicant for the grant.

''(B) An analysis of the costs and benefits, with respect to public safety, of the use for which a grant is requested.

''(C) An agreement to provide information to the national fire incident reporting system for the period covered by the grant.

''(D) A list of other sources of funding received by the applicant—

''(i) for the same purpose for which the application for a grant under this section was submitted; or

''(ii) from the Federal Government for other fire-related purposes.

''(E) Such other information as the Administrator of FEMA determines appropriate.

''(3) JOINT OR REGIONAL APPLICATIONS.—

''(A) IN GENERAL.—Two or more entities may submit an application under paragraph (1) for a grant under this section to fund a joint program or initiative, including acquisition of shared equipment or vehicles.

''(B) NONEXCLUSIVITY.—Applications under this paragraph may be submitted instead of or in addition to any other application submitted under paragraph (1).

''(C) GUIDANCE.—The Administrator of FEMA shall—

''(i) publish guidance on applying for and administering grants awarded for joint programs and initiatives described in subparagraph (A); and

''(ii) encourage applicants to apply for grants for joint programs and initiatives described in subparagraph (A) as the Administrator of FEMA determines appropriate to achieve greater cost effectiveness and regional efficiency.

''(f) PEER REVIEW OF GRANT APPLICATIONS.—

''(1) IN GENERAL.—The Administrator of FEMA shall, after consultation with national fire service and emergency medical services organizations, appoint fire service personnel to conduct peer reviews of applications received under subsection (e)(1).

''(2) APPLICABILITY OF FEDERAL ADVISORY COMMITTEE ACT.—The Federal Advisory Committee Act (5 U.S.C. App.) shall not apply to activities carried out pursuant to this subsection.

''(g) PRIORITIZATION OF GRANT AWARDS.—In awarding grants under this section, the Administrator of FEMA shall consider the following:

''(1) The findings and recommendations of the peer reviews carried out under subsection (f).

''(2) The degree to which an award will reduce deaths, injuries, and property damage by reducing the risks associated with fire-related and other hazards.

''(3) The extent of the need of an applicant for a grant under this section and the need to protect the United States as a whole.

''(4) The number of calls requesting or requiring a fire fighting or emergency medical response received by an applicant.

''(h) ALLOCATION OF GRANT AWARDS.—In awarding grants under this section, the Administrator of FEMA shall ensure that of the available grant funds in each fiscal year—

''(1) not less than 25 percent are awarded under subsection (c) to career fire departments;

''(2) not less than 25 percent are awarded under subsection (c) to volunteer fire departments;

''(3) not less than 25 percent are awarded under subsection (c) to combination fire departments and fire departments using paid-on-call firefighting personnel;

''(4) not less than 10 percent are available for open competition among career fire departments, volunteer fire departments, combination fire departments, and fire departments using paid-on-call firefighting personnel for grants awarded under subsection (c);

''(5) not less than 10 percent are awarded under subsection (d); and

''(6) not more than 2 percent are awarded under this section to nonaffiliated EMS organizations described in subsection (c)(1)(B).

''(i) ADDITIONAL REQUIREMENTS AND LIMITATIONS.—

''(1) FUNDING FOR EMERGENCY MEDICAL SERVICES.—Not less than 3.5 percent of the available grant funds for a fiscal year shall be awarded under this section for purposes described in subsection (c)(3)(F).

''(2) STATE FIRE TRAINING ACADEMIES.—

''(A) MAXIMUM SHARE.—Not more than 3 percent of the available grant funds for a fiscal year may be awarded under subsection (c)(1)(C).

''(B) MAXIMUM GRANT AMOUNT.—The Administrator of FEMA may not award a grant under subsection (c)(1)(C) to a State fire training academy in an amount that exceeds $1,000,000 in any fiscal year.

''(3) AMOUNTS FOR PURCHASING FIREFIGHTING VEHICLES.—Not more than 25 percent of the available grant funds for a fiscal year may be used to assist grant recipients to purchase vehicles pursuant to subsection (c)(3)(G).

''(j) FURTHER CONSIDERATIONS.—

''(1) ASSISTANCE TO FIREFIGHTERS GRANTS TO FIRE DEPARTMENTS.—In considering applications for grants under subsection (c)(1)(A), the Administrator of FEMA shall consider—

''(A) the extent to which the grant would enhance the daily operations of the applicant and the impact of such a grant on the protection of lives and property; and

''(B) a broad range of factors important to the applicant's ability to respond to fires and related hazards, such as the following:

''(i) Population served.

''(ii) Geographic response area.

''(iii) Hazards vulnerability.

''(iv) Call volume.

''(v) Financial situation, including unemployment rate of the area being served.

''(vi) Need for training or equipment.

''(2) APPLICATIONS FROM NONAFFILIATED EMS ORGANIZATIONS.—In the case of an application submitted under subsection (e)(1) by a nonaffiliated EMS organization, the Administrator of FEMA shall consider the extent to which other sources of Federal funding are available to the applicant to provide the assistance requested in such application.

''(3) AWARDING FIRE PREVENTION AND SAFETY GRANTS TO CERTAIN ORGANIZATIONS THAT ARE NOT FIRE DEPARTMENTS.—In the case of applicants for grants under this section who are described in subsection (d)(1)(B), the Administrator of FEMA shall give priority to applicants who focus on—

''(A) prevention of injuries to high risk groups from fire; and

''(B) research programs that demonstrate a potential to improve firefighter safety.

''(4) AWARDING GRANTS FOR FIRE SAFETY RESEARCH CENTERS.—

''(A) CONSIDERATIONS.—In awarding grants under subsection (d)(1)(C), the Administrator of FEMA shall—

''(i) select each grant recipient on—

''(I) the demonstrated research and extension resources available to the recipient to carry out the research, development, and technology transfer activities;

''(II) the capability of the recipient to provide leadership in making national contributions to fire safety;

''(III) the recipient's ability to disseminate the results of fire safety research; and

''(IV) the strategic plan the recipient proposes to carry out under the grant;

''(ii) give special consideration in selecting recipients under subparagraph (A) to an applicant for a grant that consists of a partnership between—

''(I) a national fire service organization or a national fire safety organization; and

''(II) an institution of higher education, including a minority-serving institution (as described in section 371(a) of the Higher Education Act of 1965 (20 U.S.C. 1067q(a))); and

''(iii) consider the research needs identified and prioritized through the workshop required by subparagraph (B)(i).

''(B) RESEARCH NEEDS.—

''(i) IN GENERAL.—Not later than 90 days after the date of the enactment of the Fire Grants Reauthorization Act of 2012, the Administrator of FEMA shall convene a workshop of the fire safety research community, fire service organizations, and other appropriate stakeholders to identify and prioritize fire safety research needs.

''(ii) PUBLICATION.—The Administrator of FEMA shall ensure that the results of the workshop are made available to the public.

''(C) LIMITATIONS ON GRANTS FOR FIRE SAFETY RESEARCH CENTERS.—

''(i) IN GENERAL.—The Administrator of FEMA may award grants under subsection (d) to establish not more than 3 fire safety research centers.

''(ii) RECIPIENTS.—An institution of higher education, a national fire service organization, and a national fire safety organization may not directly receive a grant under subsection (d) for a fiscal year for more than 1 fire safety research center.

''(5) AVOIDING DUPLICATION.—The Administrator of FEMA shall review lists submitted by applicants pursuant to subsection (e)(2)(D) and take such actions as the Administrator of FEMA considers necessary to prevent unnecessary duplication of grant awards.

''(k) MATCHING AND MAINTENANCE OF EXPENDITURE REQUIREMENTS.—

''(1) MATCHING REQUIREMENT FOR ASSISTANCE TO FIREFIGHTERS GRANTS.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), an applicant seeking a grant to carry out an activity under subsection (c) shall agree to make available non-Federal funds to carry out such activity in an amount equal to not less than 15 percent of the grant awarded to such applicant under such subsection.

''(B) EXCEPTION FOR ENTITIES SERVING SMALL COMMUNITIES.—In the case that an applicant seeking a grant to carry out an activity under subsection (c) serves a jurisdiction of—

''(i) more than 20,000 residents but not more than 1,000,000 residents, the application shall agree to make available non-Federal funds in an amount equal to not less than 10 percent of the grant awarded to such applicant under such subsection; and

''(ii) 20,000 residents or fewer, the applicant shall agree to make available non-Federal funds in an amount equal to not less than 5 percent of the grant awarded to such applicant under such subsection.

''(2) MATCHING REQUIREMENT FOR FIRE PREVENTION AND SAFETY GRANTS.—

''(A) IN GENERAL.—An applicant seeking a grant to carry out an activity under subsection (d) shall agree to make available non-Federal funds to carry out such activity in an amount equal to not less than 5 percent

of the grant awarded to such applicant under such subsection.

''(B) MEANS OF MATCHING.—An applicant for a grant under subsection (d) may meet the matching requirement under subparagraph (A) through direct funding, funding of complementary activities, or the provision of staff, facilities, services, material, or equipment.

''(3) MAINTENANCE OF EXPENDITURES.—An applicant seeking a grant under subsection (c) or (d) shall agree to maintain during the term of the grant the applicant's aggregate expenditures relating to the uses described in subsections (c)(3) and (d)(3) at not less than 80 percent of the average amount of such expenditures in the 2 fiscal years preceding the fiscal year in which the grant amounts are received.

''(4) WAIVER.—

''(A) IN GENERAL.—Except as provided in subparagraph (C)(ii), the Administrator of FEMA may waive or reduce the requirements of paragraphs (1), (2), and (3) in cases of demonstrated economic hardship.

''(B) GUIDELINES.—

''(i) IN GENERAL.—The Administrator of FEMA shall establish and publish guidelines for determining what constitutes economic hardship for purposes of this paragraph.

''(ii) CONSULTATION.—In developing guidelines under clause (i), the Administrator of FEMA shall consult with individuals who are—

''(I) recognized for expertise in firefighting, emergency medical services provided by fire services, or the economic affairs of State and local governments; and

''(II) members of national fire service organizations or national organizations representing the interests of State and local governments.

''(iii) CONSIDERATIONS.—In developing guidelines under clause (i), the Administrator of FEMA shall consider, with respect to relevant communities, the following:

''(I) Changes in rates of unemployment from previous years.

''(II) Whether the rates of unemployment of the relevant communities are currently and have consistently exceeded the annual national average rates of unemployment.

''(III) Changes in percentages of individuals eligible to receive food stamps from previous years.

''(IV) Such other factors as the Administrator of FEMA considers appropriate.

''(C) CERTAIN APPLICANTS FOR FIRE PREVENTION AND SAFETY GRANTS.—The authority under subparagraph (A) shall not apply with respect to a nonprofit organization that—

''(i) is described in subsection (d)(1)(B); and

''(ii) is not a fire department or emergency medical services organization.

''(l) GRANT GUIDELINES.—

''(1) GUIDELINES.—For each fiscal year, prior to awarding any grants under this section, the Administrator of FEMA shall publish in the Federal Register—

''(A) guidelines that describe—

''(i) the process for applying for grants under this section; and

''(ii) the criteria that will be used for selecting grant recipients; and

''(B) an explanation of any differences between such guidelines and the recommendations obtained under paragraph (2).

''(2) ANNUAL MEETING TO OBTAIN RECOMMENDATIONS.—

''(A) IN GENERAL.—For each fiscal year, the Administrator of FEMA shall convene a meeting of qualified members of national fire service organizations and, at the discretion of the Administrator of FEMA, qualified members of emergency medical service organizations to obtain recommendations regarding the following:

''(i) Criteria for the awarding of grants under this section.

''(ii) Administrative changes to the assistance program established under subsection (b).

''(B) QUALIFIED MEMBERS.—For purposes of this paragraph, a qualified member of an organization is a member who—

''(i) is recognized for expertise in firefighting or emergency medical services;

''(ii) is not an employee of the Federal Government; and

''(iii) in the case of a member of an emergency medical service organization, is a member of an organization that represents—

''(I) providers of emergency medical services that are affiliated with fire departments; or

''(II) nonaffiliated EMS providers.

''(3) APPLICABILITY OF FEDERAL ADVISORY COMMITTEE ACT.—The Federal Advisory Committee Act (5 U.S.C. App.) shall not apply to activities carried out under this subsection.

''(m) ACCOUNTING DETERMINATION.—Notwithstanding any other provision of law, for purposes of this section, equipment costs shall include all costs attributable to any design, purchase of components, assembly, manufacture, and transportation of equipment not otherwise commercially available.

''(n) ELIGIBLE GRANTEE ON BEHALF OF ALASKA NATIVE VILLAGES.—The Alaska Village Initiatives, a non-profit organization incorporated in the State of Alaska, shall be eligible to apply for and receive a grant or other assistance under this section on behalf of Alaska Native villages.

''(o) TRAINING STANDARDS.—If an applicant for a grant under this section is applying for such grant to purchase training that does not meet or exceed any applicable national voluntary consensus standards, including those developed under section 647 of the Post-Katrina Emergency Management Reform Act of 2006 (6 U.S.C. 747), the applicant shall submit to the Administrator of FEMA an explanation of the reasons that the training proposed to be purchased will serve the needs of the applicant better than training that meets or exceeds such standards.

''(p) ENSURING EFFECTIVE USE OF GRANTS.—

''(1) AUDITS.—The Administrator of FEMA may audit a recipient of a grant awarded under this section to ensure that—

''(A) the grant amounts are expended for the intended purposes; and

''(B) the grant recipient complies with the requirements of subsection (k).

''(2) PERFORMANCE ASSESSMENT.—

''(A) IN GENERAL.—The Administrator of FEMA shall develop and implement a performance assessment system, including quantifiable performance metrics, to evaluate the extent to which grants awarded under this section are furthering the purposes of this section, including protecting the health and safety of the public and firefighting personnel against fire and fire-related hazards.

''(B) CONSULTATION.—The Administrator of FEMA shall consult with fire service representatives and with the Comptroller General of the United States in developing the assessment system required by subparagraph (A).

''(3) ANNUAL REPORTS TO ADMINISTRATOR OF FEMA.—Not less frequently than once each year during the term of a grant awarded under this section, the recipient of the grant shall submit to the Administrator of FEMA an annual report describing how the recipient used the grant amounts.

''(4) ANNUAL REPORTS TO CONGRESS.—

''(A) IN GENERAL.—Not later than September 30, 2013, and each year thereafter through 2017, the Administrator of FEMA shall submit to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Science and Technology of the House of Representatives a report that provides—

''(i) information on the performance assessment system developed under paragraph (2); and

''(ii) using the performance metrics developed under such paragraph, an evaluation of the effectiveness of the grants awarded under this section.

''(B) ADDITIONAL INFORMATION.—The report due under subparagraph (A) on September 30, 2016, shall also include recommendations for legislative changes to improve grants under this section.

''(q) AUTHORIZATION OF APPROPRIATIONS.—

''(1) IN GENERAL.—There is authorized to be appropriated to carry out this section—

''(A) $750,000,000 for fiscal year 2013; and

''(B) for each of fiscal years 2014 through 2017, an amount equal to the amount authorized for the previous fiscal year increased by the percentage by which—

''(i) the Consumer Price Index (all items, United States city average) for the previous fiscal year, exceeds

''(ii) the Consumer Price Index for the fiscal year preceding the fiscal year described in clause (i).

''(2) ADMINISTRATIVE EXPENSES.—Of the amounts appropriated pursuant to paragraph (1) for a fiscal year, the Administrator of FEMA may use not more than 5 percent of such amounts for salaries and expenses and other administrative costs incurred by the Administrator of FEMA in the course of awarding grants and providing assistance under this section.

''(3) CONGRESSIONALLY DIRECTED SPENDING.—Consistent with the requirements in subsections (c)(1) and (d)(1) that grants under those subsections be awarded on a competitive basis, none of the funds appropriated pursuant to this subsection may be used for any congressionally directed spending item (as defined under the rules of the Senate and the House of Representatives).

''(r) SUNSET OF AUTHORITIES.—The authority to award assistance and grants under this section shall expire on the date that is 10 years after the date of the enactment of the Fire Grants Reauthorization Act of 2012.''.

SEC. 204. STAFFING FOR ADEQUATE FIRE AND EMERGENCY RESPONSE.

(a) IMPROVEMENTS TO HIRING GRANTS.—

(1) TERM OF GRANTS.—Subparagraph (B) of section 34(a)(1) of the Federal Fire Prevention and Control Act of 1974 (15 U.S.C. 2229a(a)(1)) is amended to read as follows:

''(B) Grants made under this paragraph shall be for 3 years and be used for programs to hire new, additional firefighters.''.

(2) LIMITATION OF PORTION OF COSTS OF HIRING FIREFIGHTERS.—Subparagraph (E) of such section is amended to read as follows:

''(E) The portion of the costs of hiring firefighters provided by a grant under this paragraph may not exceed—

''(i) 75 percent in the first year of the grant;

''(ii) 75 percent in the second year of the grant; and

''(iii) 35 percent in the third year of the grant.''.

(b) CLARIFICATION REGARDING ELIGIBLE ENTITIES FOR RECRUITMENT AND RETENTION GRANTS.—The second sentence of section 34(a)(2) of such Act (15 U.S.C. 2229a(a)(2)) is amended by striking ''organizations on a local or statewide basis'' and inserting ''national, State, local, or tribal organizations''.

(c) MAXIMUM AMOUNT FOR HIRING A FIREFIGHTER.—Paragraph (4) of section 34(c) of such Act (15 U.S.C. 2229a(c)) is amended to read as follows:

''(4) The amount of funding provided under this section to a recipient fire department for hiring a firefighter in any fiscal year may not exceed—

''(A) in the first year of the grant, 75 percent of the usual annual cost of a first-year firefighter in that department at the time the grant application was submitted;

''(B) in the second year of the grant, 75 percent of the usual annual cost of a first-year firefighter in that department at the time the grant application was submitted; and

''(C) in the third year of the grant, 35 percent of the usual annual cost of a first-year firefighter in that department at the time the grant application was submitted.''.

(d) WAIVERS.—Section 34 of such Act (15 U.S.C. 2229a) is amended—

(1) by redesignating subsections (d) through (i) as subsections (e) through (j), respectively; and

(2) by inserting after subsection (c) the following:

''(d) WAIVERS.—

''(1) IN GENERAL.—In a case of demonstrated economic hardship, the Administrator of FEMA may—

''(A) waive the requirements of subsection (c)(1); or

''(B) waive or reduce the requirements in subsection (a)(1)(E) or subsection (c)(2).

''(2) GUIDELINES.—

''(A) IN GENERAL.—The Administrator of FEMA shall establish and publish guidelines for determining what constitutes economic hardship for purposes of paragraph (1).

''(B) CONSULTATION.—In developing guidelines under subparagraph (A), the Administrator of FEMA shall consult with individuals who are—

''(i) recognized for expertise in firefighting, emergency medical services provided by fire services, or the economic affairs of State and local governments; and

''(ii) members of national fire service organizations or national organizations representing the interests of State and local governments.

''(C) CONSIDERATIONS.—In developing guidelines under subparagraph (A), the Administrator of FEMA shall consider, with respect to relevant communities, the following:

''(i) Changes in rates of unemployment from previous years.

''(ii) Whether the rates of unemployment of the relevant communities are currently and have consistently exceeded the annual national average rates of unemployment.

''(iii) Changes in percentages of individuals eligible to receive food stamps from previous years.

''(iv) Such other factors as the Administrator of FEMA considers appropriate.''.

(e) IMPROVEMENTS TO PERFORMANCE EVALUATION REQUIREMENTS.—Subsection (e) of section 34 of such Act (15 U.S.C. 2229a), as redesignated by subsection (d)(1) of this section, is amended by inserting before the first sentence the following:

''(1) IN GENERAL.—The Administrator of FEMA shall establish a performance assessment system, including quantifiable performance metrics, to evaluate the extent to which grants awarded under this section are furthering the purposes of this section.

''(2) SUBMITTAL OF INFORMATION.—''.

(f) REPORT.—

(1) IN GENERAL.—Subsection (f) of section 34 of such Act (15 U.S.C. 2229a), as redesignated by subsection (d)(1) of this section, is amended by striking ''The authority'' and all that follows through ''Congress concerning'' and inserting the following: ''Not later than September 30, 2014, the Administrator of FEMA shall submit to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Science and Technology of the House of Representatives a report on''.

(2) CONFORMING AMENDMENT.—The heading for subsection (f) of section 34 of such Act (15 U.S.C. 2229a), as redesignated by subsection (d)(1) of this section, is amended by striking ''SUNSET AND REPORTS'' and inserting ''REPORT''.

(g) ADDITIONAL DEFINITIONS.—

(1) IN GENERAL.—Subsection (i) of section 34 of such Act (15 U.S.C. 2229a), as redesignated by subsection (d)(1) of this section, is amended—

(A) in the matter before paragraph (1), by striking ''In this section, the term—'' and inserting ''In this section:'';

(B) in paragraph (1)—

(i) by inserting ''The term'' before '' 'firefighter' has''; and

(ii) by striking ''; and'' and inserting a period;

(C) by striking paragraph (2); and

(D) by inserting at the end the following:

''(2) The terms 'Administrator of FEMA', 'career fire department', 'combination fire department', and 'volunteer fire department' have the meanings given such terms in section 33(a).''.

(2) CONFORMING AMENDMENT.—Section 34(a)(1)(A) of such Act (15 U.S.C. 2229a(a)(1)(A)) is amended by striking ''career, volunteer, and combination fire departments'' and inserting ''career fire departments, combination fire departments, and volunteer fire departments''.

(h) AUTHORIZATION OF APPROPRIATIONS.—

(1) IN GENERAL.—Subsection (j) of section 34 of such Act (15 U.S.C. 2229a), as redesignated by subsection (d)(1) of this section, is amended—

(A) in paragraph (6), by striking ''and'' at the end;

(B) in paragraph (7), by striking the period at the end and inserting ''; and''; and

(C) by adding at the end the following:

''(8) $750,000,000 for fiscal year 2013; and

''(9) for each of fiscal years 2014 through 2017, an amount equal to the amount authorized for the previous fiscal year increased by the percentage by which—

''(A) the Consumer Price Index (all items, United States city average) for the previous fiscal year, exceeds

''(B) the Consumer Price Index for the fiscal year preceding the fiscal year described in subparagraph (A).''.

(2) ADMINISTRATIVE EXPENSES.—Such subsection (j) is further amended—

(A) in paragraph (9), as added by paragraph (1) of this subsection, by redesignating subparagraphs (A) and (B) as clauses (i) and (ii), respectively, and moving the left margin of such clauses, as so redesignated, 2 ems to the right;

(B) by redesignating paragraphs (1) through (9) as subparagraphs (A) through (I), respectively, and moving the left margin of such subparagraphs, as so redesignated, 2 ems to the right;

(C) by striking ''There are'' and inserting the following:

''(1) IN GENERAL.—There are''; and

(D) by adding at the end the following:

''(2) ADMINISTRATIVE EXPENSES.—Of the amounts appropriated pursuant to paragraph (1) for a fiscal year, the Administrator of FEMA may use not more than 5 percent of such amounts to cover salaries and expenses and other administrative costs incurred by the Administrator of FEMA to make grants and provide assistance under this section.''.

(3) CONGRESSIONALLY DIRECTED SPENDING.—Such subsection (j) is further amended by adding at the end the following:

''(3) CONGRESSIONALLY DIRECTED SPENDING.—Consistent with the requirement in subsection (a) that grants under this section be awarded on a competitive basis, none of the funds appropriated pursuant to this subsection may be used for any congressionally direct spending item (as defined under the rules of the Senate and the House of Representatives).''.

(i) TECHNICAL AMENDMENT.—Section 34 of such Act (15 U.S.C. 2229a) is amended by striking ''Administrator'' each place it appears and inserting ''Administrator of FEMA''.

(j) CLERICAL AMENDMENT.—Such section is further amended in the heading by striking ''expansion of pre-september 11, 2001, fire grant program'' and inserting the following: ''staffing for adequate fire and emergency response''.

(k) SUNSET OF AUTHORITY TO AWARD HIRING GRANTS.—Such section is further amended by adding at the end the following:

''(k) SUNSET OF AUTHORITIES.—The authority to award assistance and grants under this section shall expire on the date that is 10 years after the date of the enactment of the Fire Grants Reauthorization Act of 2012.''.

SEC. 205. SENSE OF CONGRESS ON VALUE AND FUNDING OF ASSISTANCE TO FIREFIGHTERS AND STAFFING FOR ADEQUATE FIRE AND EMERGENCY RESPONSE PROGRAMS.

It is the sense of Congress that—

(1) the grants and assistance awarded under sections 33 and 34 of the Federal Fire Prevention and Control Act of 1974 (15 U.S.C. 2229 and 2229a) have proven equally valuable in protecting the health and safety of the public and firefighting personnel throughout the United States against fire and fire-related hazards; and

(2) providing parity in funding for the awarding of grants and assistance under both such sections will ensure that the grant and assistance programs under such sections can continue to serve their complementary purposes.

SEC. 206. REPORT ON AMENDMENTS TO ASSISTANCE TO FIREFIGHTERS AND STAFFING FOR ADEQUATE FIRE AND EMERGENCY RESPONSE PROGRAMS.

(a) IN GENERAL.—Not later than September 30, 2016, the Comptroller General of the United States shall submit to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Science and Technology of the House of Representatives a report on the effect of the amendments made by this title.

(b) CONTENTS.—The report required by subsection (a) shall include the following:

(1) An assessment of the effect of the amendments made by sections 203 and 204 on the effectiveness, relative allocation, accountability, and administration of the grants and assistance awarded under sections 33 and 34 of the Federal Fire Prevention and Control Act of 1974 (15 U.S.C. 2229 and 2229a) after the date of the enactment of this Act.

(2) An evaluation of the extent to which the amendments made by sections 203 and 204 have enabled recipients of grants and assistance awarded under such sections 33 and 34 after the date of the enactment of this Act to mitigate fire and fire-related and other hazards more effectively.

SEC. 207. STUDIES AND REPORTS ON THE STATE OF FIRE SERVICES.

(a) DEFINITIONS.—In this section:

(1) ADMINISTRATOR.—The term ''Administrator'' means the Administrator of the United States Fire Administration.

(2) CAREER FIRE DEPARTMENT, COMBINATION FIRE DEPARTMENT, VOLUNTEER FIRE DEPARTMENT.—The terms ''career fire department'', ''combination fire department'', and ''volunteer fire department'' have the meanings given such terms in section 33(a) of the Federal Fire Prevention and Control Act of 1974 (15 U.S.C. 2229(a)), as amended by section 203.

(3) FIRE SERVICE.—The term ''fire service'' has the meaning given such term in section 4 of the Federal Fire Prevention and Control Act of 1974 (15 U.S.C. 2203).

(b) STUDY AND REPORT ON COMPLIANCE WITH STAFFING STANDARDS.—

(1) STUDY.—The Administrator shall conduct a study on the level of compliance with national voluntary consensus standards for staffing, training, safe operations, personal protective equipment, and fitness among the fire services of the United States.

(2) SURVEY.—

(A) IN GENERAL.—In carrying out the study required by paragraph (1), the Administrator shall carry out a survey of fire services to assess the level of compliance of such fire services with the standards described in such paragraph.

(B) ELEMENTS.—The survey required by subparagraph (A) shall—

(i) include career fire departments, volunteer fire departments, combination fire departments, and fire departments serving communities of different sizes, and such other distinguishing factors as the Administrator considers relevant;

(ii) employ methods to ensure that the survey accurately reflects the actual rate of compliance with the standards described in paragraph (1) among fire services; and

(iii) determine the extent of barriers and challenges to achieving compliance with the standards described in paragraph (1) among fire services.

(C) AUTHORITY TO CARRY OUT SURVEY WITH NONPROFIT.—If the Administrator determines that it will reduce the costs incurred by the United States Fire Administration in carrying out the survey required by subparagraph (A), the Administrator may carry out such survey in conjunction with a nonprofit organization that has substantial expertise and experience in the following areas:

(i) The fire services.

(ii) National voluntary consensus standards.

(iii) Contemporary survey methods.

(3) REPORT ON FINDINGS OF STUDY.—

(A) IN GENERAL.—Not later than 2 years after the date of the enactment of this Act, the Administrator shall submit to Congress a report on the findings of the Administrator with respect to the study required by paragraph (1).

(B) CONTENTS.—The report required by subparagraph (A) shall include the following:

(i) An accurate description, based on the results of the survey required by paragraph (2)(A), of the rate of compliance with the standards described in paragraph (1) among United States fire services, including a comparison of the rates of compliance among career fire departments, volunteer fire departments, combination fire departments, and fire departments serving communities of different sizes, and such other comparisons as Administrator considers relevant.

(ii) A description of the challenges faced by different types of fire departments and different types of communities in complying with the standards described in paragraph (1).

(c) TASK FORCE TO ENHANCE FIREFIGHTER SAFETY.—

(1) ESTABLISHMENT.—Not later than 60 days after the date of the enactment of this Act, the Secretary of Homeland Security shall establish a task force to be known as the ''Task Force to Enhance Firefighter Safety'' (in this subsection referred to as the ''Task Force'').

(2) MEMBERSHIP.—

(A) IN GENERAL.—Members of the Task Force shall be appointed by the Secretary from among the general public and shall include the following:

(i) Representatives of national organizations representing firefighters and fire chiefs.

(ii) Individuals representing standards-setting and accrediting organizations, including representatives from the voluntary consensus codes and standards development community.

(iii) Such other individuals as the Secretary considers appropriate.

(B) REPRESENTATIVES OF OTHER DEPARTMENTS AND AGENCIES.—The Secretary may invite representatives of other Federal departments and agencies that have an interest in fire services to participate in the meetings and other activities of the Task Force.

(C) NUMBER; TERMS OF SERVICE; PAY AND ALLOWANCES.—The Secretary shall determine the number, terms of service, and pay and allowances of members of the Task Force appointed by the Secretary, except that a term of service of any such member may not exceed 2 years.

(3) RESPONSIBILITIES.—The Task Force shall—

(A) consult with the Secretary in the conduct of the study required by subsection (b)(1); and

(B) develop a plan to enhance firefighter safety by increasing fire service compliance with the standards described in subsection (b)(1), including by—

(i) reviewing and evaluating the report required by subsection (b)(3)(A) to determine the extent of and barriers to achieving compliance with the standards described in subsection (b)(1) among fire services; and

(ii) considering ways in which the Federal Government, States, and local governments can promote or encourage fire services to comply with such standards.

(4) REPORT.—

(A) IN GENERAL.—Not later than 180 days after the date on which the Secretary submits the report required by subsection (b)(3)(A), the Task Force shall submit to Congress and the Secretary a report on the activities and findings of the Task Force.

(B) CONTENTS.—The report required by subparagraph (A) shall include the following:

(i) The findings and recommendations of the Task Force with respect to the study carried out under subsection (b)(1).

(ii) The plan developed under paragraph (3)(B).

(d) STUDY AND REPORT ON THE NEEDS OF FIRE SERVICES.—

(1) STUDY.—The Administrator shall conduct a study—

(A) to define the current roles and activities associated with fire services on a national, State, regional, and local level;

(B) to identify the equipment, staffing, and training required to fulfill the roles and activities defined under subparagraph (A);

(C) to conduct an assessment to identify gaps between what fire services currently possess and what they require to meet the equipment, staffing, and training needs identified under subparagraph (B) on a national and State-by-State basis; and

(D) to measure the impact of the grant and assistance program under section 33 of the Federal Fire Prevention and Control Act of 1974 (15 U.S.C. 2229) in meeting the needs of fire services and filling the gaps identified under subparagraph (C).

(2) REPORT.—Not later than 2 years after the date of the enactment of this title, the Administrator shall submit to Congress a report on the findings of the Administrator with respect to the study conducted under paragraph (1).

(e) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to the Administrator to carry out this section—

(1) $600,000 for fiscal year 2013; and

(2) $600,000 for fiscal year 2014.

SA 2837. Ms. LANDRIEU (for herself, Ms. SNOWE, and Mrs. SHAHEEN) submitted an amendment intended to be proposed by her to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. LOW-INTEREST REFINANCING UNDER THE LOCAL DEVELOPMENT BUSINESS LOAN PROGRAM.

Section 1122(b) of the Small Business Jobs Act of 2010 (15 U.S.C. 696 note) is amended by striking ''2 years'' and inserting ''3 years and 6 months''.

SA 2838. Mr. PAUL submitted an amendment intended to be proposed by him to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. TRANSFER OF AMOUNTS APPROPRIATED FOR ASSISTANCE TO PAKISTAN, YEMEN, EGYPT, AND LIBYA.

Of the amounts appropriated or otherwise made available for fiscal year 2012 for direct United States assistance to the Governments of Pakistan, Yemen, Egypt, or Libya that remain available for expenditure as of the date of the enactment of this Act—

(1) the President shall transfer 50 percent to the Secretary of Veterans Affairs for purposes of the veterans job corps; and

(2) the President shall transfer 50 percent to the Treasury of the United States to be used for deficit reduction.

SEC. ___. LIMITATION ON FOREIGN ASSISTANCE TO PAKISTAN.

No amounts may be obligated or expended to provide any direct United States assistance to the Government of Pakistan unless the President certifies to Congress that—

(1) Dr. Shakil Afridi has been released from prison in Pakistan;

(2) any criminal charges brought against Dr. Afridi, including treason, have been dropped; and

(3) if necessary to ensure his freedom, Dr. Afridi has been allowed to leave Pakistan.

SEC. ___. LIMITATION ON FOREIGN ASSISTANCE TO YEMEN, EGYPT, AND LIBYA.

(a) PROHIBITION.—Except as provided under subsection (b), no amounts may be obligated or expended to provide any direct United States assistance, loan guarantee, or debt relief to the Government of Yemen, the Government of Egypt, or the Government of Libya.

(b) WAIVER AND CERTIFICATION.—Beginning 60 days after the date of the enactment of this Act, the President may waive the prohibition under subsection (a) with respect to the Government of Yemen, the Government of Libya, or the Government of Egypt if the President certifies to Congress that—

(1) the Government is cooperating or has cooperated fully with investigations into the September 12, 2012, attack on the United States Embassy in Sanaa, Yemen, the September 11, 2012, attack on the United States consulate in Benghazi, Libya, or the September 11, 2012, attack on the United States Embassy in Cairo, Egypt, as the case may be; and

(2) all identifiable persons associated with organizing, planning, or participating in the attack—

(A) have been identified by the Federal Bureau of Investigations or the Central Intelligence Agency and arrested by local authorities; and

(B) have been transferred to United States custody.

(c) REPORT ON UNSECURED WEAPONS IN LIBYA.—Not later than 90 days after the date of the enactment of this Act, the President shall submit a report to Congress examining the extent to which advanced weaponry remaining unsecured after the fall of Moammar Qaddafi was used by the individuals responsible for the September 11, 2012, attack on the United States consulate in Benghazi, Libya.

SEC. ___. USE OF SAVINGS FROM LIMITATIONS ON ASSISTANCE.

Of the amounts saved as a result of the prohibitions on assistance in the immediately preceding section—

(1) 50 percent shall be made available to the Secretary of Veterans Affairs for purposes of the veterans job corps; and

(2) 50 percent shall be used for deficit reduction.

SA 2839. Mr. HATCH submitted an amendment intended to be proposed to amendment SA 2782 submitted by Mr. BURR and intended to be proposed to the bill S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

SEC. 10. FEDERAL EMPLOYEES RETIREMENT SYSTEM AGE AND RETIREMENT TREATMENT FOR CERTAIN RETIREES OF THE ARMED FORCES.

(a) INCREASE IN MAXIMUM AGE LIMIT FOR POSITIONS SUBJECT TO FERS.—

(1) LAW ENFORCEMENT OFFICERS.—Section 3307(e) of title 5, United States Code, is amended—

(A) in paragraph (1), by inserting ''or (3)'' after ''paragraph (2)''; and

(B) by adding at the end the following:

''(3) The maximum age limit for an original appointment to a position as a law enforcement officer (as defined in section 8401(17)) shall be 47 years of age, in the case of an individual who on the effective date of such appointment is eligible to receive retired pay or retainer pay for military service, or pension or compensation from the Department of Veterans Affairs instead of such retired or retainer pay.''.

(2) OTHER POSITIONS.—The maximum age limit for an original appointment to a position as a member of the Capitol Police or Supreme Court Police, nuclear materials courier (as defined under section 8401(33) of such title), or customs and border protection officer (as defined in section 8401(36) of such title) shall be 47 years of age, in the case of an individual who on the effective date of such appointment is eligible to receive retired pay or retainer pay for military service, or pension or compensation from the Department of Veterans Affairs instead of such retired or retainer pay.

(b) ELIGIBILITY FOR ANNUITY.—Section 8412(d) of such title is amended—

(1) in paragraph (1), by striking ''or'' at the end;

(2) in paragraph (2), by adding ''or'' at the end; and

(3) by inserting after paragraph (2) the following:

''(3) after becoming 57 years of age and completing 10 years of service as a law enforcement officer, member of the Capitol Police or Supreme Court Police, nuclear materials courier, customs or border protection officer, or any combination of such service totaling 10 years, if such employee—

''(A) is originally appointed to a position as a law enforcement officer, member of the Capitol Police or Supreme Court Police, nuclear materials courier, or customs and border protection officer on or after the effective date of this paragraph under section 10(e) of the Careers for Veterans Act of 2012; and

''(B) on the date that original appointment met the requirements of section 3307(e)(2) of this title or section 10(a)(2) of the Careers for Veterans Act of 2012,''.

(c) MANDATORY SEPARATION.—Section 8425 of such title is amended—

(1) in subsection (b)(1), in the first sentence, by inserting '', except that a law enforcement officer, nuclear materials courier, or customs and border protection officer eligible for retirement under section 8412(d)(3) shall be separated from the service on the last day of the month in which that employee becomes 57 years of age'' before the period;

(2) in subsection (c), in the first sentence, by inserting '', except that a member of the Capitol Police eligible for retirement under section 8412(d)(3) shall be separated from the service on the last day of the month in which that employee becomes 57 years of age'' before the period; and

(3) in subsection (d), in the first sentence, by inserting '', except that a member of the Supreme Court Police eligible for retirement under section 8412(d)(3) shall be separated from the service on the last day of the month in which that employee becomes 57 years of age'' before the period.

(d) COMPUTATION OF BASIC ANNUITY.—Section 8415(e) of such title is amended—

(1) in paragraph (1), by striking ''total service as'' and inserting ''civilian service as a law enforcement officer, member of the Capitol Police or Supreme Court Police, nuclear materials courier, customs and border protection officer, or air traffic controller that, in the aggregate,''; and

(2) in paragraph (2), by striking ''so much of such individual's total service as exceeds 20 years'' and inserting ''the remainder of such individual's total service''.

(e) EFFECTIVE DATE.—This section (including the amendments made by this section) shall take effect 60 days after the date of enactment of this Act and shall apply to appointments made on or after that effective date.

NOTICE OF HEARING

PERMANENT SUBCOMMITTEE ON INVESTIGATIONS

Mr. LEVIN. Mr. President, I would like to announce for the information of the Senate and the public that the Permanent Subcommittee on Investigations of the Committee on Homeland Security and Governmental Affairs has scheduled a hearing entitled, ''Offshore Profit Shifting and the U.S. Tax Code.'' The Subcommittee will examine the shifting of profits offshore by U.S. multinational corporations and how such activities are affected by the Internal Revenue Code and related regulations. Witnesses will include representatives from the Internal Revenue Service, the Financial Accounting Standards Board, multinational corporations, and an accounting firm. A final witness list will be available Tuesday, September 18, 2012.

The Subcommittee hearing has been scheduled for Thursday, September 20, 2012, at 2 p.m., in Room G–50 of the Dirksen Senate Office Building. For further information, please contact Elise Bean of the Permanent Subcommittee on Investigations at (202) 224–9505.

AUTHORITY FOR COMMITTEES TO MEET

COMMITTEE ON FOREIGN RELATIONS

Mr. UDALL of Colorado. Mr. President, I ask unanimous consent that the Committee on Foreign Relations be authorized to meet during the session of the Senate on September 13, 2012, at 10:30 a.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS

Mr. UDALL of Colorado. Mr. President, I ask unanimous consent that the Committee on Health, Education, Labor, and Pensions be authorized to meet during the session of the Senate, to conduct a hearing entitled ''Improving College Affordability: A View From the States'' on September 13, 2012, at 10:30 a.m. in room 430 of the Dirksen Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON INDIAN AFFAIRS

Mr. UDALL of Colorado. Mr. President, I ask unanimous consent that the Committee on Indian Affairs be authorized to meet during the session of the Senate on September 13, 2012, in room SD–628 of the Dirksen Senate Office Building, at 2:15 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON THE JUDICIARY

Mr. UDALL of Colorado. Mr. President, I ask unanimous consent that the Committee on the Judiciary be authorized to meet during the session of the Senate, on September 13, 2012, at 10 a.m., in SD–226 of the Dirksen Senate Office Building, to conduct an executive business meeting.

The PRESIDING OFFICER. Without objection, it is so ordered.

PERMANENT SUBCOMMITTEE ON INVESTIGATIONS

Mr. UDALL of Colorado. Mr. President, I ask unanimous consent that the Permanent Subcommittee on Investigations of the Committee on Homeland Security and Governmental Affairs be authorized to meet during the session of the Senate on September 13, 2012, at 9:30 a.m., to conduct a hearing entitled, ''Social Security Disability Programs: Improving the Quality of Benefit Award Decisions.''

The PRESIDING OFFICER. Without objection, it is so ordered.

SELECT COMMITTEE ON INTELLIGENCE

Mr. UDALL of Colorado. Mr. President, I ask unanimous consent that the Select Committee on Intelligence be authorized to meet during the session of the Senate on September 13, 2012, at 2:30 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON SECURITIES, INSURANCE, AND INVESTMENT

Mr. UDALL of Colorado. Mr. President, I ask unanimous consent that the Committee on Banking, Housing, and Urban Affairs Subcommittee on Securities, Insurance, and Investment be

authorized to meet during the session of the Senate on September 13, 2012, at 10 a.m., to conduct a hearing entitled ''Holding the CFPB Accountable: Review of Semi-Annual Report to Congress.''

The PRESIDING OFFICER. Without objection, it is so ordered.

PRIVILEGES OF THE FLOOR

Mr. HARKIN. Mr. President, I ask unanimous consent that Michael Mederos and Alexis Florczak of my staff be granted floor privileges for the duration of today's proceedings.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. TESTER. Mr. President, I ask unanimous consent that Nick Artuso, an intern in the office of Senator BLUMENTHAL, be granted the privilege of the floor for the duration of this afternoon's session.

The PRESIDING OFFICER. Without objection, it is so ordered.

THE PESTICIDE REGISTRATION IMPROVEMENT EXTENSION ACT OF 2012

Mr. DURBIN. Mr. President, I ask unanimous consent the Senate proceed to the consideration of S. 3552, introduced earlier today.

The PRESIDING OFFICER. The clerk will report the bill by title.

The bill clerk read as follows:

A bill (S. 3552) to reauthorize the Federal Insecticide, Fungicide, and Rodenticide Act.

There being no objection, the Senate proceeded to consider the bill.

Mr. DURBIN. Mr. President, I ask unanimous consent the bill be read three times and passed, the motion to reconsider be laid upon the table, with no intervening action or debate, and any related statements be printed in the RECORD.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (S. 3552) was ordered to be engrossed for a third reading, was read the third time, and passed, as follows:

S. 3552

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Pesticide Registration Improvement Extension Act of 2012''.

SEC. 2. PESTICIDE REGISTRATION IMPROVEMENT.

(a) MAINTENANCE FEES.—

(1) FEES.—Section 4(i) of the Federal Insecticide, Fungicide, and Rodenticide Act (7 U.S.C. 136a–1(i)) is amended—

(A) in paragraph (5)—

(i) in subparagraph (C), by striking ''aggregate amount of'' and all that follows through the end of the subparagraph and inserting ''aggregate amount of $27,800,000 for each of fiscal years 2013 through 2017.'';

(ii) in subparagraph (D)—

(I) in clause (i), by striking ''shall be'' and all that follows through the semicolon and inserting ''shall be $115,500 for each of fiscal years 2013 through 2017;''; and

(II) in clause (ii), by striking ''shall be'' and all that follows through the period and inserting ''shall be $184,800 for each of fiscal years 2013 through 2017.'';

(iii) in subparagraph (E)(i)—

(I) in subclause (I), by striking ''shall be'' and all that follows through the semicolon and inserting ''shall be $70,600 for each of fiscal years 2013 through 2017;''; and

(II) in subclause (II), by striking ''shall be'' and all that follows through the period and inserting ''shall be $122,100 for each of fiscal years 2013 through 2017.'';

(iv) in subparagraph (F)—

(I) by striking ''paragraph (3)'' and inserting ''this paragraph''; and

(II) by striking ''Humans'' and inserting ''Human'';

(v) by redesignating subparagraphs (F) through (H) as subparagraphs (G) through (I), respectively;

(vi) by inserting after subparagraph (E) the following:

''(F) FEE REDUCTION FOR CERTAIN SMALL BUSINESSES.—

''(i) DEFINITION.—In this subparagraph, the term 'qualified small business entity' means a corporation, partnership, or unincorporated business that—

''(I) has 500 or fewer employees;

''(II) during the 3-year period prior to the most recent maintenance fee billing cycle, had an average annual global gross revenue from all sources that did not exceed $10,000,000; and

''(III) holds not more than 5 pesticide registrations under this paragraph.

''(ii) WAIVER.—Except as provided in clause (iii), the Administrator shall waive 25 percent of the fee under this paragraph applicable to the first registration of any qualified small business entity under this paragraph.

''(iii) LIMITATION.—The Administrator shall not grant a waiver under clause (ii) to a qualified small business entity if the Administrator determines that the entity has been formed or manipulated primarily for the purpose of qualifying for the waiver.''; and

(vii) in subparagraph (I) (as redesignated by clause (v)), by striking ''2012'' and inserting ''2017'';

(B) in paragraph (6)—

(i) by striking ''2014'' and inserting ''2019''; and

(ii) by striking ''paragraphs (1) through (5)'' and inserting ''paragraph (1)'';

(C) by striking paragraphs (1), (2), (3), (4), and (7); and

(D) by redesignating paragraphs (5) and (6) as paragraphs (1) and (2), respectively.

(2) CONFORMING AMENDMENTS.—

(A) Section 4 of the Federal Insecticide, Fungicide, and Rodenticide Act (7 U.S.C. 136a–1) is amended—

(i) in subsection (d)(5)(B)(ii)(III), by striking ''subsection (i)(1)'' and inserting ''this section'';

(ii) in subsection (j), by striking ''subsection (i)(5)'' and inserting ''subsection (i)(1)''; and

(iii) in subsection (k)(5)—

(I) in the first sentence, by striking ''subsection (i)(5)(C)(ii)'' and inserting ''subsection (i)(1)(C)(ii)''; and

(II) in the third and sixth sentences, by striking ''subsection (i)(5)(C)'' each place it appears and inserting ''subsection (i)(1)(C)''.

(B) Section 33(b)(7)(F) of the Federal Insecticide, Fungicide, and Rodenticide Act (7 U.S.C. 136w–8(b)(7)(F)) is amended—

(i) by striking ''section 4(i)(5)(E)(ii)'' each place it appears in clauses (i), (ii)(I), and (iv)(I) and inserting ''section 4(i)(1)(E)(ii)'';

(ii) by striking ''section 4(i)(5)(E)(ii)(I)(bb)'' each place it appears in clauses (ii)(II) and (iv)(II) and inserting ''section 4(i)(1)(E)(ii)(I)(bb)''; and

(iii) in clause (iv)(II)—

(I) by striking ''applicable.'' and inserting ''applicable''; and

(II) by striking ''revenues'' and inserting ''revenue''.

(3) EXTENSION OF PROHIBITION ON TOLERANCE FEES.—Section 408(m)(3) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 346a(m)(3)) is amended by striking ''September 30, 2012'' and inserting ''September 30, 2017''.

(4) REREGISTRATION AND EXPEDITED PROCESSING FUND.—

(A) SOURCE AND USE.—Section 4(k)(2)(A) of the Federal Insecticide, Fungicide, and Rodenticide Act (7 U.S.C. 136a–1(k)(2)(A)) is amended—

(i) by inserting '', to enhance the information systems capabilities to improve the tracking of pesticide registration decisions,'' after ''paragraph (3)'' each place it appears; and

(ii) in clause (i)—

(I) by inserting ''offset'' before ''the costs of reregistration''; and

(II) by striking ''in the same portion as appropriated funds''.

(B) EXPEDITED PROCESSING OF SIMILAR APPLICATIONS.—Section 4(k)(3)(A) of the Federal Insecticide, Fungicide, and Rodenticide Act (7 U.S.C. 136a–1(k)(3)(A)) is amended—

(i) in the matter preceding clause (i), by striking ''2008 through 2012, between ⅛ and ⅐'' and inserting ''2013 through 2017, between ⅑ and ⅛'';

(ii) in clause (i), by striking ''new''; and

(iii) in clause (ii), by striking ''any application'' and all that follows through ''that—'' and inserting ''any application that—''.

(C) ENHANCEMENTS OF INFORMATION TECHNOLOGY SYSTEMS FOR IMPROVEMENT IN REVIEW OF PESTICIDE APPLICATIONS.—Section 4(k) of the Federal Insecticide, Fungicide, and Rodenticide Act (7 U.S.C. 136a–1(k)) is amended—

(i) by redesignating paragraphs (4) and (5) as paragraphs (5) and (6), respectively;

(ii) by inserting after paragraph (3) the following:

''(4) ENHANCEMENTS OF INFORMATION TECHNOLOGY SYSTEMS FOR IMPROVEMENT IN REVIEW OF PESTICIDE APPLICATIONS.—

''(A) IN GENERAL.—For each of fiscal years 2013 through 2017, the Administrator shall use not more than $800,000 of the amounts made available to the Administrator in the Reregistration and Expedited Processing Fund for the activities described in subparagraph (B).

''(B) ACTIVITIES.—The Administrator shall use amounts made available from the Reregistration and Expedited Processing Fund to improve the information systems capabilities for the Office of Pesticide Programs to enhance tracking of pesticide registration decisions, which shall include—

''(i) the electronic tracking of—

''(I) registration submissions; and

''(II) the status of conditional registrations;

''(ii) enhancing the database for information regarding endangered species assessments for registration review;

''(iii) implementing the capability to electronically review labels submitted with registration actions; and

''(iv) acquiring and implementing the capability to electronically assess and evaluate confidential statements of formula submitted with registration actions.''; and

(iii) in the first sentence of paragraph (6) (as redesignated by clause (i)), by striking ''to carry out the goals established under subsection (l)'' and inserting ''for the purposes described in paragraphs (2), (3), and (4) and to carry out the goals established under subsection (l)''.

(b) PESTICIDE REGISTRATION SERVICE FEES.—

(1) AMOUNT OF FEES.—Section 33(b) of the Federal Insecticide, Fungicide, and Rodenticide Act (7 U.S.C. 136w–8(b)) is amended—

(A) by striking paragraph (3) and inserting the following:

''(3) SCHEDULE OF COVERED APPLICATIONS AND REGISTRATION SERVICE FEES.—Subject to paragraph (6), the schedule of covered pesticide registration applications and corresponding registration service fees shall be as follows:

''TABLE 1.—REGISTRATION DIVISION — NEW ACTIVE INGREDIENTS

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
R010	1	New Active Ingredient, Food use (2) (3)	24	569,221
R020	2	New Active Ingredient, Food use; reduced risk (2) (3)	18	569,221
R040	3	New Active Ingredient, Food use; Experimental Use Permit application; establish temporary tolerance; submitted before application for registration; credit 45% of fee toward new active ingredient application that follows (3)	18	419,502
R060	4	New Active Ingredient, Non-food use; outdoor (2) (3)	21	395,467
R070	5	New Active Ingredient, Non-food use; outdoor; reduced risk (2) (3)	16	395,467
R090	6	New Active Ingredient, Non-food use; outdoor; Experimental Use Permit application; submitted before application for registration; credit 45% of fee toward new active ingredient (3)	16	293,596
R110	7	New Active Ingredient, Non-food use; indoor (2) (3)	20	219,949
R120	8	New Active Ingredient, Non-food use; indoor; reduced risk (2) (3)	14	219,949
R121	9	New Active Ingredient, Non-food use; indoor; Experimental Use Permit application; submitted before application for registration; credit 45% of fee toward new active ingredient application that follows (3)	18	165,375
R122	10	Enriched isomer(s) of registered mixed-isomer active ingredient (2) (3)	18	287,643
R123	11	New Active Ingredient, Seed treatment only; includes agricultural and non-agricultural seeds; residues not expected in raw agricultural commodities (2) (3)	18	427,991
R125 New	12	New Active Ingredient, Seed treatment; Experimental Use Permit application; submitted before application for registration; credit 45% of fee toward new active ingredient application that follows (3)	16	293,596

(1) A decision review time that would otherwise end on a Saturday, Sunday, or federal holiday, will be extended to end on the next business day.

(2) All requests for new uses (food and/or nonfood) contained in any application for a new active ingredient or a first food use are covered by the base fee for that new active ingredient or first food use application and retain the same decision time review period as the new active ingredient or first food use application. The application must be received by the agency in one package. The base fee for the category covers a maximum of five new products. Each application for an additional new product registration and new inert approval that is submitted in the new active ingredient application package or first food use application package is subject to the registration service fee for a new product or a new inert approval. All such associated applications that are submitted together will be subject to the new active ingredient or first food use decision review time. In the case of a new active ingredient application, until that new active ingredient is approved, any subsequent application for another new product containing the same active ingredient or an amendment to the proposed labeling will be deemed a new active ingredient application, subject to the registration service fee and decision review time for a new active ingredient. In the case of a first food use application, until that first food use is approved, any subsequent application for an additional new food use or uses will be subject to the registration service fee and decision review time for a first food use. Any information that (a) was neither requested nor required by the Agency, and (b) is submitted by the applicant at the applicant's initiative to support the application after completion of the technical deficiency screening, and (c) is not itself a covered registration application, must be assessed 25% of the full registration service fee for the new active ingredient or first food use application. (3) Where the action involves approval of a new or amended label, on or before the end date of the decision review time, the Agency shall provide to the applicant a draft accepted label, including any changes made by the Agency that differ from the applicant-submitted label and relevant supporting data reviewed by the Agency. The applicant will notify the Agency that the applicant either (a) agrees to all of the terms associated with the draft accepted label as amended by the Agency and requests that it be issued as the accepted final Agency-stamped label; or (b) does not agree to one or more of the terms of the draft accepted label as amended by the Agency and requests additional time to resolve the difference(s); or (c) withdraws the application without prejudice for subsequent resubmission, but forfeits the associated registration service fee. For cases described in (b), the applicant shall have up to 30 calendar days to reach agreement with the Agency on the final terms of the Agency-accepted label. If the applicant agrees to all of the terms of the accepted label as in (a), including upon resolution of differences in (b), the Agency shall provide an accepted final Agency-stamped label to the registrant within 2 business days following the registrant's written or electronic confirmation of agreement to the Agency.

''TABLE 2. — REGISTRATION DIVISION — NEW USES

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
R130	13	First food use; indoor; food/food handling (2) (3)	21	173,644
R140	14	Additional food use; Indoor; food/food handling (3) (4)	15	40,518
R150	15	First food use (2) (3)	21	239,684
R160	16	First food use; reduced risk (2) (3)	16	239,684

''TABLE 2. — REGISTRATION DIVISION — NEW USES—Continued

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
R170	17	Additional food use (3) (4)	15	59,976
R175 New	18	Additional food uses covered within a crop group resulting from the conversion of existing approved crop group(s) to one or more revised crop groups. (3) (4)	10	59,976
R180	19	Additional food use; reduced risk (3) (4)	10	59,976
R190	20	Additional food uses; 6 or more submitted in one application (3) (4)	15	359,856
R200	21	Additional food uses; 6 or more submitted in one application; reduced risk (3) (4)	10	359,856
R210	22	Additional food use; Experimental Use Permit application; establish temporary tolerance; no credit toward new use registration (3) (4)	12	44,431
R220	23	Additional food use; Experimental Use Permit application; crop destruct basis; no credit toward new use registration (3) (4)	6	17,993
R230	24	Additional use; non-food; outdoor (3) (4)	15	23,969
R240	25	Additional use; non-food; outdoor; reduced risk (3) (4)	10	23,969
R250	26	Additional use; non-food; outdoor; Experimental Use Permit application; no credit toward new use registration (3) (4)	6	17,993
R251 New	27	Experimental Use Permit application which requires no changes to the tolerance(s); non-crop destruct basis (3)	8	17,993
R260	28	New use; non-food; indoor (3) (4)	12	11,577
R270	29	New use; non-food; indoor; reduced risk (3) (4)	9	11,577
R271	30	New use; non-food; indoor; Experimental Use Permit application; no credit toward new use registration (3) (4)	6	8,820
R273	31	Additional use; seed treatment; limited uptake into raw agricultural commodities; includes crops with established tolerances (e.g., for soil or foliar application); includes food or non-food uses (3) (4)	12	45,754
R274	32	Additional uses; seed treatment only; 6 or more submitted in one application; limited uptake into raw agricultural commodities; includes crops with established tolerances (e.g., for soil or foliar application); includes food and/or non-food uses (3) (4)	12	274,523

(1) A decision review time that would otherwise end on a Saturday, Sunday, or federal holiday, will be extended to end on the next business day.

(2) All requests for new uses (food and/or nonfood) contained in any application for a new active ingredient or a first food use are covered by the base fee for that new active ingredient or first food use application and retain the same decision time review period as the new active ingredient or first food use application. The application must be received by the agency in one package. The base fee for the category covers a maximum of five new products. Each application for an additional new product registration and new inert approval that is submitted in the new active ingredient application package or first food use application package is subject to the registration service fee for a new product or a new inert approval. All such associated applications that are submitted together will be subject to the new active ingredient or first food use decision review time. In the case of a new active ingredient application, until that new active ingredient is approved, any subsequent application for another new product containing the same active ingredient or an amendment to the proposed labeling will be deemed a new active ingredient application, subject to the registration service fee and decision review time for a new active ingredient. In the case of a first food use application, until that first food use is approved, any subsequent application for an additional new food use or uses will be subject to the registration service fee and decision review time for a first food use. Any information that (a) was neither requested nor required by the Agency, and (b) is submitted by the applicant at the applicant's initiative to support the application after completion of the technical deficiency screening, and (c) is not itself a covered registration application, must be assessed 25% of the full registration service fee for the new active ingredient or first food use application.

(3) Where the action involves approval of a new or amended label, on or before the end date of the decision review time, the Agency shall provide to the applicant a draft accepted label, including any changes made by the Agency that differ from the applicant-submitted label and relevant supporting data reviewed by the Agency. The applicant will notify the Agency that the applicant either (a) agrees to all of the terms associated with the draft accepted label as amended by the Agency and requests that it be issued as the accepted final Agency-stamped label; or (b) does not agree to one or more of the terms of the draft accepted label as amended by the Agency and requests additional time to resolve the difference(s); or (c) withdraws the application without prejudice for subsequent resubmission, but forfeits the associated registration service fee. For cases described in (b), the applicant shall have up to 30 calendar days to reach agreement with the Agency on the final terms of the Agency-accepted label. If the applicant agrees to all of the terms of the accepted label as in (a), including upon resolution of differences in (b), the Agency shall provide an accepted final Agency-stamped label to the registrant within 2 business days following the registrant's written or electronic confirmation of agreement to the Agency.

(4) Amendment applications to add the new use(s) to registered product labels are covered by the base fee for the new use(s). All items in the covered application must be submitted together in one package. Each application for an additional new product registration and new inert approval(s) that is submitted in the new use application package is subject to the registration service fee for a new product or a new inert approval. However, if a new use application only proposes to register the new use for a new product and there are no amendments in the application, then review of one new product application is covered by the new use fee. All such associated applications that are submitted together will be subject to the new use decision review time. Any application for a new product or an amendment to the proposed labeling (a) submitted subsequent to submission of the new use application and (b) prior to conclusion of its decision review time and (c) containing the same new uses, will be deemed a separate new-use application, subject to a separate registration service fee and new decision review time for a new use. If the new-use application includes non-food (indoor and/or outdoor), and food (outdoor and/or indoor) uses, the appropriate fee is due for each type of new use and the longest decision review time applies to all of the new uses requested in the application. Any information that (a) was neither requested nor required by the Agency, and (b) is submitted by the applicant at the applicant's initiative to support the application after completion of the technical deficiency screen, and (c) is not itself a covered registration application, must be assessed 25% of the full registration service fee for the new use application.

''TABLE 3. — REGISTRATION DIVISION — IMPORT AND OTHER TOLERANCES

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
R280	33	Establish import tolerance; new active ingredient or first food use (2)	21	289,407
R290	34	Establish import tolerance; additional food use	15	57,882
R291	35	Establish import tolerances; additional food uses; 6 or more crops submitted in one petition	15	347,288
R292	36	Amend an established tolerance (e.g., decrease or increase); domestic or import; applicant-initiated	11	41,124
R293	37	Establish tolerance(s) for inadvertent residues in one crop; applicant-initiated	12	48,510
R294	38	Establish tolerances for inadvertent residues; 6 or more crops submitted in one application; applicant-initiated	12	291,060
R295	39	Establish tolerance(s) for residues in one rotational crop in response to a specific rotational crop application; applicant-initiated	15	59,976
R296	40	Establish tolerances for residues in rotational crops in response to a specific rotational crop petition; 6 or more crops submitted in one application; applicant-initiated	15	359,856
R297 New	41	Amend 6 or more established tolerances (e.g., decrease or increase) in one petition; domestic or import; applicant-initiated	11	246,744
R298 New	42	Amend an established tolerance (e.g., decrease or increase); domestic or import; submission of amended labels (requiring science review) in addition to those associated with the amended tolerance; applicant-initiated (3)	13	53,120
R299 New	43	Amend 6 or more established tolerances (e.g., decrease or increase); domestic or import; submission of amended labels (requiring science review) in addition to those associated with the amended tolerance; applicant-initiated (3)	13	258,740

(1) A decision review time that would otherwise end on a Saturday, Sunday, or federal holiday, will be extended to end on the next business day.

(2) All requests for new uses (food and/or nonfood) contained in any application for a new active ingredient or a first food use are covered by the base fee for that new active ingredient or first food use application and retain the same decision time review period as the new active ingredient or first food use application. The application must be received by the agency in one package. The base fee for the category covers a maximum of five new products. Each application for an additional new product registration and new inert approval that is submitted in the new active ingredient application package or first food use application package is subject to the registration service fee for a new product or a new inert approval. All such associated applications that are submitted together will be subject to the new active ingredient or first food use decision review time. In the case of a new active ingredient application, until that new active ingredient is approved, any subsequent application for another new product containing the same active ingredient or an amendment to the proposed labeling will be deemed a new active ingredient application, subject to the registration service fee and decision review time for a new active ingredient. In the case of a first food use application, until that first food use is approved, any subsequent application for an additional new food use or uses will be subject to the registration service fee and decision review time for a first food use. Any information that (a) was neither requested nor required by the Agency, and (b) is submitted by the applicant at the applicant's initiative to support the application after completion of the technical deficiency screening, and (c) is not itself a covered registration application, must be assessed 25% of the full registration service fee for the new active ingredient or first food use application. (3) Where the action involves approval of a new or amended label, on or before the end date of the decision review time, the Agency shall provide to the applicant a draft accepted label, including any changes made by the Agency that differ from the applicant-submitted label and relevant supporting data reviewed by the Agency. The applicant will notify the Agency that the applicant either (a) agrees to all of the terms associated with the draft accepted label as amended by the Agency and requests that it be issued as the accepted final Agency-stamped label; or (b) does not agree to one or more of the terms of the draft accepted label as amended by the Agency and requests additional time to resolve the difference(s); or (c) withdraws the application without prejudice for subsequent resubmission, but forfeits the associated registration service fee. For cases described in (b), the applicant shall have up to 30 calendar days to reach agreement with the Agency on the final terms of the Agency-accepted label. If the applicant agrees to all of the terms of the accepted label as in (a), including upon resolution of differences in (b), the Agency shall provide an accepted final Agency-stamped label to the registrant within 2 business days following the registrant's written or electronic confirmation of agreement to the Agency.

''TABLE 4. — REGISTRATION DIVISION — NEW PRODUCTS

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
R300	44	New product; or similar combination product (already registered) to an identical or substantially similar in composition and use to a registered product; registered source of active ingredient; no data review on acute toxicity, efficacy or CRP – only product chemistry data; cite-all data citation, or selective data citation where applicant owns all required data, or applicant submits specific authorization letter from data owner. Category also includes 100% re-package of registered end-use or manufacturing-use product that requires no data submission nor data matrix. (2) (3)	4	1,434

''TABLE 4. — REGISTRATION DIVISION — NEW PRODUCTS—Continued

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
R301	45	New product; or similar combination product (already registered) to an identical or substantially similar in composition and use to a registered product; registered source of active ingredient; selective data citation only for data on product chemistry and/or acute toxicity and/or public health pest efficacy, where applicant does not own all required data and does not have a specific authorization letter from data owner. (2) (3)	4	1,720
R310	46	New end-use or manufacturing-use product with registered source(s) of active ingredient(s); includes products containing two or more registered active ingredients previously combined in other registered products; requires review of data package within RD only; includes data and/or waivers of data for only: • product chemistry and/or • acute toxicity and/or • public health pest efficacy and/or • child resistant packaging. (2) (3)	7	4,807
R314 New	47	New end use product containing two or more registered active ingredients never before registered as this combination in a formulated product; new product label is identical or substantially similar to the labels of currently registered products which separately contain the respective component active ingredients; requires review of data package within RD only; includes data and/or waivers of data for only: • product chemistry and/or • acute toxicity and/or • public health pest efficacy and/or • child resistant packaging. (2) (3)	8	6,009
R315 New	48	New end-use non-food animal product with submission of two or more target animal safety studies; includes data and/or waivers of data for only: • product chemistry and/or • acute toxicity and/or • public health pest efficacy and/or • animal safety studies and/or • child resistant packaging (2) (3)	9	8,000
R320	49	New product; new physical form; requires data review in science divisions (2) (3)	12	11,996
R331	50	New product; repack of identical registered end-use product as a manufacturing-use product; same registered uses only (2) (3)	3	2,294
R332	51	New manufacturing-use product; registered active ingredient; unregistered source of active ingredient; submission of completely new generic data package; registered uses only; requires review in RD and science divisions (2) (3)	24	256,883
R333 New	52	New product; MUP or End use product with unregistered source of active ingredient; requires science data review; new physical form; etc. Cite-all or selective data citation where applicant owns all required data. (2) (3)	10	17,993
R334 New	53	New product; MUP or End use product with unregistered source of the active ingredient; requires science data review; new physical form; etc. Selective data citation. (2) (3)	11	17,993

(1) A decision review time that would otherwise end on a Saturday, Sunday, or federal holiday, will be extended to end on the next business day.

(2) An application for a new end-use product using a source of active ingredient that (a) is not yet registered but (b) has an application pending with the Agency for review, will be considered an application for a new product with an unregistered source of active ingredient. (3) Where the action involves approval of a new or amended label, on or before the end date of the decision review time, the Agency shall provide to the applicant a draft accepted label, including any changes made by the Agency that differ from the applicant-submitted label and relevant supporting data reviewed by the Agency. The applicant will notify the Agency that the applicant either (a) agrees to all of the terms associated with the draft accepted label as amended by the Agency and requests that it be issued as the accepted final Agency-stamped label; or (b) does not agree to one or more of the terms of the draft accepted label as amended by the Agency and requests additional time to resolve the difference(s); or (c) withdraws the application without prejudice for subsequent resubmission, but forfeits the associated registration service fee. For cases described in (b), the applicant shall have up to 30 calendar days to reach agreement with the Agency on the final terms of the Agency-accepted label. If the applicant agrees to all of the terms of the accepted label as in (a), including upon resolution of differences in (b), the Agency shall provide an accepted final Agency-stamped label to the registrant within 2 business days following the registrant's written or electronic confirmation of agreement to the Agency.

''TABLE 5. — REGISTRATION DIVISION — AMENDMENTS TO REGISTRATION

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
R340	54	Amendment requiring data review within RD (e.g., changes to precautionary label statements) (2) (3)	4	3,617
R345 New	55	Amending non-food animal product that includes submission of target animal safety data; previously registered (2) (3)	7	8,000
R350	56	Amendment requiring data review in science divisions (e.g., changes to REI, or PPE, or PHI, or use rate, or number of applications; or add aerial application; or modify GW/SW advisory statement) (2) (3)	9	11,996
R351 New	57	Amendment adding a new unregistered source of active ingredient. (2) (3)	8	11,996
R352 New	58	Amendment adding already approved uses; selective method of support; does not apply if the applicant owns all cited data (2) (3)	8	11,996
R371	59	Amendment to Experimental Use Permit; (does not include extending a permit's time period) (3)	6	9,151

(1) A decision review time that would otherwise end on a Saturday, Sunday, or federal holiday, will be extended to end on the next business day.

(2) (a) EPA-initiated amendments shall not be charged registration service fees. (b) Registrant-initiated fast-track amendments are to be completed within the timelines specified in FIFRA Section 3(c)(3)(B) and are not subject to registration service fees. (c) Registrant-initiated fast-track amendments handled by the Antimicrobials Division are to be completed within the timelines specified in FIFRA Section 3(h) and are not subject to registration service fees. (d) Registrant initiated amendments submitted by notification under PR Notices, such as PR Notice 98–10, continue under PR Notice timelines and are not subject to registration service fees. (e) Submissions with data and requiring data review are subject to registration service

(3) Where the action involves approval of a new or amended label, on or before the end date of the decision review time, the Agency shall provide to the applicant a draft accepted label, including any changes made by the Agency that differ from the applicant-submitted label and relevant supporting data reviewed by the Agency. The applicant will notify the Agency that the applicant either (a) agrees to all of the terms associated with the draft accepted label as amended by the Agency and requests that it be issued as the accepted final Agency-stamped label; or (b) does not agree to one or more of the terms of the draft accepted label as amended by the Agency and requests additional time to resolve the difference(s); or (c) withdraws the application without prejudice for subsequent resubmission, but forfeits the associated registration service fee. For cases described in (b), the applicant shall have up to 30 calendar days to reach agreement with the Agency on the final terms of the Agency-accepted label. If the applicant agrees to all of the terms of the accepted label as in (a), including upon resolution of differences in (b), the Agency shall provide an accepted final Agency-stamped label to the registrant within 2 business days following the registrant's written or electronic confirmation of agreement to the Agency.

''TABLE 6. — REGISTRATION DIVISION — OTHER ACTIONS

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
R124	60	Conditional Ruling on Preapplication Study Waivers; applicant-initiated	6	2,294
R272	61	Review of Study Protocol applicant-initiated; excludes DART, preregistration conference, Rapid Response review, DNT protocol review, protocol needing HSRB review	3	2,294
R275 New	62	Rebuttal of agency reviewed protocol, applicant initiated	3	2,294
R370	63	Cancer reassessment; applicant-initiated	18	179,818

(1) A decision review time that would otherwise end on a Saturday, Sunday, or federal holiday, will be extended to end on the next business day.

''TABLE 7. — ANTIMICROBIALS DIVISION — NEW ACTIVE INGREDIENTS

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
A380	64	Food use; establish tolerance exemption (2) (3)	24	104,187
A390	65	Food use; establish tolerance (2) (3)	24	173,644
A400	66	Non-food use; outdoor; FIFRA §2(mm) uses (2) (3)	18	86,823
A410	67	Non-food use; outdoor; uses other than FIFRA §2(mm) (2) (3)	21	173,644
A420	68	Non-food use; indoor; FIFRA §2(mm) uses (2) (3)	18	57,882
A430	69	Non-food use; indoor; uses other than FIFRA §2(mm) (2) (3)	20	86,823

''TABLE 7. — ANTIMICROBIALS DIVISION — NEW ACTIVE INGREDIENTS—Continued

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
A431	70	Non-food use; indoor; low-risk, low-toxicity food-grade active ingredient(s); efficacy testing for public health claims required under GLP and following DIS/TSS or AD-approved study protocol (2) (3)	12	60,638

(1) A decision review time that would otherwise end on a Saturday, Sunday, or federal holiday, will be extended to end on the next business day.

(2) All requests for new uses (food and/or nonfood) contained in any application for a new active ingredient or a first food use are covered by the base fee for that new active ingredient or first food use application and retain the same decision time review period as the new active ingredient or first food use application. The application must be received by the agency in one package. The base fee for the category covers a maximum of five new products. Each application for an additional new product registration and new inert approval that is submitted in the new active ingredient application package or first food use application package is subject to the registration service fee for a new product or a new inert approval. All such associated applications that are submitted together will be subject to the new active ingredient or first food use decision review time. In the case of a new active ingredient application, until that new active ingredient is approved, any subsequent application for another new product containing the same active ingredient or an amendment to the proposed labeling will be deemed a new active ingredient application, subject to the registration service fee and decision review time for a new active ingredient. In the case of a first food use application, until that first food use is approved, any subsequent application for an additional new food use or uses will be subject to the registration service fee and decision review time for a first food use. Any information that (a) was neither requested nor required by the Agency, and (b) is submitted by the applicant at the applicant's initiative to support the application after completion of the technical deficiency screening, and (c) is not itself a covered registration application, must be assessed 25% of the full registration service fee for the new active ingredient or first food use application.

(3) Where the action involves approval of a new or amended label, on or before the end date of the decision review time, the Agency shall provide to the applicant a draft accepted label, including any changes made by the Agency that differ from the applicant-submitted label and relevant supporting data reviewed by the Agency. The applicant will notify the Agency that the applicant either (a) agrees to all of the terms associated with the draft accepted label as amended by the Agency and requests that it be issued as the accepted final Agency-stamped label; or (b) does not agree to one or more of the terms of the draft accepted label as amended by the Agency and requests additional time to resolve the difference(s); or (c) withdraws the application without prejudice for subsequent resubmission, but forfeits the associated registration service fee. For cases described in (b), the applicant shall have up to 30 calendar days to reach agreement with the Agency on the final terms of the Agency-accepted label. If the applicant agrees to all of the terms of the accepted label as in (a), including upon resolution of differences in (b), the Agency shall provide an accepted final Agency-stamped label to the registrant within 2 business days following the registrant's written or electronic confirmation of agreement to the Agency.

''TABLE 8. — ANTIMICROBIALS DIVISION — NEW USES

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
A440	71	First food use; establish tolerance exemption (2) (3) (4)	21	28,942
A450	72	First food use; establish tolerance (2) (3) (4)	21	86,823
A460	73	Additional food use; establish tolerance exemption (3) (4) (5)	15	11,577
A470	74	Additional food use; establish tolerance (3) (4) (5)	15	28,942
A471 New	75	Additional food uses; establish tolerances; 6 or more submitted in one application (3) (4) (5)	15	173,652
A480	76	Additional use; non-food; outdoor; FIFRA §2(mm) uses (4) (5)	9	17,365
A481 New	77	Additional non-food outdoor uses; FIFRA §2(mm) uses; 6 or more submitted in one application (4) (5)	9	104,190
A490	78	Additional use; non-food; outdoor; uses other than FIFRA §2(mm) (4) (5)	15	28,942
A491 New	79	Additional non-food; outdoor; uses other than FIFRA §2(mm); 6 or more submitted in one application (4) (5)	15	173,652
A500	80	Additional use; non-food, indoor, FIFRA §2(mm) uses (4) (5)	9	11,577
A501 New	81	Additional non-food; indoor; FIFRA §2(mm) uses; 6 or more submitted in one application (4) (5)	9	69,462
A510	82	Additional use; non-food; indoor; uses other than FIFRA §2(mm) (4) (5)	12	11,577
A511 New	83	Additional non-food; indoor; uses other than FIFRA §2(mm); 6 or more submitted in one application (4) (5)	12	69,462

(1) A decision review time that would otherwise end on a Saturday, Sunday, or federal holiday, will be extended to end on the next business day.

(2) All requests for new uses (food and/or nonfood) contained in any application for a new active ingredient or a first food use are covered by the base fee for that new active ingredient or first food use application and retain the same decision time review period as the new active ingredient or first food use application. The application must be received by the agency in one package. The base fee for the category covers a maximum of five new products. Each application for an additional new product registration and new inert approval that is submitted in the new active ingredient application package or first food use application package is subject to the registration service fee for a new product or a new inert approval. All such associated applications that are submitted together will be subject to the new active ingredient or first food use decision review time. In the case of a new active ingredient application, until that new active ingredient is approved, any subsequent application for another new product containing the same active ingredient or an amendment to the proposed labeling will be deemed a new active ingredient application, subject to the registration service fee and decision review time for a new active ingredient. In the case of a first food use application, until that first food use is approved, any subsequent application for an additional new food use or uses will be subject to the registration service fee and decision review time for a first food use. Any information that (a) was neither requested nor required by the Agency, and (b) is submitted by the applicant at the applicant's initiative to support the application after completion of the technical deficiency screening, and (c) is not itself a covered registration application, must be assessed 25% of the full registration service fee for the new active ingredient or first food use application.

(3) If EPA data rules are amended to newly require clearance under section 408 of the FFDCA for an ingredient of an antimicrobial product where such ingredient was not previously subject to such a clearance, then review of the data for such clearance of such product is not subject to a registration service fee for the tolerance action for two years from the effective date of the rule.

(4) Where the action involves approval of a new or amended label, on or before the end date of the decision review time, the Agency shall provide to the applicant a draft accepted label, including any changes made by the Agency that differ from the applicant-submitted label and relevant supporting data reviewed by the Agency. The applicant will notify the Agency that the applicant either (a) agrees to all of the terms associated with the draft accepted label as amended by the Agency and requests that it be issued as the accepted final Agency-stamped label; or (b) does not agree to one or more of the terms of the draft accepted label as amended by the Agency and requests additional time to resolve the difference(s); or (c) withdraws the application without prejudice for subsequent resubmission, but forfeits the associated registration service fee. For cases described in (b), the applicant shall have up to 30 calendar days to reach agreement with the Agency on the final terms of the Agency-accepted label. If the applicant agrees to all of the terms of the accepted label as in (a), including upon resolution of differences in (b), the Agency shall provide an accepted final Agency-stamped label to the registrant within 2 business days following the registrant's written or electronic confirmation of agreement to the Agency.

(5) Amendment applications to add the new use(s) to registered product labels are covered by the base fee for the new use(s). All items in the covered application must be submitted together in one package. Each application for an additional new product registration and new inert approval(s) that is submitted in the new use application package is subject to the registration service fee for a new product or a new inert approval. However, if a new use application only proposes to register the new use for a new product and there are no amendments in the application, then review of one new product application is covered by the new use fee. All such associated applications that are submitted together will be subject to the new use decision review time. Any application for a new product or an amendment to the proposed labeling (a) submitted subsequent to submission of the new use application and (b) prior to conclusion of its decision review time and (c) containing the same new uses, will be deemed a separate new-use application, subject to a separate registration service fee and new decision review time for a new use. If the new-use application includes non-food (indoor and/or outdoor), and food (outdoor and/or indoor) uses, the appropriate fee is due for each type of new use and the longest decision review time applies to all of the new uses requested in the application. Any information that (a) was neither requested nor required by the Agency, and (b) is submitted by the applicant at the applicant's initiative to support the application after completion of the technical deficiency screen, and (c) is not itself a covered registration application, must be assessed 25% of the full registration service fee for the new use application.

''TABLE 9. — ANTIMICROBIALS DIVISION — NEW PRODUCTS AND AMENDMENTS

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
A530	84	New product; identical or substantially similar in composition and use to a registered product; no data review or only product chemistry data; cite-all data citation, or selective data citation when applicant owns all required data, or applicant submits specific authorization letter for data owner. Category also includes 100% re-package of registered end-use or manufacturing-use product that requires no data submission nor data matrix. (2) (3)	4	1,159
A531	85	New product; identical or substantially similar in composition and use to a registered product; registered source of active ingredient: selective data citation only for data on product chemistry and/or acute toxicity and/or public health pest efficacy, where applicant does not own all required data and does not have a specific authorization letter from data owner. (2) (3)	4	1,654
A532	86	New product; identical or substantially similar in composition and use to a registered product; registered active ingredient; unregistered source of active ingredient; cite-all data citation except for product chemistry; product chemistry data submitted (2) (3)	5	4,631
A540	87	New end use product; FIFRA §2(mm) uses only (2) (3)	5	4,631
A550	88	New end-use product; uses other than FIFRA §2(mm); non-FQPA product (2) (3)	7	4,631
A560	89	New manufacturing-use product; registered active ingredient; selective data citation (2) (3)	12	17,365
A570	90	Label amendment requiring data review (3) (4)	4	3,474
A572 New	91	New Product or amendment requiring data review for risk assessment by Science Branch (e.g., changes to REI, or PPE, or use rate) (2) (3) (4)	9	11,996

(1) A decision review time that would otherwise end on a Saturday, Sunday, or federal holiday, will be extended to end on the next business day.

(2) An application for a new end-use product using a source of active ingredient that (a) is not yet registered but (b) has an application pending with the Agency for review, will be considered an application for a new product with an unregistered source of active ingredient.

(3) Where the action involves approval of a new or amended label, on or before the end date of the decision review time, the Agency shall provide to the applicant a draft accepted label, including any changes made by the Agency that differ from the applicant-submitted label and relevant supporting data reviewed by the Agency. The applicant will notify the Agency that the applicant either (a) agrees to all of the terms associated with the draft accepted label as amended by the Agency and requests that it be issued as the accepted final Agency-stamped label; or (b) does not agree to one or more of the terms of the draft accepted label as amended by the Agency and requests additional time to resolve the difference(s); or (c) withdraws the application without prejudice for subsequent resubmission, but forfeits the associated registration service fee. For cases described in (b), the applicant shall have up to 30 calendar days to reach agreement with the Agency on the final terms of the Agency-accepted label. If the applicant agrees to all of the terms of the accepted label as in (a), including upon resolution of differences in (b), the Agency shall provide an accepted final Agency-stamped label to the registrant within 2 business days following the registrant's written or electronic confirmation of agreement to the Agency.

(4) (a) EPA-initiated amendments shall not be charged registration service fees. (b) Registrant-initiated fast-track amendments are to be completed within the timelines specified in FIFRA Section 3(c)(3)(B) and are not subject to registration service fees. (c) Registrant-initiated fast-track amendments handled by the Antimicrobials Division are to be completed within the timelines specified in FIFRA Section 3(h) and are not subject to registration service fees. (d) Registrant initiated amendments submitted by notification under PR Notices, such as PR Notice 98–10, continue under PR Notice timelines and are not subject to registration service fees. (e) Submissions with data and requiring data review are subject to registration service fees.

''TABLE 10. — ANTIMICROBIALS DIVISION — EXPERIMENTAL USE PERMITS AND OTHER TYPE OF ACTIONS

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
A520	92	Experimental Use Permit application, Non-Food Use (2)	9	5,789
A521	93	Review of public health efficacy study protocol within AD, per AD Internal Guidance for the Efficacy Protocol Review Process; Code will also include review of public health efficacy study protocol and data review for devices making pesticidal claims; applicant-initiated; Tier 1	3	2,250
A522	94	Review of public health efficacy study protocol outside AD by members of AD Efficacy Protocol Review Expert Panel; Code will also include review of public health efficacy study protocol and data review for devices making pesticidal claims; applicant-initiated; Tier 2	12	11,025
A524 New	95	New Active Ingredient, Experimental Use Permit application; Food Use Requires Tolerance. Credit 45% of fee toward new active ingredient application that follows. (2)	18	138,916
A525 New	96	New Active Ingredient, Experimental Use Permit application; Food Use Requires Tolerance Exemption. Credit 45% of fee toward new active ingredient application that follows. (2)	18	83,594
A526 New	97	New Active Ingredient, Experimental Use Permit application; Non-Food, Outdoor Use. Credit 45% of fee toward new active ingredient application that follows. (2)	15	86,823
A527 New	98	New Active Ingredient, Experimental Use Permit application; Non-Food, Indoor Use. Credit 45% of fee toward new active ingredient application that follows. (2)	15	58,000
A528 New	99	Experimental Use Permit application, Food Use; Requires Tolerance or Tolerance Exemption (2)	15	20,260
A529 New	100	Amendment to Experimental Use Permit; requires data review or risk assessment (2)	9	10,365
A523 New	101	Review of protocol other than a public health efficacy study (i.e., Toxicology or Exposure Protocols)	9	11,025
A571 New	102	Science reassessment: Cancer risk, refined ecological risk, and/or endangered species; applicant-initiated	18	86,823

(1) A decision review time that would otherwise end on a Saturday, Sunday, or federal holiday, will be extended to end on the next business day.

(2) Where the action involves approval of a new or amended label, on or before the end date of the decision review time, the Agency shall provide to the applicant a draft accepted label, including any changes made by the Agency that differ from the applicant-submitted label and relevant supporting data reviewed by the Agency. The applicant will notify the Agency that the applicant either (a) agrees to all of the terms associated with the draft accepted label as amended by the Agency and requests that it be issued as the accepted final Agency-stamped label; or (b) does not agree to one or more of the terms of the draft accepted label as amended by the Agency and requests additional time to resolve the difference(s); or (c) withdraws the application without prejudice for subsequent resubmission, but forfeits the associated registration service fee. For cases described in (b), the applicant shall have up to 30 calendar days to reach agreement with the Agency on the final terms of the Agency-accepted label. If the applicant agrees to all of the terms of the accepted label as in (a), including upon resolution of differences in (b), the Agency shall provide an accepted final Agency-stamped label to the registrant within 2 business days following the registrant's written or electronic confirmation of agreement to the Agency.

''TABLE 11. — BIOPESTICIDES AND POLLUTION PREVENTION DIVISION — MICROBIAL AND BIOCHEMICAL PESTICIDES; NEW ACTIVE INGREDIENTS

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
B580	103	New active ingredient; food use; petition to establish a tolerance (2)	19	46,305

''TABLE 11. — BIOPESTICIDES AND POLLUTION PREVENTION DIVISION — MICROBIAL AND BIOCHEMICAL PESTICIDES; NEW ACTIVE INGREDIENTS—Continued

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
B590	104	New active ingredient; food use; petition to establish a tolerance exemption (2)	17	28,942
B600	105	New active ingredient; non-food use (2)	13	17,365
B610	106	New active ingredient; Experimental Use Permit application; petition to establish a temporary tolerance or temporary tolerance exemption	10	11,577
B611 New	107	New active ingredient; Experimental Use Permit application; petition to establish permanent tolerance exemption	12	11,577
B612 New	108	New active ingredient; no change to a permanent tolerance exemption (2)	10	15,918
B613 New	109	New active ingredient; petition to convert a temporary tolerance or a temporary tolerance exemption to a permanent tolerance or tolerance exemption (2)	11	15,918
B620	110	New active ingredient; Experimental Use Permit application; non-food use including crop destruct	7	5,789

(1) A decision review time that would otherwise end on a Saturday, Sunday, or federal holiday, will be extended to end on the next business day.

(2) All requests for new uses (food and/or nonfood) contained in any application for a new active ingredient or a first food use are covered by the base fee for that new active ingredient or first food use application and retain the same decision time review period as the new active ingredient or first food use application. The application must be received by the agency in one package. The base fee for the category covers a maximum of five new products. Each application for an additional new product registration and new inert approval that is submitted in the new active ingredient application package or first food use application package is subject to the registration service fee for a new product or a new inert approval. All such associated applications that are submitted together will be subject to the new active ingredient or first food use decision review time, except where the new inert approval decision review time is greater than that for the new active ingredient, in which case the associated new active ingredient will be subject to the new inert approval decision review time. In the case of a new active ingredient application, until that new active ingredient is approved, any subsequent application for another new product containing the same active ingredient or an amendment to the proposed labeling will be deemed a new active ingredient application, subject to the registration service fee and decision review time for a new active ingredient. In the case of a first food use application, until that first food use is approved, any subsequent application for an additional new food use or uses will be subject to the registration service fee and decision review time for a first food use. Any information that (a) was neither requested nor required by the Agency, and (b) is submitted by the applicant at the applicant's initiative to support the application after completion of the technical deficiency screening, and (c) is not itself a covered registration application, must be assessed 25% of the full registration service fee for the new active ingredient or first food use application.

''TABLE 12. — BIOPESTICIDES AND POLLUTION PREVENTION DIVISION — MICROBIAL AND BIOCHEMICAL PESTICIDES; NEW USES

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
B630	111	First food use; petition to establish a tolerance exemption (2)	13	11,577
B631	112	New food use; petition to amend an established tolerance (3)	12	11,577
B640	113	First food use; petition to establish a tolerance (2)	19	17,365
B643 New	114	New Food use; petition to amend tolerance exemption (3)	10	11,577
B642 New	115	First food use; indoor; food/food handling (2)	12	28,942
B644 New	116	New use, no change to an established tolerance or tolerance exemption (3)	8	11,577
B650	117	New use; non-food (3)	7	5,789

(1) A decision review time that would otherwise end on a Saturday, Sunday, or federal holiday, will be extended to end on the next business day.

(2) All requests for new uses (food and/or nonfood) contained in any application for a new active ingredient or a first food use are covered by the base fee for that new active ingredient or first food use application and retain the same decision time review period as the new active ingredient or first food use application. The application must be received by the agency in one package. The base fee for the category covers a maximum of five new products. Each application for an additional new product registration and new inert approval that is submitted in the new active ingredient application package or first food use application package is subject to the registration service fee for a new product or a new inert approval. All such associated applications that are submitted together will be subject to the new active ingredient or first food use decision review time. In the case of a new active ingredient application, until that new active ingredient is approved, any subsequent application for another new product containing the same active ingredient or an amendment to the proposed labeling will be deemed a new active ingredient application, subject to the registration service fee and decision review time for a new active ingredient. In the case of a first food use application, until that first food use is approved, any subsequent application for an additional new food use or uses will be subject to the registration service fee and decision review time for a first food use. Any information that (a) was neither requested nor required by the Agency, and (b) is submitted by the applicant at the applicant's initiative to support the application after completion of the technical deficiency screening, and (c) is not itself a covered registration application, must be assessed 25% of the full registration service fee for the new active ingredient or first food use application.

(3) Amendment applications to add the new use(s) to registered product labels are covered by the base fee for the new use(s). All items in the covered application must be submitted together in one package. Each application for an additional new product registration and new inert approval(s) that is submitted in the new use application package is subject to the registration service fee for a new product or a new inert approval. However, if a new use application only proposes to register the new use for a new product and there are no amendments in the application, then review of one new product application is covered by the new use fee. All such associated applications that are submitted together will be subject to the new use decision review time. Any application for a new product or an amendment to the proposed labeling (a) submitted subsequent to submission of the new use application and (b) prior to conclusion of its decision review time and (c) containing the same new uses, will be deemed a separate new-use application, subject to a separate registration service fee and new decision review time for a new use. If the new-use application includes non-food (indoor and/or outdoor), and food (outdoor and/or indoor) uses, the appropriate fee is due for each type of new use and the longest decision review time applies to all of the new uses requested in the application. Any information that (a) was neither requested nor required by the Agency, and (b) is submitted by the applicant at the applicant's initiative to support the application after completion of the technical deficiency screen, and (c) is not itself a covered registration application, must be assessed 25% of the full registration service fee for the new use application.

''TABLE 13. — BIOPESTICIDES AND POLLUTION PREVENTION DIVISION — MICROBIAL AND BIOCHEMICAL PESTICIDES; NEW PRODUCTS

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
B652 New	118	New product; registered source of active ingredient; requires petition to amend established tolerance or tolerance exemption; requires 1) submission of product specific data; or 2) citation of previously reviewed and accepted data; or 3) submission or citation of data generated at government expense; or 4) submission or citation of scientifically-sound rationale based on publicly available literature or other relevant information that addresses the data requirement; or 5) submission of a request for a data requirement to be waived supported by a scientifically-sound rationale explaining why the data requirement does not apply (2)	13	11,577
B660	119	New product; registered source of active ingredient(s); identical or substantially similar in composition and use to a registered product; no change in an established tolerance or tolerance exemption. No data review, or only product chemistry data; cite-all data citation, or selective data citation where applicant owns all required data or authorization from data owner is demonstrated. Category includes 100% re-package of registered end-use or manufacturing-use product that requires no data submission or data matrix. For microbial pesticides, the active ingredient(s) must not be re-isolated. (2)	4	1,159
B670	120	New product; registered source of active ingredient(s); no change in an established tolerance or tolerance exemption; requires: 1) submission of product specific data; or 2) citation of previously reviewed and accepted data; or 3) submission or citation of data generated at government expense; or 4) submission or citation of a scientifically-sound rationale based on publicly available literature or other relevant information that addresses the data requirement; or 5) submission of a request for a data requirement to be waived supported by a scientifically-sound rationale explaining why the data requirement does not apply. (2)	7	4,631
B671	121	New product; unregistered source of active ingredient(s); requires a petition to amend an established tolerance or tolerance exemption; requires: 1) submission of product specific data; or 2) citation of previously reviewed and accepted data; or 3) submission or citation of data generated at government expense; or 4) submission or citation of a scientifically-sound rationale based on publicly available literature or other relevant information that addresses the data requirement; or 5) submission of a request for a data requirement to be waived supported by a scientifically-sound rationale explaining why the data requirement does not apply. (2)	17	11,577
B672	122	New product; unregistered source of active ingredient(s); non-food use or food use with a tolerance or tolerance exemption previously established for the active ingredient(s); requires: 1) submission of product specific data; or 2) citation of previously reviewed and accepted data; or 3) submission or citation of data generated at government expense; or 4) submission or citation of a scientifically-sound rationale based on publicly available literature or other relevant information that addresses the data requirement; or 5) submission of a request for a data requirement to be waived supported by a scientifically-sound rationale explaining why the data requirement does not apply. (2)	13	8,269
B673 New	123	New product MUP/EP; unregistered source of active ingredient(s); citation of Technical Grade Active Ingredient (TGAI) data previously reviewed and accepted by the Agency. Requires an Agency determination that the cited data supports the new product. (2)	10	4,631
B674 New	124	New product MUP; Repack of identical registered end-use product as a manufacturing-use product; same registered uses only (2)	4	1,159
B675 New	125	New Product MUP; registered source of active ingredient; submission of completely new generic data package; registered uses only. (2)	10	8,269

''TABLE 13. — BIOPESTICIDES AND POLLUTION PREVENTION DIVISION — MICROBIAL AND BIOCHEMICAL PESTICIDES; NEW PRODUCTS—Continued

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
B676 New	126	New product; more than one active ingredient where one active ingredient is an unregistered source; product chemistry data must be submitted; requires: 1) submission of product specific data, and 2) citation of previously reviewed and accepted data; or 3) submission or citation of data generated at government expense; or 4) submission or citation of a scientifically-sound rationale based on publicly available literature or other relevant information that addresses the data requirement; or 5) submission of a request for a data requirement to be waived supported by a scientifically-sound rationale explaining why the data requirement does not apply. (2)	13	8,269
B677 New	127	New end-use non-food animal product with submission of two or more target animal safety studies; includes data and/or waivers of data for only: • product chemistry and/or • acute toxicity and/or • public health pest efficacy and/or • animal safety studies and/or • child resistant packaging (2)	10	8,000

(1) A decision review time that would otherwise end on a Saturday, Sunday, or federal holiday, will be extended to end on the next business day.
(2) An application for a new end-use product using a source of active ingredient that (a) is not yet registered but (b) has an application pending with the Agency for review, will be considered an application for a new product with an unregistered source of active ingredient.

''TABLE 14. — BIOPESTICIDES AND POLLUTION PREVENTION DIVISION — MICROBIAL AND BIOCHEMICAL PESTICIDES; AMENDMENTS

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
B621	128	Amendment; Experimental Use Permit; no change to an established temporary tolerance or tolerance exemption.	7	4,631
B622 New	129	Amendment; Experimental Use Permit; petition to amend an established or temporary tolerance or tolerance exemption.	11	11,577
B641	130	Amendment of an established tolerance or tolerance exemption.	13	11,577
B680	131	Amendment; registered source of active ingredient(s); no new use(s); no changes to an established tolerance or tolerance exemption. Requires data submission. (2)	5	4,631
B681	132	Amendment; unregistered source of active ingredient(s). Requires data submission. (2)	7	5,513
B683 New	133	Label amendment; requires review/update of previous risk assessment(s) without data submission (e.g., labeling changes to REI, PPE, PHI). (2)	6	4,631
B684 New	134	Amending non-food animal product that includes submission of target animal safety data; previously registered (2)	8	8,000

(1) A decision review time that would otherwise end on a Saturday, Sunday, or federal holiday, will be extended to end on the next business day.
(2) (a) EPA-initiated amendments shall not be charged registration service fees. (b) Registrant-initiated fast-track amendments are to be completed within the timelines specified in FIFRA Section 3(c)(3)(B) and are not subject to registration service fees. (c) Registrant-initiated fast-track amendments handled by the Antimicrobials Division are to be completed within the timelines specified in FIFRA Section 3(h) and are not subject to registration service fees. (d) Registrant initiated amendments submitted by notification under PR Notices, such as PR Notice 98–10, continue under PR Notice timelines and are not subject to registration service fees. (e) Submissions with data and requiring data review are subject to registration service fees.

''TABLE 15. — BIOPESTICIDES AND POLLUTION PREVENTION DIVISION — STRAIGHT CHAIN LEPIDOPTERAN PHEROMONES(SCLPS)

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
B690	135	New active ingredient; food or non-food use. (2)	7	2,316
B700	136	Experimental Use Permit application; new active ingredient or new use.	7	1,159
B701	137	Extend or amend Experimental Use Permit.	4	1,159

''TABLE 15. — BIOPESTICIDES AND POLLUTION PREVENTION DIVISION — STRAIGHT CHAIN LEPIDOPTERAN PHEROMONES(SCLPS)—Continued

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
B710	138	New product; registered source of active ingredient(s); identical or substantially similar in composition and use to a registered product; no change in an established tolerance or tolerance exemption. No data review, or only product chemistry data; cite-all data citation, or selective data citation where applicant owns all required data or authorization from data owner is demonstrated. Category includes 100% re-package of registered end-use or manufacturing-use product that requires no data submission or data matrix. (3)	4	1,159
B720	139	New product; registered source of active ingredient(s); requires: 1) submission of product specific data; or 2) citation of previously reviewed and accepted data; or 3) submission or citation of data generated at government expense; or 4) submission or citation of a scientifically-sound rationale based on publicly available literature or other relevant information that addresses the data requirement; or 5) submission of a request for a data requirement to be waived supported by a scientifically-sound rationale explaining why the data requirement does not apply. (3)	5	1,159
B721	140	New product; unregistered source of active ingredient. (3)	7	2,426
B722	141	New use and/or amendment; petition to establish a tolerance or tolerance exemption. (4) (5)	7	2,246
B730	142	Label amendment requiring data submission. (4)	5	1,159

(1) A decision review time that would otherwise end on a Saturday, Sunday, or federal holiday, will be extended to end on the next business day.

(2) All requests for new uses (food and/or nonfood) contained in any application for a new active ingredient or a first food use are covered by the base fee for that new active ingredient or first food use application and retain the same decision time review period as the new active ingredient or first food use application. The application must be received by the agency in one package. The base fee for the category covers a maximum of five new products. Each application for an additional new product registration and new inert approval that is submitted in the new active ingredient application package or first food use application package is subject to the registration service fee for a new product or a new inert approval. All such associated applications that are submitted together will be subject to the new active ingredient or first food use decision review time, except where the new inert approval decision review time is greater than that for the new active ingredient, in which case the associated new active ingredient will be subject to the new inert approval decision review time. In the case of a new active ingredient application, until that new active ingredient is approved, any subsequent application for another new product containing the same active ingredient or an amendment to the proposed labeling will be deemed a new active ingredient application, subject to the registration service fee and decision review time for a new active ingredient. In the case of a first food use application, until that first food use is approved, any subsequent application for an additional new food use or uses will be subject to the registration service fee and decision review time for a first food use. Any information that (a) was neither requested nor required by the Agency, and (b) is submitted by the applicant at the applicant's initiative to support the application after completion of the technical deficiency screening, and (c) is not itself a covered registration application, must be assessed 25% of the full registration service fee for the new active ingredient or first food use application.

(3) An application for a new end-use product using a source of active ingredient that (a) is not yet registered but (b) has an application pending with the Agency for review, will be considered an application for a new product with an unregistered source of active ingredient.

(4) (a) EPA-initiated amendments shall not be charged registration service fees. (b) Registrant-initiated fast-track amendments are to be completed within the timelines specified in FIFRA Section 3(c)(3)(B) and are not subject to registration service fees. (c) Registrant-initiated fast-track amendments handled by the Antimicrobials Division are to be completed within the timelines specified in FIFRA Section 3(h) and are not subject to registration service fees. (d) Registrant initiated amendments submitted by notification under PR Notices, such as PR Notice 98–10, continue under PR Notice timelines and are not subject to registration service fees. (e) Submissions with data and requiring data review are subject to registration service fees.

(5) Amendment applications to add the new use(s) to registered product labels are covered by the base fee for the new use(s). All items in the covered application must be submitted together in one package. Each application for an additional new product registration and new inert approval(s) that is submitted in the new use application package is subject to the registration service fee for a new product or a new inert approval. However, if a new use application only proposes to register the new use for a new product and there are no amendments in the application, then review of one new product application is covered by the new use fee. All such associated applications that are submitted together will be subject to the new use decision review time. Any application for a new product or an amendment to the proposed labeling (a) submitted subsequent to submission of the new use application and (b) prior to conclusion of its decision review time and (c) containing the same new uses, will be deemed a separate new-use application, subject to a separate registration service fee and new decision review time for a new use. If the new-use application includes non-food (indoor and/or outdoor), and food (outdoor and/or indoor) uses, the appropriate fee is due for each type of new use and the longest decision review time applies to all of the new uses requested in the application. Any information that (a) was neither requested nor required by the Agency, and (b) is submitted by the applicant at the applicant's initiative to support the application after completion of the technical deficiency screen, and (c) is not itself a covered registration application, must be assessed 25% of the full registration service fee for the new use application.

''TABLE 16. — BIOPESTICIDES AND POLLUTION PREVENTION DIVISION — OTHER ACT

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
B614 New	143	Conditional Ruling on Preapplication Study Waivers; applicant-initiated	3	2,294
B615 New	144	Rebuttal of agency reviewed protocol, applicant initiated	3	2,294

''TABLE 16. — BIOPESTICIDES AND POLLUTION PREVENTION DIVISION — OTHER ACT—Continued

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
B682	145	Protocol review; applicant initiated; excludes time for HSRB review	3	2,205

(1) A decision review time that would otherwise end on a Saturday, Sunday, or federal holiday, will be extended to end on the next business day.

''TABLE 17. — BIOPESTICIDES AND POLLUTION PREVENTION DIVISION — PLANT INCORPORATED PROTECTANTS (PIPS)

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
B740	146	Experimental Use Permit application; no petition for tolerance/tolerance exemption. Includes: 1) non-food/feed use(s) for a new (2) or registered (3) PIP; 2) food/feed use(s) for a new or registered PIP with crop destruct; 3) food/feed use(s) for a new or registered PIP in which an established tolerance/tolerance exemption exists for the intended use(s). (4)	6	86,823
B750	147	Experimental Use Permit application; with a petition to establish a temporary or permanent tolerance/tolerance exemption for the active ingredient. Includes new food/feed use for a registered (3) PIP. (4)	9	115,763
B770	148	Experimental Use Permit application; new (2) PIP; with petition to establish a temporary tolerance/tolerance exemption for the active ingredient; credit 75% of B771 fee toward registration application for a new active ingredient that follows; SAP review. (5)	15	173,644
B771	149	Experimental Use Permit application; new (2) PIP; with petition to establish a temporary tolerance/tolerance exemption for the active ingredient; credit 75% of B771 fee toward registration application for a new active ingredient that follows.	10	115,763
B772	150	Application to amend or extend an Experimental Use Permit; no petition since the established tolerance/tolerance exemption for the active ingredient is unaffected.	3	11,577
B773	151	Application to amend or extend an Experimental Use Permit; with petition to extend a temporary tolerance/tolerance exemption for the active ingredient.	5	28,942
B780	152	Registration application; new (2) PIP; non-food/feed.	12	144,704
B790	153	Registration application; new (2) PIP; non-food/feed; SAP review. (5)	18	202,585
B800	154	Registration application; new (2) PIP; with petition to establish permanent tolerance/tolerance exemption for the active ingredient based on an existing temporary tolerance/tolerance exemption.	12	231,585
B810	155	Registration application; new (2) PIP; with petition to establish permanent tolerance/tolerance exemption for the active ingredient based on an existing temporary tolerance/tolerance exemption. SAP review. (5)	18	289,407
B820	156	Registration application; new (2) PIP; with petition to establish or amend a permanent tolerance/tolerance exemption of an active ingredient.	15	289,407
B840	157	Registration application; new (2) PIP; with petition to establish or amend a permanent tolerance/tolerance exemption of an active ingredient. SAP review. (5)	21	347,288
B851	158	Registration application; new event of a previously registered PIP active ingredient(s); no petition since permanent tolerance/tolerance exemption is already established for the active ingredient(s).	9	115,763
B870	159	Registration application; registered (3) PIP; new product; new use; no petition since a permanent tolerance/tolerance exemption is already established for the active ingredient(s). (4)	9	34,729
B880	160	Registration application; registered (3) PIP; new product or new terms of registration; additional data submitted; no petition since a permanent tolerance/tolerance exemption is already established for the active ingredient(s). (6) (7)	9	28,942

''TABLE 17. — BIOPESTICIDES AND POLLUTION PREVENTION DIVISION — PLANT INCORPORATED PROTECTANTS (PIPS)—Continued

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
B881	161	Registration application; registered (3) PIP; new product or new terms of registration; additional data submitted; no petition since a permanent tolerance/tolerance exemption is already established for the active ingredient(s). SAP review. (5) (6) (7)	15	86,823
B883 New	162	Registration application; new (2) PIP, seed increase with negotiated acreage cap and time-limited registration; with petition to establish a permanent tolerance/tolerance exemption for the active ingredient based on an existing temporary tolerance/tolerance exemption. (8)	9	115,763
B884 New	163	Registration application; new (2) PIP, seed increase with negotiated acreage cap and time-limited registration; with petition to establish a permanent tolerance/tolerance exemption for the active ingredient. (8)	12	144,704
B885 New	164	Registration application; registered (3) PIP, seed increase; breeding stack of previously approved PIPs, same crop; no petition since a permanent tolerance/tolerance exemption is already established for the active ingredient(s). (9)	9	86,823
B890	165	Application to amend a seed increase registration; converts registration to commercial registration; no petition since permanent tolerance/tolerance exemption is already established for the active ingredient(s).	9	57,882
B891	166	Application to amend a seed increase registration; converts registration to a commercial registration; no petition since a permanent tolerance/tolerance exemption already established for the active ingredient(s); SAP review. (5)	15	115,763
B900	167	Application to amend a registration, including actions such as extending an expiration date, modifying an IRM plan, or adding an insect to be controlled. (10) (11)	6	11,577
B901	168	Application to amend a registration, including actions such as extending an expiration date, modifying an IRM plan, or adding an insect to be controlled. SAP review. (10) (11)	12	69,458
B902	169	PIP protocol review	3	5,789
B903	170	Inert ingredient tolerance exemption; e.g., a marker such as NPT II; reviewed in BPPD.	6	57,882
B904	171	Import tolerance or tolerance exemption; processed commodities/food only (inert or active ingredient).	9	115,763

(1) A decision review time that would otherwise end on a Saturday, Sunday, or federal holiday, will be extended to end on the next business day.
(2) New PIP = a PIP with an active ingredient that has not been registered.
(3) Registered PIP = a PIP with an active ingredient that is currently registered.
(4) Transfer registered PIP through conventional breeding for new food/feed use, such as from field corn to sweet corn.
(5) The scientific data involved in this category are complex. EPA often seeks technical advice from the Scientific Advisory Panel on risks that pesticides pose to wildlife, farm workers, pesticide applicators, non-target species, as well as insect resistance, and novel scientific issues surrounding new technologies. The scientists of the SAP neither make nor recommend policy decisions. They provide advice on the science used to make these decisions. Their advice is invaluable to the EPA as it strives to protect humans and the environment from risks posed by pesticides. Due to the time it takes to schedule and prepare for meetings with the SAP, additional time and costs are needed.
(6) Registered PIPs stacked through conventional breeding.
(7) Deployment of a registered PIP with a different IRM plan (e.g., seed blend).
(8) The negotiated acreage cap will depend upon EPA's determination of the potential environmental exposure, risk(s) to non-target organisms, and the risk of targeted pest developing resistance to the pesticidal substance. The uncertainty of these risks may reduce the allowable acreage, based upon the quantity and type of non-target organism data submitted and the lack of insect resistance management data, which is usually not required for seed-increase registrations. Registrants are encouraged to consult with EPA prior to submission of a registration application in this category.
(9) Application can be submitted prior to or concurrently with an application for commercial registration.
(10) For example, IRM plan modifications that are applicant-initiated.
(11) EPA-initiated amendments shall not be charged fees.

''TABLE 18. — INERT INGREDIENTS, EXTERNAL REVIEW AND MISCELLANEOUS ACTIONS

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
I001	172	Approval of new food use inert ingredient (2) (3)	12	18,000
I002 New	173	Amend currently approved inert ingredient tolerance or exemption from tolerance; new data (2)	10	5,000

''TABLE 18. — INERT INGREDIENTS, EXTERNAL REVIEW AND MISCELLANEOUS ACTIONS—Continued

EPA No.	New CR No.	Action	Decision Review Time (Months) (1)	Registration Service Fee ($)
I003 New	174	Amend currently approved inert ingredient tolerance or exemption from tolerance; no new data (2)	8	3,000
I004 New	175	Approval of new non-food use inert ingredient (2)	8	10,000
I005 New	176	Amend currently approved non-food use inert ingredient with new use pattern; new data (2)	8	5,000
I006 New	177	Amend currently approved non-food use inert ingredient with new use pattern; no new data (2)	6	3,000
I007 New	178	Approval of substantially similar non-food use inert ingredients when original inert is compositionally similar with similar use pattern (2)	4	1,500
I008 New	179	Approval of new polymer inert ingredient, food use (2)	5	3,400
I009 New	180	Approval of new polymer inert ingredient, non food use (2)	4	2,800
I010 New	181	Petition to amend a tolerance exemption descriptor to add one or more CASRNs; no new data (2)	6	1,500
M001 New	182	Study protocol requiring Human Studies Review Board review as defined in 40 CFR 26 in support of an active ingredient (4)	9	7,200
M002 New	183	Completed study requiring Human Studies Review Board review as defined in 40 CFR 26 in support of an active ingredient (4)	9	7,200
M003 New	184	External technical peer review of new active ingredient, product, or amendment (e.g., consultation with FIFRA Scientific Advisory Panel) for an action with a decision timeframe of less than 12 months. Applicant initiated request based on a requirement of the Administrator, as defined by FIFRA § 25(d), in support of a novel active ingredient, or unique use pattern or application technology. Excludes PIP active ingredients. (5)	12	58,000
M004 New	185	External technical peer review of new active ingredient, product, or amendment (e.g., consultation with FIFRA Scientific Advisory Panel) for an action with a decision timeframe of greater than 12 months. Applicant initiated request based on a requirement of the Administrator, as defined by FIFRA § 25(d), in support of a novel active ingredient, or unique use pattern or application technology. Excludes PIP active ingredients. (5)	18	58,000
M005 New	186	New Product: Combination, Contains a combination of active ingredients from a registered and/or unregistered source; conventional, antimicrobial and/or biopesticide. Requires coordination with other regulatory divisions to conduct review of data, label and/or verify the validity of existing data as cited. Only existing uses for each active ingredient in the combination product. (6) (7)	9	20,000
M006 New	187	Request for up to 5 letters of certification (Gold Seal) for one actively registered product.	1	250
M007 New	188	Request to extend Exclusive Use of data as provided by FIFRA Section 3(c)(1)(F)(ii)	12	5,000
M008 New	189	Request to grant Exclusive Use of data as provided by FIFRA Section 3(c)(1)(F)(vi) for a minor use, when a FIFRA Section 2(ll)(2) determination is required	10	1,500

(1) A decision review time that would otherwise end on a Saturday, Sunday, or federal holiday, will be extended to end on the next business day.

(2) If another covered application is associated with and dependent upon a pending application for an inert ingredient action, each application will be subject to its respective registration service fee. The decision review time for the other associated covered application will be extended to match the PRIA due date of the pending inert ingredient action, unless the PRIA due date for the other associated covered action is further out, in which case it will be subject to its own decision review time. If the application covers multiple ingredients grouped by EPA into one chemical class, a single registration service fee will be assessed for approval of those ingredients.

(3) If EPA data rules are amended to newly require clearance under section 408 of the FFDCA for an ingredient of an antimicrobial product where such ingredient was not previously subject to such a clearance, then review of the data for such clearance of such product is not subject to a registration service fee for the tolerance action for two years from the effective date of the rule.

(4) Any other covered application that is associated with and dependent on the HSRB review will be subject to its separate registration service fee. The decision review times for the associated actions run concurrently, but will end at the date of the latest review time.

(5) Any other covered application that is associated with and dependent on the SAP review will be subject to its separate registration service fee. The decision review time for the associated action will be extended by the decision review time for the SAP review.

(6) An application for a new end-use product using a source of active ingredient that (a) is not yet registered but (b) has an application pending with the Agency for review, will be considered an application for a new product with an unregistered source of active ingredient.

(7) Where the action involves approval of a new or amended label, on or before the end date of the decision review time, the Agency shall provide to the applicant a draft accepted label, including any changes made by the Agency that differ from the applicant-submitted label and relevant supporting data reviewed by the Agency. The applicant will notify the Agency that the applicant either (a) agrees to all of the terms associated with the draft accepted label as amended by the Agency and requests that it be issued as the accepted final Agency-stamped label; or (b) does not agree to one or more of the terms of the draft accepted label as amended by the Agency and requests additional time to resolve the difference(s); or (c) withdraws the application without prejudice for subsequent resubmission, but forfeits the associated registration service fee. For cases described in (b), the applicant shall have up to 30 calendar days to reach agreement with the Agency on the final terms of the Agency-accepted label. If the applicant agrees to all of the terms of the accepted label as in (a), including upon resolution of differences in (b), the Agency shall provide an accepted final Agency-stamped label to the registrant within 2 business days following the registrant's written or electronic confirmation of agreement to the Agency.'';

(B) in paragraph (6)—

(i) in subparagraph (A)—

(I) by striking ''October 1, 2008'' and inserting ''October 1, 2013''; and

(II) by striking ''September 30, 2010'' and inserting ''September 30, 2015''; and

(ii) in subparagraph (B)—

(I) by striking ''October 1, 2010'' and inserting ''October 1, 2015''; and

(II) by striking ''September 30, 2010'' and inserting ''September 30, 2015''; and

(C) in paragraph (8)(C)(ii)—

(i) in subclause (I), by striking ''or'' at the end;

(ii) in subclause (II), by striking the period at the end and inserting ''; or''; and

(iii) by adding at the end the following:

''(III) on the basis that the Administrator rejected the application under subsection (f)(4)(B).''.

(2) PESTICIDE REGISTRATION FUND.—Section 33(c)(3)(B) of the Federal Insecticide, Fungicide, and Rodenticide Act (7 U.S.C. 136w–8(c)(3)(B)) is amended—

(A) in clause (i), by striking ''2008 through 2012'' and inserting ''2013 through 2017'';

(B) in clause (ii), by striking ''grants'' and all that follows through the end of the clause and inserting ''grants, for each of fiscal years 2013 through 2017, $500,000.''; and

(C) in clause (iii), by striking ''2008 through 2012'' and inserting ''2013 through 2017''.

(3) ASSESSMENT OF FEES.—Section 33(d) of the Federal Insecticide, Fungicide, and Rodenticide Act (7 U.S.C. 136w–8(d)) is amended—

(A) in paragraph (2), by striking ''2002'' each place it appears and inserting ''2012'';

(B) by striking paragraph (4); and

(C) by redesignating paragraph (5) as paragraph (4).

(4) REFORMS TO REDUCE DECISION TIME REVIEW PERIODS.—Section 33(e) of the Federal Insecticide, Fungicide, and Rodenticide Act (7 U.S.C. 136w–8(e)) is amended by striking ''Pesticide Registration Improvement Act of 2003'' and inserting ''Pesticide Registration Improvement Extension Act of 2012''.

(5) DECISION TIME REVIEW PERIODS.—Section 33(f) of the Federal Insecticide, Fungicide, and Rodenticide Act (7 U.S.C. 136w–8(f)) is amended—

(A) in paragraph (1), by striking ''Pesticide Registration Improvement Renewal Act, the Administrator shall publish in the Federal Register'' and inserting ''Pesticide Registration Improvement Extension Act of 2012, the Administrator shall make publicly available'';

(B) in paragraph (2), by striking ''appearing in the Congressional Record on pages S10409'' and all that follows through the period and inserting ''provided under subsection (b)(3).''; and

(C) in paragraph (4)—

(i) in subparagraph (A), by inserting ''and fee'' before the period; and

(ii) in subparagraph (B)—

(I) by striking ''(B) COMPLETENESS OF APPLICATION'' and all that follows through ''Not later'' in clause (i) and inserting the following:

''(B) INITIAL CONTENT AND PRELIMINARY TECHNICAL SCREENINGS.—

''(i) SCREENINGS.—

''(I) INITIAL CONTENT.—Not later'';

(II) in clause (i) (as so designated) by adding at the end the following:

''(II) PRELIMINARY TECHNICAL SCREENING.—After conducting the initial content screening described in subclause (I) and in accordance with clause (iv), the Administrator shall conduct a preliminary technical screening—

''(aa) not later than 45 days after the date on which the decision time review period begins (for applications with decision time review periods of not more than 180 days); and

''(bb) not later than 90 days after the date on which the decision time review period begins (for applications with decision time review periods greater than 180 days).'';

(III) by striking clause (ii) and inserting the following:

''(ii) REJECTION.—

''(I) IN GENERAL.—If the Administrator determines at any time before the Administrator completes the preliminary technical screening under clause (i)(II) that the application failed the initial content or preliminary technical screening and the applicant does not correct the failure before the date that is 10 business days after the applicant receives a notification of the failure, the Administrator shall reject the application.

''(II) WRITTEN NOTIFICATION.—The Administrator shall make every effort to provide a written notification of a rejection under subclause (I) during the 10-day period that begins on the date the Administrator completes the preliminary technical screening.'';

(IV) in clause (iii)—

(aa) in the heading, by inserting ''INITIAL CONTENT'' before ''SCREENING'' ;

(bb) in the matter preceding subclause (I), by inserting ''content'' after ''initial''; and

(cc) in subclause (II), by striking ''contains'' and inserting ''appears to contain''; and

(V) by adding at the end the following:

''(iv) REQUIREMENTS OF PRELIMINARY TECHNICAL SCREENING.—In conducting a preliminary technical screening of an application, the Administrator shall determine if—

''(I) the application and the data and information submitted with the application are accurate and complete; and

''(II) the application, data, and information are consistent with the proposed labeling and any proposal for a tolerance or exemption from the requirement for a tolerance under section 408 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 346a), and are such that, subject to full review under the standards of this Act, could result in the granting of the application.''.

(6) REPORTS.—Section 33(k) of the Federal Insecticide, Fungicide, and Rodenticide Act (7 U.S.C. 136w–8(k)) is amended—

(A) in paragraph (1), by striking ''March 1, 2014'' and inserting ''March 1, 2017'';

(B) in paragraph (2)—

(i) in subparagraph (A)—

(I) in clause (vi)(V), by striking ''and'' at the end;

(II) in clause (vii)(II), by inserting ''and'' at the end; and

(III) by adding at the end the following:

''(viii) the number of extensions of decision time review periods agreed to under subsection (f)(5) along with a description of the reason that the Administrator was unable to make a decision within the initial decision time review period;'';

(ii) in subparagraph (E), by striking ''and'' at the end;

(iii) in subparagraph (F), by striking the period and inserting a semicolon; and

(iv) by adding at the end the following:

''(G) a review of the progress made toward—

''(i) carrying out section 4(k)(4) and the amounts from the Reregistration and Expedited Processing Fund used for the purposes described in that section;

''(ii) implementing systems for the electronic tracking of registration submissions by December 31, 2013;

''(iii) implementing a system for tracking the status of conditional registrations, including making nonconfidential information related to the conditional registrations publicly available by December 31, 2013;

''(iv) implementing enhancements to the endangered species knowledge database, including making nonconfidential information related to the database publicly available;

''(v) implementing the capability to electronically submit and review labels submitted with registration actions;

''(vi) acquiring and implementing the capability to electronically assess and evaluate confidential statements of formula submitted with registration actions by December 31, 2014; and

''(vii) facilitating public participation in certain registration actions and the registration review process by providing electronic notification to interested parties of additions to the public docket;

''(H) the number of applications rejected by the Administrator under the initial content and preliminary technical screening conducted under subsection (f)(4);

''(I) a review of the progress made in updating the Pesticide Incident Data System, including progress toward making the information contained in the System available to the public (as the Administrator determines is appropriate); and

''(J) an assessment of the public availability of summary pesticide usage data.''; and

(C) by adding at the end the following:

''(4) OTHER REPORT.—

''(A) SCOPE.—In addition to the annual report described in paragraph (1), not later than October 1, 2016, the Administrator shall submit to the Committee on Agriculture of the House of Representatives and the Committee on Agriculture, Nutrition, and Forestry of the Senate a report that includes an analysis of the impact of maintenance fees on small businesses that have—

''(i) 10 or fewer employees; and

''(ii) annual global gross revenue that does not exceed $2,000,000.

''(B) INFORMATION REQUIRED.—In conducting the analysis described in subparagraph (A), the Administrator shall collect, and include in the report under that subparagraph, information on—

''(i) the number of small businesses described in subparagraph (A) that are paying maintenance fees; and

''(ii) the number of registrations each company holds.''.

(7) TERMINATION OF EFFECTIVENESS.—Section 33(m) of the Federal Insecticide, Fungicide, and Rodenticide Act (7 U.S.C. 136w–8(m)) is amended—

(A) in paragraph (1), by striking ''2012'' and inserting ''2017''; and

(B) in paragraph (2)—

(i) in subparagraph (A)—

(I) in the heading, by striking ''2013'' and inserting ''2018'';

(II) by striking ''2013,'' and inserting ''2018,''; and

(III) by striking ''September 30, 2012'' and inserting ''September 30, 2017'';

(ii) in subparagraph (B)—

(I) in the heading, by striking ''2014'' and inserting ''2019'';

(II) by striking ''2014,'' and inserting ''2019,''; and

(III) by striking ''September 30, 2012'' and inserting ''September 30, 2017'';

(iii) in subparagraph (C)—

(I) in the heading, by striking ''2014'' and inserting ''2019''; and

(II) by striking ''September 30, 2014'' and inserting ''September 30, 2019''; and

(iv) in subparagraph (D), by striking ''2012'' each place it appears and inserting ''2017''.

(c) EFFECTIVE DATE.—This section and the amendments made by this section take effect on October 1, 2012.

(d) RELATIONSHIP TO OTHER LAW.—In the case of any conflict between this section (including the amendments made by this section) and a joint resolution making continuing appropriations for fiscal year 2013 (including any amendments made by such a joint resolution), this section and the amendments made by this section shall control.

STATE AND PROVINCE EMERGENCY MANAGEMENT ASSISTANCE MEMORANDUM OF UNDERSTANDING

Mr. DURBIN. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of S.J. Res. 44.

The PRESIDING OFFICER. The clerk will report the joint resolution by title.

The bill clerk read as follows:

A joint resolution (S.J. Res. 44) granting the consent of Congress to the State and Province Emergency Management Assistance Memorandum of Understanding.

There being no objection, the Senate proceeded to consider the joint resolution.

Mr. DURBIN. Mr. President, I ask unanimous consent that the joint resolution be read a third time and passed, the motion to reconsider be laid upon the table, with no intervening action or debate, and any statements related to the joint resolution be printed in the RECORD.

The PRESIDING OFFICER. Without objection, it is so ordered.

The joint resolution (S.J. Res. 44) was ordered to be engrossed for a third reading, was read the third time, and passed, as follows:

S.J. RES. 44

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. CONGRESSIONAL CONSENT.

Congress consents to the State and Province Emergency Management Assistance Memorandum of Understanding entered into between States of Illinois, Indiana, Ohio, Michigan, Minnesota, Montana, North Dakota, Pennsylvania, New York, and Wisconsin, and the Canadian Provinces of Alberta, Manitoba, Ontario, and Saskatchewan. The compact is substantially as follows:

''ARTICLE I—PURPOSE AND AUTHORITIES

''The State and Province Emergency Management Assistance Memorandum of Understanding, hereinafter referred to as the 'compact', is made and entered into by and among such of the jurisdictions as shall enact or adopt this compact, hereinafter referred to as 'participating jurisdictions'. For the purposes of this compact, the term 'jurisdictions' may include any or all of the States of Illinois, Indiana, Ohio, Michigan, Minnesota, Montana, North Dakota, Pennsylvania, New York, and Wisconsin, and the Canadian Provinces of Alberta, Manitoba, Ontario, and Saskatchewan, and such other States and provinces as may hereafter become a party to this compact. The term 'States' means the several States, the Commonwealth of Puerto Rico, the District of Columbia, and all territorial possessions of the United States. The term 'Province' means the 10 political units of government within Canada.

''The purpose of this compact is to provide for the possibility of mutual assistance among the participating jurisdictions in managing any emergency or disaster when the affected jurisdiction or jurisdictions ask for assistance, whether arising from natural disaster, technological hazard, manmade disaster or civil emergency aspects of resources shortages.

''This compact also provides for the process of planning mechanisms among the agencies responsible and for mutual cooperation, including civil emergency preparedness exercises, testing, or other training activities using equipment and personnel simulating performance of any aspect of the giving and receiving of aid by participating jurisdictions or subdivisions of participating jurisdictions during emergencies, with such actions occurring outside emergency periods.

''ARTICLE II—GENERAL IMPLEMENTATION

''Each participating jurisdiction entering into this compact recognizes that many emergencies may exceed the capabilities of a participating jurisdiction and that intergovernmental cooperation is essential in such circumstances. Each participating jurisdiction further recognizes that there will be emergencies that may require immediate access and present procedures to apply outside resources to make a prompt and effective response to such an emergency because few, if any, individual jurisdictions have all the resources they need in all types of emergencies or the capability of delivering resources to areas where emergencies exist.

''On behalf of the participating jurisdictions in the compact, the legally designated official who is assigned responsibility for emergency management is responsible for formulation of the appropriate inter-jurisdictional mutual aid plans and procedures necessary to implement this compact, and for recommendations to the participating jurisdiction concerned with respect to the amendment of any statutes, regulations, or ordinances required for that purpose.

''ARTICLE III—PARTICIPATING JURISDICTION RESPONSIBILITIES

''(a) FORMULATE PLANS AND PROGRAMS.—It is the responsibility of each participating jurisdiction to formulate procedural plans and programs for inter-jurisdictional cooperation in the performance of the responsibilities listed in this section. In formulating and implementing such plans and programs the participating jurisdictions, to the extent practical, may—

''(1) share and review individual jurisdiction hazards analyses that are available and determine all those potential emergencies the participating jurisdictions might jointly suffer, whether due to natural disaster, technological hazard, man-made disaster or emergency aspects of resource shortages;

''(2) share emergency operations plans, procedures, and protocols established by each of the participating jurisdictions before entering into this compact;

''(3) share policies and procedures for resource mobilization, tracking, demobilization, and reimbursement;

''(4) consider joint planning, training, and exercises;

''(5) assist with alerts, notifications, and warnings for communities adjacent to or crossing participating jurisdiction boundaries;

''(6) consider procedures to facilitate the movement of evacuees, refugees, civil emergency personnel, equipment, or other resources into or across boundaries, or to a designated staging area when it is agreed that such movement or staging will facilitate civil emergency operations by the affected or participating jurisdictions; and

''(7) provide, to the extent authorized by law, for temporary suspension of any statutes or ordinances that impeded the implementation of responsibilities described in this section.

''(b) REQUEST ASSISTANCE.—The authorized representative of a participating jurisdiction may request assistance of another participating jurisdiction by contacting the authorized representative of that jurisdiction. These provisions only apply to requests for assistance made by and to authorized representatives. Requests may be verbal or in writing. If verbal, the request must be confirmed in writing within 15 days of the verbal request. Requests must provide the following information:

''(1) A description of the emergency service function for which assistance is needed and of the mission or missions, including but not limited to fire services, emergency medical, transportation, communications, public works and engineering, building inspection, planning and information assistance, mass

care, resource support, health and medical services, and search and rescue.

''(2) The amount and type of personnel, equipment, materials, and supplies needed and a reasonable estimate of the length of time they will be needed.

''(3) The specific place and time for staging of the assisting participating jurisdictions's response and a point of contact at the location.

''(c) CONSULTATION AMONG PARTICIPATING JURISDICTION OFFICIALS.—There shall be periodic consultation among the authorized representatives who have assigned emergency management responsibilities.

''ARTICLE IV—LIMITATION

''It is recognized that any participating jurisdiction that agrees to render mutual aid or conduct exercises and training for mutual aid will respond as soon as possible. It is also recognized that the participating jurisdiction rendering aid may withhold or recall resources to provide reasonable protection for itself, at its discretion. To the extent authorized by law, each participating jurisdiction will afford to the personnel of the emergency contingent of any other participating jurisdiction while operating within its jurisdiction limits under the terms and conditions of this agreement and under the operational control of an officer of the requesting participating jurisdiction the same treatment as is afforded similar or like human resources of the participating jurisdiction in which they are performing emergency services. Staff comprising the emergency contingent continue under the command and control of their regular leaders but the organizational units come under the operational control of the emergency services authorities of the participating jurisdiction receiving assistance. These conditions may be activated, as needed, by the participating jurisdiction that is to receive assistance or upon commencement of exercises or training for mutual aid and continue as long as the exercises or training for mutual aid are in progress, the emergency or disaster remains in effect or loaned resources remain in the receiving participating jurisdictions, whichever is longer. The receiving participating jurisdiction is responsible for informing the assisting participating jurisdiction when services will no longer be required.

''ARTICLE V—LICENSES AND PERMITS

''Whenever a person holds a license, certificate, or other permit issued by any participating jurisdiction evidencing the meeting of qualifications for professional, mechanical, or other skills, and when such assistance is requested by the receiving participating jurisdiction, such person is deemed to be licensed, certified, or permitted by the jurisdiction requesting assistance to render aid involving such skill to meet an emergency or disaster, subject to such limitations and conditions as the requesting jurisdiction prescribes by Executive order or otherwise.

''ARTICLE VI—LIABILITY

''Any person or entity of a participating jurisdiction rendering aid in another jurisdiction pursuant to this compact is considered an agent of the requesting jurisdiction for tort liability and immunity purposes. Any person or entity rendering aid in another jurisdiction pursuant to this compact is not liable on account of any act or omission in good faith on the part of such forces while so engaged or on account of the maintenance or use of any equipment or supplies in connection therewith. Good faith in this article does not include willful misconduct, gross negligence, or recklessness.

''ARTICLE VII—SUPPLEMENTARY AGREEMENTS

''Because it is probable that the pattern and detail of the compact for mutual aid among 2 or more participating jurisdictions may differ from that among the participating jurisdictions that are party to this compact, this compact contains elements of a broad base common to all participating jurisdictions, and nothing in this compact precludes any participating jurisdiction from entering into supplementary agreements with another jurisdiction or affects any other agreements already in force among participating jurisdictions.

''Supplementary agreements may include, but are not limited to, provisions for evacuation and reception of injured and other persons and the exchange of medical, fire, public utility, reconnaissance, welfare, transportation and communications personnel, equipment, and supplies.

''ARTICLE VIII—WORKERS' COMPENSATION AND DEATH BENEFITS

''Each participating jurisdiction shall provide, in accordance with its own laws, for the payment of workers' compensation and death benefits to injured members of the emergency contingent of that participating jurisdiction and to representatives of deceased members of those forces if the members sustain injuries or are killed while rendering aid pursuant to this compact, in the same manner and on the same terms as if the injury or death were sustained within their own jurisdiction.

''ARTICLE IX—REIMBURSEMENT

''Any participating jurisdiction rendering aid in another jurisdiction pursuant to this compact shall, if requested, be reimbursed by the participating jurisdiction receiving such aid for any loss or damage to, or expense incurred in, the operation of any equipment and the provision of any service in answering a request for aid and for the costs incurred in connection with those requests. An aiding participating jurisdiction may assume in whole or in part any such loss, damage, expense, or other cost or may loan such equipment or donate such services to the receiving participating jurisdiction without charge or cost. Any 2 or more participating jurisdictions may enter into supplementary agreements establishing a different allocation of costs among those jurisdictions. Expenses under article VIII are not reimbursable under this section.

''ARTICLE X—IMPLEMENTATION

''(a) This compact is effective upon its execution or adoption by any 1 State and 1 province, and is effective as to any other jurisdiction upon its execution or adoption thereby: subject to approval or authorization by the United States Congress, if required, and subject to enactment of provincial or State legislation that may be required for the effectiveness of the Memorandum of Understanding.

''(b) Additional jurisdictions may participate in this compact upon execution or adoption thereof.

''(c) Any participating jurisdiction may withdraw from this compact, but the withdrawal does not take effect until 30 days after the governor or premier of the withdrawing jurisdiction has given notice in writing of such withdrawal to the governors or premiers of all other participating jurisdictions. The action does not relieve the withdrawing jurisdiction from obligations assumed under this compact prior to the effective date of withdrawal.

''(d) Duly authenticated copies of this compact in the French and English languages and of such supplementary agreements as may be entered into shall, at the time of their approval, be deposited with each of the participating jurisdictions.

''ARTICLE XI—SEVERABILITY

''This compact is construed to effectuate the purposes stated in Article I. If any provision of this compact is declared unconstitutional or the applicability of the compact to any person or circumstances is held invalid, the validity of the remainder of this compact and the applicability of the compact to other persons and circumstances are not affected.

''ARTICLE XII—CONSISTENCY OF LANGUAGE

''The validity of the arrangements and agreements consented to in this compact shall not be affected by any insubstantial difference in form or language as may be adopted by the various states and provinces.''.

SEC. 2. INCONSISTENCY OF LANGUAGE.

The validity of the arrangements consented to by this Act shall not be affected by any insubstantial difference in their form or language as adopted by the States and provinces.

SEC. 3. RIGHT TO ALTER, AMEND, OR REPEAL.

The right to alter, amend, or repeal this Act is hereby expressly reserved.

EXPRESSING APPRECIATION FOR UNITED STATES FOREIGN AND CIVIL SERVICE PROFESSIONALS AROUND THE GLOBE

Mr. DURBIN. Mr. President, I ask unanimous consent the Senate proceed to Calendar No. 386, S. Res. No. 401.

The PRESIDING OFFICER. The clerk will report.

The bill clerk read as follows:

A resolution (S. Res. 401) expressing appreciation for Foreign Service and Civil Service professionals who represent the United States around the globe.

There being no objection, the Senate proceeded to consider the resolution.

Mr. DURBIN. Mr. President, I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, the motions to reconsider be laid upon the table, with no intervening action or debate, and any statements related to the resolution be printed in the RECORD.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 401) was agreed to.

The preamble was agreed to.

The resolution, with its preamble, reads as follows:

S. RES. 401

Whereas the United States Foreign Service was established by Congress in 1924 to professionalize the country's diplomatic and consular services and advance freedom, democracy, and security for the benefit of the people of the United States and the international community;

Whereas the United States Agency for International Development was established in 1961 to support the foreign policy goals of the United States through economic, development, and humanitarian assistance;

Whereas the Department of State and the United States Agency for International Development together employ more than 27,000 United States nationals in the Foreign Service and Civil Service dedicated to promoting United States interests around the world;

Whereas Foreign Service personnel deploy to Asia, Africa, the Americas, Australia, Europe, the Middle East, and Southeast Asia on a permanent, rotating basis to defend and promote United States priorities abroad;

Whereas many Foreign Service employees spend months or years away from families and loved ones on assignment to dangerous

or inhospitable posts where family members are not permitted;

Whereas numerous Department of State and United States Agency for International Development employees have lost their lives while serving abroad;

Whereas strong and purposeful United States diplomacy and development, carried out by a diverse, professionally educated, and well-trained force of Foreign Service and Civil Service professionals, are the most cost-effective means to protect and advance United States interests abroad;

Whereas the promotion of commercial engagement by United States businesses in foreign markets and targeted international development projects support economic prosperity, job creation, and opportunities for United States business and industry;

Whereas United States diplomats are often the first line of defense against international conflict and transnational security threats;

Whereas Foreign Service and Civil Service professionals have worked to support the members of the United States Armed Forces involved in critical national security missions and military engagements in dangerous and unstable regions;

Whereas Foreign Service and Civil Service professionals administer emergency assistance in crisis situations; and

Whereas the contributions of Foreign Service and Civil Service professionals to the global advancement of international understanding, American ideals, and the promotion of freedom and democracy around the world should be commended: Now, therefore, be it

Resolved, That the Senate—

(1) recognizes and gives special appreciation to the Foreign Service and Civil Service personnel of the Department of State, the United States Agency for International Development, and other United States Government agencies that promote and protect United State priorities abroad; and

(2) owes a debt of gratitude to these individuals, and their families, who put public service and pride in their country ahead of comfort, convenience, and even safety in service to the United States and the global community.

MEASURE READ THE FIRST TIME—H.R. 5949

Mr. DURBIN. Mr. President, I understand there is a bill at the desk. I ask for its first reading.

The PRESIDING OFFICER. The clerk will read the bill by title for the first time.

The bill clerk read as follows:

A bill (H.R. 5949) to extend the FISA Amendments Act of 2008 for five years.

Mr. DURBIN. I now ask for a second reading, and in order to place the bill on the calendar under the provisions of rule XIV, I object to my own request.

The PRESIDING OFFICER. Objection is heard. The bill will be read for the second time on the next legislative day.

ORDERS THROUGH WEDNESDAY, SEPTEMBER 19, 2012

Mr. DURBIN. I ask unanimous consent when the Senate completes its business today, it adjourn until 2 p.m. on Monday, September 17, 2012, for a pro forma session only, with no business conducted; that following the pro forma session, the Senate adjourn until 10 a.m. on Wednesday, September 19, 2012; that following the prayer and pledge, the Journal of proceedings be approved to date, the morning hour be deemed expired, and the time for the two leaders be reserved for their use later in the day; that the majority leader be recognized and that following the remarks of the two leaders, the Senate resume consideration of S. 3457, the Veterans Jobs Corps Act, under the previous order; that following the vote on the motion to waive the Budget Act with respect to the substitute amendment, No. 2789, the majority leader be recognized, and that following his remarks the Senate recess until 2:15 p.m. to allow for the weekly caucus meetings.

The PRESIDING OFFICER. Without objection, it is so ordered.

PROGRAM

Mr. DURBIN. The Senate will be in pro forma session on Monday and out of session on Tuesday in order to accommodate Rosh Hashanah. The next rollcall vote will be at noon on Wednesday. There will also be a cloture vote on the motion to proceed to the continuing resolution at 2:15 p.m. next Wednesday.

ADJOURNMENT UNTIL MONDAY, SEPTEMBER 17, 2012, at 2 P.M.

Mr. DURBIN. If there is no further business to come before the Senate, I ask unanimous consent that it adjourn under the previous order.

There being no objection, the Senate, at 8:03 p.m., adjourned until Monday, September 17, 2012, at 2 p.m.

NOMINATIONS

Executive nominations received by the Senate:

DEPARTMENT OF COMMERCE

MARK DOMS, OF MARYLAND, TO BE UNDER SECRETARY OF COMMERCE FOR ECONOMIC AFFAIRS, VICE REBECCA M. BLANK, RESIGNED.

AMTRAK BOARD OF DIRECTORS

CHRISTOPHER R. BEALL, OF OKLAHOMA, TO BE A DIRECTOR OF THE AMTRAK BOARD OF DIRECTORS FOR A TERM OF FIVE YEARS, VICE DONNA R. MCLEAN, TERM EXPIRED.

METROPOLITAN WASHINGTON AIRPORTS AUTHORITY

WILLIAM SHAW MCDERMOTT, OF MASSACHUSETTS, TO BE A MEMBER OF THE BOARD OF DIRECTORS OF THE METROPOLITAN WASHINGTON AIRPORTS AUTHORITY FOR A TERM EXPIRING NOVEMBER 22, 2017, VICE ROBERT CLARKE BROWN, TERM EXPIRED.

NINA MITCHELL WELLS, OF NEW JERSEY, TO BE A MEMBER OF THE BOARD OF DIRECTORS OF THE METROPOLITAN WASHINGTON AIRPORTS AUTHORITY FOR A TERM EXPIRING MAY 30, 2018, VICE CHARLES DARWIN SNELLING, TERM EXPIRED.

DEPARTMENT OF STATE

DEBORAH ANN MCCARTHY, OF FLORIDA, A CAREER MEMBER OF THE SENIOR FOREIGN SERVICE, CLASS OF MINISTER-COUNSELOR, TO BE AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO THE REPUBLIC OF LITHUANIA.

UNITED NATIONS

JOAN M. PRINCE, OF WISCONSIN, TO BE AN ALTERNATE REPRESENTATIVE OF THE UNITED STATES OF AMERICA TO THE SIXTY-SEVENTH SESSION OF THE GENERAL ASSEMBLY OF THE UNITED NATIONS.

TED R. DINTERSMITH, OF VIRGINIA, TO BE AN ALTERNATE REPRESENTATIVE OF THE UNITED STATES OF AMERICA TO THE SIXTY-SEVENTH SESSION OF THE GENERAL ASSEMBLY OF THE UNITED NATIONS.

MILLENNIUM CHALLENGE CORPORATION

LORNE W. CRANER, OF VIRGINIA, TO BE A MEMBER OF THE BOARD OF DIRECTORS OF THE MILLENNIUM CHALLENGE CORPORATION FOR A TERM OF TWO YEARS. (REAPPOINTMENT)

BROADCASTING BOARD OF GOVERNORS

JEFFREY SHELL, OF CALIFORNIA, TO BE A MEMBER OF THE BROADCASTING BOARD OF GOVERNORS FOR A TERM EXPIRING AUGUST 13, 2015, VICE WALTER ISAACSON, TERM EXPIRED.

JEFFREY SHELL, OF CALIFORNIA, TO BE CHAIRMAN OF THE BROADCASTING BOARD OF GOVERNORS, VICE WALTER ISAACSON, RESIGNED.

NATIONAL FOUNDATION ON THE ARTS AND THE HUMANITIES

BRUCE CARTER, OF FLORIDA, TO BE A MEMBER OF THE NATIONAL COUNCIL ON THE ARTS FOR A TERM EXPIRING SEPTEMBER 3, 2018, VICE ROBERT BRETLEY LOTT, TERM EXPIRED.

JOHN UNSWORTH, OF MASSACHUSETTS, TO BE A MEMBER OF THE NATIONAL COUNCIL ON THE HUMANITIES FOR A TERM EXPIRING JANUARY 26, 2016, VICE JEAN B. ELSHTAIN, TERM EXPIRED.

JAMES MADISON MEMORIAL FELLOWSHIP FOUNDATION

MARTIN O'MALLEY, OF MARYLAND, TO BE A MEMBER OF THE BOARD OF TRUSTEES OF THE JAMES MADISON MEMORIAL FELLOWSHIP FOUNDATION FOR A TERM EXPIRING NOVEMBER 5, 2018. (REAPPOINTMENT)

MARTIN O'MALLEY, OF MARYLAND, TO BE A MEMBER OF THE BOARD OF TRUSTEES OF THE JAMES MADISON MEMORIAL FELLOWSHIP FOUNDATION FOR THE REMAINDER OF THE TERM EXPIRING NOVEMBER 5, 2012, VICE JOE MANCHIN III.

BARRY GOLDWATER SCHOLARSHIP AND EXCELLENCE IN EDUCATION FOUNDATION

WALTER G. SECADA, OF FLORIDA, TO BE A MEMBER OF THE BOARD OF TRUSTEES OF THE BARRY GOLDWATER SCHOLARSHIP AND EXCELLENCE IN EDUCATION FOUNDATION FOR A TERM EXPIRING MARCH 3, 2016, VICE LAURIE STENBERG NICHOLS, TERM EXPIRED.

STEWART M. DE SOTO, OF ILLINOIS, TO BE A MEMBER OF THE BOARD OF TRUSTEES OF THE BARRY GOLDWATER SCHOLARSHIP AND EXCELLENCE IN EDUCATION FOUNDATION FOR A TERM EXPIRING AUGUST 11, 2016, VICE CHARLES P. RUCH, TERM EXPIRED.

MORRIS K. UDALL AND STEWART L. UDALL FOUNDATION

ANNE J. UDALL, OF OREGON, TO BE A MEMBER OF THE BOARD OF TRUSTEES OF THE MORRIS K. UDALL AND STEWART L. UDALL FOUNDATION FOR A TERM EXPIRING OCTOBER 6, 2016. (REAPPOINTMENT)

IN THE AIR FORCE

THE FOLLOWING AIR NATIONAL GUARD OF THE UNITED STATES OFFICER FOR APPOINTMENT IN THE RESERVE OF THE AIR FORCE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTIONS 12203 AND 12212:

To be brigadier general

COL. ROBERT J. BECKLUND

THE FOLLOWING AIR NATIONAL GUARD OF THE UNITED STATES OFFICERS FOR APPOINTMENT IN THE RESERVE OF THE AIR FORCE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTIONS 12203 AND 12212:

To be major general

BRIG. GEN. MARK E. BARTMAN
BRIG. GEN. STANLEY J. OSSERMAN, JR.
BRIG. GEN. THOMAS A. THOMAS, JR.
BRIG. GEN. ERIC G. WELLER
BRIG. GEN. JAMES C. WITHAM

THE FOLLOWING AIR NATIONAL GUARD OF THE UNITED STATES OFFICERS FOR APPOINTMENT IN THE RESERVE OF THE AIR FORCE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTIONS 12203 AND 12212:

To be brigadier general

COLONEL GLEN M. BAKER
COLONEL JEFFREY D. BUCKLEY
COLONEL ANTHONY J. CARRELLI
COLONEL TIMOTHY J. CATHCART
COLONEL ANDREW J. DONNELLY
COLONEL HAROLD S. EGGENSPERGER
COLONEL JAMES O. EIFERT
COLONEL BRYAN P. FOX
COLONEL RICKY D. GIBNEY
COLONEL CHRISTOPHER A. HEGARTY

COLONEL JOHN P. HRONEK II
COLONEL PAUL HUTCHINSON
COLONEL KEVIN J. KEEHN
COLONEL RICHARD W. KELLY
COLONEL CHRISTOPHER J. KNAPP
COLONEL MICHAEL E. MANNING
COLONEL CLAYTON W. MOUSHON
COLONEL JILL J. NELSON
COLONEL MICHAEL A. NOLAN
COLONEL MICHAEL L. OGLE
COLONEL RONALD E. PAUL
COLONEL STEPHEN E. RADER
COLONEL SAMUEL H. RAMSAY III
COLONEL WILLIAM B. RICHY
COLONEL ADALBERTO RIVERA
COLONEL SAMI D. SAID
COLONEL ANTHONY E. SCHIAVI
COLONEL JOHN D. SLOCUM
COLONEL RONALD W. SOLBERG
COLONEL RANDALL A. SPEAR, JR.

IN THE ARMY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE GRADE INDICATED IN THE RESERVE OF THE ARMY UNDER TITLE 10, U.S.C., SECTION 12203:

To be colonel

WILLIAM A. CHRISTMAS

EXTENSIONS OF REMARKS

REAUTHORIZING CERTAIN VISA PROGRAMS

SPEECH OF

HON. SAM JOHNSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 11, 2012

Mr. SAM JOHNSON of Texas. Mr. Speaker, I rise in support of S. 3245, which reauthorizes the E-Verify Program for three years. E-Verify is an important tool for employers who want to help ensure they are employing legal workers. I believe that there are a few changes that would make E-Verify even more effective and user friendly than it already is, that U.S. Citizenship and Immigration Services (USCIS) can make without being required to do so statutorily.

Prevention of identity theft in E-Verify is important and USCIS has been taking steps aimed at doing so. For instance, they have created an E-Verify photo match tool for certain individuals so that an employer can match a DHS database photo to the employee standing in front of them. I applaud the Department of Homeland Security (DHS) for taking this step and others, and also urge USCIS to fully explore other available identity authentication approaches through pilot programs.

I also support DHS providing employers with a seamless integration of an official, electronic I–9 into E-Verify. The goal of an all-electronic system, instead of a paper-based I–9, was included in E-Verify legislation authored by Chairman SMITH. Combining E-Verify and the I–9 together will be a strong inducement for employers to join E-Verify.

I have discussed these changes by DHS with the Chairman of the Judiciary Committee, LAMAR SMITH, who has expressed his support.

CELEBRATING INTERNATIONAL DOT DAY

HON. BRUCE L. BRALEY

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. BRALEY of Iowa. Mr. Speaker, I rise today to commend International Dot Day. This September 15th marks the annual celebration of International Dot Day, which encourages students' creativity by asking them to make their own unique mark on the world. This year's celebration will involve more than half of a million children in all fifty states and on six continents.

International Dot Day was inspired by the children's book ''The Dot'' by Peter H. Reynolds. The book tells the story of a student named Vashti who doubts her own abilities as an artist until her teacher encourages her to make a single mark on the page. The single dot she creates in art class and her teacher's encouragement starts a journey of creativity and discovery for Vashti who goes on to inspire other students to be creative in their own ways.

Mr. Speaker, creativity and genius are important attributes for students of all ages to pursue, and I applaud my constituent Terry Shay, an educator from Waterloo, IA, who founded Dot Day in 2009, to inspire his students to make their own mark. Mr. Shay has helped inspire other educators around the world to encourage their own students by sharing the message in Peter Reynolds' inspirational book.

I would like to take this opportunity to officially recognize September 15th as International Dot Day, and I wish Mr. Shay and other educators well as they continue encouraging creativity in their students.

HONORING MAJOR GENERAL JANET L. COBB, USAR

HON. JO BONNER

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. BONNER. Mr. Speaker, I rise to extend congratulations to a distinguished South Alabamian who was recently promoted to the rank of major general in the United States Army Reserve. Maj. Gen. Janet Cobb's service to her country is a credit to the professionalism and dedication of our military and we are proud to have her call South Alabama home.

Maj. Gen. Cobb is a graduate of Foley High School and the University of Alabama. After enlisting in the Army Reserve in 1974, she was commissioned a Second Lieutenant in May 1978 from the University of Alabama ROTC program. Maj. Gen. Cobb is a graduate of the U.S. Army Command and General Staff College and the U.S. Army War College.

Maj. Gen. Cobb has commanded at the Detachment, Battalion, Brigade, General Officer and Directorate command levels. Her deployments include 1184th Transportation Terminal Unit, Saudi Arabia (July–November 1991), 1184th Transportation Terminal Battalion, Port of Ash Shuaybah, Kuwait (November 2002–May 2003), 598th Transportation Group (Terminal) Rotterdam, The Netherlands (2007), and the Central Command Deployment & Distribution Operations Center, Camp Arifjan, Kuwait (2011). In July 2012, Maj. Gen. Cobb completed a six-month mobilization at the Pentagon where she served as Assistant Deputy Chief of Staff (Operations), Office of the Deputy Chief of Staff for Logistics (G–4). She is currently assigned to the Pentagon as Assistant Deputy Chief of Staff, Mobilization and Training (Reserve Component Integration), Department of the Army (G–4).

While still a colonel, Janet commanded the 1184th Transportation Terminal Battalion from Mobile during the second Gulf War. Of her service, the Mobile Press Register observed, ''Under Cobb's command, the 1184th became well-known among coalition forces in Kuwait not only for unloading a record amount of U.S. military cargo through a Kuwaiti port in 2003, but also for staging a Mobile-style Mardi Gras parade over there, in which Moon Pies, beads and cups were thrown.''

Her awards include the Bronze Star, the Meritorious Service Medal with oak leaf clusters, and the Joint Achievement Medal.

In civilian life, Maj. Gen. Cobb is employed with Kaiser Realty, Inc. in Gulf Shores. She is a resident of the Barnwell community in south Baldwin County.

Mr. Speaker, I join my fellow Alabamians in not only expressing deep pride in Maj. Gen. Cobb's contributions to her country, but also in offering our heartfelt congratulations for her recent promotion and wish her all the best in the future.

RECOGNIZING PACIFIC METALLURGICAL AS A FINALIST FOR THE 2012 KING COUNTY EXECUTIVE'S SMALL BUSINESS AWARDS

HON. ADAM SMITH

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. SMITH of Washington. Mr. Speaker, I rise to honor Pacific Metallurgical in Kent, Washington for being named a finalist for the 2012 King County Executive's Small Business Awards, in the Exporting Small Business of the Year category. The Exporting Small Business award is given to small businesses that have increased international sales in new and existing markets.

Pacific Metallurgical is an innovative heat treating business that was founded in 1967. The family-owned company was one of the first commercial heat-treat suppliers in the King County region. The company has since grown and the company is today offering new equipment and technology worldwide.

Mr. Speaker, it is with great pleasure that I congratulate Pacific Metallurgical. Advanced companies like Pacific Metallurgical help to stimulate our local and national economies through trade and growth.

TRIBUTE TO ALABAMA BUSINESSMAN, LARRY DRUMMOND

HON. JO BONNER

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. BONNER. Mr. Speaker, I rise to pay tribute to Elbert Allen ''Larry'' Drummond, Vice Chairman of Drummond Company, Inc., who passed away on July 30, 2012, at the age 68. Larry Drummond was a leader among the Alabama business community and a devotee to preserving Alabama's abundance of natural resources.

Larry Drummond was born August 3, 1943, in Birmingham. His early life was spent with

● This ''bullet'' symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

his family in the Walker County town of Sipsey. His father had been a coal miner for Debardeleben Coal Company and had decided in 1935 to start his own mine, the beginning of what is now Drummond Company, Inc.

He attended Walker County High School in Jasper where he was co-captain and named to the all-county football team. He also played baseball at Walker and was selected for the East-West All-Star Game in Birmingham.

He earned a bachelor's degree in Commerce and Business Administration from the University of Alabama in 1965. He also earned a master's degree in accounting the following year before entering the University of Alabama School of Law, where he was awarded the Juris Doctor degree in 1969. During breaks in college, Larry worked in various areas of Drummond Coal operations—preparing a site for mining, drilling at a new mine, cleaning coal for loading, and work at other operations.

Returning home with his law degree in hand, he rejoined his family's company. Over the years, he was heavily involved with domestic and international coal sales. Along with his brothers, Larry was instrumental in fostering business relationships with Japan that continue today. He later assumed additional complex responsibilities as Vice Chairman of the corporation and Chairman of its Executive Committee.

Larry was active in a variety of civic and educational organizations in Walker County and Alabama. He was a member of the Alabama and the American Bar Associations. At the University of Alabama, he was a member of the President's Cabinet and of the Board of Visitors of the Culverhouse School of Commerce. The Culverhouse School recognized him in 2003 with a Career Achievement Award.

He served on the boards of the Walker Area Community Foundation and the Alabama Conservation and Natural Resources Foundation. He also served as a board member for the Alabama Conservation and Natural Resources Foundation and the American Family Business Institute. He was a member of United Way of Central Alabama's Le Societe National. In 2011 Larry was inducted into the Alabama Academy of Honor and into the Alabama Business Hall of Fame.

Larry also possessed an abiding love for the outdoors and enjoyed working closely with the Boy Scouts of America. He was a director of the Black Warrior Council of the Boy Scouts, which presented him with the Silver Beaver Award.

His leadership of one of Alabama's top energy companies and his stewardship of our environmental resources will be sorely missed.

On behalf of the people of Alabama, I would like to extend my heartfelt condolences to his wife, Abbie; brothers, Garry and John; daughter, Terri; sons, Scott and Patrick; five grandchildren, extended family and many friends. You are all in our thoughts and prayers.

TAKE POLITICS OUT OF POST OFFICE

HON. HENRY C. "HANK" JOHNSON, JR.

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. JOHNSON of Georgia. Mr. Speaker, I rise today to urge my colleagues to take politics out the Post Office.

In 2006, Congress passed legislation that forced the United States Postal Service to prefund 100 percent of retiree health and insurance premiums. No other company, public or private, is forced to comply with this inherently destructive policy.

On September 30, of this year, the law requires a payment of $5.6 billion to fund pension obligations. This will do more than cost the USPS precious dollars. It also threatens the very life of the postal service and it will cost hard-working postal employees the dignity and respect that goes along with a hard day's work.

Mr. Speaker, House Republicans cited declining physical mail volumes and a growing USPS labor force as the primary reasons why the 2006 legislation was necessary. Yet, 2005, 2006, and 2007 were the highest volume years in the USPS's 200 year history. In fact, 2006 was the highest volume year ever for the USPS. And how did House Republicans expect the Postal Service to deal with the additional 2 million addresses being added to their delivery routes each year? By hoping and praying that the mail gets delivered?

Mr. Speaker, the 2006 legislation was solely intended to break the back of a public sector union and privatize the mailing industry. Why else would Congress alter an entity that hasn't used a dime of tax payer's money in 30 years?

According to the Congressional Research Service, the USPS was self-supporting since 1971, using revenues from postage sales to fund its operating costs. In fact, the Postal Service was so profitable, Mr. Speaker, that it returned money to the Treasury every single year while providing free services to visually impaired persons and overseas voters. If the Postal Service were a private corporation during that time, my colleagues across the aisle would have hailed it as the model of economic success and sung its praises from sea to shining sea for paying dividends to shareholders.

In the years after Republicans dumped the pre-funding mandate into the lap of the USPS, the Postal Service has nearly crumbled under the weight of spiking pension costs. Mr. Speaker, how does an organization that had robust profits for 30 plus years leading up to the 2006 legislation suddenly start running deficits and lose $25.4 billion between 2007 and 2011? How did the USPS go from no debt in 2006 to over $13 billion in debt today?

The answer is simple—my friends across the aisle wanted to continue their assault on public sector unions. They chose to pass a bill they knew would cause massive deficits for the USPS. They chose to commit the USPS to payments they knew it could not afford. They created this problem for the USPS and now they refuse to be part of the solution.

Mr. Speaker, House Republicans should abide by the phrase ''If it ain't broke, don't fix it.''

Many of my colleagues on the other side have well-connected friends, such as the Koch Brothers, who publicly advocate for postal service privatization. I am here to connect the dots for the American people. I repeat, we must ''take politics out of the post office.''

Instead of wasting time today, we should vote to stop the damage inflicted upon the USPS by this body and remove these absurd constraints by passing H.R. 1351, the United States Postal Service Pension Obligation Recalculation and Restoration Act. We must protect the hard working employees of the Postal Service by passing legislation to fix this blunder.

The USPS was not in danger of becoming insolvent until Congress decided to meddle in its affairs.

Mr. Speaker, the Postal Service already missed a $5.5 billion payment in August. This body must act before the Post Office defaults on another payment later this month. Instead of scheduling symbolic votes that highlight our differences, let's stop the madness and do what is best for the American people, the economy, and communities across the nation.

Mr. Speaker, it is vital that we keep our Postal Service in good financial standing. The Postal Service employs 700,000 of our fellow citizens, 17,751 of whom are in the state of Georgia; one third are military veterans who deliver 212 billion pieces of mail to over 144 million locations.

If big corporations and the Koch Brothers get their wish, the Postal Service will slowly be destroyed, causing good jobs to be lost and allowing companies to raise prices of delivery.

The American people deserve a Postal Service reform bill that will allow the Post Office to continue its operations and not reduce or restructure them.

Taking action to strengthen the Postal Service's finances is not just good for letter carriers and post masters, it is also good for business. There is a $1.3 trillion mailing industry in the U.S. that supports between 7–8 million private sector jobs that is heavily dependent on a healthy and efficient Postal Service.

The time to act is now.

WELCOMING THE EIGHTH HONOR FLIGHT SOUTH ALABAMA TO WASHINGTON, DC

HON. JO BONNER

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. BONNER. Mr. Speaker, it is with great pride that I recognize Honor Flight South Alabama and the World War II veterans this very special organization is bringing on its eighth flight to Washington, D.C. on September 19, 2012.

Founded by the South Alabama Veterans Council, Honor Flight South Alabama is an organization whose mission is to fly heroes from southwest Alabama to see their national memorial.

Almost seven decades have passed since the end of World War II and, regrettably, it took nearly as long to complete work on the memorial that honors the spirit and sacrifice of the 16 million who served in the U.S. Armed Forces and the more than 400,000 who died. Sadly, many veterans did not live long enough to hear their country say ''thank you,'' yet for those veterans still living, Honor Flight provides for many their first—and perhaps only—opportunity to see the National World War II Memorial, which honors their service and sacrifice.

This Honor Flight begins at dawn when the veterans will gather at historic Fort Whiting in Mobile and travel to Mobile Regional Airport to board a chartered flight to Washington. During their time in their nation's capital, the veterans will visit the World War II Memorial, Arlington National Cemetery, and other memorials.

The veterans will return to Mobile Regional Airport that evening, where some 1,000 people are expected to greet them.

Mr. Speaker, the September 19, 2012, journey of heroes from South Alabama is an appropriate time for us to pause and thank them—and all of the soldiers who fought in World War II. They collectively—and literally—saved the world. They personify the very best America has to offer, and I urge my colleagues to take a moment to pay tribute to their selfless devotion to our country and the freedoms we enjoy.

I salute each of the veterans who made the trip to Washington. May we never forget their valiant deeds and tremendous sacrifices: Hector Anderson, Eason Andrews, Robert Andry, Charles Baggett, James Ballard, Robert Barnes, Edward Beasley, Tommie Beasley, Joseph Betbeze, Jr., William C. Betbeze, Elmore Blake, Floyd Bivens, Nolan Black, Robert Bock, Richard Bolks, Samuel Branch, William Branscomb, Bernard Bringhurst, Wilton Brunson, Benjamin Canavello, Millard Carter, William Chapman, John Cherry, John Clark, Joseph Collie, William Colvin, O.S. Conerly, Jr., Benjamin Cooper, Bob Copley, Quincie Curtis, James Dailey, Carroll Darby, James Daves, John Davis, Perry Davis, Jeffrey Davis, Glenn Dehlin, William Douglas, Robert Drollinger, Robert Eastburn, Russell Faulkner, William Fox, Frank Frith, Aubrey Fulford, Luther Fuller, William Gilly, Edward Gold, Schauss Greben, Horace Gray, Doyle Griffiths, Michael Guarino, Nathan Gulley, Lawrence Hansen, Joe Harris, Jr., Thomas Harris, Jr., William Hatter, Benjamin Hays, Jr., Felix Hills, Jr., George Holladay, Robert Hughes, James Hummer, Alfred Hyde, Willard Johnson, Junior Keller, Roger King, Albert Kinnison, Joseph Knapp, Fred Levin, Lonza Lewis, Bernard Losse, Marjorie Markert, George Massengale, Jr., James Mathews, Jr., Elbert McCall, John McClelland, Eugene McGuire, Amy McHenry, Harold McLain, Olen McManus, Cecil McMullan, Bert Milling, Douglas Modling, Roland Montalvo, John Motes, Norman Mullen, Lloyd Mullen, Arthur Perez, Jr., Riley Pettis, Hiram Phillips, Rufus Pinkerton, Charles Reaves, I.G. Reeves, Hilburn Richards, James Robertson, Rudolph Rolison, Sr., Will Sawyer, Herman Shaddix, Dayton Shell, John Sheppard, John Shiver, Jr., William Smith, William Spaulding, James Stapleton, Preston Stengel, Ross Street, Robert Tanner, Donald Thomson, Shelby Trice, Alexander Trione, Etheridge Turner, John Vickers, Ray Wadsworth, Robert Wallace, Thomas Warner, Jr., Ennis Warren, Harold Watters, Jr., Billy West, Sr., Vernon Whiteside, Lavaine Williams, Walter Williams, and Ross Wingo.

COMMENDING PRESIDENT NURSULTAN NAZARBAYEV AND THE REPUBLIC OF KAZAKHSTAN FOR LEADING THE WAY ON GLOBAL NUCLEAR DISARMAMENT

HON. ENI F. H. FALEOMAVAEGA

OF AMERICAN SAMOA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. FALEOMAVAEGA. Mr. Speaker, I rise today to enter into the CONGRESSIONAL RECORD my recent speech before the international conference From a Nuclear Test Ban to a Nuclear-Weapons-Free World held in Astana, Kazakhstan on August 29, 2012.

For historical purposes, I am also including a parliamentary appeal for nuclear abolition as well as a news article dated August 30, 2012 announcing Kazakhstan's launch of the ATOM project to support the global movement against nuclear tests.

The ATOM project, an acronym for ''Abolish Testing. Our Mission'' is an international petition campaign designed to unify public opinion against nuclear weapons testing. The ATOM project is the initiative of the Nazarbayev Center, and I encourage any person who opposes nuclear weapons to sign this online petition to the governments of the world calling for the permanent step to stop nuclear testing. Interested persons may sign the petition at www.TheATOMProject.org.

STATEMENT OF THE HONORABLE ENI F. H. FALEOMAVAEGA BEFORE THE INTERNATIONAL CONFERENCE FROM A NUCLEAR TEST BAN TO A NUCLEAR-WEAPONS-FREE WORLD HELD IN ASTANA, KAZAKHSTAN ON AUGUST 29, 2012

Distinguished Guests:

On December 2, 2009, the United Nations General Assembly unanimously adopted resolution 64/35 which declares August 29 the International Day against Nuclear Tests in recognition of President Nursultan Nazarbayev's historic decision in 1991 on August 29 to close down the world's second largest nuclear test site and dismantle the world's fourth largest nuclear arsenal at Semipalatinsk.

The resolution—which was initiated by Kazakhstan and sponsored and cosponsored by many other governments—calls for increasing awareness and education ''about the effects of nuclear weapon test explosions or any other nuclear explosions and the need for their cessation as one of the means of achieving the goal of a nuclear-weapon-free world.''

In 2011, we commemorated the 20th anniversary of President Nazarbayev's courageous act and, on March 7, 2012, the people of the Republic of the Marshall Islands through their Nitijela at its 33rd Constitutional Regular Session passed a resolution calling for President Nazarbayev to be awarded the Nobel Peace Prize in tribute to victims and survivors of Cold War nuclear testing.

The President of the Marshall Islands, the Honorable Christopher J. Loeak, noted that the Committee has only recognized those who have inspected nuclear test sites or talked about the need to cooperate. At no time has the Committee bestowed the award for the actual abolishment of nuclear weaponry. So I join with the people and parliament of the Marshall Islands, and urge you to do the same, in calling upon the Nobel Peace Prize Committee to honor President Nazarbayev for promoting peace by changing the course of world history for the better.

Unlike any other government, the Republic of the Marshall Islands shares the same history and experience as Kazakhstan, having also been used as a nuclear testing ground during the Cold War. From 1946–1958, the United States began testing nuclear weapons in the Republic of the Marshall Islands and, during that period, the United States conducted 67 nuclear tests with an equivalent yield of 7,000 Hiroshima bombs.

On March 1, 1951, the United States detonated a 15 megaton hydrogen bomb codenamed BRAVO in the Marshall Islands. The bomb was equivalent to 1,000 Hiroshima-sized bombs and was acknowledged as the greatest nuclear explosion ever detonated. The BRAVO test evaporated six islands and created a mushroom cloud of 25 miles in diameter.

On August 29, 1949, the Soviet Union conducted its first nuclear explosion codenamed 'First Lightening' at the Semipalatinsk Test Site in eastern Kazakhstan. From 1949–1989, the Soviet Union conducted 456 nuclear tests in Semipalatinsk and the cumulative power of those explosions is estimated to be equal to the power of 2,500 Hiroshima-sized bombs.

As a result of Soviet nuclear testings more than 1.5 million Kazakhs were exposed to nuclear radiation. As a result of U.S. testings, the people of the Marshall Islands were also exposed to the horrific effects of radiation poisoning. Neither the Soviet Union nor the U.S. have fulfilled their obligation in cleaning up the mess they left behind as a result of their Cold War arms race. Instead, they turn a blind eye to the human suffering that carries forward today.

This is why I will continue to speak out and praise President Nazarbayev for his choice to renounce nuclear weaponry. My position regarding this matter is no different than the position the United States took during a joint meeting between President Obama and President Nazarbayev on April 11, 2010 when President Obama stated that ''the US. appreciates the leadership of President Nazarbayev and the contribution of Kazakhstan to nuclear disarmament and nonproliferation.''

While I applaud President Obama for stating on April 6, 2010 that ''the United States will not conduct nuclear testing and will seek ratification of the Comprehensive Test Ban Treaty (CTBT)'' which bans all nuclear explosions in all environments, I believe, as the theme of this conference suggests, it is time to move from a nuclear test ban to a nuclear-weapons free world.

After all, the CTBT, like the Nuclear Non Proliferation Treaty (NPT), is based on a flawed and outdated premise. The NPT asserts that only five nations—the nuclear weapons states—namely, the United States, Russia, the United Kingdom, France, and China (which also happen to be the five permanent members of the United Nations Security Council)—will pursue nuclear disarmament and share their technology for peaceful purposes if non-nuclear states agree never to acquire nuclear weapons. The NPT also states that only the United States, Russia, the United Kingdom, China, and France are permitted to own nuclear weapons because only they possessed nuclear weapons at the time the treaty was open for signature in 1968.

The world has changed since 1968. No longer can non-nuclear states support the outdated premise of the NPT and none of us should settle for what the CTBT offers, particularly since the signatories of the NPT are among the worst violators of the nuclear code.

From 1949–1990, Russia conducted over 700 nuclear tests. In roughly the same time period, the U.S. conducted over 1000 nuclear tests. Since 1964, China has conducted more than 43 nuclear tests. Between 1960 and 1991, France conducted more than 200 nuclear tests and, in 1996, despite being a signatory of the NPT, France broke a world moratorium conducting 6 more tests at Moruroa Atoll in the South Pacific while the Nuclear Suppliers Group (NSG) silently consented.

It is time for all of us to say enough is enough. It is time for the world to follow Kazakhstan's lead and begin the process of dismantling. If Kazakhstan can dismantle a nuclear arsenal which was larger than the combined nuclear arsenals of Great Britain, France and China combined, then certainly the United States, Russia, the United Kingdom, France, and China can also do what is right.

Some twenty years ago, President Nazarbayev emerged to champion the cause of a nuclear weapons free world, and no other leader before or since has done what he has done to advance the rights of the human person by promoting nuclear disarmament among possessor states and preventing proliferation to new states.

As President Loeak stated, ''Had Kazakhstan retained the nuclear arsenal it inherited after achieving independence and following the collapse of the Soviet Union in 1991, Kazakhstan could have altered the fragile peace brought about by the Cold War. But knowing the price Kazakhs and Marshallese paid to preserve international peace, President Nazarbayev chose to renounce and disarm.''

For this, the man deserves to be commended again and again. I commend President Nazarbayev for his initiative to move the world from a nuclear test ban to a nuclear-weapons free world, and for and on behalf of the people of Kazakhstan—and the Republic of the Marshall Islands—and all others now and yet to come—it is my sincere hope that we will hold together and stand firm in our support of this great cause.

PARLIAMENTARY APPEAL FOR NUCLEAR ABOLITION: FROM A NUCLEAR TEST BAN TO A NUCLEAR WEAPONS FREE WORLD ADOPTED IN ASTANA, KAZAKHSTAN 29 AUGUST 2012

Parliamentarians, mayors, disarmament experts, and civil society representatives meeting in Astana, Kazakhstan at the international conference ''From a Nuclear Test Ban to a Nuclear Weapons Free World'' held on the International Day Against Nuclear Tests 29 August 2012, make the following appeal to parliaments and governments around the world:

Legislators and governments have a responsibility to protect the security of citizens living within their jurisdictions and to protect their respective localities and the global commons for future generations.

The catastrophic humanitarian and environmental consequences from the nuclear tests in Semipalatinsk, Kazakhstan—and from other nuclear test sites around the world—demonstrate that the effects of any use of nuclear weapons are uncontrollable in time and space.

The possession of nuclear weapons generates a threat of their proliferation and use that pose risks to current and future generations that are unacceptable, unnecessary, unsustainable and contrary to basic ethical considerations and international humanitarian law.

The approximately $100 billion spent annually on nuclear weapons by a few States consumes intellectual, scientific and financial resources desperately required to meet the environmental, social and human security needs of the 21st Century.

Some nations, like Kazakhstan, have decided to unilaterally abandon the possession of nuclear weapons and achieved greater security and prosperity as a result. Many nations, including all those in the Southern Hemisphere and a number in the Northern Hemisphere such as in Central Asia, have enhanced their security through establishing regional nuclear-weapon-free zones.

The United Nations General Assembly and the States Parties to the nuclear Non-Proliferation Treaty have called on States to establish the framework for a nuclear-weapons free world through negotiations on a nuclear weapons convention or package of agreements.

United Nations Secretary General Ban Ki-moon has circulated a Five-Point Plan for Nuclear Disarmament which includes a Model Nuclear Weapons Convention as a guide to such negotiations. The UNSG's plan has been supported by unanimous resolution of the Inter-Parliamentary Union representing over 150 parliaments and by various resolutions in national parliaments.

We commend President Nursultan Nazarbayev and the Republic of Kazakhstan for leadership in the global nuclear disarmament process including the closure of the Semipalatinsk nuclear test site on 29 August 1991, and the decision to voluntarily renounce the fourth largest nuclear arsenal in the world.

We also commend Kazakhstan for initiating the UN International Day Against Nuclear Tests, which was established by unanimous resolution of the United Nations General Assembly, with the aim to contribute to the goals of nuclear disarmament, nonproliferation, a worldwide ban on nuclear tests, and a world free from nuclear weapons.

We welcome moves by the Nuclear Weapon States to complete the ratification process for the protocols to nuclear weapon-free zone treaties, as steps to significantly strengthen the architecture of regional and international security.

We welcome in particular the negotiations between the Central Asian States on one side, and China, France, Russia, the United Kingdom, and the United States on the other side, on the protocols to the Central Asian Nuclear-Weapon-Free Zone, and call for its early completion.

We support the new initiative of President Nazarbayev of the Republic of Kazakhstan for the adoption, within the UN of a Universal Declaration on the achievement of a nuclear-weapon-free world, as another important step towards the adoption of a nuclear weapons convention.

We are strengthened in our resolve to advance nuclear disarmament measures, by having visited the former Semipalatinsk Nuclear Test Site, where Soviet nuclear weapons were tested for more than forty years. 468 surface and underground nuclear tests were conducted from 1949 to 1989. One 50 megaton test alone was several thousand times more powerful than the bombs dropped on Hiroshima and Nagasaki. The tests have caused immeasurable medical and economic related suffering and death to millions of people.

Further progress needs to be made with concrete actions to achieve the abolition of nuclear weapons, according to a multilateral, transparent, irreversible and verifiable schedule.

Therefore, we call on parliaments and governments to:

(a) maintain existing moratoria against nuclear tests, and fully support the Comprehensive Nuclear Test Ban Treaty, including full ratification and entry-into-force, financing and support for the international monitoring network;

(b) halt any further production of nuclear weapons;

(c) operationalize the reduction of the role of nuclear weapons in their security doctrines;

(d) establish prohibitions against nuclear weapons through action in their own legislatures;

(e) establish guidelines that prohibit investment of public funds in enterprises engaged directly in manufacturing nuclear weapons or their delivery systems;

(f) establish additional regional nuclear weapon free zones, as appropriate, especially in the Middle East, North East Asia and the Arctic;

(g) commence preparatory work to build the framework for a nuclear weapons free world including through negotiations on a nuclear weapons convention or package of agreements.

We all stand united in our common determination to build nuclear-weapons-free world.

We pledge to act on and share this Appeal with legislative forums, decision makers and society.

Adopted in Astana on 29 August 2012.

[From the Astana Times, Aug. 30, 2012]

KAZAKHSTAN LAUNCHES ATOM PROJECT TO SUPPORT GLOBAL MOVEMENT AGAINST NUCLEAR TESTS

(By Galia Nurzhanova and George D. Gleboff)

ASTANA.—President Nursultan Nazarbayev announced the launch of The ATOM Project in connection with the UN International Day against Nuclear Tests at a major international conference in Astana on August 29, 2012.

The conference, ''From a Nuclear Test Ban to a Nuclear-Weapons-Free World'', brought together hundreds of government and parliament leaders, former heads of state, nuclear disarmament experts, leaders of international organizations and anti-nuclear activists from more than 70 nations.

Under the project, any person who opposes nuclear weapons can sign an online petition to the governments of the world calling for the permanent stop to nuclear testing and to achieve the early entry into force of the Comprehensive Test Ban Treaty.

The ATOM Project—based at www.TheATOMProject.org—is an international petition campaign designed to unify global public opinion against nuclear weapons testing. The ATOM Project went live in late August with international television and social media campaigns.

The project is an initiative of the Nazarbayev Center, whose mandate, in part, is to continue and broaden Kazakhstan's legacy of fighting for a world free of nuclear weapons and weapons testing, to promote nuclear responsibility, nuclear disarmament and nuclear nonproliferation according to the vision of the Kazakhstan President.

The ATOM Project, whose name is an acronym for ''Abolish Testing. Our Mission'', will tell the tragic and hopeful stories of survivors of nuclear testing from the region of Semey, Kazakhstan, the site of more than 450 Soviet-era nuclear tests. The survivors and their children and grandchildren continue to suffer from illness, disease and severe deformities caused by exposure to nuclear radiation during and after the testing, which took place 100 miles outside of the city, then called Semipalatinsk.

''We have an opportunity to once more remind the world about tragic consequences of the nuclear testing, and push the global community towards more decisive actions to achieve final and definitive ban of such testing. In this regard, Kazakhstan launches today the International campaign, The ATOM Project,'' President Nazarbayev said in his speech.

''Under the project, any human being on Earth, who stands against nuclear weapons, can sign an online petition urging governments of the world to abandon nuclear tests forever and ensure early entry into force of the Comprehensive Nuclear Ban Treaty. I urge the participants of the conference and all the people of the goodwill to support the ATOM Project and to make the creation of the non-nuclear world our main goal,'' the President added.

Speaking at the conference, German Foreign Minister Guido Westerwelle thanked President Nazarbayev for launching the Project and firmly supported it.

Karipbek Kuyukov, the famous second-generation survivor of the nuclear tests who was born armless and went on to become a famous artist inspiring many with his life example, became an honorary ambassador of

the project. He gave an emotional speech at the conference which he concluded by saying: ''Let us not repeat the mistakes of the past! I call on all the people to help stop the nuclear weapons testing around the world! Nuclear test sites must be closed! Let our sky be clean and our children be healthy! I do not have arms to hug all of you and to express my gratitude for participation in this conference, but I have a heart and it belongs to you! Let your families live in peace and serenity!''

According to its organizers, the ATOM Project seeks to affect real and lasting change by engaging millions of global citizens to stop nuclear weapons testing by joining together to show the world's leaders that its citizens deserve and demand a world safe from additional nuclear weapons testing.

Meanwhile, participants at the conference included politicians and experts from both nuclear weapon states and non-nuclear weapon states: Valentina Matviyenko, President of the Federation Council of the Russian Federation; Miroslav Jenca, Special Representative of the UN Secretary General who read a message from the UN Secretary General; Eni F.H. Faleomavaega, U.S. Congressman (D–American Samoa); Douglas Roche, the founder of the Middle Powers Initiative and the founding chairman of the Parliamentarians for Nuclear Non-Proliferation and Disarmament; Gareth Evans, Co-chair of the International Commission on Nuclear Non-Proliferation & Disarmament and former Australian Foreign Minister. Parliamentary leaders in attendance included speakers, chairmen of committees and legislators from the parliaments of Afghanistan, Azerbaijan, Bulgaria, Canada, India, Iraq, Israel, New Zealand, Pakistan, Russia, Turkey, the United Kingdom, and dozens of others, as well as members from the European Parliament.

The conference objective was to create an additional momentum for the global nuclear disarmament movement, and to mark the United Nations International Day against Nuclear Tests on August 29 which aims to raise public awareness on the effects of global nuclear weapons tests and highlight the importance of banning such tests as a step towards achieving a safer world.

The timeline of implementing the anti-nuclear initiatives pursued by Kazakhstan indicates that the country is steadily moving in the direction of disarmament, non-proliferation and nuclear-weapons-free-world.

On August 29, 1991, President Nazarbayev of the then Kazakh Soviet Socialist Republic, defying the pressure from the Soviet authorities, shut down the Semipalatinsk nuclear test site in eastern Kazakhstan. In the early 1990s, Kazakhstan voluntarily renounced nuclear weapons, the world's fourth largest nuclear arsenal, inherited from the former Soviet Union, and by 1995 fully rid itself of the nuclear weapons.

In 2000, the Semipalatinsk nuclear test site was completely closed and its infrastructure dismantled, and in 2006 a nuclear weapons free zone in Central Asia was established under the Treaty of Semipalatinsk.

In 2009, the UN General Assembly voted unanimously to designate August 29 the International Day against Nuclear Tests.

In addition to the fact that anti-nuclear initiatives pursued by Kazakhstan have become important prerequisites for political and economic development for the country, they have created a favorable environment for the continuous improvement of its status in the international arena.

Kazakhstan has remained a steadfast activist in the area of nuclear disarmament and nonproliferation given the legacy of nuclear weapons testing and the effect those tests had on the more than 1.5 million people in eastern Kazakhstan.

The ATOM Project is seen as a logical next step in the country's efforts to achieve the goal of building a nuclear weapons free world.

REAUTHORIZING CERTAIN VISA PROGRAMS

SPEECH OF

HON. ELTON GALLEGLY

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 11, 2012

Mr. GALLEGLY. Mr. Speaker, S. 3245 extends for three years the authorization of the E–Verify program, the EB–5 Regional Center Program, the Special Immigrant Nonminister Religious Worker Program and the Conrad State 30 J–1 Visa Waiver Program. While these are all important programs, I want to speak specifically about E–Verify.

There are currently 23 million Americans who are unemployed or are looking for work. This lack of jobs is causing almost unimaginable hardship for millions of Americans and their families. And each month more people become discouraged and give up even trying to find a job.

Making sure that Americans have every opportunity to find work is more important than ever. One important way to achieve this goal is to reduce the number of jobs that go to illegal immigrants. The E–Verify program helps do just that.

E–Verify allows employers to check the work eligibility of new hires by running the employee's Social Security number or alien identification number against Department of Homeland Security and Social Security Administration records.

In 1995, I chaired the Congressional Task Force on Immigration Reform. We published a 200–plus page report with more than 80 specific recommendations. One of those was for an electronic employment eligibility verification system, which was included in Chairman Smith's 1996 immigration reform bill. That system is now known as E–Verify.

The program is currently voluntary for most of the almost 400,000 employers who use it. It is free, Internet-based and easy to use. And the employers who use it agree.

E–Verify has proven to be such an effective tool in preventing the employment of those who are illegally in our country that it should be used by all employers to check the employment eligibility of their new hires. It is the easiest way to help make sure U.S. jobs go to Americans and legal immigrants.

Short of requiring all employers to use E–Verify, at the very least we must ensure that the program remains in place for the 400,000 employers who depend on it. S. 3245 does just that by providing for a 3-year extension. So I urge my colleagues to support the bill.

HONORING MR. JAMES FLOYD CLEVELAND

HON. RODNEY ALEXANDER

OF LOUISIANA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. ALEXANDER. Mr. Speaker, I rise today to honor the life of Mr. James Floyd Cleveland, who passed away on July 31 at the age of 88.

Mr. Cleveland was a truly wonderful example of a man who lived the American dream. Born on December 17, 1923, he was a cultivator of corn, cotton, soybeans, hogs and cattle on his family farm for over 60 years. He was widely known to have the best okra and mustard greens in town. Moreover, many deemed him the ''Historian'' for his long life and incredible ability to bring oral history to life.

Having accepted Christ at an early age, Mr. Cleveland was baptized in 1939 and dedicated much of his time to good works, notably as an active member of St. Matthew Benevolent Society and Secretary of the Lily Lodge number 5911 in Rapides Station, Louisiana.

Mr. Cleveland enjoyed 57 years of married life with Bernice Jones. Mrs. Cleveland preceded him in death on January 6, 2011, but not a day went by that he didn't speak lovingly of seeing her again. Their union produced a daughter, Sheila Joyce Bryant, who married Arthur R. Bryant. His two granddaughters, Rachel Joyce and Bathsheba Felice were the joys of his life.

As a leader in his community, he strived to make life better for others. He rose to the occasion after the 1965 United States Voting Rights Act and was instrumental in ensuring African-Americans registered and cast their votes for the first time. He was appointed to the Rapides Parish Election process and served as Key Custodian from 1991 to 2006, always going above and beyond in his civic duty.

We all have much to learn from the life and legacy of Mr. Cleveland, who lived a quiet and honorable life as one of the farmers who feeds America. To say that Mr. Cleveland left his fingerprint on the world is an understatement. He was a friend to many and an example for all who had the good fortune to know him.

Mr. Speaker, I ask my colleagues to join me in paying tribute to the late Mr. James Floyd Cleveland.

LEONEL MANZANO OLYMPIC MEDAL

HON. K. MICHAEL CONAWAY

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. CONAWAY. Mr. Speaker, I rise today to congratulate a local hero in the 11th District of Texas, Leonel Manzano. Leo won the Silver medal in the Men's 1500 Meter race in the 2012 Olympic games, sealing his place in Olympic history and becoming an iconic figure in our district.

An Olympian is more than just an athlete—they are a representative of our nation. For the last four years, our athletes have invested blood, sweat, tears, and an extraordinary amount of time in the journey to become the best they can be. In a greater notion, this journey is what America is all about: the opportunity for all to achieve the highest echelons of success. And Leo, as a Silver Medalist, has proven an excellent representative of our District, state, and what our nation represents.

Leo rose from humble beginnings and from an early age, he demonstrated his athletic prowess. This did not go unnoticed. Soon, he

was winning track and field titles, nine in total, while attending Marble Falls High School. After building an unparalleled resume on the track at the University of Texas, Leo began to compete professionally where, again, he continued to receive awards and special recognition. In 2008, all of Leo's hard work paid off when he earned a spot on the U.S. Olympic team. While Leo did not win a medal in 2008, when the 2012 Games came around, Leo was ready to make history. He became the first U.S. man to win a medal in the men's middle distance in 44 years.

We are proud of Leo. While we are excited about his medal and awards, we are proud of Leo because he is one of us and he represented the best of America. His story is an inspiration to our children and proves that even though you may be from a small town, no dream is too big. Again, I congratulate Leo on this amazing accomplishment, his dedication and hard work, and an outstanding career.

ST. ANTHONY BASEBALL

HON. JOHN SHIMKUS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. SHIMKUS. Mr. Speaker, I rise today to acknowledge the achievements of a state champion baseball team from Effingham, Illinois.

The St. Anthony Bulldogs had not visited the IHSA baseball state finals since before any of the current players were born. But this year, behind third-year coach Kenny Miller, the Bulldogs charged to a 31–8–1 record and defeated Tuscola 6–1 for the state championship.

I want to congratulate Coach Miller and Assistant Coach Grant Keller, and especially the members of the 2012 St. Anthony Bulldogs state champion baseball team: Zach Gardewine, Thomas Stephens, Ben Hecht, Jacob Lorenz, Austin Bushur, Charlie Schultz, Scott Renfrow, Kyle Burgois, Neil Williams, Michael Kabbes, Reed Willenborg, Cody Pike, Jared Having, Eli Dasenbrock, Alex Hoelsher, Conner Greene, Braden Puckett and Michael Stehens. They have represented themselves, their school and their community in a first-rate fashion, and I am proud to join with the other Members of this House in congratulating them, and wishing them all the best in their future athletic and academic endeavors.

PRESERVING HOME HEALTH CARE UNDER MEDICARE

HON. DENNIS A. ROSS

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. ROSS of Florida. Mr. Speaker, the President has twice told the American public, through his budget and deficit reduction proposals, that he believes our seniors should be paying more for Medicare if they want to stay in their homes. Twice in the past two years, President Obama has proposed mandating that Medicare beneficiaries pay—for the first time since the Medicare program came into existence—an additional out of pocket charge for their home health care services. Twice, President Obama has told seniors that they must choose between getting their care at home, where they have lived for years, and moving away from their homes, their belongings, and their communities to get their daily care at a nursing home or hospital.

Mr. Speaker, this choice is not only unnecessary, it is inefficient. Home health care providers deliver care management services, vital daily care, and in-home health care services at a low cost. We shouldn't tell our seniors, our parents, that they must choose between their home or their health care. We should keep home health care free of co-payments to ensure that they have the ability to remain in their homes, in their communities, and with their families and memories.

This is just another example of why "Medicare as we know it" will be bankrupt in ten years. Seniors who prefer home health care should always retain that option and be provided choices of plans that will ensure their wishes are granted, rather than live at the whim of unelected and unaccountable bureaucrats. Dignity, care, and being home are small comforts when one is ill, or dying. But, eliminating a cost effective provision of care that current seniors expect, paid into and bargained for, is wrong. Medicare must change for the future, and seniors deserve choice, but for those currently or near entering the system, the rules should not be changed at the last minute.

IN RECOGNITION OF THE HONORABLE SAM JOHNSON

HON. PETE SESSIONS

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. SESSIONS. Mr. Speaker, I rise today to recognize my dear friend and colleague, the Honorable SAM JOHNSON. He is this year's recipient of the Maurice Acers Champion of Free Enterprise Lifetime Achievement Award from the Texas Association of Business.

Congressman JOHNSON has been a long time champion for the free enterprise system in America. After twenty-nine years of dedicated service in the United States Air Force, Congressman JOHNSON started a home-building business in North Dallas. He knows firsthand the challenges of starting a business and of the pride in building and maintaining something entirely of your own making. He has continued to advocate for the free enterprise system because he understands its importance. This notion of allowing individuals to make their own economic decisions and grasp the opportunities available in this country is the essence of the American entrepreneurial spirit. It spurs innovation, nurtures creativity, and led to the economic growth and development of our great Nation. Congressman JOHNSON'S continued support for the free enterprise system speaks loudly of his belief in the individual and the tremendous potential each and every American possesses.

From a decorated military career to serving in the Texas House of Representatives and now proudly representing the 3rd Congressional District of Texas in the U.S. House of Representatives, Congressman JOHNSON has devoted his life to public service. His life story is one that exemplifies the American Dream—that dedication, hard work, and perseverance can lead to great success. He has given his life to serving our country because he believes in a better tomorrow for the next generation.

It is my great honor and privilege to congratulate my friend, Congressman JOHNSON, on receiving this prestigious award. Mr. Speaker, I ask my esteemed colleagues to join me in congratulating Congressman JOHNSON on this great honor, and I would like to take this time to thank him for his service.

IN HONOR OF THE 100TH ANNIVERSARY OF THE MONTEREY COUNTY FREE LIBRARIES

HON. SAM FARR

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. FARR. Mr. Speaker, I rise today to honor the 100th anniversary of the Monterey County Free Libraries. Author and broadcaster Studs Terkel once said, "All you need in life is truth and beauty and you can find both at the Public Library." Well, for the last century, Monterey County's library system has offered up beauty and truth in abundance.

On August 6, 1912, the Monterey County Board of Supervisors established the Monterey County Free Libraries. On September 2, 1913 Miss Anne Hadden started as the first County Librarian. In her first six months she opened five branches. By 1923 she and others had established branches in 105 locations. Some were simple reading rooms housed in private residences, schools, and stores; the Big Sur branch was located in the Post Office. In those early days Miss Hadden used every means at her disposal to distribute books to the far corners of the county: by train, by car, and even on foot. Indeed, a photograph of Anne Hadden delivering books by burro has become an iconic image of the whole library system.

Today, the Free Libraries still function under the authority of the Monterey County Board of Supervisors. The County Librarian operates seventeen branch libraries, two bookmobiles, a library-by-mail program, and also maintains collections in schools. Books for all ages and interests in regular and large print, books on tape, CD's, DVD's and videos, magazines, electronic resources and materials in English, Spanish, Korean and Vietnamese are available to the community. The libraries also maintain ten homework centers and a literacy program. All together they provide services to 220,000 people over 3,250 square miles.

Mr. Speaker, I congratulate the Free Libraries on their 100th anniversary and know that I speak for the whole House in saluting them on this joyous occasion.

HONORING ST. JOHN OF THE CROSS PARISH SCHOOL FOR BEING NAMED A BLUE RIBBON SCHOOL

HON. DANIEL LIPINSKI

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. LIPINSKI. Mr. Speaker, I rise today to congratulate St. John of the Cross Parish School, an exemplary Catholic school in Western Springs, Illinois, for receiving the prestigious 2012 U.S. Department of Education National Blue Ribbon School Award. As a member of this parish, I am especially happy to see the hard work of the students, teachers, administrators, and parents recognized, and I want to congratulate Principal Kathleen Gorman, as well as our pastor, Rev. David P. Dowdle.

In 1982, the Department of Education established the National Blue Ribbon Schools Program to recognize public and private schools boasting high or significantly improved achievement. The program's goal is to identify attributes of thriving American schools in order to replicate their success in other schools. St. John of the Cross is one of only 50 private schools across the Nation to be named as a National Blue Ribbon School this year. This is a great achievement for everyone at the school and all members of the parish.

The mission of St. John of the Cross Parish School is to provide a safe and dynamic Catholic environment where faith is nourished and knowledge grows. The school offers challenging educational experiences that foster success, promote unity, and respect the individuality of each student. Since 1961, the school has prided itself on multi-generational Catholic traditions and achievement. St. John of the Cross has maintained a strong Catholic identity and strong academic standards throughout its history. In 2011, the school proudly celebrated its 50th anniversary.

St. John of the Cross Parish School offers programs from preschool through eighth grade and attracts students from Western Springs and surrounding communities, currently enrolling 630 students. Since its founding, the school has been supported by the St. John of the Cross Parish and has grown to become one of the largest Catholic schools in Chicago's Archdiocese. St. John of the Cross Parish School offers impressive science, technology, and art facilities as well as a wide range of student activities. All students are involved in the religious activities of the parish and participate in a variety of service projects. Today, the school benefits from the hard work and dedication of its principal, Kathleen Gorman, as well as its assistant principals, Zita Wheeling and Tom Clausing. This award recognizes the time and hard work of the teachers and students, as well as the critical support and involvement of the students' parents and the entire parish community. I am delighted that the excellent work and success of St. John of the Cross Parish School has been acknowledged on a national stage.

Please join me in celebrating the accomplishments of St. John of the Cross Parish School and all the National Blue Ribbon award winners. Their pursuit of academic excellence is inspiring, and I hope that their success can serve as a model for schools across the Nation.

IN RECOGNITION OF THE 225TH BIRTHDAY OF ROBESON COUNTY, NC

HON. LARRY KISSELL

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. KISSELL. Mr. Speaker, I rise today in honor of Robeson County, NC, and the celebration of its 225th Birthday. Incorporated in 1787 from Bladen County, Robeson, North Carolina's largest county, is home to roughly 134,000 residents. Named after Colonel Thomas Robeson of the Revolutionary War, it boasts a rich American history. Col. Robeson served as one of the leaders at the Battle of Elizabethtown, an important battle won by the American patriots.

Robeson County is also home to the Lumbee American Indian tribe, and according to the U.S. Census, has the ninth largest population of American Indians in the United States, making up 38% of the population. Robeson County is truly a diverse county. Robeson is also home to the University of North Carolina at Pembroke, a historically Native American college.

Today, I ask all Members of Congress to join me in honoring Robeson County and its citizens, as irreplaceable assets to North Carolina, the state which I am proud to represent.

IN RECOGNITION OF THE 100TH ANNIVERSARY OF THE CLEVELAND MUNICIPAL COURT

HON. DENNIS J. KUCINICH

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. KUCINICH. Mr. Speaker, I rise to recognize the Cleveland Municipal Court which is celebrating its 100th anniversary this Saturday evening, September 15, 2012, with a Centennial Gala.

The Cleveland Municipal Court was established by an act of the Ohio General Assembly in 1911. The Court, originally located on the northwest corner of Public Square, opened its doors at 9:30 a.m. on January 2, 1912. Court was gaveled to order that morning by Chief Bailiff Charles Selzer following opening remarks by Cleveland Municipal Court Chief Justice William H. McGannon and Judges David B. Cull and George P. Baer. The other judges on the original municipal court bench were William B. Beebe, Samuel E. Kramer, Manuel V. Levine, and Fielder Sanders. Peter J. Henry was the original Clerk of the Court who served in that position for 35 years.

The Cleveland Municipal Court is the second oldest municipal court in the nation. Unlike the Justices of the Peace it replaced, the judges were required to be legally trained and were elected by the people rather than appointed by politicians. Also groundbreaking for its time, the Cleveland Municipal Court paid its judges and staff salaries which did not depend on the fines they levied on those they found guilty.

Today, the Cleveland Municipal Court is located in the Justice Center Complex in Downtown Cleveland and consists of 13 elected judges and 14 magistrates, along with bailiffs and other administrative and support staff. The court handles misdemeanor crimes, including traffic, domestic, nuisance and other offenses, as well as civil cases if the total damages are $15,000 or less. Its housing court has jurisdiction over criminal cases involving violations of Cleveland's housing, building, fire, zoning, health, waste collection, sidewalk, agriculture and air pollution codes. The housing court also hears civil cases involving landlord/tenant disputes.

Prominent judges who have served on the Cleveland Municipal Court include the late Carl B. Stokes who drew national attention as the first African-American mayor of one of the ten biggest cities in the United States. Our late colleague Stephanie Tubbs Jones also served as a Cleveland Municipal Court judge prior to her election as Cuyahoga County Prosecutor and later as a Member of the U.S. House of Representatives. I am proud to have served as Clerk of Court from 1975 to 1977.

Mr. Speaker and colleagues, please join me in recognizing the important work that the Cleveland Municipal Court does. The Cleveland Municipal Court is one of the great institutions of our democratic system in bringing impartial justice to the people of Cleveland for the last 100 years and well into the future.

RECOGNIZING THE HEROIC ACTS OF TRANSPORTATION SECURITY OFFICERS JODY WELLMAN, JAMES BOSTWICK, AND CHRISTOPHER HASTINGS

HON. ADAM SMITH

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. SMITH of Washington. Mr. Speaker, I rise to recognize the heroic acts of bravery undertaken by Jody Wellman, James Bostwick, and Christopher Hastings of Washington State, who saved the lives of two individuals.

On the morning of Saturday, August 11, 2012, Transportation Security Officers (TSOs) Jody Wellman, James Bostwick, and Christopher Hastings intervened at a time of crisis to save the lives of a man and a woman who suffered a car accident on Interstate–5 in Washington State.

After colliding with a concrete utility box and sign post in the median of the interstate, a vehicle caught fire with a 21-year-old soldier from Joint Base Lewis-McChord and a 29-year-old female passenger inside. These courageous TSOs pulled off the interstate to assist the two passengers out of the vehicle, which burst into flames shortly thereafter. There is no doubt that these two lives were saved because of the heroic efforts of these three brave officers.

Mr. Speaker, I ask my colleagues to join me in recognizing Jody Wellman, James Bostwick, and Christopher Hastings, who exemplify the spirit of service and commitment to one's community.

HONORING ROBERT FRANK OHRENSCHALL

HON. LYNN C. WOOLSEY

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Ms. WOOLSEY. Mr. Speaker, I rise today with both pride and sadness to honor my friend Robert Frank Ohrenschall, a Marin County businessman, entrepreneur, philanthropist, and community leader who passed away on August 28, 2012 in San Rafael, CA. Bob was known for his intelligence, wit, and compassionate heart combined with warmth that enabled him to connect with people.

Born on June 9, 1926, Bob grew up in Baltimore, Maryland, graduating from Boys' Latin School in 1944. After receiving a B.A. in American History from Yale University, he first moved to New York City to work for an ad agency, and then served as a U.S. Navy lieutenant during the Korean War. After his military service, Bob came to San Francisco, where he worked for an ad agency and met his future wife, Susan Page. He and Sue were married in 1955 and settled in Greenbrae to raise their four children. In 1960, Bob and his partner Huntley Soyster founded Soyster & Ohrenschall, a San Francisco-based design company which became the leading firm in the field.

After the company was acquired in the mid-1980s, Bob was able to devote more time to other interests. Travelling, reading, and family time were among his favorite pastimes. He and Sue visited close to 50 countries and enjoyed visiting their children and grandchildren on the West Coast and in Spain.

Bob's philanthropy demonstrated his commitment to a broad range of local, national, and international causes, from education to the environment to medical needs in developing countries. He devoted his talent, energy, and personal resources to numerous organizations, including the Eisenhower Institute, San Francisco State University College of Business, Romberg Tiburon Center for Environmental Studies, Tiburon-Belvedere Rotary Club, WiRED International and International Diplomacy Council. He also supported the Hoover Institution at Stanford University, Boys' Latin School and College of Marin.

From successful business executive to devoted family man, dedicated naval officer to compassionate philanthropist, Bob was a very gifted and caring individual who touched many lives. He connected with people across the political spectrum, referring to himself as my ''embedded republican friend.''

In addition to his wife, Bob is survived by his four children, Mark, Ross, Page, and Sally, and their families.

Mr. Speaker, Robert Frank Ohrenschall leaves a legacy that will inspire generations to come. I ask you to join me in honoring his life.

IN HONOR OF OHIO STATE REPRESENTATIVE NICHOLAS J. CELEBREZZE

HON. DENNIS J. KUCINICH

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. KUCINICH. Mr. Speaker, I rise today in honor of State Representative Nicholas J. Celebrezze of Ohio's 15th House District.

Representative Celebreeze graduated from the University of Akron in Ohio with a bachelor's degree with Honors from the Bliss Institute of American Politics. He later received his Juris Doctorate from the Cleveland Marshall College of Law. In 2004, he was admitted to practice law in Ohio. He currently owns and operates a local, family-owned law firm.

Before being elected to the Ohio General Assembly, Representative Celebrezze was a Parma City Councilman for six years, chairing the Planning Committee which created a regional approach that led to $3.7 million of improvements towards solving the City's long history of standing sewer problems. While on the Parma City Council, his background as a former Cuyahoga County Adult Probation Officer and Assistant County Prosecutor motivated him to advocate for a strong sense of community safety and to become involved in a successful campaign to build two new local fire stations.

Now as a member of the Ohio House of Representatives, Representative Celebrezze sits on the Local Government and Transportation, Public Safety, and Homeland Security Committees. In addition to his legislative duties, Representative Celebrezze is also active in the community participating in Parma Jaycees, the Parma and Ohio Bar Associations, the North East Ohio City Council Association, the Justinian Forum, is the elected Chairman of the Partisan Ohio Sports Club, and was named the official color commentator for the local PACTV televised high school soccer games in 2011.

Mr. Speaker and colleagues, please join me in honoring the achievements of State Representative Nicholas J. Celebrezze.

HONORING TOM LABONGE

HON. JANICE HAHN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Ms. HAHN. Mr. Speaker, I rise to honor Los Angeles City Councilman Tom LaBonge, a distinguished public servant, who is receiving the 2012 Jack Webb Award for his commitment and support for the men and women of the Los Angeles Police Department. Tom's parents gave him a deep love for the City of Angels. His civic spirit was inspired as a teenager when he served on Mayor Tom Bradley's Youth Council. In 1976, upon earning his undergraduate degree from California State University Los Angeles, he joined the staff of Councilwoman Peggy Stevenson, 13th District, and later he moved to work for John Ferraro, Council President.

Over the course of 15 years as an aide to John Ferraro, Tom learned the value of public service. In spite of the demands of working for the Council President, Tom still found time to coach LAPD's football team, the Centurions.

Later, as chief of field operations for Mayor Riordan, Tom oversaw a staff of deputies assigned to neighborhoods throughout every region of the 465-square-mile city and acted as the Mayor's special representative at community events.

In 2011, Tom won a special election to represent the people of the 4th City Council District. As his tenure in the Council winds down, Tom remains busy promoting the city he loves and working diligently to make Los Angeles a better place to live, work, and play.

Whether tackling issues that impact his constituents or coaching cops on the gridiron, Tom's life has been devoted to service and as such, he has earned this award. It is truly a privilege to be his friend.

RECOGNIZING THE WORK OF REVEREND RALPH CARNEY

HON. ADAM SMITH

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. SMITH of Washington. Mr. Speaker, I rise to honor the life and work of Reverend Ralph Carney. Since 1999, Father Ralph Carney has served as the Catholic Chaplain at Madigan Medical Center in Washington State, conducting mass and ministering to both patients and staff. His passing is a great loss to the community at Joint Base Lewis-McChord.

Rev. Carney was born in 1923. During World War II, he was a sailor along the South American coast and during his career, would serve in the Navy, Air Force, and Army.

Following World War II, Father Carney became ordained as a Catholic priest. Rev. Carney went on to serve as a chaplain for the Air Force and Army. In 1964, Rev. Carney went to Vietnam to work with combat soldiers. Upon his retirement from the Army, he began working at Western State Hospital and after he was a priest at St. John Bosco Catholic Church in Lakewood, WA.

Rev. Carney began working at Madigan Army Medical Center in 1999 and continued his work there until his passing on August 26, 2012 at age 89. He was deeply passionate about serving those who serve our country. Never being one to slow down, Rev. Carney continued his work up until his last days.

Mr. Speaker, it is with great honor that I celebrate the life of Father Carney. His service to our country and the men and women who serve to defend it will not be forgotten.

IN HONOR OF OHIO STATE REPRESENTATIVE MIKE FOLEY

HON. DENNIS J. KUCINICH

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. KUCINICH. Mr. Speaker, I rise today to honor State Representative Mike Foley of Ohio's 14th House District.

Representative Foley was appointed to represent the 14th District in May of 2006 and won the formal election in November of that same year; he has now been serving for four terms.

Representative Foley's legislative career has been marked by his passion and advocacy for housing issues, as exemplified by his current role as Chairman of the Housing Urban Revitalization Committee. In the mid-1980s, he became a community organizer for the St. Clair-Superior Coalition where he took responsibility for neighborhood safety and block club organization. He later became a field representative for Cleveland's Community Relations Board followed by roles as a court administrator, personal bailiff, and judicial clerk at the Cleveland Municipal Housing Court.

In 1997, Representative Foley began work at the Cleveland Tenants Organization where he eventually became Executive Director during his 9 year tenure. His work with the organization helped bring in over $160 million in affordable housing projects performed by local union laborers and helped organize the largest rent strike in Ohio history—a protest against a 25 percent rent increase towards senior citizens by out-of-state landlords.

Representative Foley also advocates for issues such as alternative energy, the environment, retiree benefits, consumer rights and tax code reform. He serves as a member of the Alternative Energy; Civil and Commercial Law; and Ways and Means committees.

Mr. Speaker and colleagues, please join me in honoring the achievements of State Representative Mike Foley.

CRISTINA DIDONE—SUCCESS IN AMERICA

HON. TED POE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. POE of Texas. Mr. Speaker, since her days as a little girl in Argentina, Cristina Didone (Dee dough ne) dreamed of a new day owning a business.

Although she loved her homeland she looked thousands of miles away to the land of real opportunity—America.

Like millions before her she yearned and worked to come to America.

Even though her visa was denied three times she pursued her American dream and eventually a working visa was granted.

Once in the United States in 1990 she created a business involving her two passions: the Law and English.

So she started Kansas City Translations a firm specializing in training individuals in legal interpretations.

Finally in 1999 she got to Texas as fast as she could and created CD Language solutions—a Global legal translations company in Houston for oil, gas & technology firms.

Just recently Cristina was recognized by the Hispanic Chamber of Commerce as Hispanic Female Entrepreneur of the Year.

As we get ready to celebrate Hispanic Heritage Month I would like to recognize this successful and tenacious American businesswoman that believed in herself and America.

And that's just the way it is.

IN HONOR OF OHIO STATE REPRESENTATIVE KENNETH YUKO

HON. DENNIS J. KUCINICH

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. KUCINICH. Mr. Speaker, I rise today to honor State Representative Kenneth "Kenny" Yuko of Ohio's 7th House District.

Representative Yuko started his career as a clothing buyer for Polsky's Department Store; however, he soon found he was developing a passion for union organizing and advocating for workers' rights. His first job in public service, which spanned 30 years, was with the Laborers' Local #860 Union. Not only did he act as a union organizer for 25 years, but he also earned several awards, including the 2000 Organizing Award.

Now as a State Representative, Mr. Yuko advocates for workers' rights as well as increased health care access and Multiple Sclerosis awareness. In 2004, he worked to pass H.B. 379, designating March as MS Awareness Month in Ohio. His efforts with this bill earned him Ohio Health Advocacy Network's 2006 award for Legislator of the Year. He also serves as a ranking member of the House Commerce, Labor and Technology committee and a member of the Health and Aging and Veterans Affairs Committees.

Outside of his duties as State Representative, Mr. Yuko holds a place on the Bureau of Workers Compensation Oversight Committee, Unemployment Advisory Committee, Ohio Historical Society Board (ex-officio), and is an active member of the Cancer, Fire, Housing and Mental Health caucuses.

Mr. Speaker and colleagues, please join me in honoring the achievements of State Representative Kenny Yuko.

CONGRATULATING MOUNT CARMEL SCHOOL 60TH ANNIVERSARY

HON. GREGORIO KILILI CAMACHO SABLAN

OF THE NORTHERN MARIANA ISLANDS

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. SABLAN. Mr. Speaker, sixty years ago, Capuchin priest Father Arnold Bendowski together with a convent of the Mercederian Sisters of Berriz and the parishioners of Mount Carmel Church established Mount Carmel School, which became the very first school in the Northern Mariana Islands to graduate a class of students from high school.

Today, I ask you to join me in celebrating this 60th anniversary of the founding of Mount Carmel School and to recognize the school's proud history of educating Northern Marianas students from their elementary through high school years.

Enrollment steadily increased throughout the 1960s, 1970s, and 1980s. Building s success, in 1993 Bishop Tomas A. Camacho hired Sister Mary Angela Perez of Religious Sisters of Mercy to be President of Mount Carmel School and gave her a broad mandate to lift the standard of education at the school to a new level. Under her leadership, Mt. Carmel was incorporated; and in 1994 a review team from the Western Association of Schools and Colleges granted Accreditation Candidacy status. Eventually, this action led to the school becoming the first non-public school in the Northern Marianas accredited for a full six-year term.

Throughout these 60 years of development and growth Mount Carmel School has garnered a reputation for academic excellence, sending many graduates to top postsecondary institutions. Mount Carmel maintains this commitment, announcing this year that the school is adopting the National Standards and Benchmarks for Effective Catholic Elementary and Secondary Schools, formulated by Catholic educators from across the nation.

Supporting the academic, Mt. Carmel has also developed a diverse range of extracurricular activities, which have led to acclaimed theatrical productions and championship teams participating in the Academic Challenge Bowl, the Attorney General's Cup, Forensics, Mock Trial, and We the People programs. In line with findings of the National Center for Education Statistics, the school has decided now to grant academic credit for student participation in this kind of extracurricular activity, a policy that has been linked to improved attendance, academic achievement, and a commitment to continuing education beyond high school.

In addition to shaping the minds of our future leaders, Mount Carmel School has helped mold their spiritual conscience and social consciousness. Leadership at the school continually impress upon students their personal responsibility as members of a community. The school recently launched a service learning program, to augment its theology curriculum, and also introduced an innovative anti-bullying program, all to guide student awareness of how best to participate in the larger society of which they are a part.

Mt. Carmel understands its own social responsibility, too. The Northern Marianas community today faces the same financial challenges as Americans elsewhere in our nation. In response, Mt. Carmel has committed to new initiatives offering financial assistance to families that want a Catholic education for their children.

From its humble beginnings in 1952, the school has evolved into an institution whose name is synonymous with excellence in our community. Mt. Carmel has cultivated many of our islands' most notable business, government, and community leaders. Alumni from all walks of life stand as inspiring pillars in our community.

I offer my congratulations to all those who have been affiliated with the school over these past 60 years—teachers, staff, students, alumni, and parents. I am confident that the next 60 years will be marked by the same level of accomplishment.

Congratulations, Knights!

IN HONOR OF OHIO STATE REPRESENTATIVE SANDRA WILLIAMS

HON. DENNIS J. KUCINICH

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. KUCINICH. Mr. Speaker, I rise today to honor State Representative Sandra Williams of Ohio's 11th District.

Before taking a position in the State House, Representative Williams began her career in criminal justice. She served as a member of the United States Army Reserve between 1987 and 1995. She later held positions as a corrections officer, probation officer, parole officer and mediator.

Her first job in the State House was as a legislative aide, a position she held for five years while gaining much needed insight and credentials that eventually earned her the trust of the voters she would soon represent. Representative Williams was first elected to be a State Representative in 2006 and is now in her third term. She is a ranking member of the House Public Utilities Committee and a member of the Criminal Justice and Economic and Small Business Committees.

In addition to her legislative career, Representative Williams is a member of the Federated Democratic Women of Ohio, the National Council of Negro Women, the Improved Benevolent and Protective order of Elks, Ohio Democratic Women's Caucus, National Association for the Advancement of Colored People, and the Black Women's Political Action Committee. She also donates much of her time to the Cleveland Food Bank as a volunteer and is a former Street Club President and precinct committee person.

Mr. Speaker and colleagues, please join me in honoring the achievements of State Representative Sandra Williams.

RECOGNIZING THE GROUND BREAKING OF THE 9/11 MEMORIAL AT SOUTH KING FIRE AND RESCUE

HON. ADAM SMITH

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. SMITH of Washington. Mr. Speaker, I rise to recognize the groundbreaking of the 9/11 Memorial at the South King Fire and Rescue Station 64 in Federal Way, Washington. The memorial will include a steel beam from the World Trade Center to honor the firefighters, police officers, and citizens who lost their lives when terrorists coordinated the attacks on September 11, 2001.

In 2011, Lt. Scott Mahlen and firefighter Sven Schievink drove to New York to retrieve the beam. During the 55 hour-long journey, the men were supported by friends and fire stations across the country. After returning to Federal Way, the community worked for the next year to raise money for the memorial.

The South King Firefighters Foundation plans to finish the memorial by September 11, 2013. This project serves as a reminder of how deeply the tragedy of 9/11 affected Americans across the country, and the steel from this beam represents the strength and resilience of the United States in the aftermath of unimaginable tragedy.

Mr. Speaker, it is with great honor that I recognize the work of the men and women of South King Fire and Rescue to construct a powerful memorial for the victims of the 9/11 attacks. When completed, this memorial will be an important reminder of those who lost their lives and the men and women who continue to protect our country every day.

HONORING THE CENTER FOR INDEPENDENT LIVING

HON. BARBARA LEE

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Ms. LEE of California. Mr. Speaker, I rise today to honor the 40th Anniversary of the Center for Independent Living, Inc. (CIL). For four decades, CIL has continued to champion the rights and abilities of people with disabilities to lead self-determined lives marked by activism, equality and community engagement. The first organization of its kind, CIL has made the Bay Area an international model of accessibility, inspiring Independent Living centers in 20 other countries, as well as 400 facilities in the U.S. alone.

This evening, supporters and friends, including esteemed California Governor, Edmund Gerald ''Jerry'' Brown, Jr., gather in the birthplace of the independent living movement, Berkeley, CA. Moreover, the festivities take place at the new, fully accessible Ed Roberts Campus disability service center and transit hub—named for the local founding father of the disability rights movement, Ed Roberts, who was also one of CIL's co-creators. Someone I had the honor to know and work with.

In 1972, what started as a student-organized Physically Disabled Students Program (PDSP) at the University of California, Berkeley branched into the formal incorporation of a Center for Independent Living cofounded by students Ed Roberts, Hale Zukas and Jan McEwan Brown along with community supporters. In the years that followed, CIL became a powerful catalyst for pervasive social change.

Operating on the principle that people with disabilities know best how to meet the needs of others with disabilities and that the strongest most vibrant communities are those that embrace all people, CIL has been a driving force in shaping public policy. Its successes include state and federal disability rights laws, including, Section 504 of the Rehabilitation Act and the Americans with Disabilities Act.

From early insistence on Berkeley curb cuts and transit station elevators, to working directly with municipal and state agencies and hosting the first National Conference on Independent Living in 1975, CIL became an integral support network—giving people the knowledge and tools to assert their civil rights.

In accordance with a core tenet of CIL's mission, the Center provides comprehensive programs with wraparound services that most effectively meet the needs of people with disabilities. Working with federal, state, county, city and private funding, CIL provides services in assistive technology and repairs, employment and housing, building modifications, Independent Living skills, Deaf Services, information counseling, referrals, personal attendants, travel training, and networking for community organizing. CIL's Employment Academy and Living Well Senior Program, as well as its Mentors, Advocacy and Peer Services (M.A.P.S) program for physically disabled youth and young adults, offer targeted income, wellbeing and mentorship benefits.

As someone with a sister who has been disabled with Multiple Sclerosis since 1974, I personally know the many challenges faced by people with disabilities. Therefore, I honor and salute the Center for Independent Living for its vision and steadfast hard work in meeting these challenges in magnificent ways.

CIL has proven that communities benefit when people with disabilities are given opportunities to live, work and participate as equal citizens. The Center for Independent Living is more than a destination for disability services; It's a gathering place, a place to find common cause and friendship, and a place to learn and grow. Ultimately, CIL is a place that teaches and empowers all of us to strive for independence through social and economic equality.

On behalf of California's 9th Congressional District, I want to extend my congratulations on this important, 40-year milestone. I thank all of the many people who have contributed to the continued success of the Center for Independent Living, Inc. and wish you the very best in the coming years.

IN HONOR OF OHIO STATE REPRESENTATIVE ARMOND BUDISH

HON. DENNIS J. KUCINICH

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. KUCINICH. Mr. Speaker, I rise today in honor of State Representative Armond Budish of Ohio's 8th House District.

In 2006, Budish was elected as a State Representative to the 127th General Assembly. He was named Speaker of the House for the 128th General Assembly and is currently the Democratic Leader of the House for the 129th General Assembly. Leader Budish is a Ranking Minority Member of the Financial Institutions, Real Estate and Securities Committee and a member of the Unified Long-Term Care Budget workgroup.

Leader Budish received his Bachelor's Degree with Honors from Swarthmore College and his Juris Doctorate, Order of the Coif from the New York University Law School. Upon graduation, he clerked in Washington D.C. for a Federal Judge. He later joined the Hahn Loeser and Parks law firm in Cleveland, Ohio. In 1993, he opened the Budish, Solomon, Steiner and Peck law firm in Beachwood, Ohio which specializes in consumer and elder law and continues to act as partner.

In addition to his position as Democratic Leader, Representative Budish hosts ''Golden Opportunities,'' a television show on the local Channel 3 news station aimed at informing seniors and their families. He has also written several books and national publications and has penned a column for The Cleveland Plain Dealer and Columbus Dispatch entitled, ''You and the Law,'' for the past 25 years.

Mr. Speaker and colleagues, please join me in honoring the achievements of State Representative Armond Budish.

CONGRATULATING JAMESVILLE MIDDLE SCHOOL ON THEIR DESIGNATION AS A NATIONAL BLUE RIBBON SCHOOL

HON. G. K. BUTTERFIELD

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. BUTTERFIELD. Mr. Speaker, I rise to congratulate Jamesville Middle School in

Jamesville, North Carolina for being honored by the U.S. Department of Education as a 2012 National Blue Ribbon School.

Since 1982, the Department of Education has recognized elementary, middle, and high schools whose students excelled or showed significant academic improvement on state or national assessments with the National Blue Ribbon School designation. This year, Jamesville Middle School is being recognized, along with 268 other schools nationwide, for its academic performance.

During the last two school years, students from Jamesville Middle School demonstrated academic excellence—earning performance composites of 91 and 93 percent on the North Carolina End-of-Grade Tests. These scores have distinguished Jamesville Middle School as one of the top five schools within a six county region in eastern North Carolina. As a result, the North Carolina State Board of Education and the North Carolina Department of Public Instruction named Jamesville Middle School an Honor School of Excellence two years in a row.

Mr. Speaker, I commend the students, faculty, and parents of Jamesville Middle School for their commitment to academic excellence. Quality primary and secondary education are essential for academic success and lifelong achievement. The Blue Ribbon School designation is a great testament to the Jamesville community's commitment to prepare their children for the future.

Mr. Speaker, I ask my colleagues to join me in honoring and celebrating Jamesville Middle School's recognition as a 2012 National Blue Ribbon school.

IN HONOR OF OHIO STATE REPRESENTATIVE JOHN E. BARNES, JR.

HON. DENNIS J. KUCINICH

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. KUCINICH. Mr. Speaker, I rise today in honor of State Representative John E. Barnes, Jr. of Ohio's 12th House District.

Representative Barnes is the son of former Cleveland City Councilman, John E. Barnes, Sr. who instilled in him a sense of value of service to others. Representative Barnes received a master's degree from Case Western Reserve University, professional education from Harvard University, an Honorary Doctorate from Chancellor University, and was a student at the Kathlieke University in Leuven, Belgium.

Representative Baker first served as a State Legislator from 1999 to 2002, during which he participated as a member of the Ohio Legislative Black Caucus' official visit to South Africa in 2001. He was also responsible for bringing millions of dollars to his district to support economic development and job creation initiatives. As a State Representative for the second time, he now sits on the Ways and Means; Health and Aging; and Economic and Small Business Committees.

In addition to his place in the Ohio House of Representatives, Representative Barnes has held positions as Chairman of the Ohio Commission on African American Males, a Cabinet-Level Director in the Administration of Former Cleveland Mayor, Jane L. Campbell, Director of Cleveland's Department of Community Relations, and a Senior Tax Auditor and Investigator for the City's Division of Taxation.

Mr. Speaker and colleagues, please join me in honoring the achievements of State Representative John Barnes, Jr.

200TH ANNIVERSARY OF THE DEATH OF SACAGAWEA

HON. KRISTIL L. NOEM

OF SOUTH DAKOTA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mrs. NOEM. Mr. Speaker, I wish to speak today to commemorate the 200th anniversary of the reported death of Sacagawea, and to celebrate the contributions she made to our country's development. She was only around 25 years old at the time of her death, but she accomplished much in her short life.

Sacagawea is remembered for guiding Captains Meriwether Lewis and William Clark, who were leading the Corps of North Western Discovery Expedition commissioned by President Thomas Jefferson in the early 1800s. This journey took them from Missouri to the far reaches of the Pacific Northwest, and back again.

Sacagawea was born around 1788 and was the daughter of a Shoshone chief. She was later kidnapped by an enemy of her tribe and married by the time she was only thirteen to a French-Canadian fur trapper. In 1804, she was commissioned by Lewis and Clark with her husband to serve as interpreters and joined the expedition with her newborn baby during the years 1804–1806. They led the expedition westward thousands of miles along the Missouri River and helped Lewis and Clark reach the Pacific Ocean before returning east.

Unfortunately, her life story came to an abrupt end when Sacagawea was reported to have died on December 20, 1812 near present day Kenel, South Dakota. Despite her untimely death, her contributions to our nation and rich cultural heritage continue to live on to this day. We commemorate her life on this year that marks the bicentennial anniversary of her reported death.

In the following weeks, Encounters of the Prairie, the South Dakota Chapter of the Lewis and Clark Trail Heritage Foundation, will meet in order to commemorate the anniversary of the reported death of Sacagawea. I admire her unique and inspiring heritage and her role in the history of this country. Sacagawea walked thousands of miles carrying her infant on her back, all the while using her skills as a guide and as an interpreter. After 200 years, Sacagawea is remembered for her abilities, perseverance, and impacts on this country and will continue to inspire us all.

IN HONOR OF OHIO STATE REPRESENTATIVE NICKIE J. ANTONIO

HON. DENNIS J. KUCINICH

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. KUCINICH. Mr. Speaker, I rise today in honor of State Representative Nickie J. Antonio of Ohio's 13th House District.

Prior to public service, Representative Antonio was a former special education teacher, an Executive Director at a non-profit for women's drug and alcohol treatment programs, an administrator for a multi-county HIV/AIDS group, an adjunct professor at Cleveland State University in Women's Studies and Public Administration. She served over two decades as a consultant to various non-profits and government agencies in Northeast Ohio.

In 2005, Representative Antonio was elected to the Lakewood City Council where she sat for a total of five years, chairing the Economic Development; Housing; and Human Services committees and also sat as a member of the Public Works and Finance Committees. While a Lakewood council representative, she served on the Lakewood Hospital Board for four years, fought to retain funding for senior programs and services, and was a founder of the Lakewood Relations Advisory Commission which is aimed at promoting citizen human rights and expanding the scope of existing intimidation laws.

As a State Representative, Antonio sits on the Commerce and Labor; Education, Health, and Aging; and Ohio House Committees. She also earned an appointment to the Joint Legislative Committee for Long-Term Care Services and Supports as well as the Commission on Developmental Disabilities. She serves as a policy co-chair for the Ohio Women's Legislative Caucus, is a member of the Ohio House Progressive Caucus, and is a past chair of both the American Cancer Society Relay for Life Event and the Cuyahoga Democratic Women's Caucus where she continues to sit on the steering committee.

Mr. Speaker and colleagues, please join me in honoring the achievements of State Representative Nickie J. Antonio.

RECOGNIZING THE C.A.S.T. FOR KIDS FOUNDATION

HON. ADAM SMITH

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. SMITH of Washington. Mr. Speaker, I rise to honor the ''Catch a Special Thrill'' (C.A.S.T.) for Kids Foundation, based in Renton, Washington. Since 1991, this organization and its founder Jim Owens have worked to partner volunteers who love fishing with people with special needs for fishing excursions. Today, the foundation hosts three different programs; C.A.S.T. for Kids, the Fishing Kids Program, and the Take a Warrior Fishing Program.

The C.A.S.T. for Kids Program held its first event at Banks Lake in Eastern Washington in 1992. Today, events are held in 22 States across the country. This program helps children with special needs and their caretakers

experience the outdoors and spend time on the water. This program also helps educate the community about the abilities of children with special needs and the value of providing this type of experience to those young individuals.

The Fishing Kids Program was established in 1996 to give young people living in urban areas exposure to fishing. Expert anglers volunteer to teach children fishing techniques, angler ethics, fish identification and water safety—giving young people the skills they need to begin a lifelong hobby. Kids also leave the program with a rod and reel to keep and continue using.

In 2011, the foundation launched a new program called Take a Warrior Fishing. The first event was held at Joint Base Lewis-McChord. This program connects transitioning military personnel and their families to increase interactions and appreciation for the outdoors. This also gives returning servicemembers a therapeutic outlet by spending time on the water and in the outdoors.

Mr. Speaker, it is with great honor that I recognize the work of the C.A.S.T. for Kids Foundation. Their creative solutions to helping kids and servicemembers by introducing them to the sport of fishing helps a wide variety of special needs individuals in our communities.

CELEBRATING MACEDONIA'S INDEPENDENCE DAY

HON. CANDICE S. MILLER

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mrs. MILLER of Michigan. Mr. Speaker, I rise today to recognize the Macedonian Community in honor of their Independence Day. On September 8, 1991, the Republic of Macedonia voted to officially gain its independence from the former Yugoslavia beginning a new era in the proud history of the Macedonian people. By approving the referendum, the people decided that it was time for their country to forge its own path. This 21st anniversary of their independence provides us all an opportunity to recognize the Macedonian Community's significant contributions both within our country, and throughout the world.

Macedonia has been a dedicated ally to the United States in the Global War on Terror and has done much to promote liberty and democracy throughout Europe and the world. With American cooperation and support, Macedonia has emerged as a center of multi-cultural peace and stability in a part of the world known for strife and ethnic tensions. Their staunch support of freedom makes them a model for other countries in the region, and their commitment to a U.S.-Macedonia relationship will lead to a richer, more prosperous future for citizens of both countries.

As a way to recognize this partnership, I started the first Congressional Caucus on Macedonia and Macedonian-Americans. This Caucus is a bipartisan group of members of Congress dedicated to maintaining and strengthening a positive and mutually beneficial relationship between the United States and the Republic of Macedonia, as well as advocating for the concerns and interests of the Macedonian community in the United States.

Michigan's 10th District has one of the largest populations of Macedonian-Americans in the Nation. I would like to acknowledge their contributions to our District and our State, and I look forward to continuing that relationship as we deal with the problems facing our great Nation.

Again, congratulations to the Macedonian community for their achievements as we commemorate the anniversary of their independence.

IN HONOR OF OHIO STATE REPRESENTATIVE NAN BAKER

HON. DENNIS J. KUCINICH

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. KUCINICH. Mr. Speaker, I rise today in honor of State Representative Nan Baker of Ohio's 16th House District.

Before joining the Ohio General Assembly, Representative Baker was a member of the Westlake Board of Education and served three terms as Westlake City Councilwoman. She has been an active member of the West Shore Chamber of Commerce for 18 years where she served two years as president and currently serves on the Board of Trustees. She has continued to be an avid business owner for over 30 years while remaining active in her community. She is involved with the Community Advisory Board for St. John Medical Center, Westlake Kiwanis, Westlake/North Olmsted League of Women Voters, Westside Professional Women's Connection and the Westlake/Westshore Arts Council.

Over the years, Representative Baker's hard work and dedication to public service has earned her several honors and awards including the 1999 Honored Woman of the Year awarded by the Westlake/North Olmsted League of Women Voters, a Certificate of Special U.S. Congressional Recognition, the Cleveland State University David C. Sweet Award given to alumni for distinguished elected service, the Hugh Dawson Award given by the West Shore Chamber of Commerce for outstanding service to the business community, and in 2009, the Chuck McDonald Council of Smaller Enterprises advocacy Award for her service and dedication to small business.

Currently as a State Representative in her second term, Representative Baker chairs the Economic and Small Business Development committee and is a member of the Education; Local Government; and Ways and Means Committees.

Mr. Speaker and colleagues, please join me in honoring the achievements of State Representative Nan Baker.

IN HONOR OF THE SIX SIKH AMERICANS SLAIN ON AUGUST 5, 2012

HON. JERRY McNERNEY

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. MCNERNEY. Mr. Speaker, today I rise to ask my colleagues to join me in honoring the memory of the six Sikh Americans that were shot and killed in a senseless act of violence on August 5, 2012.

Bhai Seeta Singh, Bhai Parkash Singh, Bhai Ranjit Singh, Satwant Singh Kaleka, Subegh Singh, and Parmjit Kaur Toor were slain without regard to human dignity or the sanctity of life. The people of my district and Americans across the Nation stand in solidarity with the Sikh community. Violence against any group is unacceptable, and I offer my prayers and condolences to the families of the victims in Wisconsin and to Sikhs everywhere.

Hate, particularly hate speech, is all too common in today's world. The Sikh community's unified and peaceful response to this hateful attack demonstrates the resilient spirit of the Sikh people. They have shown the world their love of peace, and it is my hope that we can all learn from the Sikh community in the wake of this tragedy.

In this great country, there is no room for the prejudice, intolerance and stereotypes that perpetuate hate acts and hate language. I stand beside the Sikh people as they continue to have the strength and dignity to be proud of their long heritage. To show such grace when faced with such a senseless act of violence is a true testament of their honorable culture.

I had the unique privilege to stand vigil with the Sikh people from my district. To join together in the face of such animosity was an honor. I commend the Sikh community in my district and around the country for their courageous response.

It is for these reasons that I ask my colleagues to join me in honoring the memory of the six Sikh Americans who were killed on August 5, 2012.

HONORING POINT REYES NATIONAL SEASHORE

HON. LYNN C. WOOLSEY

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Ms. WOOLSEY. Mr. Speaker, I rise today to honor Point Reyes National Seashore in Marin County, CA, on the occasion of its 50th anniversary. Millions of people—and flora and fauna—have benefitted from the law President John F. Kennedy signed on September 13, 1962, ''to save and preserve, for the purpose of public recreation, benefit, and inspiration, a portion of the diminishing seashore of the United States that remains undeveloped.''

Celebrating with the theme of A Natural Sanctuary, A Human Haven, Point Reyes National Seashore (PRNS) truly embodies these values. From its pristine beaches and forests to its ranches and grasslands, the area provides recreational and cultural resources as well as habitat for a wide variety of species. And nearly one-third of known marine mammal species feed in the waters just off the park's coast.

The Point Reyes peninsula has an unusually rich history. Coast Miwok Indians inhabited the peninsula 500 years ago, and, in 1579, Sir Francis Drake and his crew became the first Europeans to meet the Miwoks when they stopped to replenish water and supplies. The survivors of a shipwrecked Manila galleon came ashore a few decades later, foreshadowing a history of shipwrecks that led to the establishment of dramatic lighthouses and lifesaving stations that exist today. In the 19th century, ranchos were developed by Mexican land grantees, and ranching continues today

in pastoral zones in which cows share the landscape with native birds, plants, and animals. Lying on the San Andreas Fault, PRNS also displays the effects of the 1906 San Francisco earthquake, the sign of geological land in motion as the peninsula moves north at the rate of two inches a year.

This special area was first conceived as a park in 1938, and today it hosts over two million visitors a year. It is one of the country's most visited national parks.

Mr. Speaker, it takes hard work by many visionary and dedicated people to create and maintain a jewel like Point Reyes National Seashore. I am proud to congratulate all of them on 50 years of providing A Natural Sanctuary, A Human Haven.

HONORING VAN P. BARBIERI

HON. JANICE HAHN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Ms. HAHN. Mr. Speaker, I rise to honor Van P. Barbieri, who passed away on September 5, 2012. Van P. Barbieri was born on August 27, 1940 in San Pedro, California. He was a gentle, quiet man, who was never overbearing in expressing his ideas and thoughts about making our community better. He served on the Board of Directors of several local organizations. He was an affable San Pedro High School graduate who became one of the top real estate salesmen on the Palos Verdes Peninsula for 35 years, most recently at the Miraleste office of Remax, and was a former president of the California Real Estate Association.

To those in sports, he is remembered as the former boxing publicist for the Olympic Auditorium during the arena's heyday and a close friend and aide-de-camp for Pro Football Hall of Fame coach, George Allen. He was given the distinct honor of being inducted into the California Boxing Hall of Fame.

He is survived by his loving wife, Mary; mother, Eva; brothers and sisters-in-law, Dennis, (Lucretia), Anthony, (Linda) and John; several step children and grandchildren; and of course, countless friends. He was loved by all and will be missed dearly.

IN HONOR OF OHIO STATE REPRESENTATIVE MARLENE ANIELSKI

HON. DENNIS J. KUCINICH

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. KUCINICH. Mr. Speaker, I rise today in honor of State Representative Marlene Anielski of Ohio's 17th House District.

Representative Anielski holds a Bachelor of Arts degree from the University of Akron and a Master of Business Administration from Cleveland State University where she also received her certification as an Ohio Certified Public Manager.

Representative Anielski's political career began with her role as Walton Hills' Councilwoman, a position she held for two years before being elected Mayor of Walton Hills. She served as Mayor/Safety Director of the City for ten years between 2000 and 2010. In 2011, she was elected to her first term as Ohio State Representative in the Ohio General Assembly. She is a member of the Economic and Small Business Development; Education; Finance and Appropriations; Public Utilities; and Joint Bingo and Skill Based Gaming Committees. Representative Anielski has also opposed legislation that would allow for drilling for oil and natural gas in state parks and other state owned lands.

In addition to her responsibilities as a member of the State House, Representative Anielski is active in her community. She donates much of her time to various national, state, and local organizations including the Small Communities Council of the National League of Cities, the Mayors' and Municipalities Automotive Coalition, the Chambers of Commerce, and Junior Achievement.

Mr. Speaker and colleagues, please join me in honoring the achievements of State Representative Marlene Anielski.

RECOGNIZING MASTER CHIEF PETTY OFFICER (RET.) JOHN R. BRINKHEIDE FOR HIS MORE THAN 20 YEARS OF HONORABLE SERVICE TO THE U.S. NAVY

HON. GERALD E. CONNOLLY

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. CONNOLLY of Virginia. Mr. Speaker, I rise today to thank and commend Master Chief Petty Officer (Ret.) John Robert Brinkheide, of Dale City, Virginia, for his more than 20 years of honorable and courageous service to the United States Navy, his subsequent 17 years of service supporting the Department of Defense in the private sector, and his continued service to our community. We are fortunate to have among us veterans with MCPO Brinkheide's sense of duty and continued commitment to public service.

MCPO Brinkheide enlisted in the U.S. Navy in 1962 and completed electronics school the same year. From 1962 to 1964 he served aboard the USS Semmes, a ship he describes as truly unique, tied together by a crew committed to its mission and one another. His service aboard the USS Semmes instilled in him his sense of professionalism and ethics that guided him throughout the entirety of his military and professional career. He attended advanced electronics school in 1965 and then served for three years in Vietnam aboard an in-river LST. After completing his tour in Vietnam, MCPO Brinkheide served aboard the USS America from 1969 to 1976 and was promoted to Master Chief Petty Officer. MCPO Brinkheide's last few years at sea were served aboard the USS Nashville as the Electronics Material Officer from 1976 to 1980. MCPO Brinkheide spent his last year with the Navy working on strategic communications for the Naval Electronic Systems Command performing oversight of electronic equipment acquisitions.

After retiring from the Navy in 1981, he began a long career working for a contractor supporting the Department of Defense, specializing in systems acquisitions. Since retiring from the Navy, Mr. Brinkheide has actively worked to better his community through the Knights of Columbus and served as the Grand Knight of the John Paul I Council of Dale City, Virginia, from 2006 to 2007. MCPO Brinkheide also worked tirelessly for 24 years to help organize and implement the Prince William County Tree Trimming Day of Remembrance, a ceremony held to honor those who died in alcohol and drug-related vehicle crashes.

Mr. Speaker, I ask that my colleagues rise to join me in recognizing and thanking John R. Brinkheide for his steadfast and selfless service to our country and for his ongoing contributions to the betterment of our community.

CONGRATULATING JENNIFER POTTER ON HER RETIREMENT

HON. ADAM SMITH

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. SMITH of Washington. Mr. Speaker, I rise to honor and congratulate Jennifer Potter, the President and CEO of the Initiative for Global Development (IGD), on her retirement.

Jennifer joined the group who would found IGD in 2003 with a goal to reduce global poverty through economic growth and investment. Under her leadership as President and CEO, the Seattle-based organization grew from an ambitious idea to a widely recognized international organization. Jennifer has also led IGD's efforts to direct more than $100 million in investments to the developing world and altered the way governments and businesses engage in these areas. Her recent focus on African communities has opened the door for employment opportunities and increased their access to various markets.

Jennifer's true passion for non-profit work stems from her service in the Peace Corps and experience leading multiple urban planning and development organizations. She has also served on various boards of organizations focused on international policy. Her inspirational drive and vision will be difficult to replace, and her efforts to eliminate world hunger will always be remembered and appreciated.

Mr. Speaker, it is with great pleasure that I recognize and congratulate Jennifer Potter on her retirement. I wish her the best in all her future endeavors.

RECOGNIZING DR. NEAL A. YOUNG

HON. ELEANOR HOLMES NORTON

OF THE DISTRICT OF COLUMBIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Ms. NORTON. Mr. Speaker, I rise today to recognize the accomplishments of District of Columbia resident Dr. Neal A. Young, recipient of the 2012 Samuel J. Heyman Service to America Medal for Science and Environment. These prestigious awards, presented annually by the Partnership for Public Service, honor outstanding achievements by federal employees in nine categories.

Dr. Young is the Chief of the Hematology Branch, National Heart, Lung and Blood Institute at the National Institutes of Health (NIH) and the director of the NIH Center for Human

Immunology, Autoimmunity and Inflammation. His pioneering laboratory and clinical research, together with his clinical practice and mentoring, has saved the lives of thousands of people throughout the world suffering from bone marrow failure syndromes, all while serving as a federal employee. During his federal service, Dr. Young has become the world's foremost expert in the difficult area of bone marrow failure, and the treatment protocols he developed for aplastic anemia are considered best practice. Currently, Dr. Young, who developed methods for testing for the B19 parvovirus, has a vaccine for the virus in clinical trials. He also has dedicated himself to training the next generation of hematology clinicians-researchers, and his students have gone on to lead departments throughout the world. We are particularly pleased and proud that a scientist with Dr. Young's accomplishments is a resident of our city, where his example will especially inspire the budding young scientists among our children.

At a time when many federal employees feel beleaguered, Dr. Young's award puts a face on the term ''federal employee.'' Earlier this year, I introduced H. Res. 682, which expresses the sense of the House of Representatives in support of our outstanding federal employees, who are the best educated and most highly qualified broadly based workforce in the country. Dr. Young is a distinguished representative of federal employees at every level, who give their best to their work for the American people. The residents of the District of Columbia, many of whom also are federal employees, join me in congratulating Dr. Young, a distinguished D.C. resident who exemplifies our high quality federal employees and is now honored by our nation as one of our most remarkable scientists.

Mr. Speaker, I ask the House to join me in honoring Dr. Neal Young for his outstanding accomplishments in science and for his continuous commitment to public service.

RECOGNIZING CAPTAIN (RET.) THOMAS BOYCE FOR HIS 28 YEARS OF SERVICE TO THE U.S. NAVY

HON. GERALD E. CONNOLLY

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. CONNOLLY of Virginia. Mr. Speaker, I rise today to thank and commend Captain (Ret.) Thomas Boyce of Alexandria, Virginia for his 28 years of honorable service to the United States Navy and for his subsequent 30 of support to the Navy in the private sector. Captain Boyce's long career both in the Navy and in business speaks to his deep patriotism and commitment to protecting our nation. He is a veteran of the wars in both Korea and Vietnam, and his tremendous sacrifice and dedicated service to this country truly merit our highest praise.

CAPT Boyce graduated from the U.S. Naval Academy in 1951. After receiving his commission, he served in Korea aboard several minesweeping ships. From 1962 to 1964 he served aboard the USS Semmes, a ship for which he served on the commissioning team and helped oversee the construction. He credits the ship's command with instilling the esprit de corps needed for the USS Semmes to become one of the most successful missile firing ships in the Navy. From 1964 to 1970, CAPT Boyce served under the Naval Surface Missile System Office while assigned shore duty. During the early 1970s, he served aboard the USS Niagara Falls, a fast combat logistics ship that replenished ports in Vietnam. CAPT Boyce finished his naval career in 1979 at the Naval Air Systems Command.

After retiring, CAPT Boyce began an equally long career working for a naval contractor applying his unique skill set to managing the building of twenty LMSR ships. Used extensively by the Navy, LMSRs have significantly expanded the Navy's sealift capabilities and have been integral to the missions in Iraq and Afghanistan. CAPT Boyce recently retired for a second time and is looking forward to spending time with his wife, Barbara, and continuing his work on the board of the USS Semmes DDG–18 Association.

Mr. Speaker, I ask that my colleagues rise to join me in recognizing and thanking Thomas Boyce for his committed and selfless service to our country.

IN RECOGNITION OF JOSE JOEL GARCIA

HON. FORTNEY PETE STARK

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. STARK. Mr. Speaker, I rise today to pay tribute to Jose Joel Garcia, who is retiring from his position as Chief Executive Officer of Tiburcio Vasquez Health Center, Inc., a multisite and multi-service community health center in Southern Alameda County, California. Mr. Garcia has provided exemplary leadership to Tiburcio Vasquez Health Center since August 1992 and has expanded the organization to include a myriad of clinical and social services through multiple facilities.

Prior to his appointment as CEO of Tiburcio Vasquez, Mr. Garcia held academic appointments at UC Berkeley's Graduate School of Public Health and the Graduate School of Business at the University of Colorado. Between 1982 and 1993, he helped develop and direct a multidisciplinary bi-national graduate student exchange program known as the University of California-Universidad de Guadalajara ''Intercambio Academico.''

Mr. Garcia received his undergraduate degree in Political Science from the University of California, Santa Barbara and a law degree from the Boalt School of Law at the University of California, Berkeley. He is an active member of state and federal bars and has published research on health policy, law and administration in the United States and abroad. His professional and social justice contributions have advanced health access through the creation of a local, statewide and national nonprofit health care infrastructure and a focus on strengthening community-based self-governance at health centers.

In recognition of his contributions, Mr. Garcia has received numerous awards. He currently serves on the Executive Committee and the Board of Directors of the Primary Care Association, which he co-founded. He is a Board Member of the Alameda Health Consortium and Community Health Center network. His past affiliations include directing Centro Legal de La Raza, co-founding the Berkeley Primary Access Clinic, and past Chairperson and Board Member of Eden Medical Center. He served for five years on the Board of Directors of the University of California, Berkeley Alumni Association.

I join Jose Joel Garcia's colleagues, friends and family in applauding his outstanding career in numerous arenas to benefit others. While he is stepping down from his CEO role at Tiburcio Vasquez Health Center, he will remain affiliated with the organization in some capacity. This is good news as Mr. Garcia has played a major role in shaping health care delivery in Alameda County. We will welcome his continuing leadership skills, talent, intellect, and experience.

PERSONAL EXPLANATION

HON. MARTIN HEINRICH

OF NEW MEXICO

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. HEINRICH. Mr. Speaker, on September 10, 2012, I unfortunately missed three votes, which included rollcall numbers 557, 558 and 559.

If I had been present, I would have voted ''yes'' on rollcall vote 557.

If I had been present, I would have voted ''yes'' on rollcall vote 558.

If I had been present, I would have voted ''yes'' on rollcall vote 559.

REAUTHORIZING CERTAIN VISA PROGRAMS

SPEECH OF

HON. EDDIE BERNICE JOHNSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 11, 2012

Ms. EDDIE BERNICE JOHNSON of Texas. Mr. Speaker, I rise today in strong support of S. 3245, which reauthorizes the EB–5 Regional Center Program. S. 3245 is the type of commonsense legislation we need to put Americans back to work and rebuild our Nation's fragile economy. The EB–5 program, which creates jobs at no cost to taxpayers, has already created more than 25,000 jobs, and is projected to create more than 100,000 jobs per year once the program is fully implemented. With unemployment rates just above eight percent, we cannot afford to pass on this opportunity to innovate and invest in America.

It takes a coordinated effort by both government and the private sector to create jobs and rein in high unemployment rates. I am proud to report that the City of Dallas serves as a shining example that the E–B program works. Thanks to the collaborative efforts of Dallas Mayor Mike Rawlings and the Civitas Capital Group, the City of Dallas Regional Center has attracted more than $120 million in capital from foreign investors, which has funded projects such as affordable assisted-living facilities and building renovation initiatives.

The Democratic Members of Congress have consistently demonstrated their commitment to creating job opportunities here at home. I am encouraged to see that my Republican colleagues have put partisan politics aside and

have joined Democrats in our efforts to put Americans back to work. Reauthorization of the EB–5 program is just one step we can take to bolster our economy, and I hope to see increased bipartisan efforts to keep job-creating investments in the United States.

IN CELEBRATION OF THE TUSKEGEE-MOREHOUSE FOOTBALL CLASSIC

HON. SANFORD D. BISHOP, JR.

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. BISHOP of Georgia. Mr. Speaker, I rise today to salute a classic gridiron rivalry—the ''Matchless Classic of All Historically Black College Football Classics''—the 77th Annual Tuskegee-Morehouse Football Classic. This year, the Tuskegee University Golden Tigers will come face-to-face with the Morehouse College Maroon Tigers on the green grass of A.J. McClung Memorial Stadium in Columbus, Georgia on Saturday, October 6, 2012 at 2:00 p.m.

A rivalry that began in 1902 with the teams playing each other seventy-six times in over 100 years, the Tuskegee-Morehouse Football Classic has the distinction of being one of the longest running NCAA Division II classics in the nation. It first began as an entertainment event for the African-American civilian community and African-American U.S. Army soldiers in the Columbus-Fort Benning, GA and Phenix City, AL area. Today, its primary purpose is to help raise funds for scholarships to help young men and women attend college.

In 1955, Mr. Gordon H. Kitchen, Mr. A.J. McClung, and Mr. Carl Haygood formed the Classic Committee. The Committee continues to operate the Classic and has preserved the mission of its legendary founders and past leadership. This year, the Committee will welcome Dr. Robert Michael Franklin, Jr., the Tenth President of Morehouse College; Dr. Gilbert L. Rochon, the Sixth President of Tuskegee University; and Dr. Beverly Tatum, the Ninth President of Spelman College to the Classic.

This year will also mark the eighth year the Tuskegee-Morehouse Football Classic will be played in the A.J. McClung Memorial Stadium, which was named for the late Honorable A.J. McClung, a 1933 graduate of Tuskegee University, Chairman Emeritus of the Tuskegee-Morehouse Football Classic and 29-year member of the Columbus Council who served as acting Mayor of Columbus in 1973.

A longstanding tradition, the weeks leading up to the Classic are filled with excitement and anticipation. The Tuskegee-Morehouse Classic Parade is a widely attended fanfare. There is a week-long schedule of events including church services, recruitment activities, a media press conference, a golf tournament, President/Queens Brunch, VIP Reception and spirited tailgating.

Throughout the years, the two teams have taken the field to play with the highest quality and standards of college football. The players and coaches train and work tirelessly to ensure a memorable classic, and the marching bands, the Piperettes, Mahogany in Motion, cheerleaders, flag teams and other auxiliary units put on spectacular shows while the fans and observers cheer loudly and proudly for their teams.

Mr. Speaker, I ask that my colleagues join me in saluting the Golden Tigers of Tuskegee University as they come face-to-face with the Maroon Tigers of Morehouse College. Naturally, I will be cheering for my beloved Alma Mater, Morehouse College. Despite the outcome, however, the 77th Annual Tuskegee-Morehouse Football Classic is sure to be a memorable affair overflowing with spirit, pride, and tradition.

CONGRATULATING PAUL ROBERT CHENEVEY AND SANDRA JEAN CHENEVEY ON THEIR 50TH ANNIVERSARY

HON. GERALD E. CONNOLLY

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. CONNOLLY of Virginia. Mr. Speaker, I rise today to congratulate Paul Robert Chenevey and Sandra Jean Chenevey on their 50th wedding anniversary on August 11th. Paul and Sandra are both professional musicians. Paul was an orchestra conductor and a Professor of Music for more than 40 years at Westminster College in New Wilmington, Pennsylvania. Sandra was a piano instructor at Grove City College, Slippery Rock University, and at Westminster College.

In addition to their shared love of music, Paul and Sandra share a passion for travelling the globe, and recently journeyed to Antarctica, fulfilling their goal of visiting all seven continents. It is fitting, therefore, that Paul and Sandra celebrate their momentous anniversary with another trip, this time to the Washington, D.C. region, to spend time with their children, Stephen Michael Chenevey of Alexandria, Virginia, and my constituent, Catherine Anne Chenevey of Gainesville, Virginia.

I ask my colleagues to join me in congratulating Paul and Sandra on their 50th anniversary, and in wishing them many more, wherever their travels may take them.

RECOGNIZING THE TECHNOLOGY ACCESS FOUNDATION ACADEMY

HON. ADAM SMITH

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. SMITH of Washington. Mr. Speaker, I rise to honor the Technology Access Foundation (TAF) Academy, located in Kent, Washington and part of the Federal Way Public Schools, for winning the Schools of Distinction award for being the top middle school in mathematics instruction.

Each year, the Intel Corporation honors elementary, middle and high schools from across the country for excellence in math and science education. Award winners in the math and science categories for each level receive $10,000 to support efforts to remain at the cutting edge of preparing students for careers in the 21st century.

The TAF Academy opened in 2008 as a unique partnership between the Federal Way Public Schools and the Technology Access Foundation. It is a public middle and high school that receives additional support from the Technology Access Foundation to give students topnotch education in science, technology, engineering, and math. Students take rigorous classes that prepare them for college and eventually careers in the ever-changing and increasingly competitive global job market.

Mr. Speaker, it is with great honor that I recognize the hard work of students, teachers, parents, and administrators of the Technology Access Foundation Academy. The academy's focus on science, technology, engineering and math will be greatly beneficial to its students and to our country.

INTRODUCTION OF THE WATERFRONT BROWNFIELDS REVITALIZATION ACT

HON. LOUISE McINTOSH SLAUGHTER

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Ms. SLAUGHTER. Mr. Speaker, today I am proud to reintroduce the Waterfront Brownfields Revitalization Act. This bill will authorize a much needed grant program to assist communities that are overcoming the unique challenges of waterfront brownfields and fostering innovative approaches to remediation.

America's industrial heritage was established along the banks of its rivers, lakes and coasts. Our nation's vast and interconnected natural water system helped provide the power that fueled our rise to international prominence, and allowed us to move our manufactured goods efficiently to all corners of the country. However, that legacy also includes many decades of environmental contamination on the waterfront. Abandoned factories, dilapidated mills and underutilized ports can be found along the shores of many metropolitan areas. As localities seek to reconnect with their waterfronts and revitalize their downtowns, brownfield barriers threaten to derail community efforts to create jobs, promote recreational opportunities, restore the ecology, increase tourism, and grow their tax base.

Waterfront brownfields present challenges beyond typical environmental assessment and cleanup projects. Hydrology, water quality, wetlands, endangered species, habitat, dredged materials, flooding, environmental infrastructure, navigation, and other considerations must be carefully addressed so as not to exacerbate existing site contamination. Typically, waterfront brownfields require the involvement of multiple governmental agencies. As such, waterfront brownfields require special attention and resources to overcome their larger hurdles.

In my own district, the City of Rochester, NY is currently working to revitalize its beautiful waterfront, while attempting to cope with the unique challenges that waterfront brownfields present. The city is undertaking a major community revitalization strategy to redevelop its port and waterfront area into a mixed use development, which will include housing, commercial, retail, and educational uses, enhanced recreation, new parks and open space, and improved public access to Lake Ontario, the Genesee River and the surrounding ecosystem. However, because the

Port of Rochester and surrounding waterways were used extensively for industrial purposes from the late 1800s into the first half of the 20th century, significant environmental remediation will be required prior to redevelopment.

Mr. Speaker, Rochester is not alone in facing these types of complicated and expensive challenges to redevelopment. Cities all across the country are dealing with similar roadblocks as they try to engage corporate waterfront real estate into their redevelopment plans, from Yuma, AZ and Portland, OR in the west, to Savannah, GA, and Philadelphia, PA in the east, and almost everywhere in between where lakes and rivers exist.

My bill recognizes that the federal government can be an effective partner to communities interested in reconnecting with their waterfronts. Specifically, this legislation would authorize the U.S. Environmental Protection Agency to establish a waterfront brownfields pilot demonstration program to provide localities and other eligible entities with up to $500,000 to assess and cleanup waterfront brownfields. The bill would also establish an interagency taskforce on waterfront brownfields restoration to identify barriers and potential solutions to waterfront brownfields revitalization, and seek methods for federal interagency collaboration on such projects.

As cities across the country struggle to thrive in a changing global economy, and as our communities work to rebuild local economies, it is imperative that Congress do all that it can to help these cities redevelop and succeed. Industrialization and manufacturing helped make this country the power that it is today and remediating the contamination left behind will revive areas in cities across the nation that once were feared to be lost. This legislation will give these cities the flexibility and support they need to redevelop in an environmentally safe way, and utilize their waterfront as an incredible economic asset. I urge my colleagues to show their support for these communities by supporting this bill.

H.J. RES. 117—THE CONTINUING APPROPRIATIONS ACT FOR FISCAL YEAR 2013 AND H.R. 6365—THE NATIONAL SECURITY AND JOB PROTECTION ACT

HON. JOHN D. DINGELL

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. DINGELL. Mr. Speaker, I rise today in great frustration. It is a sad state of affairs when one of the few bipartisan achievements of this Congress is to delay major federal spending decisions for another six months. I will reluctantly support H.J. Res. 117, the Continuing Appropriations Act for Fiscal Year 2013, so funding for the government can continue, but I want to be clear that this is no way to run the country. We need to return to regular order and consider each of the 12 appropriations bills individually and in their entirety. A failure to do so is an abdication of the duty of Congress as enumerated by our most sacred document, the Constitution.

I oppose the next bill, H.R. 6365, which has an interesting name. In reality, it is nothing more than a disingenuous attempt to back out of the bipartisan deal struck last year in the Budget Control Act (BCA). We all agree that sequestration should be avoided, but it should be done within the framework of the BCA, instead of bypassing the deal to which we all agreed. I have long said everything should be on the table as we seek to reduce our deficit. I believe a balanced approach for doing so is the only legitimate way forward. H.R. 6365 abandons this approach by implementing deeper cuts in domestic programs so as to increase defense spending, and avoiding sequestration entirely. This is a cynical attempt at balancing our Nation's books. It does not ask the wealthiest among us to contribute a penny more to our country's needs. We must be fighting for the middle class and making smart, targeted investments to grow our economy and to create jobs, not needlessly slashing important domestic programs to protect millionaires and billionaires.

Congress has little time remaining to prevent sequestration from going into effect. I call on all members to come together and help find a serious, balanced solution to deal with our deficit, instead of engaging in political theatrics by passing H.R. 6365.

RECOGNIZING THE 50TH ANNIVERSARY OF THE MOSBY WOODS NEIGHBORHOOD IN FAIRFAX, VIRGINIA

HON. GERALD E. CONNOLLY

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. CONNOLLY of Virginia. Mr. Speaker, I rise to recognize the 50th Anniversary of the Mosby Woods neighborhood in Fairfax, Virginia.

The mid-20th century was a time of rapid change in the Washington, DC suburbs. The booming post war economy brought many thousands of new residents to the area. As a result of this growth, the population of the Town of Fairfax grew from 1,946 in 1950 to 13,385 by 1960.

During the summer of 1961, the Yeonas Development Corporation began construction of Mosby Woods. The name of the neighborhood was inspired by the 100th anniversary of the Civil War and commemorates Colonel John S. Mosby, who was active throughout Northern Virginia. In February of 1962, the first residents moved into their new homes.

The Mosby Woods Community Association was incorporated in the summer of 1963. Over the years it has represented the community before the City of Fairfax and Fairfax County Governments. The Association also has provided social opportunities and sponsored community events, such as the annual neighborhood picnic, the Halloween parade and the holiday house-decorating contest.

In 1981, after twenty years of being divided by the City/County boundary, the neighborhood was finally united in the City of Fairfax. The boundary change effort, led by the Mosby Woods Community Association, is an example of successful civic activism benefiting the entire community.

Many residents have lived in the neighborhood twenty, thirty, or even forty years, and a number of original owners are still in the homes they bought in the 1960s.

In recent years, second-generation residents have been returning to the neighborhood where they grew up to raise their own families. When asked why they made this decision, the answer is typically ''it's a great place to live.'' Much of that ''greatness'' is attributed to the quality of the home construction, the Fairfax County Public School system, the benefits of living in Fairfax City and the ''small town'' feel of the neighborhood. Mosby Woods is a village in a small city in a huge metropolis.

Mr. Speaker, I ask my colleagues to join me in celebrating the 50th Anniversary of the Mosby Woods neighborhood in Fairfax, Virginia, and in congratulating the Mosby Woods Community Association for its long history of civic leadership and community involvement. I wish the residents of Mosby Woods the best as they celebrate the history of their community.

IN HONOR OF PEACE CORPS DIRECTOR AARON WILLIAMS

HON. SAM FARR

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. FARR. Mr. Speaker, I rise today to honor my dear friend, Peace Corps Director Aaron Williams. After three incredible years of service, Director Williams is stepping down as the 18th Director of the Peace Corps. Without question, Director Williams leaves behind an amazing legacy that will benefit future generations of Peace Corps Volunteers and the communities in which they serve.

Director Williams was only the fourth Peace Corps Director to have been a Volunteer and, from day one, he wove that on-the-ground experience into his leadership. He understood the importance of a Peace Corps that draws from the full strength of America's citizens, and he put a laser sharp focus on expanding the diversity of the Volunteer ranks. Under Director Williams' leadership, Peace Corps formed a partnership with AARP; strengthened recruitment at Historically Black Colleges and Universities, Hispanic Serving Institutions, and Tribal Colleges; and established new partnerships with Minority Serving Institutions. And the results of his efforts are clear. Today, 20% of Volunteers are minorities and 7% are over the age of 50.

And this diversity of background and skill is desperately needed. The Peace Corps of today faces a world of increasingly complex global challenges that cannot be solved by one single entity. Director Williams broke down silos to forge and strengthen partnerships with established development entities including FAO, PSI, and the Special Olympics to promote best practices, leverage resources, and maximize impact. He also rolled out safety and security reforms, many of which were codified into law, to ensure that Volunteers, particularly women, have the support they need and deserve. Without a doubt, Director Williams has significantly enhanced Peace Corps' capacity to meet 21st century development challenges.

Director Williams worked shoulder-to-shoulder with presidents and prime ministers, world and thought leaders, and current and former Volunteers to help Peace Corps fulfill President John F. Kennedy's initial vision of world peace and friendship. Director Williams has made Peace Corps as relevant today as it

was at its inception 51 years ago. As war and conflict flare around the world, Peace Corps has shown the world a hopeful, uplifting side of America that reflects our fundamental values of peace, prosperity, and progress. This could not be possible without Director Williams' vision, leadership, and spirit.

Mr. Speaker, it's been a pleasure to work with this great man from the south side of Chicago. I will miss collaborating with him, but I wish him the very best in the next stage of his life. Director Williams, thank you for your friendship and your service. The world is a better place for your leadership.

HONORING SAMUEL COULSON

HON. SAM GRAVES

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. GRAVES of Missouri. Mr. Speaker, I proudly pause to recognize Samuel Coulson of Weston, Missouri. Samuel is a very special young man who has been named a finalist for the 2012 Broadcom MASTERS, a program of the Society for Science & the Public.

The Broadcom MASTERS (Math, Applied Science, Technology and Engineering for Rising Stars) is a science fair program designed for students in the sixth, seventh and eighth grades. Samuel is one of 30 finalists representing 29 schools in 17 states who were selected from more than 1,400 students who entered the competition. Samuel will be here in Washington starting September 28 to show his project and compete for prizes, including the top scholarship award of $25,000 from the Henry Samueli Foundation.

Mr. Speaker, I proudly ask you to join me in commending Samuel Coulson for his accomplishments in being named a finalist for the 2012 Broadcom MASTERS and in wishing him the best of luck in the competition and all of his promising future endeavors.

PERSONAL EXPLANATION

HON. TRENT FRANKS

OF ARIZONA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. FRANKS of Arizona. Mr. Speaker, had I been present for rollcall vote No. 565, I would have voted ''no.''

RECOGNIZING THE KONA KAI COFFEE COMPANY AS A FINALIST FOR THE 2012 KING COUNTY EXECUTIVE'S SMALL BUSINESS AWARDS

HON. ADAM SMITH

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. SMITH of Washington. Mr. Speaker, I rise to honor and congratulate Kona Kai Coffee Company in Kent, Washington for being named a finalist for the 2012 King County Executive's Small Business Awards, in the Workforce Development Small Business of the Year category.

Kona Kai Coffee Company started off as a small business with the vision of creating Hawaiian coffee products in the Northwest. Today, the company maintains a strong workforce that is diverse and highly skilled.

The Workforce Development Small Business of the Year award is given to those business that recognize the importance of on-the-job training, partnerships with other businesses, involvement of the community, benefits of educational institutions, and apprenticeships. Kona Kai Coffee Company has contributed greatly to the King County region and economy by practicing these ideas.

Mr. Speaker, it is with great pleasure that I honor Kona Kai Coffee Company. Businesses like Kona Kai Coffee Company that care deeply about the future of their employees deserve to be recognized and appreciated.

COMMEMORATING VERSAILLES HIGH SCHOOL'S 1962 FOOTBALL TEAM ON THE 50TH ANNIVERSARY OF THEIR STATE CHAMPIONSHIP

HON. BEN CHANDLER

OF KENTUCKY

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. CHANDLER. Mr. Speaker, today it is with great pride that I commemorate the 50th anniversary of Versailles High School's 1962 Kentucky state football championship. This commemoration has a special significance to me as my late grandfather, former Governor of Kentucky A.B. ''Happy'' Chandler, was on the sidelines cheering the football team to victory in the county where I was later born and raised.

The 1962 Yellow Jackets were one of the smallest football teams ever to win a Kentucky state championship, but what they may have lacked in size they made up for in their sheer determination and athletic skill. Led by the 1962 Central Kentucky Conference Coach of the Year John Snowden, this group of gritty underdogs confounded the experts by winning game after game and defying expectations.

On the day of the state championship game, more than half of the population of Woodford County was in attendance to root on the fan favorite Yellow Jackets. On that cold, windy Thanksgiving Day, the fans watched their Yellow Jackets overcome a bigger, stronger, and heavily favored opponent. The Yellow Jackets emerged victorious and claimed their memorable 1962 Kentucky state championship trophy.

Mr. Speaker, it is a great honor to have this momentous anniversary celebrated in my home district. The ''Boys of '62'' truly represent Kentucky's passion and dedication to the game of football. This group of individuals will always be remembered as one of Kentucky's finest, and we will continue to celebrate their accomplishments for years to come.

TRIBUTE TO CARLI LLOYD AND MATTHEW EMMONS

HON. JON RUNYAN

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. RUNYAN. Mr. Speaker, I rise today to pay tribute to two New Jersey natives, Carli Lloyd and Matthew Emmons. Carli and Matthew both competed in the 2012 London Olympic Games and proudly represented the United States of America.

Carli Lloyd, who currently resides in Mt. Laurel, New Jersey, graduated from Rutgers University in 2005 with a degree in exercise science and sports studies. Carli was a midfielder for the United States Women's Soccer Team in 2008 and 2012, both of which won gold medals. In addition, Carli is a two-time FIFA Women's World Cup Team member, a three-time NCAA All-American, and in 2008 won the U.S. Soccer Female Athlete of the Year Award.

Matthew Emmons, born in Mount Holly, New Jersey, graduated in 2003 with an accounting degree from the University of Alaska-Fairbanks. He is a three-time Olympian, having competed in the 2004, 2008, and most recently, the 2012 Olympic Games. In London, Matthew placed 35th in the 10m air rifle and captured the bronze medal in the men's three-position rifle. Another outstanding highlight in Matthew's career came in 2002 when he brought home the gold in the men's 50-meter rifle prone event at the 2002 World Championships.

I congratulate Carli and Matthew on all of their achievements and am so proud of them for representing New Jersey and the United States in the 2012 Olympic Games. I urge my colleagues to join me in recognizing these fantastic American athletes.

HONORING FRED BERRY

HON. JOHN F. TIERNEY

OF MASSACHUSETTS

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. TIERNEY. Mr. Speaker, I rise today to pay tribute to a gentleman and true public servant: Massachusetts State Senate Majority Leader Frederick E. Berry. Several months ago, Senator Berry announced that he would be retiring from the Massachusetts Senate after 30 years of service. He will be sorely missed.

Fred Berry was born on December 20, 1949 with cerebral palsy. At that time, doctors said he would never walk or talk—but Fred proved them all wrong. He attended Massachusetts State Hospital School and later Bishop Fenwick High School in Peabody, where he graduated in 1968. He then attended Boston College, graduating in 1972.

In 1979, Fred was elected to the Peabody City Council, and, in 1982, he was elected to the Massachusetts Senate. During his tenure in the Senate, Fred served on multiple committees and assumed numerous leadership roles. In 2003, he was elected by his colleagues to be the Senate Majority Leader, which is a position he continues to hold today.

Fred's thirty year career is filled with memorable moments and achievements. His accomplishments are too long to list here, but they

include the following: creating separate Departments of Mental Health and Mental Retardation; providing crime victims the right to be heard during the judicial process, allowing victims to receive financial compensation and establishing the Massachusetts Victim and Witness Assistance Board; creating the Children's Trust Fund, a public-private partnership to create programs to end child abuse; founding the Massachusetts Legislative Children's Caucus; requiring insurance companies to cover Early Intervention benefits for children born with developmental delays; requiring private insurance companies to cover medically necessary autism treatments, including evidence-based behavioral health treatments; fighting against efforts to reduce Medicaid benefits for individuals with mental health and addiction disorders; and filing legislation that allowed Salem State College—my alma mater—to achieve university status.

In addition to his legislative work, Fred is a passionate advocate for children and families who are struggling. In 1982, shortly after he was first elected to the Massachusetts Senate, Fred established the Fred Berry Charitable Fund. Over the next thirty years, he would work tirelessly to raise over $1 million to benefit children and families in need. As Fred recently told the Boston Globe, ''I felt I could use my notoriety to help others. Nonprofits always need money, but never have the time to raise it. . . . To be honest, it hurt fund-raising for my campaigns. People said, 'I already gave to Fred.' '' But in his heart, Fred knew it was the right thing to do.

I want to wish Fred and his wife Gayle all of the best. For those of us who know Fred, we anxiously await the next chapter in what has been a remarkable life.

RECOGNIZING MOSBY FARMS AS A FINALIST FOR THE 2012 KING COUNTY EXECUTIVE'S SMALL BUSINESS AWARDS

HON. ADAM SMITH

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. SMITH of Washington. Mr. Speaker, I rise to honor and congratulate Mosby Farms in Auburn, Washington for being named a finalist for the 2012 King County Executive's Small Business Awards, in the category of Rural Small Business of the Year.

Mosby Farms is a family-owned farming business that began in 1977. The Mosby family has grown conventional and organic foods for decades, while giving back to their community by donating thousands of pounds of food weekly.

The Rural Small Business of the Year award recognizes the achievements of the rural industry. Mosby Farms excels at what they do and represents the King County area proudly.

Mr. Speaker, it is with great pleasure that I honor and congratulate Mosby Farms as a finalist this year. Rural businesses offer many opportunities for work and promote economic growth in agricultural and rural communities throughout our nation.

IN RECOGNITION OF THE PUBLIC SERVICE OF MICHAEL BORDEN

HON. SPENCER BACHUS

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. BACHUS. Mr. Speaker, Members of Congress are always far more effective when they find loyal, dedicated staff to fight alongside them. These essential employees provide us with invaluable political advice, propose policy solutions to the problems facing our nation, and often work around the clock to accomplish the most important tasks. One of the staff members on the Financial Services Committee, Michael Borden, has been a valuable asset since he joined us back in 2007. Unfortunately, today is Michael's last day with the Committee; however, his distinguished record of public service will continue to benefit the American people long after he leaves Capitol Hill.

Back in the fall of 2008, the Federal government took unprecedented action to respond to the economic crisis. During this time, Michael provided sound advice to Members of the Committee and kept all of us informed under fast changing circumstances. This was an unprecedented time and Michael was here on weekends and late into the night to help Members prepare for the debate and understand the consequences of their votes.

Michael has a passion for ensuring the right policy is achieved. His commitment and expertise are unmatched on many key issues. On an issue dear to me—shielding children from the scourge of Internet gambling, Michael was integral in efforts to ensure that our kids are protected from becoming addicted to gambling at an early age. Michael also worked to ensure homebuyers are protected during the most important financial transaction of their lives with the SAFE Act, which ensures that mortgage originators are honest and fair with their customers. Michael worked to help Republican Members devise a strategy to wind down Fannie Mae and Freddie Mac after they received the biggest taxpayer-funded bailout of them all, and to develop legislative solutions to protect taxpayers from further losses. While we didn't always have the votes for the policy solutions we wanted, I received the sound advice I needed from a trusted member of my team, and I will always be grateful for his service.

Michael has been a trusted and valued adviser to both experienced and new House Members, and a mentor to countless members of our staff. His sound advice, counsel and acerbic sense of humor will be sorely missed. He never sugar-coated anything (his blunt nature and his waistline wouldn't tolerate it) and always gave us his honest opinion on what action we should take, even if it's not what we wanted to hear. There is no doubt that American taxpayers, consumers, and other stakeholders have been well-served by Michael's commitment to sound public policy.

It is with appreciation and gratitude that I take this opportunity to permanently commemorate Michael's service to our committee Members and to our nation.

RESTORING THE DOCTORS OF OUR COUNTRY THROUGH SCHOLARSHIPS ACT OF 2012

HON. JIM McDERMOTT

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. McDERMOTT. Mr. Speaker, of all of the challenges facing our nation's health-care system, perhaps the most neglected is the gaping hole in our workforce of primary-care physicians. One estimate projects a shortage of 45,000 primary-care doctors by 2020. Due to the retirement of a generation of physicians, the aging of our population, and the entry into the system of some 30 million newly insured thanks to the Affordable Care Act, we do not have enough primary-care doctors to meet the demand, and the problem will continue to worsen without a major initiative to produce new doctors.

Primary-care doctors are the front lines of our physician workforce. Under the right conditions, they oversee and coordinate health care for their patients. They educate patients on how to prevent illness and manage chronic conditions. They are the medical generalists who establish long-lasting bonds with patients throughout their lives. Proper primary care is also one of the keys to containing health-care costs. On the other hand, inadequate primary care leads to neglected and mismanaged conditions, which causes costly emergencies and illnesses downstream.

I am introducing the RDOCS Act to help solve this problem. Modeled after the successful ROTC program, RDOCS offers full scholarships to medical students in exchange for a 5-year service commitment in a medically underserved area. RDOCS will be administered by the states, which will send RDOCS scholars to their state-operated medical schools. RDOCS officers (as they are known after graduation) will then become licensed and serve as primary-care doctors in their state of residence. The program is authorized to start immediately and begin graduating its first additional 4,000 new primary-care doctors in 2020, and 20,000 new doctors by 2024.

Thanks to the Affordable Care Act, we are going to get close to universal health coverage in the United States. But universal coverage will not be meaningful if we don't have enough doctors to serve our population. I am optimistic that Congress can demonstrate leadership in restoring our doctor workforce for the next generation.

HONORING SPECTRUM LGBTQ CENTER

HON. LYNN C. WOOLSEY

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Ms. WOOLSEY. Mr. Speaker, I rise today to honor Spectrum LGBT Center on the occasion of its 30th anniversary. Located in Marin County, CA, Spectrum has been a leader and an integral part of the community for three decades.

With a mission ''to promote acceptance, understanding, and full inclusion for lesbian, gay, bisexual, and transgender people,'' Spectrum

has engaged in mobilizing and advocating for people who are LGBTQ, Lesbian Gay Bisexual Transgender Questioning, and their friends, families, and supporters.

Founded by the Reverend Jane Spahr in 1982 as a support program for LGBT youth in Marin, Spectrum has grown under the leadership of current director Paula Pilecki. The agency now provides programs for seniors, counseling, advocacy, training, and public awareness and coordinates with organizations around the North Bay. This year, it launched the Spectrum LGBT Equality Pledge for businesses and professional organizations that want to show their support.

Mr. Speaker, thanks to organizations like Spectrum LGBT Center, we have seen progress over the last 30 years in rights for LGBTQ individuals. There is still much work to do, and we will continue to rely on Spectrum until full equality is achieved. Congratulations to Paula Pilecki and the staff at Spectrum on their 30th anniversary.

HONORING ALBERT PERISHO

HON. JANICE HAHN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Ms. HAHN. Mr. Speaker, I rise to honor Albert Perisho, who passed away at home peacefully on August 2012. Albert was born September 9, 1931 in Long Beach, California. Al graduated from Banning High School in 1949 and then enlisted in the United States Marine Corps to serve in the Korean conflict. He met the love of his life, Myrt Van Meter, while working in Long Beach. Al and Myrt were married 59 years. In 1954, he became a member of the International Longshore and Warehouse Union. He served there until he retired in 1994. He was elected for 4 terms as President for Local 63 and 2 ½ terms as Secretary Treasurer.

While retired, he stayed active with the Southern California Pensioners Club and served as President. Al was recognized as Man of the Year by the City of Los Alamitos, the Los Angeles Long Beach Harbor, and the ILWU Southern California Pensioners Club. He was also a volunteer with the Red Cross disaster relief.

Al loved fishing in the High Sierras and had a great sense of humor. He was the kind of friend everyone wanted. He was a loving husband, father, grandfather, and brother. He is survived by his wife, Myrt; daughter, Cheri Phillips; son in law, Bill Phillips; son, Terry Perisho; daughter in law, Candy Perisho; son, Jack Perisho; daughter in law, Vanetta Perisho; grandchildren, Shaun, Christy, Jake, and Jacquie; and his brother, Tom Harvey. He was loved by all and will be missed dearly.

RECOGNIZING NESBY AND ASSOCIATES AS A FINALIST FOR THE 2012 KING COUNTY EXECUTIVE'S SMALL BUSINESS AWARDS

HON. ADAM SMITH

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. SMITH of Washington. Mr. Speaker, I rise to honor and congratulate Nesby and Associates in Renton, Washington for being named a finalist for the 2012 King County Executive's Small Business Awards, in the Minority Small Business of the Year category.

Nesby and Associates is a development consulting firm that encourages consumers and companies to invest in diverse markets. The company succeeds by having a large clientele, ranging from the local to the national levels.

The Minority Small Business of the Year award is only presented to extraordinary minority-owned businesses that have shown significant growth and contributions to the King County community. Currently, 13 percent of the businesses in the King County region are minority-owned and Nesby and Associates and many others make tremendous contributions to the region's economic strength.

Mr. Speaker, it is with great pleasure that I honor Nesby and Associates. The firm proudly represents the growing numbers of minority-owned businesses in our community and throughout our nation.

HONORING MIKE OGLE, DEDICATED SERVANT TO EASTERN WASHINGTON'S VETERANS

HON. CATHY McMORRIS RODGERS

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mrs. McMORRIS RODGERS. Mr. Speaker, I rise today to honor Mike Ogle, a dedicated servant who spent countless hours assisting our Eastern Washington veterans at the

While America's service members and veterans have answered the call of duty and have served with dignity and honor, similarly Mike Ogle answered the call of duty to serve our veterans in Eastern Washington. A twenty-four year Air Force veteran, while working at the Spokane Veterans Outreach Center, Mike dutifully helped veterans by providing outreach, counseling, and resource referral.

However, his story goes beyond simply wanting to help Eastern Washington's veterans. Serving in the Air Force, Mike spent a great deal of time in the Middle East and was deployed for a combined total of nearly eight years. This experience enabled Mike to be one of the best advocates for veterans in Eastern Washington. Quite simply: Mike spoke their language and whenever he interacted with a veteran, the veteran knew that they had found a friend.

Working at the Spokane Veteran Outreach Center, Mike Ogle spent most of his days traveling in a custom-fitted RV called the Mobile Vet Center. Through the Mobile Vet Center, Mike spoke to Eastern Washington's veterans about housing, medical care, and employment opportunities. In addition, Mike diligently took time to generate a constructive game plan with each veteran he saw. More importantly, Mike made a point to follow up with each and every veteran that he met.

So today, I am thankful for Mike Ogle's selfless, energetic dedication to our veterans in Eastern Washington.

HONORING THE CITY OF WESTON

HON. SAM GRAVES

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. GRAVES of Missouri. Mr. Speaker, I proudly pause to recognize the City of Weston, Missouri, as the residents celebrate the 175th anniversary of the founding of their community.

Weston was a mid-nineteenth century Missouri River port community, the second largest port on the river, second only to St. Louis. In 1850, over 300 steamboats a year docked at the Port of Weston. The population soared to 5,000, surpassing both Kansas City and St. Joseph. Floods, fires, and the Civil War contributed to a decline in population, but not in spirit. In 1972, a major portion of the early town was designated an Historic District and placed on the National Register of Historic Places having retained a substantial portion of its early residences and commercial structures. Weston is a gem in the 6th Congressional District featuring antebellum homes, museums, walking tours, and a historic shopping district. Many of the antique, home furnishing, gift shops and restaurants are located in buildings built prior to the Civil War.

Mr. Speaker, I proudly ask you to join me in celebrating with the City of Weston during their 175th anniversary festivities.

CELEBRATING GONZAGA UNIVERSITY 125TH ANNIVERSARY

HON. CATHY McMORRIS RODGERS

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mrs. McMORRIS RODGERS. Mr. Speaker, I rise today to congratulate Gonzaga University in Spokane, Washington as it celebrates its 125th anniversary. I take great pride in representing this nationally-recognized institution of higher learning.

In 1881, Father Joseph Cataldo, S.J., a Jesuit from the Rocky Mountain Mission, decided to establish a school for boys along the banks of the Spokane River. With $936 in silver dollars, Father Cataldo purchased 320 acres of land. Six years later, on September 17, 1887, Gonzaga College officially opened its doors serving 18 students.

For the last 125 years, Gonzaga University has transformed itself to meet the educational needs of an expanding region. First in 1912, the School of Law was established to meet the Inland Northwest's legal demands. Then in 1921, the School of Business was formed to help bolster commerce with skilled business leaders. Seven years later the School of Education opened its doors to prepare teachers to meet the needs of a rapidly growing community. In 1934, when hydroelectricity was being developed as a new regional power source and engineers were needed to build dams, Gonzaga established a School of Engineering. And in 1975, the School of Professional Studies was created to educate health care professionals and prepare community leaders for the demands of the next century.

Today, Gonzaga University is one of our nation's premier institutions of higher learning,

educating more than 7,800 students. While at Gonzaga students can choose from over 75 fields of study, select from 25 master's degree programs, and pursue doctoral degrees in Law and Leadership. In addition, Gonzaga student cheer on and participate in varsity soccer, baseball, golf, tennis, track, rowing, and of course perennial powerhouse men and women's basketball teams.

So today, it is my grant honor to recognize Gonzaga University for achieving this historic 125–year milestone and applaud the entire University community—students, staff, faculty, alumni, and supporters—for the contributions they have made to Eastern Washington throughout the years. The Zag Spirit is alive and well, 125 years and counting.

IN RECOGNITION OF THE CANOE RIVER AQUIFER ADVISORY COMMITTEE

HON. WILLIAM R. KEATING

OF MASSACHUSETTS

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mr. KEATING. Mr. Speaker, I rise today to recognize the Canoe River Aquifer Advisory Committee as the organization celebrates its twenty-fifth year of service.

The Canoe River Advisory Committee, otherwise known as CRAAC, is comprised of representatives from the Massachusetts towns of Foxborough, Sharon, Mansfield, Easton, and Norton. Its many duties include educating the public about the benefits of preserving the beautiful Canoe River Aquifer, a wetland region that flows for nearly sixteen miles through these five towns, as well as emphasizing the importance of protecting the delicate ecosystem that is found within the region. Since CRAAC was formally created by the Massachusetts State Legislature in October of 1987, nearly forty individuals have served on the committee, ranging from town selectmen to local residents who care deeply about their local environment. Currently, each town sends three appointed members to the Committee, and these individuals work diligently to ensure that the aquifer—which provides the five towns with approximately half of their water supplies—remains viable and well-cared for. As this region has been declared an Area of Critical Environmental Concern by the Commonwealth of Massachusetts and designated as a Sole Source Aquifer by the federal government, the work that this committee does to ensure its protection is essential.

Today, the work that CRAAC does to protect the Canoe River Aquifer ranges from advising municipal officials and residents on developmental impacts and conservation practices to sponsoring educational conferences and meetings. The committee is highly regarded by the people of Massachusetts, and it is seen as a statewide model for a volunteer-run regional environmental entity. I have witnessed CRAAC's success over the years, and I am confident that the committee will continue to serve as an example of what can be done at the local level to preserve the unique landscapes of Massachusetts.

Mr. Speaker, it brings me great joy to recognize the Canoe River Aquifer Advisory Committee. I urge my colleagues to join me in thanking its members for all that they have done for their local environment, and in congratulating the Committee for twenty-five successful years of service.

CELEBRATING TELECT, INCORPORATION'S 30TH ANNIVERSARY

HON. CATHY McMORRIS RODGERS

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 13, 2012

Mrs. McMORRIS RODGERS. Mr. Speaker, I rise today to celebrate the 30th anniversary of Telect, Incorporation, one of the premier family-run, independent businesses in eastern Washington.

On September 13, 1982, Bill and Judi Williams, later joined by their son Wayne, set out to build an independent company that would transform the communications industry. Thirty years later, their focus remains the same: simplify telecommunication networks by providing innovative solutions.

Headquartered in Liberty Lake, Washington, Telect's history of service and innovation, along with a business model driven by entrepreneurialism and dynamic energy, positions them to be the lead provider for the global communications industry. At the heart of the company, Telect designs, manufactures, and integrates connectivity and power solutions for the communications industry by offering power distribution and protection panels and management systems.

However, their story goes beyond simply creating equipment for the telecommunication industry. To celebrate their 30th anniversary, Telect President and CEO Wayne Williams, and Vice President and CFO Stan Hilbert are exchanging tradeshows and boardrooms for the open road on their motorcycles. Ride with Telect, a national business and motorcycle tour, will hit the road during the months of August and September. Traveling 11,000 miles, Ride with Telect will enable the business to travel to their customer's location and interact with them one-on-one. Williams, Hilbert, and other members of the Ride with Telect team will thank customers, showcase products, and develop new relationships in this face-to-face product roadshow celebration.

Through the last thirty years, the Williams family has effectively integrated their faith into developing a successful business. Demonstrating commitment to God, country, and their community by serving on various boards including the Washington Policy Center, Greater Spokane Incorporated, and the Public Facilities District Board, Bill and Judi have given their time to eastern Washington. In addition, Telect has been the recipient of numerous awards including being named the Washington Family Business of the Year in 1994, Gonzaga's University Ethics Award in 2001, and AGORA Business and Community Lifetime Achievement Award in 2007. I applaud the Williams' family integrity and generous contributions to our community.

So today, I am encouraged by this family-run, independent business that instead of taking the road well traveled, decided to venture out and explore the open road. Congratulations to Telect, Incorporation for their many successes during their first thirty years and I eagerly anticipate their upcoming innovations for eastern Washington and the rest of the telecommunications industry in the next thirty years.

Daily Digest

Highlights

House passed H.J. Res. 117, Continuing Appropriations Resolution, 2013.

Senate

Chamber Action

Routine Proceedings, pages S6289–S6390

Measures Introduced: Sixteen bills and five resolutions were introduced, as follows: S. 3537–3552, and S. Res. 554–558. **Pages S6339–40**

Measures Reported:

S. 2170, to amend the provisions of title 5, United States Code, which are commonly referred to as the "Hatch Act" to eliminate the provision preventing certain State and local employees from seeking elective office, clarify the application of certain provisions to the District of Columbia, and modify the penalties which may be imposed for certain violations under subchapter III of chapter 73 of that title, with an amendment in the nature of a substitute. (S. Rept. No. 112–211)

S. 2389, to deem the submission of certain claims to an Indian Health Service contracting officer as timely. **Page S6339**

Measures Passed:

Federal Insecticide, Fungicide, and Rodenticide Act: Senate passed S. 3552, to reauthorize the Federal Insecticide, Fungicide, and Rodenticide Act. **Pages S6370–87**

State and Province Emergency Management Assistance Memorandum of Understanding: Senate passed S.J. Res. 44, granting the consent of Congress to the State and Province Emergency Management Assistance Memorandum of Understanding. **Pages S6387–88**

Foreign Service and Civil Service Professionals: Senate agreed to S. Res. 401, expressing appreciation for Foreign Service and Civil Service professionals who represent the United States around the globe. **Pages S6388–89**

Measures Considered:

Family and Business Tax Cut Certainty Act: Senate began consideration of the motion to proceed to consideration of S. 3521, to amend the Internal Revenue Code of 1986 to extend certain expiring provisions. **Page S6289**

Veterans Jobs Corps Act—Agreement: A unanimous-consent-time agreement was reached providing that on Wednesday, September 19, 2012, following any Leader remarks, Senate resume consideration of S. 3457, to require the Secretary of Veterans Affairs to establish a veterans jobs corps, and, notwithstanding Rule XXII, it be in order for Senator McConnell, or his designee, to raise a budget point of order against Reid (for Murray) Amendment No. 2789; that if a budget point of order is raised, the Majority Leader, or his designee, be recognized for a motion to waive the applicable budget points of order; that the time until 12 p.m. be equally divided between the two Leaders, or their designees, on the motion to waive; that upon the use or yielding back of time, Senate vote on the motion to waive; that if the motion to waive the applicable budget points of order is not agreed to, the cloture motions with respect to Reid (for Murray) Amendment No. 2789, and the bill, be withdrawn and the bill be returned to the calendar and the Majority Leader then be recognized; that if the motion to waive is agreed to, at a time to be determined by the Majority Leader, after consultation with the Republican Leader and notwithstanding Rule XXII, Reid motion to commit the bill to the Committee on Veterans Affairs, with instructions, Reid Amendment No. 2812, be withdrawn; that all the pending amendments be withdrawn with the exception of Reid (for Murray) Amendment No. 2789; that there be 30 minutes of debate equally divided between the two Leaders, or their designees; that upon the use or yielding back of time, Senate vote on the motion to invoke cloture on Reid (for Murray) Amendment No. 2789; if cloture is invoked, the remaining post-cloture time be yielded back and Senate vote on or in relation to

Reid (for Murray) Amendment No. 2789; that following that vote, Senate vote on the motion to invoke cloture on the bill, as amended, if amended; and that if cloture is invoked, the post-cloture time be yielded back, and Senate vote on passage of the bill, as amended, if amended; and that following the vote on passage of the bill, the Majority Leader be recognized; If cloture is not invoked on Reid (for Murray) Amendment No. 2789, the cloture motion on the bill be withdrawn and the bill be returned to the calendar; and that no amendments, motions or points of order be in order to Reid (for Murray) Amendment No. 2789 or the bill other than those listed in this agreement. **Page S6332**

Continuing Appropriations Resolution—Agreement: A unanimous-consent agreement was reached providing that when Senate receives H.J. Res. 117, making continuing appropriations for fiscal year 2013, it be placed on the calendar; that on Wednesday, September 19, 2012, it be in order for the Majority Leader to move to proceed to consideration of the resolution and file cloture on the motion to proceed to consideration of the resolution; that if a cloture motion is filed, notwithstanding Rule XXII, the vote on the motion to invoke cloture on the motion to proceed to consideration of the resolution occur at 2:15 p.m., on Wednesday, September 19, 2012. **Page S6332**

Nominations Received: Senate received the following nominations:

Mark Doms, of Maryland, to be Under Secretary of Commerce for Economic Affairs.

Christopher R. Beall, of Oklahoma, to be a Director of the Amtrak Board of Directors for a term of five years.

William Shaw McDermott, of Massachusetts, to be a Member of the Board of Directors of the Metropolitan Washington Airports Authority for a term expiring November 22, 2017.

Nina Mitchell Wells, of New Jersey, to be a Member of the Board of Directors of the Metropolitan Washington Airports Authority for a term expiring May 30, 2018.

Deborah Ann McCarthy, of Florida, to be Ambassador to the Republic of Lithuania.

Joan M. Prince, of Wisconsin, to be an Alternate Representative of the United States of America to the Sixty-seventh Session of the General Assembly of the United Nations.

Ted R. Dintersmith, of Virginia, to be an Alternate Representative of the United States of America to the Sixty-seventh Session of the General Assembly of the United Nations.

Lorne W. Craner, of Virginia, to be a Member of the Board of Directors of the Millennium Challenge Corporation for a term of two years.

Jeffrey Shell, of California, to be a Member of the Broadcasting Board of Governors for a term expiring August 13, 2015.

Jeffrey Shell, of California, to be Chairman of the Broadcasting Board of Governors.

Bruce Carter, of Florida, to be a Member of the National Council on the Arts for a term expiring September 3, 2018.

John Unsworth, of Massachusetts, to be a Member of the National Council on the Humanities for a term expiring January 26, 2016.

Martin O'Malley, of Maryland, to be a Member of the Board of Trustees of the James Madison Memorial Fellowship Foundation for a term expiring November 5, 2018.

Martin O'Malley, of Maryland, to be a Member of the Board of Trustees of the James Madison Memorial Fellowship Foundation for the remainder of the term expiring November 5, 2012.

Walter G. Secada, of Florida, to be a Member of the Board of Trustees of the Barry Goldwater Scholarship and Excellence in Education Foundation for a term expiring March 3, 2016.

Stewart M. De Soto, of Illinois, to be a Member of the Board of Trustees of the Barry Goldwater Scholarship and Excellence in Education Foundation for a term expiring August 11, 2016.

Anne J. Udall, of Oregon, to be a Member of the Board of Trustees of the Morris K. Udall and Stewart L. Udall Foundation for a term expiring October 6, 2016.

36 Air Force nominations in the rank of general.

A routine list in the Army. **Pages S6389–90**

Messages from the House: **Page S6336**

Measures Referred: **Page S6336**

Measures Read the First Time: **Pages S6336, S6389**

Executive Communications: **Pages S6336–39**

Additional Cosponsors: **Pages S6340–42**

Statements on Introduced Bills/Resolutions: **Pages S6342–46**

Additional Statements: **Page S6336**

Amendments Submitted: **Pages S6346–69**

Notices of Hearings/Meetings: **Page S6369**

Authorities for Committees to Meet: **Pages S6369–70**

Privileges of the Floor: **Page S6370**

Adjournment: Senate convened at 10 a.m. and adjourned at 8:03 p.m., until 2 p.m. on Monday, September 17, 2012. (For Senate's program, see the remarks of the Acting Majority Leader in today's Record on page S6389.)

Committee Meetings

(Committees not listed did not meet)

CONSUMER FINANCIAL PROTECTION BUREAU

Committee on Banking, Housing, and Urban Affairs: Committee concluded a hearing to examine holding the Consumer Financial Protection Bureau accountable, focusing on a review of the semi-annual report to Congress, after receiving testimony from Richard Cordray, Director, Consumer Financial Protection Bureau.

NOMINATIONS

Committee on Foreign Relations: Committee concluded a hearing to examine the nominations of Stephen D. Mull, of Virginia, to be Ambassador to the Republic of Poland, and Dawn M. Liberi, of Florida, to be Ambassador to the Republic of Burundi, both of the Department of State, after the nominees testified and answered questions in their own behalf.

QUALITY OF DISABILITY BENEFIT AWARDS

Committee on Homeland Security and Governmental Affairs: Permanent Subcommittee on Investigations concluded a hearing to examine issues related to the quality of disability benefit awards involving 300 case files of claimants under the Social Security Disability Insurance (SSDI) and Supplement Security Income (SSI) programs involving initial applications and subsequent levels of appeal, after receiving testimony from Patricia Jonas, Executive Director, Office of Appellate Operations, Debra Bice, Chief Administrative Law Judge, Douglas Stults, Hearing Office Chief Administrative Law Judge, Oklahoma City, Oklahoma Hearing Office, Thomas Erwin, Hearing Office Chief Administrative Law Judge, Roanoke, Virginia Hearing Office, and Ollie L. Garmon III, Regional Chief Administrative Law Judge, Atlanta Region, all of the Office of Disability Adjudication and Review, Social Security Administration.

IMPROVING COLLEGE AFFORDABILITY

Committee on Health, Education, Labor, and Pensions: Committee concluded a hearing to examine improving college affordability, focusing on a view from the states, after receiving testimony from Camille Preus, Oregon Department of Community Colleges and Workforce Development Commissioner, Salem; John G. Morgan, Tennessee Board of Regents Chancellor, Nashville; Muriel A. Howard, American Association of State Colleges and Universities, Washington, DC; and David Longanecker, Western Interstate Commission for Higher Education, Boulder, Colorado.

BUSINESS MEETING

Committee on Indian Affairs: Committee ordered favorably reported the following business items:

S. 675, to express the policy of the United States regarding the United States relationship with Native Hawaiians and to provide a process for the recognition by the United States of the Native Hawaiian governing entity, with an amendment in the nature of a substitute;

S. 1345, to provide for equitable compensation to the Spokane Tribe of Indians of the Spokane Reservation for the use of tribal land for the production of hydropower by the Grand Coulee Dam, with an amendment in the nature of a substitute; and

S. 1684, to amend the Indian Tribal Energy Development and Self-Determination Act of 2005, with amendments.

IMPACTS OF THE CARCIERI AND PATCHAK DECISIONS

Committee on Indian Affairs: Committee concluded an oversight hearing to examine the impacts of the Carcieri and Patchak decisions, after receiving testimony from Donald Laverdure, Acting Assistant Secretary of the Interior for Indian Affairs; Jefferson Keel, National Congress of American Indians (NCAI), Washington, DC; John Echohawk, Native American Rights Fund (NARF), Boulder, Colorado; and Colette Routel, William Mitchell College of Law, St. Paul, Minnesota.

BUSINESS MEETING

Committee on the Judiciary: Committee ordered favorably reported S. 645, to amend the National Child Protection Act of 1993 to establish a permanent background check system, with amendments.

INTELLIGENCE

Select Committee on Intelligence: Committee held closed hearings on intelligence matters, receiving testimony from officials of the intelligence community.

Committee recessed subject to the call.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 22 public bills, H.R. 6388–6409; and 6 resolutions, H.J. Res. 119–120; and H. Res. 781–784 were introduced. **Pages H5999–H6001**

Additional Cosponsors: **Page H6001**

Reports Filed: Reports were filed today as follows:

H.R. 6083, to provide for the reform and continuation of agricultural and other programs of the Department of Agriculture through fiscal year 2017, and for other purposes, with an amendment (H. Rept. 112–669) and

H.R. 3409, to limit the authority of the Secretary of the Interior to issue regulations before December 31, 2013, under the Surface Mining Control and Reclamation Act of 1977 (H. Rept. 112–670).

Page H5999

Speaker: Read a letter from the Speaker wherein he appointed Representative Austria to act as Speaker pro tempore for today. **Page H5925**

Recess: The House recessed at 10:59 a.m. and reconvened at 12 noon. **Page H5931**

Chaplain: The prayer was offered by the guest chaplain, Reverend Kris Holzmeyer, Second Baptist Church, Clinton, Tennessee. **Page H5931**

No More Solyndras Act—Rule for Consideration: The House agreed to H. Res. 779, the rule that is providing for consideration of H.R. 6213, to limit further taxpayer exposure from the loan guarantee program established under title XVII of the Energy Policy Act of 2005, by a yea-and-nay vote of 232 yeas to 182 nays, Roll No. 574, after the previous question was ordered without objection.

Pages H5934–39, H5948–49

Suspensions—Proceedings Resumed: The House agreed to suspend the rules and pass the following measures which were debated on September 11th:

Stolen Valor Act of 2012: H.R. 1775, amended, to amend title 18, United States Code, to establish a criminal offense relating to fraudulent claims about military service, by a ⅔ yea-and-nay vote of 410 yeas to 3 nays, Roll No. 575 and **Page H5949**

Agreed to amend the title so as to read: "To amend title 18, United States Code, with respect to fraudulent representations about having received military decorations or medals.". **Page H5949**

Extending by 3 years the authorization of the EB–5 Regional Center Program, the E-Verify Program, the Special Immigrant Nonminister Religious Worker Program, and the Conrad State 30 J–1 Visa Waiver Program: S. 3245, to extend by 3 years the authorization of the EB–5 Regional Center Program, the E-Verify Program, the Special Immigrant Nonminister Religious Worker Program, and the Conrad State 30 J–1 Visa Waiver Program, by a ⅔ yea-and-nay vote of 412 yeas to 3 nays, Roll No. 580. **Page H5972**

Continuing Appropriations Resolution, 2013: The House passed H.J. Res. 117, making continuing appropriations for fiscal year 2013, by a recorded vote of 329 ayes to 91 noes, Roll No. 579.

Pages H5939–48, H5949–56, H5969–72

Rejected the Barber motion to recommit the resolution to the Committee on Appropriations with instructions to report the same back to the House forthwith with an amendment, by a recorded vote of 189 ayes to 232 noes, Roll No. 578. **Pages H5969–71**

H. Res. 778, the rule providing for consideration of the joint resolution (H.J. Res. 117) and the bill (H.R. 6365), was agreed to by a recorded vote of 232 ayes to 182 noes, Roll No. 573, after the previous question was ordered by a yea-and-nay vote of 235 yeas to 178 nays, Roll No. 572. **Pages H5946–48**

National Security and Job Protection Act: The House passed H.R. 6365, to amend the Balanced Budget and Emergency Deficit Control Act of 1985 to replace the sequester established by the Budget Control Act of 2011, by a recorded vote of 223 ayes to 196 noes, Roll No. 577. **Pages H5956–69**

Rejected the Van Hollen motion to recommit the bill to the Committee on the Budget with instructions to report the same back to the House forthwith with an amendment, by a yea-and-nay vote of 170 yeas to 247 nays, Roll No. 576. **Pages H5967–69**

H. Res. 778, the rule providing for consideration of the joint resolution (H.J. Res. 117) and the bill (H.R. 6365), was agreed to by a recorded vote of 232 ayes to 182 noes, Roll No. 573, after the previous question was ordered by a yea-and-nay vote of 235 yeas to 178 nays, Roll No. 572. **Pages H5946–48**

Condemning the shooting that killed six innocent people at the Sikh Temple of Wisconsin: The House agreed to discharge and agree to H. Res. 775, condemning the shooting that killed six innocent people at the Sikh Temple of Wisconsin in Oak Creek, Wisconsin, on August 5, 2012. **Page H5973**

Discharge Petition: Representative Braley presented to the clerk a motion to discharge the Committee on Rules from the consideration of H. Res. 739, providing for consideration of the bill (H.R. 6083) to

provide for the reform and continuation of agricultural and other programs of the Department of Agriculture through fiscal year 2017, and for other purposes (Discharge Petition No. 5).

Senate Message: Message received from the Senate today appears on page H5931.

Quorum Calls—Votes: Five yea-and-nay votes and four recorded votes developed during the proceedings of today and appear on pages H5947, H5947–48, H5948–49, H5949, H5968–69, H5969, H5971, H5971–72 and H5972. There were no quorum calls.

Adjournment: The House met at 10 a.m. and adjourned at 9:02 p.m.

Committee Meetings

F–22 PILOT PHYSIOLOGICAL ISSUES

Committee on Armed Services: Subcommittee on Tactical Air and Land Forces held a hearing on F–22 pilot physiological issues. Testimony was heard from Major General Charles W. Lyon, USAF, Director of Operations, Headquarters Air Combat Command, U.S. Air Force; and public witnesses.

FEDERAL VOTING ASSISTANCE PROGRAM

Committee on Armed Services: Subcommittee on Military Personnel held a hearing on the Federal Voting Assistance Program. Testimony was heard from Pamela S. Mitchell, Acting Director, Federal Voting Assistance Program, Department of Defense.

Y–12 INTRUSION

Committee on Armed Services: Subcommittee on Strategic Forces held a hearing on Y–12 Intrusion: Investigation, Response, and Accountability. Testimony was heard from Daniel B. Poneman, Deputy Secretary of Energy, Department of Energy; and Neile L. Miller, Principal Deputy Administrator, National Nuclear Security Administration.

MISCELLANEOUS MEASURE

Committee on Education and the Workforce: Full Committee held a markup of H.J. Res. 118, providing for congressional disapproval of the Administration's July 12, 2012 waiver of welfare work requirements. The resolution was ordered reported, without amendment.

AMERICAN ENERGY INITIATIVE

Committee on Energy and Commerce: Subcommittee on Energy and Power, hearing entitled ''The American Energy Initiative''. Testimony was heard from public witnesses.

CREATING OPPORTUNITIES THROUGH IMPROVED GOVERNMENT SPECTRUM EFFICIENCY

Committee on Energy and Commerce: Subcommittee on Communications and Technology held a hearing entitled ''Creating Opportunities through Improved Government Spectrum Efficiency''. Testimony was heard from Karl Nebbia, Associate Administrator, Office of Spectrum Management, National Telecommunications and Information Administration, Department of Commerce; Major General Robert Wheeler, USAF, Deputy Chief Information Officer for Command, Control, Communications and Computers (C4) and Information Infrastructure, Department of Defense; Mark Goldstein, Director, Physical Infrastructure Issues, Government Accountability Office; and public witnesses.

EXAMINING THE USES OF CONSUMER CREDIT DATA

Committee on Financial Services: Subcommittee on Financial Institutions and Consumer Credit held a hearing entitled ''Examining the Uses of Consumer Credit Data''. Testimony was heard from public witnesses.

COMBATING THE HAQQANI TERRORIST NETWORK

Committee on Foreign Affairs: Subcommittee on Terrorism, Nonproliferation, and Trade held a hearing entitled ''Combating the Haqqani Terrorist Network''. Testimony was heard from public witnesses.

ASSESSING U.S. POLICY ON PEACEKEEPING OPERATIONS IN AFRICA

Committee on Foreign Affairs: Subcommittee on Africa, Global Health, and Human Rights held a hearing entitled ''Assessing U.S. Policy on Peacekeeping Operations in Africa''. Testimony was heard from Esther D. Brimmer, Assistant Secretary of State for International Affairs.

CONDITIONS AT CAMP LIBERTY: U.S. AND IRAQI FAILURES

Committee on Foreign Affairs: Subcommittee on Oversight and Investigations held a hearing entitled ''Conditions at Camp Liberty: U.S. and Iraqi Failures''. Testimony was heard from a public witness.

BIOWATCH PRESENT AND FUTURE

Committee on Homeland Security: Subcommittee on Emergency Preparedness, Response, and Communications; and Subcommittee on Cybersecurity, Infrastructure Protection, and Security Technologies held a joint hearing entitled ''BioWatch Present and Future: Meeting Mission Needs for Effective Biosurveillance?''. Testimony was heard from Alexander

Garza, Assistant Secretary for Health Affairs, Chief Medical Officer, Department of Homeland Security; Rafael Borras, Under Secretary for Management, Department of Homeland Security; William Jenkins, Director, Homeland Security and Justice Issues, Government Accountability Office; Albert J. Romanosky, Medical Director, State Emergency Preparedness Coordinator, Office of Preparedness and Response, Department of Health and Mental Hygiene, State of Maryland.

QUESTIONING OF KEY DEPARTMENT OF THE INTERIOR OFFICIALS

Committee on Natural Resources: Full Committee held a hearing entitled ''Committee Oversight of Department of the Interior: Questioning of Key Department of the Interior Officials''. Testimony was heard from Neal Kemkar, Special Assistant, Office of the Secretary, Department of the Interior; and Mary Katherine Ishee, Deputy Chief of Staff and Senior Advisor to the Assistant Secretary for Land and Minerals Management, Department of the Interior.

JOBS ACT: IMPORTANCE OF PROMPT IMPLEMENTATION FOR ENTREPRENEURS, CAPITAL FORMATION, AND JOB CREATION

Committee on Oversight and Government Reform: Subcommittee on TARP, Financial Services, and Bailouts of Public and Private Programs and the Committee on Financial Services' Subcommittee on Capital Markets and Government Sponsored Enterprises held a joint hearing entitled ''The JOBS Act: Importance of Prompt Implementation for Entrepreneurs, Capital Formation, and Job Creation''. Testimony was heard from public witnesses.

SIGAR REPORT: DOCUMENT DESTRUCTION AND MILLIONS OF DOLLARS UNACCOUNTED FOR AT THE DEPARTMENT OF DEFENSE

Committee on Oversight and Government Reform: Subcommittee on National Security, Homeland Defense and Foreign Operations held a hearing entitled ''SIGAR Report: Document Destruction and Millions of Dollars Unaccounted for at the Department of Defense''. Testimony was heard from John F. Sopko, Special Inspector General for Afghanistan Reconstruction, Department of Defense.

ADDING TO UNCERTAINTY: SMALL BUSINESSES' PERSPECTIVES ON THE TAX CLIFF

Committee on Small Business: Subcommittee on Economic Growth, Capital Access and Tax held a hearing entitled ''Adding to Uncertainty: Small Businesses' Perspectives on the Tax Cliff''. Testimony was heard from public witnesses.

EVALUATING THE EFFECTIVENESS OF DOT'S TRUCK AND BUS SAFETY PROGRAM

Committee on Transportation and Infrastructure: Subcommittee on Highways and Transit held a hearing entitled ''Evaluating the Effectiveness of DOT's Truck and Bus Safety Program''. Testimony was heard from Anne Ferro, Administrator, Federal Motor Carrier Safety Administration; David Palmer, Assistant Chief, Texas Department of Public Safety; and public witnesses.

MISCELLANEOUS MEASURE

Committee on Ways and Means: Full Committee held a markup of H.J. Res. 118, providing for congressional disapproval of the Administration's July 12, 2012 waiver of welfare work requirements. The resolution was ordered reported, without amendment.

INVESTIGATION OF THE SECURITY THREAT POSED BY CHINESE TELECOMMUNICATIONS COMPANIES HUAWEI AND ZTE

House Permanent Select Committee on Intelligence: Full Committee held a hearing entitled ''Investigation of the Security Threat Posed by Chinese Telecommunications Companies Huawei and ZTE''. Testimony was heard from public witnesses.

Joint Meetings

No joint committee meetings were held.

COMMITTEE MEETINGS FOR FRIDAY, SEPTEMBER 14, 2012

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Armed Services: to receive a closed briefing on the situation in Syria, 9:30 a.m., SVC–217.

Committee on Indian Affairs: to hold hearings to examine the nomination of Kevin K. Washburn, of New Mexico, to be Assistant Secretary of the Interior for Indian Affairs, 2:30 p.m., SD–628.

House

Committee on Armed Services, Subcommittee on Oversight and Investigations, hearing on Department of Defense Auditability Challenges, 9 a.m., 2118 Rayburn.

Committee on Energy and Commerce, Subcommittee on Health, hearing entitled ''Title 42—A Review of Special Hiring Authorities'', 10 a.m., 2123 Rayburn.

Committee on Financial Services, Subcommittee on Insurance, Housing and Community Opportunity, hearing entitled ''Housing for Heroes: Examining How Federal Programs Can Better Serve Veterans'', 9:30 a.m., 2128 Rayburn.

Committee on Homeland Security, Subcommittee on Oversight, Investigations, and Management, hearing entitled ''Lessons From Fort Hood: Improving our Ability to Connect the Dots'', 9 a.m., 311 Cannon.

Committee on Natural Resources, Subcommittee on Indian and Alaska Native Affairs, hearing entitled ''Per Capita Act and Federal Treatment of Trust Per Capita Distributions'', 11 a.m., 1324 Longworth.

Committee on Science, Space, and Technology, Full Committee, hearing entitled ''Recent Developments in NASA's Commercial Crew Acquisition Strategy'', 9:30 a.m., 2318 Rayburn.

Committee on Veterans' Affairs, Subcommittee on Health, hearing entitled ''VA Fee Basis Care: Flawed Policies not a Fix for a Flawed System'', 9:30 a.m., 334 Cannon.

Committee on Ways and Means, Subcommittee on Social Security, hearing entitled ''Securing the Future of the Social Security Disability Insurance Program'', 9:30 a.m., B–318 Rayburn.

Next Meeting of the **SENATE**

2 p.m., Monday, September 17

Senate Chamber

Program for Monday: Senate will meet in a pro forma session.

Next Meeting of the **HOUSE OF REPRESENTATIVES**

9 a.m., Friday, September 14

House Chamber

Program for Friday: Consideration of H.R. 6213—No More Solyndras Act (Subject to a Rule).

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